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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. CUELLAR).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
December 3, 2020.

I hereby appoint the Honorable HENRY CUELLAR to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2020, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

THANKING MY CAMPAIGN TEAM AND SUPPORTERS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, another group that I would like to pause and thank is my campaign team and supporters.

It is amazing how diverse this group is. They are young and old; they are rich and poor; they live in towns, villages, and isolated country roads. While conservative in ideology, they identify as Republicans, Democrats, Libertarians, and even Independents.

These are the people who walked in parades; they helped pass out balloons, candy, and political literature; they carried signs; they put up and took down political signs of all sizes; they helped stuff mail and phone-bank; they organized fundraisers, both big and small; they manned booths at county fairs.

What causes people to give up their time, their talents and possessions to a candidate, party, or cause? It is at the heart of a representative democracy, our constitutional Republic.

If someone is going to cast a vote for you, shouldn't you know their beliefs?

If you feel strongly about an issue, wouldn't you want to help a kindred spirit?

I started to run for Federal office 28 years ago, unsuccessful then. I was successful 4 years later.

When asked in 1992 what I stood for, I replied:

> Less government, individual responsibility, lower taxes, and more personal freedoms and liberties.

I followed immediately with:

> I am pro-life, and I support the Second Amendment, and I am a churchgoer.

My volunteers subscribe to these values. They decided not only to vote for me, but they also actively engaged in campaign activities.

Mr. Speaker, one way to thank my volunteers and supporters is to list their names in the CONGRESSIONAL RECORD, which I am doing today. They are:

Mayor Al Adomite, Floyd Alexander, Kirby Ballard, Sue Barfield, Steve Barker, Rhonda Belford, Bill Bethel, Ruth Buettner, Glen Bolger, Pat Brady, Jen Daulby, Rosalee Davis, Marty and Donna Davis, Sherri Long Deeder, Mayor Dick Dietz, Chris Dudley, Sue (and Jack) Dwyer, Bill Enlow, Bruce and Matt Flannigan, The Tony Fuhrman Family, Mayor Allen Gaffner, Kenny and Joni Garret, Andy Goleman, Brad Goodrich, Wally and Evie Gorski, Wes and Rene Gozia, Brad Graven.

Doug Hartman, Karen Hasara, Holly Healey, Brian Heckert, Bob Hermsmeyer, Dennis Herrington, Nita Hill, Mark and Elaine Hoffman, Nancy Kimme, Bob Kjellander, Gwen Klinger, Doug Knebel, Lynn Koch, Gale and Pat Koelling, Greg Knott, J.C. Kowa, Kelvin Kuneth, Keith and Judy Loemker, Kay Long, Tom and Robin Long, Senator David Luechtefeld, Curt and Lu Maddox, Tony Marsh, Mark and Carol Mestemacher, Don and Joanne Metzler, Guy Michael, Tom and Robin Long.

Kathy Lynch, Kathy Lydon, Andy and Judy Madonia, Tony Marsh, Mayor Billy McDaniel, State Representative Charlie Meier, Mark and Carol Mestemacher, Lois Olson, Bill and Emily Olson, Paul Palazollo, Katherine Parker, Randy Pollard, Richard Porter, Bob Radmacher, Ed and Meredith Ragsdale, Mark and Shirley Repking, Pat Roddick, Dora Rohan, Tim Schneider, The Schulte family, Tim Schneider, Randy Shroyer, Irv Smith, Tim Smith and Scott McPherson, Kristy Koch Stephenson, State Representative Ron Stephens, Richard Stubblefield, Steve Tomaszewski, Wes Tucker, Troy Uphoff, Senator Frank Watson, Don and Wanda Weder, Jim Wham, Bob Winchester, Sharon Woodward, Boone Wooden.

Mr. Speaker, there is always a risk when you recognize people and name names. Most of us, when we do that, forget someone who should have been mentioned. If I have done that, I apologize. My intent is not to exclude but to offer thanks.

Until I officially leave office, I can add names to the CONGRESSIONAL RECORD, so if I have forgotten you, let me know and I will submit your name.

Many of my supporters have died. I mourned their loss with their families. I tried to attend either the wake or the funeral. We also tried to send notes, memorials, or flowers, whatever was deemed appropriate at the time.

All of my colleagues here on both sides of the aisle share this experience.

Printed on recycled paper.

We would not be here without our supporters. We couldn't have survived our primary or general election without a core group of people who believed in us and would always answer the call when we needed them.

As long as we have people willing to, as Teddy Roosevelt said, step into the arena and we have people willing to support them, we as a nation will be fine.

My thanks to them, my volunteers and supporters.

FAREWELL TO CONGRESS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Washington (Mr. HECK) for 5 minutes.

Mr. HECK. Mr. Speaker, I rise today to speak on this floor for the last time. My purpose is to convey two simple thoughts: first, an expression of gratitude, foremost to my wife, Paula—we are newlyweds; we have only been married 44 years—and to my two sons. Their support has been the only reason that I have been able to do this.

I have been absent. I am sorry. I promise to do better.

Thank you as well to my staff. Every Member here knows we ain't nothing without them. We are just the ornament on the hood of the car, and they are the engine. They have both my undying love and gratitude.

Thank you to my colleagues. My life is enriched, and I am a better person for having known you.

And a very special callout to my dear, dear friend, albeit messy roommate, and an outstanding legislator, DEREK KILMER.

Last, thank you to the people of the 10th Congressional District of Washington, whom I affectionately but sincerely refer to as my bosses. You sent me here to represent a newly created congressional district. It has truly been my privilege. Thank you.

Second, a plea, a plea to all those who follow here: Please, please work to nurture this institution. Institutions sustain us, be they our houses of worship for our faith or this secular equivalent for our democracy. They get us through hard times, but only if we tend to them.

Citizens in a democracy have, of course, rights and responsibilities; Members of this institution, this body, likewise. We are all too aware of our rights here, but it is the responsibilities that bear emphasizing.

We have a responsibility to conduct ourselves in a civil fashion. It is self-evident that civic discourse in America has degraded; some would say that it has even become vulgar.

You know, it is hard to reach agreement with a colleague tomorrow that we have character assassinated today. So let us not measure our success in terms of the number of Twitter followers we have gathered through emotion-charged or clever attacks. Let us not define those with whom we disagree, even if that disagreement is profound, as ''the other.''

We live in a pluralistic society. Part of our responsibility is to figure out how the political Rubik's Cube comes together; getting to ''yes'' among different and competing points of view; fashioning a result where everyone can get up from the table, perhaps not with everything they sought, but with enough to vote ''yes'' while still being true to their values.

There is such a thing as principled compromise. Indeed, I believe that principled compromise is the only way we can move forward and lift up those around us in desperate need of our help.

Do we no longer believe that? Or did we forget it?

Where I have failed to live up to these ideals, I beg your forgiveness. I can only promise to keep trying.

Finally, I cannot help but think of the eternal wisdom of our former colleague, John Dingell, the longest serving Member of this Chamber in our Nation's history. When I arrived here, every first-term Member walked on down to where he sat and sought his advice, and he gave the same to everyone; the same to everyone. He would look us in the eye and say:

> You have an important job—a very important job—and you are not a very important person.

Indeed, John taught us that we do not possess power, but that we only hold it in trust. For the privilege of holding the trust for these last 8 years, I am forever changed and forever grateful.

I am 2,300 miles out and headed home.

With that, Mr. Speaker, I permanently yield back.

NONCITIZEN VOTING VIA 1993 NATIONAL VOTER REGISTRATION ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS of Alabama. Mr. Speaker, this is my fourth speech in a series on voter fraud, election theft, and the Presidential election.

For emphasis, the Constitution mandates that Congress, not unelected Federal judges, renders the final verdict on who won the 2020 Presidential election.

Today, I begin addressing systemic flaws in America's election process that promote voter fraud and election theft, undermine America's election system, and threaten public trust in our Republic.

In America, only citizens are lawfully allowed to vote and control America's elections and destiny, yet, deplorably, in 1993, Democrats rammed through Congress the National Voter Registration Act that, incredibly, makes it illegal—illegal—to require proof of citizenship that prevents illegal aliens and noncitizens from registering to vote.

Why do Democrats undermine our Republic to make illegal alien and noncitizen voting easier? To win elections, of course.

It is no secret to Democrats or Republicans that, consistent with a 2014 study by Old Dominion University and George Mason University professors, noncitizens and illegal aliens vote 80 percent of the time for Democrats.

Mr. Speaker, there are many tens of millions of illegal aliens and other noncitizens in America. In 2010, the Census found 11 million illegal aliens in America. A 2018 Yale study estimated as many as 22 million illegal aliens in America. There are simply so many, that no one can keep track of how many.

Similarly, no one knows how massive the illegal alien voting bloc is or how many voted in 2020. Hundreds of thousands? Oh, most certainly. Millions? Very likely.

But what we do know for sure is that the illegal alien voting bloc was large enough and critical enough to winning the Presidential race, that at the October 22 Presidential debate, Joe Biden openly and publicly solicited their illegal votes by promising: ''Within 100 days, I am going to send to the United States Congress a pathway to citizenship for over 11 million undocumented people.''

Think about that for a moment. A Presidential candidate on national TV promises amnesty and citizenship to illegal aliens in hopes of inspiring them to illegally register to vote and vote for that candidate.

If that brazen solicitation of illegal voting for up to 22 million illegal aliens is not criminal solicitation of voter fraud and election theft, it darn well ought to be.

And don't think for a moment that Joe Biden did not know exactly what he was doing. After all, on May 11, 1993, then Senator Joe Biden personally voted for the National Voter Registration Act that makes it illegal—illegal—to require proof of citizenship when illegal aliens and other noncitizens seek to register to vote.

Mr. Speaker, all Americans deserve an election system that stops voter fraud, prevents election theft, and accurately records only lawful votes cast by eligible American citizens. Unfortunately, America's election system is so riddled with systemic flaws that far too many elections are stolen from candidates and the American people.

In my judgment, that is exactly what happened in the 2020 Presidential election, where the election theft was so massive as to favorably compare to that old adage: You can't see the forest for the trees.

Again, in my judgment, if only lawful votes cast by eligible American citizens are counted, President Trump handily won the electoral college and a second term as President.

As such, it is my duty, under the United States Constitution, on January 6, if the required one Senator will join me, to object to and later vote to reject electoral college vote submissions from States whose election systems are so badly flawed as to render

their vote submissions unreliable, untrustworthy, and unworthy of acceptance.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President-elect.

□ 1015

ADDRESS THE COVID ISSUE NOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Arizona (Mr. O'HALLERAN) for 5 minutes.

Mr. O'HALLERAN. Mr. Speaker, well, here we are again. The CDC just announced that we are going through the most difficult time in U.S. public health history. Why are we here again?

Two weeks ago, I asked that this body not leave, and we stay until we finish up the process of a COVID package. Today, we are back here again, still not having done that, and now Christmas is approaching. We will probably be leaving here next week, hopefully, with a package. But right now, that still is an unknown.

I asked before August the same thing, that we not go back for August break until we identify a package and get it done in a bipartisan way, working toward protecting the American people, protecting families of America, protecting American businesses.

Since then, we now have a projection by one of the top groups that have projected deaths, and they are saying 350,000 deaths just after Christmas.

On December 1, 2,760 people died; on December 2, 3,157. Those projections are identified as increasing because of the amount of people hospitalized and the percentages historically that have been indicated.

I ask Leader MCCONNELL to please reconsider his statements. First, he had indicated that we were going to be able to address this issue just after the election. Politics should not be playing a role in this process.

Now it is, when the new decision comes out by the bipartisan group in the Senate, he says he rejects it, and that maybe after the first of the year we will get to it.

How many Americans have to die before we get serious about this? How many of our fellow citizens have to die, our friends, our neighbors? I don't know if there are any family members who have died, but they are in danger, I can guarantee.

Our hospitals, our doctors are pleading day after day after day, do something about this. Please do something about this. We are overwhelmed. We can find beds for the doctors to be able to treat our citizens. What we cannot do is find doctors and nurses and technicians that are working 7 days a week, 16-hour days, going back to their families, going to bed, and coming back again.

I do not understand it at all. If we are concerned about the economy, let's be concerned about the economy. The more deaths, the worse our economy will suffer.

Homelessness, food instability, increasing mental health issues, education, increasing domestic violence, crime, this is going to continue to get worse unless we address the COVID issue now, not later, but now.

Our leadership has been attempting to address this issue for some time. There is only one stumbling block and that is over in the Senate.

I don't care if you agree with what has been proposed or not. Sit down at the damn table and talk about it. If you have to be there 20 hours a day, sit down and talk about it.

You wouldn't do this in your normal life in business. I have never done that in my normal life in business. When we have something moving forward, we work at it, time and time and time again; and we have to do that now, with COVID. Not later, now.

URGENT NEEDS OF TRIBAL COMMUNITIES

Mr. O'HALLERAN. Mr. Speaker, I also want to talk a little bit about Arizona's First Congressional District and our country, on the need to extend the Tribal deadline from December 31 for another year to make sure they have the opportunity to use the funds that were given to them.

There is an assumption that you can, over a 6-month period, put millions of dollars out there and get something done right away. I know that; I am a former project manager. I know to build a building it takes 2 to 3 years to get the planning done and get the work done.

And here, the CARES Act clearly indicated a need for COVID relief for the Tribal Nations, not just because they have not been able to address the issue, but they need to address the issue.

Mr. Speaker, I say one more time, let's get this COVID thing done.

CURFEWS AND COMMON SENSE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. MCCLINTOCK) for 5 minutes.

Mr. MCCLINTOCK. Mr. Speaker, Governor Newsom made a groundbreaking discovery regarding COVID–19 last week. Apparently, it has learned to tell time. Thus, acting under the strictest of scientific standards, he has ordered Californians to run home before 10 p.m., lock their doors, and hide from this insidious virus until daybreak.

Unfortunately, COVID doesn't seem to be following the curfew, so Newsom is now threatening yet another hard lockdown of virtually the entire State throughout the Christmas season. Don we now our plague apparel.

There is just one nagging question the Governor hasn't bothered to answer. If these lockdowns are so successful, why do we need to keep having them?

Now, we are told not to worry. We are cheerfully assured that the jobs that are being destroyed are nonessential. That is their term, nonessential.

Well, I have news for these self-absorbed elitists. If a job is putting food on your table and a roof over your head that job is essential for you and the family that depends upon you.

Last spring, I asked Anthony Fauci if he had taken into account the human cost of these lockdowns, the suicides, the drug and alcohol abuse, the domestic violence, the deferred health screenings and treatments, and the poverty related deaths that his policies were setting into motion. No, we really haven't considered that, he breezily replied.

Don't know, don't care.

But before Fauci and his followers took a wrecking ball to our Nation, poverty had dropped to its lowest rate since 1959. Unemployment was the lowest in 50 years. The income gap was narrowing. Wages showed their strongest growth in 40 years.

How many millions of these jobs have now been wantonly destroyed by autocratic officials who seem oblivious to the damage that they are causing?

Now, according to the CDC's best estimate, those under 50 have a 99.98 percent chance of recovering from COVID, if they get it at all; 99.98 percent. And 40 percent who get it don't even know they have it.

Even for the most vulnerable group, over 70, the survival rate is 94.6 percent.

Now, Sweden did not force its businesses to close. Sweden didn't shut down its schools and abandon its children to the streets. Sweden didn't even adopt a mask mandate.

Sweden did what free societies do; they gave the best advice they could, and they trusted their citizens to use their own good judgment of what measures made sense to them.

The result? Well, as of this morning, Sweden's mortality rate from COVID is 154 deaths per million below that of the United States. If we had Sweden's rate, that would mean over 50,000 fewer American deaths from COVID.

Meanwhile, Sweden has sustained a fraction of the economic damage that our lockdown leftists have inflicted on innocent Americans. Globally, the United Nations warns that 130 million people will starve to death around the world because of the economic damage caused by these measures.

Mr. Speaker, this has to stop. The good news is that more and more Americans are questioning the lunacy of these policies and the hypocrisy of those who impose them. Newsom's curfew order was met with spontaneous defiant demonstrations across the State. Elected sheriffs are increasingly refusing to enforce these autocratic orders. Pastors are reopening their churches. Businesses are reopening, even as their owners are taken away in handcuffs.

All mass hysterias are driven by blind fear, fanned by politicians and

charlatans who see opportunity in them. And we have, sadly, learned that such fear can cause a free people to abandon their legacy of freedom and independence, their prosperity, and their common sense, but only for a while.

Every time in history that this has happened, there is always a moment when the fear fever breaks, and the hysteria suddenly burns itself out. The French Revolution, the Salem witch trials, the Communist hysteria of the 1950s all had a moment when the absurdity of it all became so apparent that it overcame the fear and the people turned on their tormentors.

Now, I don't know if the recent wave of business and religious persecutions, the unlimited home detention orders, and the demonstrated hypocrisy of those who have ordered them signals that moment. But every shopkeeper who defies these petty tyrants, every parent who confronts their school officials, every person who refuses to submit to the dysfunctional dystopian world created by the lockdown left brings us one step closer to that turning point. It can't come soon enough.

HONORING THE LIFE AND LEGACY OF MAYOR DAVID DINKINS

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. ESPAILLAT) for 5 minutes.

Mr. ESPAILLAT. Mr. Speaker, I rise today to honor the life of a great New Yorker, someone that has made us all proud, someone that we all stand on his shoulders, the late Mayor David N. Dinkins.

Words cannot express how we feel in New York with the passing of Mayor Dinkins. Many of us stand on his shoulders, as many of us here in this Chamber stand on the shoulders of other giants that came before us. None of us really stand on our own. We stand on the shoulders of those trailblazers, those pioneers that opened the door to men and women across the country.

Mayor Dinkins was such a leader. He was the first and, up to today, the only African-American mayor in New York City, a city that prides itself on diversity. In fact, New York City says that its strength really comes from the depths of its diversity.

People from all over the world, immigrants, as I was in 1964, coming from the Dominican Republic, people from all over the world come to New York City looking for that dream. Different races, ethnicities, religions make New York City strong. And Mayor Dinkins often called the city a gorgeous mosaic, and that was its strength.

So we honor his legacy and his many years of service as a New York State Assembly member, as a Manhattan borough president, and then, of course, as mayor of the city of New York.

His detractors, and those that attempt to be revisionists of history, will never acknowledge the great things that he did. But those of us in the trenches, in the neighborhoods that have been traditionally forgotten, those of us that know that our communities lacked the voices to be heard, the disenfranchised of the city of New York will forever remember him for his accomplishments.

Community policing, he got $1.8 billion to establish the community policing program; foot officers, foot patrol officers, in neighborhoods across the city of New York fighting crack and crime but, most importantly, knowing the community, the small business owners, having a daily relationship, almost as family members, preventing the kind of conflict that is plaguing America today.

The beacon schools that he opened up, after-school programs that became the center of communities across the city of New York; the Arthur Ashe Stadium for tennis, which houses the US Open and yields more revenue than baseball, basketball, and football for the city of New York.

And, of course, that day when he welcomed Nelson Mandela to New York City, it was such an important day. I went to that celebration, and many of us in New York felt that day that New York was the center of the universe. Every neighborhood enjoyed and celebrated freedom for South Africa, and Mayor Dinkins was our mayor. What a great day. What a great mayor.

What a legacy, Mr. Speaker.

I stand here to honor that legacy so that it will never be forgotten that the great, late David N. Dinkins was an integral part of the gorgeous mosaic that he always called New York.

□ 1030

DEMOCRATS PRIORITIZE MARIJUANA OVER COVID RELIEF

The SPEAKER pro tempore. The Chair recognizes the gentleman from Arkansas (Mr. HILL) for 5 minutes.

Mr. HILL of Arkansas. Mr. Speaker, in March, our public health experts said that we needed to stay home to fight this virus and to bend the curve. Those public health experts urged the administration and Congress to design COVID–19 relief that included 8 weeks of paycheck protection and enhanced unemployment compensation through July, all with the thought that that was the amount of support that we needed to provide, given the nature of this virus.

Mr. Speaker, today, I rise to state the obvious: Months later, America remains in the throes of a brutal pandemic, Americans are hurting, and Arkansans are hurting. Every day I hear from restaurant owners and hotel operators who are concerned about whether or not they will stay in business and whether or not they can survive.

Central Arkansans tell me that they are spending more time worried about their school kids, keeping their schools open, and having reliable broadband to be able to do telemedicine and teleeducation. More central Arkansans are taking their meals at food banks. Mr. Speaker, frontline workers depend on help and our health industry to deliver the care that is essential.

Yet, Mr. Speaker, for what has the House leadership and Speaker PELOSI brought us back to Washington, D.C., to consider? Is it to consider this much-needed delivered COVID–19 relief for the American people?

No.

Is it to extend the deadline for the Paycheck Protection Program or bring the discharge petition to the House floor that House Republicans have proposed, that has over 180 signatures of this body to help our small businesses who desperately need that assistance?

No.

Mr. Speaker, while Arkansans and Americans are suffering, and while Republicans are working to extend critical assistance like the Paycheck Protection Program, our House Democratic leadership is putting a bill to legalize pot on the floor of the United States House for a vote.

Let that sink in. In the midst of this pandemic and in the midst of calls across the country to help the American people, our leadership in this House has proposed a bill to legalize pot.

My friends on the other side of the aisle are showing just how much they are out of touch with conditions in our country today. People are working to make ends meet for their families. They are trying to educate their children while juggling work obligations. They are trying to protect themselves and their loved ones from this virus.

And that is why we are here this week: To legalize pot?

Mr. Speaker, Republicans are leading. Our discharge petition could help small businesses right now, and every Democrat should sign it. Yet, Mr. Speaker, for 40 times, our Speaker of the House has blocked the consideration of extending the Paycheck Protection Program. House Democrats need to follow the lead of House Republicans and put Americans above their special interest friends by moving COVID–19 relief today on this House floor, by calling up our discharge petition and voting on paycheck protection relief.

RECOGNIZING CLAYTON BOOTHE

Mr. HILL of Arkansas. Mr. Speaker, I rise today to recognize an exceptional young man in my district, Clayton Boothe, who was raised to value a broad span of interests. At just 17 years old, he is excelling in many of these areas.

He is captain of his quiz bowl team, founder of Maumelle High School's chess team, and a member of Arkansas' Governor's School and the National Honor Society. He is ranked top of his class, and he is one of 16,000 semifinalists in the 2021 National Merit Scholarship Program out of 1.5 million nationwide applicants.

He is a writer who is working on a novel. He is a musician and a member of the Arkansas Sympathy Youth Orchestra. He hopes to attend Northwestern University in Chicago, and I expect him to succeed wherever life takes him. I congratulate Clayton on his hard work and keen interests.

Keep it up, Clayton, and make Maumelle High School and your family proud.

FAREWELL ADDRESS TO CONGRESS

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. ROSE) for 5 minutes.

Mr. ROSE of New York. Mr. Speaker, this may be the last time I get to address this hallowed Chamber, and for that I am grateful for this opportunity.

I want to start by thanking my staff. It may come as a surprise to some of my colleagues, as well as the press, but I do have some flaws. My staff worked with me for 2 years—some of them even longer—and together we—not me, we—accomplished an extraordinary amount for the great people of southern Brooklyn and Staten Island.

As I leave to pursue new adventures, I want to depart, though, with a few words of optimism for our great country, as well as a warning.

We live in a tough time for truth, and it is causing faith in our government to corrode. There is not a person in this Chamber who thinks the American people trust us. There is not a person sitting here right now who thinks the American people believe in our government.

This didn't happen overnight. It was death by a thousand disappointments, a thousand scandals, and a thousand lives broken by politicians who mock a virus until it kills their neighbor; who carve us up into blue States and red States, yet have the nerve to question someone else's patriotism; who saw no problem whatsoever giving a trillion-dollar tax cut to Big Pharma and companies that are killing our planet, but then they clutch their pearls when we say we want to be there for poor people and when we say we want to be there for the most vulnerable.

During my few years in politics, I have seen how we can beat back this festering cynicism: when we fight like hell for what is right, especially for those who need us most, when we bring converts to our side by promoting truth where there is injustice, and by appealing to common sense and—God forbid—humanity.

I have seen constituents who thought their government was there only to screw them over; begin to hope that maybe that wasn't the case when we passed the Victim Compensation Fund; and when we cut through the red tape to finally begin the construction of the East Shore Seawall, the largest resiliency project in New York City history. I saw it when we reunited families torn apart by the racist Muslim ban and when we secured millions to combat the opioid epidemic.

In retrospect, those were the good days.

Then there were days when it felt like our politics was absolutely irredeemable, when a peaceful march for justice in my community was used as a weapon to tell my constituents that it is impossible to believe that Black Lives Matter while also believing that the vast majority of police officers are heroes. Those marchers were called thugs and they were called rioters just for believing that peaceful protests could change this country. The public was told that their movement was dangerous and not something you should listen to but something you should be afraid of. Yet for those who saw it with their own eyes, the truth cut through all those smears.

I remember being outside of a supermarket. It was raining, and I was miserable. An off-duty police officer came up to talk to me. He assured me he was no Democrat, but he had been working that day of the march. He had been skeptical, but those young men and women changed his mind, and he was proud of them. That officer saw past the lies and past the differences others have used to divide us. He witnessed his fellow Americans in pain, and for him it changed everything. In typical Staten Island fashion, though, right after, he told me he wasn't going to vote for me and that I was going to lose for a thousand other reasons.

But conversations like that refreshed my memory and my faith that this country can one day live up to its promise. We can put the government back on the side of working people from New York City to Washington, D.C., and everywhere in between.

That is the America we know is possible: One where, in the face of unimaginable vitriol, we don't hate back; in the face of unimaginable adversity, we don't give up fighting until it doesn't matter what you look like and where you come from, but in this country you can accomplish your dreams—a safe America, a just America, our America.

In light of recent electoral results, some have begun to wonder if Democrats should soft-pedal the fight for equal justice, if they should take a step back from fighting for economic security or even just give up. I am here to say absolutely not. This cannot wait. Justice cannot wait. If you aren't willing to risk everything to build a better country, then you do not belong here in the first place.

Mr. Speaker, to close, representing Staten Island and south Brooklyn has been the honor of my life. On behalf of Leigh, Miles, and myself, I thank the people of the 11th Congressional District for this extraordinary privilege. I am not sure what life has in store for us, but I will be on the front lines making sure our city and our country live up to its promise.

May God bless my colleagues with the strength to do what is right, and may God bless this great country.

REMEMBERING CHAIRMAN BOB SMITH

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. WALDEN) for 5 minutes.

Mr. WALDEN. Mr. Speaker, I rise today to commemorate and honor the life and legacy of former Congressman Bob Smith. An Oregon native—born in Portland and raised in Burns—he had a deep understanding of what it meant to be an Oregonian and he knew the needs of the surrounding communities, especially the rural part of our State.

He went to Willamette University in Salem and received a degree in agriculture. He would go on to put that degree to work on his own ranch.

In 1960, Bob's career as a public servant began when he was elected to the Oregon House of Representatives. He served in the State house until 1972. He was speaker of the Oregon House during the 1969 and 1971 sessions.

I remember as a 13-year-old youngster going with my father, whom they were recruiting to run for the legislature, down to Salem to see Bob Smith and the speaker of the house. I was about this tall. I looked up, and here was this giant of a man. He was a giant of a man in Oregon politics, but a very kind soul.

He then served in the State senate from 1973 to 1982. When Oregon got its fifth congressional seat, he ran for that and was elected. He actually ran 31 different times for election and never lost a single one.

In the State house, Bob passed a number of pieces of legislation. He always stood up for farmers and ranchers in eastern Oregon and for lower taxes. He led the effort in the Congress to pass a balanced budget amendment. In the State senate, he actually helped pass the kicker law, which said when Oregon collects more tax revenue than anticipated, that goes back to the taxpayer. That went into the constitution eventually.

Bob went on to serve here, as I said, for 14 years, from 1983 to 1995, and then came back to chair the Agriculture Committee when he returned from 1997 to 1999.

I am joined here on the floor today by a colleague from Oklahoma (Mr. LUCAS), who served with Chairman Smith on the Agriculture Committee.

Mr. Speaker, I yield to the gentleman from Oklahoma (Mr. LUCAS).

Mr. LUCAS. Mr. Speaker, I thank the gentleman for yielding. It is an honor to be here. Discussing my Agriculture Committee chairman and my colleague for 2½ years, Bob Smith, is truly an honor.

When I was sworn in, in a special election and I first surveyed this body, one of the faces I recognized was this huge figure of a man standing at the back brass rail. I can still almost see

Bob right over there surveying the House floor and watching the process.

Bob was one of those folks who had a quiet, calm demeanor. He was a wonderful mentor to me in that first 6 months, then he went home to the ranch for 2 years, and then we begged him to come back and lead the Agriculture Committee for the next 2 years.

Bob was a wonderful mentor to me. He was a wonderful mentor to the underclassmen. The first times that I went with the committee on trips to understand agriculture around the world was with Bob, and he had a diplomat's style and skill. He was firm. As Congressman WALDEN remembered, he wouldn't take anything from anyone. He had a way about him. He gained your trust and he gained your confidence.

It is hard to believe that he is not with us anymore. But Bob was one of those folks whose personality, his heart, and his intellect were just as big and broad as those shoulders were. I consider myself fortunate for having served with him. I know the family will miss him with intensity forever. But, Mr. Speaker, 89 years is a good, long life. I can promise you in the time I served with him here, he lived it to the fullest.

□ 1045

Mr. WALDEN. Mr. Speaker, I thank the gentleman from Oklahoma.

Mr. Speaker, Bob did live life to the fullest in every measure. And when he and Kaye and Matt and Tiffany and Chris all lived back here, they had a farm outside in Virginia, and then he would commute to Oregon. But on weekends when he was here, he and then-Commerce Secretary Mac Baldrige would rodeo. They would go out and rope and participate in rodeos around, and here you had a sitting Member of Congress and the Secretary of Commerce out in the rodeo grounds.

Mr. Speaker, Bob lived a life big and bold. And ''free man,'' like his middle name, he believed in freedom. He believed in freedom in America. He stood up for eastern Oregon and for our farmers and ranchers and our communities.

Those of us who fly in and out of central Oregon owe a big thank-you to him as well since he used his ability in this body to get us a tower there so we could have real flights in and out of central Oregon, and improved, certainly, the interchange of I–5 and Highway 62.

Mr. Speaker, Bob did so much for our State. He stood strong for our country. He believed in freedom. He was a dear friend.

And to Kaye and to Matt and Chris and Tiffany and the whole Smith family, we extend our deepest condolences. What a life well-lived, a public service career that will be tough for anybody to ever top.

VFW POST 334 CELEBRATES 75TH ANNIVERSARY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Michigan (Ms. SLOTKIN) for 5 minutes.

Ms. SLOTKIN. Mr. Speaker, today, I rise to celebrate the 75th anniversary of VFW Post 334 in Oxford, Michigan.

Since its founding, VFW Post 334 has served the local community in Oxford. Whether it is their shelf at the Oxford/Orion food pantry, a float in the annual Christmas parade, a regular fish fry, or maintaining the Orion Veterans Memorial, residents can count on the post to show up and support the community.

Post 334 is committed to making a difference in the lives of veterans. By praying for those deployed, supporting their families at home, providing a form to gather and share experiences of service, and honoring those who are no longer with us, the VFW preserves the bonds that are forged through military service.

For its work, Post 334 was recognized in 2019 as a Michigan All-State Post for the third year in a row. Most recently, it was awarded the Diamond Jubilee Award, given to VFW charters that have demonstrated exceptional service for three-quarters of a century.

Mr. Speaker, in closing, I thank Quartermaster Chuck Haskin, Senior Advisor Commander Randy Stetson, and Post Commander Jim Hubbard for their leadership and their service to the North Oakland community.

The spirit of Post 334 is perhaps best said by Commander Hubbard: ''We honor the dead by helping the living.''

Mr. Speaker, in addition to these remarks which will live on in the RECORD of the people's House, it is my privilege to recognize their service by arranging for a flag to be flown over the Capitol in their honor. This flag will be presented in Oxford to recognize their continued service to community and to country.

Mr. Speaker, I congratulate Post 334 on a successful 75 years and wish them the best in the 75 years to come.

OCC FAIR ACCESS RULE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kentucky (Mr. BARR) for 5 minutes.

Mr. BARR. Mr. Speaker, I rise today in support of the Office of the Comptroller of the Currency's recently proposed rule to ensure fair access to banking services.

The fair access rule is a welcomed development in a time when political correctness and public relations pressure are driving the Nation's largest banks' lending decisions rather than risk metrics associated with an underlying loan.

Banks are deciding to cut off access to capital, divest their holdings, or otherwise limit financing to legally operating businesses just because those businesses are politically unpopular with outspoken critics on the far extreme left. Politicizing access to capital needs to end, and the Fair Access rule is a step in the right direction.

Mr. Speaker, the proposed rulemaking codifies longstanding principles and OCC guidance that banks should provide access to capital and credit based on the assessment of an individual borrower's risk as opposed to making broad-based decisions impacting entire industries. It is guided by fundamental principles of nondiscrimination and would ensure that banks can't pick winners and losers in the marketplace. This rule will have meaningful impacts on some of America's strongest industries and the Americans they serve.

The prohibition against redlining based on race, ethnicity, or neighborhood, regardless of an individual's qualifications and creditworthiness, is a well-established principle in Federal law. That prohibition and that principle should be extended to lawful creditworthy businesses as well.

Mr. Speaker, over the last several years, we have witnessed many cases of banks publicly committing not to do business with certain legal companies. Some banks refuse to finance new coal-fired plants; others have refused to provide credit for legally permissible drilling operations; others boycotted firearms manufacturers.

But these decisions were not based on the creditworthiness of the borrowers; they were based purely on politics.

Coal keeps the lights on. Oil and gas heat our homes and fuel our vehicles.

Should coal or oil or gas companies be subjected to a different lending standard just because of their public perception by a select few? Of course not.

These industries should not be penalized simply because of the nature of their business and private lenders' desire to placate the far left. In fact, these are companies that provide the most affordable and reliable forms of energy to the American people. They are being punished only because they are politically unpopular.

Under the rule, banks can no longer make these qualitative decisions to redline entire industries. Industries that play crucial roles in the everyday lives of Americans deserve fair access to America's financial system and should not be demonized as pawns in the politics of the day.

Banks are in the business of assessing, measuring, and managing risks. Banks should be making lending decisions based on quantifiable risks associated with a loan. If a legally operating business is a sound credit risk by objective standards, banks should not be permitted to cut off financing simply because the business isn't in the good graces of certain politicians.

Many of the rule's detractors say it is an overreach by the OCC or somehow motivated by partisan goals; but, in reality, the rule simply implements directives under Dodd-Frank to promote fair access to financial services and

fair treatment of customers. It codifies in regulation statements and guidance from financial regulators under President Obama.

In 2014, then-Comptroller Tom Curry said to regulated banks:

> You shouldn't feel that you can't bank a customer just because they fall into a category that, on its face, appears to carry an elevated level of risk. Higher risk categories of customers call for stronger risk management and controls, not a strategy of total avoidance.

Now, some critics of the OCC's rule have made the argument that it would compromise financial stability to force lenders to extend credit to dying industries, such as the fossil energy industry, that have no future under leftwing policies like the Green New Deal.

Has it ever occurred to these politicians that the reason why these fossil energy companies might face a challenging future is because of their own policies and because of their unrelenting desire to deny them the credit that they need to continue to operate.

Mr. Speaker, the debanking of certain legally operating industries is one in a series of examples of corporate leaders succumbing to the pressure of activists and far-left politicians. They have ceded the primacy of shareholders and are now letting politics drive their financing decisions.

Mr. Speaker, I commend Acting Comptroller Brooks on proposing this thoughtful and timely rule of nondiscrimination. This rule will ensure that all legal American companies have full access to the robust U.S. financial system and the economic freedom they deserve, and it will put an end to the misguided practice of banks playing politics with American jobs.

FAREWELL TO CONGRESS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Missouri (Mr. CLAY) for 5 minutes.

Mr. CLAY. Mr. Speaker, I rise today to offer my farewell remarks as a Member of the people's House. And while I will be sad to leave this historic place, I will forever be grateful for the opportunity to serve Missouri's First Congressional District for two decades and to have been blessed with the friendship of so many colleagues.

Mr. Speaker, I have given my best because my constituents deserve nothing less. I learned that vital lesson about public service from my best adviser and my personal hero, my dad, former Congressman Bill Clay. The truth is none of my success would have been possible without my remarkable family.

I thank the rock of our family, my mother, Carol, and my devoted and talented sisters, Vickie and Michelle.

Mr. Speaker, I also thank my children, Carol and Will. No Member serves unto themselves. Families also sacrifice greatly.

Carol and Will, you all have made me extremely proud. You carry yourselves with such dignity, poise, and character. There is no greater joy I have than being your father. Thank you for being my greatest and best legacy.

To my wonderful wife, Pat, I could not have selected a better partner to share in my post-congressional career. Your love and optimism keep my life balanced and exhilarated. I so look forward to our days to come.

Mr. Speaker, of course, the best part of being a Member of Congress has been helping tens of thousands of constituents solve issues with the Federal Government. None of that would have been possible without my dedicated and compassionate staff over the years: Patricia, Sheila, Virginia, Sandy, Ishmael, Jasmina, Sean, Craig, Percy, Adam, Marvin, Richard, Les, Mark, Lou, Brian, Michelle, Brittany, Josh, Pauline, Perre, Samantha, Sherry, Tony, Bill, Frank, Erica, Matt, Rico; my communications director, Steven Engelhardt; and the late Alyson Singfield and the late Dottie Ross.

I also thank an exceptional American who has devoted 48 years of public service to the U.S. House, my remarkable constituent services director, Edwilla Massey.

I thank my devoted executive assistant and scheduler, Karyn Long. Karyn is family. She always went above and beyond for me, and I am forever grateful.

I also especially thank all my chiefs of staff: Harriet Grigsby, Darryl Piggee, and Yvette Cravins.

In the book of Matthew, chapter 25, verses 36–40, the Scriptures read:

> When I was naked, you clothed Me. When I was sick, you visited Me. And when I was in prison, you came to Me. The righteous answered, ''Lord, when did we see You hungry, thirsty, clothed You, or in prison visited?'' And the King answered them, ''Truly I say to you, as you did it to the least of these my brothers, you did it to Me.''

Mr. Speaker, these Scriptures have been a guidepost for my career in public service. Over my 10 terms, I have fearlessly advocated for the permanent interest of African Americans and other unheard voices. I have had many legislative achievements in this body, and I thank all of my colleagues who assisted me in doing as the Scriptures noted, ''caring for the least of these.''

Mr. Speaker, in my remaining time, I highlight a few victories.

For 14 years, I hosted the Clay Career Fair at St. Louis' HBCU Harris-Stowe State University, which connected thousands of jobseekers with good-paying jobs, providing economic stability.

Creating jobs and economic development was a priority for me. We were able to build the new $120 million National Archives administration center in North St. Louis County.

The greatest economic victory for North St. Louis was the bipartisan effort to build the headquarters of the National Geospatial-Intelligence Agency. That $1.7 billion project is the largest single Federal investment in St. Louis' history, of which I am extremely proud.

We have also built hundreds of units of new housing. We have also expanded organ and tissue donation registry.

Mr. Speaker, I am proud of the legacy and work of Missouri's First Congressional District.

May God bless you all.

IRAN—AMERICA'S GREATEST THREAT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Wisconsin (Mr. STEIL) for 5 minutes.

Mr. STEIL. Mr. Speaker, I rise to address one of the greatest threats to American safety—Iran.

Iran is the largest state sponsor of terrorism, and from past actions, we know the regime cannot be trusted. However, over the past 4 years, progress has been made:

Our maximum pressure campaign and sanctions have reined in Iran's power;

Normalization agreements between Israel and numerous nations in the region continue to isolate Iran;

The United Arab Emirates, Bahrain, and Sudan have embraced peace and cooperation.

□ 1100

At this moment of success, the United States cannot back down. We cannot return to one-sided deals that strengthen Iran.

There is little doubt that without our efforts, Iran will continue its pursuit for a nuclear weapon and regional dominance. We must maintain pressure on the regime.

Just last month, the IAEA confirmed what we suspected all along: that the Iranian regime continues to ramp up its nuclear program. In fact, it is accelerating its efforts. This is not the time to appease the Iranian regime. We must stand strong.

Under the Obama-Biden administration, we saw years of failed foreign policy. We saw years of policy that allowed Iran to continue developing a nuclear weapon, years of policy that sent pallets of cash to Iran, years of policy that neglected our alliance with Israel, and years of policy that allowed Iranian terrorism to thrive across the region.

After the failed Obama-Biden Iran deal was implemented, Iran continued perpetuating violence, terrorism, and proxy wars across the Middle East. Iran came closer and closer to obtaining a nuclear weapon.

President Trump has shown there is another way. We do not need to appease terrorist states and turn our backs on Israel. Instead, the Trump administration's strength has helped set the conditions for regional peace. Cooperation between Israel and other Middle Eastern states is continuing to grow. This change of policy has brought hope.

Peace is possible. But peace does not happen through capitulation, and it will not happen if we go backwards.

It is clear the U.S. sanctions targeting Iran are working. We need to

maintain our sanctions against Iran and take decisive steps to prevent evasion. Sanctions have cut off vital resources that Iran's leaders use to enrich themselves and spread terrorism. U.S. financial sanctions make it harder for Iran to fund its ambitions to become a nuclear power.

Unfortunately, bad actors work hard to get around United States' sanctions. That is why I co-introduced the Preventing Illicit Finance Act. This bill supports our maximum pressure campaign and creates a public-private group to limit the abuse of the financial system by bad actors like Iran. My bill strengthens the United States' ability to enforce financial sanctions against Iran, Russia, and other adversaries.

Our maximum pressure campaign is working. We cannot turn a blind eye to Iran's aggressions and pursuit of terrorism. Iran must be held accountable.

By strengthening our sanctions enforcement and maintaining our tough approach, we can prevent Iran from becoming a nuclear power.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 11 o'clock and 2 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, we give You thanks for giving us another day.

In the waning days of this 116th Congress, we ask Your blessing upon the Members of this people's House and, most especially, upon the leadership. It is on their shoulders the most important negotiations of this Congress have been placed.

They have been entrusted by their fellow Americans with the awesome privilege and responsibility of sustaining the great experiment of democratic self-government. Give them wisdom, grace, insight, and courage to forge legislation, especially during these trying times of coronavirus pandemic, that allows us all to move forward toward an encouraging future.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. Pursuant to section 4(a) of House Resolution 967, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from South Carolina (Mr. WILSON) come forward and lead the House in the Pledge of Allegiance.

Mr. WILSON of South Carolina led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 2, 2020.

Hon. NANCY PELOSI,
The Speaker, House of Representatives, Washington, DC.

DEAR MADAM SPEAKER: I have the honor to transmit herewith a scanned copy of a letter received from Mr. Chris Harvey, Director of Election, Georgia Office of Secretary of State, indicating that, according to the preliminary results of the Special Election held December 1, 2020, the Honorable Kwanza Hall was elected Representative to Congress for the Fifth Congressional District, State of Georgia.

With best wishes, I am

Sincerely,

CHERYL L. JOHNSON.

Enclosure.

OFFICE OF SECRETARY OF STATE,
Atlanta, GA, December 2, 2020.

Re Fifth Congressional District Runoff Special Election Unofficial Results.

Hon. CHERYL L. JOHNSON,
Clerk, House of Representatives, Washington, DC.

DEAR MS. JOHNSON: Please accept this correspondence to advise you that the unofficial results of the Special Election held on Tuesday. December 1, 2020, for Representative in Congress from the Fifth Congressional District of Georgia, show that Mr. Kwanza Hall received 12,094 votes or 54% of votes of the total number of votes cast for that office.

It would appear from these unofficial results that Mr. Hall was elected as Representative in Congress from the Fifth Congressional District of Georgia.

To the best of our knowledge and belief at this time, there is no contest to this election.

As soon as the official results are certified to this office by all jurisdictions in Clayton County, DeKalb County, and Fulton County that comprise the Fifth Congressional District of Georgia, an official Certificate of Election will be prepared for transmittal as required by law.

Please do not hesitate to contact me if you have any questions.

Sincerely,

CHRIS HARVEY,
Elections Director.

SWEARING IN OF THE HONORABLE KWANZA HALL, OF GEORGIA, AS A MEMBER OF THE HOUSE

Mr. BISHOP of Georgia. Madam Speaker, I ask unanimous consent that the gentleman from Georgia, the Honorable KWANZA HALL, be permitted to take the oath of office today.

His certificate of election has not arrived, but there is no contest and no question has been raised with regard to his election.

The SPEAKER. Is there objection to the request of the gentleman from Georgia?

There was no objection.

The SPEAKER. Will Representative-elect HALL and the members of the Georgia delegation present themselves in the well.

All Members will rise and the Representative-elect will please raise his right hand.

Mr. HALL appeared at the bar of the House and took the oath of office, as follows:

Do you solemnly swear that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear truth faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office to which you are about to enter, so help you God.

The SPEAKER. Congratulations, you are now a Member of the 116th Congress.

WELCOMING THE HONORABLE KWANZA HALL TO THE HOUSE OF REPRESENTATIVES

The SPEAKER. Without objection, the gentleman from Georgia (Mr. BISHOP) is recognized for 1 minute.

There was no objection.

Mr. BISHOP of Georgia. Madam Speaker, ladies and gentlemen of the House, the Honorable KWANZA HALL is a native of Atlanta, attended Atlanta public schools, and attended the Massachusetts Institute of Technology.

He worked for the Fulton County Government. He was vice president of technology for GoodWorks International, and he is currently director of business development at Mactech Engineering.

In 2002, he was elected to the Atlanta Board of Education. In 2005, he was elected to the Atlanta City Council, District Two, where he served three consecutive terms.

Following the death of our beloved colleague, Congressman John Lewis, Kwanza qualified to run in the special election to fill the unexpired term of Congressman Lewis, which was held on November 3. There were several candidates, but none received the required majority under Georgia law.

On December 1, KWANZA won the runoff special election. His election means that the people of the Fifth Congressional District of Georgia, in Atlanta, will be represented and have a voice during this lameduck session of the 116th Congress as we debate and, hopefully, enact, among other things, the FY 2021 appropriations bill funding the operations of the Federal Government and much-needed COVID–19 relief for America's families, businesses, and our State and local governments.

He is married to Fulton County Commissioner Natalie Hall, and they have two sons.

Madam Speaker, I yield to my colleague from the Seventh District of Georgia, the Honorable ROB WOODALL.

Mr. WOODALL. Madam Speaker, I thank my friend from Georgia for yielding. And I want to welcome our new colleague to the Chamber. This isn't usually the way that it is, and nothing about the path you took to get here is usually the way that it is.

But so often, on this floor, we talk about giving a voice to the voiceless, and sometimes it seems as if it is a simple cliche. I wonder how many of my colleagues would put in the kind of time and effort that we all put in to get reelected to provide a voice, not for 2 years, not even for 12 months, but for the remainder of a cycle.

It speaks to the character of Mr. HALL, and it speaks to his commitment to the Fifth Congressional District of Georgia that he put himself out there and committed himself, as he did throughout that campaign cycle, to be that voice and to make sure that there was not a day that went by that the Fifth Congressional District of Georgia could have been represented but was not.

You are joining, certainly a very special seat, but you are joining a very special delegation here, and I want to, on behalf of all of the Republicans in the Georgia delegation, congratulate you and welcome you here today.

Mr. BISHOP of Georgia. Madam Speaker, as dean of the Georgia delegation, it is my pleasure to present and to welcome to this House and to yield to the gentleman from Georgia's Fifth Congressional District, the Honorable KWANZA HALL.

Mr. HALL. Madam Speaker, to my colleagues from Georgia, other colleagues in the House, I am KWANZA HALL and I am so thankful to be here today.

In July, just before Congressman Lewis passed away, I had COVID, and I spent about 3 weeks lying flat dealing with it, and I didn't know I would be here. So God blessed me with that time to think about what I would do next with my life at the same time Congressman LEWIS had passed away. He was a friend. He was a neighbor. He and my father served in the civil rights movement together. My father, Leon Hall, was in Montgomery at the same time, and Selma.

So I had to think about what was next for me. And God gave me a choice: Do you want to do your business, or do you want to do My business?

And I stepped up and answered the call, and He said: I have a mission for you. The mission is to run for that office and serve District Five.

We have a lot of things on the plate in front of us, and I just want to be a unifier, a person who can help us get some things done on behalf of the least of these, as Congressman Lewis would.

So thank you all for having me. Thank you to my mother, my father, who is not with us, to the Congressmen who have come before me, Wyche Fowler, and Ambassador Andrew Young.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. Under clause 5(d) of rule XX, the Chair announces to the House that, in light of the administration of the oath of office to the gentleman from Georgia, the whole number of the House is 431.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. BLUMENAUER). The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

LAST MINUTE COVID–19 RELIEF

(Ms. UNDERWOOD asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. UNDERWOOD. Mr. Speaker, it has been 6 months since the President signed coronavirus relief legislation. Since then, the House has passed two comprehensive bills to deliver urgently needed relief. Senate Republicans and the Trump administration need to do the same.

Northern Illinoisans are doing everything they can to be safe and provide for their families, but this is a once-in-a-century pandemic and no community can weather this alone. We must come together.

America is nearing a million new cases a week. Families are struggling and facing an uncertain future. Small businesses are closing their doors. Children are going hungry.

If we, as a Congress do not act now, folks at home will be forced to face their toughest winter yet, without the support they need as human beings and deserve as Americans.

Our communities are working together to help mitigate the spread of this virus. Now Congress must work together to pass a robust, evidence-based relief package. The American people are doing everything they can. Congress must do so, too.

HONORING THE LIFE AND LEGACY OF FRED RANDLE

(Mr. WESTERMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WESTERMAN. Mr. Speaker, I rise today to honor the life and legacy of Mr. Fred Randle.

Mr. Randle was a longtime Hot Springs resident who was part of Merrill's Marauders during World War II. Merrill's Marauders were U.S. soldiers who fought in the Pacific Theater, using jungle warfare techniques to penetrate deep behind enemy lines. In just 5 months, the Marauders advanced 720 miles through some of the harshest jungle terrain in the world. Upon return, each man in the unit was awarded a Bronze Star.

Mr. Randle's book, ''Hell on Land, Disaster at Sea—the Story of Merrill's Marauders and the Sinking of the Rhona,'' described his experience watching the sinking of this ship in 1943. He was one of a handful of men with the Marauders who had been sworn to secrecy about the sinking for 57 years, since it was caused by the world's first guided missile.

Mr. Randle passed away at the age of 97 on November 23, 2020. But before he did, we were able to contact him and his family and let them know that a Congressional Gold Medal will be placed in the Smithsonian in his honor.

Perhaps there is no better tribute to his life than in the words of his family, He loved the Lord and he loved the United States flag.

□ 1215

PROTECTING THE PAYCHECK PROTECTION PROGRAM ACT

(Ms. CRAIG asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. CRAIG. Mr. Speaker, I rise today because COVID–19 is threatening the American Dream across Main Streets throughout Minnesota and this Nation. Small business relief is needed now more than ever.

Unfortunately, the support we have provided is poised to become a significant tax burden for some business owners due to a misguided interpretation by the Treasury Department. We cannot allow struggling businesses to be taxed on the aid we have provided to them as a lifeline.

Fortunately, there is a solution in place to rectify this mistake. In May, I joined Representatives LIZZIE FLETCHER and ANDY KIM to introduce H.R. 6574, the Protecting the Paycheck Protection Program Act, which would ensure that PPP loan recipients whose loans are forgiven are not required to treat the loan proceeds as taxable income.

Mr. Speaker, I urge my colleagues to join me in defending our Nation's small businesses by supporting this commonsense legislation.

REMEMBERING SENATOR TOM CASPERSON

(Mr. BERGMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BERGMAN. Mr. Speaker, I rise today on behalf of Michigan's First Congressional District in memory of a friend, devoted father and husband, and dedicated public servant, Senator Tom Casperson, who passed away on Sunday, November 29, after a hard-fought and courageous battle with cancer.

Senator Casperson served in the Michigan Legislature for 14 years and

was a fierce advocate in Lansing for our Upper Peninsula way of life.

Tom was a strong and universally respected voice, confronting challenging issues head-on and working across the aisle for the benefit of his constituents. His unwavering commitment to his family, his faith, and his community is unquestionable. The entire State of Michigan is a better place because of him.

To Tom's family and friends, Isaiah 41:10 says:

Do not fear, for I am with you. Do not be dismayed, for I am your God. I will strengthen you and help you; I will uphold you with My righteous right hand.

Please join me in honoring the extraordinary life of Senator Tom Casperson.

AMERICAN PEOPLE WAITING FOR COVID RELIEF

(Ms. SCANLON asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. SCANLON. Mr. Speaker, this week, December's rent and mortgage payments came due for millions of Americans, marking another gut-wrenching deadline for families who have been forced to make the impossible decision between putting food on the table or keeping a roof overhead.

We have been asking for months for the Senate to take up one of the relief packages that the House has passed and sent for consideration or for the Senate to come up with its own COVID relief proposal. While there has finally been some movement this week, it is way overdue.

My constituents cannot wait any longer. As the coronavirus surges yet again in my region, I hear every single day from folks who have exhausted every resource to scrape by, but they cannot make ends meet without more relief.

These are folks like Denise from Linwood. Last spring, she and her husband both lost their jobs in the hospitality industry. They have two kids at home learning virtually. Now they are faced with the expiration of unemployment benefits, and they fear eviction come January.

Ann from Wayne is a schoolteacher who is trying to get a COVID test so she can take care of her elderly mother and do her job, but she has had to jump through hoop after hoop because we still lack a national testing strategy.

My constituents and our local officials are doing everything in their power to feed their families and stay safe. It is past time that the Federal Government does the same. America is waiting.

HONORING SENATOR TOM CASPERSON

(Mr. TIFFANY asked and was given permission to address the House for 1 minute.)

Mr. TIFFANY. Mr. Speaker, I want to follow up on the comments from the Congressman from the First District of Michigan.

Today, I recognize a good friend and great American, Tom Casperson, who passed away this weekend. Tom lived in Representative BERGMAN's district in Escanaba, Michigan.

I knew Tom as a State senator when he worked on numerous issues across State lines with me. The Good Neighbor Authority promoting better management of our national forests originated at a hearing Tom and I put together in Breitung Township, Michigan. Tom Casperson may have had a greater impact on Upper Peninsula issues in the Michigan Legislature than anyone who served the Upper Peninsula.

While I knew Tom as a State senator, he will be remembered for far more than that, including as a man of great faith.

Mr. Speaker, I send my deepest sympathies to Tom's wife, Diane, and their family.

It has been a great privilege to have known such a fine man. May Tom Casperson rest in peace.

DECRIMINALIZING CANNABIS

(Mr. EVANS asked and was given permission to address the House for 1 minute.)

Mr. EVANS. Mr. Speaker, in my city of Philadelphia and across the country, people of color are thrown in jail more and with harsher sentences than White people for the same cannabis-related crimes.

Cannabis is one of the fastest growing U.S. industries, but Federal law keeps many businesses of color out of this market. That is why I urge my colleagues to support passage of a jobs bill, the MORE Act. It would decriminalize cannabis at the Federal level and expunge prior Federal convictions related to marijuana. Half of all States have already decriminalized cannabis.

This jobs bill would also create the opportunity trust fund, which would generate grant programs to provide services and funds to those most negatively impacted by the war on drugs. This includes the equitable cannabis licensing program that I introduced in the Homegrown Act.

The House and Senate need to pass the MORE Act now, as the growing cannabis industry is an important economic development tool for communities of color like mine. Let's pass this jobs bill.

CONGRATULATING DR. DIANA GREENE

(Mr. RUTHERFORD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RUTHERFORD. Mr. Speaker, I rise today to congratulate Duval County Public Schools Superintendent Dr. Diana Greene.

This week, she was named the Florida Superintendent of the Year by the Florida Association of District School Superintendents, and we are all incredibly proud of her well-deserved recognition.

Over these last 5 years, including during Dr. Greene's leadership, the Duval graduation rate increased from 76 percent to 86 percent, an amazing accomplishment.

She has also helped to improve safety and security within our schools and fought to secure additional educational funding for Duval County Public Schools. Dr. Greene is an excellent example and mentor to both educators and students alike.

On behalf of the Fourth Congressional District of Florida, I thank Dr. Greene for her commitment to education and for working hard every day to make Duval County Public Schools a place where students can learn, grow, and thrive.

CALLING FOR COVID RELIEF

(Mr. LEVIN of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LEVIN of California. Mr. Speaker, I rise today on behalf of every American who has lost a loved one because of this pandemic. I rise for those who have lost their jobs or who are struggling to make ends meet in the wake of this virus. I rise for the doctors, the nurses, the caregivers, and the first responders who put themselves at risk every day as they try to save lives.

These folks in my district and across the Nation know that the enemy is not our neighbors or our political opponents. The enemy is this virus. And they are counting on us to come together to provide relief.

We must act urgently to provide State and local governments with the funding they need to maintain essential workers and provide critical services, including in public safety and education.

We must act so that small businesses don't shutter their doors, laying off the good people who live and work in our communities.

The American people cannot and should not have to wait any longer. I urge my colleagues to put their differences aside and treat this emergency like our lives depend on it—because they do.

CONGRATULATING RITEDOSE

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, congratulations to Ritedose Corporation of Columbia, a South Carolina company on the front lines of America's spectacular effort to secure a coronavirus vaccine.

Thursday, it was announced that Ritedose has been selected as a subcontractor of ApiJect Systems America, led by CEO Franco Negron, to produce prefilled single-dose syringes for the vaccine.

In 4 months, Jody Chastain, the president and CEO of Ritedose, and his talented team have up-fitted a facility that will produce up to 45 million doses a month of the vaccine. That is American ingenuity at its best, and it is our capable workforce in South Carolina at their best.

The Ritedose success in Operation Warp Speed, led by Vice President MIKE PENCE, is a historic achievement and another Donald Trump victory, which the fake media will distort.

I am grateful that The Ritedose Corporation is integral in this effort for the health and safety of American families.

In conclusion, God bless our troops, and we will never forget September the 11th in the global war on terrorism.

Mr. Speaker, we appreciate the courage of Claudia Tenney.

HONORING THE MEMORY OF ROBERT S. WASHOCK, JR.

(Ms. WILD asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. WILD. Mr. Speaker, I rise to honor the memory of a hero in my community who recently passed away from this devastating virus. Robert S. Washock, Jr., or Bob as he was known to everyone, was a devoted father, grandfather, husband, brother, and friend. He defended our Nation in the United States Navy and was a member of Dyle E. Bray VFW Post 739 in Bangor, Pennsylvania, serving as quartermaster and treasurer of the Home Association.

I am fortunate to have had the opportunity to know Bob, and the qualities that I can speak to are those that touched the lives of countless people across our community: kindness, humor, and compassion. The tributes that have poured in from people of every walk of life reflect the world of difference that he made.

At this extraordinarily difficult time for Bob's family and many friends, I extend my deepest condolences. On behalf of a grateful community, it is my honor to pay tribute to Bob for his lifelong service as an Active Duty servicemember and as a proud veteran to the country he loved. His spirit will endure.

PRIORITIZING NEEDS OF AMERICAN PEOPLE

(Mr. MURPHY of North Carolina asked and was given permission to address the House for 1 minute.)

Mr. MURPHY of North Carolina. Mr. Speaker, I would like to call attention to the only bill subject to a rule this week in the House of Representatives, the Marijuana Opportunity Reinvestment and Expungement Act.

Mr. Speaker, millions of Americans are unemployed right now due to this unprecedented pandemic, wondering how they are going to make ends meet, and thousands are dying each day from the COVID virus. But instead of working to find a bipartisan solution to provide relief to Americans, our Democratic majority wants us to convene this august body to vote on pot legislation.

This is simply unbelievable. The Republican Senate has voted multiple times on targeted relief that Republicans and Democrats agree upon, but Senate Democrats have blocked each effort.

We all agree that more PPP funds need to be made available. We all agree that unemployment benefits should be extended. We all agree that our healthcare workers need additional funding.

Mr. Speaker, we need to prioritize the needs of the American people, not Cheech and Chong. This is wrong and needs to be called out.

GIVING CREDIT TO OPERATION WARP SPEED

(Mr. GUEST asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUEST. Mr. Speaker, since the outbreak of the coronavirus in the United States, the promise of the development of a vaccine has allowed Americans to remain optimistic in the midst of tragedy. Now, after months of sacrifice, the coronavirus vaccine has been found. This accomplishment would not have been possible without the hard work of scientists working around the world and the support by the tremendous feat of government innovation known as Operation Warp Speed.

Now, following the discovery of the vaccine, we must focus on the production and distribution of the vaccine to the American people and to those across the globe.

Public officials are optimistic that distribution of the vaccine could begin in a matter of weeks, a massive jump forward in the process to rid the world of this dangerous virus. This production of millions of dosages of vaccine will not happen overnight, but thanks to Operation Warp Speed and the Trump administration, the vaccine will reach vulnerable Americans faster than anticipated, saving thousands of lives in the process.

Mr. Speaker, I thank all who helped advance this extraordinary accomplishment.

□ 1230

IN MEMORY OF WILLIAM E. ''BILLIE'' CLANTON

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to remember and honor William E. ''Billie'' Clanton of Odum, Georgia, who passed away on November 27.

Billie was raised in Wayne County and grew up picking tobacco and harvesting turpentine on his family farm. He was born with a robust entrepreneurial spirit which caused him to go from managing a successful fruit stand, as well as many other businesses, all the way to owning and operating the Chrysler Dodge dealership in 1965.

Billie went on to serve as vice president of Southeastern Chrysler and Dodge Advertising board for 30 years. He was an avid supporter of Wayne County and was very active in his community.

Billie was a 12-year host of the Day for Wayne, an event at his farm, which is a great event held in support of Wayne County. It is truly enjoyed by many every year and something I always look forward to.

Because of his prominence in his community and his life devoted to serving others, the new Highway 169 Overpass will be dedicated in his name.

Mr. Speaker, my deepest thoughts and prayers go out to Billie's family, his wife, Nell; his five daughters; his 16 grandchildren; his seven great-grandchildren, and two more on the way; his friends; and the entire Wayne community during this most difficult time.

PROXY VOTING

(Mr. MCCARTHY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCCARTHY. Mr. Speaker, for months, Democrats have used an unconstitutional scheme to allow Members to vote from home. They call it proxy voting. I call it exactly what it is: shadow voting.

Mr. Speaker, Democrats are turning away from their responsibility to their constituents by staying home and handing their voting card to NANCY PELOSI. They are handing over their voting card and not coming to work.

But why? What is so important that they can't show up? Do you know what we found? Because they wanted to attend a space launch that never took off, or they want to hang out on their boat. Who knows what else they have done.

Mr. Speaker, they don't have to show up to vote because, guess what. Someone else will do it for them. Maybe if we renamed Congress ''The French Laundry,'' they all might show up here.

This has been going on for months, and Democrats have worked overtime to hide it from the American people.

Mr. Speaker, to date, there have been 4,836 votes cast in this body by lawmakers who weren't even here.

Think about that: 4,836 votes cast in this body by Members who weren't even here.

Over a dozen lawmakers have given their vote to NANCY PELOSI on every single bill since this scheme was in place. Last night, the number was over 60 Democrats. Nearly one-third of the entire conference of the Democratic Party did not show up for work. I promise you, each and every one of them will get their paycheck.

Mr. Speaker, Americans are working hard to keep their businesses open, to keep food on the table and their kids in school. They deserve a Representative who will show up for the job, the job that they said they would do, the job they asked people to vote for them so they would come to Washington to give their voice to Congress, not to give it to NANCY PELOSI.

Mr. Speaker, this is embarrassing. This week is only about cats and cannabis when it should be about COVID. Think for one moment of what we are going to do in this body with the history of what has happened on this floor: the battle of civil rights; the question of whether to end World War I or World War II; the question of whether every man and woman is equal. Those are the things that we debate on this floor. And they were debated in the times of need.

But what is of need to the American public? We all know the challenges faced before us. We have been fighting it for months. But 40 times on this floor the Democrats have said no.

Mr. Speaker, our own Speaker of the House said we would not leave this body until we voted on COVID relief. They had 40 times to do it, and they said no.

Mr. Speaker, 4,836 times a Member didn't even show to cast a vote, and they still got paid. What about all those businesses that are shut down now permanently? There is more than $130 billion sitting to go to the workers for small businesses.

Mr. Speaker, 23 Democrats on the other side signed a letter in September and said: If we do not get a COVID relief bill, we will sign that discharge petition.

And what does that do for the American public? It goes around the Speaker of the House so the voice could actually come to the floor and the bill could be here and voted upon. And they said they would sign it if nothing happened. I wonder if their word will be kept, because I looked at the book and it hasn't.

The Speaker of the House said we would not leave unless we had COVID relief. But they call us back, and what do they call us back for? The post office.

Well, Republicans put up COVID relief on the floor that day, but Democrats said no. They call us back this week when people are hurting, people are losing their jobs. Maybe that is why one-third of the Democrats don't show, because they don't want to show their face to the constituents, that the only thing they are going to do on the floor this week is vote about cats and cannabis.

Mr. Speaker, that is wrong, and you know it. Everybody in this body knows it. It is despicable.

If Democrats want to waste the American people's time with these ridiculous bills, they will need to show up to do it. Republicans won't be a party to this unconstitutional, undemocratic mess any longer.

PROXY VOTING

(Mr. BIGGS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BIGGS. Mr. Speaker, I will tell you that I have sat here and listened to some of the 1 minutes from my friends across the aisle, and they are talking about the need for COVID relief.

Apparently, to get COVID relief, you have got to have cannabis. You have got to have pot. That is the Democrats' version of COVID relief this week.

But they don't feel like they all need to be here to deal with this issue, so they are going to mail it in. They are going to phone in their votes, and, quite frankly, in a most disturbing and unconstitutional manner.

Mr. Speaker, we can be here; they should be here. If this meant everything that they say it does, they would show up. They would show up and vote.

We could have had committee hearings, for Pete's sakes. We could have committee hearings where we could discuss and debate. We would have floor debates with open rules. And you know what? People would show up.

MOTION TO ADJOURN

Mr. BIGGS. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentleman from Arizona (Mr. BIGGS).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. BIGGS. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 5, nays 220, not voting 205, as follows:

[Roll No. 229]

YEAS—5

Graves (MO)	Hice (GA)	Womack
Herrera Beutler	Rogers (KY)	

NAYS—220

Adams	Bonamici	Casten (IL)
Aguilar	Boyle, Brendan F.	Castor (FL)
Allred	Brindisi	Chu, Judy
Amash	Brown (MD)	Cicilline
Axne	Brownley (CA)	Clark (MA)
Barragán	Bustos	Clarke (NY)
Bass	Butterfield	Clay
Beatty	Carbajal	Cleaver
Bera	Cárdenas	Clyburn
Beyer	Carson (IN)	Cohen
Bishop (GA)	Cartwright	Connolly
Blumenauer	Case	Cooper
Blunt Rochester	Casten (IL)	Correa
Costa	Kennedy	Pingree
Courtney	Khanna	Pocan
Cox (CA)	Kildee	Porter
Craig	Kilmer	Pressley
Crist	Kim	Price (NC)
Crow	Kind	Quigley
Cuellar	Kirkpatrick	Raskin
Cunningham	Krishnamoorthi	Rice (NY)
Davids (KS)	Kuster (NH)	Rose (NY)
Davis (CA)	Lamb	Rouda
Davis, Danny K.	Langevin	Roybal-Allard
Dean	Larsen (WA)	Ruiz
DeGette	Larson (CT)	Ruppersberger
DeLauro	Lawrence	Rush
DelBene	Lawson (FL)	Ryan
Delgado	Lee (NV)	Sánchez
Demings	Levin (CA)	Sarbanes
DeSaulnier	Levin (MI)	Scanlon
Deutch	Lieu, Ted	Schakowsky
Dingell	Loebsack	Schiff
Doggett	Lofgren	Schneider
Doyle, Michael F.	Lowenthal	Schrader
	Lowey	Schrier
Engel	Luján	Scott (VA)
Escobar	Luria	Serrano
Eshoo	Lynch	Sewell (AL)
Espaillat	Malinowski	Shalala
Evans	Maloney, Carolyn B.	Sherman
Finkenauer		Sherrill
Fletcher	Maloney, Sean	Sires
Foster	Matsui	Slotkin
Frankel	McAdams	Soto
Gabbard	McBath	Spanberger
Gallego	McCollum	Speier
Garamendi	McEachin	Stanton
García (IL)	McGovern	Stevens
Garcia (TX)	McNerney	Suozzi
Golden	Meeks	Swalwell (CA)
Gomez	Meng	Takano
Gonzalez (TX)	Mfume	Thompson (CA)
Gottheimer	Moore	Thompson (MS)
Green, Al (TX)	Morelle	Titus
Grijalva	Moulton	Tlaib
Haaland	Mucarsel-Powell	Tonko
Hall	Murphy (FL)	Torres (CA)
Harder (CA)	Nadler	Torres Small (NM)
Hastings	Napolitano	
Hayes	Neal	Trahan
Himes	Neguse	Trone
Horn, Kendra S.	Norcross	Underwood
Horsford	O'Halleran	Vargas
Houlahan	Ocasio-Cortez	Veasey
Hoyer	Omar	Velázquez
Huffman	Pallone	Wasserman Schultz
Jackson Lee	Panetta	
Jayapal	Pappas	Waters
Jeffries	Pascrell	Watson Coleman
Johnson (GA)	Payne	Welch
Johnson (TX)	Perlmutter	Wexton
Kaptur	Peters	Wild
Keating	Peterson	Wilson (FL)
Kelly (IL)	Phillips	Yarmuth

NOT VOTING—205

Abraham	Cline	Gosar
Aderholt	Cloud	Granger
Allen	Cole	Graves (LA)
Amodei	Collins (GA)	Green (TN)
Armstrong	Comer	Griffith
Arrington	Conaway	Grothman
Babin	Cook	Guest
Bacon	Crawford	Guthrie
Baird	Crenshaw	Hagedorn
Balderson	Curtis	Harris
Banks	Davidson (OH)	Hartzler
Barr	Davis, Rodney	Heck
Bergman	DeFazio	Hern, Kevin
Biggs	DesJarlais	Higgins (LA)
Bilirakis	Diaz-Balart	Higgins (NY)
Bishop (NC)	Duncan	Hill (AR)
Bishop (UT)	Dunn	Holding
Bost	Emmer	Hollingsworth
Brady	Estes	Hudson
Brooks (AL)	Ferguson	Huizenga
Brooks (IN)	Fitzpatrick	Hurd (TX)
Buchanan	Fleischmann	Jacobs
Buck	Flores	Johnson (LA)
Bucshon	Fortenberry	Johnson (OH)
Budd	Foxx (NC)	Johnson (SD)
Burchett	Fudge	Jordan
Burgess	Fulcher	Joyce (OH)
Byrne	Gaetz	Joyce (PA)
Calvert	Gallagher	Katko
Carter (GA)	Garcia (CA)	Keller
Carter (TX)	Gianforte	Kelly (MS)
Castro (TX)	Gibbs	Kelly (PA)
Chabot	Gohmert	King (IA)
Cheney	Gonzalez (OH)	King (NY)
Cisneros	Gooden	Kinzinger

Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lee (CA)
Lesko
Lipinski
Long
Loudermilk
Lucas
Luetkemeyer
Marchant
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Mitchell
Moolenaar
Mooney (WV)
Mullin
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Posey
Reed
Reschenthaler
Rice (SC)
Richmond
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Timmons
Tipton
Turner
Upton
Van Drew
Vela
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Woodall
Wright
Yoho
Young
Zeldin

□ 1355

Messrs. BROWN of Maryland, YARMUTH, JOHNSON of Georgia, and Ms. TLAIB changed their vote from ''yea'' to ''nay.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Barragán (Beyer)
Bera (Aguilar)
Bonamici (Clark (MA))
Boyle, Brendan F. (Jeffries)
Brownley (CA) (Clark (MA))
Carson (IN) (Cleaver)
Castor (FL) (Demings)
Cohen (Beyer)
Costa (Cooper)
Dean (Scanlon)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Doggett (Raskin)
Doyle, Michael F. (Cartwright)
Escobar (Garcia (TX))
Frankel (Clark (MA))
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kim (Davids (KS))
Kirkpatrick (Stanton)
Lamb (Golden)
Langevin (Lynch)
Lawson (FL) (Demings)
Lee (NV) (Kuster (NH))
Lieu, Ted (Beyer)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
McEachin (Wexton)
McNerney (Raskin)
Meng (Kuster (NH))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Nadler (Jeffries)
Napolitano (Correa)
Pascrell (Pallone)
Payne (Wasserman Schultz)
Peters (Kildee)
Pingree (Kuster (NH))
Pocan (Raskin)
Porter (Wexton)
Pressley (Trahan)
Price (NC) (Butterfield)
Roybal-Allard (Garcia (TX))
Ruiz (Dingell)
Rush (Underwood)
Schneider (Casten (IL))
Schrier (DelBene)
Serrano (Jeffries)
Sherrill (Pallone)
Sires (Norcross)
Speier (Scanlon)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

PROVIDING FOR CONSIDERATION OF H.R. 3884, MARIJUANA OPPORTUNITY REINVESTMENT AND EXPUNGEMENT ACT OF 2019

Mr. MCGOVERN. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 1244 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 1244

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 3884) to decriminalize and deschedule cannabis, to provide for reinvestment in certain persons adversely impacted by the War on Drugs, to provide for expungement of certain cannabis offenses, and for other purposes. All points of order against consideration of the bill are waived. In lieu of the amendment in the nature of a substitute recommended by the Committee on the Judiciary now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 116–67, modified by the amendment printed in the report of the Committee on Rules accompanying this resolution, shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary; and (2) one motion to recommit with or without instructions.

The SPEAKER pro tempore. The gentleman from Massachusetts is recognized for 1 hour.

Mr. MCGOVERN. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Georgia (Mr. WOODALL), my good friend, pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. MCGOVERN. Mr. Speaker, I ask unanimous consent that all Members be given 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

□ 1400

Mr. MCGOVERN. Mr. Speaker, before I begin, I feel I need to respond to the meltdown that occurred right before the vote on the Republican side.

As the distinguished minority leader knows, House Democrats have sent two major coronavirus relief bills over to the Senate. Sadly, those bills have been gathering dust on MITCH MCCONNELL's desk. He has refused to schedule a vote and a debate on those bills.

But the good news is that today, at 12:45, we find out that Leader MCCONNELL and Speaker PELOSI have spoken about their shared commitment to completing an omnibus and COVID relief package as soon as possible. I take that as good news.

We can walk and chew gum at the same time in this Democratic-controlled House of Representatives. That means we need to deal with not only passing an omnibus bill and a COVID relief bill, but we have other work that needs to be done as well.

I find it curious, Mr. Speaker, that the bill the minority leader objected to is a bill that deals with the unequal enforcement of our drug laws where people are treated differently and more negatively because of the color of their skin. Really?

My distinguished Republican friend did not object to any of the bills we are bringing up today sponsored by Republicans—five different bills—but he chose to object to a bill that is addressing the issue of racial justice.

Now, I guess I shouldn't be surprised because it is consistent with the attitudes that come out of this White House, but it also makes clear to me that the Republican Party is no longer the party of Lincoln. It is the party of some of the most intolerant voices on the rightwing and those who dabble in conspiracy theories. It really is sad.

The Republicans made a motion that the House do now adjourn to highlight the fact that we are able to vote remotely in this Chamber in the midst of a pandemic. The leader said that nearly one-third of the Democratic Caucus didn't vote yesterday, which, by the way, they did because we do have responsible voting rules in place in the middle of this pandemic. Now, get this, Mr. Speaker. But then, right after saying that, 95 percent of the Republican Conference didn't even show up to vote. You can't make this stuff up, Mr. Speaker.

They didn't vote in person, and they didn't vote remotely—nothing. Maybe I am missing something here, but I don't think the strategy was very well thought through.

The distinguished minority leader is puzzled why we have passed rules that allow people to vote remotely during this pandemic. I have a news flash for him: Close to 275,000 people are dead. We have colleagues, both Democratic colleagues and Republican colleagues, who have been infected by this virus.

While many Republicans are rushing to attend maskless superspreader Christmas parties at the White House, we in the Democratic majority are following the guidelines by the Attending Physician in the Capitol, by the CDC, by Dr. Fauci, and by every reputable medical expert in the world.

Operating remotely during a pandemic, I want to tell my friend, is not radical, it is not unique, and it is not unprecedented or lazy. It is responsible. It is constitutional. The Supreme Court is working remotely, as are legislators around the country and around the world.

We aren't doing this because it is convenient, Mr. Speaker. We are doing it because it is necessary, and we are doing it because we want to save lives.

So, we invite our Republican colleagues to join us, to be responsible, and to understand why these rules are so incredibly important and maybe set an example for others in this country, especially those who operate in 1600 Pennsylvania Avenue.

Mr. Speaker, on Wednesday, the Rules Committee met and reported a rule, House Resolution 1244, providing

for the consideration of H.R. 3884, the Marijuana Opportunity Reinvestment and Expungement Act, under a closed rule. The rule provides 1 hour of debate equally divided and controlled by the chair and ranking member of the Committee on the Judiciary. It self-executes a manager's amendment by Chairman NADLER, and it provides for one motion to recommit with or without instructions.

Mr. Speaker, we are here today to continue our effort to reform our Nation's failed approach to the war on drugs, to put racial justice at the heart of our Nation's Federal cannabis policy, and to make restorative justice a reality for so many Americans. This is what the public has demanded for so long, that Congress address the broken status quo that allows the color of someone's skin to dictate the repercussions of their actions.

This is not hyperbole, Mr. Speaker. Cannabis accounts for almost half of all drug arrests in our country—half. Most are arrested for possessing small amounts, not for selling or manufacturing anything.

That is bad enough. But today in America, Mr. Speaker, you are nearly four times more likely to be arrested for cannabis if you are Black. Communities of color use cannabis at roughly the same rate as their White counterparts, but if you look like me, Mr. Speaker, you are far less likely to face the same penalties.

I am not okay with that, and nobody should be. I am not okay with a system that treats those who have been convicted of minor cannabis offenses like they are some kind of drug kingpin. And I am not okay with a system that sends people to prison for cannabis-related offenses even in States where recreational cannabis use has been legalized.

To do nothing about this is intolerable, and to pretend like this is a problem for communities of color to solve alone is inexcusable.

America's failed war on drugs helped create this problem. It will take a national, holistic approach to resolve it.

H.R. 3884 represents a major step forward. It complements other bipartisan criminal justice reform bills passed in this Congress and in the 115th Congress.

This underlying bill removes cannabis from the Controlled Substances Act, decriminalizing it at the Federal level so States can set their own laws.

It also puts a process in place to expunge prior convictions made in Federal courts and establishes services to help those convicted of cannabis-related crimes whose lives have been harmed by the war on drugs, because no lives should be destroyed by this failed policy.

Finally, this bill also makes Small Business Administration funding available for legitimate cannabis-related businesses while helping ensure people of color can participate in this thriving industry.

This is what beginning to reverse the failed war on drugs looks like, Mr. Speaker. It is a testament to all of those who have fought for a fresh and more effective approach year after year after year.

Now, I have worked side by side with many of them in this effort since I was first elected to Congress back in 1996. For so long, we were told the same thing. We were told to wait, to wait, to wait. Well, cannabis-related amendments couldn't even get a fair fight on this floor under the prior Republican Congresses. Not a single one was ever made in order in the 112th, 113th, or 114th Congresses—not one. We could bring no bill to the floor related to cannabis. The only one made in order last Congress was an amendment to eradicate illegal grow operations on National Forest System land.

Congress has stood idly by for too long as communities of color, in particular, were being torn apart. This majority, Mr. Speaker, is committed to doing something about it. The House has debated more amendments on cannabis policy last year than it did during my entire 20 years in Congress, and now we are moving forward with the most sweeping reforms in generations. This is what a more responsive Congress looks like.

Now, some, particularly on the other side, have wondered why we are moving forward with these reforms now. We must soon fund the government for the next fiscal year and pass the annual defense bill. We are also trying to prod the Senate to get serious about a true COVID relief bill.

Again, as I said earlier, we have a little bit of hopeful news, based on the conversation between the Speaker and the Senate majority leader. We have a lot to do in the waning days of this Congress, and I get that. But the answer is simple. This is not an either-or proposition. Congress, as I said before, can walk and chew gum at the same time.

A recent survey found that nearly 60 percent of Americans support this underlying bill. That includes a majority of both Democrats and Republicans. The facts are clear, and the public wants Congress to act.

The question is, what are we going to do about it?

I think it is time for us to take a stand, to stand for restorative justice, to stand for racial justice, to stand for criminal justice reform, and to stand with the majority of Americans demanding reforms to our Nation's cannabis policy.

Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I appreciate my friend from Massachusetts yielding me the customary 30 minutes.

Mr. Speaker, this may very well be the last rule I do down here on the floor of the House, and I was sad when SUSAN was reading from the rule because I have gotten to do some humdingers. We have done some serious legislating in the 10 years I have been in Congress. We have done some serious rulemaking in the 2 years Mr. MCGOVERN has been chairman of the Rules Committee.

Mr. Speaker, you can always tell when we have been burning the midnight oil in the Rules Committee because the rule will take a good 7, 8, or 9 minutes to read here on the floor of the House. Why? Because getting good legislation done is a complicated, difficult thing to do. It involves a lot of give and take; it involves a lot of voices at the table; and it involves a lot of time in the Rules Committee to make that happen.

Mr. Speaker, we are down here today surrounded by Purell wipes, hand sanitizer, and social distancing, and we are not here to talk about that COVID package that my friend from Massachusetts referenced. We are here to, sadly, participate in what has become a theme in this Congress, and that is folks will have the germ of a wonderful idea on the Democratic side of the aisle. They will nurture that idea in their Democratic Caucus, and they will put together all the parts of that idea they believe need to come together in their Democratic Caucus. Then, we will come to the House floor, and we will pass that idea with Democratic votes. Then, we will be vexed, truly vexed, about why that idea goes to the United States Senate and dies.

I say truly vexed, Mr. Speaker. I have been here a long time. We have seen this happen. Leadership of both parties knows, when you put together an idea all by yourself, when you don't take the time to get all the voices in the room together, and when you don't take the time to build the strategic partnerships, then good ideas do die. Sometimes it is on the way to the other Chamber; sometimes it is in conference; and sometimes it is on the President's desk.

We had numerous amendments offered to this bill. None but the manager's amendment was made in order. We had Republican advocates for many of the provisions in this bill speak of the opportunity to do something together but that those opportunities were missed along the road in the Judiciary Committee.

I take my friend from Massachusetts' comments to heart when he is so enthusiastic by a conversation that our Speaker has had with the majority leader in the Senate. I, too, am excited about that because talking about what we have done all by ourselves in a partisan way doesn't lead to positive outcomes for my constituency. Our leadership in the Democratic-led House getting together with the leadership in the Senate, the Republican-led Senate, that kind of bipartisan partnership does lead to good outcomes for our constituents back home. I am hopeful that we will be able to see that come to fruition.

Today, however, we do not have the COVID package. We have the Marijuana Opportunity Reinvestment and Expungement Act. Mr. Speaker, I have long said that we needed to have a bill like this on the floor of the House. My friend from Massachusetts tells me we have debated more marijuana amendments in the past 2 years than we have in the past 20 years. I take him at his word that that is true. I don't think this is a topic that we have not been spending enough time on. I think it is a topic that has received more than its fair share of attention in this Congress.

The racial equities that my friend talks about deserve better than to be part of a partisan package that goes nowhere. The generational disparities that my friend from Massachusetts talks about deserve better than to be part of a package that has been cobbled together for the floor rather than built together for the President's desk.

□ 1415

I agree with absolutely every heartfelt comment my friend from Massachusetts shared, from the time being now, to the opportunities that have been wasted, to the inability to have these discussions when we need to and the ability that we have had recently to have them more.

So to have all of that truth there to be wasted on a December 3 package that will not be moving anywhere, I would say to my friend, I believe hurts me as much as I know it will hurt him. He does not go through these efforts to simply be a part of the motion; he goes through these efforts because he believes in the goal. I regret that this appears to be another messaging exercise in front of us today.

NDAA, Mr. Speaker, National Defense Authorization Act, a bill that we have come together as Republicans and Democrats to speak with one voice on for over 60 years, still hangs out there, needs to be done by this year; funding of the Federal Government, not just because of all the healthcare items, but because of those more mundane items, from transportation to education to our veterans—all of those dollars need to be provided.

Reauthorization of program after program, like the United States Coast Guard, for example, we have priority after priority after priority that this House still has left to accomplish, not in a partisan way, but in a unified way that can move through the United States Senate and on to the President's desk. I know we are going to get to these priorities, but it is not without some frustration that I find myself on the floor here again talking about bills that will not be on their way to the President's desk.

I find myself talking in a disappointed tone with my friend from Massachusetts about opportunities that we have to make a difference for families, but opportunities that are going to be missed because of the way we have crafted it.

Mr. Speaker, I urge my colleagues to defeat this rule and give us a chance to do better. In the absence of that, I also will have an opportunity to defeat the previous question and bring up some of those COVID packages that really can make a difference for our friends back home.

Mr. Speaker, I reserve the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I am happy to yield 2 minutes to the gentlewoman from Pennsylvania (Ms. SCANLON), a distinguished member of the Rules Committee.

Ms. SCANLON. Mr. Speaker, like my colleague, the distinguished member of the Committee on Rules from Georgia, I, too, hope that the renewed interest in both Houses in passing COVID relief yields fruit sooner rather than later. It does require that the Senate make it a priority, and I have been advised that the Senate's priority this afternoon once again is confirming another conservative judge. So we will both have to hold out hope as we move forward.

Mr. Speaker, I am here today, pleased to rise in support of today's rule and the underlying legislation, the MORE Act.

It becomes clearer by the day that the time is long overdue for the Federal Government to bring its marijuana policy into the 21st century.

The current approach has failed our youth, has failed to stem more harmful drug usage, and, most notably, has failed communities of color across the United States. That is because, when it comes to marijuana, there are two justice systems in the United States: a gentler, more understanding system mostly available to White Americans, and a punitive, less-forgiving system primarily enforced against Black and Brown Americans.

Mr. Speaker, this isn't justice. This is not who we must be as a nation.

Thousands of people, mostly younger Black and Brown men, remain incarcerated, while a growing number of States, including Pennsylvania, have decriminalized and legalized marijuana for medicinal and recreational use.

The question is no longer whether we are living in a world if we will legalize cannabis. States across the country are leading the way and demonstrating how to safely, responsibly, and effectively regulate cannabis for medicinal and recreational use.

Mr. Speaker, the MORE Act will decriminalize marijuana by removing it from the Controlled Substances Act and apply retroactively to prior and pending marijuana-related convictions. The bill will also require Federal courts to expunge prior convictions and require courts to consider resentencing hearings for those still under supervision.

The MORE Act will not fix all of the injustices caused by the obsolete and ineffective approach of the Federal Government towards cannabis, but it is a good and long-overdue start.

Mr. Speaker, I urge all of my colleagues to side with justice and side with common sense to support this rule and the underlying legislation.

Mr. WOODALL. Mr. Speaker, it is now my pleasure to yield such time as he may consume to the gentleman from Oklahoma (Mr. COLE), one of our former colleagues on the House Budget Committee, currently the leader of the Republican side of the House Committee on Rules.

Mr. COLE. Mr. Speaker, I thank my very good friend from Georgia for yielding.

Normally, when I come down to this floor, it is to debate the rule with my good friend, the distinguished chairman of the Committee on Rules, and it is to disagree with the legislation, in many cases. And at least that is true: I am opposed to the rule and opposed to the underlying legislation.

Mr. Speaker, the real purpose that I am here today is something that my friend from Georgia referred to oft too fleetingly in his opening comments, and that is that this may be his last appearance managing a rule of the floor of the House.

Now, I had the good fortune to serve in Congress throughout my friend's distinguished 10-year career. We served, as he said, on the Committee on Budget together. We have had the opportunity to serve on both the majority and the minority on the Committee on Rules together. I was very proud to be a member of the Republican Study Committee—still am—during his tenure as our chairman.

Mr. Speaker, I have to say, probably something that my good friend, the chairman, will agree with, we regret very much that my friend has made the decision to leave Congress and go pursue—and, I am sure, successfully—other things.

We regret it because ROB WOODALL has been, throughout his 10 years, a Member's Member, a person whom I have never heard say one ill word about anyone on either side, even while vigorously disagreeing with that person; a person who has made us proud with the civility and the decency with which he has conducted his office and discharged his duties; somebody that I think everyone on the Committee on Rules not only likes and admires, but considers an invaluable part of the Committee on Rules because he manages to make his points and bring out the best in our committee and, again, do so in a way that is always civil, that is always appropriate, and, frankly, that is quite often humorous and diffuses difficult situations.

If we had more Members in the United States House of Representatives like ROB WOODALL, we would be a better body than we are—and I think both sides would agree on that. He knows how to conduct debate and argument. He knows the process. He knows how to work through the process in a civil manner. I have seen him do it in the majority. I have seen him do it in the minority.

I could not be prouder of him and the service he has rendered to this institution. I could not be, frankly, sorrier about losing a colleague who I think has contributed each and every day.

Now, ROB was the chief of staff, Mr. Speaker, before he came here, to one of our predecessors, John Linder, who also was a member of the Committee on Rules. So he came to this committee really understanding how it works, much like the chairman, who had a very similar career pattern himself, working as a staffer then coming on and now, obviously, rising to the preeminent position on the committee as our distinguished chairman. He has seen a lot of Members work through this process as well, just as I have, and I suspect he values my friend, even though he is on the other side, as deeply as I do.

Mr. Speaker, I just want to say, for the record, to my friend, ROB: We are going to miss you. We are going to miss you on the committee. But much more importantly, this institution is going to miss you. It is going to miss your civility. It is going to miss your decency. It is going to miss your industry. It is going to miss the manner in which you represent all of us to your constituents and, frankly, when you speak on this floor to the people of the United States of America. You have every reason to be proud of the career that you have built here. You could never be as proud of your career as all of us are of you and the manner in which you have conducted yourself.

My friend, this may be the last rule; although, I have got to tell you, if I can sneak you in one more time, I would. It is like we are losing, I think, our best pitcher, and if I can find one more game to stick him in, believe me, I will. But I want to tell you how much I admire you, how much I like you, how much I revere your career, how much I will miss you as a Member and a friend.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I associate myself with the remarks of the distinguished ranking member, Mr. COLE.

We are going to miss you, ROB, and this may be my final opportunity to be able to yield to you during a rules debate. The end of Congress is obviously rapidly approaching, and you have decided to retire from Congress after a very distinguished career. We have spent countless hours not only up in the Committee on Rules, but together on this floor debating many contentious issues. My distinguished friend from Georgia is always very focused, and he is always right on message and he is really quite impressive.

Mr. Speaker, every once in a while, my mother watches these proceedings, and she will always say: You know, that WOODALL guy, he is a very good debater.

And I always say: Well, what about me? I mean, do you have anything nice to say about your son?

But the bottom line is I have had some of my best fights with you, and we have disagreed on a lot of issues, but we have disagreed without being disagreeable.

The Committee on Rules has to deal with a lot of contentious issues. We have dealt with our share of contentious issues in this last Congress, but I have really taken great comfort and great inspiration by the example of you, Mr. WOODALL and Mr. COLE and others who understand the incredible nature and the incredible majesty of this institution that we get to serve in. So even among these contentious debates, you have never, ever drawn us down. It has always been in a way that is respectful and that honors your convictions and your beliefs.

We have been together early in the morning; we have been together in the middle of the afternoon, late at night. We meet a lot in the Committee on Rules, but Mr. WOODALL's good nature and his sense of humor, whether it is intentional or unintentional, makes it a little more interesting and, I dare say, makes it a lot more fun.

So I want to take this opportunity to thank you for the many years of distinguished service, both your near decade of service as a Member of Congress and before that, as Mr. COLE pointed out, your service working for Congressman John Linder, who was also on the Committee on Rules.

You have brought with you some incredible people as well. I see your longtime Committee on Rules staffer Janet Rossi on the floor here today. She is here to honor your service, as well as the others who are here today. And I just want to thank her for all of her work in the Committee on Rules as well over these years.

I always think it is really hard to be a staff member and work for us on the Committee on Rules because you have to listen to all of us go on forever and ever and ever.

Mr. Speaker, let me just close with this, and that is I think you and I come from different parts of the country and we have very different points of view on our politics, but to me, politics should be about conviction, not about political opportunism or flip-flopping with whatever way the prevailing winds are going.

What I have always admired about you is that you feel strongly about what you believe in. You know what you believe in and you fight for your convictions, whether it is popular or not popular. And I agree with Mr. COLE when he said that this institution would be better served if we had more Members like you.

Mr. Speaker, I want to say thank you, and I hope you come by the Committee on Rules next time you come back to Washington, and maybe if I get lost and I am in Georgia, I will stop by your firm and we can reminisce.

Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the gentleman from Massachusetts as chair of the Committee on Rules, and I collectively thank the Committee on Rules for its diligent work on the MORE Act, and that is H.R. 3884.

Let me, as well, thank JERRY NADLER, chairman of the Committee on the Judiciary, for his great work and, of course, two outstanding members, BARBARA LEE and EARL BLUMENAUER, for their consistent and persistent determination.

Mr. Speaker, this morning I spoke to a representative of the law enforcement community, and I indicated to him that we are about to move forward on the decriminalizing of marijuana at the Federal level, eliminating, federally, the criminalization of marijuana and cannabis. I indicated that it was not to undermine law enforcement and not to promote drug use but, in essence, to bring about justice and to provide for the right kind of roadway for what over a majority of Americans, Republicans and Democrats, want.

It is an important legislative initiative. It provides a vehicle for sales tax and a vehicle that allows businesses in the marijuana business to be able to bank legally. It provides for a reinvestment program, an opportunity grant program, and, as well, an expungement program governed by Federal courts.

□ 1430

It ensures that there are no sales made to those under 21. It deals with substance abuse. This is a real step forward in bringing America together, and I know that my colleagues tomorrow on the floor of the House will recognize that is what we are doing.

As many people know, the States that have decriminalized can continue; those who have not can continue their laws as well.

So I ask my colleagues to support H.R. 3884 when it comes to the floor. Let us do it in unity.

I, too, want to take the opportunity, very briefly. Mr. WOODALL, I think we have seen each other quite frequently, either on this floor in debate or in the Rules Committee. Let me echo the generosity and cordialness of your persistent intellect in challenging each and every one of us who came to make our case. That is all we can do as Americans and Representatives, is to make our case.

I join you. Let us work together for a COVID–19 relief package and have that as our legacy as we leave this place. But I wanted to make sure you knew that Texans appreciate your great leadership. Georgians and Texans have a good relationship. Congratulations to you. Thank you for your service.

Mr. WOODALL. Mr. Speaker, I yield 4 minutes to the gentlewoman from Arizona (Mrs. LESKO), a member of the Judiciary Committee and the Rules Committee.

Mrs. LESKO. Mr. Speaker, first, before I talk about the bill at hand, I

want to say just what an honor it has been serving with you on the Rules Committee, Mr. WOODALL.

You know, I didn't know Mr. WOODALL, really, before I served on the Rules Committee with him, and I found him to be very witty, a very good debater as well. You do it in such a nice way. You really win the debates, but you do it with a smile, and you do it in a friendly way. I really appreciate the way you conduct yourself and how you actually win arguments, but you are very friendly about it.

I don't know what your future holds, but I wish you all of the best. You are extremely talented, and it really is an honor to serve with you.

Mr. Speaker, let me talk about the bill. I find it crazy, quite frankly, that the American people and small businesses are hurting, because of the COVID crisis, and they need COVID relief, and we are not concentrating on a bipartisan COVID relief stimulus package right now that will actually be signed into law.

I find it just incredulous that, instead, my Democratic colleagues are focusing on legalizing marijuana nationwide.

Sometimes I think that the world is turned upside down, when you have a State—I think Oregon—that bans plastic straws but legalizes cocaine and heroin. It is just insane to me and I think to a majority of my constituents, whether they be Republican, Independent, or Democrat, quite frankly.

It is interesting to me—I sit on the Rules Committee and the Judiciary Committee—that on a lot of these tobacco bills that the Democrats have been promoting, it says, okay, we don't want flavored tobacco. But yet on marijuana, they don't seem to care about that. They don't care.

In this bill, there is nothing about we shouldn't have flavored edibles or candies or brownies that would be enticing to children. As far as I know, that is not in this bill at all. Yet, we want to ban that with tobacco. This makes absolutely no sense to me and no sense, I think, to the American public.

At a time when parents are trying to get their children back into school with an in-person option, because their children are falling so far behind because of the lockdowns of schools, here we are with a bill that will make it easier for these same children to get marijuana products.

I am sorry. I just don't get it. I don't understand the motivation. I am absolutely opposed to this bill.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I want to respond to my good friend from Arizona. I am not sure she was on the floor earlier when I announced that, finally, MITCH MCCONNELL seems willing to want to negotiate a deal, not only on an omnibus bill, but he seems to be interested in talking about how we can get a COVID relief bill. This notwithstanding the fact that for the last over six months, he has held everything up. We have actually sent two major COVID relief bills over to the Senate. So I am hopeful. I am going to try to be hopeful that, in fact, this is for real.

I would also say that the focus of this bill is on unfair, unequal, and racist drug laws. I mean, as I said in my opening statement, if people want to know what systemic racism is, look at how our drug laws are enforced in this country.

If you look like me and you were caught with a small amount of cannabis, you would probably get off with a very, very light sentence, if anything. But if the color of your skin were black or brown, it is a whole different story.

I mean, our system of drug laws is what systemic racism is in this country. No matter what you think about, you know, States legalizing marijuana or not legalizing marijuana, or whatever, I think we all ought to be committed to making sure there is equal justice under our laws.

People's lives were ruined because of the color of their skin and how our drug laws were enforced. It is wrong. The time has long since passed for us to do something. That is what this is all about.

So we will work on the COVID relief bill, and I hope that MITCH MCCONNELL is sincere in what he said to Speaker PELOSI. I believe we will come together on an omnibus bill to keep our Government running, but we also need to address issues like this.

Mr. Speaker, I yield 3 minutes to the gentleman from Oregon (Mr. BLUMENAUER).

Mr. BLUMENAUER. Mr. Speaker, I appreciate the gentleman's comments and his courtesy.

Listening to my colleague from Arizona sort of made my head hurt. This legislation does not legalize cannabis across the country. What it does is it stops the Federal Government from interfering with what States have decided to do.

No small amount of irony, her State just approved legalizing cannabis. And this legislation would prevent the Federal Government from interfering with what her voters decided.

I have been waiting for this historic moment for a long time. I was in the Oregon legislature when we were the first State to decriminalize cannabis. I have been working from Bangor, Maine, to Santa Barbara ever since trying to end the failed prohibition of cannabis.

It is happening today, because it has been demanded by the voters, by facts, by the momentum behind this issue.

It is now a $17 billion industry. It employs 250,000 people. It is powerful in terms of economic development.

More important, as my friend from Massachusetts said, this is an opportunity to strike a blow against the failed war on drugs that has literally destroyed hundreds of thousands of young Black lives. Black people use cannabis no more frequently than Whites, but they are arrested about four more times, and in some parts of the country, it is much, much greater.

We are still arresting or citing 600,000 people a year for something that the majority of Americans now think should be legal. That is why the voters in this country took it into their own hands. That is why today, 99 percent of the American population have some access to legalized cannabis.

This will help us set up a system moving forward. It will stop the interference by the Federal Government for research, for banking, for being able to promote an opportunity to make this work properly and not interfere with what voters in States have decided to do in the best interest of their public.

I really appreciate our being at this point. The legislation was carefully crafted over the course of two years with the Judiciary Committee. It comes on the heels of other legislation, like the Safe Banking Act, and we have research legislation that is moving forward. Five States, including Arizona, just approved it.

Mr. Speaker, this is a historic moment. It is an important step towards rationalizing the policy, towards racial justice, towards health, so that maybe the parents in my neighborhood don't have to formulate cannabis medicine to stop their babies from being tortured by extreme seizure disorder.

The SPEAKER pro tempore (Mr. YARMUTH). The time of the gentleman has expired.

Mr. MCGOVERN. Mr. Speaker, I yield an additional 1 minute to the gentleman from Oregon (Mr. BLUMENAUER).

Mr. BLUMENAUER. Mr. Speaker, that is why a number of States that haven't yet legalized cannabis have passed legislation to legalize that.

This is an opportunity for us to right this historic wrong. This is an opportunity for us to turn the page and move forward without Federal interference so that we are not outsourcing the product development to Canada or Israel. It is an opportunity for us to realize the promise while we realize the notion of racial justice.

I urge, in the strongest possible terms, for my colleagues to get in step with the vast majority of the American public, with what has happened at the State level, to be able to make this safe, affordable, and healthy, something that will make a big difference for people across the country. It is something for which time is long overdue, and I herald the day and hope that my colleagues will vote for it.

Mr. WOODALL. Mr. Speaker, if we defeat the previous question, I will amend the rule to allow for consideration of a bill that will assist our struggling small businesses as we enter the winter months and folks are anticipating increased risks of having to shut their doors.

Mr. Speaker, I ask unanimous consent to insert the text of my amendment in the CONGRESSIONAL RECORD immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. Mr. Speaker, I yield 5 minutes to the gentleman from Ohio (Mr. CHABOT), the ranking Republican on the Small Business Committee, a gentleman who has had great experience bringing together bipartisan groups in an effort to make a difference for families back home.

Mr. CHABOT. Mr. Speaker, I want to reiterate the comments of the previous speaker on our side, the gentlewoman from Arizona. Mr. WOODALL has made great contributions to this body in the decade that he has served here.

He happens to be a classmate of mine. We came together in 2010. That was his first time as a Member of Congress. It was my second time around, because I lost back in '08 after being here 14 years. So I have seen Mr. WOODALL in operation here for the last decade. He has done a tremendous job on behalf of not only his constituents but for the people of this great Nation. I want to thank him for his dedication and hard work for the people that he represents and for the people of this Nation overall.

Mr. Speaker, 2 weeks ago, I spoke on this very floor urging action on behalf of our Nation's 31 million small businesses, as the ranking member of the House Small Business Committee, formerly the Chair of that committee for two terms.

I said then that there was no better way to celebrate Small Business Saturday than to deliver much-needed aid, again, to the small restaurants and manufacturers and shops that are many of them just hanging on by a thread.

That assistance could come in the form of the Paycheck Protection Program, the PPP. That program has supported over 50 million jobs across this great Nation. That is over 50 million people who didn't have to worry about how they were going to pay their bills or how they were going to support their families, because of this bipartisan program that we passed here in this body.

□ 1445

Unfortunately, that program stopped accepting applications almost 4 months ago, back on August 8, but still has over $130 billion remaining in its coffers. Millions of small firms across the country have utilized the PPP program to keep their shops open, to keep paying their employees, and to keep serving their communities.

To me, it seems like common sense to open the program back up. After all, it was initially crafted, as I mentioned, in a bipartisan way, Republicans and Democrats actually working together. It was bicameral, the House and the Senate working together, and then the administration, obviously, signing it into law. And that program has proven to be overwhelmingly successful and saved so many jobs all over this Nation, including in my district back in Cincinnati.

So I introduced a bill that would do just that and provide targeted assistance to small businesses that truly still need help. Unfortunately, the Democratic leadership in this body has blocked efforts to even have a vote on this legislation, not just once or twice or three times or a dozen times, but 40 times, 4–0. Forty times the Democratic leadership has blocked consideration or having a vote on this.

Because the Democrats would also support this. You would have Democrats and Republicans, once again, working together and passing this and helping small business people all across the country and, most importantly, the people and families that are supported by them.

As we all know, many small businesses are still uncertain about their future. Many are on the verge of closing their doors permanently. If that continues to happen, communities all across our great Nation will be absolutely devastated.

This should have been dealt with months ago. But apparently our Democratic leadership feels it is more urgent to vote on legislation to legalize pot and to deal with lions and tigers than they do to help those small businesses that really need the help. That is just a shame.

Today, if we defeat the previous question, we make improvements to the Paycheck Protection Program, and finally get additional targeted relief to the small businesses all across this country that are counting on us. Let's not let them down.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, let me just say to the gentleman from Ohio, I think we all know what needs to happen, and that is that the Senate majority leader needs to be willing to come to the table and sit down and work out a deal.

We heard today that the Speaker has had a constructive conversation with him. Hopefully we will end up with something that, quite frankly, is going to help a lot more people than what the gentleman is suggesting here. What we do know is that nobody has been working harder than the Speaker of the House to try to get a COVID relief bill. She met around the clock with Secretary Mnuchin, with anybody in this administration who would be willing to come to the table.

Our problem has been the Senate. Now, that may be changing today. I hope it is. But I would also say that we have sent over two major COVID relief bills, which, unfortunately, the gentleman voted against, which would help not just small businesses, but help our schools, help our first responders; help with PPE for people who, quite frankly, are running short right now as we see another surge; help support our cities and towns that are struggling; and help support our restaurants.

Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I think about how many times the gentleman from Ohio has been down here to do exactly what he has just done, which is to say: I have a bill that is ready to go, a bill that I know will get bipartisan support here on the floor of the House, a bill my friends in the Senate will be anxious to move, and a bill that I know the President will put his signature on.

I appreciate his efforts in that, and I know it is not a Johnny-come-lately commitment to these struggling businesses. I remember when we were sitting down trying to work out that very first package in the spring, and the very productive role that the gentleman from Ohio played in bringing people together to get that done.

You remember that, Mr. Speaker.

We didn't have a bunch of debates on the floor of the House, a bunch of previous questions to defeat, a bunch of amendments designed to confuse or distract. No. We worked it all out together, both sides. Both sides, politically here in the House, both sides bicamerally here in the Congress, both ends of Pennsylvania Avenue.

Why?

Because we all felt that sense of urgency to get something done, and we did it.

Mr. Speaker, I tell constituents back home that the thing most freshmen are going to learn in the first 6 months that they didn't know when they got here is how hardworking and conscientious all of their colleagues turn out to be. All you see are these faces on FOX News or MSNBC fussing with one another, but the truth is that behind the scenes it is a very powerful orchestra of men and women trying to get the people's business done.

Mr. Speaker, I want to say to my friend from Massachusetts, first and probably most importantly, I wish he was not chairman of the Rules Committee. I wish a Republican was chairman of the Rules Committee because the American people felt in their wisdom that Republicans should be running this institution. There are a lot of reasons why it didn't happen. I am not here to place blame on that today.

But I will say to the gentleman that if it cannot be a Republican who leads the Rules Committee, how pleased I am that the gentleman has led the Rules Committee, because his love for this institution far transcends whatever the political passions of the day are.

The Rules Committee has had to do a lot of difficult decisionmaking in this Congress, Mr. Speaker. I wish we did not have proxy voting in this institution today. We do. That is the product of a Rules Committee effort. In many

cases, the effort of the wisdom of Solomon trying to figure out how to protect an institution and all of its practices, where we are just caretakers of this institution, going to pass it on to the next generation, while we have had to grapple with some challenges that we never anticipated grappling with, and hopefully will never have to grapple with again.

Mr. Speaker, the gentleman from Massachusetts has brought an incredible amount of not just leadership, but a great amount of love for this institution, and for the members of his committee. And I don't want to embarrass the gentleman by pointing out some of these circumstances, but I can go through a list of times this year where the gentleman from Massachusetts stood not on behalf of the Democratic Caucus, but on behalf of the Rules Committee against some other undercurrents in the United States Congress, to stand up on behalf of his 13 members and the work that we have to get done there together. That's never an easy thing to do, and I want to tell the gentleman how much I appreciate and notice those efforts.

Mr. Speaker, to do the really big things that we all know need to get done, not the least of which are on the committee you and I serve on, the Budget Committee, it takes strong men and women, men and women of conviction, but also men and women of faith, not just faith in their Lord, but faith in this institution that we can bring out the very best in one another as opposed to bringing out the very worst.

Far too often we have bills like the one before us today that could be bills that we were talking about with one voice.

When is the right time to decide that edible marijuana for our children should be banned at the Federal level? Is it after 50 States have grappled with these decisions? Is it before?

Well, we have made that decision in terms of alcohol. We have made that decision in terms of tobacco. It seems like the easy time to make that would be now. But we have not made that decision in the underlying bill. We have not made those amendments in order.

Mr. Speaker, I said at the beginning, and I will say here at the end: I am glad we are taking up this legislation.

It offends me, as one who loves the law, that we ask Federal law enforcement officers to enforce one set of rules while the State and local law enforcement officers may be enforcing a completely different set of rules. It offends me that we would put Federal law enforcement officers in harm's way for an industry that, as my friend from Massachusetts pointed out, is a multibillion-dollar cash cow legalized by State jurisdictions across the country.

I am troubled by having two sets of laws in this country. Laws we choose to follow and laws we choose not to follow. This is the institution to solve that. Having this discussion for the first time is a step in the right direction. Having this conversation end today, because it is a partisan package that is not well thought through serves none of us.

Mr. Speaker, I would again encourage my colleagues to defeat the rule so we don't go down that road.

Mr. Speaker, my friend from Massachusetts mentioned Janet Rossi on my team. I have Nick Scoufaras on my team, sitting beside me. We all are surrounded by great people that we get to work with day in and day out.

When you go to work for a member on the Rules Committee, that means you will work early, and you will work late, and you can work often. It is an amazing opportunity that we have to serve in this institution. It is also an amazing opportunity that folks that we get to surround ourselves with have to serve in this institution.

There is no more humbling space than having someone who can do anything they want to with his or her life say, Rob, I will join you; I will sit here with you; we will work side by side and we will accomplish things together.

While I appreciate the very heartfelt comments from my friend from Massachusetts and my friend from Oklahoma, one thing that occurs to me on my way out the door is how much less one would be able to do without all the greatness that folks are surrounded by.

Mr. Speaker, I get to thank Nick because he is here. I can thank Janet because she is here. But I would just say to each of my colleagues who are here, we are all so lucky folks are surrounding us in order to help us all lift this great Nation up. We often get sucked into the drumbeat of whatever the activity of the day is if you have not had an opportunity to recognize the greatness of those staffers around you, and occasionally even the Members around you, even those who sit on the other side of the aisle.

Mr. Speaker, there is a lot to be concerned about in America today, but a lot of opportunities for optimism. And many of those opportunities sit here, and sit here, and sit there, and sit here. I am grateful to be a part of that.

Mr. Speaker, I would ask my colleagues to defeat the previous question so that we can bring the Chabot legislation to the floor. If we can't defeat the previous question, defeat the rule so that we can go back and make sure all voices are heard.

Mr. Speaker, I yield back the balance of my time.

Mr. MCGOVERN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank the gentleman from Georgia for his kind words. I almost feel like I want to yield him more time to have the compliments keep coming.

The bottom line is that even though we disagree on a lot of issues, and sometimes in our debates you make me want to pull the remaining last two strands of hair out of my head, the reason why I sometimes feel that way is because you are passionate, you are smart, and you are effective. You have served your constituency incredibly well, and you have served this institution incredibly well.

Mr. Speaker, going back to what Mr. COLE said at the very beginning, I think this place would benefit from more people of your caliber. And even though you would like to demote me to ranking member instead of chairman, I am still going to miss you, and I thank you for your friendship. You are a good man, and we are going to miss you a lot.

□ 1500

Mr. Speaker, the underlying bill deserves to be considered and passed. As I said earlier, nearly 60 percent of the American public supports this bill. A majority of Democrats and a majority of Republicans throughout the Nation want this bill passed.

Prior Republican Congresses were apparently fine with turning a deaf ear to the will of the people. They blocked virtually all cannabis-related measures from getting a vote on the floor year after year.

But this majority is not. We believe in listening to the people we represent. We believe in actually doing something about the war on drugs. Its failures have been staring us in the face for a very long time.

Americans came together in record numbers following George Floyd's death to fight against systemic racism. Combating that means, among other things, reforming our policies toward cannabis. These laws have been used to disproportionately lock up people of color for decades. It is past time we showed the moral courage to do something about it.

This is a historic moment. Let us seize this chance. Let us pass this bill. I urge everyone to vote ''yes'' on the previous question, and I urge a vote of ''yes'' on the rule.

The material previously referred to by Mr. WOODALL is as follows:

AMENDMENT TO HOUSE RESOLUTION 1244

At the end of the resolution, add the following:

SEC. 2. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the bill (H.R. 8265) to amend the Small Business Act and the CARES Act to establish a program for second draw loans and make other modifications to the paycheck protection program, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Small Business; and (2) one motion to recommit.

SEC. 3. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 8265.

Mr. MCGOVERN. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

MR. WOODALL. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 3, 2020.

Hon. NANCY PELOSI,
The Speaker, House of Representatives, Washington, DC.

DEAR MADAM SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on December 3, 2020, at 11:44 a.m.:

That the Senate agrees to the House amendment to the bill S. 910.

That the Senate agrees to the House amendment to the bill S. 1069.

That the Senate passed S. 434.

That the Senate passed S. 496.

That the Senate passed S. 578.

That the Senate passed with an amendment H.R. 1044.

That the Senate passed without amendment H.R. 3349.

That the Senate passed without amendment H.R. 3465.

With best wishes, I am,

Sincerely,

CHERYL L. JOHNSON,
Clerk.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which the yeas and nays are ordered.

The House will resume proceedings on postponed questions at a later time.

COMMUNITY ADVANTAGE LOAN PROGRAM

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 7903) to amend the Small Business Act to establish the Community Advantage Loan Program, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 7903

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. COMMUNITY ADVANTAGE LOAN PROGRAM.

Section 7(a) of the Small Business Act (15 U.S.C. 636(a)) is amended by adding at the end the following:

''(37) COMMUNITY ADVANTAGE LOAN PROGRAM.—

''(A) PURPOSES.—The purposes of the Community Advantage Loan Program are—

''(i) to create a mission-oriented loan guarantee program that builds on the demonstrated success of the Community Advantage Pilot Program of the Administration, as established in 2011, to reach more underserved small business concerns;

''(ii) to increase lending to small business concerns in underserved and rural markets, including veterans and members of the military community, small business concerns owned and controlled by socially and economically disadvantaged individuals, women, and startups;

''(iii) to ensure that the program under this subsection (in this paragraph referred to as the '7(a) loan program') is more inclusive and more broadly meets congressional intent to reach borrowers who are unable to get credit elsewhere on reasonable terms and conditions;

''(iv) to help underserved small business concerns become bankable by utilizing the small-dollar financing and business support experience of mission-oriented lenders;

''(v) to allow certain mission-oriented lenders, primarily nonprofit financial intermediaries focused on economic development in underserved markets, to access guarantees for loans under this subsection (in this paragraph referred to as '7(a) loans') of not more than $250,000 and provide management and technical assistance to small business concerns as needed;

''(vi) to provide certainty for the lending partners that make loans under this subsection and to attract new lenders; and

''(vii) to encourage collaboration between mission-oriented and conventional lenders under this subsection in order to support underserved small business concerns.

''(B) DEFINITIONS.—In this paragraph—

''(i) the term 'covered institution' means—

''(I) a development company, as defined in section 103 of the Small Business Investment Act of 1958 (15 U.S.C. 662), participating in the 504 Loan Guaranty program established under title V of such Act (15 U.S.C. 695 et seq.);

''(II) a nonprofit intermediary, as defined in subsection (m)(12), participating in the microloan program under subsection (m);

''(III) a non-Federally regulated entity certified as a community development financial institution by the Community Development Financial Institutions Fund established under section 104(a) of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4703(a)); and

''(IV) an eligible intermediary, as defined in subsection (l)(1), as in effect on the day before the date of enactment of this paragraph, that participated in the Intermediary Lending Pilot Program established under subsection (l)(2);

''(ii) the term 'existing business' means a small business concern that has been in existence for not less than 2 years on the date on which a loan is made to the small business concern under the program;

''(iii) the term 'new business' means a small business concern that has been existence for not more than 2 years on the date on which a loan is made to the small business concern under the program;

''(iv) the term 'program' means the Community Advantage Loan Program established under subparagraph (C);

''(v) the term 'Reservist' means a member of a reserve component of the Armed Forces named in section 10101 of title 10, United States Code;

''(vi) the term 'rural area' means any county that the Bureau of the Census has defined as mostly rural or completely rural in the most recent decennial census;

''(vii) the term 'service-connected' has the meaning given the term in section 101(16) of title 38, United States Code;

''(viii) the term 'small business concern in an underserved market' means a small business concern—

''(I) that is located in—

''(aa) a low- to moderate-income community;

''(bb) a HUBZone;

''(cc) a community that has been designated as an empowerment zone or an enterprise community under section 1391 of the Internal Revenue Code of 1986;

''(dd) a community that has been designated as a promise zone by the Secretary of Housing and Urban Development;

''(ee) a community that has been designated as a qualified opportunity zone under section 1400Z–1 of the Internal Revenue Code of 1986;

''(ff) a rural area; or

''(gg) any area for which a disaster declaration or determination described in subparagraphs (A), (B), (C), or (E) of subsection (b)(2) has been made that has not terminated or expired more than 2 years before the date (or later, as determined by the Administrator) on which a loan is made to such concern under the program;

''(II) for which more than 50 percent of the employees reside in a low- or moderate-income community;

''(III) that is a startup or new business;

''(IV) owned and controlled by socially and economically disadvantaged individuals, including Black Americans, Hispanic Americans, Native Americans, Asian Pacific Americans, and other minorities;

''(V) owned and controlled by women;

''(VI) owned and controlled by veterans;

''(VII) owned and controlled by service-disabled veterans;

''(VIII) not less than 51 percent owned and controlled by one or more—

''(aa) members of the Armed Forces participating in the Transition Assistance Program of the Department of Defense;

''(bb) Reservists;

''(cc) spouses of veterans, members of the Armed Forces, or Reservists; or

''(dd) surviving spouses of veterans who died on active duty or as a result of a service-connected disability; or

''(IX) that is eligible to receive a veterans advantage loan;

''(ix) the term 'small business concern owned and controlled by socially and economically disadvantaged individuals' has the meaning given the term in section 8(d)(3)(C);

''(x) the term 'startup' means a business that has not yet opened; and

''(xi) the term 'veterans advantage loan' means a loan made to a small business concern under this subsection that is eligible for a waiver of the guarantee fee under paragraph (18) or the yearly fee under paragraph (23) because the small business concern is a concern described in subclause (VI), (VII), or (VIII) of clause (viii).

''(C) ESTABLISHMENT.—There is established a Community Advantage Loan Program under which the Administration may guarantee loans made by covered institutions under this subsection, including loans made to small business concerns in underserved markets.

''(D) PROGRAM LEVELS.—In each of fiscal years 2021 through 2025, not more than 10 percent of the number of loans guaranteed under this subsection may be guaranteed under the program.

''(E) NEW LENDERS.—

''(i) FISCAL YEARS 2021 AND 2022.—In each of fiscal years 2021 and 2022—

''(I) not more than 150 covered institutions shall participate in the program; and

''(II) the Administrator shall allow for new applicants and give priority to applications submitted by any covered institution that is located in an area with insufficient lending under the program.

''(ii) FISCAL YEARS 2023, 2024, AND 2025.—

''(I) IN GENERAL.—In each of fiscal years 2023, 2024, and 2025—

''(aa) except as provided in subclause (II), not more than 175 covered institutions shall participate in the program; and

''(bb) the Administrator shall allow for new applicants and give priority to applications submitted by any covered institution that is located in an area with insufficient lending under the program.

''(II) EXCEPTION FOR FISCAL YEAR 2025.—In fiscal year 2025, not more than 200 covered institutions may participate in the program if—

''(aa) after reviewing the report under subparagraph (M)(iii), the Administrator determines that not more than 200 covered institutions may participate in the program;

''(bb) the Administrator notifies Congress in writing of the determination of the Administrator under item (aa); and

''(cc) not later than July 30, 2024, the Administrator notifies the public of the determination of the Administrator under item (aa).

''(F) GRANDFATHERING OF EXISTING LENDERS.—Any covered institution that participated in the Community Advantage Pilot Program of the Administration and is in good standing on the day before the date of enactment of this paragraph—

''(i) shall retain designation in the program; and

''(ii) shall not be required to submit an application to participate in the program.

''(G) REQUIREMENT TO MAKE LOANS TO UNDERSERVED MARKETS.—Not less than 75 percent of loans made by a covered institution under the program shall consist of loans made to small business concerns in underserved markets.

''(H) MAXIMUM LOAN AMOUNT.—

''(i) IN GENERAL.—Except as provided in clause (ii), the maximum loan amount for a loan guaranteed under the program is $250,000.

''(ii) EXCEPTION.—

''(I) IN GENERAL.—The Administration may, in the discretion of the Administration, approve a guarantee of a loan under the program that is more than $250,000 and not more than $350,000.

''(II) NOTIFICATION.—Not later than 2 days after approving the guarantee of a loan under subclause (I), the Administration shall provide notification of the approval to the covered institution making the loan.

''(I) INTEREST RATES.—

''(i) IN GENERAL.—Except as provided in clause (ii), the maximum allowable interest rate prescribed by the Administration on any financing made on a deferred basis pursuant to the program shall not exceed the maximum allowable interest rate in effect on September 1, 2018.

''(ii) MODIFICATION.—The Administration shall not modify the maximum allowable interest rate described in clause (i) unless the Administration provides the public with an opportunity to comment for a period of not less than 180 days before implementing the modified interest rate.

''(J) TRAINING AND TECHNICAL ASSISTANCE.—The Administration—

''(i) shall in person and online, provide upfront and ongoing training and technical assistance for covered institutions making loans under the program in order to support prudent lending standards and improve the interface between the covered institutions and the Administration;

''(ii) shall ensure that the training and technical assistance described in clause (i) is provided for free or at a low-cost; and

''(iii) may enter into a contract to provide the training or technical assistance described in clause (i) with an organization with expertise in lending under this subsection, mission-oriented lending, and lending to underserved markets.

''(K) DELEGATED AUTHORITY.—A covered institution is not eligible to receive delegated authority from the Administration under the program until the covered institution makes not less than 7 loans under the program.

''(L) REGULATIONS.—

''(i) IN GENERAL.—Not later than 180 days after the date of enactment of this paragraph and in accordance with the notice and comment procedures under section 553 of title 5, United States Code, the Administrator shall promulgate regulations to carry out the program, which shall—

''(I) outline the requirements for participation by covered institutions in the program;

''(II) define performance metrics for covered institutions participating in the program for the first time, which are required to be met in order to continue participating in the program;

''(III) determine the credit score of a small business concern under which the Administration is required to underwrite a loan provided to the small business concern under the program and the loan may not be made using the delegated authority of a covered institution;

''(IV) require each covered institution that sells loans made under the program on the secondary market to establish a loan loss reserve fund, which—

''(aa) with respect to covered institutions in good standing, including the covered institutions described in subparagraph (F), shall be maintained at a level equal to 3 percent of the outstanding guaranteed portion of the loans; and

''(bb) with respect to any other covered institution, shall be maintained at a level equal to 5 percent of the outstanding guaranteed portion of the loans; and

''(V) allow the Administrator to require additional amounts to be deposited into a loan loss reserve fund established by a covered institution under subclause (IV) based on the risk characteristics or performance of the covered institution and the loan portfolio of the covered institution.

''(ii) PILOT PROGRAM.—

''(I) REVERSION.—Beginning on the date of enactment of this paragraph and ending on the day before the date on which the regulations promulgated by the Administrator under clause (i) take effect, the Administrator may only carry out the Community Advantage Pilot Program of the Administration based on applicable program guidelines, requirements, and other policy in effect on September 1, 2018, except that the definition of underserved market shall include—

''(aa) a community and an area described in items (ee) and (ff), respectively, of subparagraph (B)(viii)(I); and

''(bb) small business concerns described in clauses (IV) and (V) of subparagraph (B)(viii).

''(II) TERMINATION.—Beginning on the date on which the regulations promulgated by the Administrator under clause (i) take effect, the Administrator may not carry out the Community Advantage Pilot Program of the Administration.

''(M) REPORTING.—

''(i) WEEKLY REPORTS.—

''(I) IN GENERAL.—The Administration shall report on the website of the Administration, as part of the weekly reports on lending approvals under this subsection—

''(aa) on and after the date of enactment of this paragraph until the date on which the regulations promulgated under subparagraph (L)(i) take effect, the number and dollar amount of loans guaranteed under the Community Advantage Pilot Program of the Administration; and

''(bb) on and after the date on which the Administration begins to approve loans under the program, the number and dollar amount of loans guaranteed under the program.

''(II) SEPARATE ACCOUNTING.—The number and dollar amount of loans reported in a weekly report under subclause (I) for loans guaranteed under the Community Advantage Pilot Program of the Administration and under the program shall include a breakdown by the categories of race, ethnicity, and gender of the owners of the small business concerns.

''(ii) ANNUAL REPORTS.—

''(I) IN GENERAL.—For each of the first 5 fiscal years in which the program is in effect, the Administration shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives, and make publicly available on the internet, information about loans provided under the program and under the Community Advantage Pilot Program of the Administration.

''(II) CONTENTS.—Each report submitted and made publicly available under subclause (I) shall include—

''(aa) the number and dollar amounts of loans provided to small business concerns under the program and under the Community Advantage Pilot Program of the Administration, including a breakdown by—

''(AA) the gender of the owners of the small business concern;

''(BB) the race and ethnicity of the owners of the small business concern, disaggregated in a manner that captures all the racial groups specified in the American Community Survey conducted by the Bureau of the Census;

''(CC) whether the small business concern is located in an urban or rural area; and

''(DD) whether the small business concern is a startup, an existing business, or a new business, as provided in the weekly reports on lending approvals under this subsection;

''(bb) the proportion of loans described in item (aa) compared to—

''(AA) other 7(a) loans of any amount;

''(BB) other 7(a) loans of similar amounts;

''(CC) express loans provided under paragraph (31) of similar amounts; and

''(DD) other 7(a) loans of similar amounts provided to small business concerns in underserved markets;

''(cc) a comparison of the number and dollar amounts of loans provided to small business concerns under the program, under the Community Advantage Pilot Program of the Administration, and under each category of loans described in item (bb), broken down by—

''(AA) loans of not more than $50,000;

''(BB) loans of more than $50,000 and not more than $150,000;

''(CC) loans of more than $150,000 and not more than $250,000; and

''(DD) loans of more than $250,000 and not more than $350,000;

''(dd) the number and dollar amounts of loans provided to small business concerns under the program and under the Community Advantage Pilot Program of the Administration by State, and the jobs created or retained within each State;

''(ee) with respect to loans provided to small business concerns under the program

and under the Community Advantage Pilot Program of the Administration—

''(AA) the performance of the loans provided by each type of covered institution;

''(BB) the performance of the loans broken down by loan size;

''(CC) the performance of the loans broken down by whether the credit score of the borrower is above, below, or equal to 140;

''(DD) the predictive purchase rate of the loans;

''(EE) the early default rate of the loans;

''(FF) the 12-month default rate of the loans;

''(GG) the cumulative default rate for the loans for the 5-year period preceding the report;

''(HH) the charge-off rates of the loans;

''(II) the charge-off rates as a percent of the unpaid principal balance as in table 8 of the annual budget submitted by the Administration; and

''(JJ) the purchase rates as a percent of the unpaid principal balance as in table 8 of the annual budget submitted by the Administration;

''(ff) a list of covered institutions participating in the program and the Community Advantage Pilot Program of the Administration, including—

''(AA) the name, location, and contact information, such as the website and telephone number, of each covered institution; and

''(BB) a breakdown by the number and dollar amount of the loans approved for small business concerns; and

''(gg) the benchmarks established by the working group under subparagraph (N)(i).

''(III) TIMING.—An annual report required under this clause shall—

''(aa) be submitted and made publicly available not later than October 15 of each year; and

''(bb) cover the lending activity for the fiscal year that ended on September 30 of that same year.

''(iii) GAO REPORT.—Not later than 3 years after the date of enactment of this paragraph, the Comptroller General of the United States shall submit to the Administrator, the Committee on Small Business and Entrepreneurship of the Senate, and the Committee on Small Business of the House of Representatives a report—

''(I) assessing—

''(aa) the extent to which the program fulfills the requirements of this paragraph; and

''(bb) the performance of covered institutions participating in the program; and

''(II) providing recommendations on the administration of the program and the findings under items (aa) and (bb) of subclause (I).

''(N) WORKING GROUP.—

''(i) IN GENERAL.—Not later than 90 days after the date of enactment of this paragraph, the Administrator shall establish a Community Advantage Working Group, which shall—

''(I) include—

''(aa) a geographically diverse representation of members from among covered institutions participating in the program; and

''(bb) representatives from the Office of Capital Access of the Administration, including the Office of Credit Risk Management, the Office of Financial Assistance, and the Office of Economic Opportunity;

''(II) develop recommendations on how the Administration can effectively manage, support, and promote the program and the mission of the program;

''(III) establish metrics of success and benchmarks that reflect the mission and population served by covered institutions under the program, which the Administration shall use to evaluate the performance of those covered institutions; and

''(IV) institute regular and sustainable systems of communication between the Administration and covered institutions participating in the program.

''(ii) REPORT.—Not later than 180 days after the date of enactment of this paragraph, the Administrator shall submit to the Committee on Small Business and Entrepreneurship of the Senate and the Committee on Small Business of the House of Representatives a report that includes—

''(I) the recommendations of the Community Advantage Working Group established under clause (i); and

''(II) a recommended plan and timeline for implementation of those recommendations.

''(O) TERMINATION.—The authority to carry out the program under this paragraph shall terminate on September 30, 2025.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Ohio (Mr. CHABOT) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, before I begin, I would like to take a moment to recognize my good friend and colleague, Ranking Member CHABOT. Mr. CHABOT has led this committee with me for years. Together, we have worked in a bipartisan manner to pass legislation that will help entrepreneurs across the country launch and grow their small businesses.

STEVE has been an absolute pleasure to work with. Not only is he results-oriented, but he is strongly committed to bipartisanship and finding common ground. While we do not always agree, Ranking Member CHABOT has always respected our views and the need to work together to do the right thing for America's small businesses.

The bills we are bringing to the floor today represent our committee's long tradition of collaboration.

Turning to the legislation now, I rise in support of the bill before us today, H.R. 7903, which would codify the SBA's Community Advantage Loan Program.

Initially launched in 2011 as a pilot program, Community Advantage provides 7(a) loan guarantees to nonprofit lenders to make loans up to $250,000 to small businesses in underserved markets.

As we all know, businesses in underserved areas have historically struggled to access capital through conventional credit markets. This is particularly true for minority-owned small businesses.

According to the Minority Business Development Agency, the loan denial rates for minority-owned firms were about three times higher compared to those of nonminority-owned firms with gross receipts under $500,000.

To that end, the Community Advantage program partners with SBA's certified development companies, SBA microlenders, and community development financial institutions, or CDFIs, all of which have deep relationships in the neighborhoods and can expand access to capital in these areas.

The Community Advantage program reaches significantly more women and minorities than traditional 7(a) loan programs, which will be critical to helping these groups that were hit especially hard by the COVID–19 pandemic.

To fill gaps in lending, it is imperative that we empower the community lenders with the strongest relationships in these areas. We can accomplish this by passing the bill before us today to bring stability and long-needed recognition to a program that has successfully delivered over $770 million in capital since its inception.

I thank Ms. CHU and Mr. SPANO for working in a bipartisan manner on this important legislation.

Mr. Speaker, I recommend a ''yes'' vote to all of my colleagues in the House, and I reserve the balance of my time.

Mr. CHABOT. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 7903, as amended. This is a bill to improve and authorize the SBA's Community Advantage Loan Program for 5 years.

Mr. Speaker, before I get into the business of the day, I would like to mention that, with the passage of these four bills today, our committee has produced 35 individual bipartisan pieces of legislation that have passed the House just this Congress. We have had similar numbers the previous two Congresses, as well. That is an uncommon occurrence in a time of divided government.

The reason we have been so successful in improving the programs that benefit America's more than 30 million small businesses is the leadership and the bipartisanship of our chairwoman, NYDIA VELÁZQUEZ.

Now, this is my swan song, so to speak, here as the ranking member of the committee, as I am term-limited and, therefore, unable to continue serving in that role. I have had the pleasure of being on the Small Business Committee—I am on the Foreign Affairs Committee and Judiciary Committee, as well—for 12 terms now, representing Ohio's First Congressional District. I have also been fortunate to have been the ranking member two of those terms and the chair of the committee two of those terms, as well. Again, that is why I am term-limited.

In each of those terms that I have spent in a leadership position on the committee, my counterpart was Chairwoman or Ranking Member VELÁZQUEZ. She has remained a valued

friend and a reliable partner to do the things that we needed to do to help the Nation's small businesses. I sincerely thank her for the partnership that we have forged over the years.

We share a common bond of wanting to do everything in our power to help America's small businesses, and we have consistently been able to put partisan politics aside and work together to support that goal. So, again, I thank her for her willingness to work with my staff and me over those years, and I hope and trust that they will be able to continue that relationship with my replacement, and I think that will happen.

Finally, I mentioned staff before. I want to thank the longtime Democratic Small Business Committee staffers Melissa Jung, Justin Pelletier, Naveen Parmar, and Ellen Harrington for their extraordinary commitment to bipartisanship over the years, regardless of who was chair or who was the ranking member. Again, on that committee, we have worked together for many years now.

Now, to the business at hand. When traditional and conventional lending is out of reach for the Nation's smallest businesses, they have the opportunity to turn to a number of the SBA's government guaranteed lending programs.

For approximately 10 years, the SBA has been operating a Community Advantage pilot program that combines access to capital and technical assistance. The legislation before us today makes structural changes and improvements in the program and authorizes it for 5 years.

With oversight and reporting requirements in place, this program will continue to provide access to capital and consistency to the Nation's job creators who truly need assistance.

I thank the gentleman from Florida (Mr. SPANO) and the gentlewoman from California (Ms. JUDY CHU) for working in a bipartisan manner on behalf of the Nation's smallest firms. They have both worked together on this and previous legislation, both of them, in the spirit of bipartisanship on that committee.

Mr. Speaker, I urge all of my colleagues to support H.R. 7903, which was favorably reported out of the committee via voice vote, and I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield such time as she may consume to the gentlewoman from California (Ms. JUDY CHU), the sponsor of the bill and the chair of the Subcommittee on Investigations, Oversight and Regulations.

Ms. JUDY CHU of California. Mr. Speaker, I rise today in strong support of my bill, H.R. 7903, which would authorize the Community Advantage Loan Program for 5 years. To help our struggling economy, we need a bipartisan bill that gets money to those who need it.

This bill, which I am proud to have introduced with my colleague, Congressman ROSS SPANO, does just that by providing statutory authorization to the Community Advantage program, already a proven and successful pilot program.

Thanks to Community Advantage, underserved small businesses, which typically have the hardest time accessing loans, can gain access to affordable financing and technical assistance from mission-based, primarily nonprofit lenders through SBA's 7(a) loan guarantee. That means more money in more communities to keep our businesses operating. This is something we need now more than ever.

The Community Advantage program was first established almost 10 years ago as a pilot at the Small Business Administration with the goal of delivering capital to the hard-to-reach businesses that need under $250,000 in financing to grow. Since 2011, the program has facilitated over $850 million in loans averaging $140,000 each. Compare that to the average 7(a) loan of $530,000, and it is clear Community Advantage is meeting a small business need that is unfilled by the traditional 7(a) program.

It has also made a big impact in my district, where businesses have received nearly $10 million in Community Advantage loans. That includes businesses like Unincorporated Coffee Roasters in Altadena, California, which received a Community Advantage loan last summer. This business had been in operation for under 2 years, but their Community Advantage loan allowed them to expand into the space next door and open a second company to roast their own coffee beans for the wholesale market.

□ 1515

They have even added jobs and continued to grow during the pandemic. That is what can happen when we make small business loans just a little less difficult to access. And it is an experience shared by businesses across the country.

Last year, I chaired a hearing in the Subcommittee on Investigations, Oversight and Regulations to examine the Community Advantage program. We heard from borrowers and lenders about the ways that Community Advantage has closed the credit gap for underserved businesses.

Because of their focus on economic and community development, the mission-based lenders that facilitate Community Advantage loans can leverage their strong relationships within the community to provide accessibility, guidance, and assistance to the businesses that too often find themselves on the margins without the ability to access capital from traditional banks. As a result, Community Advantage is able to reach far more businesses owned by people of color, women, and veterans than traditional 7(a) loans.

This is a proven model, and we can see further evidence in the response to the COVID–19 pandemic. When the Paycheck Protection Program, or PPP, first launched at the start of April, traditional lenders prioritized their largest and longstanding clients, making it difficult for underserved businesses to even submit an application for assistance.

To address this problem, Congress established a set-aside lending authority for community financial institutions like certified development companies, microloan intermediaries, and community development financial institutions, many of which are already certified Community Advantage lenders. The result was a success, as these nontraditional lenders were able to reach the underserved businesses and, together, deliver over 141,000 PPP loans totaling more than $8.5 billion.

Now it is time to build on that success. This legislation before us today includes measures, with bipartisan agreement, to make the program even stronger. It will expand the definition of ''underserved businesses'' to explicitly include those owned by people of color and those located in declared disaster areas, and it will increase the percentage of loans that lenders must make in underserved markets from 60 to 75 percent of their portfolios. It will also allow SBA to make loans up to $350,000 on a case-by-case basis.

With these improvements and the long-term certainty afforded by statutory authorization, this bill will make the Community Advantage program an even more powerful tool for closing the credit gap and delivering affordable capital to more small businesses.

With a long and arduous economic recovery before us, this bill will help countless small businesses rebuild, and it will help them to start anew as we recover from the coronavirus pandemic.

Mr. Speaker, I thank Congressman SPANO for his partnership and Chairwoman VELÁZQUEZ and Ranking Member CHABOT for their strong support. I also thank the Community Advantage lenders and borrowers whose success and testimony over the years have powerfully made the case for Congress to pass this legislation to authorize the program.

Mr. Speaker, I urge my colleagues to vote ''yes'' on H.R. 7903.

Mr. CHABOT. Mr. Speaker, I yield such time as he may consume to the gentleman from Florida (Mr. SPANO).

Mr. Speaker, I thank the gentleman for his service in this body. He has introduced and supported a number of pieces of legislation and has worked very hard in his leadership position as ranking member of the Oversight, Investigations and Regulations Subcommittee. I thank him for his service here.

Mr. SPANO. Mr. Speaker, I thank the gentleman from Ohio (Mr. CHABOT) for those kind comments. I appreciate that very much.

I rise today in support of a bill I am proud to sponsor, H.R. 7903, legislation to improve and authorize the SBA's Community Advantage Loan Program.

Small businesses are the driver of our communities, and now, more than ever, it is imperative for Congress to support them.

In my home State of Florida, there are over 2.5 million small businesses employing over 3.5 million Floridians.

As a former small business owner myself and as someone who will be a small business owner again very, very soon, I understand the sacrifice many small business owners make to keep their doors open and to meet their payrolls. I know the challenges that they face and the grit that it takes for them to persevere and the impact that they have on our communities.

Among these challenges for many small businesses is acquiring the capital that is necessary to finance their operations.

Many of the tools available at the SBA strive to increase access to capital for small businesses that are unable to receive it through conventional and traditional lending markets. One of these tools to support small businesses is the SBA's Community Advantage Loan Program, which was launched as a pilot program to assist small businesses in historically underserved and rural areas. It targets assistance to veteran-owned businesses, women-owned businesses, startups, and underserved minority communities, all key job creators. The combination of financial and technical assistance has made the program a proven game changer for many small businesses.

Mr. Speaker, I thank the gentlewoman from California (Ms. JUDY CHU) for her bipartisan leadership in providing strategic improvements to this program and to move it from a pilot program to an authorized program for the next 5 years.

The improvements included in H.R. 7903 will ensure the program serves businesses truly in need of SBA services. Specifically, H.R. 7903 defines the program with congressional intent. It outlines how Community Advantage lenders must operate within the program and details loan terms and other requirements.

Mr. Speaker, I also thank the chairwoman and the ranking member for advancing this important legislation that will strengthen and improve the Community Advantage Loan Program.

Mr. Speaker, I urge my colleagues to support the bill.

Mr. CHABOT. Mr. Speaker, this is a good bill that deserves our support. The SBA's Community Advantage program provides both financial and technical assistance to our Nation's smallest firms. It is a great program that has proven results.

Mr. Speaker, I urge my colleagues to support this bill, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, in almost a decade, Community Advantage lenders have delivered over $770 million in affordable capital to underserved small businesses across America, assisting women- and minority-owned businesses that have historically struggled to secure affordable capital through traditional means, yet new lenders are hesitant to participate because of its pilot status and frequently changing rules.

Today's bill will remedy these problems and ultimately grow the CA program to deliver more capital to entrepreneurs who need access to affordable capital the most, especially those severely impacted by the COVID–19 pandemic.

Mr. Speaker, I applaud the work by the gentlewoman from California (Ms. JUDY CHU) and the gentleman from Florida (Mr. SPANO) for their efforts in crafting a bipartisan bill to codify the Community Advantage program.

Mr. Speaker, I encourage all my colleagues to vote ''yes,'' and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 7903, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

CONFERENCE REPORT ON H.R. 6395, WILLIAM M. (MAC) THORNBERRY NATIONAL DEFENSE AUTHORIZATION ACT FOR 2021

Ms. KENDRA S. HORN of Oklahoma submitted the following conference report and statement on the bill (H.R. 6395) to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

(For conference report and statement, see proceedings of the House of December 3, 2020, published in Book II.)

MAKING IN ORDER AT ANY TIME CONSIDERATION OF CONFERENCE REPORT ON H.R. 6395, WILLIAM M. (MAC) THORNBERRY NATIONAL DEFENSE AUTHORIZATION ACT FOR 2021

Mr. MCGOVERN. Mr. Speaker, I ask unanimous consent that it be in order at any time to consider a conference report to accompany H.R. 6395; that all points of order against the conference report and against its consideration be waived; that the conference report be considered as read; and that the previous question be considered as ordered on the conference report to its adoption without intervening motion except: one, 1 hour of debate; and, two, one motion to recommit if applicable.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Massachusetts?

There was no objection.

504 MODERNIZATION AND SMALL MANUFACTURER ENHANCEMENT ACT OF 2020

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 8211) to amend the Small Business Investment Act of 1958 to improve the loan guaranty program, enhance the ability of small manufacturers to access affordable capital, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8211

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''504 Modernization and Small Manufacturer Enhancement Act of 2020''.

SEC. 2. ADDITIONS TO POLICY GOALS FOR THE DEVELOPMENT COMPANY PROGRAM.

Section 501(d)(3) of the Small Business Investment Act of 1958 (15 U.S.C. 695(d)(3)) is amended—

(1) by redesignating subparagraphs (A) through (L) as subparagraphs (B) through (M), respectively;

(2) by inserting before subparagraph (B) (as so redesignated) the following:

''(A) workforce development through work-based or work-integrated training, which shall be satisfied by demonstrating that a small business concern that is a subject of the project has—

''(i) a documented in-house training program, the duration of which is not shorter than 12 weeks; or

''(ii) entered into a contract with an entity—

''(I) to provide trained applicants for any open position of employment at the small business concern; and

''(II) that ensures that any applicant provided to the small business concern under subclause (I) has undergone not fewer than 12 weeks of training that is relevant to the open position described in that subclause,'';

(3) by amending subparagraph (D) (as so redesignated) to read as follows:

''(D) expansion of minority-owned, employee-owned, or women-owned business development,'';

(4) in subparagraph (L) (as so redesignated), by striking ''producers, or'' and inserting ''producers,'';

(5) in subparagraph (M) (as so redesignated), by striking the period at the end and inserting a comma;

(6) by inserting after subparagraph (M) the following new subparagraphs:

''(N) enhanced ability for small business concerns to reduce costs by using energy efficient products and generating renewable energy,

''(O) aid revitalizing of any area for which a disaster has been declared or determined under subparagraph (A), (B), (C), or (E) of section 7(b)(2) of the Small Business Act, or

''(P) expansion of small business concerns with 10 or fewer employees.''; and

(7) in the flush text following subparagraph (P), as added by paragraph (6), by striking ''subparagraphs (J) and (K)'' and inserting ''subparagraphs (K) and (L)''.

SEC. 3. INCREASE IN LOAN AMOUNTS FOR MANUFACTURING LOANS.

Section 502 of the Small Business Investment Act of 1958 (15 U.S.C. 696) is amended—

(1) in the matter preceding paragraph (1), by striking ''The Administration'' and inserting the following:

''(a) IN GENERAL.—The Administration''; and

(2) in subsection (a), as so designated—

(A) in paragraph (2)(A)—

(i) in the matter preceding clause (i), by striking ''section'' and inserting ''subsection''; and

(ii) in clause (iii), by striking ''$5,500,000'' and inserting ''$6,500,000''; and

(B) in paragraph (3)(A), by striking ''this section'' and inserting ''this subsection''.

SEC. 4. IMPROVEMENTS TO 504 LOAN CLOSING PROCEDURE.

Title V of the Small Business Investment Act of 1958 (15 U.S.C. 695 et seq.) is amended—

(1) in section 502, as amended by section 3, by adding at the end the following new subsections:

''(b) CLOSING.—

''(1) AUTHORITY OF CERTAIN DEVELOPMENT COMPANIES.—An accredited lender certified company may take any of the following actions to facilitate the closing of a loan made under subsection (a):

''(A) Reallocate the cost of the project with respect to which the loan is made in an amount that is not more than 10 percent of the overall cost of the project.

''(B) Correct any name that is applicable to the loan, including the name of any borrower, guarantor, eligible passive company described in subparagraph (C)(i), and operating company described in subparagraph (C)(ii).

''(C) Form any of the following to receive proceeds of the loan:

''(i) An eligible passive company that complies with section 120.111 of title 13, Code of Federal Regulations, or any successor regulation.

''(ii) If an eligible passive company is formed under clause (i), an operating company with respect to that eligible passive company.

''(D) Correct the address of any property with respect to which the loan is made.

''(E) Correct the name of any interim lender or third-party lender.

''(F) Change any third-party lender or interim lender if that lender is a financial institution that is regulated by the Federal Government or a State government.

''(G) Make a guarantor a co-borrower or a co-borrower a guarantor.

''(H) Add a guarantor that does not change ownership with respect to the loan.

''(I) Reduce the amount of standby debt before the closing as a result of regularly scheduled payments.

''(J) Reduce the cost of the project with respect to which the loan is made.

''(2) FEES.—The Administrator shall—

''(A) issue a rule regarding the amount of a closing fee that may be financed in a debenture that is issued by a certified development company to make one or more loans to small business concerns, the proceeds of which are used by that concern for the purposes described in subsection (a), except that such amount shall be not less than $3,500; and

''(B) periodically update the rule issued under subparagraph (A).

''(3) NO ADVERSE CHANGE AND FINANCIAL STATEMENT.—Before the closing with respect to a loan made under subsection (a), the borrower and any operating company shall—

''(A) make the certification required under section 120.892 of title 13, Code of Federal Regulations, or any successor regulation; and

''(B) submit to the certified development company a financial statement that is not more than 180 days old, which the company shall certify not later than 120 days before the date on which the certified development company issues a debenture with respect to the project to which the loan relates.

''(c) EXPRESS PROGRAM.—An accredited lender certified company may, with respect to a covered loan, take any of the following actions with respect to the loan:

''(1) Any action described in any of subparagraphs (A) through (J) of subsection (b)(1).

''(2) If the borrower is not delinquent with respect to the loan payments—

''(A) permit the loan to subordinate to a new third-party lender loan for the purposes of refinancing that third-party lender loan, except that no refinanced amount with respect to the loan may be increased in order to provide cash to the borrower;

''(B) permit a new party to assume responsibility for the loan if the original borrower remains on the loan as the original guarantor;

''(C) obtain force placed insurance coverage for the loan if the borrower has allowed insurance coverage with respect to the loan to lapse; and

''(D) endorse an insurance check with respect to the property that is financed by the loan in an amount that is less than $100,000.

''(3) Certify that the loan is compliant with the appraisal requirements and environmental policies and procedures applicable to the loan under Standard Operating Procedure 50 10 6 of the Administration, effective August 28, 2020, or any successor Standard Operating Procedure.

''(d) DEFINITIONS.—In this section—

''(1) the term 'accredited lender certified company' means a certified development company that meets the requirements under section 507(b), including a certified development company that the Administration has designated as an accredited lender under such section 507(b); and

''(2) the term 'covered loan'—

''(A) means a loan made under subsection (a) in an amount that is not more than $500,000; and

''(B) does not include a loan made to a borrower that is a franchise that, or is in an industry that, has a high rate of default, as annually determined by the Administrator.''; and

(2) by adding at the end the following new section:

''SEC. 511. CLOSING AND OVERSIGHT.

''(a) SBA DISTRICT COUNSELS.—Beginning on the date of enactment of this section, with respect to the program established under this title, district counsels of the Administration shall be subject to the same requirements, and shall have the same authority and responsibilities, as in effect with respect to that program on the day before the date of enactment of this section, except that—

''(1) the Office of Credit Risk Management of the Administration shall have the responsibility for all duties relating to conducting file reviews of loans made under this title; and

''(2) district counsels of the Administration shall not have any responsibility relating to the review of closing packages with respect to a loan made under this title.

''(b) DESIGNATED ATTORNEYS.—For the purposes of this title, the following provisions and requirements shall apply with respect to a designated attorney of a certified development company:

''(1) A designated attorney that meets the requirements determined under paragraph (2) shall be responsible for certifying documents relating to the closing of a loan described in this title.

''(2) The Administrator may determine any continuing education requirements that the designated attorney shall be required to satisfy in order to be permitted to close a loan made under this title.

''(3) If, as of the date of enactment of this section, a certified development company does not have a designated attorney, during the 270-day period beginning on that date of enactment, the certified development company may identify such an attorney, subject to the approval of the Administrator.''.

SEC. 5. CERTIFIED DEVELOPMENT COMPANY LOANS FOR SMALL MANUFACTURERS.

(a) CONTRIBUTION REQUIREMENT.—Section 502(a)(3)(C) of the Small Business Investment Act of 1958, as designated by section 3, is amended—

(1) by redesignating clauses (i), (ii), (iii), and (iv) as subclauses (I), (II), (III), and (IV), respectively, and adjusting the margins of such subclauses accordingly;

(2) by inserting before subclause (I), as so redesignated, the following:

''(i) for a small business concern that is not a small manufacturer (as defined in section 501(e)(7))—'';

(3) in subclause (III), as so redesignated, by striking ''clauses (i) and (ii)'' and inserting ''subclauses (I) and (II)'';

(4) in subclause (IV) as so redesignated, by striking the period and the end and inserting ''; or''; and

(5) by adding at the end the following:

''(ii) for a small manufacturer (as defined in section 501(e)(7))—

''(I) at least 5 percent of the total cost of the project financed, if the small business concern has been in operation for a period of 2 years or less;

''(II) at least 5 percent of the total cost of the project financed, if the project involves a limited or single purpose building or structure;

''(III) at least 10 percent of the total cost of the project financed if the project involves both of the conditions set forth in subclauses (I) and (II); or

''(IV) at least 5 percent of the total cost of the project financed, in all other circumstances, at the discretion of the development company.''.

(b) CREATION OR RETENTION OF JOBS REQUIREMENT.—Section 501(e) of the Small Business Investment Act of 1958 (15 U.S.C. 695(e)) is amended—

(1) in paragraph (1), by striking ''creates or retains'' and all that follows through the period at the end and inserting ''creates or retains 1 job for every $75,000 guaranteed by

the Administration, except that the amount is $150,000 in the case of a project of a small manufacturer.'';

(2) in paragraph (2), by striking ''creates or retains'' and all that follows through the period at the end and inserting ''creates or retains 1 job for every $75,000 guaranteed by the Administration, except that the amount is $150,000 in the case of a project of a small manufacturer.'';

(3) by redesignating paragraph (6) as paragraph (7); and

(4) by inserting after paragraph (5) the following:

''(6) For a loan for a project directed toward the creation of job opportunities under subsection (d)(1), the Administrator shall publish on the website of the Administration the number of jobs created or retained under the project as of the date that is 2 years after the completion (as determined based on information provided by the development company) of the project.''.

(c) COLLATERAL REQUIREMENTS.—Section 502(a)(3)(E)(i) of the Small Business Investment Act of 1958, as designated by section 3, is amended by adding at the end the following: ''Additional collateral shall not be required in the case of a small manufacturer (as defined in section 501(e)(7)).''.

(d) DEBT REFINANCING.—Section 502(a)(7)(B) of the Small Business Investment Act of 1958, as designated by section 3, is amended in the matter preceding clause (i) by inserting ''(or in the case of a small manufacturer (as defined in section 501(e)(7)), that does not exceed 100 percent of the project cost of the expansion)'' after ''cost of the expansion''.

(e) AMOUNT OF GUARANTEED DEBENTURE.—Section 503(a) of the Small Business Investment Act of 1958 (15 U.S.C. 697(a)) is amended by adding at the end the following:

''(5) Any debenture issued by a State or local development company to a small manufacturer (as defined in section 501(e)(7)) with respect to which a guarantee is made under this subsection shall be in an amount equal to not more than 50 percent of the cost of the project with respect to which such debenture is issued, without regard to whether good cause has been shown.''.

SEC. 6. ASSISTANCE FOR SMALL MANUFACTURERS.

Title V of the Small Business Investment Act of 1958 (15 U.S.C. 695 et seq.), as amended by section 4(2), is further amended by adding at the end the following new section:

''SEC. 512. ASSISTANCE FOR SMALL MANUFACTURERS.

''(a) IN GENERAL.—The Administrator shall ensure that each district office of the Administration partners with not less than 1 resource partner to provide training to small business concerns assigned a North American Industry Classification System code for manufacturing on obtaining assistance under the program carried out under this title, including with respect to the application process under that program and partnering with development companies under this title.

''(b) RESOURCE PARTNER DEFINED.—In this section, the term 'resource partner' means—

''(1) a small business development center (as defined in section 3 of the Small Business Act);

''(2) a women's business center (described under section 29 of such Act);

''(3) a chapter of the Service Corps of Retired Executives (established under section 8(b)(1)(B) of such Act); and

''(4) a Veteran Business Outreach Center (described under section 32 of such Act).''.

SEC. 7. LEASING RULES FOR NEW FACILITIES AND EXISTING BUILDINGS.

(a) IN GENERAL.—Section 502(a) of the Small Business Investment Act of 1958, as designated by section 3, is amended by striking paragraphs (4) and (5) and inserting the following new paragraphs:

''(4) NEW FACILITIES.—

''(A) IN GENERAL.—With respect to a project to construct a new facility, an assisted small business concern may permanently lease not more than 20 percent of the project if such concern—

''(i) permanently occupies and uses not less than 60 percent of the project;

''(ii) plans to occupy and use an additional portion of the project that is not permanently leased not later than 3 years after receipt of assistance under this section; and

''(iii) plans to permanently occupy and use 80 percent of the project not later than 10 years after receipt of such assistance.

''(B) SMALL MANUFACTURERS.—With respect to an assisted small business concern that is a small manufacturer (as defined in section 501(e)(6)), subparagraph (A)(i) shall apply with '50 percent' substituted for '60 percent'.

''(5) EXISTING BUILDINGS.—With respect to a project to acquire, renovate, or reconstruct an existing building, the following shall apply:

''(A) OCCUPANCY REQUIREMENTS.—The assisted small business concern may permanently lease not more than 50 percent of the project if the concern permanently occupies and uses not less than 50 percent of the project.

''(B) EXCEPTION.—The assisted small business concern may permanently lease more than 50 percent of the project if—

''(i) such concern—

''(I) has occupied and used the existing building for a consecutive 12-month period before submitting an application for assistance under this section;

''(II) agrees to permanently use less than 50 percent of the existing building and permanently lease more than 50 percent for a consecutive 12-month period after receiving such assistance; and

''(III) affirms that the existing building is appropriate for current and reasonably anticipated needs; and

''(ii) the development company assisting such project—

''(I) provides written notice to the Administrator on the date on which the development company closes the loan for such project; and

''(II) once each year during the first 5 years of the loan, and once every 2 years for the remainder of the loan—

''(aa) conducts an examination of the assisted small business concern to ensure the concern is not a real estate development business; and

''(bb) files with the Administrator an anti-investor certification signed by the development company and the assisted small business concern.

''(C) LEASE TERM.—Any residential lease made under this paragraph shall be for a term of not more than 1 year, and any commercial lease made under this paragraph shall be for a term of not more than 5 years.''.

(b) REPORT.—Not later than 5 years after the date of the enactment of this Act, the Administrator of the Small Business Administration shall submit to Congress a report analyzing the impact of the amendments made by this section on access to capital for small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)), and recommending whether similar notice, examination, and certifications requirements should be made to the program established under section 7(a) of the Small Business Act (15 U.S.C. 636(a)).

SEC. 8. LOW-INTEREST REFINANCING UNDER THE LOCAL DEVELOPMENT BUSINESS LOAN PROGRAM.

(a) EXPANSIONS.—Section 502(a)(7)(B) of the Small Business Investment Act of 1958, as designated by section 3 and amended by section 5(d), is further amended—

(1) in the matter preceding clause (i), by striking ''50 percent'' and inserting ''100 percent''; and

(2) in clause (v), by adding ''and'' at the end;

(3) by striking clause (vi); and

(4) by redesignating clause (vii) as clause (vi).

(b) REPEAL.—Section 521(a) of division E of the Consolidated Appropriations Act, 2016 (Public Law 114–113; 129 Stat. 2463; 15 U.S.C. 696 note) is repealed.

(c) REFINANCING.—Section 502(a)(7) of the Small Business Investment Act of 1958, as designated by section 3, is amended by adding at the end the following new subparagraph:

''(C) REFINANCING NOT INVOLVING EXPANSIONS.—

''(i) DEFINITIONS.—In this subparagraph—

''(I) the term 'borrower' means a small business concern that submits an application to a development company for financing under this subparagraph;

''(II) the term 'eligible fixed asset' means tangible property relating to which the Administrator may provide financing under this section; and

''(III) the term 'qualified debt' means indebtedness that—

''(aa) was incurred not less than 6 months before the date of the application for assistance under this subparagraph;

''(bb) is a commercial loan;

''(cc) the proceeds of which were used to acquire an eligible fixed asset;

''(dd) was incurred for the benefit of the small business concern; and

''(ee) is collateralized by eligible fixed assets; and

''(ii) AUTHORITY.—A project that does not involve the expansion of a small business concern may include the refinancing of qualified debt if—

''(I) the amount of the financing is not more than 90 percent of the value of the collateral for the financing, except that, if the appraised value of the eligible fixed assets serving as collateral for the financing is less than the amount equal to 125 percent of the amount of the financing, the borrower may provide additional cash or other collateral to eliminate any deficiency;

''(II) the borrower has been in operation for all of the 2-year period ending on the date the loan application is submitted; and

''(III) for a financing for which the Administrator determines there will be an additional cost attributable to the refinancing of the qualified debt, the borrower agrees to pay a fee in an amount equal to the anticipated additional cost.

''(iii) FINANCING FOR BUSINESS EXPENSES.—

''(I) FINANCING FOR BUSINESS EXPENSES.—The Administrator may provide financing to a borrower that receives financing that includes a refinancing of qualified debt under clause (ii), in addition to the refinancing under clause (ii), to be used solely for the payment of business expenses.

''(II) APPLICATION FOR FINANCING.— An application for financing under subclause (I) shall include—

''(aa) a specific description of the expenses for which the additional financing is requested; and

''(bb) an itemization of the amount of each expense.

''(III) CONDITION ON ADDITIONAL FINANCING.—A borrower may not use any part of the

financing under this clause for non-business purposes.

''(iv) LOANS BASED ON JOBS.—

''(I) JOB CREATION AND RETENTION GOALS.—

''(aa) IN GENERAL.—The Administrator may provide financing under this subparagraph for a borrower that meets the job creation goals under subsection (d) or (e) of section 501.

''(bb) ALTERNATE JOB RETENTION GOAL.—The Administrator may provide financing under this subparagraph to a borrower that does not meet the goals described in item (aa) in an amount that is not more than the product obtained by multiplying the number of employees of the borrower by $75,000.

''(II) NUMBER OF EMPLOYEES.—For purposes of subclause (I), the number of employees of a borrower is equal to the sum of—

''(aa) the number of full- time employees of the borrower on the date on which the borrower applies for a loan under this subparagraph; and

''(bb) the product obtained by multiplying—

''(AA) the number of part-time employees of the borrower on the date on which the borrower applies for a loan under this subparagraph; by

''(BB) the quotient obtained by dividing the average number of hours each part time employee of the borrower works each week by 40.

''(v) NONDELEGATION.—Notwithstanding section 508(e), the Administrator may not permit a premier certified lender to approve or disapprove an application for assistance under this subparagraph.

''(vi) TOTAL AMOUNT OF LOANS.—The Administrator may provide not more than a total of $7,500,000,000 of financing under this subparagraph for each fiscal year.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Ohio (Mr. CHABOT) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of the bill before us today, H.R. 8211, the 504 Modernization and Small Manufacturer Enhancement Act of 2020, a bill that makes important improvements to the SBA's 504 Loan Program.

Over 62 years ago, Congress created the 504 Loan Program at SBA to help America's small businesses access affordable, long-term capital needed to purchase land, real estate, heavy machinery, equipment, and other fixed assets.

The program is a true public-private partnership. An SBA-backed Certified Development Company provides 40 percent of the financing; a bank or credit union provides 50 percent; and the small business borrower provides 10 percent. This structure has proved to be extremely successful for all parties involved.

However, earlier this Congress, our Investigations, Oversight and Regulations Subcommittee heard from stakeholders who expressed concerns with the loan closing process, specifically that delays have caused loans to fall through and businesses to lose out on affordable financing.

To that end, Ms. CRAIG and Mr. CHABOT have put forth today's bill to streamline the closing process and make compliance easier for CDCs, borrowers, and third-party lenders alike. The bill also enhances access to capital for small manufacturers by increasing the maximum 504. Loan amount for small manufacturers from $5.5 million to $6.5 million. These changes address the issues we have heard in our engagement with CDCs and their borrowers in our districts.

Mr. Speaker, I thank Ms. CRAIG and Mr. CHABOT for their hard work and applaud them for their efforts to make bipartisan improvements to this valuable program.

Mr. Speaker, I recommend a ''yes'' vote to all my colleagues in the House, and I reserve the balance of my time.

□ 1530

Mr. CHABOT. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 8211, the 504 Modernization and Small Manufacturer Enhancement Act of 2020.

Fortunately, many of the SBA's government guaranteed loan programs have a strong track record of producing results. Included near the top of that list is the 504 loan program.

The SBA's 504/CDC Loan Program provides the Nation's smallest businesses with long-term and fixed-rate financing.

Importantly, for a project to qualify for this government guarantee loan program, certain economic development goals must be met, including job creation and job retention goals.

H.R. 8211 modernizes that program by expanding the public policy goals to include businesses with 10 employees or less, as well as enhancing the program for small manufacturers.

I would like to thank the gentlewoman from Minnesota (Ms. CRAIG) for working with me in a bipartisan fashion to craft this piece of legislation.

I would also like to thank the chairwoman, Ms. VELÁZQUEZ, once again for advancing this legislation that was favorably reported out of committee unanimously; so both Republicans and Democrats supporting it.

I urge my colleagues to support this, which provides crucial updates to the SBA's program, and I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield such time as she may consume to the gentlewoman from Minnesota (Ms. CRAIG), the sponsor of the bill.

Ms. CRAIG. Mr. Speaker, I rise today to urge my colleagues to support H.R. 8211, the 504 Modernization and Small Manufacturing Enhancement Act of 2020.

I would like to thank the ranking member for being an original cosponsor of this bill; the chairwoman, for her leadership, and to her staff for helping me and my constituents throughout the 116th Congress.

Our small businesses are suffering. Every day we see a new wave of businesses closing their doors. Unemployment numbers are rising, and our economy is suffering.

I hear from constituents daily that their businesses are on their very last leg, and without action to support them, they will soon be forced to close. These are not simply businesses. These are livelihoods, family traditions, and priceless contributions to our communities.

It is our job, as Members of Congress, to support these businesses, ensure they survive these troubling times, and provide them with multiple avenues to succeed.

In addition to relief, we need to pass legislation that provides businesses in various industries opportunities for growth and access to capital. One way we can do this is to build upon the Small Business Administration's successful 504 loan program that promotes economic development, job creation, and retention and expansion of small businesses.

The 504 loan program is designed by local certified development companies, or CDCs, delivered by those companies, which are private, nonprofit corporations whose entire purpose is to promote economic development within their communities.

The program backs long-term, fixed-rate loans to support investment in major fixed assets through a three-part partnership with a local lender.

One year ago, in the Subcommittee on Investigation, Oversight, and Regulation hearing, CDC lenders spoke about their experiences with this loan program and the many issues they navigated, we saw areas for improvement.

One was the lengthy and complex loan closing process which caused third-party lenders to walk away, along with various outdated rules and guidelines hindering the financing of projects.

In order for small businesses to take advantage of these programs, we must listen to this feedback and alter our programs accordingly. That is why I introduced H.R. 8211.

This bill would make an array of improvements to the 504 program, making it more accessible to small businesses and ultimately driving economic development and growth.

In a time of economic crisis and unemployment, we must continue to invest in our small businesses, specifically small manufacturers, in order to promote economic development and the creation and retention of good-paying jobs. We must do everything we can

to support small manufacturers and ensure that the SBA programs available to them are operating as effectively and efficiently as possible.

In addition, H.R. 8199, the 504 Credit Risk Management Improvement Act of 2020, which is also under floor consideration later today, would further clarify provisions in the 504 program, enhancing its accessibility and effectiveness.

Mr. Speaker, small businesses are the heart of this economy, and with the improvements from H.R. 8211 and H.R. 8199, more small businesses will be able to grow and ultimately contribute to the economic landscape of not only their communities but this country.

I urge all of my colleagues to support these bills before us today.

Mr. CHABOT. Mr. Speaker, I have no other speakers and I am prepared to close, so I yield myself the balance of my time.

Mr. Speaker, I urge my colleagues to support this bipartisan legislation. As our Nation's small businesses continue to face numerous capital access challenges, the SBA's existing government guarantee loan programs must be prepared to provide assistance. This bill, H.R. 8211, does just that by expanding the 504/CDC Loan Program's economic development goals and enhancing the program for small manufacturers.

This program has a proven record of the success, and the improvements that this legislation delivers will continue this track record into the future.

I ask for my colleagues' support, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

The SBA's 504 program has enjoyed a track record of success in delivering affordable, long-term capital to small businesses for acquiring land, real estate, or heavy machinery.

Furthermore, the CDCs who deliver the program are actively involved in promoting local economic development, especially for underserved business communities.

As the chair of the Small Business Committee, I have seen the values CDCs have delivered in my community in New York City, across the State, and across the country. I am proud of our opportunity here today to continue supporting their work and helping entrepreneurs access affordable capital, especially as our local economies continue adjusting to the realities of conducting business in the COVID–19 era.

I want to applaud the work by Ms. CRAIG and Ranking Member CHABOT for their collaboration to improve the 504 loan program.

I encourage all my colleagues to support this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 8211, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

504 CREDIT RISK MANAGEMENT IMPROVEMENT ACT OF 2020

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 8199) to amend the Small Business Act to enhance the Office of Credit Risk Management, to require the Administrator of the Small Business Administration to issue rules relating to environmental obligations of certified development companies, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8199

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''504 Credit Risk Management Improvement Act of 2020''.

SEC. 2. ENHANCEMENTS TO THE OFFICE OF CREDIT RISK MANAGEMENT.

Section 47 of the Small Business Act (15 U.S.C. 657t) is amended—

(1) by striking subsection (b) and inserting the following:

''(b) DUTIES.—The Office—

''(1) shall be responsible for—

''(A) supervising—

''(i) any lender making loans under section 7(a) (in this section referred to as a '7(a) lender');

''(ii) any Lending Partner or Intermediary participant of the Administration in a lending program of the Office of Capital Access of the Administration;

''(iii) any small business lending company or a non-Federally regulated lender without regard to the requirements of section 23; and

''(iv) any certified development company described under the program established under title V of the Small Business Investment Act of 1958 (referred to in this section as a 'certified development company'), as provided in subsection (k); and

''(B) conducting file reviews with respect to loan closings under the program established under title V of the Small Business Investment Act of 1958, as provided in subsection (j); and

''(2) may—

''(A) take formal and informal enforcement actions against a certified development company, as provided in subsection (l); and

''(B) charge a certified development company a fee, as provided in subsection (m).''; and

(2) by adding at the end the following new subsections:

''(j) LOAN CLOSING FILE REVIEWS.—With respect to a loan closing under the program established under title V of the Small Business Investment Act of 1958, the Office shall be responsible for the following:

''(1) Conducting a complete file review of a random selection of all loan closings, the number, frequency, and conduct of which shall be at the discretion of the Office, to ensure program integrity, including a review of the items listed on the Checklist for Complete File Review contained in the appropriate form of the Administration.

''(2) Not later than 60 days after the date on which each complete file review conducted under paragraph (1) is completed, preparing a written report documenting the results of that review, which the Office shall send to—

''(A) the applicable certified development company;

''(B) the designated attorney that closed the loan for the certified development company; and

''(C) the Commercial Loan Service Center.

''(3) If a complete file review conducted under paragraph (1) reveals a deficiency that could result in a loss to the Administration, requiring the applicable certified development company or the designated attorney to promptly correct the deficiency.

''(k) SUPERVISION OF CERTIFIED DEVELOPMENT COMPANIES.—With respect to the supervision of certified development companies—

''(1) an employee of the Office shall—

''(A) be present for, and supervise, the review of any such company that is conducted by a contractor of the Office on the premises of the company; and

''(B) supervise the review of any such company that is conducted by a contractor of the Office that is not conducted on the premises of the company; and

''(2) the Administrator shall—

''(A) develop a timeline for the review by the Office of certified development companies and the submission of reports regarding those reviews, under which the Administrator shall—

''(i) submit to a certified development company a written report of any review of the company not later than 90 days after the date on which the review is concluded; or

''(ii) if the Administrator expects to submit the report after the end of the 90-day period described in clause (i), notify the company of the expected date of submission of the report and the reason for the delay; and

''(B) if a response by a certified development company is requested in a report submitted under subparagraph (A)(i), require the company to submit responses to the Administrator not later than 45 business days after the date on which the company receives the report.

''(l) ENFORCEMENT AUTHORITY AGAINST CERTIFIED DEVELOPMENT COMPANIES.—

''(1) INFORMAL ENFORCEMENT AUTHORITY.—The Director may take an informal enforcement action against a certified development company if the Director finds that the company has violated a statutory or regulatory requirement or any requirement in a Standard Operating Procedures Manual or Policy Notice relating to a program or function of the Office of Capital Access.

''(2) FORMAL ENFORCEMENT AUTHORITY.—

''(A) IN GENERAL.—With the approval of the Lender Oversight Committee established under section 48, the Director may take a formal enforcement action against any certified development company if the Director finds that the company has violated—

''(i) a statutory or regulatory requirement, including a requirement relating to the necessary funds for making loans when those funds are not made available to the company from private sources on reasonable terms; or

''(ii) any requirement described in a Standard Operating Procedures Manual or Policy Notice relating to a program or function of the Office of Capital Access.

''(B) ENFORCEMENT ACTIONS.—The decision to take an enforcement action against a certified development company under subparagraph (A) shall be based on the severity or frequency of the violation and may include assessing a civil monetary penalty against the company in an amount that is not greater than $250,000.

''(3) FAILURE TO SUBMIT ANNUAL REPORT.—With respect to a certified development company that, as of the date that is 30 days after the date on which the company is required to submit any report, fails to submit that report, the Director may—

''(A) suspend the company from participating in the program established under title V of the Small Business Investment Act of 1958 for a period that is not longer than 30 days; or

''(B) impose a penalty on the company in an amount to be determined by the Director, except that the amount of the penalty shall be not more than $10,000.

''(m) FEE AUTHORITY REGARDING CERTIFIED DEVELOPMENT COMPANIES.—

''(1) IN GENERAL.—Effective one year after the date of the enactment of this subsection, the Office may collect from each certified development company a fee, the amount of which—

''(A) shall be determined on a graduated scale according to the size of the portfolio of the certified development company with respect to the program carried out under title V of the Small Business Investment Act of 1958; and

''(B) shall not exceed the amount that is 1 basis point with respect to the value of the portfolio described in subparagraph (A).

''(2) PAYMENT.—A certified development company on which a fee is imposed under paragraph (1) shall pay the fee from the servicing fees collected by the development company pursuant to regulation.''.

SEC. 3. RULES RELATING TO OBLIGATIONS OF CERTIFIED DEVELOPMENT COMPANIES UNDER THE NATIONAL ENVIRONMENTAL POLICY ACT.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of the Small Business Administration shall issue rules to clarify the procedures necessary for an eligible certified development company to comply with the applicable requirements under National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to modify the requirements of the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

(c) ELIGIBLE CERTIFIED DEVELOPMENT COMPANY DEFINED.—In this section, the term ''eligible certified development company'' means a certified development company defined under title V of the Small Business Investment Act of 1958 (15 U.S.C. 695 et seq.) that receives assistance pursuant to such title.

SEC. 4. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Ohio (Mr. CHABOT) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of the bill before us today, H.R. 8199, which clarifies the role of SBA's Office of Credit Risk Management with respect to the 504 loan program.

In 2018, Congress passed bipartisan legislation to codify SBA's Office of Credit Risk Management, which conducts periodic reviews of SBA lenders to ensure they are complying with program requirements and, ultimately, safeguarding the integrity of SBA's loan programs.

That legislation focused on the 7(a) loan program, giving the office the regulatory and enforcement tools it needed to conduct oversight over SBA's largest lending partners and hold them accountable.

Today's legislation takes that oversight work one step further by increasing the office's responsibilities in supervising the 504 program, bringing much-needed consistency and clarity for all 504 program participants.

The bill will shift loan closing file review responsibilities for the 504 loan program to the Office of Credit Risk Management, streamlining and standardizing an important process. By increasing SBA's responsibilities in overseeing the 504 loan program, we are improving the long-term sustainability of the program, ensuring it will be available for the next generation of entrepreneurs.

I applaud Mr. BISHOP and Ms. CRAIG for all of their diligence and perseverance on this issue and, more importantly, their commitment to America's small businesses.

I urge all my colleagues to support this bill, and I reserve the balance of my time.

Mr. CHABOT. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 8199, the 504 Credit Risk Management Improvement Act of 2020.

The SBA's 504/CDC Loan Program provides lending assistance to thousands of small businesses year in and year out. This assistance translates into supporting tens of thousands of jobs on an annual basis. This economic development program is and has been making a difference in neighborhoods and communities all across this great Nation.

With any successful government program, oversight must remain a significant factor. H.R. 8199 places an important focus on oversight and ensures the SBA has the appropriate capabilities to oversee the 504/CDC Loan Program.

Beyond oversight, H.R. 8199 also ensures that the 504/CDC Loan Program participants have the rules and guidance to comply with the National Environmental Policy Act and successfully operate within that program.

I want to thank the gentleman from North Carolina (Mr. BISHOP) and the gentlewoman from Minnesota (Ms. CRAIG) for their leadership and for working together to craft this legislation, once again, in a bipartisan manner.

I want to thank the chair, Ms. VELÁZQUEZ also for encouraging that cooperation between both sides.

Mr. Speaker, I urge my colleagues to support this, and I reserve the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I reserve the balance of my time.

Mr. CHABOT. Mr. Speaker, I yield such time as he may consume to the gentleman from North Carolina (Mr. BISHOP) and, again, thank him for his leadership in working across party lines with the gentlewoman from Minnesota (Ms. CRAIG). I want to commend her as well.

Mr. BISHOP of North Carolina. Mr. Speaker, I thank the gentleman from Ohio for yielding.

Mr. Speaker, I rise in support of H.R. 8199, the 504 Credit Risk Management Improvement Act of 2020.

Small businesses are the core of our Nation's entrepreneurship, innovation, and creative activity. It is paramount that Congress invest its resources into empowering small businesses to fuel job growth and transform communities.

The 504 program gives small businesses necessary resources, and this legislation will bolster and improve the implementation of that program. By giving small businesses access to fixed-rate financing, through the 504 program, small businesses that have limited capital are able to afford costly down payments.

This program has made Queen City Catering a success story. When the company needed financing for a larger location, they turned to Business Expansion Funding Corporation, a certified development company in Charlotte that helped them secure a 504 loan. These funds led to a new state-of-the-art kitchen for high-quality food preparation, management offices, high-tech conference areas, and warehouse space for rental items.

Better yet, since receiving this 504 loan, Queen City Catering has grown astronomically. This small business investment allowed the business to grow, while creating jobs for North Carolinians.

Fellow Members of Congress, I implore you to imagine the impact that 504 loans have on small businesses in your communities. That is exactly what my colleague, Congresswoman CRAIG, did with me when we crafted the 504 Credit Risk Management Improvement Act.

While the existing loan program has offered financial tools to help small businesses, we must act today and improve the program so it can help businesses serve their communities for years to come.

The bill before us outlines important capabilities of the SBA's Office of Credit Risk Management pertaining to the 504/CDC Loan Program. Importantly, the changes will ensure the program's

longevity by detailing how it should supervise a file review.

Additionally, this legislation requires the SBA to provide clear direction to certified development companies as they navigate environmental rules and regulations.

Lastly, this will help ensure that the program continues to operate on the fees built into the program.

I am confident that these improvements will strengthen the program for both small businesses and the program's lending partners. This legislation is a step in the right direction to ensure that small businesses can thrive as they bring innovative goods and services to consumers around the country.

I want to, again, thank Congresswoman CRAIG, Chairwoman VELÁZQUEZ, and Ranking Member CHABOT for their work and their help on this legislation. I urge my colleagues to support it.

□ 1545

Mr. CHABOT. Mr. Speaker, I have no further speakers on my side, so I am happy to close.

Mr. Speaker, Congress must continue to work together to strengthen the SBA's existing guaranteed loan programs. The SBA's programs must work for the Nation's smallest firms and the Nation's taxpayers. H.R. 8199 meets both objectives by applying appropriate oversight requirements to the SBA's 504/CDC loan program. Therefore, I urge my colleagues to support this bipartisan legislation.

Mr. Speaker, I, once again, thank Ms. CRAIG and Mr. BISHOP for their leadership, and I thank the chairwoman for her leadership on this. I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, since its inception, SBA's 504 program has enabled thousands of businesses to hire employees, grow to more locations, and expand operations. These 504 loans are some of the most affordable for commercial real estate projects, and most only require a 10 percent down payment from small business owners. In its 62-year history, it has proven to be a strong-performing SBA program that has helped entrepreneurs create jobs in every corner of our country.

Thanks to Mr. BISHOP and Ms. CRAIG's efforts, the bill before us today will make commonsense improvements to this important program. By shifting all loan closing file review responsibilities to the Office of Credit Risk Management, program integrity will be preserved, and the 504 program will be an affordable financing option for the next generation of entrepreneurs.

Mr. Speaker, I urge my colleagues to vote ''yes,'' and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 8199, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

PARITY FOR HUBZONE APPEALS ACT OF 2020

Ms. VELÁZQUEZ. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 8229) to require the Administrator of the Small Business Administration to issue a rule authorizing the Office of Hearings and Appeals to decide appeals relating to the status of HUBZone business concerns, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8229

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Parity for HUBZone Appeals Act of 2020''.

SEC. 2. AUTHORITY FOR THE OFFICE OF HEARINGS AND APPEALS TO DECIDE APPEALS RELATING TO QUALIFIED HUBZONE SMALL BUSINESS CONCERNS.

Not later than 1 year after the date of the enactment of this Act, the Administrator of the Small Business Administration shall issue a rule authorizing the Office of Hearings and Appeals of the Administration to decide all appeals from formal protest determinations in connection with the status of a concern as qualified HUBZone small business concern (as such term is defined in section 31(b) of the Small Business Act (15 U.S.C. 657a(b))).

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from New York (Ms. VELÁZQUEZ) and the gentleman from Ohio (Mr. CHABOT) each will control 20 minutes.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Ms. VELÁZQUEZ. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 8229, the Parity for HUBZone Appeals Act of 2020, introduced by the gentlewoman from American Samoa (Mrs. RADEWAGEN) and the gentlewoman from Pennsylvania (Ms. HOULAHAN).

H.R. 8229 will grant SBA's Office of Hearings and Appeals jurisdiction over appeals of HUBZone eligibility determinations. The Office of Hearings and Appeals provides independent quasi-judicial review of certain SBA program decisions. Under current law, the office decides appeals of eligibility determinations in the women-owned and service-disabled veteran-owned small business contracting programs, but it does not review appeals for the HUBZone program. That process is different.

When a protest challenging a HUBZone designation is filed, SBA's HUBZone director will review and make a decision. If the decision is appealed, the head of the Office of Government Contracting and Business Development will review and render a decision, which is final.

By shifting HUBZone eligibility appeals to the Office of Hearings and Appeals, H.R. 8229 achieves priority and uniformity in SBA's contracting programs. Moreover, it promotes transparency since the office's decisions are published.

Mr. Speaker, I urge Members to support this legislation, and I reserve the balance of my time.

Mr. CHABOT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 8229, the Parity for HUBZone Appeals Act of 2020.

As we have heard from the chairwoman, the current appeals process for the HUBZone program raises several concerns, including questions of conflict of interest, lack of transparency, and lack of responsibility.

The AA-GCBD plays a key leadership role within the organizational structure of the SBA and is primarily responsible for the supervision of all the SBA's various Federal contracting programs, including the HUBZone program.

Unlike the AA-GCBD, the SBA's Office of Hearings and Appeals is a fully functioning independent organization unconnected to the SBA's Federal contracting programs, and OHA administrative judges are trained to hear exactly these types of matters.

By moving HUBZone appeals from the AA-GCBD's purview to OHA through the passage of this bill, the AA-GCBD will be empowered to focus on its primary supervisory responsibilities while HUBZone small businesses will be able to receive impartial, fair, and knowledgeable treatment of their cases by OHA.

H.R. 8229, this bill, makes a necessary correction in the way HUBZone appeals are conducted.

I thank the gentlewoman from American Samoa (Mrs. RADEWAGEN), our vice ranking member, as well as the gentlewoman from Pennsylvania (Ms. HOULAHAN) for their bipartisan leadership on this legislation—again, Republicans and Democrats working together on this committee.

Mr. Speaker, I urge my colleagues to support this legislation.

Mr. Speaker, I yield such time as she may consume to the gentlewoman from American Samoa (Mrs. RADEWAGEN).

Mrs. RADEWAGEN. Mr. Speaker, I thank Ranking Member CHABOT for yielding time.

Mr. Speaker, I rise in support of H.R. 8229, the Parity for HUBZone Appeals

Act of 2020. I thank Ms. HOULAHAN for her collaboration on this important legislation.

SBA's various small business contracting programs support different types of entrepreneurs, from women and service-disabled veterans to minorities and the economically disadvantaged, by providing these businesses with special Federal contracting preferences.

Whether a business holds a specific status is critical in determining whether that company is eligible to compete for these special contract opportunities. Not only does the business have a vested interest in obtaining and maintaining its status, but the Federal Government also has an interest in making sure these special contracts are not awarded to fraudulent firms. If a company is suspected to be ineligible for a status it claims to hold, an interested party can protest the firm's status.

Currently, for Historically Underutilized Business Zone-qualified, or HUBZone-qualified, small businesses, the final arbiter of a firm's special HUBZone status is the Associate Administrator of the Office of Government Contracting and Business Development, or AA-GCBD. This differs significantly from SBA's other Federal contracting programs in which SBA's Office of Hearings and Appeals, or OHA, is the final decisionmaker of a firm's protested status.

OHA, unlike the AA-GCBD, is an independent office of the SBA. Leaving the appeal decision to the AA-GCBD raises questions of conflict of interest, whereas housing that process at OHA will ensure the decision remains separate and independent from any influence.

Furthermore, the AA-GCBD has many competing priorities and responsibilities in overseeing all the SBA's Federal contracting programs. In contrast, OHA administrative judges are primarily tasked with adjudicating similar types of appeals and, thus, are well trained and well versed in making educated decisions objectively and impartially. Thus, passage of this bill means that small businesses will have a greater chance of having a fair and knowledgeable assessment of their case.

Finally, the AA-GCBD's appeals decisions are currently made in a vacuum. There is no visibility into the reasons why a decision was reached. In contrast, all of OHA's decisions are published online and easily searchable. These opinions are critical for small businesses to obtain a greater understanding of the rules surrounding their eligibility. Therefore, shifting the responsibility to hear HUBZone appeals to OHA will provide the public with much-needed guidance and transparency.

In sum, H.R. 8229 will bring greater parity, fairness, and transparency between SBA's HUBZone program and its other Federal contracting programs.

Mr. Speaker, I urge my colleagues to support this commonsense legislation.

Mr. CHABOT. Mr. Speaker, I have no further speakers on my side, and I yield myself the balance of my time.

Mr. Speaker, this is good legislation. It moves the ball forward. Moving the HUBZone appeals process to the OHA places small businesses that have a complaint about the program on equal footing with other appeals processes throughout the SBA, and that is a good thing.

I want to, again, thank Mrs. RADEWAGEN for her leadership on this particular legislation and Ms. HOULAHAN from Pennsylvania as well, and the chairwoman, as always, for working in a bipartisan manner.

Mr. Speaker, I urge adoption of this bill, and I yield back the balance of my time.

Ms. VELÁZQUEZ. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, we all know consistent procedures in government foster a better understanding of the rules and improve overall agency effectiveness.

H.R. 8229 furthers that ideal by providing the HUBZone program with parity and uniformity with the women-owned and the service-disabled veteran-owned programs.

Furthermore, by making the Office of Hearings and Appeals the final arbiter of all protest eligibility determinations, H.R. 8229 capitalizes on everything the office has to offer: subject matter expertise, efficiency, and transparency.

I thank Mrs. RADEWAGEN and Ms. HOULAHAN for working together on this bipartisan solution.

Lastly, I would like to take a moment to thank the ranking member, Mr. CHABOT, for his outstanding service on the Small Business Committee.

Mr. Speaker, Mr. CHABOT and I have led this committee together through four Congresses, each of us spending equal time as chair and ranking member. Throughout it all, he has been an incredible partner, working closely with me in good times and bad.

Over the course of our tenure, we have shepherded scores of bipartisan bills through the House, giving small businesses better access to capital, counseling, and Federal contracts. We have held numerous oversight hearings to make sure SBA programs were operating effectively and efficiently for small businesses, regardless of which party held the White House. In sum, we worked very well together.

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You may ask what is the secret to our success, especially during these polarizing times. And I will point to Representative CHABOT, who is as committed to public service as I am. He puts politics aside and works with Democrats and Republicans alike to solve problems.

When the pandemic struck, it hit small businesses particularly hard, and our committee was called to action. Small businesses that were once thriving were fighting for their very survival. Our committee was working day and night, trying to develop a bipartisan package in mere days that will provide economic relief to small businesses. These were trying economic times, and we needed to bring people together and act fast to rescue small businesses. It wasn't easy, but one thing was certain. I was fortunate to have Ranking Member CHABOT by my side.

Mr. Speaker, I am proud of the relief we have been able to deliver to our Main Street small businesses. I would also be remiss if I didn't mention Ranking Member CHABOT's excellent staff, who have worked tirelessly with us. I thank Kevin Fitzpatrick, Jan Oliver, Joe Hartz, Rob Yavor, Vivian Ling, Delia Barr, Alison Kerman, and Rachel Emmons for their commitment and dedication. They have worked hand in glove with my staff to ensure hearings went well and the pandemic relief programs were working as intended.

Mr. Speaker, I am saddened that Ranking Member CHABOT will not be returning to the committee as ranking member in the next Congress. I will certainly miss our conversations during hearings and listening to the many unique ways his name is pronounced. I thought my name was tough.

Steve, you will be sorely missed. Thank you for your leadership, dedication, and willingness to work across the aisle to make our world a little bit brighter. I wish you the very best in the next Congress.

Mr. Speaker, I urge my colleagues to support H.R. 8229, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from New York (Ms. VELÁZQUEZ) that the House suspend the rules and pass the bill, H.R. 8229.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

GANDHI-KING SCHOLARLY EXCHANGE INITIATIVE ACT

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5517) to affirm the friendship of the governments of the United States of America and the Republic of India, and to establish a bilateral partnership for collaboration to advance development and shared values, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5517

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Gandhi-King Scholarly Exchange Initiative Act''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) The peoples of the United States and India have a long history of friendship and

the interests of the peoples of the United States, India, and the world will benefit from a stronger United States-India partnership.

(2) Mohandas Karamchand Gandhi and Martin Luther King, Jr., were dedicated leaders fighting for social justice and social change, peace, and civil rights in their respective communities, and countries and in the world.

(3) The use of nonviolent civil disobedience is a shared tactic that has played a key role in defeating social injustice in India, the United States, and in other parts of the world.

(4) Mohandas Gandhi, who was born on October 2, 1869, was murdered on January 30, 1948, after dedicating his life to the peaceful empowerment of the people of India and to the end of British colonial rule.

(5) Martin Luther King, Jr., who was born on January 15, 1929, was murdered on April 4, 1968, after a life dedicated to peaceful movements against segregation, discrimination, racial injustice, and poverty.

(6) In February 1959, Dr. King and his wife, Coretta Scott King, traveled throughout India. By the end of his monthlong visit, Dr. King said, ''I am more convinced than ever before that the method of nonviolent resistance is the most potent weapon available to oppressed people in their struggle for justice and human dignity.''.

(7) Fifty years after Dr. King's visit, All India Radio, the national radio station of India, discovered a taped message by Dr. King that emphasized the intellectual harmony between the messages of Dr. King and Mohandas Gandhi on nonviolent social action.

(8) On August 22, 2011, the Dr. Martin Luther King, Jr., National Memorial opened to the public in Washington, DC. This newest memorial on the National Mall pays tribute to Dr. King's national and international contributions to world peace through nonviolent social change.

(9) The 116th Congress coincides with both the 150th birth anniversary of Mohandas Gandhi and the 90th birth anniversary of Dr. Martin Luther King, Jr.

(10) Mohandas Gandhi, who employed the principle of satyagraha, or ''fighting with peace'', has come to represent the moral force inspiring many civil and social rights movement around the world.

(11) Dr. King's effective use of Gandhi's principles was instrumental to the American civil rights movement.

(12) There is a long history of civil and social rights movements in the United States and in India. As the relationship between the United States and India evolves, a binational foundation through which the governments of each country can work together and catalyze private investment toward development objectives would provide an ongoing, productive institution and symbol of the friendship and common ideals of the respective governments and their peoples.

(13) There is a global goal of ending tuberculosis by 2030, the United States and India seek a TB-Free India by 2025, and the United States-India Gandhi-King Foundation will help address gaps across the TB value chain in prevention, detection, diagnosis, and treatment, and would catalyze market-based strategies to bridge the service gap for the ''last mile''.

(14) Leaders in both countries belonging to both major political parties have prioritized the United States-India relationship and on a bipartisan basis continue to support a strengthened United States-India partnership, recognizing that it will be one of the defining partnerships of the 21st century.

SEC. 3. GANDHI-KING SCHOLARLY EXCHANGE INITIATIVE.

In order to further the shared ideals and values of Mohandas Gandhi and Martin Luther King, Jr, the Secretary of State shall establish, in cooperation with the appropriate representatives of the Government of India, a professional exchange program known as the ''Gandhi-King Scholarly Exchange Initiative''. The initiative should be comprised of the following:

(1) An annual educational forum for scholars from the United States and India that focuses on the social justice and human and civil rights legacies of Mohandas Gandhi and Martin Luther King, Jr., which shall—

(A) be held alternately in the United States and in India;

(B) include representatives from governments, nongovernmental organizations, civic organizations, and educational, cultural, women's, civil, and human rights groups, including religious and ethnic minorities and marginalized communities; and

(C) focus on studying the works of Gandhi and King, and applying their philosophies of nonviolent resistance to addressing current issues, including poverty alleviation, conflict mitigation, human and civil rights challenges, refugee crises, and threats to democracy and democratic norms in countries around the world.

(2) An undergraduate, graduate, and postgraduate student exchange for students in the United States and India to—

(A) study the history and legacies of Martin Luther King, Jr., and Mohandas Gandhi;

(B) visit historic sites in India and the United States that were integral to the American civil rights movement and the Indian independence movement; and

(C) research and develop papers on the importance of peace, nonviolence, and reconciliation in current conflict regions.

SEC. 4. GANDHI-KING GLOBAL ACADEMY.

(a) IN GENERAL.—The president and chief executive officer of the United States Institute of Peace shall create a professional development training initiative on conflict resolution tools based on the principles of nonviolence. Such training initiative shall be known as the Gandhi-King Global Academy and shall—

(1) target representatives from governments, nongovernmental organizations, civic organizations, and educational, cultural, women's, civil, and human rights groups, including religious and ethnic minorities and marginalized communities in countries with ongoing political, social, ethnic, or violent conflict;

(2) include a specific focus on the success of nonviolent movements, inclusion, and representation in conflict resolution;

(3) develop a curriculum on conflict resolution tools based on the principles of nonviolence; and

(4) make the curriculum publicly available online, in person, and through a variety of media.

(b) PROHIBITION.—The United States Institute of Peace may not, in the course of any activity authorized by subsection (a), enter into any contract with an outside entity to conduct advocacy on its behalf.

SEC. 5. ESTABLISHMENT OF THE UNITED STATES-INDIA GANDHI-KING DEVELOPMENT FOUNDATION.

(a) ESTABLISHMENT.—The Administrator of the United States Agency for International Development (USAID), with the concurrence of the Secretary of State and in coordination with appropriate counterparts in the Government of India, is authorized to establish, on such terms and conditions as are determined necessary and notwithstanding any other provision of law, one or more legal entities to compose the United States-India Gandhi-King Development Foundation (in this section referred to as the ''Foundation''). Each such legal entity within the Foundation shall be organized under the laws of India and shall not be considered to be an agency or establishment of the United States Government and shall not have the full faith and credit of the United States.

(b) FUNCTIONS.—The Foundation, through one or more entities referred to in subsection (a)—

(1) shall identify development priorities and administer and oversee competitively-awarded grants to private nongovernmental entities to address such priorities in India, including—

(A) health initiatives addressing tuberculosis (TB), water, sanitation, and health (WASH), and pollution and related health impacts (PHI);

(B) pollution, plastic waste reduction, and climate-related shocks;

(C) education; and

(D) empowerment of women;

(2) should provide credible platforms and models, including returnable capital to attract and blend public and private capital, which can then be deployed efficiently and effectively to address the priorities identified in paragraph (1).

(c) ADDITIONALITY.—

(1) IN GENERAL.—Before an entity within the Foundation makes a grant under subsection (b)(1) to address a priority identified under such subsection, the Foundation shall ensure that private sector entities are afforded an opportunity to support the projects funded by such grants.

(2) SAFEGUARDS, POLICIES, AND GUIDELINES.—The Foundation shall develop appropriate safeguards, policies, and guidelines to ensure that grants made under subsection (b)(1) operate according to internationally recognized best practices and standards.

(d) LIMITATIONS.—No party receiving a grant made under subsection (b)(1) may receive such grant in an amount that is more than five percent of amounts appropriated or otherwise made available under section 7(a)(3) to the entity in the Foundation making such grant.

(e) GOVERNING COUNCIL.—

(1) PURPOSE.—The Government of the United States and the Government of India shall convene a Governing Council to provide guidance and direction to the Foundation.

(2) APPOINTMENT OF MEMBERS.—The Administrator of the United States Agency for International Development, with the concurrence of the Secretary of State, shall appoint a majority of the Governing Council of the Foundation for a period of five years following the establishment of the Foundation.

(3) CHARTER.—The Governing Council of the Foundation shall adopt a charter for the operation of the Foundation, which shall include provisions to—

(A) identify development priorities or a process to identify development priorities;

(B) define criteria for application, merit review, and awarding of grants by the Foundation;

(C) establish an annual organization-wide audit by an independent auditor in accordance with generally accepted auditing standards, the results of which shall be made immediately available to the Board, the Administrator of the United States Agency for International Development, and the appropriate Government of India counterpart;

(D) assist in the creation of project specific timetables for each of the projects funded by a grant from the Foundation;

(E) establish an oversight role and march-in audit rights for the Administrator of the United States Agency for International Development and the appropriate Government of India counterpart; and

(F) establish an annual report on the activities of the Foundation to be made publicly available.

(f) PUBLICLY AVAILABLE PROJECT INFORMATION.—The Foundation shall maintain a user-friendly, publicly available, machine readable database with detailed project level information, as appropriate and to the extent practicable, including a description of the grants made by the Foundation under this section and project level performance metrics.

(g) DETAIL OF UNITED STATES GOVERNMENT PERSONNEL TO THE FOUNDATION.—

(1) IN GENERAL.—Whenever the Administrator of the United States Agency for International Development or the Secretary of State determines it to be in furtherance of the purposes of this Act, the Administrator and the Secretary are authorized to detail or assign any officer or employee of the Agency or the Department, respectively, to any position in the Foundation to provide technical, scientific, or professional assistance to the Foundation or, in cooperation with the Foundation, to implementing partners of the Foundation, without reimbursement to the United States Government.

(2) STATUS.—Any United States Government officer or employee, while detailed or assigned under this subsection, shall be considered, for the purpose of preserving their allowances, privileges, rights, seniority, and other benefits as such, an officer or employee of the United States Government and of the agency of the United States Government from which detailed or assigned, and shall continue to receive compensation, allowances, and benefits from program funds appropriated to that agency or made available to that agency for purposes related to the activities of the detail or assignment, in accordance with authorities related to their employment status and agency policies.

(3) SUNSET.—The authorities provided under this subsection shall terminate on the date that is five years after the establishment of the Foundation.

SEC. 6. REPORTING REQUIREMENTS.

(a) INITIAL REPORTS.—Not later than 120 days after the date of the enactment of this Act—

(1) the Secretary of State shall submit to the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives and the Committee on Foreign Relations and the Committee on Appropriations of the Senate a report on the Secretary of State's plan to establish the initiative authorized under section 3;

(2) the president and chief executive officer of the United States Institute of Peace shall submit to the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives and the Committee on Foreign Relations and the Committee on Appropriations of the Senate a report on the president and chief executive officer's plan to establish the initiative authorized under section 4; and

(3) the Administrator of the United States Agency for International Development shall submit to the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives and the Committee on Foreign Relations and the Committee on Appropriations of the Senate a report on the Administrator's plan to establish, not later than 180 days after the date of the enactment of this Act, the organization authorized under section 5.

(b) PERIODIC UPDATES.—Upon the request of the committees specified in subsection (a), the Secretary of State, president and chief executive officer of the United States Institute of Peace, and Administrator of the United States Agency for International Development shall submit to such committees an update on the progress in implementing each of the initiatives or establishing the organization referred to in such subsection.

SEC. 7. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—There is authorized to be appropriated to carry out—

(1) section 3, up to $1,000,000 for each of fiscal years 2021 through 2025 to the Secretary of State

(2) section 4, up to $2,000,000 for fiscal year 2021 to the United States Institute of Peace;

(3) section 5, up to $30,000,000 for fiscal year 2021 to the Administrator of the United States Agency for International Development; and

(4) section 5, up to $15,000,000 for each of fiscal years 2022 through 2025, if the private sector in India commits amounts equal to that contributed by the United States.

(c) SENSE OF CONGRESS ON FOREIGN ASSISTANCE FUNDS.—It is the sense of Congress that the authorization of appropriations under subsection (a) should be renewable for one or more periods of not more than 5 years if the Secretary of State, in consultation with the Administrator of the United States Agency for International Development, determines that the Foundation's work is successful in addressing the priorities identified in section 5(b)(1) and that the private sector in India has committed funds to the Foundation in accordance with subsection (a)(4).

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 5517, the Gandhi-King Scholarly Exchange Initiative Act.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am pleased to rise in strong support of the Gandhi-King Scholarly Exchange Initiative Act, a measure championed by our late friend and colleague, Congressman John Lewis of Georgia.

In 2009, John traveled to India to commemorate the 50th anniversary of Dr. Martin Luther King and Coretta Scott King's journey to explore Gandhi's teachings on the use of nonviolent direct action to advance social justice. John's trip and his decades of civil rights work in public service—what he would call ''good trouble''—led to the Gandhi-King Scholarly Exchange Initiative Act.

This legislation honors the longstanding friendship between the people of the United States and India and establishes an educational exchange program to advance the teachings of Mohandas Gandhi and Dr. King. It also establishes a development foundation that would allow India and the United States to work together to address pressing issues, like climate change, education, and public health.

At a time when our country is struggling to come to terms with the reality of systemic racism, I can think of no better time to advance the work of Gandhi; King; and John Lewis, our friend and colleague.

Mr. Speaker, I strongly support this measure, and I hope all of my colleagues will do the same. I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, after years of working with India to address certain development challenges, the United States has seen impressive results. The best results so far is that India, who was once a recipient of foreign aid, is now a donor country, but there is still a lot of work to be done.

This is especially true when it comes to fighting tuberculosis, improving water sanitation, increasing education, and empowering women. That is why I urge my colleagues to support the Gandhi-King Scholarly Exchange Initiative Act.

This bill, authored by the late Representative John Lewis, supports the establishment of a development fund that will continue our fight to improve these areas of concern. In addition, it will transition management of these programs from the United States to India. It is a public-private partnership powered by the Government of India and the private sector, and it is a true testament to how far India has come.

This bill also honors the legacy of two men that it is named for, Mohandas Gandhi and Martin Luther King, Jr., by creating a professional exchange program to study pressing global challenges, including the struggle for civil rights, the fight to end poverty, and strategies to decrease global conflicts.

Mr. Speaker, let me take a moment to honor the remarkable legacy of Representative John Lewis, who first introduced this legislation. I am proud to be here on the floor with Chairman ENGEL in support of his bill. The creation of this foundation is just another example of his dedication to improving the lives of so many people not only here in the United States, but around the world. I thank the late Representative John Lewis, and I thank my friend, Chairman ENGEL, for bringing this important bill to the floor.

Mr. Speaker, I urge my colleagues to support it, and I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, in closing, the goal of U.S. foreign assistance should always be that countries graduate from our aid. Today, we move one step closer to this goal with the authorization of the US-India Gandhi-King Development Foundation.

This bill further affirms a strong bilateral relationship between United States and India and will strengthen

our ties to the world's largest democracy.

Mr. Speaker, I once again urge my colleagues to support this important legislation, and I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am proud we are considering this excellent measure written by our dear friend, John Lewis. I know we all miss John dearly, but his legacy of advancing the cause of righteousness and justice lives on, and this is a good example.

John championed the Gandhi-King Scholarly Exchange Initiative Act to further the teachings of Gandhi and Dr. Martin Luther King, Jr. Their work on civil rights and social justice should be a beacon for us all, and I am pleased we can pass a measure today to continue their invaluable work for humanity.

Mr. Speaker, I thank my friend and partner, Mr. MCCAUL. It is a pleasure once again to work with him on the committee and to work on legislation for the country and the world.

Mr. Speaker, I strongly support this legislation, and I urge my colleagues to do the same. I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a cosponsor and a member of the Congressional Caucus on India and Indian Americans, I rise in strong support of H.R. 5517, the ''Gandhi-King Scholarly Exchange Initiative Act'', which establishes an exchange initiative between the United States and India to study the work and legacies of Mahatma Gandhi and Martin Luther King Jr.

First and foremost, I wish to express my gratitude and fondness for my former colleague and dear friend, John Lewis, who passed away a few months ago, for introducing and leading this vital piece of legislation.

By passing this bill today, we authorize the U.S. Department of State, in cooperation with the Indian Government, to incorporate three new programs:

the Gandhi-King Scholarly Initiative, which creates an annual educational forum for scholars from both countries that focuses on the legacies of Mohandas Gandhi and Martin Luther King, Jr;

the Gandhi-King Global Academy, a United States Institute of Peace (USIP) program tasked with developing a professional development training initiative on conflict resolution based on the principles of nonviolence; and

the United States-India Gandhi-King Development Foundation, which establishes a foundation to address social, environmental, and health priorities in India.

Mr. Speaker, Congressman Lewis was a giant among us mere mortals.

Not only was he the conscience of the Congress, widely beloved and revered on both sides of the aisle, but he was also one of the Original Big Six, a pillar of the Civil Rights Movement, and a lifelong warrior for a more just, equitable, and better America.

Like Gandhi and Dr. King, Congressman Lewis shaped the world through his actions of nonviolence, and it is in his honor that we gather here today to vote on a bill he championed.

To quote Congressman Lewis, ''Both Gandhi and King were inspired human beings who believed deeply in the power of nonviolent resistance to injustice as a tool for social change.''

It is because of their courage, commitment, and vision of a more tolerant and equitable world that we are all able to enjoy and practice our most fundamental democratic freedoms.

As the world's oldest and largest democracies, the United States and India have long traditions of upholding these shared values of nonviolent revolutions championed by figures like Gandhi, King, and Lewis.

But as we have seen over the past few years, both countries have experienced significant affronts to the fundamental democratic principles, which threaten to erode the values that these men and many others have given their lives to protect.

Mr. Speaker, the ''Gandhi-King Scholarly Exchange Initiative Act'' seeks to apply the philosophies of Gandhi and Dr. King to conflict resolution efforts and current policy challenges.

With this legislation, we seek to embody the best of what we saw of Gandhi, Dr. King, and Congressman Lewis in their fight for equality and justice as well as seek to preserve these values so that future generations are empowered and able to continue the fight against injustice.

Just a few months ago, the world was reminded of the power nonviolent resistance has to effect positive change in the face of grave injustices.

In the wake of George Floyd's murder, millions of people across the world and in all 50 states within the U.S. gathered together to peacefully protest against police brutality.

People of different races, socioeconomic classes, ethnicities, genders, and sexual orientations came together to demonstrate in the most democratic way possible.

Mr. Speaker, those marches, which were, without a doubt, inspired by the marches led by Gandhi and Dr. King, have resulted in a genuine dialogue about institutional racism in this country and have awakened efforts to reform the system, so that it truly benefits all people.

I am honored to be a leader on this bill, and I urge all Members to join me in voting for H.R. 5517, the ''Gandhi-King Scholarly Exchange Initiative Act.''

The SPEAKER pro tempore (Mr. CUELLAR). The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and pass the bill, H.R. 5517, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

WAR CRIMES REWARDS EXPANSION ACT

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1819) to amend the State Department Basic Authorities Act of 1956 to provide for rewards for the arrest or conviction of certain foreign nationals who have committed genocide or war crimes, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1819

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''War Crimes Rewards Expansion Act''.

SEC. 2. DEPARTMENT OF STATE REWARDS PROGRAM.

Paragraph (10) of section 36(b) of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2708(b)) is amended by striking ''defined under the statute of such tribunal;'' and inserting the following: ''defined under—

''(A) the statute of such country or tribunal, as the case may be; or

''(B) United States law;''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 1819, the War Crimes Rewards Expansion Act.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am pleased to support the War Crimes Rewards Expansion Act, and I thank Congresswoman FOXX for her hard work on this bill.

This bipartisan measure enhances the War Crimes Rewards Program, which enables the United States to pay rewards to individuals who provide information that leads to the arrest or conviction of foreign nationals who commit war crimes, crimes against humanity, or genocide.

This initiative has led to the capture of fugitives who committed atrocities in Rwanda and the former Yugoslavia. This War Crimes Rewards Expansion Act will strengthen this rewards program and ensure that it can be used to bring perpetrators to justice, whether it is in domestic courts or international tribunals.

Mr. Speaker, American foreign policy should reflect our values, including the promotion of human rights, and we must do everything possible to bring justice to victims of atrocities and hold perpetrators accountable. This legislation is an important step in that direction, and I am pleased to support it.

Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, sadly, we live in a world where crimes against humanity still occur. We have seen two declared genocides in just the last 20 years—in Darfur in 2004, and by ISIS in 2016.

We have seen the horrific ethnic cleanings against the Rohingya in Burma. We have seen the atrocities committed by Assad against his own people in Syria. But bringing the criminals behind these massacres to justice can be difficult. That is why 35 years ago, we enacted the State Department's Rewards program. It authorizes the Secretary of State to offer rewards for the arrest or conviction of some of the most dangerous people in the world.

Originally written to be used against international terrorists, the successful program has since been expanded to include drug traffickers, war criminals, and perpetrators of genocide. As the world changes and as the international criminals evolve, we need to make sure this important program evolves with them. And that is why I urge my colleagues to join us in supporting the War Crimes Rewards Expansion Act.

Mr. Speaker, the bill makes clear that these rewards are not just meant to support international tribunals. They can also be used to bring these dangerous criminals to justice here in the United States, under United States law.

Mr. Speaker, I thank the author of this bill, the gentlewoman from North Carolina (Ms. FOXX), and my good friend, Chairman ENGEL, for considering this bill today, which deserves our support.

Mr. Speaker, I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I echo the words of Mr. MCCAUL. I am pleased to support this legislation, and I urge all Members to do the same.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and pass the bill, H.R. 1819.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

EXPRESSING SENSE OF CONGRESS THAT YEVGENIY PRIGOZHIN AND HIS AFFILIATED ENTITIES POSE A THREAT TO INTERESTS AND SECURITY OF THE UNITED STATES

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 996) expressing the sense of Congress that the activities of Russian national Yevgeniy Prigozhin and his affiliated entities pose a threat to the national interests and security of the United States and of its allies and partners, as amended.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 996

Whereas Yevgeniy Prigozhin is a Russian national who has maintained close personal ties with President Vladimir Putin since the early 2000s;

Whereas Yevgeniy Prigozhin is the patron and funder of the Wagner Group, also known as the Private Military Company (PMC) Wagner, a Russian mercenary organization staffed by current and former military and intelligence officers, and the Internet Research Agency (IRA), an organization engaged in online influence operations;

Whereas the IRA has conducted online information operations against the United States in an attempt to sow division and discord among the American electorate, as well as the electorates of our European allies and partners;

Whereas entities funded by Yevgeniy Prigozhin have been used by the Government of the Russian Federation to conduct military action, subversive operations, and disinformation campaigns on its behalf while giving it an appearance of plausible deniability;

Whereas the Wagner Group was involved in the Russian Federation's military invasion and attempted annexation of Ukraine's Crimea region in February and March 2014, and in the subsequent insurgencies in the eastern Ukrainian regions of Donetsk and Luhansk;

Whereas the Wagner Group has been providing military support to the regime of Bashar al-Assad in Syria since 2015, fighting alongside its forces and helping it recapture significant parts of the country;

Whereas, on February 7, 2018, the Wagner Group led an armed assault on United States troops near the city of Deir al-Zour in eastern Syria, prompting a United States counterattack, in what has been described as ''the deadliest U.S.-Russia clash since the Cold War'';

Whereas the Wagner Group has supported Khalifa Haftar and his''Libyan National Army'' by providing mercenaries, artillery, tanks, drones, and ammunition, with Yevgeniy Prigozhin personally attending a meeting between Haftar and Russian Defense Minister Sergei Shoigu in Moscow on November 7, 2018;

Whereas a United Nations report made public on May 6, 2020, concluded that the Wagner Group has operated up to 1,200 military contractors in Libya, including snipers and specialized military teams, serving as ''an effective force multiplier'' for Haftar's army.

Whereas mercenaries from the Wagner Group were deployed to Venezuela in January 2019 to provide support for the regime of Nicolas Maduro in the face of popular protests against his dictatorship;

Whereas Yevgeniy Prigozhin and his affiliated entities have spearheaded operations with the intent to influence political processes in Africa on behalf of the Government of the Russian Federation in several countries, including Madagascar, South Africa, Sudan, Zimbabwe, and the Central African Republic;

Whereas the Wagner Group has deployed mercenaries to the Central African Republic since 2018 and has provided security detail for Central African Republic President Faustin-Archange Touadera, including Russian national Valery Zakharov, a former security official with close ties to the Wagner Group, who serves as the National Security Adviser;

Whereas, on July 31, 2018, Russian journalists Orkhan Dzhemal, Kirill Radchenko, and Alexander Rastorguyev were murdered in the Central African Republic while working on a documentary about the activities of the Wagner Group in that country;

Whereas according to an investigation by the London-based Dossier Center, the journalists had been tracked by officers of the Central African Republic gendarmerie who were in close communication with Russian nationals tied to the Wagner Group, including Valery Zakharov and Alexander Sotov;

Whereas associates of Yevgeniy Prigozhin were reported to discuss plans to set up camps ''for combat prep and training in sabotage'' with the goal of stoking racial violence and carrying out domestic terror attacks in the United States in the run-up to the November 3, 2020, presidential election;

Whereas associates of Yevgeniy Prigozhin have set up online influence operations based in Ghana and Nigeria to target social media audiences in the United States with the goal of inflaming racial tensions and provoking social unrest in the run-up to the November 3, 2020, presidential election;

Whereas, on December 20, 2016, the Department of the Treasury designated Yevgeniy Prigozhin under Executive Order 13661, ''Blocking Property of Additional Persons Contributing to the Situation in Ukraine'', for having ''materially assisted, sponsored, or provided financial, material, or technological support for, or goods or services in support of, senior officials of the Russian Federation'';

Whereas, on June 20, 2017, the Department of the Treasury designated the Wagner Group under Executive Order 13660, ''Blocking Property of Certain Persons Contributing to the Situation in Ukraine'', for being ''responsible for or complicit in, or having engaged in, directly or indirectly, actions or policies that threaten the peace, security, stability, sovereignty, or territorial integrity of Ukraine'';

Whereas, on March 15, 2018, the Department of the Treasury designated Yevgeniy Prigozhin, his affiliated entities, including the Internet Research Agency, and his subordinates under Executive Order 13694, ''Blocking the Property of Certain Persons Engaging in Significant Malicious Cyber-Enabled Activities,'' for being ''involved in interfering with [U.S.] election processes or institutions'';

Whereas on July 15, 2020, under Executive Orders 13848, 13694 (as amended), and 13661, the Department of the Treasury designated entities located in Sudan, Hong Kong, and Thailand that have enabled Yevgeniy Prigozhin's ability to evade United States sanctions as well as Prigozhin-linked entities that have attempted to suppress and discredit protestors seeking reforms in Sudan;

Whereas, on September 23, 2020, pursuant to Executive Orders 13848, 13694 (as amended), and 13661, the Department of the Treasury designated a network of entities and individuals working on behalf of Yevgeniy Prigozhin seeking to advance Russia's influence in the Central African Republic;

Whereas, on October 15, 2020, the European Union sanctioned Yevgeniy Prigozhin for engaging in ''and providing support for Wagner Group's activities in Libya, which threaten the country's peace, stability and security''; and

Whereas current and former Administration officials have affirmed that the malign activities of Yevgeniy Prigozhin around the world pose a significant threat to United States national security interests: Now, therefore, be it

Resolved, That the House of Representatives—

(1) condemns any and all attempts by the Government of the Russian Federation and associated actors to influence the domestic politics of other countries and sow division among their peoples, particularly the United States and its allies and partners;

(2) condemns the activities of Russian national Yevgeniy Prigozhin and his affiliated entities that pose a threat to the democratic values, democratic institutions, and security of the United States and its allies and partners;

(3) urges countries and entities engaging with Yevgeniy Prigozhin and his affiliated entities in business or advisory capacities to cease these engagements;

(4) supports the additional designations made by the Department of the Treasury on September 23, 2020, and by the European Union on October 15, 2020, and calls on the United States Government and the European Union to continue to target the ability of Yevgeniy Prigozhin and his affiliated entities to conduct operations globally and to interfere in the democratic processes of the United States and its allies and partners; and

(5) calls for close coordination between the United States Government and the governments of United States allies and partners to ensure that sanctions regimes against Yevgeniy Prigozhin and his affiliated entities are enforced and coordinated.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

□ 1615

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Res. 996.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I want to thank my colleagues on both sides of the aisle for joining me to introduce this measure condemning one of the principal architects of Russian aggression around the world. Yevgeniy Prigozhin is one of Vladimir Putin's key cronies, with a long history of working against American interests on behalf of the Russian Government. His Internet Research Agency disinformation campaigns have worked to sow division and undermine democratic elections right here at home and also among our allies.

Yevgeniy Prigozhin is also the leader of the Wagner Group, a Russian mercenary organization, that has spread deadly conflict across the globe, engaging in violent and subversive operations in Ukraine, Syria, Libya, and sub-Saharan Africa. He has directed human rights violations in Syria, undermined U.S. operations in the Middle East, and played a key role in invading and destabilizing Ukraine.

We must hold Prigozhin accountable and take action to stop his nefarious activities. This resolution condemns Prigozhin and his Kremlin partners, expresses strong support for the U.S. and European Union sanctions on him, which were announced this fall, and calls for the imposition of additional targeted sanctions.

As Putin and his henchmen, like Prigozhin, continue their attacks on democracies across the world, Congress must send a strong, unified message that we will not tolerate their destabilizing actions and that we are ready to hold them accountable. Passing this resolution does just that.

Mr. Speaker, I strongly support this measure, urge all my colleagues to do the same, and I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, Yevgeniy Prigozhin is one of the most destructive operators within Vladimir Putin's corrupt regime. The destabilizing activity that he has directed and financed can be felt throughout the world.

Mr. Prigozhin bankrolls the Russian Wagner Group, whose mercenaries have fanned the deadly flames of conflicts, propped up dictatorships, committed gruesome human rights abuses, all at the Kremlin's direction.

In Ukraine, the Wagner Group supported Russia's illegal annexation of Crimea and the pro-Russian separatists in the country's east. They have provided military support to the murderous Bashar al-Assad regime, and they even led an assault against U.S. troops in Syria in 2018.

In Libya, Russia has jeopardized efforts to bring peace to the country by supporting Haftar, as well as by sending advanced Russian aircraft and thousands of mercenaries from the Wagner Group into the country.

The Wagner Group is also actively meddling in the domestic politics of numerous African countries. There, they hope to expand Russian influence on the continent while also exploiting Africa's natural resources for their own profit.

The United States is not immune from the threat posed by the Wagner Group. Mr. Prigozhin financed the Internet Research Agency, a Russian troll farm that has attempted to interfere in the United States elections and sow discord among the American people.

Let me be clear. Mr. Prigozhin is a direct threat to the United States. We cannot allow this behavior to go unchecked. The United States has responded forcefully, sanctioning him, the Wagner Group, the Internet Research Agency, and many more of Mr. Prigozhin's front companies and affiliates.

In October, I was glad to see the EU join the United States in sanctioning Mr. Prigozhin as well.

However, we must keep up the pressure. That is why I support the resolution before us today. It condemns Mr. Prigozhin's corrupt activity, and it sends a direct message to the Kremlin that the United States Congress will continue to hold Mr. Prigozhin accountable for his efforts to further the Putin regime's malign agenda. It also exposes the truth about the Kremlin's ridiculous claim that Mr. Prigozhin and the Wagner Group operate independently.

Mr. Speaker, I urge all Members to support this resolution's passage, and I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself as much time as I may consume for the purpose of closing.

Mr. Speaker, Yevgeniy Prigozhin is an enemy of democracy and an adversary of the U.S. and our allies.

From sowing discord and division through disinformation campaigns to stoking violent conflicts around the world, Prigozhin is a dangerous Putin crony.

This bipartisan measure condemns Prigozhin's nefarious activities and demonstrates Congress' support for continued cooperation between the United States and our European allies to hold him and his Kremlin partners accountable.

Mr. Speaker, I hope my colleagues will join me in supporting its passage, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and agree to the resolution, H. Res. 996, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

A motion to reconsider was laid on the table.

CONDEMNING POLITICALLY MOTIVATED IMPRISONMENT AND CALLING FOR IMMEDIATE RELEASE OF POLITICAL PRISONERS IN RUSSIAN FEDERATION

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 958) condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse, as amended.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 958

Whereas the right to liberty and security of a person and the protection from arbitrary imprisonment are among the principal human rights guaranteed by Article 9 of the International Covenant on Civil and Political Rights, Article 23 of the Concluding Document of the Vienna Meeting of the Conference on Security and Cooperation in Europe, and Article 5 of the European Convention on Human Rights;

Whereas the Russian Federation, as member of the United Nations, the Organization for Security and Cooperation in Europe (OSCE), and the Council of Europe, is bound by international commitments with regard to human rights and the rule of law;

Whereas, on October 3, 2012, the Parliamentary Assembly of the Council of Europe adopted Resolution 1900 (2012) which defined anyone whose ''detention has been imposed in violation of one of the fundamental guarantees set out in the European Convention on Human Rights and its Protocols'' and ''is the result of proceedings which were clearly unfair and . . . appears to be connected with political motives of the authorities'' as a political prisoner;

Whereas based on the criteria of the Parliamentary Assembly of the Council of Europe Resolution 1900 (2012), the Memorial Human Rights Center, a Russian nongovernmental organization, estimates that there are currently more than 300 political prisoners in the Russian Federation, a six-fold increase since 2015;

Whereas the Memorial Human Rights Center list of Russian political prisoners includes journalists, civil society activists, human rights advocates, participants of peaceful organizations, and Ukrainian citizens from illegally annexed Crimea;

Whereas the Russian Federation's longest-detained political prisoner, Alexey Pichugin, has been incarcerated since June 19, 2003, in violation of two rulings by the European Court of Human Rights and the opinion by the United Nations Working Group on Arbitrary Detention;

Whereas investigative journalist and former editor of the independent newspaper Noviye Kolyosa, Igor Rudnikov was held in pretrial detention from November 1, 2017, until June 17, 2019, on alleged extortion charges, which were later dropped by the court;

Whereas Igor Rudnikov's detention and charges were criticized by the OSCE Representative on Freedom of the Media and Reporters without Borders, calling them ''clearly trumped-up'' and ''an act of political revenge'', respectively;

Whereas opposition activist Konstantin Kotov was sentenced to 1.5 years imprisonment on April 20, 2020, for participating in peaceful demonstrations, in a ruling Amnesty International has described as ''a profound injustice'';

Whereas Anastasia Shevchenko, an activist in the Open Russia movement, has been held under house arrest since January 23, 2019, on the charge of belonging to an ''undesirable'' organization and has been designated by Amnesty International as a prisoner of conscience;

Whereas Yuri Dmitriev, a leader of Memorial Society's branch in the Republic of Karelia region of the Russian Federation who has worked to document mass burial sites from Stalin-era executions, has been held in detention since June 28, 2018, on charges of child pornography that Human Rights Watch has described as ''bogus'' and part of an ongoing ''smear campaign'', and was sentenced to 13 years in prison on September 29, 2020;

Whereas Dennis Christensen, a Jehovah's Witness and a Danish citizen, was sentenced to 6 years' imprisonment on February 6, 2019, in a decision condemned by the United States Commission on International Religious Freedom as part of the broader pattern of the Russian Government ''engaging in or tolerating severe violations of religious freedom'';

Whereas, on February 10, 2020, 7 activists from Russia's Penza Oblast were sentenced to terms of 6 to 18 years for alleged membership in a terrorist group following a detention marked by torture, ill-treatment to extract confessions, and periods held incommunicado;

Whereas Human Rights Watch described the case as an example of the Russian authorities ''abusing counterterrorism laws to silence critics and deny fundamental human rights'';

Whereas, on August 6, 2020, a court in Moscow sentenced seven activists to between four years suspended and sevem years in prison for participating in an alleged extremist organization, ''The New Greatness'', after an investigation marked by the use of provocateurs, torture, ill-treatment, and forced confessions, in what the Memorial Human Rights Center and the Moscow Helsinki Group have described as a ''politically motivated case'' aimed at ''suppressing the freedom of expression'';

Whereas, on June 18, 2019, the Department of State affirmed that ''the United States is deeply concerned by the growing number of individuals . . . identified by credible human rights organizations as political and religious prisoners held by the Government of the Russian Federation'' and called on the Government of the Russian Federation ''to release all those identified as political or religious prisoners immediately and cease its use of the legal system to suppress dissent and peaceful religious practice'';

Whereas, on January 28, 2020, 43 parliamentarians from 16 European countries introduced a Resolution in the Parliamentary Assembly of the Council of Europe to appoint a rapporteur ''to examine the growing crisis with politically motivated imprisonments in the Russian Federation''; and

Whereas, on June 29, 2020, the Parliamentary Assembly of the Council of Europe's Legal Affairs Committee appointed Icelandic lawmaker Thorhildur Sunna Aevarsdottir to serve as the rapporteur on political prisoners in Russia: Now, therefore, be it

Resolved, That the House of Representatives—

(1) condemns the practice of politically motivated imprisonment in the Russian Federation that violates the country's international obligations on human rights and the rule of law and expresses its solidarity with all those unjustly imprisoned in the Russian Federation;

(2) calls on the Government of the Russian Federation to immediately release individuals designated by the Memorial Human Rights Center as political prisoners under the criteria of the Parliamentary Assembly of the Council of Europe Resolution 1900 (2012), including Alexey Pichugin, Konstantin Kotov, Anastasia Shevchenko, Yuri Dmitriev, and Dennis Christensen;

(3) urges the United States Government, in all its interactions with the Government of the Russian Federation, to raise individual cases of Russian political prisoners and advocate for their release; and

(4) calls on the Secretary of State and the Secretary of the Treasury to use their authority under the Sergei Magnitsky Rule of Law Accountability Act of 2012 (title IV of Public Law 112–208), the Global Magnitsky Human Rights Accountability Act (subtitle F of title XII of Public Law 114–328), and other applicable United States statutory authorities to designate officials of the Government of the Russian Federation who are responsible for human rights abuses in the form of politically motivated imprisonment.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Res. 958.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of H. Res. 958, which condemns politically motivated imprisonment by the Russian Government and calls for the immediate release of all political prisoners in Russia.

According to the Memorial Human Rights Center, there are more than 300 political prisoners in Russia today. These prisoners are human rights advocates, journalists, Ukrainians from Crimea, and American citizens like Paul Whelan and Trevor Reed.

It has been common practice for the Kremlin to target opposition figures as an act of political revenge. Russian authorities regularly abuse counterterrorism laws and Interpol's Red Notice system to silence critics and deny them fundamental human rights.

We must not only condemn these abuses, but we must increase the economic and political cost for Russian officials who engage in unjust imprisonments and political retaliation.

This resolution calls on the Departments of State and Treasury to use the Sergei Magnitsky Rule of Law Accountability Act of 2012 and the Global Magnitsky Human Rights Accountability Act to pursue Russia officials who are responsible for or complicit in politically motivated imprisonment. I remember in 2012, we all worked together to put this very important law on the books.

No one deserves to be used as a political pawn by Vladimir Putin. It is critical that Congress strongly condemns and takes action against Russia's wrongful imprisonments.

Mr. Speaker, I urge my colleagues to support this measure, and I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I have said many times that Vladimir Putin is not our friend. Under his command, the Russian Government has invaded Georgia, started a war with Ukraine, assisted Bashar al-Assad's murderous campaign in Syria, and meddled in our elections.

But he is not just a threat to international security. Vladimir Putin is an enemy of democracy. We know this by his brutal actions that he has taken against his own people.

Over the last 20 years, under Putin's control, Moscow has chipped away at the few political freedoms once enjoyed in Russia. Media outlets have been shut down; political parties have been attacked; opposition figures have been assassinated; and activists have been thrown in jail.

This is not the future that so many in Russia had hoped for when the Iron Curtain was lifted. Now, hundreds of

political prisoners occupy cells in Russian jails. They aren't there because they are bad people. They aren't there because they are real criminals. They are there because Vladimir Putin is afraid of them. He doesn't want them to challenge his authority. He doesn't want them to have a voice.

Today, we have a chance to provide a voice for the people Putin has tried to silence. This resolution condemns the practice of jailing individuals for political purposes and calls for the release of all political prisoners in Russia. It also urges the administration to impose sanctions on Russian officials who are complicit in human rights abuses.

Once again, I want to thank my good friend, Chairman ENGEL, for introducing this bill. He has been a great champion for victims of tyranny his entire career. I am grateful for all of his hard work.

Mr. Speaker, I urge my colleagues to support this resolution, and I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

Mr. Speaker, first, I want to thank my friend, the ranking member of the Foreign Affairs Committee, Mr. MCCAUL. It has been a pleasure working closely with him on so many pieces of legislation. I know that the work will continue, and we will continue to keep in touch and make sure that we go the right way in trying to stop these human rights abuses all over the world.

The number of political prisoners in Russia has increased by sixfold since the year 2015. This is what we have come to expect from Vladimir Putin's Russia: Blatant disregard for human rights and rule of law.

The United States must stand firm against Russia's practice of politically motivated imprisonment and impose sanctions against anyone responsible for these human rights abuses. It is really important that the U.S. Congress stand up and do this. It is really important that we do it, regardless of political party.

It is really important to send Putin a message that we are not going to sit idly by and allow him to do his bad work. He has interfered with our elections. He has tried again. He succeeded some of the time; he didn't succeed in other times. But we want him to stay away, and we want the people of Russia to have a government where they can feel free, not one where they feel the boot on their neck all the time.

We need to stand firm against Russia's practice of politically motivated imprisonment and impose sanctions against anyone, even Putin, responsible for these human rights abuses.

Mr. Speaker, I urge Members to support H. Res. 958, and I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a member of the Tom Lantos Commission for Human Rights and a former member of the Commission on Security and Cooperation in Europe, I rise in strong support of this bipartisan resolution, H. Res. 958, ''Condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse.''

For years, Russia's human rights record has continued to deteriorate, with the rights to freedom of expression, association, and peaceful assembly consistently restricted, both by law and in practice.

Most often, the people who are courageous enough to attempt exercising their most basic human rights, including freedom of the press and freedom of speech, face reprisals, ranging from harassment to police ill-treatment, arbitrary arrest, heavy fines, and, in some cases, criminal prosecution and imprisonment.

Among the Kremlin's political prisoners are journalists, opposition activists, peaceful protesters, adherents of ''prohibited'' religious groups, such as Jehovah's Witnesses, as well as members of ''undesirable'' political organizations like Open Russia, an organization that has done a lot to support victims of human rights violations in Russia.

In fact, several human rights defenders and NGOs have been targeted within Russia under the laws on ''foreign agents'' and ''undesirable organizations''.

Mr. Speaker, this resolution seeks to do three things:

Condemn the practice of politically motivated imprisonment by the Russian government, particularly under the leadership of President Vladimir Putin;

Call for the immediate release of those designated as political prisoners in the Russian Federation; and

Urge the current Administration to impose sanctions on those responsible for these human rights abuses using the Sergei Magnitsky Rule of Law Accountability Act, the Global Magnitsky Human Rights Accountability Act, or other authorities.

By passing this resolution today, we are sending a bipartisan message to the Russian Government that we see the violations of human rights that are occurring, and we will not stand idly by while people who are fighting for progress are tortured and ill-treated.

Furthermore, counter-terrorism provisions are widely used to target dissent across the country and in Crimea, and torture tactics remain pervasive, as does impunity for its perpetrators.

Last year, due to the growing disconnect between the authorities and general public, there was an increase in street protests, ranging from political to economic to social and even to environmental issues.

In July and August of 2019, more than 2,600 people were arrested during protests in Moscow, which had remained peaceful until the police and National Guard officers forcibly intervened.

According to Amnesty International, there were numerous reports of arbitrary arrest, use of excessive, as well as indiscriminate force and ill-treatment of protesters by the officers, but none of these cases were known to have been investigated.

As a fierce defender of human rights and the world's oldest democracy, the United States has a duty to the world to speak up in the face of injustice and when violations of international commitments, including the incarceration of political prisoners, occur.

It is our responsibility as Members of Congress to pass this resolution today in order to urge the Russian Federation to release its political prisoners and respect the basic human rights of its citizens.

I urge all Members on both sides of the aisle to join me in voting for H. Res. 958, ''Condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse.''

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and agree to the resolution, H. Res. 958, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

A motion to reconsider was laid on the table.

EXPRESSING CONCERN OVER DETENTION OF AUSTIN TICE

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 17) expressing concern over the detention of Austin Tice, and for other purposes, as amended.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 17

Whereas Austin Tice is a 39-year-old veteran, having served in the Marine Corps as an infantry officer, a Georgetown law student, and a graduate of Georgetown University, from Houston, Texas;

Whereas Austin is an Eagle Scout, National Merit Scholarship finalist, and eldest of seven children;

Whereas Austin was a contributing freelance journalist to McClatchy Newspapers, the Washington Post and other media outlets, and a recipient of the 2012 George Polk Award for War Reporting;

Whereas, in May 2012, Austin crossed the Turkey-Syria border to report on the intensifying conflict in Syria;

Whereas, on August 11, 2012, Austin celebrated his 31st birthday in Darayaa, Syria;

Whereas, on August 14, 2012, Austin departed for Beirut, Lebanon, was detained at a checkpoint near Damascus, Syria, and contact with family, friends, and colleagues ceased;

Whereas, in late September 2012, a video clip appeared on YouTube showing Austin blindfolded and being prodded up a hillside by masked militants;

Whereas in the years since Austin's disappearance, no group has claimed responsibility for his capture;

Whereas the Syrian government has never acknowledged detaining Austin and has denied the same to Austin's parents;

Whereas officials of the United States believe Austin is alive and being held in Syria and that the Syrian government should assist in locating and returning Austin to his family;

Whereas Austin Tice's parents, Marc and Debra Tice, have been diligent in their efforts to find their son, repeatedly meeting

with senior officials of the United States Government, the Syrian government, the United Nations, and many others;

Whereas the Tices have traveled to the Middle East multiple times, most recently in December 2018, seeking Austin's safe release, and Debra Tice spent four months living in Damascus, Syria, for the same purpose;

Whereas the Tices have partnered with Reporters Without Borders to launch campaigns with nearly 270 newspapers and media organizations, highlighting Austin's case in their publications and on their websites;

Whereas institutions and organizations, including Georgetown University, Georgetown Law Center, the National Press Club, the Committee to Protect Journalists, McClatchy, and the Washington Post, have collaborated to raise and maintain public awareness of Austin's detention;

Whereas, on November 18, 2018, then-United States Special Presidential Envoy for Hostage Affairs, Robert O'Brien, said that the United States Government believes Austin Tice is alive;

Whereas at a press briefing on March 19, 2020, President Trump expressed concern for Austin and called on the Syrian government to release him;

Whereas Majd Kamalmaz is a 62-year old Syrian-American psychotherapist, father of four, and resident of Texas;

Whereas Majd is a well-known mental-health professional with experience in disaster relief and post-traumatic care;

Whereas in February 2017 Majd traveled to Syria to visit an elderly family member and aid civilians traumatized by the Syrian civil war;

Whereas on February 16, 2017 Majd's family received word that he had been detained at a checkpoint on his way to Ghouta, outside of Damascus, Syria;

Whereas since February 2017 Majd's family has not heard from him;

Whereas the Syrian government has never publicly acknowledged detaining Majd;

Whereas Majd's family and the Syrian-American community have advocated tirelessly for his immediate release;

Whereas in July 2020, United States Ambassador and Special Presidential Envoy for Hostage Affairs Roger Carstens publicly stated, ''The U.S. Government is in frequent contact with the Kamalmaz family to provide support and information'' and that ''Bringing home Majd, along with all U.S. citizens held hostage or wrongfully detained abroad, has the attention of the highest levels in the U.S. government.''; and

Whereas, as described in the Caesar Syria Civilian Protection Act of 2019 (22 U.S.C. 8791 note), Congress calls on the regime of Bashar al-Assad to release all political prisoners forcibly held within its prison system and to allow access to the same facilities for investigations by appropriate international human rights organizations: Now, therefore, be it

Resolved, That the House of Representatives—

(1) expresses its ongoing concern regarding the capture of Austin Tice in August 2012 and Majd Kamalmaz in February 2017, and their continuing detention;

(2) encourages the Department of State, the intelligence community, and the interagency Hostage Recovery Fusion Cell to jointly continue investigations and to pursue all possible information regarding Austin and Majd's detention;

(3) encourages the Department of State and the Special Presidential Envoy for Hostage Affairs to engage the Syrian government to facilitate Austin and Majd's safe release and return;

(4) encourages the Department of State to work with foreign governments known to have diplomatic influence with the Syrian government; and

(5) requests that the Department of State and the intelligence community continue to work with and inform Congress and the families of Austin Tice and Majd Kamalmaz to the extent possible regarding efforts to secure their safe release and return from detention in Syria.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

□ 1630

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Res. 17.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, in August 2012, American journalist and Marine veteran Austin Tice was abducted while reporting on the ongoing conflict in Syria. Eight years later, Tice continues to be held captive, his family and friends unaware of his condition and whereabouts.

Five years later, another American citizen, Texas resident and psychotherapist Majd Kamalmaz, was detained without cause in northern Syria while visiting an elderly family member and aiding civilians traumatized by the civil war. Kamalmaz has been imprisoned by the Assad regime in Syria ever since without access to the outside world.

The Tice and Kamalmaz families have worked tirelessly to secure the immediate release of their loved ones. Still, Austin and Majd continue to suffer inside Syria. H. Res. 17 encourages the Department of State, the Office of the Special Presidential Envoy for Hostage Affairs, and other U.S. Government entities to work jointly to facilitate Tice and Kamalmaz' safe release and return.

This legislation does not legitimize the Assad regime. I would never do that. For years and years, I have called them out on all of their human rights violations. It is a brutal regime, murdering men, women, and children in the hundreds of thousands.

So, this doesn't legitimize the Assad regime, nor does it legitimize the deplorable tactic of hostage-taking. In fact, it does the opposite.

Passing this resolution is a recognition that our country stands with Austin Tice and Majd Kamalmaz and those like them who have been victims of the Assad regime.

Mr. Speaker, I thank Congressman AL GREEN for introducing this important legislation. I want to also recognize, once again, our committee's ranking member, MICHAEL MCCAUL, for his leadership on this issue. I am proud to support this measure, and I encourage my colleagues to do the same.

Mr. Speaker, I reserve the balance of my time.

PERMANENT SELECT COMMITTEE ON INTELLIGENCE,
HOUSE OF REPRESENTATIVES,
Washington, DC, December 1, 2020.

Hon. ELIOT ENGEL,
Committeee on Foreign Affairs,
House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: I write concerning H. Res. 17, a resolution that expresses concern regarding the 2012 capture and detention in Syria of Austin Tice—a U.S. Citizen, journalist, and veteran of the U.S. Marine Corps; and encourages the Executive Branch to take further actions aimed at bringing about Mr. Tice's immediate and safe return. Certain provisions in the resolution fall within the jurisdiction of the House Permanent Select Committee on Intelligence (HPSCI), as set forth in Rule X of the House of Representatives for the 116th Congress.

In the interest of permitting your committee to proceed expeditiously to floor consideration of this important bill, I am willing to waive this committee's right to sequential referral. By waiving consideration of H. Res. 17, HPSCI does not waive any future jurisdictional claim over the subjects contained in the bill which fall within HPSCI's Rule X jurisdiction. I also ask that our exchange of letters be included in the Congressional Record during consideration of the measure on the House floor.

I continue to be grateful for our committees' longstanding cooperation, both regarding this matter and others. And I continue to strongly support this and other efforts to secure Mr. Tice's immediate and safe return to the United States.

Sincerely,

ADAM B. SCHIFF,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, November 23, 2020.

Hon. ADAM B. SCHIFF,
House Permanent Select Committee on Intelligence,
House of Representatives, Washington, DC.

DEAR CHAIRMAN SCHIFF: I am writing to you concerning H. Res. 17, expressing concern over the detention of Austin Tice, and for other purposes. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the House Permanent Select Committee on Intelligence under House Rule X, and that your Committee will forgo action on H. Res. 17 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of House Permanent Select Committee on Intelligence conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, 3,034 days. That is how long Austin Tice, a former U.S. marine and freelance journalist, has been held captive in Syria. It is far past time that he be returned home to his family in Houston.

Austin has dedicated his life to his country and to serving others. After serving 10 years in the United States Marine Corps, Austin decided to enroll in law school. He wanted to continue helping those who needed help the most. While he was attending Georgetown Law, just down the street from here, he couldn't stop thinking about what he had seen and the people he had met on his tours in the Middle East.

So, before beginning his final year of law school, Austin decided to return to the Middle East. Only this time, it would be to report on the atrocities happening in Syria.

The Assad regime's brutal attacks on its own people were horrifying to hear about. They were even using chemical weapons on their own people.

Unfortunately, there weren't enough reporters on the ground in Syria to verify their crimes or tell the world about the suffering of the Syrian people. So, Austin did what he has always done. He stepped up to the plate and filled a much-needed void in a very dangerous place in order to help those who could not help themselves.

But then, on August 14, 2012, as he was preparing to return home, Austin was captured at a checkpoint in Damascus. Now, more than 8 years later, he is still being held in Syria. Austin is now entering his ninth year of captivity. In just a matter of months, he will turn 40 years old.

Mr. Speaker, that is nine birthdays that he will have missed back home, nine Thanksgiving dinners without his family. Later this month, it will be nine Christmases that his family has had to endure without him.

I have met Austin's parents many times, and it is very tragic and emotional. Each time, I see the pain in their eyes as they describe their tireless efforts to bring him home. That is a pain that only parents can truly understand.

It is up to us here in this Chamber to show the Tice family that we will not tolerate this for another year. Austin deserves to have his life back, and his family deserves to have him back.

Mr. Speaker, with this resolution, we once again urge the administration to continue working to bring Austin home. The State Department should use all the tools at its disposal to ensure his safe and immediate return.

Congress will not rest, and I will not rest, and my colleague, Congressman GREEN, will not rest until Austin and the other American hostages detained abroad have been safely reunited with their families.

Mr. Speaker, I thank my dear friend and colleague, Congressman AL GREEN, for his introduction of this bill. The Tice family are his constituents. He has stood by them day in and day out over the past years. He and I, working together with other Members in this Chamber, will bring Austin home, finally.

Mr. Speaker, I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield 5 minutes to the gentleman from Texas (Mr. GREEN), the author of this important resolution.

Mr. GREEN of Texas. Mr. Speaker, I thank the chairperson of the committee, Mr. ENGEL, and the ranking member of the committee, Mr. MCCAUL, for supporting this legislation.

Mr. Speaker, I am on a mission of mercy. I have been on a mission of mercy for 8 years because it has been more than 8 years now that Austin Tice has been detained in Syria. Eight years it has been. That is also how long this family has been grieving.

I, too, know the Tice family. I have met with them multiple times and talked with them multiple times today, in fact.

I am grateful to many people who have made it possible for this resolution to come to the floor, so I think it important that I immediately thank them.

Mr. Speaker, I want to thank Speaker PELOSI because I talked to her personally about the Tice situation. I thank Majority Leader HOYER; I had a conversation with him. I want to thank Congressman HILL for his steadfast resolve to not only help Austin but to help Dr. Kamalmaz, his constituent.

Again, Chairman ENGEL has been stellar, superb, and supreme in allowing this to come to the floor. Mr. MCCAUL has been a great partner. He has demonstrated the kind of bipartisanship that the public expects from us on issues such as these. Of course, I thank the 41 cosponsors of this legislation.

Finally, I thank the Tice family for having the courage, the strength, the intestinal fortitude to stay with it. Never one time have they given up on the belief that their son, their eldest son, can be returned home to them.

Who was Austin Tice? Well, he loved his country. He loved his country. He went to the Marines. He was a Marine captain, a veteran Marine captain. He is such. He played by the rules. At 16 years of age, he was in college. He received his undergraduate degree from Georgetown University School of Foreign Services. He played by the rules.

He went on to get an opportunity to help others. He believed in helping other people. This is why he went to Syria.

He went to those places where few of us would dare to go, and he went because he wanted the world to know what is happening in these distant places. And while he was there, he went missing. A month after he was not heard from, a 43-second video emerged with the title ''Austin Tice is Alive.''

We know that he is alive. We want him back alive. We are asking all who can be of service to do so.

The President has weighed in. He has sent the Tice family a message indicating that he is going to work hard to bring Austin home.

Mr. Speaker, this resolution today is another step in the direction of bringing Austin Tice home. He is a great American. He has played by the rules. He is the kind of son that any one of us would want to have and the kind of son that Debra and Marc Tice are blessed to have. But their blessing should not end with having a son; their blessing should end with having their son with them.

Again, I thank all who have played a role in getting this resolution to the floor.

Mr. MCCAUL. Mr. Speaker, I yield 2 minutes to the gentleman from Arkansas (Mr. HILL), whose constituent is Majd Kamalmaz.

Mr. HILL of Arkansas. Mr. Speaker, I thank my friend, Mr. MCCAUL, for the time and take a moment to salute and provide tribute to Congressman ELIOT ENGEL for his extraordinary service as chair of the House Foreign Affairs Committee. His wise counsel will be missed in this House.

Mr. Speaker, let me thank, too, my good friend on the House Financial Services Committee, a colleague and collaborator on many good things, my friend, Congressman AL GREEN from Houston, for his service and leadership on this important matter.

Austin Bennett Tice, an international correspondent in Syria and a Marine veteran who we have heard about today, has been missing since 2012. And my constituent, Dr. Majd Kamalmaz, a noted child therapist who was in Syria attending the funeral of a relative, has been missing since 2017.

These families deserve certainty and recovery of their loved ones, Mr. Speaker. Both Mr. Tice and Dr. Kamalmaz have called on American and international leaders to bring home their loved ones.

It is our duty to do whatever we can to ensure that these and all other Americans held abroad are returned safely and as soon as possible.

I am grateful for the leadership of President Trump and now National Security Advisor and former Special Envoy for Hostage Affairs Robert O'Brien for their steadfast determination to bring American citizens home.

Our work will not be complete until all Americans are reunited with their families and their loved ones.

We ask for God's blessings on this House floor for those held in captivity and for their loved ones.

Mr. Speaker, I vote in favor, and I urge my colleagues to vote in favor of this important legislation. Let's pull together in this House to bring home our American hostages.

Mr. ENGEL. Mr. Speaker, I yield 1 minute to the gentleman from Texas (Mr. GREEN), the author of this important resolution.

Mr. GREEN of Texas. Mr. Speaker, on an issue such as this, no one should

be left behind who has played a role in helping with this cause. We have mentioned that it is bipartisan, but it is also bicameral.

Senators CRUZ and CORNYN have played a role in helping us to get this message to the world. Mr. Speaker, I want to thank them, the 41 Members who signed on, and all others who signed on to a letter that we sent to the President.

Mr. Speaker, I am grateful for the opportunity to say these words of gratitude and thanks.

Mr. MCCAUL. Mr. Speaker, I yield 3 minutes to the gentleman from Florida (Mr. BILIRAKIS).

Mr. BILIRAKIS. Mr. Speaker, the story of Austin Tice's disappearance and presumed imprisonment is tragic and frustrating.

I met with Austin's loving parents, Marc and Debra, last year in my office, where they told me about the heartbreaking details of his abduction in 2012 at a checkpoint near Damascus on his way to Beirut.

Hearing about Austin, I knew I had to do what I could to try and help, just like these other Members who have spoken earlier. So, with the Tices sitting in my office, I called upon the help of my Syrian-American friend and constituent, Paul Jallo. I put Mr. Jallo on speakerphone as we brainstormed with Marc and Debra as to how we could navigate the treachery of this situation on the ground in Syria.

□ 1645

Paul vowed to enlist the assistance of his family and friends living in Damascus to try and garner critical information as to Austin's current location and the identity of his captors. I cannot thank and commend Paul enough for his continued efforts to help the Tices in this ongoing endeavor to determine the status of Austin's well-being.

We are frustrated, Mr. Speaker, that we still can't confirm with any degree of certainty Austin's captors, though we believe that Syrian President al-Assad's government has within its power and influence to see to Austin's release, despite denials of detaining him.

This is unacceptable, Mr. Speaker. Austin was not a combatant, not a threat to al-Assad's regime, and yet he had to endure the terrible fate of imprisonment without acknowledgment. Austin, who proudly served our country as an officer in the United States Marine Corps, deserves better, and his parents, Marc and Deborah Tice, who have tirelessly fought for answers, deserve better.

Today we are going to send a message to the Syrian Government that the United States of America has not forgotten about Austin Tice and that we will not give up on him.

Today we are here, and we are going to stand up and fight for someone who put himself in the face of danger to make sure that we always knew the truth of what went on in Syria and continues to go on.

Please join me in supporting this resolution and sending a powerful message.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I thank Chairman ELIOT ENGEL, Representatives GREEN, BILIRAKIS, FRENCH HILL, and so many of my other colleagues on both sides of the aisle for supporting this important measure.

Austin Tice dedicated his life to service. From his time in the Marine Corps to his reporting on the brutal civil war and humanitarian crisis in Syria, he lived to improve the lives of others.

Think about it: Austin went to Syria to document some of the most brutal crimes against humanity so the world would see it, to expose what Assad has done to his own people to the world, and the price he had to pay for that is to be put into a Syrian prison.

It is far past time that we repay Austin for his service, not only to our country, but to the world to expose these war crimes, to expose what was happening over there, and the courage he had to go over there to photograph. By bringing him home to his friends and his family, that is the way we pay him back. We have to use every tool at our disposal within the United States Government to bring him home to his family.

Again, I want to thank all those involved, and in particular, Congressman GREEN, who represents the family, whom we have talked to extensively.

This is one of those measures that is really an emotional one from the heart because we are talking about the life of a patriot who is trapped in a very bad prison in Syria overseas and cannot get out, and it has been 8 years—8 years, for God's sake, Mr. Speaker. It is time to bring Austin home.

Mr. Speaker, I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself the balance of my time for the purpose of closing.

Today's resolution calls for the immediate release of American citizens Austin Tice and Majd Kamalmaz, who have been unjustly held in Syria. It is time the Assad regime heeds our calls and works with the U.S. Government to secure their return home.

I have been a critic of the Assad regime in all the years I have been in Congress, which is 32 years. The Assad regime has been brutal with its own people, has murdered so many of its own people, and I know that Mr. MCCAUL will remember not so long ago, on the Foreign Affairs Committee, someone smuggled in a bunch of photographs that were taken in Syrian prisons. They were horrific and reminded one of the 1930s and 1940s with the genocide in Europe.

It is time the Assad regime heeds our calls and works with the U.S. Government to secure the prisoners' release home. The immediate release of American citizens Austin Tice and Majd Kamalmaz is very important to us.

As you have heard, they have been unjustly held in Syria, and we are not going to let it go. We are not going to stop until they are released. It is the right thing to do, and it is the only thing that we can do.

I again thank Congressman GREEN for introducing this bipartisan resolution. I thank Mr. MCCAUL for working with us on this.

Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a cosponsor, a mother, and a senior member of the House Judiciary Committee, I rise in strong support of this bipartisan resolution, H. Res. 17, ''Expressing Concern Over the Detention of Austin Tice, and for other purposes.''

In May of 2012, the summer before Austin's final year at Georgetown Law School, he chose to go to Syria as a freelance journalist to cover the country's civil war.

Austin felt compelled to tell the story of the horrific and ongoing conflict there as well as its impact on the people of Syria.

On August 14, 2012, Austin departed from the town of Darayya, a suburb of Damascus, to travel to Lebanon, but shortly after leaving, he was detained at a Syrian check point.

Five weeks later, a 43-second video emerged online with the title, ''Austin Tice is Alive'', showing Austin being held by a group of unidentified men with assault rifles, but there was no other message that accompanied the video.

Even still today, no group has claimed responsibility for his capture nor have there been any demands in exchange for his release.

Austin Tice was not a combatant.

He was simply a young man doing his job, yet he has, without a doubt, had to suffer unimaginable ordeals and face the dangers of conflict, hostile governments, and rapacious bandits while reporting on the Syrian civil war.

My heart goes out to Austin's parents, Debra and Marc Tice, as well as the rest of his family and loved ones for the pain and uncertainty that they have had to endure for over eight years.

Eight years.

Mr. Speaker, that is over 2,920 days that Austin's mother has had to go without hearing his voice, holding his hand, or seeing his face.

Austin was born and raised in my hometown, Houston, Texas.

He is the oldest of seven siblings, a former U.S. Marine, and his lifelong dream was to become an international correspondent for NPR.

It is no secret that the risk of arrest, abduction, or death make journalism extremely dangerous and difficult in Syria.

In fact, according to Reporters Without Borders, Syria is ranked 174th out of 180 countries in the 2020 World Press Freedom Index.

In 2020 alone, Reporters Without Borders has documented the killings of 40 journalists and 3 media assistants as well as the imprisonment of 260 journalists, 122 citizen journalists, and 12 media assistants in Syria.

Last year, I joined 122 Members of the House of Representatives and over 50 Senators in a bipartisan letter to the President, demanding that his Administration act to facilitate Austin's release from Syria.

With that letter and this resolution, I am once again calling on the Department of State, the Office of the Special Presidential Envoy for Hostage Affairs, and other U.S. government entities to engage with Syria for the purpose of securing Austin's safe release.

From serving in Afghanistan and Iraq as a Marine to working as a journalist dedicated to delivering vital news to the American people, Austin Tice spent his life giving back and showing up for this country.

Now we need to do the same for him and bring him home.

I am honored to be a leader on this resolution, and I wish to thank my colleague and good friend from Texas, Representative AL GREEN, for his leadership on this resolution.

I urge all Members on both sides of the aisle to join me in voting for H. Res. 17, "Expressing Concern over the Detention of Austin Tice, and for other purposes."

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and agree to the resolution, H. Res. 17, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

The title of the resolution was amended so as to read: ''A resolution expressing concern over the detention of Austin Tice and Majd Kamalmaz, and for other purposes.''.

A motion to reconsider was laid on the table.

CALLING FOR IMMEDIATE RELEASE OF TREVOR REED

Mr. ENGEL. Mr. Speaker, I move to suspend the rules and agree to the resolution (H. Res. 1115) calling for the immediate release of Trevor Reed, a United States citizen who was unjustly sentenced to 9 years in a Russian prison, as amended.

The Clerk read the title of the resolution.

The text of the resolution is as follows:

H. RES. 1115

Whereas United States citizen Trevor Reed is a resident of Granbury, Texas, and a United States Marine Corps veteran;

Whereas Trevor Reed traveled to Moscow to visit his girlfriend on May 16, 2019;

Whereas Moscow's Police Service detained Trevor Reed on August 16, 2019;

Whereas Trevor Reed was accused of grabbing the arm of the police officer driving the vehicle and elbowing another officer while en route to the police station, causing the vehicle to swerve and therefore endangering the lives of the police officers;

Whereas the United States Embassy in Moscow has filed numerous diplomatic complaints with the Russian Foreign Ministry regarding Trevor Reed being denied consular access, communications, medical treatment, family visitations, and other violations of the Vienna Convention on Consular Relations;

Whereas Trevor Reed's defense team presented video evidence from traffic camera footage to the courts that disproves the police officers' statements of supposed endangerment and wrongdoing;

Whereas Trevor Reed's defense team was denied access to additional video evidence from the police vehicle and police station that had the potential to prove his innocence;

Whereas the police officers claimed emotional and physical damages, but did not sustain any visible injury, or claim any time missed from work;

Whereas the Constitutional Supreme Court of the Russian Federation and the Second Court of Cassation of General Jurisdiction concurred that Russian procedural law was violated in the way that Trevor Reed's bail was revoked;

Whereas the United States Embassy in Moscow has filed complaints with the Russian Foreign Ministry regarding denial of communications with Trevor Reed;

Whereas during the trial, the defense counsel presented 59 minutes of traffic camera video that showed the police car—

(1) did not change direction or leave its lane;

(2) did not swerve; and

(3) did not stop or slow down;

Whereas, on July 30, 2020, Golovinsky District Court Judge Arnout read a verdict that dismissed all defense evidence, witnesses, and government experts and included information from the investigator's case files that were not discussed or read into the court files;

Whereas the judge sentenced Trevor Reed to 9 years in prison camp and was ordered to pay 100,000 rubles to each police officer for moral and physical injuries;

Whereas Trevor Reed had already been detained in Russia for 1 year at the time of the judge's verdict; and

Whereas, the United States Ambassador to Russia, John Sullivan, upon Trevor's sentencing, stated that the prosecution's case and the evidence presented against Mr. Reed were ''so preposterous that they provoked laughter in the courtroom'', the conviction and sentence were ''ridiculous'', and ''justice was not even considered'': Now, therefore, be it—

Resolved, That the House of Representatives—

(1) expresses support for Trevor Reed, Paul Whelan, and all prisoners unjustly imprisoned in the Russian Federation;

(2) condemns the practice of politically motivated imprisonment in the Russian Federation, which violates the commitments of the Russian Federation to international obligations with respect to human rights and the rule of law;

(3) urges the United States Government, in all its interactions with the Government of the Russian Federation, to raise the case of Trevor Reed and to press for his release;

(4) calls on the Government of the Russian Federation to immediately release Trevor Reed and all other prisoners arrested for political motivations;

(5) urges the Government of the Russian Federation to provide unrestricted consular access to Trevor Reed while he remains in detention as required under the Vienna Convention on Consular Relations;

(6) calls on the Government of the Russian Federation—

(A) to provide Trevor Reed any necessary medical treatment and personal protective equipment;

(B) to notify the United States Embassy in Moscow of any medical problems or complaints that arise during his detention; and

(C) to provide the United States Embassy in Moscow with full access to all of Trevor Reed's medical records;

(7) urges the Government of the Russian Federation to respect Trevor Reed's universally recognized human rights; and

(8) expresses support to the family of Trevor Reed and commitment to bringing Trevor Reed home.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New York (Mr. ENGEL) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from New York.

GENERAL LEAVE

Mr. ENGEL. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H. Res. 1115.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of H. Res. 1115, calling for the immediate release of Trevor Reed.

I would like to thank my colleague, Mr. CONAWAY, for introducing this bipartisan resolution.

In 2019, U.S. citizen and former Marine Trevor Reed traveled to Russia. While on his trip, Moscow's Police Service detained and held Reed for over a year. On July 30, 2020, Reed was convicted of trumped-up assault charges and sentenced to 9 years in a Russian prison camp.

During his sham of a trial, Mr. Speaker, traffic camera footage disproved the charges, and even the Russian judge laughed at the prosecution's absurd attempts to provide evidence. Despite this, Trevor Reed's defense team was denied access to additional video footage from the police vehicle and station that could have provided further proof of his innocence.

While it is no surprise that Putin and his cronies didn't conduct a fair trial, it is appalling that Trevor is being held without medical treatment during a global pandemic and being denied consular access and communication with his family.

H. Res. 1115 not only calls for the immediate release of Trevor, but expresses support for all unjustly detained prisoners in Russia and urges U.S. officials to raise Trevor's case during all interactions with the Russian Government. The resolution also demands that Russia provide the regular consular access and proper medical care afforded to Trevor through the Vienna Convention.

Again, I thank Mr. CONAWAY for his commitment to bringing Trevor, a fellow Texan, home.

Mr. Speaker, I urge my colleagues to support this measure, and I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, Trevor Reed is a 29-year-old Texas resident and former United States Marine who served his country with distinction. He was an Eagle Scout and a Texas Rangers fan, a dedicated son and brother.

He is not a criminal; yet the Putin regime treated him like one, sentencing him to 9 years in a Russian prison for a crime he did not commit. In fact, Trevor was only charged with a fabricated crime after the Russian police discovered that he was a former U.S. Marine and, thus, in their eyes, a political pawn that could be used.

The evidence presented in the courtroom during his case was so flimsy that it induced laughter from those in the room, including the Russian judge. What a joke.

So I stand here today once again to call for Trevor Reed's immediate release so he can return home to his family, where he belongs.

This is an issue very close to my heart. Just a few months ago, Trevor's mother flew out to D.C. to join me and Congressman CONAWAY as we introduced this resolution. Paula told us how her son was attending college in pursuit of the American Dream before Putin took that away from him. And she told us how her husband, Joey Reed, spends most of his time in Russia, working every single day to bring his son home where he belongs.

As a father of five myself, I cannot imagine being in their shoes, knowing their son is suffering in a Russian prison for a crime he did not commit and feeling helpless to do anything about it.

Mr. Speaker, Paula and Joey and Trevor, they need us. They need their Congressmen and -women to fight for them today.

Passing this resolution will send a strong message to Putin and his cronies that America will not stand by idly as they hold American citizens as political pawns, including Michael Calvey and Paul Whelan. It will demonstrate that Congress stands firmly with Trevor, Paula, Joey, and their entire family, along with the other American hostages abroad, and that we will continue to fight until we bring Trevor home and give him back his future.

The holiday season is here upon us once again, and Trevor deserves to spend this Christmas with his family in the comfort of his home, not alone in a cold prison cell.

Mr. Speaker, I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, if I can take a point of personal privilege, this may be perhaps the last time I appear with my dear friend MIKE CONAWAY on this distinguished floor. We came in together, Mr. Speaker, with you, as well. I remember it 16 years ago. My, has time gone fast.

But the time you have served, Mike, in this Congress and spoken in this Chamber, as you chaired the Agriculture Committee and served on the House Intelligence Committee, sir, let me just say how proud I am to call you a friend. You have served your country and your constituents with honor and distinction, and I am proud to have served with you and proud to call you a friend.

Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. CONAWAY), the sponsor of this bill.

Mr. CONAWAY. Mr. Speaker, I thank my colleague from Texas for yielding and for those very kind words. I thank Chairman ENGEL and Mr. MCCAUL, the ranking member, for bringing this resolution forward.

I rise today in strong support of the passage of my resolution calling for the immediate release of Trevor Reed.

For the past 475 days, Trevor Reed, an eighth-generation Texan, Eagle Scout, and, more importantly, a United States Marine veteran, has been held in a Russian prison camp for crimes he did not commit.

The Putin regime is clearly using Trevor as a political pawn. If they do not release him, he will be forced to serve an additional 9 years in a Russian prison camp, making it almost 10 years, total, that Trevor and his family will endure this nightmare.

Trevor was initially detained by Moscow's Police Service in August of 2019 for public intoxication, but after the Russian intelligence agency identified him as a U.S. Marine, they upped the charge, now accusing him with endangering the lives of two police officers.

□ 1700

Their claims were undeniably disproved by Trevor's defense team. The accusation, and the lack of evidence to support it, was so absurd that even the Russian judge erupted in laughter during his trial. Yet the judge disregarded all evidence, witnesses, and government experts by choosing to sentence Trevor to the harshest punishment ever given for this alleged crime in this particular classification.

Vladimir Putin has repeatedly threatened our Nation and bullied our allies around the globe. His antagonism and animosity towards our country, our people, and our ideals holds no bounds.

We are now seeing our own innocent citizens and their families caught in the middle of Putin's reprehensible political games.

Mr. Speaker, an entire decade of this man's life is at stake. I urge my colleagues to support this resolution with a strong message to Vladimir Putin: the House of Representatives solidly stands against an American citizen being used as a political pawn. Free Trevor Reed.

Mr. Speaker, I thank my colleague for his kind words again.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. KINZINGER).

Mr. KINZINGER. Mr. Speaker, I thank the gentleman for yielding, and I thank the chairman and the ranking member for bringing this to the floor.

When we think about Russian prisons, we don't often think about justice because, frankly, justice is at the whim of Vladimir Putin, the man who poisons citizens on NATO territory and uses the bludgeon of a hammer to actually get his will and power.

So sometimes I think when we as Americans look at our political debates, we look at it as a form of dysfunction when, in reality, while the debate can be dysfunctional, it is very functional that we are having them.

But in this case, I think it needs to be clear that we stand up for American citizens no matter what, and we don't care what their political stripes are when they are detained by somebody like Vladimir Putin.

This resolution calls for the immediate release of Trevor Reed. He is a U.S. citizen, he is a Marine Corps veteran, and he was unjustly sentenced to 9 years in a Russian prison.

He has been detained for over a year now on baseless charges filed through an overtly corrupt trial.

His lawyers have been denied access to the so-called evidence that the Russian authorities used to detain Trevor.

After speaking with his mother, I have learned that his family has had a difficult time talking to him on the phone, limited interaction, because the authorities will not let Trevor communicate in English and they give him only a few calls home.

It is an abuse of power and it is a clear attempt by the Russians to make an example of Trevor, an American, and this must be rectified immediately.

Mr. Speaker, I applaud my colleagues for bringing up this important measure to the floor today.

Mr. Speaker, I thank Mr. CONAWAY and I thank the chair and ranking member. I thank Chairman ENGEL for his many, many years of service as well on the committee and in this House.

Mr. ENGEL. Mr. Speaker, I reserve the balance of my time.

Mr. MCCAUL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, in closing, I thank my friend and fellow Texan, Representative CONAWAY, who represents the family, for introducing this important resolution.

I have engaged the highest levels of government in this case, Trevor's case, from Deputy Secretary Biegun to Special Envoy for Hostage Affairs, Roger Carstens.

And now I am proud to join many of my colleagues and fellow Texans from both sides of the aisle in supporting this resolution and raising more awareness about Trevor's case.

So to Trevor and the Reed family, I would just like to say to you that Texas is with you and America is with you. We will stand by you and with you here in the Congress every day until we finally bring Trevor home.

So, again, Mr. Speaker, I thank my dear friend, Congressman CONAWAY, who sponsored the legislation. I thank Chairman ENGEL.

Another point of personal privilege: I think that this will not be the last day

we speak on the floor. I believe on Monday we will have another opportunity to be together, and I would love to deliver some special remarks about my favorite chairman.

Mr. Speaker, I yield back the balance of my time.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume for the purpose of closing.

Mr. Speaker, again, I thank Mr. CONAWAY for his work on this bipartisan measure that calls on the Russian Government to drop the trumped-up charges against Trevor Reed and immediately release him from prison.

Trevor and all those unjustly detained in Russia deserve to be released and safely reunited with their families for this holiday season.

Mr. Speaker, I am pleased to support this measure and I urge all Members to do the same.

Mr. Speaker, let me comment on my friend's remarks. It has been a pleasure for me to work with Mr. MCCAUL as the ranking member of the committee and when he was the chairman. We have done incredible work on our committee, both Democrats and Republicans, working together in a bipartisan way. I am very proud of the work we have all done and very proud of the work I have done personally with Mr. MCCAUL. I know we are going to continue to fight the good fight, because we stand for something. We are so blessed to live in this country, and we want to make sure that other people get the same kinds of freedoms that we have.

Again, Mr. Speaker, I support this measure, and I urge all Members to do the same. I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New York (Mr. ENGEL) that the House suspend the rules and agree to the resolution, H. Res. 1115, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the resolution, as amended, was agreed to.

A motion to reconsider was laid on the table.

NATIONAL HERITAGE AREA ACT OF 2020

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1049) to authorize a National Heritage Area Program, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1049

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''National Heritage Area Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.
Sec. 3. National Heritage Area System.
Sec. 4. National Heritage Area System management.
Sec. 5. Study areas.
Sec. 6. Local coordinating entities.
Sec. 7. Property owners and regulatory protections.
Sec. 8. Authorization of appropriations.
Sec. 9. Statutory Clarification.

SEC. 2. DEFINITIONS.

In this Act:

(1) FEASIBILITY STUDY.—The term ''feasibility study'' means a study conducted by the Secretary, or conducted by one or more other interested parties and reviewed and approved by the Secretary, in accordance with the criteria and processes required by section 5, to determine whether a study area meets the criteria to be designated by Federal statute as a National Heritage Area.

(2) INDIAN TRIBE.—The term ''Indian Tribe'' means any Indian or Alaska Native tribe, band, nation, pueblo, village, or other community the name of which is included on the list most recently published by the Secretary of the Interior pursuant to section 104 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 5131).

(3) LOCAL COORDINATING ENTITY.—The term ''local coordinating entity'' means the entity designated by Federal statute to—

(A) carry out, in partnership with other individuals and entities, the management plan for a National Heritage Area; and

(B) operate a National Heritage Area, including through the implementation of projects and programs among diverse partners in a National Heritage Area.

(4) MANAGEMENT PLAN.—The term ''management plan'' means the management plan for a National Heritage Area required under this Act.

(5) NATIONAL HERITAGE AREA.—The term ''National Heritage Area'' means—

(A) each National Heritage Area, National Heritage Corridor, Natural Preservation Commission, National Heritage Canalway, National Heritage Route, Heritage Corridor, Cultural Heritage Corridor, Heritage Partnership, and National Heritage Partnership, the Shenandoah Valley Battlefields National Historic District, or other area designated by Federal statute with the explicit purpose of establishing a national heritage area designated by Congress before or on the date of enactment of this Act; and

(B) each National Heritage Area designated by Federal statute after the date of enactment of this Act, unless the law designating the area exempts that area from the National Heritage Area System by specific reference to this Act.

(6) NATIONAL HERITAGE AREA SYSTEM.—The term ''National Heritage Area System'' means the system of National Heritage Areas established by this Act.

(7) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(8) STUDY AREA.—The term ''study area'' means a specific geographic area that is the subject of a feasibility study under section 5.

(9) TRIBAL GOVERNMENT.—The term ''Tribal government'' means the governing body of an Indian Tribe.

SEC. 3. NATIONAL HERITAGE AREA SYSTEM.

(a) IN GENERAL.—In order to recognize certain areas of the United States that tell nationally significant stories and to conserve, enhance, and interpret the areas' natural, historic, scenic, and cultural resources that together illustrate significant aspects of our country's heritage, there is established a National Heritage Area System through which the Secretary may provide technical and financial assistance to local coordinating entities to support the establishment, development, and continuity of National Heritage Areas.

(b) NATIONAL HERITAGE AREA SYSTEM.—The National Heritage Area System shall be composed of all National Heritage Areas.

(c) RELATIONSHIP TO THE NATIONAL PARK SYSTEM.—

(1) RELATIONSHIP TO NATIONAL PARK UNITS.—The Secretary shall encourage participation and assistance by any unit of the National Park System located near or encompassed by any National Heritage Area in local initiatives for that National Heritage Area that conserve and interpret resources consistent with an approved management plan for the National Heritage Area.

(2) APPLICABILITY OF LAWS.—National Heritage Areas shall not be—

(A) considered to be units of the National Park System; or

(B) subject to the authorities applicable to units of the National Park System.

SEC. 4. NATIONAL HERITAGE AREA SYSTEM MANAGEMENT.

(a) MANAGEMENT PLAN.—

(1) IN GENERAL.—Not later than 3 years after a National Heritage Area is included in the National Heritage Area System outlined by this Act, the local coordinating entity of the National Heritage Area shall submit to the Secretary for approval a management plan for the National Heritage Area.

(2) REQUIREMENTS.—The management plan shall—

(A) incorporate an integrated and cooperative approach for the protection, enhancement, and interpretation of the natural, cultural, historic, scenic, and recreational resources of the National Heritage Area;

(B) be developed using a comprehensive planning approach that includes—

(i) opportunities for stakeholders, including community members, local and regional governments, Tribal governments, businesses, nonprofit organizations, and other interested parties—

(I) to be involved in the planning process; and

(II) to review and comment on draft management plans; and

(ii) documentation of the planning and public participation processes, including a description of—

(I) the means by which the management plan was prepared;

(II) the stakeholders involved in the process; and

(III) the timing and method of stakeholder involvement;

(C) include—

(i) an inventory of—

(I) the resources located in the National Heritage Area; and

(II) any other property in the National Heritage Area that—

(aa) is related to the themes of the National Heritage Area; and

(bb) should be preserved, restored, managed, or maintained because of the significance of the property;

(ii) comprehensive policies, strategies and recommendations for the conservation, funding, management, and development of the National Heritage Area;

(iii) a description of actions that the Federal, Tribal, State, and local governments, private organizations, and individuals have agreed to take to protect the natural, historical, cultural, scenic, and recreational resources of the National Heritage Area;

(iv) a program of implementation for the management plan by the local coordinating entity that includes a description of—

(I) actions to facilitate ongoing collaboration among partners to promote plans for resource protection, restoration, and construction; and

(II) specific commitments for implementation that have been made by the local coordinating entity or any government, organization, or individual for the first 5 years of operation;

(v) the identification of sources of funding for carrying out the management plan;

(vi) analysis and recommendations for means by which Federal, Tribal, State, and local programs, including the role of the National Park Service in the National Heritage Area, may best be coordinated to carry out this subsection; and

(vii) an interpretive plan for the National Heritage Area; and

(D) recommend policies and strategies for resource management that consider and detail the application of appropriate land and water management techniques, including the development of intergovernmental and interagency cooperative agreements to protect the natural, historical, cultural, educational, scenic, and recreational resources of the National Heritage Area.

(3) EXCEPTIONS.—The requirements in paragraph (2) shall not apply to management plans in effect on the date of the enactment of this Act.

(b) EVALUATIONS.—

(1) IN GENERAL.—Not later than 1 year before the authorization for Federal funding expires for a National Heritage Area, the Secretary shall—

(A) conduct an evaluation of the accomplishments of that National Heritage Area; and

(B) prepare and submit a report detailing the evaluation required by subparagraph (A) to—

(i) the Committee on Natural Resources of the House of Representatives; and

(ii) the Committee on Energy and Natural Resources of the Senate.

(2) EVALUATION COMPONENTS.—An evaluation prepared under paragraph (1) shall—

(A) assess the progress of the local coordinating entity with respect to—

(i) accomplishing the purposes of the authorizing legislation for the National Heritage Area; and

(ii) achieving the goals and objectives of the approved management plan for the National Heritage Area;

(B) analyze the Federal, Tribal, State, local, and private investments in the National Heritage Area to assess the impact of the investments; and

(C) review the management structure, partnership relationships, and funding of the National Heritage Area.

(3) RESULTS OF EVALUATION.—Based upon the evaluation under paragraph (1), the Secretary shall prepare a report with recommendations for the National Park Service's continued role, if any, with respect to the National Heritage Area. If the report recommends that Federal funding for the National Heritage Area be—

(A) continued, the report shall include an analysis of—

(i) ways in which Federal funding for the National Heritage Area may be reduced or eliminated over time;

(ii) the appropriate time period necessary to achieve the recommended reduction or elimination; and

(iii) justification for the continued funding in light of other National Park Service core responsibilities and priorities; or

(B) eliminated, the report shall include a description of potential impacts on conservation, interpretation, and sustainability of the National Heritage Area.

(4) UPDATES; ADDITIONAL EVALUATIONS.—

(A) UPDATES.—The Secretary may satisfy the requirement under paragraph (1) for a National Heritage Area by updating an evaluation that was completed for that National Heritage Area not more than 5 years before another evaluation would otherwise be required under paragraph (1).

(B) ADDITIONAL EVALUATIONS.—The Secretary may conduct additional evaluations as the Secretary deems appropriate.

(c) COORDINATION.—The head of any Federal agency planning to conduct activities that may have an impact on a designated National Heritage Area is encouraged to consult and coordinate these activities with the Secretary and the local coordinating entity to the maximum extent practicable.

SEC. 5. STUDY AREAS.

(a) FEASIBILITY STUDIES.—

(1) IN GENERAL.—The Secretary may carry out or certify a study to assess the suitability and feasibility of designating a specific geographic area as a National Heritage Area to be included in the National Heritage Area System.

(2) PREPARATION.—The feasibility study shall be carried out—

(A) by the Secretary in consultation with Tribal, State, and local historic preservation officers, State and local historical societies, State and local tourism offices, and other appropriate organizations and governmental agencies; or

(B) by interested individuals or entities, if the Secretary certifies that the completed study meets the requirements of paragraph (4).

(3) CERTIFICATION.—Not later than 1 year after receiving a study carried out by interested individuals or entities under paragraph (2)(B) the Secretary shall review and certify whether the study meets the requirements of paragraph (4).

(4) REQUIREMENTS.—A study under paragraph (1) shall include analysis, documentation, and determination on whether the study area—

(A) has an assemblage of natural, historic, and cultural resources that—

(i) represent distinct aspects of the heritage of the United States;

(ii) are worthy of recognition, conservation, interpretation, and continuing use; and

(iii) would be best managed—

(I) through partnerships among public and private entities; and

(II) by linking diverse and sometimes noncontiguous resources;

(B) reflects traditions, customs, beliefs, and folklife that are a valuable part of the story of the United States;

(C) provides outstanding opportunities—

(i) to conserve natural, historic, cultural, or scenic features; and

(ii) for recreation and education;

(D) contains resources that—

(i) are important to any identified themes of the study area; and

(ii) retain a degree of integrity capable of supporting interpretation;

(E) includes Tribal governments, residents, business interests, nonprofit organizations, and State and local governments that—

(i) are involved in the planning of the study area;

(ii) have developed a conceptual financial plan that outlines the roles of all participants in the study area, including the Federal Government; and

(iii) have demonstrated support for the designation of the study area;

(F) has a potential local coordinating entity to work in partnership with the individuals and entities described in paragraph (1) to develop the study area while encouraging State and local economic activity; and

(G) has a conceptual boundary map that is supported by the public.

(b) REPORT.—

(1) IN GENERAL.—For each study carried out under subsection (a), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(A) the findings of the study described in subsection (a) for that study area; and

(B) any conclusions and recommendations of the Secretary.

(2) TIMING.—

(A) With respect to a study carried out by the Secretary in accordance with paragraph (2)(A)(i), the Secretary shall submit a report under subparagraph (A) not later than 3 years after the date on which funds are first made available to carry out the study.

(B) With respect to a study carried out by interested individuals or entities in accordance with paragraph (2)(A)(ii), the Secretary shall submit a report under subparagraph (A) not later than 180 days after the date on which the Secretary certifies under paragraph (2)(B) that the study meets the requirements of paragraph (3).

SEC. 6. LOCAL COORDINATING ENTITIES.

(a) DUTIES.—For any year that Federal funds have been made available under this Act for a National Heritage Area, the local coordinating entity for that National Heritage Area shall—

(1) submit to the Secretary an annual report that describes the activities, expenses, and income of the local coordinating entity (including grants to any other entities during the year that the report is made);

(2) make available to the Secretary for audit all records relating to the expenditure of Federal funds and any matching funds; and

(3) require, with respect to all agreements authorizing expenditure of Federal funds by other organizations, that the organizations receiving the funds make available to the Secretary for audit all records concerning the expenditure of the funds.

(b) AUTHORITIES.—The local coordinating entity may, subject to the prior approval of the Secretary, for the purposes of preparing and implementing the approved management plan for the National Heritage Area, use Federal funds made available through this Act to—

(1) make grants to Indian Tribes, a State, a local government, nonprofit organizations, and other parties within the National Heritage Area;

(2) enter into cooperative agreements with or provide technical assistance to the Indian Tribes, State, a local government, nonprofit organizations, Federal agencies, and other interested parties;

(3) hire and compensate staff, which may include individuals with expertise in natural, cultural, and historic resources conservation; economic and community development; and heritage planning;

(4) obtain money or services, including those provided under other Federal laws or programs;

(5) contract for goods or services; and

(6) support activities of partners and any other activities that further the purposes of the National Heritage Area and are consistent with the approved management plan.

(c) PROHIBITIONS ON THE ACQUISITION OF REAL PROPERTY.—The local coordinating entity may not use Federal funds received under this Act to acquire real property or any interest in real property.

(d) HERITAGE AREA COMMISSIONS.—

(1) Section 804(j) of division B of H.R. 5666 (Appendix D) as enacted into law by section 1(a)(4) of Public Law 106–554 (54 U.S.C. 320101 note; 114 Stat. 2763, 2763A– 295; 123 Stat. 1294; 128 Stat. 3802) is amended by striking ''shall terminate'' and all that follows through the period and inserting ''shall terminate on September 30, 2034.''.

(2) Section 295D(d) of Public Law 109–338 (120 Stat. 1833; 130 Stat. 962) is amended by striking ''shall terminate'' and all that follows through the period and inserting ''shall terminate on September 30, 2034.''.

SEC. 7. PROPERTY OWNERS AND REGULATORY PROTECTIONS.

Nothing in this Act shall be construed to—

(1) abridge the rights of any property owner, whether public or private, including the right to refrain from participating in any plan, project, program, or activity conducted within the National Heritage Area;

(2) require any property owner to permit public access (including Federal, Tribal, State, or local government access) to such property or to modify any provisions of Federal, Tribal, State, or local law with regard to public access or use of private lands;

(3) alter any duly adopted land use regulation or any approved land use plan or any other regulatory authority of any Federal, Tribal, or State, or local government, or to convey any land use or other regulatory authority to any local coordinating entity;

(4) authorize or imply the reservation or appropriation of water or water rights;

(5) diminish the authority of the State to manage fish and wildlife including the regulation of fishing and hunting within the National Heritage Area;

(6) create any liability, or have any effect on any liability under any other law, of any private property owner with respect to any persons injured on such private property;

(7) affect the authority of any Federal official to provide technical or financial assistance under any other law;

(8) modify any law or regulation authorizing Federal officials to manage Federal land under their control or limit the discretion of Federal land managers to implement approved land use plans within the boundaries of a National Heritage Area, nor shall this Act be construed to modify, alter, or amend any authorized uses of these Federal lands; or

(9) enlarge or diminish the treaty rights of any Indian Tribe within the National Heritage Area.

SEC. 8. AUTHORIZATION OF APPROPRIATIONS.

(a) IN GENERAL.—Notwithstanding any other provision of law, for each of fiscal years 2020 through 2034, there is authorized to be appropriated not more than $750,000 for each National Heritage Area.

(b) AVAILABILITY.—Amounts made available under subsection (a) shall remain available until expended.

(c) COST-SHARING REQUIREMENT.—

(1) FEDERAL SHARE.—Notwithstanding any other provision of law, including any law designating a National Heritage Area, the Federal share of the total cost of any activity funded with appropriations authorized by subsection (a) shall not be more than 50 percent.

(2) FORM OF NON-FEDERAL SHARE.—The non-Federal share of the total cost of any activity funded with appropriations authorized by subsection (a) may be in the form of in-kind contributions of goods or services fairly valued.

(3) EXCEPTION.—Notwithstanding section 9(b), for each National Heritage Area established before the date of the enactment of this Act without a non-Federal cost share requirement or with a non-Federal cost share requirement of less than 50 percent—

(A) the non-Federal cost share requirement, or lack thereof, shall remain at the previously enacted level for 2 full fiscal years after the date of the enactment of this Act; and

(B) after the period referred to in subparagraph (A), the non-Federal cost share requirement shall increase by 10 percent annually until the non-Federal share is consistent with paragraph (1).

(c) AUTHORITY TO PROVIDE ASSISTANCE.—Notwithstanding any other provision of law, the Secretary may provide assistance to a National Heritage Area during any fiscal year for which appropriations are authorized under subsection (a).

SEC. 9. STATUTORY CLARIFICATION.

(a) AUTHORIZATION LIMITATIONS.—Any provision of law enacted before the date of the enactment of this Act that provides for a termination, expiration, or other time limitation on the authorization for a National Heritage Area is hereby superceded and shall have no effect.

(b) FUNDING LIMITATIONS.—Any provision of law enacted before the date of the enactment of this Act that provides for a termination, expiration, or other limitation on the time or amount of an authorization of appropriations for a National Heritage Area is hereby superceded and shall have no effect.

(c) EVALUATIONS.—Any provision of law enacted before the date of the enactment of this Act that requires the Secretary to conduct an evaluation of or submit a report on the accomplishments of a National Heritage Area is hereby superceded and shall have no effect.

(d) OTHER AUTHORITIES.—Any provision of law enacted before the date of the enactment of this Act that provides for the establishment, management, administration, operation, or otherwise affects a National Heritage Area and is not explicitly otherwise provided for in this Act shall not be affected by this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 1049, sponsored by my friend, Representative TONKO of New York, a fellow member of the Natural Resources Committee.

Mr. Speaker, since 1984, Congress has established 55 National Heritage Areas. These incredible sites protect our diverse historical, cultural, and environmental treasures, from the Erie Canalway to the Great Basin of Utah and beyond, preserving and interpreting unique aspects of our American story.

Heritage Areas are also a major boon for local economies, supporting cultural tourism and driving investment. They are also a great deal for the taxpayer, ensuring that every Federal dollar spent on the program is matched with at least $1 of non-Federal funding.

However, Congress has so far failed to pass a law standardizing the management of this important program, meaning that each site operates under its own authorization.

Both the Obama and Trump administrations have asked Congress to enact a programmatic bill to improve site management and ensure a continued consistent commitment to our National Heritage Areas.

The bill offered today by our colleague would address that need by providing a standard under which these sites would be designated, reviewed, funded, and overseen.

Mr. Speaker, I thank Representative TONKO for his continued work in support of our National Heritage Area program, and I thank Ranking Member BISHOP for working with us to improve this bill in committee.

Mr. Speaker, I urge all of my colleagues to vote in support of H.R. 1049, and I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

With that mask, it is a lot easier to do that, too.

I appreciate the offer to be involved in this lameduck session here today. It is one of those things that you have to take in some kind of stride.

One assumes that if you are coming back here for a lameduck session, there are major issues that need to be done before we actually go back and the next session of Congress can actually take up. Although, I do remember the first time I was elected here, we were voting in January on the budget from the last session of Congress that they had failed to do.

But in all of that, we look at the things that are still before us today, and they are huge issues: what we are going to do with the coronavirus, funding to help with that problem, national defense authorization still yet having to be done, appropriations bills still yet to be passed.

Instead of dealing with those this week, we find ourselves here with these suspensions, most of which will not have a chance of actually going all the way through the system. Many of them should start over again and be done separately. But, at any rate, this is what we have been called back to do.

The Germans had a good word for it: kleinigkeiten.

It is those little things. It is not the major issues of the day. It is the small stuff. Now, admittedly, kleinigkeiten, those little things, sometimes can enable one to get a victory and they can also cause a problem that stops one from success. But what we are dealing with today here on the floor is a whole bunch of kleinigkeiten. So I am happy to be invited to be part of this effort that is here.

I also want to say one another thing, too, as well, because the bills that are on the floor, when they are printed, when they are talked about, will have the sponsors' names, Members of the House, sometimes Senators who are involved in this, and what is never listed

on here is actually the people who make this possible.

□ 1715

I want to make one mention of the staff that we have. It is the staff that does the research. It is they who actually write the bills. It is they who actually conduct the talking points. It is they who organize the session so it can run smoothly.

So the staff that is sitting to your left over there does a huge amount of work that will never be credited in any way, shape, or form, but it should be; working into the night to make sure that what we do here on the floor is possible, and we should recognize them and be grateful.

The staff on my right over here has done the same thing. Lisa Pittman, to my right, has been here for 33 years working in this body, making sure that we do things the right way. She will have forgotten more than—no offense to the Parliamentarians—the Parliamentarians will ever know about how to do things properly, effectively, and with civility. She works tirelessly without asking for the limelight or the effort.

Lisa, at one time, I got you on C–SPAN when you had to come down in the well and hand me a piece of paper. I hope to get you in the CONGRESSIONAL RECORD right now.

To realize that in a month from now I am going to be gone and no one cares; but a month from now, you will also be gone, and there will never be—it will be decades before somebody can actually replace you.

So to the staff that is here, the staff that is on the floor, the staff that has worked on the committee, they should be recognized as best we can for the work that they do to make everything possible. Even though we get the headlines and we get the names in bold type in the articles, there should be given some recognition to staff.

We have a bill that is before us that deals with heritage areas. I congratulate the sponsor of this for taking on something that needs to be done and, even if this does not happen, or if it does happen, still has work that needs to be done on this topic area.

The idea of heritage areas was actually pushed on us by the National Park Service, who wanted to find a way of stopping all the Members from trying to create more national parks in their areas; giving them an alternative.

The idea was to get local governments coming together and forming a cooperative so that they could actually use and increase the tourism and the opportunities for getting people to come and visit these particular areas.

Now, everything that is done in a national heritage area does not need the Federal Government to be involved. Every heritage area could simply, by an interlocal cooperation agreement, simply come to do everything that happens in a heritage area.

The two problems that heritage areas have had in the past are dealing with: number one, ignoring property rights of individuals. The local government can solve that problem by themselves. They don't need us to do it.

Or the idea of assuming responsibilities and powers from local governments. Local governments in an interlocal cooperation agreement can do that by themselves. They don't need a heritage area to accomplish that.

But one thing that heritage areas do that local governments can't do by themselves is give themselves money and that, unfortunately, is why most heritage areas exist, because they will get $700,000 to $800,000 a year just to run these.

See, this was the nice part about it. When this was established in 1994, the chairman of the Parks Subcommittee was from Minnesota, and he claimed that the amount of support is going to be limited. There is a limit of time or the amount of money that the Federal Government can be in a heritage area; 10 years, we are out of there. And then they are on their own, and they will get all the benefits of that conservation.

The idea was heritage areas would be for a limited time with a limited amount of money. And as the gentleman from Hawaii suggested, there are still 55 heritage areas. Not one of them has ever disappeared. Years after the time has gone by, they are still there and still they are getting that $700,000 to $800,000 to run their programs.

The heritage areas are no longer there to try and get the people so they can make things for themselves and handle it. Heritage areas are simply a drain on the budget that no one wants to control. Appropriators don't try and control the spending; authorizers don't try and control the spending. Even the administration, though they talk and complain about it, don't try and do it.

The Clinton administration had a problem with this. The Bush administration asked us to quit doing heritage areas. The Obama administration cut the funding for heritage areas in their proposed budget by 50 percent. And the Trump administration also tried to limit what we were doing with heritage areas.

That is the problem. What we do with heritage areas makes no sense. It doesn't have value to it. It doesn't have responsibility and we are not even rational.

Tennessee has a heritage area for Civil War—what is it really called? Civil War something. The heritage area is the entire State of Tennessee. That is illogical. That is not what it was intended to do.

We have corrupted the idea of heritage areas. And I compliment Mr. TONKO for what he is trying do. He is saying, look, if we are going to have these stupid heritage areas—and it looks like no one has the responsibility to actually go back and do what we originally intended to do; appropriators won't, and we don't seem to do it by ourselves—then at least have some rational reason for why heritage areas are established. Have some kind of standard.

Now, what Mr. TONKO is doing is the first step in coming up with some way of doing this appropriately. It is not near enough. The bill does nothing about the root problem of heritage areas just sucking up $700,000 to $800,000 a year and never, never going away, never getting off the Federal dole. That still needs to be addressed. It doesn't happen in here.

But that is why I appreciate Mr. TONKO going forward with this particular bill because, for once, we need to sit back and say, why are we doing these heritage areas? What is their purpose? What is their value?

If we are not doing it in an intelligent way, then all this becomes is simply pork barrel for certain people to take the money back home to their district, pound themselves on the chest and say, look what I have done, even though it sets the country on a dangerous precedent.

The Federal Government and our Federal spending are in trouble, not because we spend too much, but we spend money on too many things. And that is why we, as a Federal Government, have to prioritize, and so should heritage areas be part of that priority process, and we don't do that.

So, Mr. Speaker, I say to the gentleman, I appreciate this. Whether this gets all the way through, I doubt it. But I hope the gentleman will pick it up again in the next Congress and continue to work forward so we try and look at these heritage areas and say, why are we doing this? What is the purpose? And how can we avoid the objections, the obsessive, the abuse that has happened in many of these areas in the future; so that Tennessee cannot be one heritage area.

So the gentleman is really trying to get local people to work for their own local advantage to appreciate it, and make sure that we do it right way.

So, with that, having tried to emphasize the fact that this is a huge problem, I do want to be very clear that I support this particular bill and I support the gentleman's effort.

We haven't gone far enough, to be honest. There is an amendment we tried to make in the committee which would force heritage areas to lower the amount of money they keep getting from the Federal Government until they are finally weaned off the system. I still think that is the right thing to do. We can talk about that in the future because that is an issue still before us.

Mr. Speaker, I reserve the balance of my time.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

I certainly appreciate the overview of the ranking member in his initial remarks today. I would note that the bills before us today, these 12 bills, are all coming to the floor from the Natural Resources Committee. They are

critical bills in many areas, from natural resources to indigenous peoples and beyond.

Many of these bills actually come to us from the Senate and, if passed here, will go on directly to the President, so this is a productive agenda that we have here with every expectation that these bills will advance.

I also want to say, on behalf of the majority, that I fully endorse the ranking member's commendations to the staff that are with us today and in our Natural Resources Committee. He makes an important and vital point. We all appreciate our staff. We are blessed by their service. We are blessed by their expertise, and I would be remiss if I did not say, on behalf of our chair, Chair GRIJALVA, that we all endorse those comments, and I thank him for those very kind comments.

Mr. Speaker, I yield 3 minutes to the gentleman from New York (Mr. TONKO).

Mr. TONKO. Mr. Speaker, I thank the gentleman from Hawaii for yielding.

Mr. Speaker, I rise today in support of H.R. 1049, the National Heritage Area Act. I thank Chairman GRIJALVA and the staff of the committee for their longtime support and effort here. And I thank Ranking Member BISHOP for recognizing the value of this legislation and working with us on this.

The national heritage areas connect us, and perhaps more importantly, future generations with the voices and places that have shaped who we are as Americans. These sites deliver more than just a significant economic return; they help us reveal the diverse and sometimes hidden gems of our cultural heritage and fill us with a sense of place that brings our complex history to life.

For the first time, this bill establishes a standardized set of criteria for the designation of new national heritage areas and a rigorous process for existing national heritage areas to ensure accountability.

H.R. 1049 has 221 cosponsors, and strong bipartisan, and wide geographic support that speaks to the value of this program locally and nationally. Members recognize what heritage area investment means to their given communities and regions, and similar proposals have been introduced and championed by both the Bush and Obama administrations.

The National Heritage Area, or NHA, program is one of the Department of the Interior's most cost-effective initiatives, relying on public-private partnerships in which every Federal dollar is matched with an average of $5.50 in other funding.

For my part, I greatly appreciate the good that the Erie Canalway National Heritage Corridor and the Maurice D. Hinchey Hudson River Valley National Heritage Corridor have done for my district and for upstate New York.

I commend the Alliance of National Heritage Areas and the National Parks Conservation Association for their hard work on this critical legislation.

I also want to thank my friends, our former colleague, Charlie Dent, and Congressmembers MCKINLEY and G.T. THOMPSON, for their hard work on this legislation and continued support for heritage areas.

While the ranking member cited staff on both sides, I would endorse that. I also add to the compliments my legislative person, Emily Silverberg, for the outstanding work she has done and her longtime dedication and devotion to the effort.

H.R. 1049 is a bipartisan, commonsense bill, and I urge my colleagues to support this legislation.

The SPEAKER pro tempore. Without objection, the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) will control the balance of the time.

There was no objection.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I yield 2 minutes to the gentleman from Rhode Island (Mr. CICILLINE).

Mr. CICILLINE. Mr. Speaker, I rise in strong support of H.R. 1049, the National Heritage Area Act.

Since 1984, the National Heritage Area program has played a vital role in preserving the history, culture and natural beauty of our Nation's most historically and naturally significant communities. It has worked closely with those communities to help make them vibrant and ensure their place as part of the national landscape.

In my home State of Rhode Island, the Blackstone River Valley National Heritage Corridor plays a vital role in preserving the history of communities in Blackstone Valley, the birthplace of the American Industrial Revolution.

In addition to preserving this history, the coordinating entity for the Blackstone Valley Heritage Corridor works hand in hand with the National Park Service to support the continued development of the Blackstone River Valley National Historical Park, which runs from Providence and Pawtucket through Worcester, Massachusetts.

I was proud to lead the House effort to establish this national park in 2014 and look forward to seeing its continued growth and development in close coordination with the Blackstone Heritage Corridor.

The relationship between the Blackstone Heritage Corridor and the Blackstone Valley National Historical Park plays a vital role in telling the story of how America became a prosperous nation through its mills and factories, and the immigrant communities in Rhode Island and Massachusetts that worked in those industries and that helped build the foundation of our country.

The National Heritage Area Act will ensure that this relationship can continue by authorizing funds for heritage areas through 2034 and fostering new opportunities for relationships between heritage areas and the National Park Service to grow.

While the Trump administration has proposed eliminating this critical program year after year, I am grateful for the work of my colleague from New York, Congressman PAUL TONKO, for his leadership on this issue. And I thank Chairman GRIJALVA and the Natural Resources Committee for their efforts to bring this legislation to the floor.

I urge passage of H.R. 1049, to support the National Heritage Area program and to continue preserving our Nation's history and natural beauty.

□ 1730

Mr. CASE. Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 1049, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

LEECH LAKE BAND OF OJIBWE RESERVATION RESTORATION ACT

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 199) to provide for the transfer of certain Federal land in the State of Minnesota for the benefit of the Leech Lake Band of Ojibwe.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 199

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Leech Lake Band of Ojibwe Reservation Restoration Act''.

SEC. 2. LEECH LAKE BAND OF OJIBWE RESERVATION RESTORATION.

(a) FINDINGS.—Congress finds that—

(1) the Federal land described in subsection (b)(1) was taken from members of the Leech Lake Band of Ojibwe during a period—

(A) beginning in 1948;

(B) during which the Bureau of Indian Affairs incorrectly interpreted an order of the Secretary of the Interior to mean that the Department of the Interior had the authority to sell tribal allotments without the consent of a majority of the rightful landowners; and

(C) ending in 1959, when the Secretary of the Interior was—

(i) advised that sales described in subparagraph (B) were illegal; and

(ii) ordered to cease conducting those sales;

(2) as a result of the Federal land described in subsection (b)(1) being taken from members of the Leech Lake Band of Ojibwe, the Leech Lake Band of Ojibwe hold the smallest percentage of its original reservation lands of any Ojibwe bands in Minnesota;

(3)(A) the applicable statute of limitations prohibits individuals from pursuing through litigation the return of the land taken as described in paragraph (1); but

(B) a Federal judge ruled that the land could be restored to the affected individuals through the legislative process;

(4) a comprehensive review of the Federal land demonstrated that—

(A) a portion of the Federal land is encumbered by—

(i) utility easements;

(ii) rights-of-way for roads; and

(iii) flowage and reservoir rights; and

(B) there are no known cabins, campgrounds, lodges, or resorts located on any portion of the Federal land; and

(5) on reacquisition by the Tribe of the Federal land, the Tribe—

(A) has pledged to respect the easements, rights-of-way, and other rights described in paragraph (4)(A); and

(B)(i) does not intend immediately to modify the use of the Federal land; but

(ii) will keep the Federal land in tax-exempt fee status as part of the Chippewa National Forest until the Tribe develops a plan that allows for a gradual subdivision of some tracts for economic and residential development by the Tribe.

(b) DEFINITIONS.—In this section:

(1) FEDERAL LAND.—

(A) IN GENERAL.—The term ''Federal land'' means the approximately 11,760 acres of Federal land located in the Chippewa National Forest in Cass County, Minnesota, the boundaries of which shall be depicted on the map, and described in the legal description, submitted under subsection (d)(1)(B).

(B) INCLUSIONS.—The term ''Federal land'' includes—

(i) any improvement located on the Federal land described in subparagraph (A); and

(ii) any appurtenance to the Federal land.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(3) TRIBE.—The term ''Tribe'' means the Leech Lake Band of Ojibwe.

(c) TRANSFER TO RESERVATION.—

(1) IN GENERAL.—Subject to valid existing rights and paragraph (2), the Secretary shall transfer to the administrative jurisdiction of the Secretary of the Interior all right, title, and interest of the United States in and to the Federal land.

(2) TREATMENT.—Effective immediately on the transfer under paragraph (1), the Federal land shall be—

(A) held in trust by the United States for the benefit of the Tribe; and

(B) considered to be a part of the reservation of the Tribe.

(d) SURVEY, MAP, AND LEGAL DESCRIPTION.—

(1) IN GENERAL.—The Secretary shall—

(A) not later than 180 days after the date of enactment of this Act, complete a plan of survey to establish the boundaries of the Federal land; and

(B) as soon as practicable after the date of enactment of this Act, submit a map and legal description of the Federal land to—

(i) the Committee on Natural Resources of the House of Representatives; and

(ii) the Committee on Indian Affairs of the Senate.

(2) FORCE AND EFFECT.—The map and legal description submitted under paragraph (1)(B) shall have the same force and effect as if included in this Act, except that the Secretary may correct any clerical or typographical error in the map or legal description.

(3) PUBLIC AVAILABILITY.—The map and legal description submitted under paragraph (1)(B) shall be on file and available for public inspection in the office of the Secretary.

(e) ADMINISTRATION.—

(1) IN GENERAL.—Except as otherwise expressly provided in this section, nothing in this section affects any right or claim of the Tribe, as in existence on the date of enactment of this Act, to any land or interest in land.

(2) PROHIBITIONS.—

(A) EXPORTS OF UNPROCESSED LOGS.—Federal law (including regulations) relating to the export of unprocessed logs harvested from Federal land shall apply to any unprocessed logs that are harvested from the Federal land.

(B) NON-PERMISSIBLE USE OF LAND.—The Federal land shall not be eligible or used for any gaming activity carried out under the Indian Gaming Regulatory Act (25 U.S.C. 2701 et seq.).

(3) FOREST MANAGEMENT.—Any commercial forestry activity carried out on the Federal land shall be managed in accordance with applicable Federal law.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, S. 199, the Leech Lake Band of Ojibwe Reservation Restoration Act, introduced by Senator TINA SMITH from Minnesota, directs the Department of Agriculture to transfer approximately 11,760 acres of Federal land in the Chippewa National Forest to the Department of the Interior to be held in trust for the benefit of the Tribe.

The Leech Lake Band of Ojibwe is a federally recognized Tribe with approximately 10,660 members with a reservation located within the National Chippewa Forest in Cass County, Minnesota. The Leech Lake Band has the largest population of all the Minnesota Tribes yet the smallest amount of land available for its use.

Much of the Tribe's land was lost when many of its members were illegally dispossessed of their land via ''secretarial transfers'' during the 1950s. Secretarial transfers were a transaction where the Department of the Interior approved the sale or transfer of Tribal land and/or individually owned Indian allotments without the consent of the Tribe or the individual Indian allottees. This practice resulted in the Tribe having insufficient land to meet the current needs of its membership.

The return of the land through S. 199 will assist the Tribe in rebuilding its land base, enable the protection of sacred sites, and allow the construction of housing on some of the tracts near the Tribe's existing communities.

The Tribe intends to respect all existing easements, rights of way, and other encumbrances on the land and does not intend to immediately modify the current land uses. Additionally, the land will stay in tax-exempt fee status as part of the Chippewa National Forest until the Tribe develops a plan for future economic and residential use.

I want to especially commend the Tribe for working together with local electric co-ops on a memorandum of understanding regarding some of the last remaining issues so that we could bring the bill before us today in a bipartisan fashion.

I want to also extend sincere appreciation to our colleague from Minnesota (Ms. MCCOLLUM) for introducing the House companion of the legislation, H.R. 733, and for working diligently with the Natural Resources Committee, the Tribe, and the local interests to ensure that passage of this bill could become a reality.

Mr. Speaker, I urge quick adoption of S. 199, and I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield 4 minutes to the gentleman from Minnesota (Mr. STAUBER).

Mr. STAUBER. Mr. Speaker, I rise today in support of S. 199, legislation that rights a historic wrong made against a Tribe in my district, the Leech Lake Band of Ojibwe.

Right after I took office, Chairman Jackson and other leaders from the Leech Lake Band approached me with a longstanding issue. In the 1950s, the Secretary of Agriculture claimed land owned by Leech Lake under a dubious administrative transfer, ignoring pleas from the Tribe and upending the Tribal tradition of land ownership.

Landholdings such as these are the foundation of Tribal sovereignty. Therefore, this wrong had to be righted with an act of Congress that transfers the roughly 11,000 acres back from the Agriculture Department to the Leech Lake Band of Ojibwe.

From the first conversation I had with the band, I supported this land exchange. This acreage was taken from Leech Lake and needed to be returned. Unfortunately, the legislation itself was flawed. It lacked any language allowing rural utilities access to longstanding rights of ways and easements to ensure maintenance for power and other services can be performed. It is crucial this transfer is done the right way, meaning electric cooperatives delivering power have the access they need for maintenance.

Therefore, I worked with the band and the rural electric cooperatives to achieve a win-win solution. Through a years-long negotiation, I am happy to see a signed memorandum of understanding between Leech Lake and the cooperatives delivering service in the area, which include Beltrami Electric, Lake Country Power, and Crow Wing Power.

After receiving and reviewing the memorandum to accompany the bill, I supported its passage through the

House Natural Resources Committee. With it now on the House floor, I look forward to its passage and the President signing the Leech Lake Band of Ojibwe Reservation Restoration Act into law.

Mr. CASE. Mr. Speaker, I yield 2 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), who is the principal introducer of the House companion bill.

Ms. MCCOLLUM. Mr. Speaker, I thank my classmate from Hawaii, who is overseeing this legislation on the floor today. I thank the chairman of the full committee as well as the subcommittee chair and the members of the Natural Resources Committee for their unanimous support of H.R. 733, the House companion to S. 199, the Leech Lake Band of Ojibwe Reservation Restoration Act.

I want to thank Leech Lake's Tribal leaders personally for entrusting me with the responsibility of advancing this bill as the sponsor in the House and introducing the bill in the way they wanted it to be introduced so that they could have negotiations to move this language forward. I am proud of the ability that we all had in working together to make today a reality and that we will be voting on this final version of the bill.

As I said, it has passed through the Senate, and it passed through the Senate unanimously. I look forward to seeing this legislation signed into law.

Join me in voting today to restore the land that was illegally taken from Tribal nations by the Federal Government during the allotment era. Today we, collectively—the U.S. Congress—have an opportunity to correct a past injustice by returning the land to the Leech Lake Band of Ojibwe that the Federal Government sold without the consent of the rightful owners, to have it returned to them.

Between 1948 and 1955, approximately 17,000 acres were illegally transferred by the Department of the Interior. The bill we are considering today would return more than 11,000 of those acres to the Tribe. The return of this land from the Forest Service is vitally important to the Leech Lake Band. They currently own less than 5 percent of the land—5 percent of the land—within the boundaries of their reservation. This is the smallest percentage of any Minnesota Tribal nations.

The Chippewa National Forest holds over 75 percent of the land within their reservation. Tribal leaders at Leech Lake have worked diligently for many years in partnership with the Chippewa National Forest in Cass County to identify the illegally transferred parcels of land and to build local support for this legislation. They have addressed concerns with the transfer through open dialogue and have created a win-win situation for everyone involved.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. CASE. Mr. Speaker, I yield an additional 1 minute to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. The chairman of the Leech Lake Band of Ojibwe has sent a letter that describes the injustices that were done when the land was illegally taken from Tribal members and the efforts that have gone into this bill that we will vote on today to create that injustice.

Mr. Speaker, I include this letter in the RECORD.

LEECH LAKE
BAND OF OJIBWE,
Cass Lake, MN, November 17, 2020.

Hon. BETTY MCCOLLUM,
House of Representatives,
Washington, DC.

DEAR CONGRESSWOMAN MCCOLLUM: I write on behalf of the Leech Lake Band of Ojibwe to express our thanks to you for sponsoring H.R. 733, the Leech Lake Band of Ojibwe Reservation Restoration Act. H.R. 733 will right a historical injustice to the Leech Lake people by restoring 11,760 acres to tribal trust status that the Interior Department illegally transferred out of trust more than 70 years ago.

Previously, former Congressman Rick Nolan introduced a similar bill in the 115th Congress. While the identical companion bill passed the Senate by unanimous consent in December of 2018, it failed to advance in the House of Representatives before the end of the session.

In January of 2019, the Leech Lake Band of Ojibwe asked you to reintroduce the Leech Lake Reservation Restoration Act to the 116th Congress. As the former Co-Chair of the Congressional Native American Caucus, your sponsorship of the bill helped elevate the national importance of this legislation and highlighted the historic injustice of the federal takings of Leech Lake Reservation trust lands.

The Leech Lake Indian Reservation was established through a series of treaties with the United States and presidential executive orders from 1855 to 1874. The initial Leech Lake Reservation consisted or 588,684 acres of the Band's homelands and included the most valuable red and white pine in the region. These treaties and executive orders promised that the reserved lands would be the Band's permanent homeland.

The United States violated these promises through a series of federal laws and policies from 1889 to 1911, moving nearly 530,000 acres of our homelands out of trust status. These federal actions unilaterally sold off large swaths of our Reservation, and separately established what is now the Chippewa National Forest, all without consent of the Band.

In the 1940s and 1950s, the federal government, through unauthorized administrative actions, took approximately 17,000 acres of additional Leech Lake Reservation lands again without consent of the Band or individual tribal landowners. In these agency-to-agency transfers, known as ''secretarial transfers'', the Interior Department illegally transferred Leech Lake trust lands to the USDA-Forest Service. The Interior Department put a stop to the illegal transfers in 1955 when Department attorneys acknowledged that the actions violated federal law. Lawsuits were filed to restore these lands to trust status in federal courts, but the claims were time barred. As a result, the only means of achieving justice for the Leech Lake Band of Ojibwe is through federal legislation. H.R. 733/S. 199 would restore the portion of these illegal secretarial transfer lands located within Cass County back to the Interior Department to be held in trust for the Band.

The Leech Lake Band of Ojibwe has worked for many years to identify the illegally transferred land parcels, build local support and address any concerns with the bill. When it was clear the only recourse to recover these lands was federal legislation, the Band met on several occasions with leadership of the Chippewa National Forest to discuss the issue and draft the bill. The bill includes language consistent with the U.S. Forest Service's mission to adhere to national and local policies regarding the management of Federal lands. It directs the Secretary to work with the Chippewa National Forest Supervisor and the Band to identify Federal lands in Cass County near concentrations of the Leech Lake population and tribal government facilities to ensure that transferred lands address the immediate needs of the Band and reduce fragmentation of federal land holdings.

In addition, the Band has held several meetings with rural electric co-ops and other utilities that utilize federal lands to ensure the bill would protect rights of way on any transferred lands. Through meeting and open dialogue, we were able to address the concerns of the ROW permitees and ensure that access is maintained not only for citizens of our community relying on these essential utility services, but also for the companies crossing federal lands.

Thanks to the work in addressing concerns with the Leech Lake Reservation Restoration Act, the United States Senate once again passed the identical companion bill to H.R. 733, S. 199, by unanimous consent in June of 2019. Likewise, the House Natural Resources Committee approved the bill by unanimous voice vote on September 30, 2020.

Advancing this bill to final passage in the U.S. House of Representatives will restore a sense of justice that generations of our Leech Lake people have been working to achieve and provide the Leech Lake Band of Ojibwe the necessary land base to combat the housing and homelessness, longstanding problems that have been highlighted as urgent needs by the ongoing COVID–19 pandemic.

The Leech Lake Band of Ojibwe values your friendship and dedication to protecting and preserving tribal sovereignty. We look forward to continuing our work together on this bill and the many other policy issues facing Indian Country and our Nation in these trying times.

Sincerely,

FARON JACKSON, SR.,
Chairman.

Ms. MCCOLLUM. Mr. Speaker, restoring this land to the Leech Lake reservation will support Tribal communities while also preserving the area for public recreation. It will allow the Tribe to consistently apply their forest management plan across a greater portion of the reservation. It will also respect all the rights of ways of the utility permits.

It will be good for Leech Lake Band, good for the forest, and good for local communities. And it will be good to correct a historical injustice.

Mr. Speaker, I urge support for S. 199.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as was just explained by my colleague across the aisle, S. 199 would place approximately 11,000 acres of Federal land managed by the U.S. Forest Service into trust for the Leech Lake Band.

The Tribe and the lands that would be held into trust under this bill are located in the Eighth Congressional District, which is represented by Republican Congressman PETE STAUBER. I want to thank Mr. STAUBER for his hard work on this legislation because, without it, we would not be here today.

After the House companion bill, H.R. 733, was introduced by Congresswoman MCCOLLUM, it was determined that a number of the parcels affected by the bills had encumbrances, mainly those of public utility co-ops.

This was, again, another bill that was not properly vetted prior to introduction by a Member from this district. I truly believe that, since that time, Congressman STAUBER has been a leader in efforts to bring the Tribe and several utility co-ops together to come to a legal agreement to resolve those issues with these easements.

We have some concerns regarding the enforceability of this document but appreciate the willingness of all parties to seek a consensus. I think that is the important part today, that there is finally a consensus on this issue. That is a policy the Natural Resources Committee majority has little interest in pursuing because, unfortunately, S. 199 does not reflect this improvement in the bill text. Let's hope the parties will continue to act in good faith despite this.

I, again, thank Mr. STAUBER for his efforts and the members of the committee who worked across the aisle to make this happen today. I am pleased he joined our committee during this year. He has been one of the more active members of the committee during his short tenure.

Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I urge my colleagues to support this valuable legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, S. 199.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

INDIAN COMMUNITY ECONOMIC ENHANCEMENT ACT OF 2020

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 212) to amend the Native American Business Development, Trade Promotion, and Tourism Act of 2000, the Buy Indian Act, and the Native American Programs Act of 1974 to provide industry and economic development opportunities to Indian communities, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 212

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Indian Community Economic Enhancement Act of 2020''.

SEC. 2. FINDINGS.

Congress finds that—

(1)(A) to bring industry and economic development to Indian communities, Indian Tribes must overcome a number of barriers, including—

(i) geographical location;

(ii) lack of infrastructure or capacity;

(iii) lack of sufficient collateral and capital; and

(iv) regulatory bureaucracy relating to—

(I) development; and

(II) access to services provided by the Federal Government; and

(B) the barriers described in subparagraph (A) often add to the cost of doing business in Indian communities;

(2) Indian Tribes—

(A) enact laws and exercise sovereign governmental powers;

(B) determine policy for the benefit of Tribal members; and

(C) produce goods and services for consumers;

(3) the Federal Government has—

(A) an important government-to-government relationship with Indian Tribes; and

(B) a role in facilitating healthy and sustainable Tribal economies;

(4) the input of Indian Tribes in developing Federal policy and programs leads to more meaningful and effective measures to assist Indian Tribes and Indian entrepreneurs in building Tribal economies;

(5)(A) many components of Tribal infrastructure need significant repair or replacement; and

(B) access to private capital for projects in Indian communities—

(i) may not be available; or

(ii) may come at a higher cost than such access for other projects;

(6)(A) Federal capital improvement programs, such as those that facilitate tax-exempt bond financing and loan guarantees, are tools that help improve or replace crumbling infrastructure;

(B) lack of parity in treatment of an Indian Tribe as a governmental entity under Federal tax and certain other regulatory laws impedes, in part, the ability of Indian Tribes to raise capital through issuance of tax exempt debt, invest as an accredited investor, and benefit from other investment incentives accorded to State and local governmental entities; and

(C) as a result of the disparity in treatment of Indian Tribes described in subparagraph (B), investors may avoid financing, or demand a premium to finance, projects in Indian communities, making the projects more costly or inaccessible;

(7) there are a number of Federal loan guarantee programs available to facilitate financing of business, energy, economic, housing, and community development projects in Indian communities, and those programs may support public-private partnerships for infrastructure development, but improvements and support are needed for those programs specific to Indian communities to facilitate more effectively private financing for infrastructure and other urgent development needs; and

(8)(A) most real property held by Indian Tribes is trust or restricted land that essentially cannot be held as collateral; and

(B) while creative solutions, such as leasehold mortgages, have been developed in response to the problem identified in subparagraph (A), some solutions remain subject to review and approval by the Bureau of Indian Affairs, adding additional costs and delay to Tribal projects.

SEC. 3. NATIVE AMERICAN BUSINESS DEVELOPMENT, TRADE PROMOTION, AND TOURISM ACT OF 2000.

(a) FINDINGS; PURPOSES.—Section 2 of the Native American Business Development, Trade Promotion, and Tourism Act of 2000 (25 U.S.C. 4301) is amended by adding at the end the following:

''(c) APPLICABILITY TO INDIAN-OWNED BUSINESSES.—The findings and purposes in subsections (a) and (b) shall apply to any Indian-owned business governed—

''(1) by Tribal laws regulating trade or commerce on Indian lands; or

''(2) pursuant to section 5 of the Act of August 15, 1876 (19 Stat. 200, chapter 289; 25 U.S.C. 261).''.

(b) DEFINITIONS.—Section 3 of the Native American Business Development, Trade Promotion, and Tourism Act of 2000 (25 U.S.C. 4302) is amended—

(1) by redesignating paragraphs (1) through (6) and paragraphs (7) through (9), as paragraphs (2) through (7) and paragraphs (9) through (11), respectively;

(2) by inserting before paragraph (2) (as redesignated by paragraph (1)) the following:

''(1) DIRECTOR.—The term 'Director' means the Director of Native American Business Development appointed pursuant to section 4(a)(2).''; and

(3) by inserting after paragraph (7) (as redesignated by paragraph (1)) the following:

''(8) OFFICE.—The term 'Office' means the Office of Native American Business Development established by section 4(a)(1).''.

(c) OFFICE OF NATIVE AMERICAN BUSINESS DEVELOPMENT.—Section 4 of the Native American Business Development, Trade Promotion, and Tourism Act of 2000 (25 U.S.C. 4303) is amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) by striking ''Department of Commerce'' and inserting ''Office of the Secretary''; and

(ii) by striking ''(referred to in this Act as the 'Office')''; and

(B) in paragraph (2), in the first sentence, by striking ''(referred to in this Act as the 'Director')''; and

(2) by adding at the end the following:

''(c) DUTIES OF DIRECTOR.—

''(1) IN GENERAL.—The Director shall serve as—

''(A) the program and policy advisor to the Secretary with respect to the trust and governmental relationship between the United States and Indian Tribes; and

''(B) the point of contact for Indian Tribes, Tribal organizations, and Indians regarding—

''(i) policies and programs of the Department of Commerce; and

''(ii) other matters relating to economic development and doing business in Indian lands.

''(2) DEPARTMENTAL COORDINATION.—The Director shall coordinate with all offices and agencies within the Department of Commerce to ensure that each office and agency has an accountable process to ensure—

''(A) meaningful and timely coordination and assistance, as required by this Act; and

''(B) consultation with Indian Tribes regarding the policies, programs, assistance, and activities of the offices and agencies.

''(3) OFFICE OPERATIONS.—There are authorized to be appropriated to carry out this section not more than $2,000,000 for each fiscal year.''.

(d) INDIAN COMMUNITY DEVELOPMENT INITIATIVES.—The Native American Business Development, Trade Promotion, and Tourism Act of 2000 is amended—

(1) by redesignating section 8 (25 U.S.C. 4307) as section 10; and

(2) by inserting after section 7 (25 U.S.C. 4306) the following:

"SEC. 8. INDIAN COMMUNITY DEVELOPMENT INITIATIVES.

''(a) INTERAGENCY COORDINATION.—Not later than 1 year after the enactment of this section, the Secretary, the Secretary of the Interior, and the Secretary of the Treasury shall coordinate—

''(1) to develop initiatives that—

''(A) encourage, promote, and provide education regarding investments in Indian communities through—

''(i) the loan guarantee program of Bureau of Indian Affairs under section 201 of the Indian Financing Act of 1974 (25 U.S.C. 1481);

''(ii) programs carried out using amounts in the Community Development Financial Institutions Fund established under section 104(a) of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4703(a)); and

''(iii) other capital development programs;

''(B) examine and develop alternatives that would qualify as collateral for financing in Indian communities; and

''(C) provide entrepreneur and other training relating to economic development through tribally controlled colleges and universities and other Indian organizations with experience in providing such training;

''(2) to consult with Indian Tribes and with the Securities and Exchange Commission to study, and collaborate to establish, regulatory changes necessary to qualify an Indian Tribe as an accredited investor for the purposes of sections 230.500 through 230.508 of title 17, Code of Federal Regulations (or successor regulations), consistent with the goals of promoting capital formation and ensuring qualifying Indian Tribes have the ability to withstand investment loss, on a basis comparable to other legal entities that qualify as accredited investors who are not natural persons;

''(3) to identify regulatory, legal, or other barriers to increasing investment, business, and economic development, including qualifying or approving collateral structures, measurements of economic strength, and contributions of Indian economies in Indian communities through the Authority established under section 4 of the Indian Tribal Regulatory Reform and Business Development Act of 2000 (25 U.S.C. 4301 note);

''(4) to ensure consultation with Indian Tribes regarding increasing investment in Indian communities and the development of the report required in paragraph (5); and

''(5) not less than once every 2 years, to provide a report to Congress regarding—

''(A) improvements to Indian communities resulting from such initiatives and recommendations for promoting sustained growth of the Tribal economies;

''(B) results of the study and collaboration regarding the necessary changes referenced in paragraph (2) and the impact of allowing Indian Tribes to qualify as an accredited investor; and

''(C) the identified regulatory, legal, and other barriers referenced in paragraph (3).

''(b) WAIVER.—For assistance provided pursuant to section 108 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4707) to benefit Native Community Development Financial Institutions, as defined by the Secretary of the Treasury, section 108(e) of such Act shall not apply.

''(c) INDIAN ECONOMIC DEVELOPMENT FEASIBILITY STUDY.—

''(1) IN GENERAL.—The Government Accountability Office shall conduct a study and, not later than 18 months after the date of enactment of this subsection, submit to the Committee on Indian Affairs of the Senate and the Committee on Natural Resources of the House of Representatives a report on the findings of the study and recommendations.

''(2) CONTENTS.—The study shall include an assessment of each of the following:

''(A) IN GENERAL.—The study shall assess current Federal capitalization and related programs and services that are available to assist Indian communities with business and economic development, including manufacturing, physical infrastructure (such as telecommunications and broadband), community development, and facilities construction for such purposes. For each of the Federal programs and services identified, the study shall assess the current use and demand by Indian Tribes, individuals, businesses, and communities of the programs, the capital needs of Indian Tribes, businesses, and communities related to economic development, the extent to which the programs and services overlap or are duplicative, and the extent that similar programs have been used to assist non-Indian communities compared to the extent used for Indian communities.

''(B) FINANCING ASSISTANCE.—The study shall assess and quantify the extent of assistance provided to non-Indian borrowers and to Indian (both Tribal and individual) borrowers (including information about such assistance as a percentage of need for Indian borrowers and for non-Indian borrowers, assistance to Indian borrowers and to non-Indian borrowers as a percentage of total applicants, and such assistance to Indian borrowers as individuals as compared to such assistance to Indian Tribes) through the loan programs, the loan guarantee programs, or bond guarantee programs of the—

''(i) Department of the Interior;

''(ii) Department of Agriculture;

''(iii) Department of Housing and Urban Development;

''(iv) Department of Energy;

''(v) Small Business Administration; and

''(vi) Community Development Financial Institutions Fund of the Department of the Treasury.

''(C) TAX INCENTIVES.—The study shall assess and quantify the extent of the assistance and allocations afforded for non-Indian projects and for Indian projects pursuant to each of the following tax incentive programs:

''(i) New market tax credit.

''(ii) Low income housing tax credit.

''(iii) Investment tax credit.

''(iv) Renewable energy tax incentives.

''(v) Accelerated depreciation.

''(D) TRIBAL INVESTMENT INCENTIVE.—The study shall assess various alternative incentives that could be provided to enable and encourage Tribal governments to invest in an Indian community development investment fund or bank.''.

(e) CONFORMING AND TECHNICAL AMENDMENTS.—The Native American Business Development, Trade Promotion, and Tourism Act of 2000 (25 U.S.C. 4301 et seq.) is amended—

(1) in section 3—

(A) in each of paragraphs (1), (4), and (8), by striking ''tribe'' and inserting ''Tribe''; and

(B) in paragraph (6), by striking ''The term 'Indian tribe' has the meaning given that term'' and inserting ''The term 'Indian Tribe' has the meaning given the term 'Indian tribe' '';

(2) by striking ''tribes'' each place the term appears and inserting ''Tribes''; and

(3) by striking ''tribal'' each place the term appears and inserting ''Tribal''.

SEC. 4. BUY INDIAN ACT.

Section 23 of the Act of June 25, 1910 (commonly known as the ''Buy Indian Act'') (36 Stat. 861, chapter 431; 25 U.S.C. 47), is amended to read as follows:

"SEC. 23. EMPLOYMENT OF INDIAN LABOR AND PURCHASE OF PRODUCTS OF INDIAN INDUSTRY; PARTICIPATION IN MENTOR-PROTEGE PROGRAM.

''(a) DEFINITIONS.—In this section:

''(1) INDIAN ECONOMIC ENTERPRISE.—The term 'Indian economic enterprise' has the meaning given the term in section 1480.201 of title 48, Code of Federal Regulations (or successor regulations).

''(2) MENTOR FIRM; PROTEGE FIRM.—The terms 'mentor firm' and 'protege firm' have the meanings given those terms in section 831(c) of the National Defense Authorization Act for Fiscal Year 1991 (10 U.S.C. 2302 note; Public Law 101–510).

''(3) SECRETARIES.—The term 'Secretaries' means—

''(A) the Secretary of the Interior; and

''(B) the Secretary of Health and Human Services.

''(b) ENTERPRISE DEVELOPMENT.—

''(1) IN GENERAL.—Unless determined by one of the Secretaries to be impracticable and unreasonable—

''(A) Indian labor shall be employed; and

''(B) purchases of Indian industry products (including printing and facilities construction, notwithstanding any other provision of law) may be made in open market by the Secretaries.

''(2) MENTOR-PROTEGE PROGRAM.—

''(A) IN GENERAL.—Participation in the Mentor-Protege Program established under section 831(a) of the National Defense Authorization Act for Fiscal Year 1991 (10 U.S.C. 2302 note; Public Law 101–510) or receipt of assistance under a developmental assistance agreement under that program shall not render any individual or entity involved in the provision of Indian labor or an Indian industry product ineligible to receive assistance under this section.

''(B) TREATMENT.—For purposes of this section, no determination of affiliation or control (whether direct or indirect) may be found between a protege firm and a mentor firm on the basis that the mentor firm has provided, or agreed to provide, to the protege firm, pursuant to a mentor-protege agreement, any form of developmental assistance described in section 831(f) of the National Defense Authorization Act for Fiscal Year 1991 (10 U.S.C. 2302 note; Public Law 101–510).

''(c) IMPLEMENTATION.—In carrying out this section, the Secretaries shall—

''(1) conduct outreach to Indian industrial entities;

''(2) provide training;

''(3) promulgate regulations in accordance with this section and with the regulations under part 1480 of title 48, Code of Federal Regulations (or successor regulations), to harmonize the procurement procedures of the Department of the Interior and the Department of Health and Human Services, to the maximum extent practicable;

''(4) require regional offices of the Bureau of Indian Affairs and the Indian Health Service to aggregate data regarding compliance with this section;

''(5) require procurement management reviews by their respective Departments to include a review of the implementation of this section; and

''(6) consult with Indian Tribes, Indian industrial entities, and other stakeholders regarding methods to facilitate compliance with—

''(A) this section; and

''(B) other small business or procurement goals.

''(d) REPORT.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of this section, and not less frequently than once every 2

years thereafter, each of the Secretaries shall submit to the Committee on Indian Affairs of the Senate and the Committee on Natural Resources of the House of Representatives a report describing, during the period covered by the report, the implementation of this section by each of the respective Secretaries.

''(2) CONTENTS.—Each report under this subsection shall include, for each fiscal year during the period covered by the report—

''(A) the names of each agency under the respective jurisdiction of each of the Secretaries to which this section has been applied, and efforts made by additional agencies within the Secretaries' respective Departments to use the procurement procedures under this Act;

''(B) a summary of the types of purchases made from, and contracts (including any relevant modifications, extensions, or renewals) awarded to, Indian economic enterprises, expressed by agency region;

''(C) a description of the percentage increase or decrease in total dollar value and number of purchases and awards made within each agency region, as compared to the totals of the region for the preceding fiscal year;

''(D) a description of the methods used by applicable contracting officers and employees to conduct market searches to identify qualified Indian economic enterprises;

''(E) a summary of all deviations granted under section 1480.403 of title 48, Code of Federal Regulations (or successor regulations), including a description of—

''(i) the types of alternative procurement methods used, including any Indian owned businesses reported under other procurement goals; and

''(ii) the dollar value of any awards made pursuant to those deviations;

''(F) a summary of all determinations made to provide awards to Indian economic enterprises, including a description of the dollar value of the awards;

''(G) a description or summary of the total number and value of all purchases of, and contracts awarded for, supplies, services, and construction (including the percentage increase or decrease, as compared to the preceding fiscal year) from—

''(i) Indian economic enterprises; and

''(ii) non-Indian economic enterprises;

''(H) any administrative, procedural, legal, or other barriers to achieving the purposes of this section, together with recommendations for legislative or administrative actions to address those barriers; and

''(I) for each agency region—

''(i) the total amount spent on purchases made from, and contracts awarded to, Indian economic enterprises; and

''(ii) a comparison of the amount described in clause (i) to the total amount that the agency region would likely have spent on the same purchases made from a non-Indian economic enterprise or contracts awarded to a non-Indian economic enterprise.

''(e) GOALS.—Each agency shall establish an annual minimum percentage goal for procurement in compliance with this section.''.

SEC. 5. NATIVE AMERICAN PROGRAMS ACT OF 1974.

(a) FINANCIAL ASSISTANCE FOR NATIVE AMERICAN PROJECTS.—Section 803 of the Native American Programs Act of 1974 (42 U.S.C. 2991b) is amended—

(1) by redesignating subsections (b) through (d) as subsections (c) through (e), respectively; and

(2) by inserting after subsection (a) the following:

''(b) ECONOMIC DEVELOPMENT.—

''(1) IN GENERAL.—The Commissioner may provide assistance under subsection (a) for projects relating to the purposes of this title to a Native community development financial institution, as defined by the Secretary of the Treasury.

''(2) PRIORITY.—With regard to not less than 50 percent of the total amount available for assistance under this section, the Commissioner shall give priority to any application seeking assistance for—

''(A) the development of a Tribal code or court system for purposes of economic development, including commercial codes, training for court personnel, regulation pursuant to section 5 of the Act of August 15, 1876 (19 Stat. 200, chapter 289; 25 U.S.C. 261), and the development of nonprofit subsidiaries or other Tribal business structures;

''(B) the development of a community development financial institution, including training and administrative expenses; or

''(C) the development of a Tribal master plan for community and economic development and infrastructure.''.

(b) TECHNICAL ASSISTANCE AND TRAINING.—Section 804 of the Native American Programs Act of 1974 (42 U.S.C. 2991c) is amended—

(1) in the matter preceding paragraph (1), by striking ''The Commissioner'' and inserting the following:

''(a) IN GENERAL.—The Commissioner''; and

(2) by adding at the end the following:

''(b) PRIORITY.—In providing assistance under subsection (a), the Commissioner shall give priority to any application described in section 803(b)(2).''.

(c) AUTHORIZATION OF APPROPRIATIONS.—Section 816 of the Native American Programs Act of 1974 (42 U.S.C. 2992d) is amended—

(1) by striking ''803(d)'' each place it appears and inserting ''803(e)''; and

(2) in subsection (a)—

(A) by striking ''such sums as may be necessary'' and inserting ''$34,000,000''; and

(B) by striking ''1999, 2000, 2001, and 2002'' and inserting ''2021 through 2025''.

(d) CONFORMING AND TECHNICAL AMENDMENTS.—The Native American Programs Act of 1974 (42 U.S.C. 2991 et seq.) is amended—

(1) by striking ''tribe'' each place the term appears and inserting ''Tribe'';

(2) by striking ''tribes'' each place the term appears and inserting ''Tribes''; and

(3) by striking ''tribal'' each place the term appears and inserting ''Tribal''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, S. 212, the Indian Community Economic Enhancement Act, amends current laws to provide industry and economic development opportunities to Indian communities.

Indian Tribes face many unique obstacles in their mission to bring industry and economic development to Indian Country. This includes geographic isolation, lack of infrastructure, and lack of sufficient collateral and capital. The end result is an increased cost of doing business in Indian Country, which stifles outside investment.

S. 212 seeks to address these issues by amending three existing Federal laws, the Native American Business Development, Trade Promotion, and Tourism Act of 2000, the Buy Indian Act, and the Native American Programs Act of 1974.

These laws have been supporting Native businesses and economic development for years. However, they need to be updated to reflect the 21st century economy, as well as the realities in Indian Country today.

To that end, enactment of S. 212 will increase access to capital for Indian Tribes and businesses, increase opportunities for Indian business promotion, and create mechanisms and tools to address investments in Indian communities.

At the request of the Appropriations Committee, we are making some small changes to the current bill to update the fiscal year authorization language for some of the programs. This means that the bill will have to go back to the Senate, where I hope and believe they will move swiftly to enact it, as amended, before the end of this Congress.

□ 1745

I commend the sponsor of the bill, the chair of the Senate Committee on Indian Affairs, Senator HOEVEN from North Dakota, for his work on this legislation.

I also recognize our own colleague, Representative NORMA TORRES from California for her work on the bill and for carrying the House companion, H.R. 1937.

I urge my colleagues to support S. 212, and I ask for its adoption.

Mr. Speaker, I reserve the balance of my time.

COMMITTEE ON EDUCATION AND LABOR,
HOUSE OF REPRESENTATIVES,
Washington, DC, November 30, 2020.

Hon. RAÚL M. GRIJALVA,
Chairman, Committee on Natural Resources, House of Representatives, Washington, DC.

DEAR CHAIRMAN GRIJALVA: I write concerning S. 212, the Indian Community Economic Enhancement Act of 2019. This bill was primarily referred to the Committee on Natural Resources, and additionally to the Committee on Education and Labor. As a result of Leadership and the Committee on Natural Resources having consulted with me concerning this bill generally, I agree to forgo formal consideration of the bill so the bill may proceed expeditiously to the House floor.

The Committee on Education and Labor takes this action with our mutual understanding that by forgoing formal consideration of S. 212, we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and we will be appropriately consulted and involved as the bill or similar legislation moves forward so we may address any remaining issues within our Rule X jurisdiction. I also request that you support my request to name members of

the Committee on Education and Labor to any conference committee to consider such provisions.

Finally, I would appreciate a response confirming this understanding and ask that a copy of our exchange of letters on this matter be included in the committee report for S. 212 and in the Congressional Record during floor consideration thereof.

Sincerely,

ROBERT C. ''BOBBY'' SCOTT,
Chairman.

COMMITTEE ON NATURAL RESOURCES,
HOUSE OF REPRESENTATIVES,
Washington, DC, November 30, 2020.

Hon. BOBBY SCOTT,
Chair, Committee on Education and Labor, House of Representatives, Washington, DC.

DEAR CHAIR SCOTT: I write to you concerning S. 212, the ''Indian Community Economic Enhancement Act of 2019.''

I appreciate your willingness to work cooperatively on this legislation. I recognize that the bill contains provisions that fall within the jurisdiction of the Committee on Education and Labor. I acknowledge that your Committee will not formally consider S. 212 and agree that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your Committee's Rule X jurisdiction.

I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. I appreciate your cooperation regarding this legislation and look forward to continuing to work with you as this measure moves through the legislative process.

Sincerely,

RAÚL M. GRIJALVA,
Chair,
House Natural Resources Committee.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I think it is important that, for decades, the Native American communities have struggled with a wide array of difficulties relating to economic development on their own land, including poor access to capital, remote and rural locations, and degradation of the local infrastructure. Only around half of all Native Americans residing or near Tribal communities have jobs, and a quarter of Native families earn an income that is below the American poverty line.

Tribal economic development is also hampered by the need for Federal approval before leasing of trust lands, legal systems that are not business friendly, and issues raised by sovereign immunity.

This bill, S. 212, amends three Federal laws relating to business, economic, and trade development in Indian communities: the Native American Business Development, Trade Promotion, and Tourism Act of 2000, the Buy Indian Act, and the Native American Programs Act of 1974.

The amendments are intended to increase access to capital for Indian Tribes and businesses, increase opportunities for Indian business promotion, and create mechanisms and tools to attract investments in Indian communities.

Mr. Speaker, I fully support the intent behind this legislation and appreciate the work that has gone into it over the last several years.

Mr. Speaker, I reserve the balance of my time.

Mr. CASE. Mr. Speaker, I very much appreciate the comments of my colleague from Puerto Rico.

Mr. Speaker, I have no further speakers. I am prepared to close, and I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

Mrs. TORRES of California. Mr. Speaker, I stand here today in support of the legislation before us, the ''Indian Community Economic Enhancement Act,''—the Senate companion to my bill in the House.

For too long, lack of access to credit and community development have hampered the entrepreneurial spirit of Native American tribes. Yet, across the country, Native American entrepreneurs are ready to start new businesses, create jobs, and lift up their communities.

My bill is a first step to change that. It updates and provides new resources to the Department of Commerce's Office of Native American Business Development. It ensures the Department of Health and Human Services is using Native American labor and industry products when appropriate. And, it authorizes the Administration for Native Americans to provide key financial assistance to Native American community development financial institutions.

I want to thank my friend Congresswoman HAALAND for co-leading this bill with me, and Senator HOEVEN, Chairman of the Senate Committee on Indian Affairs, for introducing and shepherding this bill in the Senate.

The American people and Native communities, should be reassured that there is bipartisan commitment to improving lives in Indian Country.

I urge my colleagues, to vote yes and join us in empowering the Native American entrepreneurs and communities who are building solutions for a better tomorrow.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, S. 212, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

COORDINATED OCEAN OBSERVATIONS AND RESEARCH ACT OF 2020

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 914) to reauthorize the Integrated Coastal and Ocean Observation System Act of 2009, to clarify the authority of the Administrator of the National Oceanic and Atmospheric Administration with respect to post-storm assessments, and to require the establishment of a National Water Center, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 914

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Coordinated Ocean Observations and Research Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
TITLE I—REAUTHORIZATION OF INTEGRATED COASTAL AND OCEAN OBSERVATION SYSTEM ACT OF 2009
Sec. 101. Purposes.
Sec. 102. Definitions.
Sec. 103. Integrated Coastal and Ocean Observation System.
Sec. 104. Financing and agreements.
Sec. 105. Reports to Congress.
Sec. 106. Public-private use policy.
Sec. 107. Repeal of independent cost estimate.
Sec. 108. Authorization of appropriations.
Sec. 109. Reports and research plans.
Sec. 110. Strategic research plan.
Sec. 111. Stakeholder input on monitoring.
Sec. 112. Research activities.
TITLE II—NAMED STORM EVENT MODEL AND POST-STORM ASSESSMENTS
Sec. 201. Named Storm Event Model and post-storm assessments.
TITLE III—WATER PREDICTION AND FORECASTING
Sec. 301. Water prediction and forecasting.

TITLE I—REAUTHORIZATION OF INTEGRATED COASTAL AND OCEAN OBSERVATION SYSTEM ACT OF 2009

SEC. 101. PURPOSES.

Section 12302 of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3601) is amended to read as follows:

''SEC. 12302. PURPOSES.

''The purposes of this subtitle are—

''(1) to establish and sustain a national integrated System of ocean, coastal, and Great Lakes observing systems, comprised of Federal and non-Federal components coordinated at the national level by the Council and at the regional level by a network of regional coastal observing systems, and that includes in situ, remote, and other coastal and ocean observation and modeling capabilities, technologies, data management systems, communication systems, and product development systems, and is designed to address regional and national needs for ocean and coastal information, to gather specific data on key ocean, coastal, and Great Lakes variables, and to ensure timely and sustained dissemination and availability of these data—

''(A) to the public;

''(B) to support national defense, search and rescue operations, marine commerce, navigation safety, weather, climate, and marine forecasting, energy siting and production, economic development, ecosystem-based marine, coastal, and Great Lakes resource management, public safety, and public outreach and education;

''(C) to promote greater public awareness and stewardship of the Nation's ocean, coastal, and Great Lakes resources and the general public welfare;

''(D) to provide easy access to ocean, coastal, and Great Lakes data and promote data sharing between Federal and non-Federal sources and promote public data sharing;

''(E) to enable advances in scientific understanding to support the sustainable use, conservation, management, and understanding

of healthy ocean, coastal, and Great Lakes resources to ensure the Nation can respond to opportunities to enhance food, economic, and national security; and

''(F) to monitor and model changes in the oceans and Great Lakes, including with respect to chemistry, harmful algal blooms, hypoxia, water levels, and other phenomena;

''(2) to improve the Nation's capability to measure, track, observe, understand, and predict events related directly and indirectly to weather and climate, natural climate variability, and interactions between the oceanic and atmospheric environments, including the Great Lakes;

''(3) to sustain, upgrade, and modernize the Nation's ocean and Great Lakes observing infrastructure to detect changes and ensure delivery of reliable and timely information; and

''(4) to authorize activities—

''(A) to promote basic and applied research to develop, test, and deploy innovations and improvements in coastal and ocean observation technologies, including advanced observing technologies such as unmanned maritime systems needed to address critical data gaps, modeling systems, other scientific and technological capabilities to improve the understanding of weather and climate, ocean-atmosphere dynamics, global climate change, and the physical, chemical, and biological dynamics of the ocean, coastal, and Great Lakes environments; and

''(B) to conserve healthy and restore degraded coastal ecosystems.''.

SEC. 102. DEFINITIONS.

Section 12303 of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3602) is amended—

(1) in paragraph (2), by striking ''section 7902'' and inserting ''section 8932'';

(2) in paragraph (5), by striking ''integrated into the System and are managed through States, regional organizations, universities, nongovernmental organizations, or the private sector'' and inserting ''managed through States, regional organizations, universities, nongovernmental organizations, or the private sector and integrated into the System by a regional coastal observing system, the National Oceanic and Atmospheric Administration, or the agencies participating in the Interagency Ocean Observation Committee'';

(3) by amending paragraph (6) to read as follows:

''(6) REGIONAL COASTAL OBSERVING SYSTEM.—The term 'regional coastal observing system' means an organizational body that is certified or established by contract or memorandum by the lead Federal agency designated in section 12304(c)(3) and coordinates State, Federal, local, tribal, and private interests at a regional level with the responsibility of engaging the private and public sectors in designing, operating, and improving regional coastal observing systems in order to ensure the provision of data and information that meet the needs of user groups from the respective regions.''; and

(4) in paragraph (7), by striking ''National Oceanic and Atmospheric Administration'' and inserting ''Administrator''.

SEC. 103. INTEGRATED COASTAL AND OCEAN OBSERVATION SYSTEM.

(a) SYSTEM ELEMENTS.—

(1) IN GENERAL.—Section 12304(b) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3603(b)) is amended by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—In order to fulfill the purposes of this subtitle, the System shall be national in scope and consist of—

''(A) Federal assets to fulfill national and international observation missions and priorities;

''(B) non-Federal assets, including a network of regional coastal observing systems identified under subsection (c)(4), to fulfill regional and national observation missions and priorities;

''(C) observing, modeling, data management, and communication systems for the timely integration and dissemination of data and information products from the System, including reviews of data collection procedures across regions and programs to make recommendations for data collection standards across the System to meet national ocean, coastal, and Great Lakes observation, applied research, and weather forecasting needs;

''(D) a product development system to transform observations into products in a format that may be readily used and understood; and

''(E) a research and development program conducted under the guidance of the Council, consisting of—

''(i) basic and applied research and technology development—

''(I) to improve understanding of coastal and ocean systems and their relationships to human activities; and

''(II) to ensure improvement of operational assets and products, including related infrastructure, observing technologies such as unmanned maritime systems, and information and data processing and management technologies;

''(ii) an advanced observing technology development program to fill gaps in technology;

''(iii) large scale computing resources and research to advance modeling of ocean, coastal, and Great Lakes processes;

''(iv) models to improve regional weather forecasting capabilities and regional weather forecasting products; and

''(v) reviews of data collection procedures across regions and programs to make recommendations for data collection standards across the System to meet national ocean, coastal, and Great Lakes observation, applied research, and weather forecasting needs.''.

(2) AVAILABILITY OF DATA.—Section 12304(b)(3) of such Act (33 U.S.C. 3603(b)(3)) is amended by inserting ''for research and for use in the development of products to address societal needs'' before the period at the end.

(b) POLICY OVERSIGHT, ADMINISTRATION, AND REGIONAL COORDINATION.—Section 12304(c) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3603(c)) is amended by striking paragraphs (2), (3), and (4), and inserting the following:

''(2) INTERAGENCY OCEAN OBSERVATION COMMITTEE.—

''(A) ESTABLISHMENT.—The Council shall establish or designate a committee, which shall be known as the 'Interagency Ocean Observation Committee'.

''(B) DUTIES.—The Interagency Ocean Observation Committee shall—

''(i) prepare annual and long-term plans for consideration and approval by the Council for the integrated design, operation, maintenance, enhancement, and expansion of the System to meet the objectives of this subtitle and the System Plan;

''(ii) develop and transmit to Congress, along with the budget submitted by the President to Congress pursuant to section 1105(a) of title 31, United States Code, an annual coordinated, comprehensive budget—

''(I) to operate all elements of the System identified in subsection (b); and

''(II) to ensure continuity of data streams from Federal and non-Federal assets;

''(iii) establish requirements for observation data variables to be gathered by both Federal and non-Federal assets and identify, in consultation with regional coastal observing systems, priorities for System observations;

''(iv) establish and define protocols and standards for System data processing, management, collection, configuration standards, formats, and communication for new and existing assets throughout the System network;

''(v) develop contract requirements for each regional coastal observing system—

''(I) to establish eligibility for integration into the System;

''(II) to ensure compliance with all applicable standards and protocols established by the Council; and

''(III) to ensure that regional observations are integrated into the System on a sustained basis;

''(vi) identify gaps in observation coverage or needs for capital improvements of both Federal assets and non-Federal assets;

''(vii) subject to the availability of appropriations, establish through 1 or more Federal agencies participating in the Interagency Ocean Observation Committee, in consultation with the System advisory committee established under subsection (d), a competitive matching grant or other programs—

''(I) to promote intramural and extramural research and development of new, innovative, and emerging observation technologies including testing and field trials; and

''(II) to facilitate the migration of new, innovative, and emerging scientific and technological advances from research and development to operational deployment;

''(viii) periodically—

''(I) review the System Plan; and

''(II) submit to the Council such recommendations as the Interagency Ocean Observation Committee may have for improvements to the System Plan;

''(ix) ensure collaboration among Federal agencies participating in the Interagency Ocean Observation Committee; and

''(x) perform such additional duties as the Council may delegate.

''(3) LEAD FEDERAL AGENCY.—

''(A) IN GENERAL.—The National Oceanic and Atmospheric Administration shall function as the lead Federal agency for the implementation and administration of the System.

''(B) CONSULTATION REQUIRED.—In carrying out this paragraph, the Administrator shall consult with the Council, the Interagency Ocean Observation Committee, other Federal agencies that maintain portions of the System, and the regional coastal observing systems.

''(C) REQUIREMENTS.—In carrying out this paragraph, the Administrator shall—

''(i) establish and operate an Integrated Ocean Observing System Program Office within the National Oceanic and Atmospheric Administration that—

''(I) utilizes, to the extent necessary, personnel from Federal agencies participating in the Interagency Ocean Observation Committee; and

''(II) oversees daily operations and coordination of the System;

''(ii) implement policies, protocols, and standards approved by the Council and delegated by the Interagency Ocean Observation Committee;

''(iii) promulgate program guidelines—

''(I) to certify and integrate regional associations into the System; and

''(II) to provide regional coastal and ocean observation data that meet the needs of user groups from the respective regions;

''(iv) have the authority to enter into and oversee contracts, leases, grants, or cooperative agreements with non-Federal assets, including regional coastal observing systems,

to support the purposes of this subtitle on such terms as the Administrator deems appropriate;

''(v) implement and maintain a merit-based, competitive funding process to support non-Federal assets, including the development and maintenance of a national network of regional coastal observing systems, and develop and implement a process for the periodic review and evaluation of the regional associations;

''(vi) provide opportunities for competitive contracts and grants for demonstration projects to design, develop, integrate, deploy, maintain, and support components of the System;

''(vii) establish and maintain efficient and effective administrative procedures for the timely allocation of funds among contractors, grantees, and non-Federal assets, including regional coastal observing systems;

''(viii) develop and implement a process for the periodic review and evaluation of the regional coastal observing systems;

''(ix) formulate an annual process by which gaps in observation coverage or needs for capital improvements of Federal assets and non-Federal assets of the System are—

''(I) identified by the regional associations described in the System Plan, the Administrator, or other members of the System; and

''(II) submitted to the Interagency Ocean Observation Committee;

''(x) develop and be responsible for a data management and communication system, in accordance with standards and protocols established by the Interagency Ocean Observation Committee, by which all data collected by the System regarding ocean and coastal waters of the United States including the Great Lakes, are processed, stored, integrated, and made available to all end-user communities;

''(xi) not less frequently than once each year, submit to the Interagency Ocean Observation Committee a report on the accomplishments, operational needs, and performance of the System to contribute to the annual and long-term plans prepared pursuant to paragraph (2)(B)(i);

''(xii) develop and periodically update a plan to efficiently integrate into the System new, innovative, or emerging technologies that have been demonstrated to be useful to the System and which will fulfill the purposes of this subtitle and the System Plan; and

''(xiii) work with users and regional associations to develop products to enable real-time data sharing for decision makers, including with respect to weather forecasting and modeling, search and rescue operations, corrosive seawater forecasts, water quality monitoring and communication, and harmful algal bloom forecasting.

''(4) REGIONAL COASTAL OBSERVING SYSTEMS.—

''(A) IN GENERAL.—A regional coastal observing system described in the System Plan as a regional association may not be certified or established under this subtitle unless it—

''(i) has been or shall be certified or established by contract or agreement by the Administrator;

''(ii) meets—

''(I) the certification standards and compliance procedure guidelines issued by the Administrator; and

''(II) the information needs of user groups in the region while adhering to national standards;

''(iii) demonstrates an organizational structure, that under funding limitations is capable of—

''(I) gathering required System observation data;

''(II) supporting and integrating all aspects of coastal and ocean observing and information programs within a region; and

''(III) reflecting the needs of State, local, and tribal governments, commercial interests, and other users and beneficiaries of the System and other requirements specified under this subtitle and the System Plan;

''(iv) identifies—

''(I) gaps in observation coverage needs for capital improvements of Federal assets and non-Federal assets of the System; and

''(II) other recommendations to assist in the development of the annual and long-term plans prepared pursuant to paragraph (2)(B)(i) and transmits such information to the Interagency Ocean Observation Committee through the Program Office established under paragraph (3)(C)(i);

''(v) develops and operates under a strategic plan that will ensure the efficient and effective administration of programs and assets to support daily data observations for integration into the System, pursuant to the standards approved by the Council;

''(vi) works cooperatively with governmental and nongovernmental entities at all levels to identify and provide information products of the System for multiple users within the service area of the regional coastal observing system; and

''(vii) complies with all financial oversight requirements established by the Administrator, including requirements relating to audits.

''(B) PARTICIPATION.—For the purposes of this subtitle, employees of Federal agencies are permitted to be members of the governing body for the regional coastal observing systems and may participate in the functions of the regional coastal observing systems.''.

(c) SYSTEM ADVISORY COMMITTEE.—Section 12304(d) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3603(d)) is amended—

(1) in paragraph (1), by striking ''or the Interagency Ocean Observing Committee.'' and inserting ''or the Council under this subtitle''; and

(2) in paragraph (2)—

(A) in subparagraph (A), by inserting '', data sharing,'' after ''data management'';

(B) in subparagraph (C), by striking ''and'' at the end;

(C) by striking subparagraph (D) and inserting the following:

''(D) additional priorities, including—

''(i) a national surface current mapping network designed to improve fine scale sea surface mapping using high frequency radar technology and other emerging technologies to address national priorities, including Coast Guard search and rescue operation planning and harmful algal bloom forecasting and detection that—

''(I) is comprised of existing high frequency radar and other sea surface current mapping infrastructure operated by national programs and regional coastal observing systems;

''(II) incorporates new high frequency radar assets or other fine scale sea surface mapping technology assets, and other assets needed to fill gaps in coverage on United States coastlines; and

''(III) follows a deployment plan that prioritizes closing gaps in high frequency radar infrastructure in the United States, starting with areas demonstrating significant sea surface current data needs, especially in areas where additional data will improve Coast Guard search and rescue models;

''(ii) fleet acquisition for unmanned maritime systems for deployment and data integration to fulfill the purposes of this subtitle;

''(iii) an integrative survey program for application of unmanned maritime systems to the real-time or near real-time collection and transmission of sea floor, water column, and sea surface data on biology, chemistry, geology, physics, and hydrography;

''(iv) remote sensing and data assimilation to develop new analytical methodologies to assimilate data from the System into hydrodynamic models;

''(v) integrated, multi-State monitoring to assess sources, movement, and fate of sediments in coastal regions;

''(vi) a multi-region marine sound monitoring system to be—

''(I) planned in consultation with the Interagency Ocean Observation Committee, the National Oceanic and Atmospheric Administration, the Department of the Navy, and academic research institutions; and

''(II) developed, installed, and operated in coordination with the National Oceanic and Atmospheric Administration, the Department of the Navy, and academic research institutions; and

''(E) any other purpose identified by the Administrator or the Council.'';

(D) in paragraph (3)(B), by inserting ''The Administrator may stagger the terms of the System advisory committee members.'' before ''Members''; and

(E) in paragraph (4)—

(i) in subparagraph (A), by striking ''and the Interagency Ocean Observing Committee''; and

(ii) in subparagraph (C), by striking ''Observing'' and inserting ''Observation''.

(d) CIVIL LIABILITY.—Section 12304(e) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3603(e)) is amended—

(1) by striking ''information coordination entity'' each place it appears and inserting ''coastal observing system''; and

(2) by striking ''contract, lease, grant, or cooperative agreement under subsection (c)(3)(D)'' and inserting ''a memorandum of agreement of certification under subsection (c)(3)(C)(iii)''.

(e) CONFORMING AMENDMENTS.—The Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3601 et seq.) is amended by striking ''regional information coordination entities'' each place it appears and inserting ''regional coastal observing systems''.

SEC. 104. FINANCING AND AGREEMENTS.

Section 12305(a) of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3604(a)) is amended to read as follows:

''(a) IN GENERAL.—The Secretary of Commerce may execute an agreement, on a reimbursable or nonreimbursable basis, with any State or subdivision thereof, any Federal agency, any public or private organization, or any individual to carry out activities under this subtitle.''.

SEC. 105. REPORTS TO CONGRESS.

Section 12307 of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3606) is amended to read as follows:

''SEC. 12307. REPORT TO CONGRESS.

''(a) REQUIREMENT.—Not later than March 30, 2022, and every 5 years thereafter, the Administrator shall prepare, and the President acting through the Council shall approve and transmit to Congress, a report on progress made in implementing this subtitle.

''(b) CONTENTS.—Each report required under subsection (a) shall include—

''(1) a description of activities carried out under this subtitle and the System Plan;

''(2) an evaluation of the effectiveness of the System, including an evaluation of progress made by the Council to achieve the goals identified under the System Plan;

''(3) the identification of Federal and non-Federal assets as determined by the Council that have been integrated into the System, including assets essential to the gathering of required observation data variables necessary to meet the respective missions of Council agencies;

''(4) a review of procurements, planned or initiated, by each department or agency represented on the Council to enhance, expand, or modernize the observation capabilities and data products provided by the System, including data management and communication subsystems;

''(5) a summary of the existing gaps in observation infrastructure and monitoring data collection, including—

''(A) priorities considered by the System advisory committee;

''(B) the national sea surface current mapping network;

''(C) coastal buoys;

''(D) ocean chemistry monitoring;

''(E) marine sound monitoring; and

''(F) unmanned maritime systems technology gaps;

''(6) an assessment regarding activities to integrate Federal and non-Federal assets, nationally and on the regional level, and discussion of the performance and effectiveness of regional coastal observing systems to coordinate regional observation operations;

''(7) a description of benefits of the program to users of data products resulting from the System (including the general public, industries, scientists, resource managers, emergency responders, policy makers, and educators);

''(8) recommendations, if any, concerning—

''(A) modifications to the System; and

''(B) funding levels for the System in subsequent fiscal years; and

''(9) the results of a periodic external independent programmatic audit of the System.''.

SEC. 106. PUBLIC-PRIVATE USE POLICY.

Section 12308 of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3607) is amended to read as follows:

''SEC. 12308. PUBLIC-PRIVATE USE POLICY.

''The Council shall maintain a policy that defines processes for making decisions about the roles of the Federal Government, the States, regional coastal observing systems, the academic community, and the private sector in providing to end-user communities environmental information, products, technologies, and services related to the System. The Administrator shall ensure that the National Oceanic and Atmospheric Administration adheres to the decision making process developed by the Council regarding the roles of the Federal Government, the States, the regional coastal observing systems, the academic community, and the private sector in providing end-user communities environmental information, data products, technologies, and services related to the System.''.

SEC. 107. REPEAL OF INDEPENDENT COST ESTIMATE.

(a) IN GENERAL.—The Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3601 et seq.) is amended by striking section 12309 (33 U.S.C. 3608).

(b) TABLE OF CONTENTS AMENDMENT.—The table of contents in section 1(b) of the Omnibus Public Land Management Act of 2009 (Public Law 111–11; 123 Stat. 991) is amended by striking the item related to section 12309.

SEC. 108. AUTHORIZATION OF APPROPRIATIONS.

Section 12311 of the Integrated Coastal and Ocean Observation System Act of 2009 (33 U.S.C. 3610) is amended to read as follows:

''SEC. 12311. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated to the Secretary of Commerce to support the integrated oceans observations under this subtitle—

''(1) $48,000,000 for fiscal year 2021;

''(2) $50,000,000 for fiscal year 2022;

''(3) $52,000,000 for fiscal year 2023;

''(4) $54,000,000 for fiscal year 2024; and

''(5) $56,000,000 for fiscal year 2025.''.

SEC. 109. REPORTS AND RESEARCH PLANS.

Section 12404(c) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3703(c)) is amended by adding at the end the following:

''(4) ECONOMIC VULNERABILITY REPORT.—

''(A) IN GENERAL.—Not later than 2 years after the date of the enactment of the Coordinated Ocean Observations and Research Act of 2020, and every 6 years thereafter, the Subcommittee shall transmit to the appropriate committees of Congress a report that—

''(i) is named the 'Ocean Chemistry Coastal Community Vulnerability Assessment';

''(ii) identifies gaps in ocean acidification monitoring by public, academic, and private assets in the network of regional coastal observing systems;

''(iii) identifies geographic areas which have gaps in ocean acidification research;

''(iv) identifies United States coastal communities, including island communities, fishing communities, low-population rural communities, tribal and subsistence communities, and island communities, that may be impacted by ocean acidification;

''(v) identifies impacts of changing ocean carbonate chemistry on the communities described in clause (iv), including impacts from changes in ocean and coastal marine resources that are not managed by the Federal Government;

''(vi) identifies gaps in understanding of the impacts of ocean acidification on economically or commercially important species, particularly those which support United States commercial, recreational, and tribal fisheries and aquaculture;

''(vii) identifies habitats that may be particularly vulnerable to corrosive sea water, including areas experiencing multiple stressors such as hypoxia, sedimentation, and harmful algal blooms;

''(viii) identifies areas in which existing National Integrated Coastal and Ocean Observation System assets, including unmanned maritime systems, may be leveraged as platforms for the deployment of new sensors or other applicable observing technologies;

''(ix) is written in collaboration with Federal agencies responsible for carrying out this subtitle, including representatives of—

''(I) the National Marine Fisheries Service and the Office for Coastal Management of the National Oceanic and Atmospheric Administration;

''(II) regional coastal observing systems established under section 12304(c)(4);

''(III) regional ocean acidification networks; and

''(IV) sea grant programs (as defined in section 203 of the National Sea Grant College Program Act (33 U.S.C. 1122)); and

''(x) is written in consultation with experts, including subsistence users, academia, and stakeholders familiar with the economic, social, ecological, geographic, and resource concerns of coastal communities in the United States.

''(B) FORM OF REPORT.—

''(i) INITIAL REPORT.—The initial report required under subparagraph (A) shall include the information described in clauses (i) through (viii) of that subparagraph on a national level.

''(ii) SUBSEQUENT REPORTS.—Each report required under subparagraph (A) after the initial report—

''(I) may describe the information described in clauses (i) through (viii) of that subparagraph on a national level; or

''(II) may consist of separate reports for each region of the National Oceanic and Atmospheric Administration.

''(iii) REGIONAL REPORTS.—If the Subcommittee opts to prepare a report required under subparagraph (A) as separate regional reports under clause (ii)(II), the Subcommittee shall submit a report for each region of the National Oceanic and Atmospheric Administration not less frequently than once during each 6-year reporting period.

''(C) APPROPRIATE COMMITTEES OF CONGRESS DEFINED.—In this paragraph and in paragraph (5), the term 'appropriate committees of Congress' means the Committee on Commerce, Science, and Transportation of the Senate, the Committee on Science, Space, and Technology of the House of Representatives, and the Committee on Natural Resources of the House of Representatives.

''(5) MONITORING PRIORITIZATION PLAN.—Not later than 180 days after the date of the submission of the initial report under paragraph (4)(A), the Subcommittee shall transmit to the appropriate committees of Congress a report that develops a plan to deploy new sensors or other applicable observing technologies such as unmanned maritime systems—

''(A) based on such initial report;

''(B) prioritized by—

''(i) the threat to coastal economies and ecosystems;

''(ii) gaps in data; and

''(iii) research needs; and

''(C) that leverage existing platforms, where possible.''.

SEC. 110. STRATEGIC RESEARCH PLAN.

(a) CONTENTS.—Section 12405(b) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3704(b)) is amended—

(1) in paragraph (8), by striking ''and'' at the end;

(2) in paragraph (9), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(10) make recommendations for research to be conducted, including in the social sciences and economics, to address the key knowledge gaps identified in the Ocean Chemistry Coastal Community Vulnerability Assessment conducted under section 12404(c)(4).''.

(b) PROGRAM ELEMENTS.—Section 12405(c) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3704(c)) is amended by adding at the end the following:

''(6) Research to understand the combined impact of changes in ocean chemistry and other stressors, including sediment delivery, hypoxia, and harmful algal blooms, on each other and on living marine resources, including aquaculture and coastal ecosystems.

''(7) Applied research to identify adaptation strategies for species impacted by changes in ocean chemistry including vegetation-based systems, shell recycling, species and genetic diversity, applied technologies, aquaculture methodologies, and management recommendations.''.

(c) PARTICIPATION.—Section 12405(e) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3704(e)) is amended in the first sentence by inserting '', tribal governments, and subsistence users'' after ''groups''.

(d) REVISED STRATEGIC RESEARCH PLAN.—Not later than one year after the date of the enactment of this Act, the Joint Subcommittee on Ocean Science and Technology of the National Science and Technology

Council shall submit to Congress a revised strategic research plan under section 12405 of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3704) that includes the matters required by the amendments made by this section.

SEC. 111. STAKEHOLDER INPUT ON MONITORING.

Section 12406(a) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3705(a)) is amended—

(1) in paragraph (2), by striking ''and'' at the end;

(2) in paragraph (3), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(4) includes an ongoing mechanism that allows industry members, coastal stakeholders, fishery management councils and commissions, non-Federal resource managers, community acidification networks, indigenous knowledge groups, and scientific experts to provide input on monitoring needs that are necessary to support on the ground management, decision making, and adaptation related to ocean acidification and its impacts.''.

SEC. 112. RESEARCH ACTIVITIES.

Section 12407(a) of the Federal Ocean Acidification Research And Monitoring Act of 2009 (33 U.S.C. 3706(a)) is amended to read as follows:

''(a) RESEARCH ACTIVITIES.—The Director of the National Science Foundation shall continue to carry out research activities on ocean acidification which shall support competitive, merit-based, peer-reviewed proposals for research, observation, and monitoring of ocean acidification and its impacts, including—

''(1) impacts on marine organisms, including species cultured for aquaculture, and marine ecosystems;

''(2) impacts on ocean, coastal, and estuarine biogeochemistry;

''(3) the development of methodologies and technologies to evaluate ocean acidification and its impacts; and

''(4) impacts of multiple stressors on ecosystems exhibiting hypoxia, harmful algal blooms, or sediment delivery, combined with changes in ocean chemistry.''.

TITLE II—NAMED STORM EVENT MODEL AND POST-STORM ASSESSMENTS

SEC. 201. NAMED STORM EVENT MODEL AND POST-STORM ASSESSMENTS.

(a) AMENDMENTS TO THE OMNIBUS PUBLIC LAND MANAGEMENT ACT OF 2009.—Section 12312 of the Omnibus Public Land Management Act of 2009 (33 U.S.C. 3611) is amended—

(1) in subsection (a)—

(A) in paragraph (2), by striking the period at the end and inserting the following: '', except that the term shall not apply with respect to a State or territory that has an operational wind and flood loss allocation system.'';

(B) in paragraph (6), by inserting ''sustained'' before ''winds''; and

(C) in paragraph (7), by striking ''that threaten any portion of a coastal State'' and inserting ''for which post-storm assessments are conducted'';

(2) in subsection (b)—

(A) in paragraph (1)—

(i) in subparagraph (A)—

(I) by striking ''540 days after the date of the enactment of the Consumer Option for an Alternative System to Allocate Losses Act of 2012'' and inserting ''December 31, 2020''; and

(II) by striking ''by regulation'';

(ii) in subparagraph (B), by striking ''every'' and inserting ''an''; and

(iii) by adding at the end the following:

''(C) PUBLIC REVIEW.—The Administrator shall seek input and suggestions from the public before the Named Storm Event Model, or any modification to the Named Storm Event Model, takes effect.''; and

(B) in paragraph (2)—

(i) by redesignating subparagraphs (B) and (C) as subparagraphs (D) and (E), respectively;

(ii) by inserting after subparagraph (A) the following:

''(B) DATA COLLECTION.—

''(i) IN GENERAL.—Upon identification of a named storm under subparagraph (A), and pursuant to the protocol established under subsection (c), the Administrator may deploy sensors to enhance the collection of covered data in the areas in coastal States that the Administrator determines are at the highest risk of experiencing geophysical events that would cause indeterminate losses.

''(ii) RULE OF CONSTRUCTION.—If the Administrator takes action under clause (i), that action may not be construed as indicating that a post-storm assessment will be developed for any coastal State in which that action is taken.

''(C) IDENTIFICATION OF INDETERMINATE LOSSES IN COASTAL STATES.—Not later than 30 days after the first date on which sustained winds of not less than 39 miles per hour are measured in a coastal State during a named storm identified under subparagraph (A), the Secretary of Homeland Security shall notify the Administrator with respect to the existence of any indeterminate losses in that coastal State resulting from that named storm.'';

(iii) in subparagraph (D), as so redesignated—

(I) by striking ''identification of a named storm under subparagraph (A)'' and inserting ''confirmation of indeterminate losses identified under subparagraph (C) with respect to a named storm''; and

(II) by striking ''assessment for such named storm'' and inserting ''assessment for each coastal State that suffered such indeterminate losses as a result of the named storm'';

(iv) in subparagraph (E), as so redesignated—

(I) by striking ''an identification of a named storm is made under subparagraph (A)'' and inserting ''any indeterminate losses are identified under subparagraph (C)''; and

(II) by striking ''for such storm under subparagraph (B)'' and inserting ''under subparagraph (D) for any coastal State that suffered such indeterminate losses''; and

(v) by adding at the end the following:

''(F) SEPARATE POST-STORM ASSESSMENTS FOR A SINGLE NAMED STORM.—

''(i) IN GENERAL.—The Administrator may conduct a separate post-storm assessment for each coastal State in which indeterminate losses are identified under subparagraph (C).

''(ii) TIMELINE.—If the Administrator conducts a separate post-storm assessment under clause (i), the Administrator shall complete the assessment based on the dates of actions that the Administrator takes under subparagraph (D).''; and

(3) in subsection (c)—

(A) in paragraph (1), by striking ''540 days after the date of the enactment of the Consumer Option for an Alternative System to Allocate Losses Act of 2012'' and inserting ''December 31, 2020'';

(B) in paragraph (2), by inserting '', in the discretion of the Administrator,'' after ''of sensors as may''; and

(C) in paragraph (4)(B), by inserting ''and expend'' after ''receive''.

(b) AMENDMENTS TO THE NATIONAL FLOOD INSURANCE ACT OF 1968.—Section 1337 of the National Flood Insurance Act of 1968 (42 U.S.C. 4057) is amended—

(1) in subsection (a)—

(A) in paragraph (3), by striking the period at the end and inserting the following: '', except that the term shall not apply with respect to a State or territory that has an operational wind and flood loss allocation system.''; and

(B) in paragraph (5), by inserting ''sustained'' after ''maximum'';

(2) in subsection (b)—

(A) in paragraph (1), by striking ''establish by rule'' and inserting ''publish for comment in the Federal Register''; and

(B) in paragraph (2)(B), by inserting after ''Elevation Certificate'' the following: '', or other data or information used to determine a property's current risk of flood, as determined by the Administrator,'';

(3) in subsection (c)(3)(A)(i), by striking ''the issuance of the rule establishing the COASTAL Formula'' and inserting ''publication of the COASTAL Formula in the Federal Register as required by subsection (b)(1)'';

(4) in subsection (d), by striking ''section 12312(b)(2)(C)'' and inserting ''section 12312(b)(2)(E)'';

(5) in subsection (h)—

(A) by inserting ''that issues a standard flood insurance policy under the national flood insurance program'' after ''company''; and

(B) by striking ''or the COASTAL Formula'' and inserting '', the COASTAL Formula, or any other loss allocation or post-storm assessment arising under the laws or ordinances of any State'';

(6) in subsection (i), by striking ''after the date on which the Administrator issues the rule establishing the COASTAL Formula under subsection (b)'' and inserting ''60 days after publication of the COASTAL Formula in the Federal Register as required by subsection (b)(1)''; and

(7) by adding at the end the following:

''(k) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to create a cause of action under this Act.''.

TITLE III—WATER PREDICTION AND FORECASTING

SEC. 301. WATER PREDICTION AND FORECASTING.

(a) NATIONAL WATER CENTER.—

(1) ESTABLISHMENT.—

(A) IN GENERAL.—The Under Secretary of Commerce for Oceans and Atmosphere shall establish a center—

(i) to serve as the research and operational center of excellence for hydrologic analyses, forecasting, and related decision support services within the National Oceanic and Atmospheric Administration and the National Weather Service; and

(ii) to facilitate collaboration across Federal and State departments and agencies, academia, and the private sector on matters relating to water resources.

(B) DESIGNATION.—The center established under subparagraph (A) shall be known as the ''National Water Center''.

(2) FUNCTIONS.—The functions of the National Water Center shall include the following:

(A) Improving understanding of water resources, stakeholder needs regarding water resources, and identifying science and services gaps relating to water resources.

(B) Developing and implementing advanced water resources modeling capabilities.

(C) Facilitating the transition of hydrologic research into operations.

(D) Delivering analyses, forecasts, and inundation information and guidance for all hydrologic events in the United States, including flash flooding, riverine flooding, and water resources outlooks.

(E) In coordination with warning coordination meteorologists, providing decision-support services to inform emergency management and water resources decisions.

(b) NATIONAL INSTRUCTIONS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Under Secretary, acting through the Director of the National Weather Service, shall make public an operations and services policy directive for the National Water Center.

(2) CONTENTS.—The directive required by paragraph (1) shall include national instructions to perform the functions of the National Water Center, including the following:

(A) Operational staff responsibilities.

(B) Guidelines for content, format, and provision of hydrologic and inundation products developed by the National Water Center.

(C) Procedures for cooperation and coordination between the National Water Center, the National Weather Service National Centers for Environmental Prediction, National Weather Service River Forecast Centers, and National Weather Service Weather Forecast Offices.

(c) TOTAL WATER PREDICTION.—The Under Secretary, acting through the Director of the Office of Water Prediction of the National Weather Service, shall—

(1) initiate and lead research and development activities to develop operational water resource prediction and related decision support products;

(2) collaborate with, and provide decision support regarding total water prediction to—

(A) the relevant Federal agencies represented on the National Science and Technology Council, Committee on Environment, Natural Resources, and Sustainability and the Subcommittee on Disaster Reduction;

(B) State water resource agencies; and

(C) State and local emergency management agencies; and

(3) in carrying out the responsibilities described in paragraphs (1) and (2), collaboratively develop capabilities necessary for total water predictive capacity, including observations, modeling, data management, supercomputing, social science, and communications.

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out the activities under this section amounts as follows:

(1) $44,500,000 for fiscal year 2021.

(2) $45,000,000 for fiscal year 2022.

(3) $45,500,000 for fiscal year 2023.

(4) $46,000,000 for fiscal year 2024.

(e) DERIVATION OF FUNDS.—Funds to carry out this section shall be derived from amounts authorized to be appropriated to the National Weather Service and the National Ocean Service that are enacted after the date of the enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, S. 914, the Coordinated Ocean Observations and Research Act, would reauthorize the Integrated Coastal and Ocean Observation System Act of 2009, called IOOS for short.

For over 10 years now, the National Oceanic and Atmospheric Administration, or NOAA, has implemented this data-driven national regional partnership to successfully improve safety, enhance the economy, and protect the environment.

IOOS is a coordinated network of people and technology consisting of Federal partners and regional associations that generates and disseminates continuous data and models for our oceans and the Great Lakes. These data give us a crucial understanding of environmental variables, like temperature, salinity, currents, nutrient concentrations, contaminant levels, and more.

This bill would also clarify the authority of NOAA in regards to post-storm assessments, which NOAA has been doing the work for since it was appropriated funds in 2016. The bill makes technical challenges to the COASTAL Act of 2012 so that NOAA can successfully collect the required data to perform post-storm assessments and then provide that information to FEMA.

And finally, this legislation would codify establishment of the National Water Center as the primary facility for hydrologic decision support services. As we saw from the historic flooding events last year, it is critical that NOAA has these decision support tools.

In the face of climate change, it is so important that our environmental planners and managers have the tools they need to ensure safety for the American people and the longevity of our coastal natural resources. The Coordinated Ocean Observations and Research Act will put us on that path.

Mr. Speaker, I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of S. 914.

This bill, the Coordinated Ocean Observations and Research Act, will reauthorize the U.S. Integrated Ocean Observing System, better known as IOOS, and increase Federal support for ocean data collection and monitoring efforts, which are vital to coastal and island communities across the Nation.

Why this bill is important is, as you may know, living in Puerto Rico and after the hurricanes, this program, it was so important for communities in the Caribbean as well as many other coastal communities across the Nation.

This network consists of 17 Federal agencies and 11 regional associations that provide quality information about our coasts, oceans, and Great Lakes. And through the use of tools such as satellites, buoys, and underwater gliders, the system delivers accurate data that is critical to support coastal economies, maritime commerce, and navigation safety.

These products are also used to improve hurricane tracking and weather forecasts, monitor water quality, conduct research on coastal ecosystems, and support the U.S. Coast Guard search and rescue operations. That was the reason I was supporting this, and, of course, the dean of the House, Mr. DON YOUNG, who is showing the way for many of us arriving to the House after him.

In the case of Puerto Rico, we know firsthand the importance of this system. The Caribbean Coastal Ocean Observing System is one of the networks's 11 regional associations that is based on the island. Among other things, it helps support port and harbor operations, as well as inter-island shipping and cruising, by providing observations and models of coastal weather, waves, wind, and currents in the waters surrounding Puerto Rico and the U.S. Virgin Islands.

These system assets were particularly instrumental when Hurricanes Irma and Maria struck in 2017. While Puerto Rico was without power and communications, our buoys kept reporting data via satellite, providing crucial information that was utilized by NOAA's National Hurricane Center in Miami and other stakeholders. Reauthorizing this system network is necessary to continue supporting this and other similar efforts across the country and to ensure that we are delivering accurate and continuous data on our oceans and coast.

Mr. Speaker, I should mention, as well, that while we are taking up a Senate bill, the dean of the House, DON YOUNG, has been a dedicated supporter of this program for many, many years and has sponsored a House companion bill. You may have all heard that the dean of the House recently tested positive for COVID, as I did in August, and we are all hoping that he remains strong, as he is, fierce, and well after his resounding reelection victory.

Mr. Speaker, in conclusion, I know many folks living in coastal communities around the Nation will benefit from the enactment of this legislation here today. So not just by the people living in the islands or in coastal communities, but in solidarity with Congressman YOUNG, I urge the adoption of the measure and reserve the balance of my time.

Mr. CASE. Mr. Speaker, I certainly do deeply appreciate the comments of my colleague from Puerto Rico, and she knows, as well as I do, as members of the Island Caucus—and we include in the Island Caucus the largest island of all, Alaska, Mr. YOUNG's island—the deep importance of this system. It is a matter of life and death to us in many areas and many ways, and so we all fully endorse this bill from that perspective.

Mr. Speaker, I have no further speakers. I am prepared to close, and I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield 4 minutes to the gentleman from Alaska (Mr. YOUNG), dean of the House.

(Mr. YOUNG asked and was given permission to revise and extend his remarks.)

Mr. YOUNG. Mr. Speaker, I thank my good chairwoman for yielding the time and my good friend on the other side from Hawaii, one of my brother States, for this piece of legislation; Congresswoman BONAMICI for a very bipartisan bill with Senator ROGER WICKER, DAN SULLIVAN, involved in this legislation. It has been hard work, dedication to our coasts, our oceans, and the Great Lakes.

Mr. Speaker, we sometimes forget, we hear a lot about climate change, et cetera, but one of the biggest challenges we have is the condition of our oceans and how we can clean it up, but only keep that in your mind so maybe we can go forth in the future to really solve some of these problems, especially with the plastics.

This bill, which includes technical changes implemented by the Senate, would reauthorize the Integrated Coastal and Ocean Observation System Act through the fiscal year of 2024.

The 11 regional association networks of the Integrated Ocean Observing System work with regional partners to develop, operate, and maintain more than 300 observing assets that collect oceanographic and coastal data, including information about rising sea levels, coastal flooding, and harmful algal blooms.

This program is a simple system with multiple uses.

I will say that a cost-effective approach of fulfilling this Nation's need for coastal data is very important.

The data from these systems enables the Coast Guard to reduce the size of their search areas by two-thirds. The data is also used for tracking oil spills, providing mariners with sea state conditions, and for ship detection.

During the Deepwater Horizon oil spill, IOOS regions responded by deploying high-frequency radars and underwater gliders to the region to assist with monitoring the spill. IOOS data standards enabled the Federal command center to use non-Federal sources of data for the first time. NOAA's Office of Response and Restoration now routinely uses this data in their oil spill response.

It also provides core observations for water level, waves, winds, et cetera, and it helps to protect against flooding and surges of the sea.

Mr. Speaker, this is a good, bipartisan piece of legislation. I hope it will save lives.

We just had an instance in Haines, Alaska, where huge waves and rain destroyed a lot of our coastal areas. That just happened yesterday. This will help us try to make sure that we would have known that ahead of time.

It will save us money.

I would really like to congratulate everybody here on a bipartisan piece of legislation. It is long overdue. We will get the problems solved with oceans.

This is a good piece of legislation, and I urge my colleagues to support it.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I urge my colleagues to support this invaluable legislation for our oceans and all of us, and I yield back the balance of my time.

Ms. BONAMICI. Mr. Speaker, as Co-Chair of the House Oceans Caucus, I rise in support of S. 914, a bill to reauthorize and increase funding for the Integrated Coastal and Ocean Observation System.

The ocean covers more than 70 percent of the planet, but despite our intrinsic connection to our ocean we know very little about what is beneath its surface. The eleven Integrated Ocean Observing System regional networks use satellites, buoys, underwater gliders, and tide gauges to deliver accurate and continuous data on our ocean and coasts. I was pleased to work with my House Oceans Caucus Co-Chair, Congressman DON YOUNG, on the House companion to reauthorize these important ocean observation efforts.

Coastal communities, like those I represent in Northwest Oregon, rely on accurate ocean data and monitoring for information about ocean acidification, harmful algal blooms and hypoxia, sea level rise, flooding, navigation, and port security. In the Pacific Northwest, we are fortunate to have the Northwest Association of Networked Ocean Observing Systems leading the way. Tribes, commercial fisheries, emergency responders, and public health officials rely on the free and open access data collected by NANOOS to learn about threats to the health of our ocean. I am excited about the partnership between NANOOS and the Columbia River Inter-Tribal Fish Commission that focuses on the Center for Coastal Margin Observation and Prediction and will help to further our understanding of ocean-estuary interactions. I appreciate the continued innovation from NANOOS to meet the needs of our communities along the Pacific Coast and the Columbia River.

I am also pleased that this bill directs NOAA to conduct a vulnerability assessment to identify communities that are dependent on coastal and ocean resources and that may be affected by ocean acidification. I am grateful for the bipartisan support for strengthening our understanding of the socioeconomic effects of ocean acidification on a range of geographically diverse coastal communities, and I look forward to continuing to work with my colleagues on this issue.

To protect and preserve one of our planet's greatest natural resources, we must rapidly accelerate the collection, management, and dissemination of ocean data collection and monitoring. I recently joined my colleagues on the House Select Committee on the Climate Crisis in releasing a bold, science-based comprehensive Climate Action Plan to set our nation on a path to net-zero emissions no later than midcentury and net-negative thereafter. I'm thrilled that our plan for solving the climate crisis recognizes the power of our ocean as part of the solution. Our Climate Action Plan specifically includes the Coordinated Ocean Observations and Research Act to strengthen ocean observations.

Thank you to NANOOS for their efforts to accurately predict, model, and manage ocean observation data that support the needs of our region. I urge all of my colleagues to support this bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, S. 914, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

□ 1800

GREAT LAKES ENVIRONMENTAL SENSITIVITY INDEX ACT OF 2020

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 1342) to require the Under Secretary for Oceans and Atmosphere to update periodically the environmental sensitivity index products of the National Oceanic and Atmospheric Administration for each coastal area of the Great Lakes, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 1342

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Great Lakes Environmental Sensitivity Index Act of 2020''.

SEC. 2. UPDATE TO ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS OF NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION FOR GREAT LAKES.

(a) UPDATE REQUIRED FOR ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS FOR GREAT LAKES.—Not later than 180 days after the date of the enactment of this Act, the Under Secretary for Oceans and Atmosphere shall commence updating the environmental sensitivity index products of the National Oceanic and Atmospheric Administration for each coastal area of the Great Lakes.

(b) PERIODIC UPDATES FOR ENVIRONMENTAL SENSITIVITY INDEX PRODUCTS GENERALLY.—Subject to the availability of appropriations and the priorities set forth in subsection (c), the Under Secretary shall—

(1) periodically update the environmental sensitivity index products of the Administration; and

(2) endeavor to do so not less frequently than once every 7 years.

(c) PRIORITIES.—When prioritizing geographic areas to update environmental sensitivity index products, the Under Secretary shall consider—

(1) the age of existing environmental sensitivity index products for the areas;

(2) the occurrence of extreme events, be it natural or man-made, which have significantly altered the shoreline or ecosystem since the last update;

(3) the natural variability of shoreline and coastal environment; and

(4) the volume of vessel traffic and general vulnerability to spilled pollutants.

(d) ENVIRONMENTAL SENSITIVITY INDEX PRODUCT DEFINED.—In this section, the term

''environmental sensitivity index product'' means a map or similar tool that is utilized to identify sensitive shoreline, coastal or offshore, resources prior to an oil spill event in order to set baseline priorities for protection and plan cleanup strategies, typically including information relating to shoreline type, biological resources, and human use resources.

(e) FUNDING.—Funds to carry out the activities under this section shall be derived from amounts authorized to be appropriated for the Under Secretary that are enacted after the date of the enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am very happy today to rise in support of S. 1342, the Great Lakes Environmental Sensitivity Index Act. I commend my colleagues, Senators Peters and Young and Representatives Kildee and Joyce, for their bipartisan, bicameral efforts on this legislation.

The Great Lakes are the largest freshwater system by area in the world and are home to highly productive commercial and recreational fisheries, thriving coastal communities, and unique aquatic and terrestrial species.

This legislation ensures that the Great Lakes are not left behind in environmental planning. The bill requires that the National Oceanic and Atmospheric Administration, or NOAA, update at least once every 7 years its environmental sensitivity index products for each coastal area of the Great Lakes.

These environmental sensitivity indexes, or ESI maps, are crucial tools used in identifying sensitive coastal shorelines, biological resources, and human-use resources prior to a disaster like an oil spill. In emergencies, coastal managers and responders can then use these ESI maps to properly assess the situation, allocate and prioritize resources, and plan cleanups.

The last time the Great Lakes environmental sensitivity indexes were updated was in the 1980s. As we all know, between the climate crisis and human development, our environment has changed dramatically across our country and world in that time.

In the Great Lakes, for example, we are seeing record-setting water levels and harmful algal blooms. How these environmental factors would interact with a disaster like an oil spill is, unfortunately, largely guesswork with our outdated information.

It is so important that we pass this much-needed, commonsense legislation so that the Great Lakes region is prepared in the event of an unthinkable oil spill or other natural disaster.

Mr. Speaker, I urge my colleagues to join me in supporting the Great Lakes Environmental Sensitivity Index Act, and I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield 3 minutes to the gentleman from Michigan (Mr. HUIZENGA).

Mr. HUIZENGA. Mr. Speaker, in the midst of a divided Washington, D.C., it is important that Congress comes together to prioritize the protection of the Great Lakes.

As co-chair of the bipartisan Great Lakes Task Force, building bipartisan consensus that preserves the Great Lakes, strengthens their economy, and protects them for future generations has been one of my top priorities.

While the environmental sensitivity index maps may not be the headline-grabbing legislation that we are sometimes used to, these maps are critical to the communities across the Great Lakes.

We must have accurate assessments of coastal resources that are at risk of severe damage from an emergency or a natural disaster. These environmental assessments include information on endangered and threatened species, vulnerable shorelines, and widely used community resources, such as beaches, parks, and boat ramps.

The maps are vital to disaster planning, as well as recovery, research, and restoration efforts. It is essential that we have an accurate representation of vulnerable locations and areas in the Great Lakes that are in need of protection in the event of an emergency.

While maps for the East Coast, the West Coast, and the Gulf Coast have all been updated recently, maps for the Great Lakes have not been updated in over 20 years.

To be clear, while the Great Lakes holds over 20 percent of the world's fresh water, providing drinking water to more than 48 million people, it supports over 1.3 million jobs, and generates billions upon billions of dollars in economic activity. Yet, as I stated before, our region hasn't had a proper environmental map update in more than two decades.

This legislation, of which I am a proud cosponsor, would solve this problem by modernizing and updating our maps of the Great Lakes.

Along Lake Michigan and throughout the Great Lakes shoreline, the current state of erosion and high water damage is at a crisis point.

In my district, along the shores of Lake Michigan, the high water levels are threatening not only people's homes and public infrastructure but the overall ecology and the economy of the Great Lakes.

Communities throughout the region have declared states of emergency as roads, bridges, harbors, and wastewater treatment facilities, just to name a few, are in danger due to these high water levels.

As we continue to see disasters and emergencies in the Great Lakes region, government, at all levels, must be prepared and have up-to-date information to act upon. This bipartisan bill would accomplish that, while demonstrating another way my Michigan colleagues and I, and really all of us from the Great Lakes region, are making sure the Federal Government prioritizes and protects and preserves the Great Lakes.

Whether it is responding to rapidly evolving events, such as a natural disaster, or planning long-term projects, such as habitat restoration, we need to have reliable and accurate information available to all the players.

When it comes to protecting our lakes, habitats, and shorelines, these updated maps will allow us to better prepare to face natural disasters or emergencies.

The SPEAKER pro tempore. The time of the gentleman has expired.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Michigan (Mr. HUIZENGA).

Mr. HUIZENGA. Mr. Speaker, having this updated information will help us analyze and assess the threats facing the Great Lakes and allow us to be more proactive instead of 100 percent reactive.

The Great Lakes are a way of life for many of us in west Michigan and throughout the Great Lakes system, and these pristine resources help define who we are as a community and a people. I will continue to work, support, and advocate for commonsense reforms like today's legislation that will protect these incredible natural resources for generations to come.

I do want to thank my fellow colleagues who have been working on this, Mr. KILDEE from Michigan, Mr. JOYCE from Ohio, and the rest of the Great Lakes Task Force. This has been a great, true bipartisan success story, as we have looked at increasing funding for protecting the Great Lakes through the Great Lakes Restoration Initiative, the GLRI, as well as initiatives like this.

Mr. CASE. Mr. Speaker, I yield 2 minutes to the gentleman from Michigan (Mr. KILDEE), the co-introducer of this important legislation.

Mr. KILDEE. Mr. Speaker, I rise also in support of S. 1342, the Great Lakes Environmental Sensitivity Index Act of 2020.

I was proud to introduce this legislation here in the House with my Michigan colleagues and also with Senator GARY PETERS, a Great Lakes champion on the other side of the building. During his time in the House and the Senate, GARY PETERS has been a staunch advocate for the Great Lakes, and I appreciate his efforts over there.

Mr. Chairman, I represent 118 miles of beautiful Lake Huron shoreline. In Congress, I am proud to lead the bipartisan effort on this legislation to protect the Great Lakes.

This legislation, as has been stated, would update and prioritize environmental sensitivity index maps for the Great Lakes. These environmental sensitivity maps are detailed guides that highlight vulnerable locations, structures, and natural resources along our lakeshore.

First responders use these maps to respond in case of emergency and to protect habitat, species, and structures that are most likely to be impacted by an oil spill or some other disaster.

If one of those disasters occurs in the Great Lakes, our emergency responders must have the most up-to-date maps and information in order to respond quickly and effectively.

These maps are maintained by NOAA. Some maps in the Great Lakes, however, have not been updated in decades. That is why this legislation is necessary, so that our first responders have the most up-to-date information to do their jobs effectively. We can't have one hand tied behind our back when protecting the Great Lakes.

The Great Lakes are important to all of us. They support many jobs, generate billions of dollars in economic activity, and provide drinking water to 40 million people. We have to do everything we can to protect them.

It also defines literally who we are. If you are from Michigan, you can hold up your hand, and the contour of the lakes really defines the shape of our State.

I would like to thank Chairman GRIJALVA and Chairman HUFFMAN for their help in getting this to the floor today. I want to thank my own staff, Jordan Dickinson. I want to thank Rachel Gentile from the Natural Resources Committee.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. CASE. Mr. Speaker, I yield an additional 30 seconds to the gentleman from Michigan (Mr. KILDEE).

Mr. KILDEE. Mr. Speaker, finally, I want to thank my colleagues, the cosponsors on this legislation, Representative HUIZENGA, who we have heard from; Representative DINGELL; Representative JOYCE; and Representative STEVENS.

This is, as Mr. HUIZENGA said, one of those issues that allows us to cut across the normal divides. We work well together in a bipartisan fashion to protect the Great Lakes. This legislation is another example of that.

Mr. Speaker, I urge my colleagues to support this bill.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. JOYCE).

Mr. JOYCE of Ohio. Mr. Speaker, I rise today in support of the Great Lakes Environmental Sensitivity Index Act of 2020.

I was proud to join Representative KILDEE in introducing this bill to direct the National Oceanic and Atmospheric Administration to update the environmental sensitivity index maps for the Great Lakes for the first time in many years.

ESI maps document the potential impacts from coastal resiliency threats such as oil spills, coastal flooding, and storm damage from high lake levels, which have recently plagued many communities in my district.

Having grown up and lived my entire life along the shores of Lake Erie, I know that the Great Lakes are a national treasure, an economic powerhouse, and one of the United States' greatest natural resources.

As the largest system of surface fresh water on Earth, the Great Lakes provide drinking water for an estimated 48 million people, support more than 1.5 million jobs, and generate $60 billion in wages annually. That is why it is important that we work together to protect and preserve the lakes and the communities they sustain. This legislation will help us do that.

Mr. Speaker, I urge my colleagues to vote ''yes'' on this bill today.

Mr. CASE. Mr. Speaker, I am prepared to close, and I reserve the balance of my time.

Miss GONZÁLEZ-COLÓN of Puerto Rico. Mr. Speaker, the Senate passed this bill twice, without even holding a hearing. The House has not taken any action on its version of the bill, H.R. 2551, even though it has been referred to the Natural Resources Committee since last May.

The Senate Committee report on S. 1342 justified its need by stating that the environmental sensitivity index maps for the Great Lakes haven't been updated since the 1980s. It also states the maps haven't been updated since between 1985 and 2004. It just depends on which paragraph of the report you read.

Clearly, no one knows or could be bothered to find out when these maps were updated. Apparently, it doesn't matter for some people.

CBO scores this bill as costing taxpayers $2 million, but we have no idea where the administration is on this issue. No money was appropriated for these indexes in 2019, and, clearly, we don't have an answer to those questions still in this report.

Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, S. 1342, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

KETTLE CREEK BATTLEFIELD SURVEY ACT

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 306) to direct the Secretary of the Interior to conduct a special resource study of the site of the Kettle Creek Battlefield in Wilkes County, Georgia, and adjacent property, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 306

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. KETTLE CREEK BATTLEFIELD SURVEY.

(a) SHORT TITLE.—This section may be cited as the ''Kettle Creek Battlefield Survey Act''.

(b) RECONNAISSANCE SURVEY.—

(1) SURVEY.—The Secretary of the Interior (referred to in this section as the ''Secretary'') shall conduct a reconnaissance survey of the site of the Kettle Creek Battlefield in Wilkes County, Georgia, and adjacent property (referred to in this section as the ''site'').

(2) REQUIREMENTS FOR SURVEY.—In conducting the survey under paragraph (1), the Secretary shall evaluate the likelihood that resources within the site boundary would meet the four criteria for new parklands—

(A) national significance;

(B) suitability;

(C) feasibility; and

(D) need for National Park Service management.

(3) REPORT.—Not later than 1 year after the date on which funds are made available to carry out the survey under paragraph (1), the Secretary shall submit to the Committee on Natural Resources of the House of Representatives and the Committee on Energy and Natural Resources of the Senate a report that describes—

(A) the results of the survey; and

(B) any conclusions and recommendations of the Secretary.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentlewoman from Puerto Rico (Miss GONZÁLEZ-COLÓN) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

□ 1815

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous materials on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 306, the Kettle Creek Battlefield Survey Act, introduced by our colleague, Representative JODY HICE.

This bill would require the Secretary of the Interior to conduct a reconnaissance survey of the Kettle Creek Battlefield in Wilkes County, Georgia.

On February 14, 1779, at the Battle of Kettle Creek, approximately 350 patriots defeated more than 800 British loyalists in a surprise attack. The battle

marked the only significant victory in Georgia by forces opposed to British rule and impacted the course of the American Revolutionary War.

In 1975, the battlefield was added to the National Register of Historic Places to protect the site's historic and archeological resources.

This bill tasks the National Park Service with determining the best management options for these historic resources, and I would like to thank Representative HICE for his efforts on this bill.

Mr. Speaker, I urge my colleagues to support its adoption, and I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield as much time as he may consume to the gentleman from Georgia (Mr. HICE), who is the sponsor of this bill.

Mr. HICE of Georgia. Mr. Speaker, I thank the Speaker and am grateful for the bipartisan support for this bill.

I want to say a special thank you to the ranking member, Mr. BISHOP. It has been an honor to serve under him, both as the ranking member and the chairman of this committee. His leadership will be greatly missed. It has been an honor to serve with him and under his leadership, and I wish him the best in the years to come.

Mr. Speaker, I think most Americans are very familiar with great military moments in our Nation's past and our history, and all of us could name different places where some of those memorable battles occurred. But many of the Nation's finest moments took place right here in our own backyard, and many people are not even aware of some of those battles.

One of those took place in the other Washington, Washington, Georgia, in Wilkes County. As briefly was described, on February 14, 1779, there was a sizable force of British loyalists who collided with a small but ferocious band of American patriots. They were led by Colonel Andrew Pickens in the Kettle Creek area. They were outnumbered 2 to 1, and Colonel Pickens and his men suddenly attacked the Tory militia, catching them by surprise. It was a bloody battle, a severe battle, a brutal fight, but it ended up being one of the greatest victories in the southern campaign during the revolutionary time. This battle involved only a few hundred men, but the impact is enormous on the entire Revolutionary War.

In fact, Colonel Pickens himself said of the Battle of Kettle Creek: ''I believe it was the severest check and chastisement the Tories ever received in South Carolina or Georgia.''

This engagement demonstrated conclusively that while the British could hold areas and cities like Savannah or Charleston, they could never grasp hold of the southern backcountry.

The courage shown by the outnumbered patriots is nothing shy of absolutely legendary, and they are still honored in Georgia today. One of those stories that I would like to share today is of an individual named Austin Dabney.

Despite being a slave, Mr. Dabney served with honor and distinction in the patriot military until he was shot in the thigh in the Battle of Kettle Creek. Though crippled and returned to servitude, Mr. Dabney's actions were never forgotten. In fact, after the war, in 1786, an official act of the Georgia legislature emancipated Mr. Dabney, and they granted him both land and a lifetime pension. This only scratches the surface of Mr. Dabney's story. Yet, it is something that we need never to forget.

Kettle Creek was added to the National Register of Historic Places in 1975, and the 2007 report to Congress by the American Battlefield Protection Program of the National Park Service noted the Battle of Kettle Creek having demonstrable influence on the course, conduct, and results of the Revolutionary War.

Congress has made significant strides in preserving many of the battlefields of the Civil War, but I think, unfortunately, many of the battlefields of the Revolutionary War have been forgotten. We need to remember those.

This legislation is critical to not only preserving Kettle Creek, which has, by the way, tremendous support in the community and the State, but I strongly believe that the stories of both Colonel Pickens and the incredible stories of people like Austin Dabney are worth saving. They are worth saving for generations to come.

Mr. Speaker, I look forward to Kettle Creek being studied for inclusion in the National Park System. I appreciate my colleagues' support for this and urge the rest of our colleagues to support this piece of history and this legislation.

Mr. CASE. Mr. Speaker, I certainly do appreciate my colleague's very emotional description of the rich history of Battle Creek and his commitment to its preservation. I join him in that.

Mr. Speaker, I have no further speakers, and I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, is there any time remaining?

The SPEAKER pro tempore. The gentleman from Utah has 15 minutes remaining.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank Mr. HICE for everything that he is doing on this particular bill. He left already. He is the one who has the accent. But I have to admit, back where I live, this would be called Kettle Crick, not Kettle Creek, so if you can make that change.

But the problem is, obviously, battlefields are disappearing. What Mr. HICE has done is try to go about this the proper way, by doing the study that sets the parameters of what we need, and with a great deal of concern and consideration for the other people who are living in that area, for private property in that area, for the other concerns that take place in there.

So, I am proud of this because Mr. HICE is doing it the right way. This is the way all of our studies should take place. This is the way all of our concerns should take place, and it is appropriate.

Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I urge my colleagues to support the adoption of this measure, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 306, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to direct the Secretary of the Interior to conduct a reconnaissance survey of the site of the Kettle Creek Battlefield in Wilkes County, Georgia, and adjacent property, and for other purposes.''.

A motion to reconsider was laid on the table.

NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS AMENDMENTS ACT OF 2020

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2981) to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2020, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2981

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. References to National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002.

TITLE I—GENERAL PROVISIONS

Sec. 101. Strength and distribution in grade.
Sec. 102. Recalled officers.
Sec. 103. Obligated service requirement.
Sec. 104. Training and physical fitness.
Sec. 105. Aviation accession training programs.
Sec. 106. Recruiting materials.
Sec. 107. Technical correction.

TITLE II—PARITY AND RECRUITMENT

Sec. 201. Education loans.
Sec. 202. Interest payments.
Sec. 203. Student pre-commissioning program.

Sec. 204. Limitation on educational assistance.
Sec. 205. Applicability of certain provisions of title 10, United States Code, and extension of certain authorities applicable to members of the Armed Forces to commissioned officer corps.
Sec. 206. Applicability of certain provisions of title 37, United States Code.
Sec. 207. Prohibition on retaliatory personnel actions.
Sec. 208. Employment and reemployment rights.
Sec. 209. Treatment of commission in commissioned officer corps for purposes of certain hiring decisions.

TITLE III—APPOINTMENTS AND PROMOTION OF OFFICERS

Sec. 301. Appointments.
Sec. 302. Personnel boards.
Sec. 303. Positions of importance and responsibility.
Sec. 304. Temporary appointments.
Sec. 305. Officer candidates.
Sec. 306. Procurement of personnel.
Sec. 307. Career intermission program.

TITLE IV—SEPARATION AND RETIREMENT OF OFFICERS

Sec. 401. Involuntary retirement or separation.
Sec. 402. Separation pay.

TITLE V—OTHER NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION MATTERS

Sec. 501. Charting and survey services.
Sec. 502. Co-location agreements.
Sec. 503. Satellite and data management.
Sec. 504. Improvements relating to sexual harassment and assault prevention at the National Oceanic and Atmospheric Administration.

SEC. 2. REFERENCES TO NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION COMMISSIONED OFFICER CORPS ACT OF 2002.

Except as otherwise expressly provided, whenever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3001 et seq.).

TITLE I—GENERAL PROVISIONS

SEC. 101. STRENGTH AND DISTRIBUTION IN GRADE.

Section 214 (33 U.S.C. 3004) is amended to read as follows:

"SEC. 214. STRENGTH AND DISTRIBUTION IN GRADE.

''(a) GRADES.—The commissioned grades in the commissioned officer corps of the Administration are the following, in relative rank with officers of the Navy:

''(1) Vice admiral.
''(2) Rear admiral.
''(3) Rear admiral (lower half).
''(4) Captain.
''(5) Commander.
''(6) Lieutenant commander.
''(7) Lieutenant.
''(8) Lieutenant (junior grade).
''(9) Ensign.

''(b) GRADE DISTRIBUTION.—The Secretary shall prescribe, with respect to the distribution on the lineal list in grade, the percentages applicable to the grades set forth in subsection (a).

''(c) ANNUAL COMPUTATION OF NUMBER IN GRADE.—

''(1) IN GENERAL.—Not less frequently than once each year, the Secretary shall make a computation to determine the number of officers on the lineal list authorized to be serving in each grade.

''(2) METHOD OF COMPUTATION.—The number in each grade shall be computed by applying the applicable percentage to the total number of such officers serving on active duty on the date the computation is made.

''(3) FRACTIONS.—If a final fraction occurs in computing the authorized number of officers in a grade, the nearest whole number shall be taken. If the fraction is one-half, the next higher whole number shall be taken.

''(d) TEMPORARY INCREASE IN NUMBERS.—The total number of officers authorized by law to be on the lineal list during a fiscal year may be temporarily exceeded if the average number on that list during that fiscal year does not exceed the authorized number.

''(e) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228(a) and officers recalled from retired status shall not be counted when computing authorized strengths under subsection (c) and shall not count against those strengths.

''(f) PRESERVATION OF GRADE AND PAY.—No officer may be reduced in grade or pay or separated from the commissioned officer corps of the Administration as the result of a computation made to determine the authorized number of officers in the various grades.''.

SEC. 102. RECALLED OFFICERS.

(a) IN GENERAL.—Section 215 (33 U.S.C. 3005) is amended to read as follows:

"SEC. 215. NUMBER OF AUTHORIZED COMMISSIONED OFFICERS.

''(a) IN GENERAL.—The total number of authorized commissioned officers on the lineal list of the commissioned officer corps of the Administration shall not exceed 500.

''(b) POSITIONS OF IMPORTANCE AND RESPONSIBILITY.—Officers serving in positions designated under section 228 and officers recalled from retired status or detailed to an agency other than the Administration—

''(1) may not be counted in determining the total number of authorized officers on the lineal list under this section; and

''(2) may not count against such number.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 215 and inserting the following:

''Sec. 215. Number of authorized commissioned officers.''.

SEC. 103. OBLIGATED SERVICE REQUIREMENT.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.) is amended by adding at the end the following:

"SEC. 216. OBLIGATED SERVICE REQUIREMENT.

''(a) IN GENERAL.—

''(1) REGULATIONS.—The Secretary shall prescribe the obligated service requirements for appointments, training, promotions, separations, continuations, and retirements of officers not otherwise covered by law.

''(2) WRITTEN AGREEMENTS.—The Secretary and officers shall enter into written agreements that describe the officers' obligated service requirements prescribed under paragraph (1) in return for such appointments, training, promotions, separations, continuations, and retirements as the Secretary considers appropriate.

''(b) REPAYMENT FOR FAILURE TO SATISFY REQUIREMENTS.—

''(1) IN GENERAL.—The Secretary may require an officer who fails to meet the service requirements prescribed under subsection (a)(1) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the training provided to that officer by the Secretary as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve.

''(2) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary under paragraph (1) is, for all purposes, a debt owed to the United States.

''(3) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11 that is entered less than five years after the termination of a written agreement entered into under subsection (a)(2) does not discharge the individual signing the agreement from a debt arising under such agreement.

''(c) WAIVER OR SUSPENSION OF COMPLIANCE.—The Secretary may waive the service obligation of an officer who—

''(1) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that officer; or

''(2) is—

''(A) not physically qualified for appointment; and

''(B) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the officer's own misconduct or grossly negligent conduct.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 215 the following:

''Sec. 216. Obligated service requirement.''.

SEC. 104. TRAINING AND PHYSICAL FITNESS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 103(a), is further amended by adding at the end the following:

"SEC. 217. TRAINING AND PHYSICAL FITNESS.

''(a) TRAINING.—The Secretary may take such measures as may be necessary to ensure that officers are prepared to carry out their duties in the commissioned officer corps of the Administration and proficient in the skills necessary to carry out such duties. Such measures may include the following:

''(1) Carrying out training programs and correspondence courses, including establishing and operating a basic officer training program to provide initial indoctrination and maritime vocational training for officer candidates as well as refresher training, mid-career training, aviation training, and such other training as the Secretary considers necessary for officer development and proficiency.

''(2) Providing officers and officer candidates with educational materials.

''(3) Acquiring such equipment as may be necessary for training and instructional purposes.

''(b) PHYSICAL FITNESS.—The Secretary shall ensure that officers maintain a high physical state of readiness by establishing standards of physical fitness for officers that are substantially equivalent to those prescribed for officers in the Coast Guard.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 103(b), is further amended by inserting after the item relating to section 216 the following:

''Sec. 217. Training and physical fitness.''.

SEC. 105. AVIATION ACCESSION TRAINING PROGRAMS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 104(a), is further amended by adding at the end the following:

''SEC. 218. AVIATION ACCESSION TRAINING PROGRAMS.

''(a) DEFINITIONS.—In this section:

''(1) ADMINISTRATOR.—The term 'Administrator' means the Under Secretary of Commerce for Oceans and Atmosphere and the Administrator of the National Oceanic and Atmospheric Administration.

''(2) MEMBER OF THE PROGRAM.—The term 'member of the program' means a student who is enrolled in the program.

''(3) PROGRAM.—The term 'program' means an aviation accession training program of the commissioned officer corps of the Administration established pursuant to subsection (b).

''(b) AVIATION ACCESSION TRAINING PROGRAMS.—

''(1) ESTABLISHMENT AUTHORIZED.—The Administrator, under regulations prescribed by the Secretary, shall establish and maintain one or more aviation accession training programs for the commissioned officer corps of the Administration at institutions described in paragraph (2).

''(2) INSTITUTIONS DESCRIBED.—An institution described in this paragraph is an educational institution—

''(A) that requests to enter into an agreement with the Administrator providing for the establishment of the program at the institution;

''(B) that has, as a part of its curriculum, a four-year baccalaureate program of professional flight and piloting instruction that is accredited by the Aviation Accreditation Board International;

''(C) that is located in a geographic area that—

''(i) experiences a wide variation in climate-related activity, including frequent high winds, convective activity (including tornadoes), periods of low visibility, heat, and snow and ice episodes, to provide opportunities for pilots to demonstrate skill in all weather conditions compatible with future encounters during their service in the commissioned officer corps of the Administration; and

''(ii) has a climate that can accommodate both primary and advanced flight training activity at least 75 percent of the year; and

''(D) at which the Administrator determines that—

''(i) there will be at least one student enrolled in the program; and

''(ii) the provisions of this section are otherwise satisfied.

''(3) LIMITATIONS IN CONNECTION WITH PARTICULAR INSTITUTIONS.—The program may not be established or maintained at an institution unless—

''(A) the senior commissioned officer or employee of the commissioned officer corps of the Administration who is assigned as an advisor to the program at that institution is given the academic rank of adjunct professor; and

''(B) the institution fulfills the terms of its agreement with the Administrator.

''(4) MEMBERSHIP IN CONNECTION WITH STATUS AS STUDENT.—At institutions at which the program is established, the membership of students in the program shall be elective, as provided by State law or the authorities of the institution concerned.

''(c) MEMBERSHIP.—

''(1) ELIGIBILITY.—To be eligible for membership in the program, an individual must—

''(A) be a student at an institution at which the program is established;

''(B) be a citizen of the United States;

''(C) contract in writing, with the consent of a parent or guardian if a minor, with the Administrator, to—

''(i) accept an appointment, if offered, as a commissioned officer in the commissioned officer corps of the Administration; and

''(ii) serve in the commissioned officer corps of the Administration for not fewer than four years;

''(D) enroll in—

''(i) a four-year baccalaureate program of professional flight and piloting instruction; and

''(ii) other training or education, including basic officer training, which is prescribed by the Administrator as meeting the preliminary requirement for admission to the commissioned officer corps of the Administration; and

''(E) execute a certificate or take an oath relating to morality and conduct in such form as the Administrator prescribes.

''(2) COMPLETION OF PROGRAM.—A member of the program may be appointed as a regular officer in the commissioned officer corps of the Administration if the member meets all requirements for appointment as such an officer.

''(d) FINANCIAL ASSISTANCE FOR QUALIFIED MEMBERS.—

''(1) EXPENSES OF COURSE OF INSTRUCTION.—

''(A) IN GENERAL.—In the case of a member of the program who meets such qualifications as the Administrator establishes for purposes of this subsection, the Administrator may pay the expenses of the member in connection with pursuit of a course of professional flight and piloting instruction under the program, including tuition, fees, educational materials such as books, training, certifications, travel, and laboratory expenses.

''(B) ASSISTANCE AFTER FOURTH ACADEMIC YEAR.—In the case of a member of the program described in subparagraph (A) who is enrolled in a course described in that subparagraph that has been approved by the Administrator and requires more than four academic years for completion, including elective requirements of the program, assistance under this subsection may also be provided during a fifth academic year or during a combination of a part of a fifth academic year and summer sessions.

''(2) ROOM AND BOARD.—In the case of a member eligible to receive assistance under paragraph (1), the Administrator may, in lieu of payment of all or part of such assistance, pay the room and board expenses of the member, and other educational expenses, of the educational institution concerned.

''(3) FAILURE TO COMPLETE PROGRAM OR ACCEPT COMMISSION.—A member of the program who receives assistance under this subsection and who does not complete the course of instruction, or who completes the course but declines to accept a commission in the commissioned officer corps of the Administration when offered, shall be subject to the repayment provisions of subsection (e).

''(e) REPAYMENT OF UNEARNED PORTION OF FINANCIAL ASSISTANCE WHEN CONDITIONS OF PAYMENT NOT MET.—

''(1) IN GENERAL.—A member of the program who receives or benefits from assistance under subsection (d), and whose receipt of or benefit from such assistance is subject to the condition that the member fully satisfy the requirements of subsection (c), shall repay to the United States an amount equal to the assistance received or benefitted from if the member fails to fully satisfy such requirements and may not receive or benefit from any unpaid amounts of such assistance after the member fails to satisfy such requirements, unless the Administrator determines that the imposition of the repayment requirement and the termination of payment of unpaid amounts of such assistance with regard to the member would be—

''(A) contrary to a personnel policy or management objective;

''(B) against equity and good conscience; or

''(C) contrary to the best interests of the United States.

''(2) REGULATIONS.—The Administrator may establish, by regulations, procedures for determining the amount of the repayment required under this subsection and the circumstances under which an exception to repayment may be granted. The Administrator may specify in the regulations the conditions under which financial assistance to be paid to a member of the program will not be made if the member no longer satisfies the requirements in subsection (c) or qualifications in subsection (d) for such assistance.

''(3) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to repay the United States under this subsection is, for all purposes, a debt owed to the United States.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 104(b), is further amended by inserting after the item relating to section 217 the following:

''Sec. 218. Aviation accession training programs.''.

SEC. 106. RECRUITING MATERIALS.

(a) IN GENERAL.—Subtitle A (33 U.S.C. 3001 et seq.), as amended by section 105(a), is further amended by adding at the end the following:

''SEC. 219. USE OF RECRUITING MATERIALS FOR PUBLIC RELATIONS.

''The Secretary may use for public relations purposes of the Department of Commerce any advertising materials developed for use for recruitment and retention of personnel for the commissioned officer corps of the Administration. Any such use shall be under such conditions and subject to such restrictions as the Secretary shall prescribe.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 105(b), is further amended by inserting after the item relating to section 218 the following:

''Sec. 219. Use of recruiting materials for public relations.''.

SEC. 107. TECHNICAL CORRECTION.

Section 101(21)(C) of title 38, United States Code, is amended by inserting ''in the commissioned officer corps'' before ''of the National''.

TITLE II—PARITY AND RECRUITMENT

SEC. 201. EDUCATION LOANS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by adding at the end the following:

''SEC. 267. EDUCATION LOAN REPAYMENT PROGRAM.

''(a) AUTHORITY TO REPAY EDUCATION LOANS.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty who have skills required by the commissioned officer corps, the Secretary may repay, in the case of a person described in subsection (b), a loan that—

''(1) was used by the person to finance education; and

''(2) was obtained from a governmental entity, private financial institution, educational institution, or other authorized entity.

''(b) ELIGIBLE PERSONS.—To be eligible to obtain a loan repayment under this section, a person must—

''(1) satisfy one of the requirements specified in subsection (c);

''(2) be fully qualified for, or hold, an appointment as a commissioned officer in the

commissioned officer corps of the Administration; and

''(3) sign a written agreement to serve on active duty, or, if on active duty, to remain on active duty for a period in addition to any other incurred active duty obligation.

''(c) ACADEMIC AND PROFESSIONAL REQUIREMENTS.—One of the following academic requirements must be satisfied for purposes of determining the eligibility of an individual for a loan repayment under this section:

''(1) The person is fully qualified in a profession that the Secretary has determined to be necessary to meet identified skill shortages in the commissioned officer corps of the Administration.

''(2) The person is enrolled as a full-time student in the final year of a course of study at an accredited educational institution (as determined by the Secretary of Education) leading to a degree in a profession that will meet identified skill shortages in the commissioned officer corps of the Administration.

''(d) LOAN REPAYMENTS.—

''(1) IN GENERAL.—Subject to the limits established under paragraph (2), a loan repayment under this section may consist of the payment of the principal, interest, and related expenses of a loan obtained by a person described in subsection (b).

''(2) LIMITATION ON AMOUNT.—For each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(3), the Secretary may pay not more than the amount specified in section 2173(e)(2) of title 10, United States Code.

''(e) ACTIVE DUTY SERVICE OBLIGATION.—

''(1) IN GENERAL.—A person entering into an agreement described in subsection (b)(3) incurs an active duty service obligation.

''(2) LENGTH OF OBLIGATION DETERMINED UNDER REGULATIONS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the length of the obligation under paragraph (1) shall be determined under regulations prescribed by the Secretary.

''(B) MINIMUM OBLIGATION.—The regulations prescribed under subparagraph (A) may not provide for a period of obligation of less than one year for each maximum annual amount, or portion thereof, paid on behalf of the person for qualified loans.

''(3) PERSONS ON ACTIVE DUTY BEFORE ENTERING INTO AGREEMENT.—The active duty service obligation of persons on active duty before entering into the agreement shall be served after the conclusion of any other obligation incurred under the agreement.

''(4) CONCURRENT COMPLETION OF SERVICE OBLIGATIONS.—A service obligation under this section may be completed concurrently with a service obligation under section 216.

''(f) EFFECT OF FAILURE TO COMPLETE OBLIGATION.—

''(1) ALTERNATIVE OBLIGATIONS.—An officer who is relieved of the officer's active duty obligation under this section before the completion of that obligation may be given any alternative obligation, at the discretion of the Secretary.

''(2) REPAYMENT.—An officer who does not complete the period of active duty specified in the agreement entered into under subsection (b)(3), or the alternative obligation imposed under paragraph (1), shall be subject to the repayment provisions under section 216.

''(g) RULEMAKING.—The Secretary shall prescribe regulations to carry out this section, including—

''(1) standards for qualified loans and authorized payees; and

''(2) other terms and conditions for the making of loan repayments.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 266 the following:

''Sec. 267. Education loan repayment program.''.

SEC. 202. INTEREST PAYMENTS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 201(a), is further amended by adding at the end the following:

''SEC. 268. INTEREST PAYMENT PROGRAM.

''(a) AUTHORITY.—The Secretary may pay the interest and any special allowances that accrue on one or more student loans of an eligible officer, in accordance with this section.

''(b) ELIGIBLE OFFICERS.—An officer is eligible for the benefit described in subsection (a) while the officer—

''(1) is serving on active duty;

''(2) has not completed more than three years of service on active duty;

''(3) is the debtor on one or more unpaid loans described in subsection (c); and

''(4) is not in default on any such loan.

''(c) STUDENT LOANS.—The authority to make payments under subsection (a) may be exercised with respect to the following loans:

''(1) A loan made, insured, or guaranteed under part B of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq.).

''(2) A loan made under part D of such title (20 U.S.C. 1087a et seq.).

''(3) A loan made under part E of such title (20 U.S.C. 1087aa et seq.).

''(d) MAXIMUM BENEFIT.—Interest and any special allowance may be paid on behalf of an officer under this section for any of the 36 consecutive months during which the officer is eligible under subsection (b).

''(e) COORDINATION WITH SECRETARY OF EDUCATION.—

''(1) IN GENERAL.—The Secretary shall consult with the Secretary of Education regarding the administration of this section.

''(2) REIMBURSEMENT AUTHORIZED.—The Secretary is authorized to reimburse the Secretary of Education—

''(A) for the funds necessary to pay interest and special allowances on student loans under this section (in accordance with sections 428(o), 455(l), and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1078(o), 1087e(l), and 1087dd(j)); and

''(B) for any reasonable administrative costs incurred by the Secretary of Education in coordinating the program under this section with the administration of the student loan programs under parts B, D, and E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.).

''(f) SPECIAL ALLOWANCE DEFINED.—In this section, the term 'special allowance' means a special allowance that is payable under section 438 of the Higher Education Act of 1965 (20 U.S.C. 1087–1).''.

(b) CONFORMING AMENDMENTS.—

(1) Section 428(o) of the Higher Education Act of 1965 (20 U.S.C. 1078(o)) is amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 268 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively,'' after ''Armed Forces''.

(2) Sections 455(l) and 464(j) of the Higher Education Act of 1965 (20 U.S.C. 1087e(l) and 1087dd(j)) are each amended—

(A) by striking the subsection heading and inserting ''ARMED FORCES AND NOAA COMMISSIONED OFFICER CORPS STUDENT LOAN INTEREST PAYMENT PROGRAMS''; and

(B) in paragraph (1)—

(i) by inserting ''or section 268 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002'' after ''Code,''; and

(ii) by inserting ''or an officer in the commissioned officer corps of the National Oceanic and Atmospheric Administration, respectively'' after ''Armed Forces''.

(c) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 201(b), is further amended by inserting after the item relating to section 267 the following:

''Sec. 268. Interest payment program.''.

SEC. 203. STUDENT PRE-COMMISSIONING PROGRAM.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by section 202(a), is further amended by adding at the end the following:

''SEC. 269. STUDENT PRE-COMMISSIONING EDUCATION ASSISTANCE PROGRAM.

''(a) AUTHORITY TO PROVIDE FINANCIAL ASSISTANCE.—For the purpose of maintaining adequate numbers of officers of the commissioned officer corps of the Administration on active duty, the Secretary may provide financial assistance to a person described in subsection (b) for expenses of the person while the person is pursuing on a full-time basis at an accredited educational institution (as determined by the Secretary of Education) a program of education approved by the Secretary that leads to—

''(1) a baccalaureate degree in not more than five academic years; or

''(2) a postbaccalaureate degree.

''(b) ELIGIBLE PERSONS.—

''(1) IN GENERAL.—A person is eligible to obtain financial assistance under subsection (a) if the person—

''(A) is enrolled on a full-time basis in a program of education referred to in subsection (a) at any educational institution described in such subsection;

''(B) meets all of the requirements for acceptance into the commissioned officer corps of the Administration except for the completion of a baccalaureate degree; and

''(C) enters into a written agreement with the Secretary described in paragraph (2).

''(2) AGREEMENT.—A written agreement referred to in paragraph (1)(C) is an agreement between the person and the Secretary in which the person—

''(A) agrees to accept an appointment as an officer, if tendered; and

''(B) upon completion of the person's educational program, agrees to serve on active duty, immediately after appointment, for—

''(i) up to three years if the person received less than three years of assistance; and

''(ii) up to five years if the person received at least three years of assistance.

''(c) QUALIFYING EXPENSES.—Expenses for which financial assistance may be provided under subsection (a) are the following:

''(1) Tuition and fees charged by the educational institution involved.

''(2) The cost of educational materials.

''(3) In the case of a program of education leading to a baccalaureate degree, laboratory expenses.

''(4) Such other expenses as the Secretary considers appropriate.

''(d) LIMITATION ON AMOUNT.—The Secretary shall prescribe the amount of financial assistance provided to a person under subsection (a), which may not exceed the

amount specified in section 2173(e)(2) of title 10, United States Code, for each year of obligated service that a person agrees to serve in an agreement described in subsection (b)(2).

''(e) DURATION OF ASSISTANCE.—Financial assistance may be provided to a person under subsection (a) for not more than five consecutive academic years.

''(f) SUBSISTENCE ALLOWANCE.—

''(1) IN GENERAL.—A person who receives financial assistance under subsection (a) shall be entitled to a monthly subsistence allowance at a rate prescribed under paragraph (2) for the duration of the period for which the person receives such financial assistance.

''(2) DETERMINATION OF AMOUNT.—The Secretary shall prescribe monthly rates for subsistence allowance provided under paragraph (1), which shall be equal to the amount specified in section 2144(a) of title 10, United States Code.

''(g) INITIAL CLOTHING ALLOWANCE.—

''(1) TRAINING.—The Secretary may prescribe a sum which shall be credited to each person who receives financial assistance under subsection (a) to cover the cost of the person's initial clothing and equipment issue.

''(2) APPOINTMENT.—Upon completion of the program of education for which a person receives financial assistance under subsection (a) and acceptance of appointment in the commissioned officer corps of the Administration, the person may be issued a subsequent clothing allowance equivalent to that normally provided to a newly appointed officer.

''(h) TERMINATION OF FINANCIAL ASSISTANCE.—

''(1) IN GENERAL.—The Secretary shall terminate the assistance provided to a person under this section if—

''(A) the Secretary accepts a request by the person to be released from an agreement described in subsection (b)(2);

''(B) the misconduct of the person results in a failure to complete the period of active duty required under the agreement; or

''(C) the person fails to fulfill any term or condition of the agreement.

''(2) REIMBURSEMENT.—The Secretary may require a person who receives assistance described in subsection (c), (f), or (g) under an agreement entered into under subsection (b)(1)(C) to reimburse the Secretary in an amount that bears the same ratio to the total costs of the assistance provided to that person as the unserved portion of active duty bears to the total period of active duty the officer agreed to serve under the agreement.

''(3) WAIVER.—The Secretary may waive the service obligation of a person through an agreement entered into under subsection (b)(1)(C) if the person—

''(A) becomes unqualified to serve on active duty in the commissioned officer corps of the Administration because of a circumstance not within the control of that person; or

''(B) is—

''(i) not physically qualified for appointment; and

''(ii) determined to be unqualified for service in the commissioned officer corps of the Administration because of a physical or medical condition that was not the result of the person's own misconduct or grossly negligent conduct.

''(4) OBLIGATION AS DEBT TO UNITED STATES.—An obligation to reimburse the Secretary imposed under paragraph (2) is, for all purposes, a debt owed to the United States.

''(5) DISCHARGE IN BANKRUPTCY.—A discharge in bankruptcy under title 11, United States Code, that is entered less than five years after the termination of a written agreement entered into under subsection (b)(1)(C) does not discharge the person signing the agreement from a debt arising under such agreement or under paragraph (2).

''(i) REGULATIONS.—The Secretary may prescribe such regulations and orders as the Secretary considers appropriate to carry out this section.

''(j) CONCURRENT COMPLETION OF SERVICE OBLIGATIONS.—A service obligation under this section may be completed concurrently with a service obligation under section 216.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 202(c), is further amended by inserting after the item relating to section 268 the following:

''Sec. 269. Student pre-commissioning education assistance program.''.

SEC. 204. LIMITATION ON EDUCATIONAL ASSISTANCE.

(a) IN GENERAL.—Each fiscal year, beginning with the fiscal year in which this Act is enacted, the Secretary of Commerce shall ensure that the total amount expended by the Secretary under section 267 of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (as added by section 201(a)), section 268 of such Act (as added by section 202(a)), and section 269 of such Act (as added by section 203(a)) does not exceed the amount by which—

(1) the total amount the Secretary would pay in that fiscal year to officer candidates under section 203(f)(1) of title 37, United States Code (as added by section 305(d)), if such section entitled officer candidates to pay at monthly rates equal to the basic pay of a commissioned officer in the pay grade O–1 with less than 2 years of service, exceeds

(2) the total amount the Secretary actually pays in that fiscal year to officer candidates under section 203(f)(1) of such title (as so added).

(b) OFFICER CANDIDATE DEFINED.—In this section, the term ''officer candidate'' has the meaning given the term in paragraph (4) of section 212(b) of the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002 (33 U.S.C. 3002), as added by section 305(c).

SEC. 205. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10, UNITED STATES CODE, AND EXTENSION OF CERTAIN AUTHORITIES APPLICABLE TO MEMBERS OF THE ARMED FORCES TO COMMISSIONED OFFICER CORPS.

(a) APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 10.—Section 261(a) (33 U.S.C. 3071(a)) is amended—

(1) by redesignating paragraphs (13) through (16) as paragraphs (22) through (25), respectively;

(2) by redesignating paragraphs (7) through (12) as paragraphs (14) through (19), respectively;

(3) by redesignating paragraphs (4) through (6) as paragraphs (8) through (10), respectively;

(4) by inserting after paragraph (3) the following:

''(4) Section 771, relating to unauthorized wearing of uniforms.

''(5) Section 774, relating to wearing religious apparel while in uniform.

''(6) Section 982, relating to service on State and local juries.

''(7) Section 1031, relating to administration of oaths.'';

(5) by inserting after paragraph (10), as redesignated, the following:

''(11) Section 1074n, relating to annual mental health assessments.

''(12) Section 1090a, relating to referrals for mental health evaluations.

''(13) Chapter 58, relating to the Benefits and Services for members being separated or recently separated.''; and

(6) by inserting after paragraph (19), as redesignated, the following:

''(20) Subchapter I of chapter 88, relating to Military Family Programs, applicable on an as-available and fully reimbursable basis.

''(21) Section 2005, relating to advanced education assistance, active duty agreements, and reimbursement requirements.''.

(b) EXTENSION OF CERTAIN AUTHORITIES.—

(1) NOTARIAL SERVICES.—Section 1044a of title 10, United States Code, is amended—

(A) in subsection (a)(1), by striking ''armed forces'' and inserting ''uniformed services''; and

(B) in subsection (b)(4), by striking ''armed forces'' both places it appears and inserting ''uniformed services''.

(2) ACCEPTANCE OF VOLUNTARY SERVICES FOR PROGRAMS SERVING MEMBERS AND THEIR FAMILIES.—Section 1588 of such title is amended—

(A) in subsection (a)(3), in the matter before subparagraph (A), by striking ''armed forces'' and inserting ''uniformed services''; and

(B) by adding at the end the following new subsection:

''(g) SECRETARY CONCERNED FOR ACCEPTANCE OF SERVICES FOR PROGRAMS SERVING MEMBERS OF NOAA CORPS AND THEIR FAMILIES.—For purposes of the acceptance of services described in subsection (a)(3), the term 'Secretary concerned' in subsection (a) shall include the Secretary of Commerce with respect to members of the commissioned officer corps of the National Oceanic and Atmospheric Administration.''.

(3) CAPSTONE COURSE FOR NEWLY SELECTED FLAG OFFICERS.—Section 2153 of such title is amended—

(A) in subsection (a)—

(i) by inserting ''or the commissioned officer corps of the National Oceanic and Atmospheric Administration'' after ''in the case of the Navy''; and

(ii) by striking ''other armed forces'' and inserting ''other uniformed services''; and

(B) in subsection (b)(1), in the matter before subparagraph (A), by inserting ''or the Secretary of Commerce, as applicable,'' after ''the Secretary of Defense''.

SEC. 206. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.) is amended by inserting after section 261 the following:

''SEC. 261A. APPLICABILITY OF CERTAIN PROVISIONS OF TITLE 37, UNITED STATES CODE.

''The provisions of law applicable to the Armed Forces under the following provisions of title 37, United States Code, shall apply to the commissioned officer corps of the Administration:

''(1) Section 403(l), relating to temporary continuation of housing allowance for dependents of members dying on active duty.

''(2) Section 415, relating to initial uniform allowances.

''(3) Section 488, relating to allowances for recruiting expenses.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 261 the following:

''Sec. 261A. Applicability of certain provisions of title 37, United States Code.''.

SEC. 207. PROHIBITION ON RETALIATORY PERSONNEL ACTIONS.

(a) IN GENERAL.—Subsection (a) of section 261 (33 U.S.C. 3071), as amended by section 205(a), is further amended—

(1) by redesignating paragraphs (8) through (25) as paragraphs (9) through (26), respectively; and

(2) by inserting after paragraph (7) the following:

''(8) Section 1034, relating to protected communications and prohibition of retaliatory personnel actions.''.

(b) CONFORMING AMENDMENT.—Subsection (b) of such section 261 is amended by adding at the end the following: ''For purposes of paragraph (8) of subsection (a), the term 'Inspector General' in section 1034 of such title 10 shall mean the Inspector General of the Department of Commerce.''.

(c) REGULATIONS.—Such section is further amended by adding at the end the following:

''(c) REGULATIONS REGARDING PROTECTED COMMUNICATIONS AND PROHIBITION OF RETALIATORY PERSONNEL ACTIONS.—The Secretary may prescribe regulations to carry out the application of section 1034 of title 10, United States Code, to the commissioned officer corps of the Administration, including by prescribing such administrative procedures for investigation and appeal within the commissioned officer corps as the Secretary considers appropriate.''.

SEC. 208. EMPLOYMENT AND REEMPLOYMENT RIGHTS.

Section 4303(16) of title 38, United States Code, is amended by inserting ''the commissioned officer corps of the National Oceanic and Atmospheric Administration,'' after ''Public Health Service,''.

SEC. 209. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS FOR PURPOSES OF CERTAIN HIRING DECISIONS.

(a) IN GENERAL.—Subtitle E (33 U.S.C. 3071 et seq.), as amended by this Act, is further amended by adding at the end the following:

''SEC. 269A. TREATMENT OF COMMISSION IN COMMISSIONED OFFICER CORPS AS EMPLOYMENT IN ADMINISTRATION FOR PURPOSES OF CERTAIN HIRING DECISIONS.

''(a) IN GENERAL.—In any case in which the Secretary accepts an application for a position of employment with the Administration and limits consideration of applications for such position to applications submitted by individuals serving in a career or career-conditional position in the competitive service within the Administration, the Secretary shall deem an officer who has served as an officer in the commissioned officer corps of the Administration for at least three years to be serving in a career or career-conditional position in the competitive service within the Administration for purposes of such limitation.

''(b) CAREER APPOINTMENTS.—If the Secretary selects an application submitted by an officer described in subsection (a) for a position described in such subsection, the Secretary shall give such officer a career or career-conditional appointment in the competitive service, as appropriate.

''(c) COMPETITIVE SERVICE DEFINED.—In this section, the term 'competitive service' has the meaning given the term in section 2102 of title 5, United States Code.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 269, as added by section 203(b), the following new item:

''Sec. 269A. Treatment of commission in commissioned officer corps as employment in Administration for purposes of certain hiring decisions.''.

TITLE III—APPOINTMENTS AND PROMOTION OF OFFICERS

SEC. 301. APPOINTMENTS.

(a) ORIGINAL APPOINTMENTS.—Section 221 (33 U.S.C. 3021) is amended to read as follows:

''SEC. 221. ORIGINAL APPOINTMENTS AND REAPPOINTMENTS.

''(a) ORIGINAL APPOINTMENTS.—

''(1) GRADES.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), an original appointment of an officer may be made in such grades as may be appropriate for—

''(i) the qualification, experience, and length of service of the appointee; and

''(ii) the commissioned officer corps of the Administration.

''(B) APPOINTMENT OF OFFICER CANDIDATES.—

''(i) LIMITATION ON GRADE.—An original appointment of an officer candidate, upon graduation from the basic officer training program of the commissioned officer corps of the Administration, may not be made in any other grade than ensign.

''(ii) RANK.—Officer candidates receiving appointments as ensigns upon graduation from the basic officer training program shall take rank according to their proficiency as shown by the order of their merit at date of graduation.

''(2) SOURCE OF APPOINTMENTS.—An original appointment may be made from among the following:

''(A) Graduates of the basic officer training program of the commissioned officer corps of the Administration.

''(B) Subject to the approval of the Secretary of Defense, graduates of the military service academies of the United States who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(C) Graduates of the State maritime academies who—

''(i) otherwise meet the academic standards for enrollment in the training program described in subparagraph (A);

''(ii) completed at least three years of regimented training while at a State maritime academy; and

''(iii) obtained an unlimited tonnage or unlimited horsepower Merchant Mariner Credential from the United States Coast Guard.

''(D) Licensed officers of the United States merchant marine who have served two or more years aboard a vessel of the United States in the capacity of a licensed officer, who otherwise meet the academic standards for enrollment in the training program described in subparagraph (A).

''(3) DEFINITIONS.—In this subsection:

''(A) MILITARY SERVICE ACADEMIES OF THE UNITED STATES.—The term 'military service academies of the United States' means the following:

''(i) The United States Military Academy, West Point, New York.

''(ii) The United States Naval Academy, Annapolis, Maryland.

''(iii) The United States Air Force Academy, Colorado Springs, Colorado.

''(iv) The United States Coast Guard Academy, New London, Connecticut.

''(v) The United States Merchant Marine Academy, Kings Point, New York.

''(B) STATE MARITIME ACADEMY.—The term 'State maritime academy' has the meaning given the term in section 51102 of title 46, United States Code.

''(b) REAPPOINTMENT.—

''(1) IN GENERAL.—Except as provided in paragraph (2), an individual who previously served in the commissioned officer corps of the Administration may be appointed by the Secretary to the grade the individual held prior to separation.

''(2) REAPPOINTMENTS TO HIGHER GRADES.—An appointment under paragraph (1) to a position of importance and responsibility designated under section 228 may only be made by the President.

''(c) QUALIFICATIONS.—An appointment under subsection (a) or (b) may not be given to an individual until the individual's mental, moral, physical, and professional fitness to perform the duties of an officer has been established under such regulations as the Secretary shall prescribe.

''(d) ORDER OF PRECEDENCE.—Appointees under this section shall take precedence in the grade to which appointed in accordance with the dates of their commissions as commissioned officers in such grade. The order of precedence of appointees whose dates of commission are the same shall be determined by the Secretary.

''(e) INTER-SERVICE TRANSFERS.—For inter-service transfers (as described in Department of Defense Directive 1300.4 (dated December 27, 2006)) the Secretary shall—

''(1) coordinate with the Secretary of Defense and the Secretary of the Department in which the Coast Guard is operating to promote and streamline inter-service transfers;

''(2) give preference to such inter-service transfers for recruitment purposes as determined appropriate by the Secretary; and

''(3) reappoint such inter-service transfers to the equivalent grade in the commissioned officer corps of the Administration.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 221 and inserting the following:

''Sec. 221. Original appointments and reappointments.''.

SEC. 302. PERSONNEL BOARDS.

Section 222 (33 U.S.C. 3022) is amended to read as follows:

''SEC. 222. PERSONNEL BOARDS.

''(a) CONVENING.—Not less frequently than once each year and at such other times as the Secretary determines necessary, the Secretary shall convene a personnel board.

''(b) MEMBERSHIP.—

''(1) IN GENERAL.—A board convened under subsection (a) shall consist of five or more officers who are serving in or above the permanent grade of the officers under consideration by the board.

''(2) RETIRED OFFICERS.—Officers on the retired list may be recalled to serve on such personnel boards as the Secretary considers necessary.

''(3) NO MEMBERSHIP ON TWO SUCCESSIVE BOARDS.—No officer may be a member of two successive personnel boards convened to consider officers of the same grade for promotion or separation.

''(c) DUTIES.—Each personnel board shall—

''(1) recommend to the Secretary such changes as may be necessary to correct any erroneous position on the lineal list that was caused by administrative error; and

''(2) make selections and recommendations to the Secretary and the President for the appointment, promotion, involuntary separation, continuation, and involuntary retirement of officers in the commissioned officer corps of the Administration as prescribed in this title.

''(d) ACTION ON RECOMMENDATIONS NOT ACCEPTABLE.—If any recommendation by a board convened under subsection (a) is not accepted by the Secretary or the President, the board shall make such further recommendations as the Secretary or the President considers appropriate.

''(e) AUTHORITY FOR OFFICERS TO OPT OUT OF PROMOTION CONSIDERATION.—

''(1) IN GENERAL.—The Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps may provide that an officer, upon the officer's request and with the approval of the Director, be excluded from consideration for promotion by a personnel board convened under this section.

''(2) APPROVAL.—The Director shall approve a request made by an officer under paragraph (1) only if—

''(A) the basis for the request is to allow the officer to complete a broadening assignment, advanced education, another assignment of significant value to the Administration, a career progression requirement delayed by the assignment or education, or a qualifying personal or professional circumstance, as determined by the Director;

''(B) the Director determines the exclusion from consideration is in the best interest of the Administration; and

''(C) the officer has not previously failed selection for promotion to the grade for which the officer requests the exclusion from consideration.''.

SEC. 303. POSITIONS OF IMPORTANCE AND RESPONSIBILITY.

Section 228 (33 U.S.C. 3028) is amended—

(1) in subsection (c)—

(A) in the first sentence, by striking ''The Secretary shall designate one position under this section'' and inserting ''The President shall designate one position''; and

(B) in the second sentence, by striking ''That position shall be filled by'' and inserting ''The President shall fill that position by appointing, by and with the advice and consent of the Senate,'';

(2) in subsection (d)(2), by inserting ''or immediately beginning a period of terminal leave'' after ''for which a higher grade is designated'';

(3) by amending subsection (e) to read as follows:

''(e) LIMIT ON NUMBER OF OFFICERS APPOINTED.—The total number of officers serving on active duty at any one time in the grade of rear admiral (lower half) or above may not exceed five, with only one serving in the grade of vice admiral.''; and

(4) in subsection (f), by inserting ''or in a period of annual leave used at the end of the appointment'' after ''serving in that grade''.

SEC. 304. TEMPORARY APPOINTMENTS.

(a) IN GENERAL.—Section 229 (33 U.S.C. 3029) is amended to read as follows:

''SEC. 229. TEMPORARY APPOINTMENTS.

''(a) APPOINTMENTS BY PRESIDENT.—Temporary appointments in the grade of ensign, lieutenant junior grade, or lieutenant may be made by the President.

''(b) TERMINATION.—A temporary appointment to a position under subsection (a) shall terminate upon approval of a permanent appointment for such position made by the President.

''(c) ORDER OF PRECEDENCE.—Appointees under subsection (a) shall take precedence in the grade to which appointed in accordance with the dates of their appointments as officers in such grade. The order of precedence of appointees who are appointed on the same date shall be determined by the Secretary.

''(d) ANY ONE GRADE.—When determined by the Secretary to be in the best interest of the commissioned officer corps of the Administration, officers in any permanent grade may be temporarily promoted one grade by the President. Any such temporary promotion terminates upon the transfer of the officer to a new assignment.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by striking the item relating to section 229 and inserting the following:

''Sec. 229. Temporary appointments.''.

SEC. 305. OFFICER CANDIDATES.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.) is amended by adding at the end the following:

''SEC. 234. OFFICER CANDIDATES.

''(a) DETERMINATION OF NUMBER.—The Secretary shall determine the number of appointments of officer candidates.

''(b) APPOINTMENT.—Appointment of officer candidates shall be made under regulations, which the Secretary shall prescribe, including regulations with respect to determining age limits, methods of selection of officer candidates, term of service as an officer candidate before graduation from the basic officer training program of the Administration, and all other matters affecting such appointment.

''(c) DISMISSAL.—The Secretary may dismiss from the basic officer training program of the Administration any officer candidate who, during the officer candidate's term as an officer candidate, the Secretary considers unsatisfactory in either academics or conduct, or not adapted for a career in the commissioned officer corps of the Administration. Officer candidates shall be subject to rules governing discipline prescribed by the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps.

''(d) AGREEMENT.—

''(1) IN GENERAL.—Each officer candidate shall sign an agreement with the Secretary in accordance with section 216(a)(2) regarding the officer candidate's term of service in the commissioned officer corps of the Administration.

''(2) ELEMENTS.—An agreement signed by an officer candidate under paragraph (1) shall provide that the officer candidate agrees to the following:

''(A) That the officer candidate will complete the course of instruction at the basic officer training program of the Administration.

''(B) That upon graduation from such program, the officer candidate—

''(i) will accept an appointment, if tendered, as an officer; and

''(ii) will serve on active duty for at least four years immediately after such appointment.

''(e) REGULATIONS.—The Secretary shall prescribe regulations to carry out this section. Such regulations shall include—

''(1) standards for determining what constitutes a breach of an agreement signed under subsection (d)(1); and

''(2) procedures for determining whether such a breach has occurred.

''(f) REPAYMENT.—An officer candidate or former officer candidate who does not fulfill the terms of the obligation to serve as specified under subsection (d) shall be subject to the repayment provisions of section 216(b).''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372) is amended by inserting after the item relating to section 233 the following:

''Sec. 234. Officer candidates.''.

(c) OFFICER CANDIDATE DEFINED.—Section 212(b) (33 U.S.C. 3002(b)) is amended—

(1) by redesignating paragraphs (4) through (6) as paragraphs (5) through (7), respectively; and

(2) by inserting after paragraph (3) the following:

''(4) OFFICER CANDIDATE.—The term 'officer candidate' means an individual who is enrolled in the basic officer training program of the Administration and is under consideration for appointment as an officer under section 221(a)(2)(A).''.

(d) PAY FOR OFFICER CANDIDATES.—Section 203 of title 37, United States Code, is amended by adding at the end the following:

''(f)(1) An officer candidate enrolled in the basic officer training program of the commissioned officer corps of the National Oceanic and Atmospheric Administration is entitled, while participating in such program, to monthly officer candidate pay at monthly rates equal to the basic pay of an enlisted member in the pay grade E–5 with less than two years of service.

''(2) An individual who graduates from such program shall receive credit for the time spent participating in such program as if such time were time served while on active duty as a commissioned officer. If the individual does not graduate from such program, such time shall not be considered creditable for active duty or pay.''.

SEC. 306. PROCUREMENT OF PERSONNEL.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 305(a), is further amended by adding at the end the following:

''SEC. 235. PROCUREMENT OF PERSONNEL.

''The Secretary may take such measures as the Secretary determines necessary in order to obtain recruits for the commissioned officer corps of the Administration, including advertising.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 305(b), is further amended by inserting after the item relating to section 234 the following:

''Sec. 235. Procurement of personnel.''.

SEC. 307. CAREER INTERMISSION PROGRAM.

(a) IN GENERAL.—Subtitle B (33 U.S.C. 3021 et seq.), as amended by section 306(a), is further amended by adding at the end the following:

''SEC. 236. CAREER FLEXIBILITY TO ENHANCE RETENTION OF OFFICERS.

''(a) PROGRAMS AUTHORIZED.—The Secretary may carry out a program under which officers may be inactivated from active duty in order to meet personal or professional needs and returned to active duty at the end of such period of inactivation from active duty.

''(b) PERIOD OF INACTIVATION FROM ACTIVE DUTY; EFFECT OF INACTIVATION.—

''(1) IN GENERAL.—The period of inactivation from active duty under a program under this section of an officer participating in the program shall be such period as the Secretary shall specify in the agreement of the officer under subsection (c), except that such period may not exceed three years.

''(2) EXCLUSION FROM RETIREMENT.—Any period of participation of an officer in a program under this section shall not count toward eligibility for retirement or computation of retired pay under subtitle C.

''(c) AGREEMENT.—Each officer who participates in a program under this section shall enter into a written agreement with the Secretary under which that officer shall agree as follows:

''(1) To undergo during the period of the inactivation of the officer from active duty under the program such inactive duty training as the Director of the National Oceanic and Atmospheric Administration Commissioned Officer Corps shall require in order to ensure that the officer retains proficiency, at a level determined by the Director to be sufficient, in the technical skills, professional qualifications, and physical readiness of the

officer during the inactivation of the officer from active duty.

''(2) Following completion of the period of the inactivation of the officer from active duty under the program, to serve two months on active duty for each month of the period of the inactivation of the officer from active duty under the program.

''(d) CONDITIONS OF RELEASE.—The Secretary shall—

''(1) prescribe regulations specifying the guidelines regarding the conditions of release that must be considered and addressed in the agreement required by subsection (c); and

''(2) at a minimum, prescribe the procedures and standards to be used to instruct an officer on the obligations to be assumed by the officer under paragraph (1) of such subsection while the officer is released from active duty.

''(e) ORDER TO ACTIVE DUTY.—Under regulations prescribed by the Secretary, an officer participating in a program under this section may, in the discretion of the Secretary, be required to terminate participation in the program and be ordered to active duty.

''(f) PAY AND ALLOWANCES.—

''(1) BASIC PAY.—During each month of participation in a program under this section, an officer who participates in the program shall be paid basic pay in an amount equal to two-thirtieths of the amount of monthly basic pay to which the officer would otherwise be entitled under section 204 of title 37, United States Code, as a member of the uniformed services on active duty in the grade and years of service of the officer when the officer commences participation in the program.

''(2) SPECIAL OR INCENTIVE PAY OR BONUS.—

''(A) PROHIBITION.—An officer who participates in a program under this section shall not, while participating in the program, be paid any special or incentive pay or bonus to which the officer is otherwise entitled under an agreement under chapter 5 of title 37, United States Code, that is in force when the officer commences participation in the program.

''(B) NOT TREATED AS FAILURE TO PERFORM SERVICES.—The inactivation from active duty of an officer participating in a program under this section shall not be treated as a failure of the officer to perform any period of service required of the officer in connection with an agreement for a special or incentive pay or bonus under chapter 5 of title 37, United States Code, that is in force when the officer commences participation in the program.

''(3) RETURN TO ACTIVE DUTY.—

''(A) SPECIAL OR INCENTIVE PAY OR BONUS.—Subject to subparagraph (B), upon the return of an officer to active duty after completion by the officer of participation in a program under this section—

''(i) any agreement entered into by the officer under chapter 5 of title 37, United States Code, for the payment of a special or incentive pay or bonus that was in force when the officer commenced participation in the program shall be revived, with the term of such agreement after revival being the period of the agreement remaining to run when the officer commenced participation in the program; and

''(ii) any special or incentive pay or bonus shall be payable to the officer in accordance with the terms of the agreement concerned for the term specified in clause (i).

''(B) LIMITATION.—

''(i) IN GENERAL.—Subparagraph (A) shall not apply to any special or incentive pay or bonus otherwise covered by that subparagraph with respect to an officer if, at the time of the return of the officer to active duty as described in that subparagraph—

''(I) such pay or bonus is no longer authorized by law; or

''(II) the officer does not satisfy eligibility criteria for such pay or bonus as in effect at the time of the return of the officer to active duty.

''(ii) PAY OR BONUS CEASES BEING AUTHORIZED.—Subparagraph (A) shall cease to apply to any special or incentive pay or bonus otherwise covered by that subparagraph with respect to an officer if, during the term of the revived agreement of the officer under subparagraph (A)(i), such pay or bonus ceases being authorized by law.

''(C) REPAYMENT.—An officer who is ineligible for payment of a special or incentive pay or bonus otherwise covered by this paragraph by reason of subparagraph (B)(i)(II) shall be subject to the requirements for repayment of such pay or bonus in accordance with the terms of the applicable agreement of the officer under chapter 5 of title 37, United States Code.

''(D) REQUIRED SERVICE IS ADDITIONAL.—Any service required of an officer under an agreement covered by this paragraph after the officer returns to active duty as described in subparagraph (A) shall be in addition to any service required of the officer under an agreement under subsection (c).

''(4) TRAVEL AND TRANSPORTATION ALLOWANCE.—

''(A) IN GENERAL.—Subject to subparagraph (B), an officer who participates in a program under this section is entitled, while participating in the program, to the travel and transportation allowances authorized by section 474 of title 37, United States Code, for—

''(i) travel performed from the residence of the officer, at the time of release from active duty to participate in the program, to the location in the United States designated by the officer as the officer's residence during the period of participation in the program; and

''(ii) travel performed to the residence of the officer upon return to active duty at the end of the participation of the officer in the program.

''(B) SINGLE RESIDENCE.—An allowance is payable under this paragraph only with respect to travel of an officer to and from a single residence.

''(5) LEAVE BALANCE.—An officer who participates in a program under this section is entitled to carry forward the leave balance existing as of the day on which the officer begins participation and accumulated in accordance with section 701 of title 10, United States Code, but not to exceed 60 days.

''(g) PROMOTION.—

''(1) IN GENERAL.—An officer participating in a program under this section shall not, while participating in the program, be eligible for consideration for promotion under subtitle B.

''(2) RETURN TO SERVICE.—Upon the return of an officer to active duty after completion by the officer of participation in a program under this section—

''(A) the Secretary may adjust the date of rank of the officer in such manner as the Secretary shall prescribe in regulations for purposes of this section; and

''(B) the officer shall be eligible for consideration for promotion when officers of the same competitive category, grade, and seniority are eligible for consideration for promotion.

''(h) CONTINUED ENTITLEMENTS.—An officer participating in a program under this section shall, while participating in the program, be treated as a member of the uniformed services on active duty for a period of more than 30 days for purposes of—

''(1) the entitlement of the officer and of the dependents of the officer to medical and dental care under the provisions of chapter 55 of title 10, United States Code; and

''(2) retirement or separation for physical disability under the provisions of subtitle C.''.

(b) CLERICAL AMENDMENT.—The table of contents in section 1 of the Act entitled ''An Act to reauthorize the Hydrographic Services Improvement Act of 1998, and for other purposes'' (Public Law 107–372), as amended by section 306(b), is further amended by inserting after the item relating to section 235 the following:

''Sec. 236. Career flexibility to enhance retention of officers.''.

TITLE IV—SEPARATION AND RETIREMENT OF OFFICERS

SEC. 401. INVOLUNTARY RETIREMENT OR SEPARATION.

Section 241 (33 U.S.C. 3041) is amended by adding at the end the following:

''(d) DEFERMENT OF RETIREMENT OR SEPARATION FOR MEDICAL REASONS.—

''(1) IN GENERAL.—If the Secretary determines that the evaluation of the medical condition of an officer requires hospitalization or medical observation that cannot be completed with confidence in a manner consistent with the officer's well-being before the date on which the officer would otherwise be required to retire or be separated under this section, the Secretary may defer the retirement or separation of the officer.

''(2) CONSENT REQUIRED.—A deferment may only be made with the written consent of the officer involved. If the officer does not provide written consent to the deferment, the officer shall be retired or separated as scheduled.

''(3) LIMITATION.—A deferment of retirement or separation under this subsection may not extend for more than 30 days after completion of the evaluation requiring hospitalization or medical observation.''.

SEC. 402. SEPARATION PAY.

Section 242 (33 U.S.C. 3042) is amended by adding at the end the following:

''(d) EXCEPTION.—An officer discharged for twice failing selection for promotion to the next higher grade is not entitled to separation pay under this section if the officer—

''(1) expresses a desire not to be selected for promotion; or

''(2) requests removal from the list of selectees.''.

TITLE V—OTHER NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION MATTERS

SEC. 501. CHARTING AND SURVEY SERVICES.

(a) IN GENERAL.—Not later than 270 days after the development of the strategy required by section 1002(b) of the Frank LoBiondo Coast Guard Authorization Act of 2018 (33 U.S.C. 892a note), the Secretary of Commerce shall enter into not fewer than 2 multi-year contracts with 1 or more private entities for the performance of charting and survey services by vessels.

(b) CHARTING AND SURVEYS IN THE ARCTIC.—In soliciting and engaging the services of vessels under subsection (a), the Secretary shall particularly emphasize the need for charting and surveys in the Arctic.

SEC. 502. CO-LOCATION AGREEMENTS.

(a) IN GENERAL.—During fiscal years 2021 through 2030, and subject to the availability of appropriations, the Administrator of the National Oceanic and Atmospheric Administration may execute noncompetitive co-location agreements for real property and incidental goods and services with entities described in subsection (b) for periods of not more than 20 years, if each such agreement is supported by a price reasonableness analysis.

(b) ENTITIES DESCRIBED.—An entity described in this subsection is—

(1) the government of any State, territory, possession, or locality of the United States;

(2) any Tribal organization (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304));

(3) any subdivision of—

(A) a government described in paragraph (1); or

(B) an organization described in paragraph (2); or

(4) any organization that is—

(A) organized under the laws of the United States or any jurisdiction within the United States; and

(B) described in section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code.

(c) COLLABORATION AGREEMENTS.—Upon the execution of an agreement authorized by subsection (a) with an entity, the Administrator may enter into agreements with the entity to collaborate or engage in projects or programs on matters of mutual interest for periods not to exceed the term of the agreement. The cost of such agreements shall be apportioned equitably, as determined by the Administrator.

(d) SAVINGS CLAUSE.—Nothing in this section shall be construed—

(1) to affect the authority of the Administrator of General Services; or

(2) to grant the Administrator of the National Oceanic and Atmospheric Administration any additional authority to enter into a lease without approval of the General Services Administration.

SEC. 503. SATELLITE AND DATA MANAGEMENT.

Section 301 of the Weather Research and Forecasting Innovation Act of 2017 (15 U.S.C. 8531) is amended—

(1) in subsection (c)(1), by striking subparagraph (D) and inserting the following:

''(D) improve—

''(i) weather and climate forecasting and predictions; and

''(ii) the understanding, management, and exploration of the ocean.''; and

(2) in subsection (d)—

(A) in paragraph (1)—

(i) by striking ''data and satellite systems'' and inserting ''data, satellite, and other observing systems''; and

(ii) by striking ''to carry out'' and all that follows and inserting the following: ''to carry out—

''(A) basic, applied, and advanced research projects and ocean exploration missions to meet the objectives described in subparagraphs (A) through (D) of subsection (c)(1); or

''(B) any other type of project to meet other mission objectives, as determined by the Under Secretary.'';

(B) in paragraph (2)(B)(i), by striking ''satellites'' and all that follows and inserting ''systems, including satellites, instrumentation, ground stations, data, and data processing;''; and

(C) in paragraph (3), by striking ''2023'' and inserting ''2030''.

SEC. 504. IMPROVEMENTS RELATING TO SEXUAL HARASSMENT AND ASSAULT PREVENTION AT THE NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION.

(a) REPORTING.—Subtitle C of title XXXV of the National Defense Authorization Act for Fiscal Year 2017 (33 U.S.C. 894 et seq.) is amended—

(1) in section 3541(b)(3)(B) (33 U.S.C. 894(b)(3)(B)), by striking ''can be confidentially reported'' and inserting ''can be reported on a restricted or unrestricted basis''; and

(2) in section 3542(b)(5)(B) (33 U.S.C. 894a(b)(5)(B)), by striking ''can be confidentially reported'' and inserting ''can be reported on a restricted or unrestricted basis''.

(b) INVESTIGATIVE REQUIREMENT.—Such subtitle is amended—

(1) by redesignating sections 3546 and 3547 as sections 3548 and 3549, respectively; and

(2) by inserting after section 3545 the following:

''SEC. 3546. INVESTIGATION REQUIREMENT.

''(a) REQUIREMENT TO INVESTIGATE.—

''(1) IN GENERAL.—The Secretary of Commerce, acting through the Under Secretary for Oceans and Atmosphere, shall ensure that each allegation of sexual harassment reported under section 3541 and each allegation of sexual assault reported under section 3542 is investigated thoroughly and promptly.

''(2) SENSE OF CONGRESS ON COMMENCEMENT OF INVESTIGATION.—It is the sense of Congress that the Secretary should ensure that an investigation of alleged sexual harassment reported under section 3541 or sexual assault reported under section 3542 commences not later than 48 hours after the time at which the allegation was reported.

''(b) NOTIFICATION OF DELAY.—In any case in which the time between the reporting of alleged sexual harassment or sexual assault under section 3541 or 3542, respectively, and commencement of an investigation of the allegation exceeds 48 hours, the Secretary shall notify the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Natural Resources of the House of Representatives of the delay.

''SEC. 3547. CRIMINAL REFERRAL.

''If the Secretary of Commerce finds, pursuant to an investigation under section 3546, evidence that a crime may have been committed, the Secretary shall refer the matter to the appropriate law enforcement authorities, including the appropriate United States Attorney.''.

(c) CLERICAL AMENDMENT.—The table of contents in section 2(b) of such Act is amended by striking the items relating to sections 3546 and 3547 and inserting the following new items:

''Sec. 3546. Investigation requirement.
''Sec. 3547. Criminal referral.
''Sec. 3548. Annual report on sexual assaults in the National Oceanic and Atmospheric Administration.
''Sec. 3549. Sexual assault defined.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in strong support of this bipartisan, bicameral measure to treat the commissioned officers of one of our Nation's seven uniformed services, the National Oceanic and Atmospheric Administration Commissioned Officer Corps, with the same basic statutory recruitment, advancement, retention, and benefit structure, and with the same respect, as is accorded to commissioned officers of our other six armed services, the Army, Navy, Air Force, Marines, Coast Guard, and United States Public Health Service Commissioned Corps.

The bill before us today is led by a Republican, Alaskan Senator SULLIVAN. It passed through the Senate committee and the Senate itself by unanimous consent. It is a virtual companion with improvements to H.R. 2406, which was introduced by me and both Democratic and Republican colleagues, and reported out of our Natural Resources Committee.

If passed today, it will go straight to the President, whose Department of Commerce testified to our Natural Resources Committee: ''The Department believes this bill would improve NOAA's ability to administer the NOAA Corps. The Department is very supportive of the ability to retain veterans of the NOAA Corps and the unique skill sets they possess. The Office of Management and Budget has advised that there is no objection to the transmittal of these views, from the standpoint of the administration's programs.''

The bill is also supported wholeheartedly by two of our Nation's foremost servicemember organizations, the 350,000-strong Military Officers Association of America, representing all military officers of all services, and the 5.5-million-strong Military Coalition, whose motto is, ''Proudly serving all seven uniformed services.''

In fact, but for the isolated objections of a few Members, which we may hear from shortly, which appear to arise from some combination of a fundamental misunderstanding or lack of appreciation for the mission of NOAA and its Uniformed Officer Corps, one could scarcely imagine a more broadly supported measure.

The National Oceanic and Atmospheric Administration, or NOAA, celebrates its half-century anniversary this year as ''America's environmental intelligence agency.'' Never, during that half-century, has its mission been so important, and never has it been growing so fast.

NOAA now operates oceanic observation and research throughout our world's oceans, measuring the health of our oceans, the health of our fisheries, and weather prediction. It operates atmospheric research and observation, weather prediction, and, again, national hazard warnings.

It operates fisheries enforcement increasingly throughout our world, including in partnership with our friends and allies. It increases partnerships with foreign countries, projecting part of our soft power throughout this world. It does its vital work with a critical team, including the structured, uniformed Commissioned Officer Corps.

The women and men of the NOAA Corps operate NOAA's highly specialized international fleet of research and survey ships and aircraft. They conduct international world-class oceanic

and atmospheric research, including the famous Hurricane Hunter aviators who fly into, above, and around hurricanes to give NOAA's National Weather Service forecasters accurate data for their storm forecasts and warnings used by emergency managers as they make life and death decisions.

Like the other uniformed services, Active Duty NOAA Corps officers spend most of their careers away from home, at sea, in the air, and in remote locations such as Antarctica, conducting this important work. Their work is frequently in increasingly hazardous conditions.

However, the corps is often overlooked in the legislative process, resulting in a patchwork of statutory authorities, benefits, and service obligations.

This bill will help the NOAA Corps improve recruitment, retention, and diversity to attract the best and the brightest commissioned officers and better align the NOAA Corps with the other uniformed services as they continue their service to NOAA and our Nation.

□ 1830

The NOAA Corps Amendments Act is an important step to make sure that the NOAA Corps has the authority it needs to continue as an effective service for our country.

The bill gives the NOAA Corps officers employment rights in line with other uniform services, authorizes education loan repayment programs for NOAA Corps officers, tuition support for prospective officers, and gives NOAA updated authority to manage the size and composition of the corps.

In their letter supporting the NOAA Corps Amendments Act, the Military Officers Association of America, the Nation's leading voice for commissioned officers of all seven uniformed services, highlighted the importance of the NOAA Corps for national defense.

They stated that, ''The unique scientific and operational expertise, flexibility, and deployment capability of the NOAA Corps continues to be a force multiplier for U.S. and ally air, land, and sea operation.''

This first reauthorization of the NOAA Commissioned Officer Corps since 2002, under the House counterpart bill's co-introducer of the dean of the House, Mr. YOUNG, further improves the diversity of the corps by authorizing financial aid for a student precommissioning education in exchange for service, which will prioritize underserved populations to undertake careers in NOAA and addresses sexual harassment issues by strengthening the corps' policies, including required reporting of potential offenses.

Mr. Speaker, we may shortly hear objections that, as noted, represent a distinct minority in Congress and the uniformed services community. They recite three decades'–old arguments that we have long moved past. They recite various arguments that could just as easily be made for any other uniformed service.

If we are going to go down that road, should we not make those arguments globally, not selectively and discriminatorily as to one of our seven services?

They recite arguments that are simply inaccurate and, again, that seem to reflect a deep misunderstanding of NOAA's mission.

Here is the bottom line for this bill: NOAA does exist. It has existed for 50 years. It has done its work with a committed officer corps for 50 years. It is not being abolished. That mission, that corps will continue. That mission is critical and its personnel must be recognized and improved. And NOAA officers are commissioned officers in our services and should be fully recognized as such, similar to all others.

Mr. Speaker, I urge all of my colleagues to support this bipartisan, bicameral, needed, and fair bill.

Mr. Speaker, I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield 2 minutes to the gentleman from Alaska (Mr. YOUNG), the dean of our Congress, so he can speak on this bill, and then I will correct the RECORD afterwards.

(Mr. YOUNG asked and was given permission to revise and extend his remarks.)

Mr. YOUNG. Mr. Speaker, I thank my good friend for yielding. I am going to miss Mr. BISHOP, his work, his being a gentleman and a good friend as the years have gone by. I have been through 3,452 Members of Congress, and he is one of the good ones.

I thank Congressman CASE and Senator DAN SULLIVAN for this legislation. I know there is some opposition to it, but in Alaska, NOAA plays a very important role. They do navigation, all types of flood control. I can name all the things they do. They monitor fish stocks.

They manage the tsunami warnings. We have some really good earthquakes in Alaska and some pretty good waves. They give us a warning system that makes it work, and it works very well.

They work on the Sea Grant program, provides highly qualified fellows who are very important. In fact, I think I have hired four in my career and they have worked in my office. They are outstanding young people.

This is a piece of legislation that is bipartisan. It is badly needed. There will be some people who say we don't need it. And I will give NOAA notice right now that sometimes they better wake up. They use an excuse of the flu for not monitoring our fish stocks. In that case, then, they should have gone out and gotten private people to do it for them, because we need that constant flow of information to make sure we don't overfish or underfish the stocks.

So, NOAA, wake up a little bit.

Mr. CASE. Mr. Speaker, I deeply appreciate the support of my friend and colleague from Alaska, the dean of the House, on this bipartisan, bicameral measure.

Mr. Speaker, I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield 2 minutes to the gentleman from Mississippi (Mr. PALAZZO).

Mr. PALAZZO. Mr. Speaker, I thank the ranking member for yielding.

I rise today in support of S. 2981, the National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act of 2020. This bicameral and bipartisan legislation aims to improve the smallest uniform service in our country, the NOAA Commissioned Officer Corps.

The men and women of the NOAA Corps operate a highly specialized fleet of scientific ships and aircraft, several of which are based in my district on the Mississippi Gulf Coast and along coastlines around the Nation. The research conducted on these scientific platforms helps to improve hurricane forecasts, manage healthy and sustainable fisheries such as red snapper, and ensure safe and efficient maritime commerce on America's waters.

Members of the NOAA Corps are the ones who operate the 9 aircrafts and 15 vessels in NOAA's growing fleet. During a hurricane, they deploy on missions into the storm; and immediately after hurricanes, they deploy to assess damage and map out debris in the channels to open our ports back up as soon as possible.

All these activities are essential to my district and many others, especially this year where we had back-to-back hurricanes in the Gulf impacting our maritime economy and ecosystems.

NOAA Corps officers provide essential scientific and operational expertise needed for NOAA to meet its missions every day. Recognizing NOAA's 50th anniversary and their growing responsibilities, this legislation will help NOAA retain and recruit the most qualified officers and will offer these servicemembers the level of personal and professional support that they deserve.

The 2020 hurricane season confirms that we need to make the right investments so the NOAA Corps can become even better at predicting storms, in turn, protecting life and property while helping conserve our fisheries that are vital to our national heritage.

Mr. Speaker, I believe it is crucial that we reauthorize and support the NOAA Commissioned Officer Corps, and I urge my colleagues to vote in favor of it.

Mr. CASE. Mr. Speaker, I express my appreciation to new colleague, Mr. PALAZZO, for his support of this critical bill.

Those of us that live in the oceans and on the coasts completely understand the value of NOAA, again, as a matter of life and death in many cases, and we understand that NOAA can only do its job with a motivated, high-expertise Corps.

Mr. Speaker, I continue to reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I am assuming I have the traditional 15 minutes remaining?

The SPEAKER pro tempore. The gentleman from Utah has 16½ minutes remaining.

Mr. BISHOP of Utah. Mr. Speaker, I include in the RECORD two documents. The first document is the dissenting views that Republicans filed on this bill in the committee. The second is the summary of problems that the Department of Commerce Inspector General, the GAO and the NOAA itself have found with the corps, which included a conclusion that the corps does not meet the criteria for military benefits; converting officers to civilians would result in a net savings; that a NOAA Corps officer using a government computer onboard a NOAA ship was accessing child pornography; purposeful violations of the Clean Water Act by NOAA Corps-operated vessels; and a very damning observation that ''insufficient oversight and circumvention of statutory requirements as institutionalized organizational behavior and culture'' within this NOAA Corps.

DISSENTING VIEWS H.R. 2406

No doubt the members of the National Oceanic and Atmospheric Administration Corps of Commissioned Officers (NOAA Corps) are hardworking men and women who are honorably serving our Nation, especially those who pilot into the turbulent hearts of hurricanes. However, there is no justification that this small, underutilized uniformed service should continue to exist, much less be greatly expanded with unprecedented benefits under this legislation.

We are not the only ones who agree with this assessment. The House of Representatives reported or passed (by voice vote) multiple bills that eliminated the NOAA Corps; the Administration itself attempted to shift the Corps into civilian status; and none other than Vice President Al Gore slated the NOAA Corps for elimination as part of his reinventing government initiative. In part because of the Corps' higher expenses for its military- and veterans-type benefits, the Government Accountability Office (GAO) has determined that the functions of the Corps could be accomplished less expensively using civil servants or private contractors. More seriously, GAO identified the Corps itself as a major impediment to more efficiently and effectively accomplishing its primary missions—to collect coastal and geodetic data, conduct fishery surveys and produce nautical charts—because of its continued insistence that it must use its own ships to accomplish these goals and its reluctance to schedule time on other, newer vessels like the University-National Oceanographic Laboratory System ships or the new $127M National Science Foundation regional class research vessel. Moreover, the Corps is greatly resistant to creating private-sector jobs by utilizing equally qualified contractors—like those hired by the Army Corps of Engineers, the Navy and the Environmental Protection Agency—to command and staff NOAA ships or conduct coastal surveys. In 1990, the Department of Commerce Inspector General concluded that NOAA Corps members assigned to shore-based duties were 59% more costly than equivalent civilians. If H.R. 2406 is enacted, that cost differential will be even higher.

The Corps recognizes its life-line connection to the NOAA fleet of civilian ships, which has fallen from 21 to 16 since 2008, noting that if NOAA does not invest in recapitalizing its fleet there will be ''significant'' personnel impacts. The most recent NOAA Fleet Plan (which conveniently omits any costs) notes that half of NOAA's ships are due to be mothballed by 2028. While the Plan calls for the replacement of these ships, Congress has not supported greatly expanding this expensive fleet, providing partial funding for preliminary designs for only a single vessel to date since 2016. Instead, Congress has worked around the Corps, supplying millions to NOAA line offices to conduct fisheries surveys through vessel leases while admonishing NOAA for endangering the lives of those aboard the NOAA vessel Hi'ialakai which apparently suffered hull failure. In fact, because of their age, many of the NOAA vessels spend considerable time in dry dock (4 in the most recent NOAA Fleet update) or are otherwise home in port. Perhaps this explains why the most recent billet roster for the 321 NOAA Corps officers show only 94 assigned to ships (including dry-docked ships), while the vast majority are deskbound providing ''mission support'' or rotating short-term through civil service positions (like ''cetacean photo specialist'') in NOAA program offices. These latter positions could otherwise be filled by less expensive civilians with expertise in the subject matter area and with a longer-term commitment to the program.

These numbers illustrate why the average NOAA Corps officer is more likely to face a paper cut than an IED, which begs the question why multiple military and veterans benefits are extended to the Corps under H.R. 2406. During the world wars some NOAA personnel were temporarily assigned to the armed services; this has not recurred, and according to GAO the Department of Defense has no plans to commandeer NOAA Corps officers. However, the modern Corps has used this potential assignment authority as a justification for access to military benefits, like burial at Arlington Cemetery or the G.I. bill. We hope that the House Armed Services and the Veterans Affairs Committees, which received referrals of this legislation, will take a hard look whether these benefits gratefully provided to those who have fought for our freedom should be extended to persons who are not under the Code of Military Justice, whose appointments are not reviewed and approved by the Senate and who apparently aren't even subject to a physical fitness requirement (see section 104 of the bill). Again, we recognize the special case of the NOAA Corps aviators, and would support their transfer to the Coast Guard or another armed service so that legislation like this would be unnecessary.

Giving the sinking NOAA fleet, one of the most troubling aspects of H.R. 2406 is the 55% increase in the size of the Corps and the removal of the legal constraints on the number of officers and certain flag officers. These numbers can be increased even further because the legislation allows the Corps to rehire retired officers or to designate officers serving in ''positions of importance and responsibility'' who don't count against these caps. In addition, the Corps can have an unlimited number of paid officer candidates to populate the Corps ranks. Under current law, the Corps is restricted to 321 officers and this number can be raised to 379 only if appropriate funding is available and, most importantly, the Secretary of Commerce has ''justified organizational needs for the commission corps for each such fiscal year''. Not only has the Corps failed to justify this massive increase, but this legislation strikes these requirements while inflating the Corps officers' count to an all-time high of 500. The Corps already struggles with funding its handsome benefits and generous retirements, as witnessed by several budget bills to revamp their retirement and benefit system (there are more retired Corps officers than those currently serving, and because Corps officers can retire with as little as 10 years of service, more will join these ranks). Moreover, serious allegations of sexual assault and harassment have also plagued the NOAA Corps, resulting in a recently enacted sexual harassment law specifically targeted to the Corps and Corps funding for sexual assault prevention. The NOAA Corps should get its house in order before recruiting three to six new platoons into its ranks.

Apparently, even with these issues, the NOAA Corps has apparently had no problem filling its current recruitment quota if it needs such a large personnel increase. Understandably so—it is a great gig with almost all the benefits of a military career with few of the risks. Despite this and with no justification, H.R. 2406 creates lavish and expensive new perks and extends even more existing armed forces benefits to current, future and retired Corps members:

Paid three-year sabbatical with travel and transportation allowances and continued medical and dental care;

The ability to opt out of promotion boards. The Corps is supposedly an up-or-out organization but based on a GAO decision analysis, it appears that an officer who failed to be promoted twice can be retained on staff until the officer can qualify for early retirement;

Every single benefit provided to retired or separated armed services members, including employment preferences and assistance, medical and dental care, and commissary and exchange access;

All benefits relating to armed services family programs, including free admission to national parks;

An elaborate student loan repayment program of up to $60K a year (currently the limit for military doctors and other armed forces health professionals) for as little as one year in service;

A student pre-commissioning program for tuition, fees, education materials, monthly subsistence allowance, and a clothing allowance, where repayment can be waived by the Corps if the student fails to be commissioned and where any obligation can be discharged in bankruptcy under certain circumstances.

Payment for advanced degrees (tuition, room and board) as well as professional credentials for employment post-Corps;

Eligibility for special payments (up to $60K), including personal money allowances;

Mandatory hiring preferences in federal agencies;

Certain senior officers allowed to retain their higher rank and pay while not serving in those positions if approaching retirement; and

Repayment for failure to satisfy service requirements for appointments, training and promotions is discretionary with the Corps, and any obligation can be discharged in bankruptcy under certain circumstances.

Finally, we note that this legislation was not originated or transmitted to Congress by NOAA and was reviewed by the Office of Management and Budget only after the markup of the bill. During the Obama Administration, the Senate Commerce, Science and Transportation Committee contemplated slightly less generous NOAA Corps bills in the past, albeit without any hearings. Perhaps it is just a coincidence that a senior NOAA Corps officer was recently detailed to the Democrat Natural Resources Committee staff who was previously assigned to the Senate Commerce Committee. Given the Committee Democrats'

focus on Trump Administration ethics, we hope that appropriate measures have been put in place to prevent conflicts of interest with this assignment.

NOAA CORP ISSUES

In a 1999 Government Accountability Office (GAO) letter to Chairman Ken Calvert, Subcommittee on Energy and Environment, House Committee on Science, indicated that GAO has for years ''urged NOAA to aggressively pursue more cost-effective alternatives for acquiring needed marine data.''

''[NOAA] continues to rely heavily on its aging in-house fleet of ships—many of which are costly and inefficient to operate and maintain and lack the latest state-of-the-art technology . . .'' and is ''reluctant to give serious consideration to the many innovative and more modern ways that private sector . . . could meet its basic marine data needs.''

In a 1996 program evaluation, the Department of Commerce Inspector General recommended that NOAA terminate its fleet modernization efforts, cease investing in its ships, and immediately begin to decommission, sell, or transfer them; and contract for the required ship services.''

In a 1997 testimony from NOAA's Director of Information Resources Management, the agency expressly stated that NOAA Corps does not meet criteria for receiving military compensation, converting officers to civilians would result in annual net savings, and that entitlement to military rank was an outgrowth of temporary assignments during the second world war, but defense officials envision no role for them in the future.

In 1998, the DOC IG included NOAA's fleet as one of the top 10 most serious management challenges facing the Department of Commerce.

In 2017, GAO released a new report on NOAA Corp's functions and again found that the Corp has not succeeded in expanding private sector involvement in data collection—a recommendation made by GAO as early as their 1999 report and the IG's 1996 recommendations. The report also found NOAA was significantly understating agency costs to conduct data collection functions compared to the private sector.

GAO's reviews of NOAA's cost comparison reports from '06–'16 found that NOAA had not reported significant costs such as acquisition of a $24 million new vessel, nor did NOAA factor in major vessel maintenance into their operational cost estimates. Ultimately, NOAA Corp simply used costs to measure a single square nautical mile surveyed to compare costs, ignoring those above and other significant operational costs.

This review ultimately found that NOAA Corp did not develop a strategy for expanding private sector, cost effective, data collection as required by law.

NOAA Corp also did not include administrative costs in their comparisons because they ''do not have the software to track contract administration costs.''

Ultimately, NOAA determined that carrying out actions in regard to the recommendations of this report would be difficult because it would ''[require] the coordination of multiple offices within NOAA . . .''

In 2015, a NOAA Corp officer was found to have had website traffic on a government computer aboard the NOAA ship Ron Brown, which was linked to a ''notorious presence of child pornographic images and is frequented by pedophiles.''

In 2014, DOC OIG found the improper discharge of untreated water from a NOAA Corp vessel was an apparent practice—a violation of the Federal Water Pollution Control Act.

NOAA CORP ISSUES

In 2008, a NOAA Corp employee was found to have used a government purchase credit card to purchase $18,000 in aftermarket parts to their motorcycle.

In 2004, NOAA Corp was found to have consistently failed to follow requirements for Senate confirmation of appointments and promotions since at least 1986. Furthermore, it was found that seventy-five percent of promotions were made without first securing Senate confirmation. The report identified the causes for this problem: insufficient oversight and circumvention of statutory requirements as institutionalized organizational behavior and culture.

Mr. BISHOP of Utah. The NOAA Corps is a very small, underutilized but uniformed service group. It prevents questions with this type of group, with their history that they have, first of all: Why should they exist in the first place? But more significantly, why should they greatly expand and grant unprecedented benefits that this legislation gives to this group?

Congress, the administration, and even Vice President Al Gore all slated this NOAA Corps for elimination. In part, it was because the corps' higher expenses because of their military-type benefits, even though they perform no military-type activities.

The Government Accounting Office, GAO, determined that the functions of the corps could be less expensively given using civil servants or private collectors. More seriously, the GAO said that the corps itself is a major impediment to more efficiently and effectively accomplishing its missionary statement, which is to collect coastal data, to conduct fishing surveys, and to produce nautical charts.

Now, why is this the case?

Well, in one part because the corps insists that it must use their own ships, which are failing. They are resistant to ever contracting with qualified contractors like the Army Corps of Engineers does and the Navy does and even the EPA does. Even this bill recognizes that problem. If you go to look at section 501, it mandates that at least two private-sector charting and surveying contracts must be given. They recognize that what is happening right now is not effective, it is not efficient, and it is a failure.

The fleet for this corps has gone from 21 down to 15 since 2008, and the GAO also noted that the NOAA fleet plan is to mothball half of their ships by 2028. Congress has only partially funded a single vessel since 2016, but the money that has been gone is still in the millions, and it goes to line officers, not for Naval vessels or for their leases.

If one looks at the recent billet roster, you would find that the NOAA Corps has 94 of its 321 officers assigned to ships. Only 94. That includes the dry-docked ships. The vast majority of their officers are desk-bound, providing, as NOAA says, mission support like having a whale photographer.

Now, giving the sinking number of the NOAA fleet, the increased cost of the NOAA officers, the most troubling aspect of this particular bill is a 55 percent increase in the size of the corps; not in the amount of work to be done, but in the size of the corps.

The corps now is restricted to 321 officers. It can be raised to 379 officers only if there is appropriate funding from Congress. Most importantly, the Secretary of Commerce will justify organizational needs for the commissioned corps for that particular year.

Not only has the corps failed to justify an increase—this massive increase, but this legislation strikes those reasonable requirements of ever going forward in the future. And it does conduct and create an all-time high of 500 billet spots in there whether it is needed or not.

It is no surprise that there are those in the administration that do not support this personnel increase.

The NOAA Corps' roster illustrates why the average corps officer is far more likely to face a paper cut than any other kind of accident in their careers in this corps military function. Which means if that is the situation, if these are desk jobs in the first place, why are there multiple military and veteran benefits extended to the corps under this bill?

During World War II, this corps was temporarily commandeered and put into the Navy service. Unfortunately, today, the Department of Defense has no plans whatsoever to commandeer any of the NOAA Corps or their officers. However, the corps still uses that history, that example during World War II when they were desperately needed and used to justify claiming military and veteran benefits that are normally given to our Armed Forces.

I don't think there is anyone here that has any doubt or would have any kind of grave problem giving benefits to those who fought for our freedom, but the corps is not that type of a group. They do not fall under the Code of Military Justice. Their appointments are not reviewed and approved by the Senate. They aren't even subject to physical fitness requirements of the military.

Moreover, and what is really problematic, is there have been serious allegations of sexual assault and harassment that have plagued this NOAA Corps, resulting recently in the enactment of a corps sexual harassment law and targeted funding for sexual assault prevention.

Is this the kind of group, in all sincerity, that deserves mandatory Federal hiring preferences? That would require student loan repayment at the same rate as you would any military, like a military doctor? Is that the same requirement that would have a 3-year paid sabbatical or free graduate school for post-employment work or even pocket money for their admirals?

□ 1845

All of you, if you were serious about this, should sign up for these. The benefits are great, and all you have to do is photograph a couple of whales.

This bill, finally, was not transmitted to Congress by the administration. No, no. Perhaps it is coincidental

that there are two NOAA Corps officers who have been detailed to our Natural Resources Committee staff, one of whom was previously assigned to the Senate Commerce Committee staff where this bill originated.

Given that concept, given that connection, we need to have serious measures put into effect to maybe prevent these conflicts of interests in the future that have created this NOAA Corps dream bill where they get all the benefits but don't have the responsibilities and they don't do the same work.

When I said we were dealing with kleinigkeiten today, this is the smallest of all the kleinigkeiten.

This is not a good bill. This is not something that we should forward on. We do need to look seriously at this corps in the future.

And this is not something that is new. There are those who have been working on this issue and dealing with this corps for the last 30 years and still have not come up with the proper solution to it.

Mr. Speaker, I reserve the balance of my time.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I certainly regret to hear the words from my friend, the ranking member's mouth on this bill, because in scattershotting 9 or 10 cherry-picked arguments, he ignores the big picture.

He ignores, again, the big picture that the NOAA Corps are doing serious work for our country, are commissioned officers, one of our seven commissioned officer corps, and are not recognized the same as the other six, to include the Public Health Service, which is a commissioned officer corps and is entitled to the same benefits as the Army, Navy, Marines, Air Force, and Coast Guard.

I think, in all honesty—and I don't think he means to do this—he does a great disservice to the people who are serving in the NOAA Corps by some of his statements, because these people are trying to do their best for our country.

I am not sure that the Member has ever spent time on a NOAA ship in the high seas as I have, but if you do that, you know that there is nothing really to distinguish them from any of their fellow officers in any of the other services.

It would take a lot of time to go through each of my colleague's 9 or 10 cherry-picked arguments. I want to make a couple of quick comments and then some big picture observations.

First of all, if I am not mistaken, the GAO report that he refers to is dated 1996, a whole generation ago. That report itself was disputed by subsequent studies and, I submit, is really no longer relevant.

He says, twice: Why should we greatly expand the unprecedented benefits that the NOAA Corps receives?

There is a very simple answer to that: Because they don't get today what the other six do. All we are doing today in expanding is bringing them up to the same level as the other six corps.

He says that the mission of NOAA is a minor mission, so why should we reward them—I suppose is what he is saying—with the same promotion benefits, the same educational benefits, the same retirement benefits, the same respect as the other six.

I would say to him, first of all, because that mission is worthy of that treatment. And, number one, if he is referring to the GAO report from a generation ago, the NOAA Corps does so much more today.

I think we would all agree that the mission that the NOAA Corps works on, which is the basic health and quality of our oceans, of our atmosphere, of our ability to predict the weather, of our ability to protect our shorelines, of our ability to protect and sustain our fisheries, is so much greater than it ever was.

He complains that some of the members of the NOAA Corps spend time onshore. Is that any different from the Navy? I don't think the Navy has all of its officers out at sea all the time, and neither does the NOAA Corps. The Army doesn't have all of its officers overseas in battle zones.

He says a number of times: This is a 55 percent increase in the size of the corps.

Yes, it does authorize an increase in the size of the NOAA Corps from 320 to a maximum of 500—by the way, the last authorization, as already noted, was almost 20 years ago—but that increase is subject to two conditions: First of all, it can only be increased on the certification of need by the Secretary of Commerce; and it is subject to congressional oversight, both general oversight authority and, most importantly, funding.

So there are lots of steps between 320 and 500, but this gives them the authority to move if it is needed. Frankly, I believe that we should move it up, but that is up to us to decide with the Secretary of Commerce and with the Congress.

He says: Well, we are not building any new NOAA ships.

Well, I think we should build a lot more new NOAA ships. I believe that NOAA's mission is going to be—I think that when we look back on today 25 years from now at the size of this effort for our Federal Government, we are going to say to ourselves: That was so insufficient given the challenge that we faced.

There is a dire need for additional NOAA-related research, NOAA-related activities across this country, across this world. So the fact that we have not authorized and built a sufficient number of new NOAA ships for its mission is no reason to treat the NOAA Officer Corps differently from the other six services.

My colleague rightly raises the issues NOAA has had of sexual assault within its ranks, as have other uniformed services, and, as he points out as well, this Congress responded with an act specific to the NOAA situation. This bill goes further and strengthens that act. So we are responding to the concern in Congress, as has NOAA itself.

Finally, he seems to have some continuing issues with a staff member from NOAA assigned to the committee. It is not unusual, of course, for departments in the administration to second members for some work. We have had fellows do it all the time. But if that is an issue we have to look at, that is an issue we have to look at, but that is not an issue that should stand in the way of a constructive and fair adjustment of the benefits and position afforded to NOAA officers.

I would conclude by going back to the fact that, if the gentleman's concerns are so widespread, if his concerns are so deep, then why do we have the principal military uniformed services associations of our country supporting this bill without qualification?

I refer to the Military Officers Association of America. I also refer to The Military Coalition, 5.5 million members, consisting of—and I am not going to read all their names because I think it is about 30 here. I will just read maybe the first 10 or so—the Air Force Association, the Air Force Sergeants Association, the Army Aviation Association of America, the Association of Military Surgeons, the Association of the United States Navy, the Blinded Veterans Association, the Coast Guard, the Public Health Service, the Fleet Reserve Association, the Gold Star Wives of America, the Iraq Afghanistan Veterans Association.

It is very clear that military officers and their community view their NOAA colleagues and the corps as being treated substantially unfairly in the big picture and want them to be afforded, again, the same benefits, the same respect that is due the other six services. That is why, Mr. Speaker, we have a situation where the Senate passed this bill, a Republican Senator's bill, by unanimous consent. That is why this House should pass this bill, as well, and send it to the President.

Mr. Speaker, I reserve the balance of my time.

Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, once again I appreciate the comments that are made in defense of this organization, but as I said before, this is a 30-year-old problem.

Unfortunately, NOAA Corps is not part of the military. They don't do military-type functions. The National Health Services, the other uniformed corps, they don't get these same kind of benefit.

The gentleman is right; there is a provision, and there has been, on the ability of expanding this corps if there were appropriations for it and if the Secretary of Commerce would justify it. The problem is this bill removes

that. So it will now be up to the corps to decide what their size is and what their justification is.

It is the wrong thing to do. This is the wrong approach. This is not the right way of doing it. And I am sorry, the studies have shown that repeatedly over and over and over again.

If, indeed, there are some people who want to do this, it is wrong. It is simply wrong. This is not a military. To insist that they get military benefits is an abuse of the system. It doesn't happen anywhere else. It is only with this. So I am sorry.

With that, Mr. Speaker, I don't have to play this game of reserving. I would be happy to, but I think we are the only ones left on this topic on the floor. No one else actually cares.

So, if the gentleman is ready, I will yield back, urging a ''no'' vote on this particular bill because it is the wrong thing to do and it is not—not—justified.

Mr. Speaker, I yield back the balance of my time.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank my colleague, the ranking member, for his passion on this matter.

I think he is wrong, and I think the entire Senate thinks he is wrong, and I think the majority of this House thinks he is wrong. He is, of course, entitled to his opinion, but I think that the statement that this bill is wrong is not borne out by the facts; it is not borne out by the sentiment, again, of the broader community.

If there is a problem with NOAA or any other commissioned officer corps, the way to solve that problem is not to kill the corps itself. The way to solve that problem is not to deprive it of the resources that it needs to fix its problem and to continue its mission.

For me to accept the ranking member's argument would be for me to accept that, in fact, NOAA itself is not relevant, and I don't believe that. I believe NOAA is entirely relevant, and it needs to be staffed by people who are incentivized to be recruited, who are incentivized to stay and to want to do their job, and who are recognized as such.

This is not about the military, per se. I would disagree with his characterization that the NOAA Corps does not perform a military function. It is certainly quasi-military in many ways, but that is not what this is about. This is about fairly recognizing one of our seven commissioned officer corps organizations in our country.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, S. 2981.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. BISHOP of Utah. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

LAND GRANT-MERCEDES TRADITIONAL USE RECOGNITION AND CONSULTATION ACT

Mr. CASE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3682) to provide for greater consultation between the Federal Government and the governing bodies of land grant-mercedes and acequias in New Mexico and to provide for a process for recognition of the historic-traditional boundaries of land grant-mercedes, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3682

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Land Grant-Mercedes Traditional Use Recognition and Consultation Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) ACEQUIA.—The term ''acequia'' has the meaning of the term ''community ditch'' as that term is construed under New Mexico Stat. 73–2–27.

(2) COMMUNITY USER.—The term ''community user'' means an heir (as defined under the laws of the State) of a qualified land grant-merced.

(3) GOVERNING BODY.—The term ''governing body'' means the board of trustees authorized under State law with the control, care, and management of a qualified land grant-merced.

(4) HISTORICAL-TRADITIONAL USE.—The term ''historical-traditional use'' means, for a qualified land grant-merced, for noncommercial benefit—

(A) the use of water;

(B) religious or cultural use and protection;

(C) gathering herbs;

(D) gathering wood products;

(E) gathering flora or botanical products;

(F) grazing, to the extent that grazing has traditionally been carried out on the land, as determined by the Secretary concerned in consultation with the governing body of the affected land grant-merced;

(G) hunting or fishing;

(H) soil or rock gathering; and

(I) any other traditional activity for noncommercial benefit that—

(i) has a sustainable beneficial community use, as determined by the Secretary concerned in consultation with the governing body of the affected land grant-merced;

(ii) supports the long-term cultural and socioeconomic integrity of the community, as determined by the Secretary concerned in consultation with the governing body of the affected land grant-merced; and

(iii) is agreed to in writing by the Secretary concerned and the governing body of the qualified land grant-merced.

(5) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(6) QUALIFIED LAND GRANT-MERCED.—The term ''qualified land grant-merced'' means a community land grant issued under the laws or customs of the Government of Spain or Mexico that—

(A) is recognized under New Mexico Statutes Chapter 49 (or a successor statute); and

(B) has a historic or cultural record of use of lands under the jurisdiction of a Secretary concerned or their original or patented exterior boundaries are located adjacent to land under the jurisdiction of a Secretary concerned.

(7) SECRETARY CONCERNED.—The term ''Secretary concerned'' means the relevant Secretary of the Department of Agriculture or the Department of the Interior, with respect to land under the jurisdiction of that Secretary.

(8) STATE.—The term ''State'' means the State of New Mexico.

SEC. 3. GUIDANCE ON PERMIT REQUIREMENTS FOR QUALIFIED LAND GRANT-MERCEDES.

(a) IN GENERAL.—In accordance with all relevant laws, including subchapter II of chapter 5 of title 5, United States Code (commonly known as the ''Administrative Procedure Act'') and all applicable environmental laws, and not later than 2 years after the date of the enactment of this Act, the Secretary concerned, acting through the appropriate officials of the Department of Agriculture and Department of the Interior in the State, in consultation with the New Mexico Land Grant Council, the governing bodies of qualified land grant-mercedes, and Indian Tribes, shall issue the written guidance described in subsection (b).

(b) CONTENTS OF GUIDANCE.—

(1) IN GENERAL.—Written guidance issued under subsection (a) shall include—

(A) a description of the historical-traditional uses that—

(i) a community user or a governing body of a qualified land grant-merced may conduct for noncommercial use on land under the jurisdiction of the Secretary concerned; and

(ii) require a permit from the Secretary concerned;

(B) administrative procedures for obtaining a permit under subparagraph (A);

(C) subject to subsection (c), the fees required to obtain that permit;

(D) the permissible use of motorized and nonmotorized vehicles and equipment by a community user or the governing body of a qualified land grant-merced for noncommercial historical-traditional use on land under the jurisdiction of the Secretary concerned;

(E) the permissible use of mechanized vehicles or equipment by a community user or governing body of a qualified land grant-merced for historical-traditional use on land under the jurisdiction of the Secretary concerned; and

(F) the permissible use of non-native material by a community user or the governing body of a qualified land grant-merced for any of the uses covered in paragraphs (2) and (3) on land under the jurisdiction of the Secretary concerned.

(2) ROUTINE MAINTENANCE AND MINOR IMPROVEMENTS.—Written guidance issued under subsection (a) shall address routine maintenance and minor improvements of infrastructure owned or used by a qualified land grant-merced on land under the jurisdiction of the Secretary concerned, including—

(A) cleaning, repair, or replacement-in-kind of infrastructure;

(B) maintenance and upkeep of a trail, road, cattle guard, culvert, or fence;

(C) maintenance and upkeep of a monument or shrine;

(D) maintenance and upkeep of a community cemetery;

(E) maintenance and upkeep of a livestock well, water lines, water storage container, or water tank; and

(F) any other routine maintenance or minor improvement associated with historical-traditional uses identified by any of the entities described in subsection (a) in the process of developing the guidance.

(3) MAJOR IMPROVEMENTS.—Written guidance issued under subsection (a) may describe the process for managing major improvements of infrastructure owned or used by a qualified land grant-merced on land under the jurisdiction of the Secretary concerned, including—

(A) construction or expansion of a community water or wastewater system;

(B) construction or major repair of a livestock well, water lines, water storage container, or water tank;

(C) construction or major repair of a monument or shrine;

(D) installation of a cattle guard;

(E) construction of a trail, road, or fence;

(F) construction or expansion of a cemetery; and

(G) any other major improvement associated with historical-traditional uses, as determined by the Secretaries concerned.

(4) NOTICE AND COMMENT.—Written guidance issued under subsection (a) shall set forth the policies and procedures for notice and comment on planning decisions, routine engagement, and major Federal actions that could impact historical-traditional uses of a qualified land grant merced, and methods of providing notice under subsection (a), including—

(A) online public notice;

(B) printed public notice;

(C) mail, including certified mail, and email notifications to governing bodies through a listserv; and

(D) mail, including certified mail, and email notifications to the Land Grant Council.

(c) FEES FOR QUALIFIED LAND GRANT-MERCEDES.—Where the Secretary concerned is authorized to consider the fiscal capacity of the applicant in determining whether to reduce or waive a fee for a permit for historical-traditional uses, the Secretary shall consider—

(1) the socioeconomic conditions of community users; and

(2) the annual operating budgets of governing bodies of qualified land grant-mercedes.

SEC. 4. CONSIDERATION OF HISTORICAL-TRADITIONAL USE IN LAND MANAGEMENT PLANNING.

In developing, maintaining, and revising land management plans pursuant to section 202 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1712) and section 6 of the National Forest Management Act (16 U.S.C. 1604), as applicable, the Secretary concerned shall, in accordance with applicable law, consider and, as appropriate, provide for and evaluate impacts to historical-traditional uses by qualified land grants-mercedes.

SEC. 5. SPECIAL USE PERMITS FOR ROUTINE MAINTENANCE AND MINOR IMPROVEMENTS OF ACEQUIAS.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary Agriculture shall initiate procedures under subchapter III of chapter 5 of title 5, United States Code, to promulgate such regulations as are necessary to carry out and implement the Forest Service's Acequia Guidance Document, dated July 2, 2019.

(b) PUBLICATION OF PROPOSED REGULATIONS.—The Secretary shall cause to be published in the Federal Register proposed regulations to implement this section not later than 21 months after the date of the enactment of this Act.

(c) EXPIRATION OF AUTHORITY.—The authority to promulgate regulations under subsection (a) shall expire 30 months after the date of the enactment of this Act.

(d) EXTENSION OF DEADLINES.—The Secretary may extend, for not more than 180 days, a deadline under subsection (b) or (c) if—

(1) the negotiated rulemaking committee referred to in subsection (e) concludes that the committee cannot meet the deadline; and

(2) the Secretary so notifies the appropriate committees of Congress.

(e) COMMITTEE.—

(1) ESTABLISHMENT.—The Secretary shall ensure that a negotiated rulemaking committee is established under section 565 of title 5, United States Code, to carry out this section.

(2) MEMBERS.—The members of the committee shall be—

(A) the relevant Regional Forester (or a designee of the relevant Regional Forester); and

(B) the selected representative of a nongovernmental organization identified by the Secretary of Agriculture as having a statewide acequia membership, nominated by such organization to the Secretary of Agriculture.

(3) REQUIREMENTS.—The committee shall confer with, and accommodate participation by—

(A) representatives of any agency or commission of the State government established or designated by the State to advise public officials on proposed legislation affecting acequias; and

(B) State acequia elected officials.

(f) EFFECT.—The lack of promulgated regulations shall not limit the effect of the Forest Service's Acequia Guidance Document, dated July 2, 2019.

SEC. 6. SAVINGS.

Nothing in this Act shall be construed—

(1) to impact the State's authority to regulate water rights, in conformance with all State and Federal laws and regulations;

(2) to impact the State's authority to regulate the management of game and fish, in conformance with all State and Federal laws and regulations;

(3) to impact any valid existing rights or valid permitted uses, including grazing permits;

(4) to create any implicit or explicit right to grazing on Federal lands; or

(5) to alter or diminish any rights reserved for an Indian Tribe or members of an Indian Tribe by treaty or Federal law.

SEC. 7. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 3682, sponsored by our friend and colleague, Representative LUJÁN of New Mexico.

This bill would support land grant communities and acequias across New Mexico and Texas by providing guidance on certain allowable land uses.

Since the end of the Spanish-American War and the signing of the Treaty of Guadalupe Hidalgo, these communities have faced challenges accessing basic resources like fuel wood and grazing land and clarity on their infrastructure maintenance obligations.

These challenges continue to the present day, and this bill would help provide some certainty and clarity in order to better support these communities and hopefully improve relations with Federal land managers.

I want to thank Representative LUJÁN for his tireless service and support on behalf of land grant communities and acequia owners, and I urge all of my colleagues to vote in support of H.R. 3682.

I reserve the balance of my time.

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Mr. BISHOP of Utah. Mr. Speaker, I yield myself such time as I may consume.

I appreciate this opportunity. This bill has got one thing that I think is going for it very heavily in that it authorizes the opportunity of having the Federal Government being forced to actually deal with the local community on management practices. That is something we have been trying to get in all land management policies in the United States. This does that, that is why we support it.

Mr. Speaker, I reserve the balance of my time.

Mr. CASE. Madam Speaker, I yield 4 minutes to the gentleman from New Mexico (Mr. LUJÁN).

Mr. LUJÁN. Madam Speaker, as a proud New Mexican, I rise in support of the Land Grant-Mercedes Traditional Use Recognition and Consultation Act that I introduced to ensure that the Federal Government recognizes the historical and cultural significance of New Mexico's land grants and acequias.

Growing up on a small farm in Nambe, New Mexico, I would wake up before dawn to feed the livestock, to open the ''compuertas'' or the headgates to allow the waters of the acequia to flow to our land and irrigate our crops. These chores and responsibilities, preserving our acequias and communal lands, are part of our way of life in New Mexico.

Land grants and acequias have been around for generations, hundreds of

years, and they deserve recognition from the Federal Government. Traditional communities face a growing number of challenges, such as the climate crisis, which impacts the local watersheds and forested areas. Without improved consultation and cooperation between the Federal Government and traditional communities, these communities may not have access to the resources they need to survive.

This legislation offers land grants the opportunity to be more involved in the issues that impact their community by requiring that future Federal land management planning consider historical and traditional uses.

It directs the Federal Government to issue guidance on permit requirements for qualified traditional use communities and helps New Mexicans who have stewarded these lands for generations maintain precious infrastructure like acequias.

This legislation recognizes the importance of protecting culturally important sites and communities and ensures that the impact of Federal actions on historical-traditional uses is evaluated and considered during the land management planning processes.

To ensure that acequia associations have a strong voice in advocating for their right to maintain their infrastructure, this legislation requires the Forest Service to work directly with acequia associations to develop a proposed rule on special use permits.

Addressing these challenges faced by land grant and acequia communities, including their interactions with the Federal Government, has been a priority of mine since I was elected to Congress.

I am proud and honored to have worked with the New Mexico Land Grant Council and the New Mexico Acequia Association to move this legislation forward.

I am grateful to Chairman GRIJALVA, Ranking Member BISHOP, Subcommittee Chair HAALAND, and Ranking Member YOUNG, and Representative CASE for their support in bringing this important legislation to the House floor.

Today, with the support of New Mexico's traditional communities, I urge the House to pass my legislation and ensure a victory for our land grants and acequias.

The SPEAKER pro tempore (Ms. DEGETTE). Without objection, the gentleman from Washington (Mr. NEWHOUSE) will control the balance of the time.

There was no objection.

Mr. NEWHOUSE. Madam Speaker, on behalf of the ranking member, I would just like to say that we support this legislation. We certainly appreciate our friend, Mr. LUJÁN, for bringing it forward.

Just a few comments I would like to make, rising in support of H.R. 3682. This bill seeks to ensure better consultation and collaboration between our Federal land management agencies and local stakeholders over management of New Mexico's land grants and acequias.

H.R. 3682 requires coordination between the Department of Agriculture, the Department of the Interior, and land grant-mercedes. These are the governing bodies of certain community land grants made by Spain or Mexico in the 17th to the mid-19th centuries to individuals, groups, and communities to promote the settlement of the southwestern United States.

Specifically, this bill directs Federal land management agencies to make these bodies aware of changes to management plans and other Federal actions affecting their land grants. H.R. 3682 also requires the Federal Government to issue guidance on permitting and permissible uses.

Finally, this bill creates a process for New Mexico's land grant-mercedes to establish their historical boundaries and provides a pathway for acquiring Federal land that falls within those boundaries when the Federal Government disposes of it.

We should always strive to make sure that the Federal Government is a good neighbor to the communities most impacted by its land management decisions, and this good bill does exactly that. It empowers rural communities in New Mexico with a greater say over land management decisions impacting their historically important common lands which will, in turn, ensure continued community care and use for generations to come.

So I support this legislation. I thank the gentleman very much for bringing it forward, and I yield back the balance of my time.

Mr. CASE. Madam Speaker, I am very happy to yield 2 minutes to the gentlewoman from New Mexico (Ms. HAALAND), chair of the subcommittee of jurisdiction, National Parks, Forests, and Public Lands, my friend and colleague.

Ms. HAALAND. Madam Speaker, I rise today in support of H.R. 3682, the Land Grant-Mercedes Traditional Use Recognition and Consultation Act.

I would like to begin by congratulating the author of the bill, my good friend and colleague, Representative BEN RAY LUJÁN, and thank him for having me as an original cosponsor.

His hard work and dedication to moving this bill forward are what got it to the House floor today. And the testimony from Representative LUJÁN from beside an acequia during our virtual hearing on the bill helped our colleagues to understand how important this legislation is to our constituents.

We will absolutely miss Representative LUJÁN when he begins service on the other side of the Capitol in the Senate, but we look forward to continuing to work with him on these and other issues that are important for New Mexico and our country.

In our home State of New Mexico, land grants and acequias have long played a critical role in our traditional way of life, practicing traditional methods of stewardship over our land and water.

But for more than a century, these communities have fought for recognition, consultation, and access to their historic communal lands, which are necessary to sustain their land-based heritage and agricultural economies.

At the hearing I chaired on this bill, we heard from Arturo Archuleta of the New Mexico Land Grant Council about the unique connection between traditional communities and the lands they manage, and the challenges they face because some of the lands that formerly belonged to them are now Federal lands.

He noted that as the climate change continues to impact watersheds and forested uplands, the protection of traditional uses must be included in the conversations about the management of public lands for land grant communities to survive.

These are the same messages I have heard when I have visited land grant communities in my district.

The bill we consider today will provide enhanced access and consultation between Federal land management agencies and land grants and acequias, which is an essential part for maintaining their way of life, and I am proud to support it.

Mr. CASE. Madam Speaker, I certainly endorse and agree with my colleague's comments on Mr. LUJÁN's service in the House. The House's loss is the Senate's gain.

And I would also note that I personally enjoyed Mr. LUJÁN's personal testimony from an acequia before the committee. That is the way to do it, where you have a real sense of what the actions are that you are taking.

I urge passage of this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 3682, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to provide for greater consultation between the Federal Government and the governing bodies and community users of land grant-mercedes in New Mexico, to provide for a process for recognition of the historic-traditional uses of land grant-mercedes, and for other purposes.''.

A motion to reconsider was laid on the table.

HEALTH CARE ACCESS FOR URBAN NATIVE VETERANS ACT

Mr. CASE. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 4153) to amend the Indian Health Care Improvement Act to authorize urban Indian organizations to enter into arrangements for the sharing of

medical services and facilities, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4153

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Health Care Access for Urban Native Veterans Act''.

SEC. 2. SHARING ARRANGEMENTS WITH FEDERAL AGENCIES.

Section 405 of the Indian Health Care Improvement Act (25 U.S.C. 1645) is amended—

(1) in subsection (a)(1), by inserting ''urban Indian organizations,'' before ''and tribal organizations''; and

(2) in subsection (c)—

(A) by inserting ''urban Indian organization,'' before ''or tribal organization''; and

(B) by inserting ''an urban Indian organization,'' before ''or a tribal organization''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, H.R. 4153, the Health Care Access for Urban Native Veterans Act, will ensure that Native American veterans have equal access to healthcare, regardless of their location of residence, by expanding Department of Veterans Affairs, VA, funding to include urban Indian health centers.

The Indian Health Service acts as the primary Federal agency responsible for providing healthcare to federally recognized Indian and Alaska Native communities. Currently, there are three types of facilities that make up the IHS system: Federally-operated facilities, tribally-operated facilities, and urban Indian organization-operated, UIO, facilities.

As opposed to the federally-operated and tribally-operated facilities, which are often located in remote areas, UIO facilities have been established in larger cities in order to accommodate the large populations of tribal members located in urban areas.

By law, a Native veteran is eligible to receive services under both the VA and IHS and can choose which one to use at any given time. Section 405 of the Indian Health Care Improvement Act, or IHCIA, authorizes the VA to reimburse federally-operated and tribally-operated IHS facilities for any services that they provide to eligible Native veterans.

To that end, the VA has entered into one national reimbursement agreement that encompasses 74 federally-operated IHS facilities, as well as 114 individual reimbursement agreements with tribally-operated IHS sites.

However, because Section 405 does not explicitly reference UIOs, these facilities are excluded from receiving any reimbursements from the VA. This has severely hampered the ability of urban Indian health organizations to properly care for the Native veterans living in urban centers and has forced these veterans to travel great distances to reach an IHS facility or, sadly, to abstain from treatment altogether.

We can all agree that Native veterans should have equal access to healthcare, regardless of where they choose to reside. As such, H.R. 4153 will bring parity to the IHS system by allowing UIOs to enter into reimbursement agreements with the VA.

I want to thank the sponsor of the bill, Representative RO KHANNA from California, for advocating on behalf of Native veterans everywhere, and I urge quick adoption of this bipartisan legislation.

Madam Speaker, I reserve the balance of my time.

Mr. BISHOP of Utah. Madam Speaker, I yield myself such time as I may consume.

This is a good bill, and we obviously have no problems with this particular bill.

When I started, I talked about kleinigkeiten on the small stuff. As good as this is, it is still small stuff and, actually, it is taken out—it is a portion of S. 886, which deals with Indian water rights settlements and extensions. That entire bill, if you really want to help out Native American populations, if you really want to solve some of these problems for them, especially during this time, with the pandemic going on and hitting those areas even harder than some of the others, that entire Senate bill should be taken up and passed.

Now, the fact that you have taken a small portion of that out and put it here as a separate bill still makes this a decent bill and I am supportive of it. But if we really cared, and we were really important with what we did, take the entire Udall bill, bring it over here and pass the damn thing so that we can get it signed and get it enacted into law. That is really what would help people and that wouldn't be kleinigkeiten. That is a big deal.

Madam Speaker, I yield back the balance of my time.

Mr. CASE. Madam Speaker, I urge adoption of this measure, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 4153.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

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HAWAI'I NATIONAL FOREST STUDY

Mr. CASE. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 7045) to require the Secretary of Agriculture to conduct a study on lands that could be included in a National Forest in Hawai'i, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 7045

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. HAWAI'I NATIONAL FOREST STUDY.

(a) PURPOSE.—The purpose of this Act is to identify lands within the study area that would—

(1) support the conservation of biodiversity not found elsewhere in the National Forest System;

(2) support or expand the research mission of the Institute of Pacific Islands Forestry;

(3) promote shared stewardship with local communities, including indigenous populations, the State of Hawai'i, and non-profit groups; and

(4) support or expand the international programs of the Forest Service related to conservation of forest ecosystems, sustainable forestry, protection of threatened, endangered, and migratory species, controlling the spread of invasive species, international reforestation, and other forest restoration efforts.

(b) STUDY REQUIRED.—

(1) IN GENERAL.—Not later than 3 years after the date of the enactment of this Act, the Secretary shall conduct a study to identify available land within the study area that could be included in a National Forest in Hawai'i.

(2) COORDINATION REQUIREMENT.—The Secretary shall conduct the study under paragraph (1) in coordination the Hawai'i Department of Land and Natural Resources.

(3) CONSULTATION REQUIREMENT.—In carrying out the study under paragraph (1), the Secretary—

(A) shall consult with—

(i) the Hawai'i Department of Land and Natural Resources; and

(ii) the Hawai'i Department of Agriculture; and

(B) may consult with such other governmental or nonprofit entities as the Secretary determines appropriate.

(4) REPORT.—Not later than 3 years after the date of enactment of this Act, the Secretary shall submit a report to the Committee on Energy and Natural Resources of the Senate and the Committee on Natural Resources of the House of Representatives that identifies—

(A) available land within the study area that could be included in a National Forest in Hawai'i;

(B) the ownership of the land within the study area;

(C) any undeveloped land in the study area that may be at risk of development; and

(D) any actions that could be carried out to preserve the open and undeveloped character of the land within the study area.

(c) EFFECT.—Nothing in this section authorizes the Secretary to take any action that would affect the use of any land not owned by the United States.

(d) DEFINITIONS.—In this section:

(1) AVAILABLE LAND.—The term ''available land'' means any land within the study areas that is—

(A) Federally owned;

(B) managed by a Federal land management agency in partnership with a non-Federal entity; or

(C) land not described in subparagraph (A) or (B) that fulfills the purpose of this section, as determined by the Secretary.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture, acting through the Chief of the Forest Service.

(3) STUDY AREA.—The term ''study area'' means the islands of Hawai'i, Maui, Moloka'i, Lāna'i, O'ahu and Kaua'i in the State of Hawai'i.

(4) UNDEVELOPED LAND.—The term ''undeveloped land'' means land—

(A) that is located within the study area;

(B) that is free or primarily free of structures; and

(C) the development of which is likely to affect adversely the scenic, research, wildlife, or recreational value of the study area.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in strong support of my bill, H.R. 7045. This legislation would require the Secretary of Agriculture, in coordination with the Hawaii Department of Land and Natural Resources, to conduct a study to identify lands in the State of Hawaii that merit inclusion in the National Forest System.

Hawaii is the most isolated island chain and one of the most ecologically diverse places in the world. Within these constrained borders, we have 10 of the 13 world climate zones and ecosystems, ranging from the deserts to the tropics, where plants and animals that found their way to Hawaii evolved like nowhere else. The study would consider how a Hawaii national forest, which we do not currently have, could contribute to the conservation of this biodiversity not found elsewhere in the National Forest System while supporting the research mission of the Institute of Pacific Islands Forestry.

My bill provides the first step in establishing a national forest in Hawaii. It would help inventory where Hawaii's native koa, ohia, and sandalwood forests can be conserved and expanded for cultural and commercial practices. It would help identify where cultural sites could be better conserved and access expanded to the public and practitioners. It would help provide the basis to bring together local stakeholders to move forward the conversation of how to responsibly establish a national forest in Hawaii in a manner that will benefit both Hawaii's island communities and the National Forest Service.

As we continue to identify solutions to our climate and biodiversity crises, I hope we can all see the value in taking this step toward protecting Hawaii's unique forest resources and our native species.

Madam Speaker, I strongly urge my colleagues to support this bill.

Mr. BISHOP of Utah. Will the gentleman yield?

Mr. CASE. I yield to the gentleman from Utah.

Mr. BISHOP of Utah. Is the gentleman sure he really wants the Federal Government having a forest in his place?

Mr. CASE. Yes.

Mr. BISHOP of Utah. Twenty years from now, come back here, and we will tell the gentleman we told him so.

Madam Speaker, I have no objections to the bill, and I yield back the balance of my time.

Mr. CASE. Madam Speaker, I accept the offer of Mr. Ranking Member. I will look the gentleman up in 20 years.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 7045.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

NATIONAL LANDSLIDE PREPAREDNESS ACT

Mr. CASE. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 8810) to establish a national program to identify and reduce losses from landslide hazards, to establish a national 3D Elevation Program, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8810

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Landslide Preparedness Act''.

SEC. 2. DEFINITIONS.

In this Act:

(1) 3D.—The term ''3D'' means 3-dimensional.

(2) 3D ELEVATION DATA.—

(A) IN GENERAL.—The term ''3D elevation data'' means 3D, high-resolution data obtained using LiDAR, IfSAR, or other methods over the United States (including territories).

(B) INCLUSIONS.—The term ''3D elevation data'' includes terrestrial and bathymetric elevation data.

(3) 3D ELEVATION PROGRAM.—The term ''3D Elevation Program'' means the 3D Elevation Program established under section 5(a).

(4) IFSAR.—The term ''IfSAR'' means interferometric synthetic aperture radar.

(5) INDIAN TRIBE.—The term ''Indian tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(6) LAHAR.—The term ''lahar'' means a large debris flow of mostly volcanic material that is—

(A) often fast-moving; and

(B) a hazard in watersheds downstream of volcanic peaks.

(7) LIDAR.—The term ''LiDAR'' means light detection and ranging.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior, acting through the Director of the United States Geological Survey.

(9) STATE.—The term ''State'' means—

(A) a State; and

(B) the District of Columbia.

(10) STATE OFFICE.—The term ''State office'' means any unit of State government that handles the identification, mapping, assessment, and research of landslide hazards or responding to landslide events, including—

(A) a State geological survey office;

(B) a State department of emergency response; and

(C) a State department of transportation.

(11) TERRITORY.—The term ''territory'' means—

(A) the Commonwealth of Puerto Rico;

(B) Guam;

(C) American Samoa;

(D) the Commonwealth of the Northern Mariana Islands;

(E) the Federated States of Micronesia;

(F) the Republic of the Marshall Islands;

(G) the Republic of Palau; and

(H) the United States Virgin Islands.

SEC. 3. NATIONAL LANDSLIDE HAZARDS REDUCTION PROGRAM.

(a) ESTABLISHMENT.—The Secretary shall establish a program, to be known as the ''National Landslide Hazards Reduction Program'' (referred to in this section as the ''program'')—

(1) to identify and understand landslide hazards and risks;

(2) to reduce losses from landslides;

(3) to protect communities at risk of landslide hazards; and

(4) to help improve communication and emergency preparedness, including by coordinating with communities and entities responsible for infrastructure that are at risk of landslide hazards.

(b) DESCRIPTION OF PROGRAM.—

(1) PROGRAM ACTIVITIES.—The Secretary, in coordination with the Interagency Coordinating Committee on Landslide Hazards established by subsection (c)(1) (referred to in this section as the ''Committee'') and in coordination with existing activities of the United States Geological Survey and other Federal agencies, shall—

(A) identify, map, assess, and research landslide hazards;

(B) respond to landslide events; and

(C) in coordination with State offices, units of local government, territories, and Indian tribes—

(i) establish working groups with State offices, units of local government, territories, and Indian tribes to identify regional and local priorities for researching, identifying, mapping, and assessing landslide hazards; and

(ii) develop and implement landslide hazard guidelines for—

(I) geologists;

(II) geological and geotechnical engineers;

(III) emergency management personnel; and

(IV) land use and other decisionmakers.

(2) NATIONAL STRATEGY.—Not later than 1 year after the date of enactment of this Act, and every 5 years thereafter, the Secretary,

in coordination with the Committee, shall develop and publish a national strategy for landslide hazards, risk reduction, and response in the United States (including territories), which shall include—

(A) goals and priorities for the program;

(B) priorities for data acquisition, research, communications, and risk management on landslides and landslide hazards across relevant Federal agencies; and

(C) a detailed interagency plan, which shall take into consideration national disaster preparedness, response, and recovery frameworks, to carry out the national strategy, including details about the programs, projects, and budgets that will be used to implement the national strategy.

(3) NATIONAL LANDSLIDE HAZARDS DATABASE.—In carrying out the program, the Secretary, in coordination with State offices, units of local government, territories, and Indian tribes, shall develop and maintain a publicly accessible national landslide hazard and risk inventory database to compile, maintain, standardize, and evaluate data regarding—

(A) landslide hazards and risks;

(B) the impact of landslides on—

(i) health and safety;

(ii) the economy and infrastructure; and

(iii) the environment;

(C) landslide hazard stabilization; and

(D) reduction of losses from landslides.

(4) LANDSLIDE HAZARD AND RISK PREPAREDNESS FOR COMMUNITIES.—In carrying out the program, the Secretary, in coordination with the Secretary of the Army, the Secretary of Commerce, the Secretary of Homeland Security, the Secretary of Transportation, and the heads of other relevant Federal agencies, and in consultation with State offices, units of local government, territories, and Indian tribes, shall develop and disseminate—

(A) landslide planning and risk reduction guidance, guidelines, maps, tools, and training materials to help inform State, territorial, local, and Tribal governments and decisionmakers with respect to—

(i) the use and implementation of landslide hazard assessments;

(ii) the applied use of the database developed under paragraph (3);

(iii) reducing losses from landslides; and

(iv) resources available for communities working to improve landslide hazard preparedness; and

(B) landslide preparedness curricula and training modules for—

(i) State, territorial, local, and Tribal officials;

(ii) Federal, State, territorial, local, and Tribal emergency managers; and

(iii) the National Guard.

(5) DEBRIS FLOW EARLY WARNING SYSTEM.—In carrying out the program, the Secretary, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, shall expand the early warning system for debris flow by—

(A) expanding the early warning system for post-wildfire debris flow to include recently burned areas across the western United States;

(B) developing procedures with State, territorial, local, and Tribal governments to monitor stormwater drainage in areas with high debris flow risk; and

(C) identifying high-risk debris flow areas, such as recently burned land and potential lahar hazard areas.

(6) EMERGENCY RESPONSE ACTIVITIES.—In carrying out the program, the Secretary, in coordination with the Secretary of Commerce, the Secretary of Homeland Security, the heads of other relevant Federal agencies, States offices, units of local government, territories, and Indian tribes, shall establish and support emergency response procedures for the rapid deployment of Federal scientists, equipment, and services to areas impacted by a significant landslide event—

(A) to support emergency response efforts and improve the safety of emergency responders;

(B) to improve data collection; and

(C) to conduct research to advance the understanding of the causes, impacts, and reduction of landslide hazards and risks.

(c) INTERAGENCY COORDINATING COMMITTEE ON LANDSLIDE HAZARDS.—

(1) IN GENERAL.—There is established a committee, to be known as the ''Interagency Coordinating Committee on Landslide Hazards''.

(2) MEMBERSHIP.—The Committee shall be composed of the following members (or their designees):

(A) The Secretary, who shall serve as Chairperson of the Committee.

(B) The Secretary of Agriculture.

(C) The Secretary of the Army.

(D) The Secretary of Commerce.

(E) The Secretary of Homeland Security.

(F) The Secretary of Transportation.

(G) The Director of the National Science Foundation.

(H) The Director of the Office of Science and Technology Policy.

(I) The Director of the Office of Management and Budget.

(3) MEETINGS.—The Committee shall meet at the call of the Chairperson.

(4) PURPOSE AND DUTIES.—The Committee shall—

(A) advise and oversee the program;

(B) facilitate communication and coordination across Federal agencies in the planning, management, budgeting, and execution of landslide activities; and

(C) support the development and execution of the national strategy under subsection (b)(2), including by—

(i) supporting the development of national goals and priorities for the national strategy;

(ii) articulating Federal agency roles, responsibilities, and resources for carrying out the national strategy; and

(iii) overseeing the implementation of the national strategy.

(d) ADVISORY COMMITTEE.—

(1) IN GENERAL.—The Secretary shall establish an advisory committee, to be known as the ''Advisory Committee on Landslides'' (referred to in this subsection as the ''Advisory Committee'').

(2) MEMBERSHIP.—The Advisory Committee shall be composed of not fewer than 11 members—

(A) of whom none may be an individual described in any of subparagraphs (A) through (F) of section 7342(a)(1) of title 5, United States Code; and

(B) who shall be representatives of—

(i) States, including State geological organizations;

(ii) territories, including territorial geological organizations;

(iii) Indian tribes, including Tribal geological organizations;

(iv) research institutions and institutions of higher education that are qualified—

(I) to provide advice regarding landslide hazard and risk reduction; and

(II) to represent related scientific, architectural, engineering, and planning disciplines;

(v) industry standards development organizations; and

(vi) State, territorial, local, and Tribal emergency management agencies.

(3) RECOMMENDATIONS.—

(A) IN GENERAL.—The Advisory Committee shall submit to the Committee recommendations for the implementation of the program, including recommendations regarding—

(i) landslide hazard and risk reduction and planning;

(ii) tools for communities;

(iii) research; and

(iv) such other topics as the Advisory Committee determines appropriate.

(B) CONSIDERATION.—The Secretary and the agency heads described in subparagraphs (B) through (I) of subsection (c)(2) shall take into consideration any recommendation of the Advisory Committee submitted under subparagraph (A).

(e) GRANT PROGRAMS.—

(1) COOPERATIVE LANDSLIDE HAZARD MAPPING AND ASSESSMENT PROGRAM.—

(A) IN GENERAL.—Subject to appropriations, the Secretary may—

(i) provide grants, on a competitive basis, to State, territorial, local, and Tribal governments to research, map, assess, and collect data on landslide hazards within the jurisdictions of those governments; and

(ii) accept and use funds received from other Federal and non-Federal partners to advance the purposes of the program.

(B) PRIORITY.—

(i) IN GENERAL.—The Secretary shall consult annually with the Committee, States, units of local government, territories, and Indian tribes to establish priorities for the grant program under this paragraph.

(ii) FUNDING PRIORITIZATION.—In providing grants under this paragraph, the Secretary shall give priority to projects—

(I) that will achieve the greatest landslide hazard and risk reduction;

(II) that reflect the goals and priorities of the national strategy established under subsection (b)(2)(A);

(III) not less than 50 percent of the total cost of which is matched by non-Federal sources; and

(IV) that include acquisition of enhanced elevation data consistent with the 3D Elevation Program.

(C) REQUIREMENT.—If the Secretary elects to provide grants under subparagraph (A)(i), the Secretary shall publish on a publicly available website a description of—

(i) the grants; and

(ii) the findings made from those grants.

(2) NATIONAL LANDSLIDE RESEARCH GRANTS.—

(A) IN GENERAL.—To advance the goals and priorities of the national strategy established under subsection (b)(2)(A), subject to appropriations, the Director of the National Science Foundation (referred to in this paragraph as the ''Director'') may provide grants to eligible entities for landslide research, including research on—

(i) the causes, mechanisms, triggers, hydrology, and geology of landslides;

(ii) ways to reduce landslide hazards and risks to minimize loss of life and property, including landslide hazard and risk communication, perception, decisionmaking, tools, and technologies; and

(iii) other goals and priorities of the national strategy established under subsection (b)(2)(A).

(B) ELIGIBLE ENTITIES.—The Director shall determine whether an entity is eligible to receive a grant under this paragraph.

(C) REQUIREMENTS.—In providing grants under this paragraph, the Director shall—

(i) ensure that the grants are provided on a competitive basis;

(ii) consider grant applications submitted by eligible entities that have developed the application in partnership with 1 or more State geological surveys; and

(iii) publish on a publicly available website a description of—

(I) the grants; and

(II) the findings made from those grants.

(f) BIENNIAL REPORT.—Through calendar year 2030, the Secretary shall submit to Congress a biennial report, including a description of, with respect to the 2-calendar-year period preceding the date of the report—

(1) the goals and accomplishments of the Committee in carrying out the national strategy developed under subsection (b)(2);

(2) the results of the activities of the Committee under this section; and

(3) the extent to which any recommendations of the Advisory Committee under subsection (d)(3)(A) have been implemented.

(g) SIGNIFICANT EVENTS.—Not later than 1 year after a significant landslide event in the United States (including territories) occurs, the Secretary shall publish on a publicly available website—

(1) a description of the landslide event and the implications of the event on communities, including life and property;

(2) recommendations on how the identification of the landslide risk could have been improved prior to the event;

(3) a description of the effectiveness of any warning and risk communication, including the dissemination of warnings by State, territorial, local, and Tribal partners in the affected area;

(4) recommendations to improve risk identification, reduction, and communication to landowners and units of local government;

(5) recommendations to improve landslide hazard preparedness and emergency response activities under this section; and

(6) such other findings as the Secretary determines appropriate.

(h) FUNDING.—For each of fiscal years 2021 through 2024—

(1) there is authorized to be appropriated to the United States Geological Survey, $25,000,000 to carry out this section;

(2) there is authorized to be appropriated to the National Science Foundation, $11,000,000 to carry out this section; and

(3) there is authorized to be appropriated to the National Oceanic and Atmospheric Administration, $1,000,000 to carry out this section.

(i) DERIVATION OF FUNDS.—Funds to carry out the activities under this section shall be derived from amounts authorized to be appropriated that are enacted after the date of the enactment of this section.

SEC. 4. GROUND SUBSIDENCE.

As the Secretary determines to be appropriate and subject to appropriations, the Secretary, through existing programs, shall advance the identification, mapping, research, and monitoring of subsidence and groundwater resource accounting, particularly in areas affected by drought.

SEC. 5. 3D ELEVATION PROGRAM.

(a) ESTABLISHMENT OF 3D ELEVATION PROGRAM.—

(1) IN GENERAL.—The Secretary shall establish a program, to be known as the ''3D Elevation Program''—

(A) to provide 3D elevation data coverage for the United States;

(B) to coordinate and facilitate the collection, dissemination, and use of 3D elevation data among Federal departments and agencies and non-Federal entities;

(C) to produce standard, publicly accessible 3D elevation data products for the United States; and

(D) to promote the collection, dissemination, and use of 3D elevation data among Federal, State, local, and Tribal governments, communities, institutions of higher education, and the private sector through—

(i) cooperative agreements;

(ii) the development and maintenance of spatial data infrastructure to provide quality control and deliver to the public 3D elevation data products;

(iii) in coordination with the 3D Elevation Federal Interagency Coordinating Committee established under subsection (b), States, and industry and standards bodies, the development of standards and guidelines for 3D elevation data acquisition to increase accessibility to 3D elevation data in a standard, easy-to-use format; and

(iv) the identification, assessment, and adoption of emerging technologies to improve the accuracy and efficiency of the 3D Elevation Program.

(2) MANAGEMENT.—

(A) IN GENERAL.—The Secretary shall manage the 3D Elevation Program—

(i) to ensure efficiency with respect to related activities of the Department of the Interior and other participating Federal departments and agencies; and

(ii) to meet the needs of Department of the Interior programs, stakeholders, and the public.

(B) OTHER FEDERAL DEPARTMENTS AND AGENCIES.—The head of each Federal department and agency involved in the acquisition, production, distribution, or application of 3D elevation data shall—

(i) coordinate with the 3D Elevation Federal Interagency Coordinating Committee established under subsection (b) to acquire additional, enhanced 3D elevation data;

(ii) submit to the Secretary a description of priority areas of interest for 3D elevation data collection for use in providing grants and cooperative agreements under subsection (d);

(iii) implement policies and procedures for data acquisition and sharing that are consistent with standards and guidelines developed under the 3D Elevation Program;

(iv) participate in, and share the results and benefits of, the 3D Elevation Program, in accordance with standards and guidelines developed under the 3D Elevation Program; and

(v) ensure that any 3D elevation data acquired with Federal grant funding—

(I) meets 3D Elevation Program standards; and

(II) is included in the national holdings of those data.

(b) 3D ELEVATION FEDERAL INTERAGENCY COORDINATING COMMITTEE.—

(1) ESTABLISHMENT.—The Secretary, in coordination with the Secretary of Commerce and the Secretary of Homeland Security, shall establish an interagency coordinating committee, to be known as the ''3D Elevation Federal Interagency Coordinating Committee'' (referred to in this subsection as the ''Committee''), to better coordinate 3D elevation data management across the Federal Government.

(2) MEMBERSHIP.—The Committee shall be composed of the following members (or their designees):

(A) The Secretary, who shall serve as Chairperson of the Committee.

(B) The Secretary of Agriculture.

(C) The Secretary of Commerce.

(D) The Secretary of Homeland Security.

(E) The Director of the National Science Foundation.

(F) The Director of the Office of Science and Technology Policy.

(G) The Director of the Office of Management and Budget.

(H) The head of any other Federal department or agency, at the request of the Secretary.

(3) COORDINATION.—The Committee shall coordinate, as appropriate, with the existing activities of—

(A) the 3D Elevation Program Executive Forum;

(B) the Alaska Mapping Executive Committee;

(C) the 3D Elevation Working Group;

(D) the 3D National Elevation Subcommittee; and

(E) State offices.

(4) MEETINGS.—The Committee shall meet at the call of the Chairperson.

(5) DUTIES.—The Committee shall—

(A) oversee the planning, management, and coordination of the 3D Elevation Program; and

(B) develop, by not later than 1 year after the date of enactment of this Act, and update periodically thereafter—

(i) a strategic plan that establishes goals and priorities for activities carried out under the 3D Elevation Program; and

(ii) a detailed management plan to implement the strategic plan.

(c) SUBCOMMITTEE OF NATIONAL GEOSPATIAL ADVISORY COMMITTEE.—

(1) ESTABLISHMENT.—

(A) IN GENERAL.—The Secretary shall establish, within the National Geospatial Advisory Committee, a subcommittee (referred to in this subsection as the ''Subcommittee'').

(B) MEMBERSHIP.—The Subcommittee shall—

(i) consist of not fewer than 11 members, of whom none may be a Federal officer or employee; and

(ii) include representatives of—

(I) research and academic institutions;

(II) industry standards development organizations;

(III) units of State and local government; and

(IV) the private sector.

(2) DUTIES.—

(A) ASSESSMENT.—The Subcommittee shall conduct an assessment of—

(i) trends and developments in—

(I) the collection, dissemination, and use of 3D elevation data; and

(II) science and technology relating to 3D elevation data;

(ii) the effectiveness of the 3D Elevation Program in carrying out the activities described in subsection (a)(1);

(iii) the need to revise or reorganize the 3D Elevation Program; and

(iv) the management, coordination, implementation, and activities of the 3D Elevation Program.

(B) REPORT.—Not later than 1 year after the date of enactment of this Act, and every 2 years thereafter, the Subcommittee shall submit to the Secretary and the 3D Elevation Federal Interagency Coordinating Committee established under subsection (b) a report that includes—

(i) the findings of the assessment under subparagraph (A); and

(ii) recommendations of the Subcommittee based on those findings, if any.

(d) GRANTS AND COOPERATIVE AGREEMENTS.—

(1) IN GENERAL.—The Secretary may make grants and enter into cooperative agreements with other Federal departments and agencies, units of State, local, or Tribal government, institutions of higher education, nonprofit research institutions, or other organizations to facilitate the improvement of nationwide coverage of 3D elevation data.

(2) APPLICATIONS.—To be eligible to receive a grant or enter into a cooperative agreement under this subsection, an entity described in paragraph (1) shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

(3) TERMS AND CONDITIONS.—A grant or cooperative agreement under this subsection shall be subject to such terms and conditions as the Secretary determines to be appropriate, including making data publically available and interoperable with other Federal datasets.

(e) FUNDING.—For each of fiscal years 2021 through 2024, there is authorized to be appropriated to the Secretary $40,000,000 to carry out this section.

(f) DERIVATION OF FUNDS.—Funds to carry out the activities under this section shall be derived from amounts authorized to be appropriated to the Secretary that are enacted after the date of the enactment of this section.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, the National Landslide Preparedness Act sponsored by my colleague, Ms. DELBENE, would establish a national landslide hazards reduction program through the United States Geological Survey to better identify landslide risks and to improve emergency preparedness for communities. This bill also directs USGS to implement a 3D elevation program to update and produce high-resolution elevation data across the country.

The House passed a version of this legislation by voice vote last year, but after further negotiation with both the majority and the minority in the Senate, we have agreed to a few changes in the language and are passing this revised bill to allow the Senate to move this compromise to the President before it adjourns.

Madam Speaker, I urge my colleagues to support this important legislation, and I reserve the balance of my time.

Mr. BISHOP of Utah. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, once again, I have no objection to this particular bill. I do have objections to the process we are going through.

The House has already passed a bill. It went to the Senate. The Senate passed a bill. It came back here. Now, we introduced a new bill to go up there with different changes in it going back to the Senate. We should have fixed it the first time. But having said that, go with it.

Madam Speaker, I yield back the balance of my time.

Mr. CASE. Madam Speaker, I yield 4 minutes to the gentlewoman from Washington (Ms. DELBENE).

Ms. DELBENE. Madam Speaker, almost 7 years ago, on March 22, 2014, Washington experienced one of its worst natural disasters ever. In a matter of seconds, a tragic landslide near Oso killed 43 people, destroyed over 40 homes, and severely damaged public infrastructure and private property.

That day forever changed the people of Oso, Darrington, Arlington, the Stillaguamish Tribe, and the Sauk-Suiattle Tribe. But even in the aftermath of the landslide, it was incredibly inspiring to see a community come together to help each other through this tragedy. That is why I introduced this bill, the National Landslide Preparedness Act.

In 2016, I introduced the first version of this bill and have been working tirelessly to get it signed into law. This will allow significant progress to be made in landslide science and will allow communities to be better prepared for when landslides do occur.

As the Oso landslide demonstrated, simply sending aid after a tragic natural disaster is insufficient. We need to do more to fund programs and research efforts to prevent future natural disasters from becoming national tragedies.

In recent years, we have seen dramatic increases in extreme weather events, and we need to do everything in our power to make sure that communities across the country are better prepared. Given the importance of this issue, I strongly urge my colleagues to support this bill. Getting it signed into law is long overdue, and I hope the Senate will pass this bill quickly and send it to the President's desk for his signature.

Mr. CASE. Madam Speaker, I urge adoption of this measure, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 8810, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

BIG CAT PUBLIC SAFETY ACT

Mr. CASE. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 1380) to amend the Lacey Act Amendments of 1981 to clarify provisions enacted by the Captive Wildlife Safety Act, to further the conservation of certain wildlife species, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1380

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Big Cat Public Safety Act''.

SEC. 2. DEFINITIONS.

(a) IN GENERAL.—Section 2 of the Lacey Act Amendments of 1981 (16 U.S.C. 3371) is amended—

(1) by redesignating subsections (a) through (k) as subsections (b) through (l), respectively; and

(2) by inserting before subsection (b) (as so redesignated) the following:

''(a) BREED.—The term 'breed' means to facilitate propagation or reproduction (whether intentionally or negligently), or to fail to prevent propagation or reproduction.''.

(b) CONFORMING AMENDMENTS.—

(1) CONSOLIDATED FARM AND RURAL DEVELOPMENT ACT.—Section 349(a)(3) of the Consolidated Farm and Rural Development Act (7 U.S.C. 1997(a)(3)) is amended by striking ''section 2(a)'' and inserting ''section 2(b)''.

(2) LACEY ACT AMENDMENTS OF 1981.—Section 7(c) of the Lacey Act Amendments of 1981 (16 U.S.C. 3376(c)) is amended by striking ''section 2(f)(2)(A)'' and inserting ''section 2(g)(2)(A)''.

SEC. 3. PROHIBITIONS.

Section 3 of the Lacey Act Amendments of 1981 (16 U.S.C. 3372) is amended—

(1) in subsection (a)—

(A) in paragraph (2)—

(i) in subparagraph (A), by striking the semicolon at the end and inserting ''; or'';

(ii) in subparagraph (B)(iii), by striking ''; or'' and inserting a semicolon; and

(iii) by striking subparagraph (C); and

(B) in paragraph (4), by striking ''(1) through (3)'' and inserting ''(1) through (3) or subsection (e)''; and

(2) by amending subsection (e) to read as follows:

''(e) CAPTIVE WILDLIFE OFFENSE.—

''(1) IN GENERAL.—It is unlawful for any person to import, export, transport, sell, receive, acquire, or purchase in interstate or foreign commerce, or in a manner substantially affecting interstate or foreign commerce, or to breed or possess, any prohibited wildlife species.

''(2) LIMITATION ON APPLICATION.—Paragraph (1) does not apply to—

''(A) an entity exhibiting animals to the public under a Class C license from the Department of Agriculture, or a Federal facility registered with the Department of Agriculture that exhibits animals, if such entity or facility holds such license or registration in good standing and if the entity or facility—

''(i) does not allow any individual to come into direct physical contact with a prohibited wildlife species, unless that individual is—

''(I) a trained professional employee or contractor of the entity or facility (or an accompanying employee receiving professional training);

''(II) a licensed veterinarian (or a veterinary student accompanying such a veterinarian); or

''(III) directly supporting conservation programs of the entity or facility, the contact is not in the course of commercial activity (which may be evidenced by advertisement or promotion of such activity or other relevant evidence), and the contact is incidental to humane husbandry conducted pursuant to a species-specific, publicly available, peer-edited population management and care plan that has been provided to the Secretary with justifications that the plan—

''(aa) reflects established conservation science principles;

''(bb) incorporates genetic and demographic analysis of a multi-institution population of animals covered by the plan; and

''(cc) promotes animal welfare by ensuring that the frequency of breeding is appropriate for the species;

''(ii) ensures that during public exhibition of a lion (Panthera leo), tiger (Panthera tigris), leopard (Panthera pardus), snow leopard (Uncia uncia), jaguar (Panthera onca),

cougar (Puma concolor), or any hybrid thereof, the animal is at least 15 feet from members of the public unless there is a permanent barrier sufficient to prevent public contact;

''(B) a State college, university, or agency, or a State-licensed veterinarian;

''(C) a wildlife sanctuary that cares for prohibited wildlife species, and—

''(i) is a corporation that is exempt from taxation under section 501(a) of the Internal Revenue Code of 1986 and described in sections 501(c)(3) and 170(b)(1)(A)(vi) of such Code;

''(ii) does not commercially trade in any prohibited wildlife species, including offspring, parts, and byproducts of such animals;

''(iii) does not breed any prohibited wildlife species;

''(iv) does not allow direct contact between the public and any prohibited wildlife species; and

''(v) does not allow the transportation and display of any prohibited wildlife species offsite;

''(D) has custody of any prohibited wildlife species solely for the purpose of expeditiously transporting the prohibited wildlife species to a person described in this paragraph with respect to the species; or

''(E) an entity or individual that is in possession of any prohibited wildlife species that was born before the date of the enactment of the Big Cat Public Safety Act, and—

''(i) not later than 180 days after the date of the enactment of the such Act, the entity or individual registers each individual animal of each prohibited wildlife species possessed by the entity or individual with the United States Fish and Wildlife Service;

''(ii) does not breed, acquire, or sell any prohibited wildlife species after the date of the enactment of such Act; and

''(iii) does not allow direct contact between the public and prohibited wildlife species.''.

SEC. 4. PENALTIES.

(a) CIVIL PENALTIES.—Section 4(a)(1) of the Lacey Act Amendments of 1981 (16 U.S.C. 3373(a)(1)) is amended—

(1) by inserting ''(e),'' after ''(d),''; and

(2) by inserting '', (e),'' after ''subsection (d)''.

(b) CRIMINAL PENALTIES.—Section 4(d) of the Lacey Act Amendments of 1981 (16 U.S.C. 3373(d)) is amended—

(1) in paragraph (1)(A), by inserting ''(e),'' after ''(d),'';

(2) in paragraph (1)(B), by inserting ''(e),'' after ''(d),'';

(3) in paragraph (2), by inserting ''(e),'' after ''(d),''; and

(4) by adding at the end the following:

''(4) Any person who knowingly violates subsection (e) of section 3 shall be fined not more than $20,000, or imprisoned for not more than five years, or both. Each violation shall be a separate offense and the offense is deemed to have been committed in the district where the violation first occurred, and in any district in which the defendant may have taken or been in possession of the prohibited wildlife species.''.

SEC. 5. FORFEITURE OF PROHIBITED WILDLIFE SPECIES.

Section 5(a)(1) of the Lacey Act Amendments of 1981 (16 U.S.C. 3374(a)(1)) is amended by inserting ''bred, possessed,'' before ''imported, exported,''.

SEC. 6. ADMINISTRATION.

Section 7(a) of the Lacey Act Amendments of 1981 (16 U.S.C. 3376(a)) is amended by adding at the end the following:

''(3) The Secretary shall, in consultation with other relevant Federal and State agencies, promulgate any regulations necessary to implement section 3(e).''.

SEC. 7. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Hawaii (Mr. CASE) and the gentleman from Utah (Mr. BISHOP) each will control 20 minutes.

The Chair recognizes the gentleman from Hawaii.

GENERAL LEAVE

Mr. CASE. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Hawaii?

There was no objection.

Mr. CASE. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in strong support of H.R. 1380, the Big Cat Public Safety Act.

At the beginning of this hectic year, many Americans were introduced to the issue before us today and this legislation for the first time through the ''Tiger King,'' which in addition to a plethora of colorful real-life characters also shined a spotlight on the dark side of keeping lions, tigers, and other big cats in captivity.

The Big Cat Public Safety Act ends the ownership of big cats as pets and prohibits exhibitors from allowing public contact with big cats, including cubs.

In 2003, Congress unanimously passed the Captive Wildlife Safety Act, which amended the Lacey Act to prohibit the import, export, buying, selling, transport, receiving, or acquisition of big cats across States to the U.S. border. However, the existing law did not include prohibitions for the private possession or breeding of big cats.

Currently, State laws vary quite a bit. Some States have no restrictions; some simply require registration; and some completely prohibit ownership of big cats as pets.

The Big Cat Public Safety Act builds on the Captive Wildlife Safety Act by making it illegal to privately possess or breed lions, tigers, leopards, cheetahs, jaguars, cougars, or any hybrid. The bill is narrowly focused on privately owned animals and includes exemptions for exhibitors with U.S. Department of Agriculture class C licenses, such as zoos, State universities, and sanctuaries.

This bill, championed by my colleague, Representative MIKE QUIGLEY, along with an astounding 230 cosponsors, is a commonsense solution to address public safety and animal abuse concerns. It enjoys wide bipartisan support, and it is time we passed it into law.

It is unknown how many big cats, including tigers, lions, jaguars, leopards, cougars, and hybrids, are currently kept in private ownership in the United States, but estimates are in the range of 5,000 to 10,000. That means an average of up to 200 big cats are in private ownership in every State in America.

I don't know about you, Madam Speaker, but I wouldn't feel safe with my children or grandchildren living next door to a tiger, nor does that seem humane for the animals whose ancestors roamed vast expanses of the savannahs and jungles.

As we saw in ''Tiger King,'' the top priority for private big cat owners is not the best interests of animals or public safety but rather greed, profit, or glory.

Since 1990, there have been around 300 dangerous incidents involving big cats in the United States—including one just today—that have resulted in human injuries, mauling, and even death. When these incidents occur, first responders are also put at risk since they are not trained or equipped to handle situations involving big cats.

Madam Speaker, I hope you can all agree with me that the private ownership of big cats opens the door for rampant animal abuse and also presents a dangerous and significant risk to public safety.

This bill is endorsed by over 27 organizations, including the Association of Zoos and Aquariums and the National Sheriffs' Association. Of special note as well is that the Zoological Association of America, which previously opposed this measure, has withdrawn its opposition and is now neutral because its board has now banned public contact with big cats at its accredited zoos.

Please join me in voting for this legislation to stop animal abuse and bad actors like those we saw in ''Tiger King.'' In the midst of a roller coaster of a year, here is one thing we can do to reduce the mayhem.

Madam Speaker, I reserve the balance of my time.

Mr. BISHOP of Utah. Madam Speaker, I reserve the balance of my time.

Mr. CASE. Madam Speaker, I yield 3 minutes to the gentleman from Illinois (Mr. QUIGLEY).

Mr. QUIGLEY. Madam Speaker, I rise in support of my bill, H.R. 1380, the Big Cat Public Safety Act, and I am grateful for the bipartisan support it has received. I also want to thank my staffer, Max, who worked so hard on this measure.

The Big Cat Public Safety Act has been endorsed by the Fraternal Order of Police, the National Sheriffs' Association, and numerous other State and local law enforcement agencies because 500-pound carnivores pose a serious and very real threat to first responders, law enforcement officers, and entire communities around the country. The photo behind me is not staged.

This bill is also endorsed by the Humane Society of the United States and countless other animal welfare organizations because lions and tigers do not belong in urban apartments or in cages in suburban backyards and because private citizens simply do not have the resources to care for dangerous animals that are meant to roam over hundreds of square miles.

As was stated, this bill is supported by the AGA and is not opposed by the Zoological Association of America, the trade association for small roadside-type zoos, because ripping newborn cubs from their mothers moments after their birth to use them as props in photos is already cruel enough, but once they are too big to be safely held, brutally killing them is just wrong.

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Nearly 65,000 Americans have signed a Change.org petition calling for the immediate passage of this bill because the Netflix series ''Tiger King'' showed the world in stark relief how exploitive, dangerous, and inhumane this tiny so-called industry is.

This bill should be served by every American because right now taxpayers shoulder the cost of monitoring and regulating private owners, and when big cats are rescued from horrific conditions or simply abandoned by overwhelmed owners, they pay for the care and feeding of these cats.

Madam Speaker, I thank the many Republican Members of Congress who support this bill, which is cosponsored by more than half the House.

I urge every Member to stand with the law enforcement community and stand up for those that need our help but cannot ask for that. Please vote for this bill.

Mr. BISHOP of Utah. Madam Speaker, I yield 3 minutes to the gentleman from Pennsylvania (Mr. FITZPATRICK).

Mr. FITZPATRICK. Madam Speaker, for too long, big cats have been mistreated, exploited, and abused in private roadside zoos. Private possession of big cats is a tremendous risk to humans as well. On average, a 1-year-old tiger weighs about 200 pounds and can easily harm or kill a human.

These wild animals are trained to perform for paying customers, and at the end of the day, they are wild, dangerous animals that are a serious risk to humans and themselves.

Big cats, themselves, are also at risk, as there have been countless reports of abuse, mistreatment, and exploitation at private zoos.

Madam Speaker, opponents of our legislation argue that it unfairly targets small zoos, pitting the large against the small. To be clear, this legislation has nothing to do with the zoo size and does not ban any zoo from possessing, breeding, or exhibiting big cats. Our legislation prohibits zoos from allowing the public to interact with big cats.

It does not in any way impact the typical model of zoos in which they have an exhibit of big cats on display. As long as the zoo does not allow direct contact between people and the public and these big cats, they will not be affected by this legislation.

This practice also takes a toll on law enforcement agencies that are forced to respond to escapes and attacks when big cats have outgrown cub petting and are funneled into the hands of private citizens.

Madam Speaker, this bill is supported by both the National Sheriffs' Association and the Fraternal Order of Police.

I thank the Humane Society, Animal Wellness Action, and the Animal Welfare Institute for their incredible advocacy on this issue, and to my predecessor who worked on this bill, Congressman Jeff Denham from the State of California, for all of his work. And, of course, I thank my partner on this legislation, Congressman MIKE QUIGLEY.

As a member of the bipartisan Congressional Animal Caucus, we are committed to ensuring that our government is doing its part to promote animal welfare, and it is crucial that we stand up for animals, both as individuals and societies.

Madam Speaker, as was pointed out, there are 230 cosponsors on this bill that collectively represent over 165 million Americans who support this legislation.

Madam Speaker, I urge all my colleagues to vote ''yes'' on H.R. 1380, the Big Cat Public Safety Act.

Mr. CASE. Madam Speaker, I yield 3 minutes to my colleague from Oregon (Mr. BLUMENAUER).

Mr. BLUMENAUER. Madam Speaker, I appreciate the gentleman's courtesy in permitting me to speak on this.

Madam Speaker, I am excited that this bill is finally making it to the floor. We have watched the support build while we have watched the case become ever stronger.

As has been referenced by my colleagues, across the country, there are thousands of big cats—''exotics'' they are referred to—in terms of tigers and lions who are often kept by private owners in unsafe and abusive conditions. They are shown often bred by unlicensed exhibitors in basements or backyards. Not only does this cause suffering among these exhibit wild animals that are not meant to live under these conditions, but it does, as has been referenced, pose a risk to community safety.

Since 1990, there have been almost 380 dangerous incidents involving captive big cats in 46 States and the District of Columbia, leading to some traumatic injuries—and even death.

Too often, as has been referenced, it is the first responders who answer calls involving these animals, exposing police and fire to unnecessary risk. They are trained for public safety, not to deal with these huge and occasionally dangerous animals. State law is completely inadequate. It is a patchwork on this issue. Some ban private use. Others allow it with no questions asked. This is cruel and dangerous. Today, we are voting on a bill to change that.

Madam Speaker, I appreciate my friends, Mr. FITZPATRICK, Mr. QUIGLEY—people who have spent time advancing this issue, and finally, it is before us. It will restrict private ownership of big cats, reduce breeding, and help minimize abuse.

As has been referenced and needs to be emphasized, this is narrowly focused on privately owned animals with appropriate exemptions for zoos and universities and sanctuaries. It can improve the lives of big cats and protect communities when things go wrong. These cats were never meant to be in captivity. Unlicensed ownership and breeding is bad for the animals. It is bad for the community. It doesn't advance conservation or education.

Madam Speaker, I hope that we will both vote today overwhelmingly to end the exotic trade on big cats and focus our efforts on real, meaningful conservation efforts at home and abroad. I think we were all just horrified by what we saw with the television series, ''Tiger King.'' Sadly, one would think that that would be enough to motivate the action.

Having worked on this issue over the years, I had some opportunity to be familiar with some of the players. This is something that I hope now is finally going to end, and it can today with our vote.

Mr. BISHOP of Utah. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, with apologies, lions and tigers and bears, oh my. I have to say that before somebody else does it. But we also have to realize, as we are going through the kleinigkeiten of this day's efforts, that this is one of those kleinigkeiten coming again here. We should also realize that Oz was not reality, it was a movie, and that reality TV is not that of which should be the basis of public policy.

This bill, contrary to what I have been hearing so far, is not about protecting the public from big cats. It is about hurting small, family-run zoos across the country. It is a power play of some kind, which is one of the reasons why the Zoological Association of America expressed their grave concerns with this bill in a very pointed letter addressed to the committee chairman, that this represents an unwarranted Federal intrusion into the rights and responsibilities of wildlife exhibitors and will have significant negative impacts on federally licensed zoological facilities.

Madam Speaker, the issue is that, under current law, anyone who has one of these exhibitions must obtain a class E exhibitor license, and that is given by the United States Department of Agriculture under the Animal Welfare Act. So a licensee under the Animal Welfare Act has to abide by all the

rules that govern housing and keeping and care of the animals and are subject to unannounced inspections under the direction of the Department of Agriculture. And it is doing its job. It is doing its job effectively and efficiently.

Madam Speaker, this bill ignores all of that under the guise of animal welfare, denying responsible Federal license facilities and predicating these class E exemptions on animal rights ideology, not necessarily the policy of what has been taken during the past.

What happens now is that this particular bill has, special interest groups having drafted it, now amends the Lacey Act—not the Animal Welfare Act, but the Lacey Act—and now has the Department of the Interior being the ones who are responsible for what is going on here.

So what is illegal now under the Lacey Act changes would be legal under the Animal Welfare Act, which is still going to be on the books. If nothing else, we should actually ask those people who are responsible for this bill just to come clean and try and make sure that they write the bill so there is consistency so you don't have conflicting acts, because you have conflicting policy with this.

And this bill also provides some huge loopholes for big, well-funded zoos and will crush those small but well-regulated private facilities. That is not the way we should be running that particular policy.

Madam Speaker, the smaller facilities are well-regulated. It is done by the Department of Agriculture. There are specific rules and guidelines. The laws are specific and they are there.

What this bill will do is put conflicting guidelines, which means, pass this bill, if you wish, but—well, very little chance of it actually going all the way, but even if you want to pass this bill, you are going to have to come back and fix the two because you have, now, two bills that are still on the books that are in conflict. So at least do it the right way.

This bill was pushed by special interest groups. It is poor policy that is not backed by science but is backed by radical ideology, and it does not fit the reality of what is taking place. The Department of Agriculture is doing their functions properly and effectively and efficiently, and we should not pass this bill.

Madam Speaker, with all the significant things we could be doing in a lameduck session, with all the stuff we can do with the pandemic, with both Republicans and Democrats in both the House and the Senate agreeing on so many things, so much low-hanging fruit, we could easily pass something that would have a major impact, something that would be real, or actually put the NDAA on here and do something that is real, or actually come to an agreement on a CR, at least, if not the resolutions of all our appropriations. That would be big. That would be sufficient. That would be worthy of us actually coming back here to the floor today.

But instead, we are coming here closer to 8 o'clock at night dealing with the small stuff, the insignificant stuff that is not going to go further throughout the process, which I guess is one of the reasons I think we should be happy. At least we know this will be the last time that this will be discussed here in the Capitol building at any time.

Madam Speaker, as a Congress, we can do much better. We ought to do much better. We ought not to spend our time coming up here dealing with the kleinigkeiten.

Madam Speaker, I yield back the balance of my time.

Mr. CASE. Madam Speaker, I yield myself the balance of my time.

I appreciate, again, the comments from the ranking member, but I think he is out of step with the majority in this House, given the bipartisan nature of this particular legislation.

A couple of quick points to answer some of his objections.

First of all, as I mentioned earlier, the Zoological Association of America has withdrawn its opposition to this bill. The Zoological Association of America, contrary to the statement, is not opposed to this bill.

Second, he talks about the guidelines by the USDA being sufficient. They are obviously not sufficient when the status quo across this country still has such a tremendous and deleterious impact on animal welfare, as well as presents a continued risk for public safety. As was noted in some of the comments earlier, in fact, we have a patchwork of regulation across this country; whereas, it is time for us to have one uniform standard across this country that would apply everywhere.

He complains that this bill is a matter of special interest. I would submit, if the special interests are those special interests that are concerned about the welfare of animals and are concerned about public safety, then those are good special interests to be aligned with.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, H.R. 1380, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. BISHOP of Utah. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

PROVIDING FOR CONSIDERATION OF H.R. 3884, MARIJUANA OPPORTUNITY REINVESTMENT AND EXPUNGEMENT ACT OF 2019

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on ordering the previous question on the resolution (H. Res. 1244) providing for consideration of the bill (H.R. 3884) to decriminalize and deschedule cannabis, to provide for reinvestment in certain persons adversely impacted by the War on Drugs, to provide for expungement of certain cannabis offenses, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 225, nays 160, not voting 45, as follows:

[Roll No. 230]

YEAS—225

Adams	Escobar	Lofgren
Aguilar	Eshoo	Lowenthal
Allred	Espaillat	Lowey
Axne	Evans	Luján
Barragán	Finkenauer	Luria
Bass	Fletcher	Malinowski
Beatty	Foster	Maloney, Carolyn B.
Bera	Frankel	Maloney, Sean
Beyer	Fudge	Matsui
Bishop (GA)	Gabbard	McAdams
Blumenauer	Gallego	McBath
Blunt Rochester	Garamendi	McCollum
Bonamici	Garcia (IL)	McEachin
Boyle, Brendan F.	Garcia (TX)	McGovern
Brindisi	Golden	McNerney
Brown (MD)	Gomez	Meng
Brownley (CA)	Gonzalez (TX)	Mfume
Bustos	Gottheimer	Moore
Butterfield	Green, Al (TX)	Morelle
Carbajal	Grijalva	Moulton
Cárdenas	Haaland	Mucarsel-Powell
Carson (IN)	Hall	Murphy (FL)
Cartwright	Harder (CA)	Nadler
Casten (IL)	Hastings	Napolitano
Castor (FL)	Hayes	Neal
Castro (TX)	Heck	Neguse
Chu, Judy	Higgins (NY)	Norcross
Cicilline	Himes	O'Halleran
Cisneros	Horn, Kendra S.	Ocasio-Cortez
Clark (MA)	Horsford	Omar
Clarke (NY)	Houlahan	Pallone
Clay	Hoyer	Panetta
Cleaver	Huffman	Pappas
Clyburn	Jackson Lee	Pascrell
Cohen	Jayapal	Payne
Connolly	Jeffries	Perlmutter
Cooper	Johnson (GA)	Peters
Correa	Johnson (TX)	Peterson
Costa	Kaptur	Phillips
Courtney	Keating	Pingree
Cox (CA)	Kelly (IL)	Pocan
Craig	Kennedy	Porter
Crist	Khanna	Pressley
Crow	Kildee	Price (NC)
Cuellar	Kilmer	Quigley
Cunningham	Kim	Raskin
Davids (KS)	Kind	Rice (NY)
Davis (CA)	Kirkpatrick	Rose (NY)
Davis, Danny K.	Krishnamoorthi	Rouda
Dean	Kuster (NH)	Roybal-Allard
DeGette	Lamb	Ruiz
DeLauro	Langevin	Ruppersberger
DelBene	Larsen (WA)	Rush
Delgado	Larson (CT)	Ryan
Demings	Lawrence	Sánchez
DeSaulnier	Lawson (FL)	Sarbanes
Deutch	Lee (CA)	Scanlon
Dingell	Lee (NV)	Schakowsky
Doggett	Levin (CA)	Schiff
Doyle, Michael F.	Levin (MI)	Schneider
Engel	Lieu, Ted	Schrader
	Lipinski	Schrier
	Loebsack	

Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wilson (FL)
Yarmuth

NAYS—160

Amash
Amodei
Armstrong
Arrington
Babin
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Buchanan
Buck
Burchett
Burgess
Chabot
Cheney
Cline
Cloud
Cole
Comer
Conaway
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Fulcher
Gallagher
Garcia (CA)
Gibbs
Gohmert
Gooden
Granger
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Hill (AR)
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCaul
McClintock
McKinley
Meuser
Miller
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Pence
Perry
Posey
Reed
Rice (SC)
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stivers
Taylor
Thompson (PA)
Tiffany
Timmons
Tipton
Turner
Upton
Van Drew
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoho
Young
Zeldin

NOT VOTING—45

Abraham
Aderholt
Allen
Bacon
Brooks (IN)
Bucshon
Budd
Byrne
Calvert
Carter (GA)
Carter (TX)
Case
Collins (GA)
Cook
DeFazio
Dunn
Foxx (NC)
Gaetz
Gianforte
Gonzalez (OH)
Gosar
Graves (LA)
Higgins (LA)
Holding
Johnson (LA)
King (IA)
Lynch
Marchant
McCarthy
McHenry
Meeks
Mitchell
Mullin
Palmer
Reschenthaler
Richmond
Riggleman
Scott, Austin
Sensenbrenner
Stewart
Thornberry
Veasey
Wagner
Wild
Wright

□ 2032

Messrs. GREEN of Tennessee and DESJARLAIS changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Barragán (Beyer)
Bera (Aguilar)
Bonamici (Clark (MA))
Boyle, Brendan F. (Jeffries)
Brownley (CA) (Clark (MA))
Carson (IN) (Cleaver)
Castor (FL) (Demings)
Cohen (Beyer)
Costa (Cooper)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Doggett (Raskin)
Doyle, Michael F. (Cartwright)
Escobar (Garcia (TX))
Frankel (Clark (MA))
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Higgins (NY) (Sánchez)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kim (Davids (KS))
Kirkpatrick (Stanton)
Lamb (Golden)
Langevin (Lynch)
Lawson (FL) (Demings)
Lee (NV) (Kuster (NH))
Lieu, Ted (Beyer)
Lipinski (Schrader)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
McEachin (Wexton)
McNerney (Raskin)
Meng (Kuster (NH))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Nadler (Jeffries)
Napolitano (Correa)
Pascrell (Pallone)
Payne (Wasserman Schultz)
Peters (Kildee)
Pingree (Kuster (NH))
Pocan (Raskin)
Porter (Wexton)
Pressley (Trahan)
Price (NC) (Butterfield)
Rooney (FL) (Beyer)
Roybal-Allard (Garcia (TX))
Ruiz (Dingell)
Rush (Underwood)
Schneider (Casten (IL))
Schrier (DelBene)
Serrano (Jeffries)
Sherrill (Pallone)
Sires (Norcross)
Speier (Scanlon)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. WOODALL. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 225, nays 160, not voting 45, as follows:

[Roll No. 231]

YEAS—225

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gallego
Garamendi
García (IL)
Garcia (TX)
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Hall
Harder (CA)
Hastings
Heck
Higgins (NY)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—160

Amash
Amodei
Armstrong
Arrington
Babin
Baird
Balderson
Banks
Barr
Bergman
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Buchanan
Buck
Burchett
Burgess
Case
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Crawford
Crenshaw
Curtis
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Fulcher
Gallagher
Garcia (CA)
Gibbs
Gohmert
Golden
Gonzalez (OH)
Gooden
Granger
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Hill (AR)
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (OH)
Johnson (SD)
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamb
Latta
Lesko
Long
Loudermilk
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCaul
McClintock
McKinley
Meuser
Miller
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Pence
Posey
Reed
Rice (SC)
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stivers
Taylor
Thompson (PA)
Tiffany
Timmons
Tipton
Turner
Upton
Van Drew
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoho
Young
Zeldin

NOT VOTING—45

Abraham
Aderholt
Allen
Bacon
Biggs
Brooks (IN)

Bucshon
Budd
Byrne
Calvert
Carter (GA)
Carter (TX)
Cicilline
Cook
Davidson (OH)
DeFazio
Dunn
Foxx (NC)
Gabbard
Gaetz
Gianforte
Gosar
Graves (LA)
Hayes
Higgins (LA)
Holding
Johnson (LA)
Jordan
King (IA)
Lamborn
Marchant
McCarthy
McHenry
Mitchell
Mullin
Palmer
Perry
Reschenthaler
Riggleman
Scott, Austin
Sensenbrenner
Stewart
Thornberry
Wagner
Wright

□ 2116

Mr. RUTHERFORD changed his vote from ''yea'' to ''nay.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. ALLEN. Madam Speaker, due to COVID–19, I was unable to vote the week of December 2, 2020. Had I been present, I would have voted "nay" on rollcall No. 229, "nay" on rollcall No. 230, and "nay" on rollcall No. 231.

PERSONAL EXPLANATION

Mr. KING of Iowa. Madam Speaker, I was unable to vote on December 2, 2020 and December 3, 2020 due to not being in town. Had I been present, I would have voted as follows: "no" on rollcall no. 228; "no" on rollcall no. 229; ''no'' on rollcall no. 230; and "no"; and "no" on rollcall no. 231.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Barragán (Beyer)
Bera (Aguilar)
Bonamici (Clark (MA))
Boyle, Brendan F. (Jeffries)
Brownley (CA) (Clark (MA))
Carson (IN) (Cleaver)
Castor (FL) (Demings)
Cohen (Beyer)
Costa (Cooper)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Doggett (Raskin)
Doyle, Michael F. (Cartwright)
Escobar (Garcia (TX))
Frankel (Clark (MA))
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Higgins (NY) (Sánchez)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kim (Davids (KS))
Kirkpatrick (Stanton)
Lamb (Golden)
Langevin (Lynch)
Lawson (FL) (Demings)
Lee (NV) (Kuster (NH))
Lieu, Ted (Beyer)
Lipinski (Schrader)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
McEachin (Wexton)
McNerney (Raskin)
Meng (Kuster (NH))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Nadler (Jeffries)
Napolitano (Correa)
Pascrell (Pallone)
Payne (Wasserman Schultz)
Peters (Kildee)
Pingree (Kuster (NH))
Pocan (Raskin)
Porter (Wexton)
Pressley (Trahan)
Price (NC) (Butterfield)
Rooney (FL) (Beyer)
Roybal-Allard (Garcia (TX))
Ruiz (Dingell)
Rush (Underwood)
Schneider (Casten (IL))
Schrier (DelBene)
Serrano (Jeffries)
Sherrill (Pallone)
Sires (Norcross)
Speier (Scanlon)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

BIG CAT PUBLIC SAFETY ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1380) to amend the Lacey Act Amendments of 1981 to clarify provisions enacted by the Captive Wildlife Safety Act, to further the conservation of certain wildlife species, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Hawaii (Mr. CASE) that the House suspend the rules and pass the bill, as amended.

The vote was taken by electronic device, and there were—yeas 272, nays 114, not voting 44, as follows:

[Roll No. 232]

YEAS—272

Adams
Aguilar
Allred
Axne
Balderson
Barragán
Bass
Beatty
Bera
Beyer
Bilirakis
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Bost
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Buchanan
Buck
Burchett
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chabot
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Cole
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Curtis
Davids (KS)
Davis (CA)
Davis, Danny K.
Davis, Rodney
Dean
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fitzpatrick
Fletcher
Fortenberry
Foster
Frankel
Fudge
Gabbard
Gallagher
Gallego
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (OH)
Gonzalez (TX)
Gooden
Gottheimer
Granger
Green, Al (TX)
Grijalva
Guest
Haaland
Hall
Harder (CA)
Hastings
Hayes
Heck
Herrera Beutler
Higgins (NY)
Hill (AR)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Hurd (TX)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (OH)
Johnson (TX)
Joyce (OH)
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
King (NY)
Kinzinger
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Lofgren
Lowenthal
Lowey
Lucas
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCaul
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moolenaar
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Olson
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Reed
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Rutherford
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Schweikert
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (NJ)
Smith (WA)
Smucker
Soto
Spanberger
Speier
Stanton
Stefanik
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tipton
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Turner
Underwood
Upton
Van Drew
Vargas
Veasey
Velázquez
Visclosky
Walden
Waltz
Wasserman Schultz
Waters
Watkins
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Womack
Yoho
Zeldin

NAYS—114

Amash
Amodei
Armstrong
Arrington
Babin
Baird
Banks
Barr
Bergman
Biggs
Bishop (NC)
Bishop (UT)
Brady
Brooks (AL)
Burgess
Byrne
Cheney
Cline
Cloud
Collins (GA)
Comer
Conaway
Crawford
Crenshaw
Davidson (OH)
DesJarlais
Duncan
Emmer
Estes
Ferguson
Fleischmann
Flores
Fulcher
Gibbs
Gohmert
Graves (MO)
Green (TN)
Griffith
Grothman
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Hice (GA)
Hollingsworth
Hudson
Huizenga
Johnson (SD)
Jordan
Joyce (PA)
Keller
Kelly (MS)
Kelly (PA)
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Loudermilk
Luetkemeyer
Marshall
Massie
Mast
McClintock
McKinley
Meuser
Miller
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Palazzo
Pence
Perry
Posey
Rice (SC)
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Scalise
Shimkus
Simpson
Smith (MO)
Smith (NE)
Spano
Stauber
Steil
Steube
Stivers
Taylor
Thompson (PA)
Tiffany
Timmons
Walberg
Walker
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Woodall
Young

NOT VOTING—44

Abraham
Aderholt
Allen
Bacon
Brooks (IN)
Bucshon
Budd
Calvert
Carter (GA)
Carter (TX)
Connolly
Cook
DeFazio
Dunn
Foxx (NC)
Gaetz
Gianforte
Gosar
Graves (LA)
Higgins (LA)
Holding
Johnson (LA)
King (IA)
Loebsack
Marchant
McCarthy
McHenry
Mitchell
Mullin
Neal
Palmer
Perlmutter
Peterson
Reschenthaler
Riggleman
Rooney (FL)
Scott, Austin
Sensenbrenner
Stewart
Thornberry
Vela
Wagner
Wright
Yarmuth

□ 2157

Mr. STEIL changed his vote from ''yea'' to ''nay.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. CARTER of Georgia. Madam Speaker, on rollcall no. 230, I am not recorded because of circumstances which caused me to miss the vote. Had I been present, I would have voted nay.

On rollcall no. 231, I am not recorded because of circumstances which caused me to miss the vote. Had I been present, I would have voted nay.

On rollcall no. 232, I am not recorded because of circumstances which caused me to

miss the vote. Had I been present, I would have voted nay.

PERSONAL EXPLANATION

Mr. GRAVES of Louisiana. Madam Speaker, please excuse my absence. I was notified that I was exposed to COVID–19 and am following quarantine guidelines set by the CDC. Had I been present, I would have voted "nay" on rollcall No. 230, PQ, "nay" on rollcall No. 231, Rule, and "nay" on rollcall No. 232, HR 1380.

PERSONAL EXPLANATION

Mr. BACON. Madam Speaker, I had a possible exposure to COVID–19 and have gone into quarantine in accordance with CDC guidelines. Had I been present, I would have voted "nay" on rollcall No. 230, "nay" on rollcall No. 231, and "yea" on rollcall No. 232.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Barragán (Beyer)
Bera (Aguilar)
Bonamici (Clark (MA))
Boyle, Brendan F. (Jeffries)
Brownley (CA) (Clark (MA))
Carson (IN) (Cleaver)
Castor (FL) (Demings)
Cohen (Beyer)
Costa (Cooper)
DeSaulnier (Matsui)
Deutch (Rice (NY))
Doggett (Raskin)
Doyle, Michael F. (Cartwright)
Escobar (Garcia (TX))
Frankel (Clark (MA))
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Higgins (NY) (Sánchez)
Jayapal (Raskin)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kim (Davids (KS))
Kirkpatrick (Stanton)
Lamb (Golden)
Langevin (Lynch)
Lawson (FL) (Demings)
Lee (NV) (Kuster (NH))
Lieu, Ted (Beyer)
Lipinski (Schrader)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
McEachin (Wexton)
McNerney (Raskin)
Meng (Kuster (NH))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Nadler (Jeffries)
Napolitano (Correa)
Pascrell (Pallone)
Payne (Wasserman Schultz)
Peters (Kildee)
Pingree (Kuster (NH))
Pocan (Raskin)
Porter (Wexton)
Pressley (Trahan)
Price (NC) (Butterfield)
Roybal-Allard (Garcia (TX))
Ruiz (Dingell)
Rush (Underwood)
Schneider (Casten (IL))
Schrier (DelBene)
Serrano (Jeffries)
Sherrill (Pallone)
Sires (Norcross)
Speier (Scanlon)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Hayes)

RECOGNIZING JIMMY DODSON

(Mr. CONAWAY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CONAWAY. Mr. Speaker, it is with great respect and honor that I rise today to recognize Jimmy Dodson as he completes his term as the chair of the Farm Credit Council Board of Directors.

Jimmy is a third-generation farmer, and he grows cotton, corn, wheat, milo, and operates a seed sales business near Robstown, Texas, where he and his wife, Barbara, live today.

Jimmy is a great leader in the cotton industry, as the past chair of the National Cotton Council of America, the American Cotton Producers, and the Cotton Foundation. He is a founding member of Cotton LEADS, the cotton industry's sustainability program, and a member of the boards of Cotton Incorporated, the Texas Agricultural Cooperative Council, and the Gulf Coast Cooperative. He was one of the first farm leaders to visit China to work to expand U.S. ag exports into that country.

He is also a great leader within the cooperative Farm Credit System, which he first joined in 1974. Jimmy was first elected by his fellow south Texas farmers to represent them on the board of the Coastal Bend Production Credit Association in February 1982. Jimmy went on to become a lifelong board member of the Farm Credit Bank of Texas, where he serves today as board chair and oversees efforts to support farmers in Texas, New Mexico, Louisiana, Alabama, and Mississippi. This year, Jimmy will complete his term as board chair of the Farm Credit Council, where he has led efforts to support farmers and farm families across the United States.

Jimmy Dodson has devoted his life to agriculture, and our Nation's farm families have benefited tremendously from his efforts. On behalf of the U.S. House of Representatives and the House Agriculture Committee, I extend my deepest gratitude to Jimmy for his tireless efforts and his tireless support of American farmers and ranchers. I wish him the very best as he continues his lifelong service to Texas and U.S. agriculture.

RESTAURANTS AND STORES ARE BEING FORCED TO SHUT THEIR DOORS

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, the Christmas season is here, a time during which our small businesses typically thrive, the season that gets them through much of the rest of the year fiscally.

This year, however, restaurants and stores are forced into shutting their doors on much of Main Street America. However, the Paycheck Protection Program has saved 51 million jobs across the country.

Speaker PELOSI could use this legislative week to free up the remaining $135 billion in PPP reserves, but instead we are voting on legalizing a schedule I narcotic, and then whether to pass a Carole Baskin anti-tiger bill.

Now is not the time to play politics by withholding money that has been already allocated on behalf of small business. At the end of the year, if we do not use these funds, they will expire.

I encourage all my colleagues to join me in signing the discharge petition for H.R. 8265, freeing up these funds immediately and reviving the tested and effective PPP to save more small businesses this year, especially as governments clamp down even more so on their closures.

AMERICANS ARE CRYING OUT FOR RELIEF

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, American people are hungry. Americans are losing their homes. And one American every 30 seconds is dying. We need to be able to address this question and address it immediately.

We passed the HEROES Act so many months ago that had testing money. It had restaurant money for all our local restaurants. It had PPP to save businesses. It had PPE money in terms of helping getting the equipment that is needed to save nurses and doctors, but it was not done.

There is no reason for us to leave this place without recognizing the American people are crying out for relief. I am willing to look very carefully at the bipartisan legislation that would include dollars for local governments finally and as much for education and vaccines. But the main message is the American people are crying out: Do something for us.

We have done it as Democrats. I extend my hand of friendship so that we can negotiate, pass legislation to save lives in America. COVID–19 is raging. Let's do something about it.

RECOGNIZING CAPE ASSIST

(Mr. VAN DREW asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. VAN DREW. Mr. Speaker, I would like to recognize Cape Assist, a substance misuse prevention and treatment agency which serves Cape May County in south Jersey.

From prevention and education programs for our community to recovery services for those in need, the services that they offer are invaluable. They are invaluable to our community and to the lives that they literally help save.

During this pandemic, people have, unfortunately, turned to more drugs and more alcohol and more substance abuse. Cape Assist helps individuals who are struggling with these addictions to turn the corner of their addictions and help them to get better.

I thank the staff of Cape Assist for the diligent and lifesaving work they do to ensure our community is educated in these issues and that those in need have the support to get through the most difficult times of their lives.

Keep up the great work, Cape Assist. God bless you and God bless the work that you do.

CONGRESS NEEDS TO GET THEIR PRIORITIES STRAIGHT

(Mr. BURCHETT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BURCHETT. Mr. Speaker, with this body back to work this week, I was hoping we would be here to work and to address the ongoing health and economic crisis. Unfortunately, that is not

the case. While small businesses and hardworking Americans struggle to get by, we are spending what little time we have left during this Congress voting on marijuana legislation.

Mr. Speaker, we need to get our priorities straight and start governing responsibly. And we can do that right now by reopening the applications for the Paycheck Protection Program, which still has $133 billion available to small businesses and workers trying to get through this crisis.

Luckily, there is a way around the obstruction that currently exists in this body. I am one of the 186 members on the discharge petition that would bring H.R. 8265 to the floor for a vote. This commonsense legislation would reopen the applications for the Paycheck Protection Program and give small businesses access to unspent money. Members of this body know how important this bill is in this current situation. It is a shame that those who set the floor schedule are focused on advancing partisan priorities rather than rising to meet the challenges facing our workers and small businesses.

OTHER MEDICATIONS TO TREAT COVID–19 SHOULD BE LOOKED INTO

(Mr. GROTHMAN asked and was given permission to address the House for 1 minute.)

Mr. GROTHMAN. Mr. Speaker, this past July, medical research teams at Israel's Hebrew University in Jerusalem and New York's Mount Sinai Hospital released a study indicating that the FDA-approved cholesterol drug fenofibrate may significantly downgrade the severity of COVID–19.

The medical teams were led by Hebrew University Professor Ya'acov Nahmias and Mount Sinai's Dr. Benjamin tenOever. During their research, they found the novel coronavirus and studies conducted on human lung tissue found that COVID–19 prevents the routine burning of carbohydrates, which leads to fat in the lungs, which causes people to die.

What happens is that people take fenofibrate, which is a drug that was commonly used for high cholesterol treatment, and it stops this inflammation and improves people's respiratory systems.

Right now, these doctors are not given the support they should be given by the CDC and the NIH. We have a lot of people dying of coronavirus, and I think our people should not be too proud to recognize that sometimes cures are made in other countries.

I strongly encourage the CDC to look at fenofibrate and these two great researchers.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. GRAVES of Louisiana (at the request of Mr. MCCARTHY) for December 2 and the balance of the week on account of quarantining.

ADJOURNMENT

The SPEAKER pro tempore (Mr. ALLRED). Pursuant to section 4(b) of House Resolution 967, the House stands adjourned until 9 a.m. tomorrow.

Thereupon (at 10 o'clock and 9 minutes p.m.), under its previous order, the House adjourned until tomorrow, Friday, December 4, 2020, at 9 a.m.

OATH OF OFFICE MEMBERS, RESIDENT COMMISSIONER, AND DELEGATES

The oath of office required by the sixth article of the Constitution of the United States, and as provided by section 2 of the act of May 13, 1884 (23 Stat. 22), to be administered to Members, Resident Commissioner, and Delegates of the House of Representatives, the text of which is carried in 5 U.S.C. 3331:

> ''I, AB, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties of the office on which I am about to enter. So help me God.''

has been subscribed to in person and filed in duplicate with the Clerk of the House of Representatives by the following Member of the 116th Congress, pursuant to the provisions of 2 U.S.C. 25:

KWANZA HALL, Fifth District of Georgia.

BUDGETARY EFFECTS OF PAYGO LEGISLATION

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 1380, the Big Cat Public Safety Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 3682, the Land Grant-Mercedes Traditional Use Recognition an Consultation Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 8199, the 504 Credit Risk Management Improvement Act of 2020, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

EC-5728. A letter from the Inspector General, Department of Agriculture, transmitting the Department's investigative report of the three Forest Service (FS) fatalities that occurred during the Twisp River Fire outside of Twisp, Washington on August 19, 2015, pursuant to 7 U.S.C. 2270c; Public Law 107-203, Sec. 2; (116 Stat. 744); to the Committee on Agriculture.

EC-5729. A letter from the Commissioner, Commodity Futures Trading Commission, transmitting a report of the Climate-Related Market Risk Subcommittee, Market Risk Advisory Committee entitled ''Managing Climate Risk in the U.S. Financial System''; to the Committee on Agriculture.

EC-5730. A letter from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting the Department's final rule — National Poultry Improvement Plan and Auxiliary Provisions [Docket No.: APHIS-2018-0062] (RIN: 0579-AE49) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

EC-5731. A letter from the Regulations Management Division, Rural Development Innovation Center, Rural Development-Rural Utilities Service, Department of Agriculture, transmitting the Department's final rule — Request for comments on Rural Energy Savings Program (RESP) (RIN: 0572-AC45) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

EC-5732. A letter from the Regulations Management Division, Rural Development-Innovation Center, Rural Business Cooperative Service, Department of Agriculture, transmitting the Department's final rule — Biorefinery, Renewable Chemical, and Biobased Product Manufacturing Assistance Program [Docket Number: RBS-20-BUSINESS-0015] (RIN: 0570-AA73) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

EC-5733. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Tolerance Crop Grouping Program V [EPA-HQ-OPP-2006-0766; FRL-10015-19] (RIN: 2070-AJ28) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Agriculture.

EC-5734. A letter from the Board Chairman and Chief Executive Officer, Farm Credit Administration, transmitting the 2019 annual report of the Farm Credit Administration; to the Committee on Agriculture.

EC-5735. A letter from the Director, Office of Legislative Affairs, Legal, Federal Deposit Insurance Corporation, transmitting the Corporation's final rule — Branch Application Procedures (RIN: 3064-AF54) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

EC-5736. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the 38th Annual Report to Congress on the Implementation of the Age Discrimination Act of 1975

for Fiscal Year 2019, pursuant to 42 U.S.C. 6106a(b); Public Law 94-135, Sec. 308(b); (92 Stat. 1556); to the Committee on Education and Labor.

EC-5737. A letter from the Secretary, Department of Education, transmitting the Department's correction notice — Direct Grant Programs, State-Administered Formula Grant Programs, Non Discrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance, Developing Hispanic-Serving Institutions Program, Strengthening Institutions Program, Strengthening Historically Black Colleges and Universities Program, and Strengthening Historically Black Graduate Institutions Program [Docket ID: ED-2019-OPE-0080] (RIN: 1840-AD45) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and Labor.

EC-5738. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the 12th Annual Report on Delays in Approvals of Applications Related to Citizen Petitions and Petitions for Stay of Agency Action for Fiscal Year 2019, pursuant to 21 U.S.C. 355(q)(3); (June 25, 1938, ch. 675, §505(q)(3) (as amended by Public Law 110-85, Sec. 914(a)); (121 Stat. 956); to the Committee on Energy and Commerce.

EC-5739. A letter from the Acting Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the National Health Service Corps Report to Congress for the Year 2019, pursuant to 42 U.S.C. 254i; July 1, 1944, ch. 373, title III, Sec. 336A (as amended by Public Law 107-251, Sec. 307(b)); (116 Stat. 1649); to the Committee on Energy and Commerce.

EC-5740. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the NURSE Corps Loan Repayment and Scholarship Programs report to Congress for FY 2019, pursuant to 42 U.S.C. 297n(h); July 1, 1944, ch. 373, title VIII, Sec. 846(h) (as amended by Public Law 107-205, Sec. 103(d)); (116 Stat. 814); to the Committee on Energy and Commerce.

EC-5741. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the FY 2019 Report on the Preventive Medicine and Public Health Training Grant Program, pursuant to 42 U.S.C. 295c(d); July 1, 1944, ch. 373, title VII, Sec. 768(d) (as amended by Public Law 111-148, Sec. 10501(m)); (124 Stat. 1002); to the Committee on Energy and Commerce.

EC-5742. A letter from the Assistant Secretary of Legislation, Office of the Secretary, Department of Health and Human Services, transmitting a report titled, ''Innovative State Initiatives and Strategies for Providing Housing-Related Services and Supports under a State Medicaid Program to Individuals with Substance Use Disorders Who Are Experiencing or at Risk of Experiencing Homelessness'', pursuant to Public Law 115-271, Sec. 1017(a); (132 Stat. 3923); to the Committee on Energy and Commerce.

EC-5743. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; Missouri; Removal of Control of Emission from Solvent Cleanup Operations [EPA-R07-OAR-2020-0439; FRL-10016-37-Region 7] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5744. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of State Air Quality Plans for Designated Facilities and Pollutants; Arkansas, New Mexico, and Albuquerque-Bernalillo County, New Mexico; Control of Emissions From Existing Commercial and Industrial Solid Waste Incineration Units [EPA-R06-OAR-2020-0357; FRL-10016-22-Region 6] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5745. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Arkansas: Final Approval of State Underground Storage Tank Program Revisions and Incorporation by Reference [EPA-R06-UST-2018-0701; FRL-10014-65-Region 6] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5746. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Determination of Attainment by the Attainment Date for the Salt Lake City, Utah and Provo, Utah 2006 24-Hour PM2.5 Nonattainment Areas [EPA-R08-OAR-2020-0002; FRL-10016-52-Region 8] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5747. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Findings of Failure to Submit State Implementation Plan Revisions in Response to the 2016 Oil and Natural Gas Industry Control Techniques Guidelines for the 2008 Ozone National Ambient Air Quality Standards (NAAQS) and for States in the Ozone Transport Region [EPA-HQ-OAR-2020-0485; FRL-10016-24-OAR] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5748. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Mefentrifluconazole; Pesticide Tolerances [EPA-HQ-OPP-2020-0068; FRL-10015-56] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5749. A letter from the Associate Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — National Emission Standards for Hazardous Air Pollutants: Phosphoric Acid Manufacturing [EPA-HQ-OAR-2020-0016; FRL-10015-94-OAR] (RIN: 2060-AU25) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5750. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; ID, Incorporation by Reference Updates and Rule Revisions [EPA-R10-OAR-2019-0401; FRL-10016-18-Region 10] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5751. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; NC; Blue Ridge Paper SO2 Emission Limits [EPA-R04-OAR-2020-0001; FRL-10016-41-Region 4] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5752. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of State Plans for Designated Facilities and Pollutants; City of Philadelphia and District of Columbia [EPA-R03-OAR-2019-0678; FRL-10016-45-Region 3] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5753. A letter from the Program Analyst, Federal Communications Commission, transmitting the Commission's final rule — Video Description: Implementation of the Twenty-First Century Communications and Video Accessibility Act of 2010, [MB Docket No.: 11-43, FCC 20-155] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5754. A letter from the Attorney Advisor, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — Cable Service Change Notifications [MB Docket No.: 19-347]; Modernization of Media Regulation Initiative [MB Docket No.: 17-105]; Amendment of the Commission's Rules Related to Retransmission Consent [MB Docket No.: 10-71] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5755. A letter from the Program Analyst, Consumer and Governmental Affairs Bureau, Federal Communications Commission, transmitting the Commission's final rule — Misuse of Internet Protocol (IP) Captioned Telephone Service [CG Docket No.: 13-24]; Telecommunications Relay Services and Speech-to-Speech Services for Individuals with Hearing and Speech Disabilities [CG Docket No.: 03-123]; Structure and Practices of the Video Relay Service Program [CG Docket No.: 10-51] received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

EC-5756. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to Syria that was declared in Executive Order 13338 of May 11, 2004, pursuant to 50 U.S.C. 1641(c); Public Law 94-412, Sec. 401(c); (90 Stat. 1257) and 50 U.S.C. 1703(c); Public Law 95-223, Sec 204(c); (91 Stat. 1627); to the Committee on Foreign Affairs.

EC-5757. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to the Central African Republic that was declared in Executive Order 13667 of May 12, 2014, pursuant to 50 U.S.C. 1641(c); Public Law 94-412, Sec. 401(c); (90 Stat. 1257) and 50 U.S.C. 1703(c); Public Law 95-223, Sec 204(c); (91 Stat. 1627); to the Committee on Foreign Affairs.

EC-5758. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to Yemen that was declared in Executive Order 13611 of May 16, 2012, pursuant to 50 U.S.C. 1641(c); Public Law 94-412, Sec. 401(c); (90 Stat. 1257) and 50 U.S.C. 1703(c); Public Law 95-223, Sec 204(c); (91 Stat. 1627); to the Committee on Foreign Affairs.

EC-5759. A letter from the Vice President, Office of External Affairs, Overseas Private Investment Corporation, transmitting the annual report of the Corporation for Fiscal Year 2019 on Development Impact, pursuant to 22 U.S.C. 2200a(a); Public Law 87-195, Sec. 240A (as amended by Public Law 99-204, Sec. 14(a); (99 Stat. 1674); to the Committee on Foreign Affairs.

EC-5760. A letter from the Executive Director, Federal Retirement Thrift Investment Board, transmitting the Board's direct final rule — Availability of Records received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

EC-5761. A letter from the Director, Office of Acquisition Policy, Office of Government-Wide Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Federal Acquisition Circular 2021-01; Introduction [Docket No.: FAR-2020-0051, Sequence No.: 6] received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

EC-5762. A letter from the General Counsel, Office of Management and Budget, Executive Office of the President, transmitting a notification of a nomination and change in previously submitted reported information, pursuant to 5 U.S.C. 3349(a); Public Law 105-277, 151(b); (112 Stat. 2681-614); to the Committee on Oversight and Reform.

EC-5763. A letter from the Acting Director, Employee Service, Office of Personnel Management, transmitting the Office's final rule — General Schedule Locality Pay Areas (RIN: 3206-AO05) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

EC-5764. A letter from the Acting Director, Employee Service, Office of Personnel Management, transmitting the Office's final rule — Probation on Initial Appointment to a Competitive Position, Performance-Based Reduction in Grade and Removal Actions and Adverse Actions (RIN: 3206-AN60) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

EC-5765. A letter from the Acting Director, Office of the Director, Office of Personnel Management, transmitting the Office's final rule — Guidance Procedures (RIN: 3206-AO01) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

EC-5766. A letter from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting the Fourteenth Annual Government-to-Government Violence Against Women Tribal Consultation and the 2019 Tribal Consultation Report of the Office on Violence Against Women, pursuant to 34 U.S.C. 20126(c); Public Law 109-162, Sec. 903(c) (as added by Public Law 113-4, Sec. 903(3)); (127 Stat. 120); to the Committee on the Judiciary.

EC-5767. A letter from the Agency Representative, United States Patent and Trademark Office, Department of Commerce, transmitting the Department's final rule — International Trademark Classification Changes [Docket No.: PTO-T-2020-0037] (RIN: 0651-AD49) received November 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on the Judiciary.

EC-5768. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Removal of Class E Airspace, and Amendment of Class D and Class E Airspace; Jacksonville, FL [Docket No.: FAA-2019-0932; Airspace Docket No.: 19-ASO-24] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5769. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class D and E Airspace; St. Louis, MO [Docket No.: FAA-2020-0319; Airspace Docket No.: 20-ACE-5] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5770. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class D and E Airspace and Establishment of Class E Airspace; Alton/St. Louis, IL [Docket No.: FAA-2020-0321; Airspace Docket No.: 20-AGL-17] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5771. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Baudette, MN [Docket No.: FAA-2020-0362; Airspace Docket No.: 20-AGL-19] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5772. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Decorah, IA [Docket No.: FAA-2020-0376; Airspace Docket No.: 20-ACE-7] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5773. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Webster City, IA [Docket No.: FAA-2020-0398; Airspace Docket No.: 20-ACE-8] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5774. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Winner, SD [Docket No.: FAA-2020-0377; Airspace Docket No.: 20-AGL-20] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5775. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Establishment of Class E Airspace, Sleetmute, AK [Docket No.: FAA-2020-0359; Airspace Docket No.: 15-AAL-5] (RIN: 2120-AA66) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5776. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 31320; Amdt. No.: 3912] received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5777. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Standard Instrument Approach Procedures, and Takeoff Minimums and Obstacle Departure Procedures; Miscellaneous Amendments [Docket No.: 31319; Amdt. No.: 3911] received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5778. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No.: FAA-2020-0579; Product Identifier 2020-NM-009-AD; Amendment 39-21163; AD 2020-14-09] (RIN: 2120-AA64) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5779. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Diamond Aircraft Industries Airplanes [Docket No.: FAA-2020-0644; Product Identifier 2019-CE-057-AD; Amendment 39-21160; AD 2020-14-06] (RIN: 2120-AA64) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5780. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airbus Helicopters [Docket No.: FAA-2019-1099; Product Identifier 2018-SW-026-AD; Amendment 39-21164; AD 2020-15-01] (RIN: 2120-AA64) received November 4, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

EC-5781. A letter from the Secretary, Department of Labor, transmitting reports titled, ''The Department of Labor's List of Goods Produced by Child Labor or Forced Labor'' and ''The Department of Labor's 2019 Findings on the Worst Forms of Child Labor'', pursuant to 22 U.S.C. 7112(b)(3); Public Law 109-164, Sec. 105(b)(3) (as added by Public Law 113-4, Sec. 1232); (127 Stat. 146); jointly to the Committees on Education and Labor, Oversight and Reform, and Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. SMITH of Washington: Committee of Conference. Conference report on H.R. 6395. A bill to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for such fiscal year, and for other purposes (Rept. 116–617). Ordered to be printed.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. PETERSON:

H.R. 8843. A bill to amend the Food Security Act of 1985 to increase the number of acres authorized for enrollment in the conservation reserve program, and for other purposes; to the Committee on Agriculture.

By Mr. WILSON of South Carolina:

H.R. 8844. A bill to require reports and determinations relating to imposition of sanctions against the Badr Organization, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SEWELL of Alabama (for herself, Mr. ARRINGTON, Mr. RUIZ, and Mr. HUDSON):

H.R. 8845. A bill to amend title XVIII of the Social Security Act to provide for Medicare coverage of multi-cancer early detection screening tests; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CHABOT:

H.R. 8846. A bill to authorize the imposition of sanctions on certain persons engaged in a pattern of significant theft of United States intellectual property, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. CHENEY:

H.R. 8847. A bill to designate the facility of the United States Postal Service located at 440 Arapahoe Street in Thermopolis, Wyoming, as the ''Robert L. Brown Post Office''; to the Committee on Oversight and Reform.

By Mr. COOK:

H.R. 8848. A bill to convey certain Federal land in California to Twentynine Palms, California; to the Committee on Natural Resources.

By Mr. COOK:

H.R. 8849. A bill to facilitate land exchanges in California between the California State Lands Commission and the Department of the Interior, and for other purposes; to the Committee on Natural Resources.

By Mr. COOK:

H.R. 8850. A bill to convey certain Federal land in California to Apple Valley, California; to the Committee on Natural Resources.

By Mr. CROW (for himself and Mr. BALDERSON):

H.R. 8851. A bill to establish a Next Generation Entrepreneurship Corps program within the Small Business Administration, and for other purposes; to the Committee on Small Business, and in addition to the Committee on Education and Labor, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. GABBARD (for herself and Mr. GAETZ):

H.R. 8852. A bill to amend title 18, United States Code, to provide that offenses committed on the basis of political affiliation constitute hate crimes, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Education and Labor, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAVES of Louisiana (for himself and Mr. LARSEN of Washington):

H.R. 8853. A bill to direct the Secretary of Transportation and the Administrator of the Federal Aviation Administration to provide to the appropriate committees of Congress advance notice of certain meeting announcements; to the Committee on Transportation and Infrastructure.

By Mr. GRAVES of Louisiana:

H.R. 8854. A bill to amend title 49, United States Code, to establish a program to track potential sources of airborne foreign object debris to prevent the collision of aircraft with such debris, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. KEVIN HERN of Oklahoma (for himself, Mr. BUDD, Mr. TIFFANY, Mr. RESCHENTHALER, Mr. WEBER of Texas, Mr. GAETZ, Mr. JOYCE of Pennsylvania, Mr. PERRY, Mr. BANKS, Mr. STEUBE, Mr. BAIRD, Mr. FLORES, Mr. BIGGS, Mr. KELLER, Mr. AUSTIN SCOTT of Georgia, and Mrs. LESKO):

H.R. 8855. A bill to prohibit Federal employees from making allegations or appeals with respect to an adverse action to more than one entity, and for other purposes; to the Committee on Oversight and Reform.

By Mr. JOHNSON of Georgia (for himself, Ms. ADAMS, Mrs. BEATTY, Mr. BERA, Mr. BISHOP of Georgia, Mrs. BUSTOS, Mr. BUTTERFIELD, Ms. CASTOR of Florida, Ms. CLARKE of New York, Mr. COOPER, Mr. DESAULNIER, Mr. MICHAEL F. DOYLE of Pennsylvania, Ms. ESHOO, Ms. FUDGE, Ms. GABBARD, Mr. GARAMENDI, Mr. GREEN of Texas, Mr. GRIJALVA, Ms. HAALAND, Mr. HASTINGS, Ms. JACKSON LEE, Mr. KILMER, Ms. KUSTER of New Hampshire, Mr. LANGEVIN, Mrs. LAWRENCE, Ms. LEE of California, Mr. LOWENTHAL, Mrs. CAROLYN B. MALONEY of New York, Mr. SEAN PATRICK MALONEY of New York, Ms. MOORE, Mr. NADLER, Ms. NORTON, Mr. PETERS, Mr. POCAN, Mr. SARBANES, Ms. SCHAKOWSKY, Ms. SPEIER, Mr. THOMPSON of Mississippi, Ms. TITUS, Mr. VARGAS, Mr. YARMUTH, Mr. BEYER, and Mr. LYNCH):

H.R. 8856. A bill to award a Congressional Gold Medal to the Freedom Riders, collectively, in recognition of their unique contribution to Civil Rights, which inspired a revolutionary movement for equality in interstate travel; to the Committee on Financial Services, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LYNCH:

H.R. 8857. A bill to establish a Consumer Protection Relief Fund to empower lenders to deploy credit to vulnerable borrowers needing access to credit as a result of the COVID-19 pandemic; to the Committee on Financial Services.

By Mr. MCKINLEY (for himself, Mr. VEASEY, Mr. ARMSTRONG, Mrs. BUSTOS, Mr. MOONEY of West Virginia, Mr. MICHAEL F. DOYLE of Pennsylvania, Mrs. FLETCHER, and Mr. BERGMAN):

H.R. 8858. A bill to amend the Internal Revenue Code of 1986 to extend and allow an elective payment of the tax credit for carbon oxide sequestration; to the Committee on Ways and Means.

By Mrs. MILLER (for herself, Mr. CRAWFORD, Mr. WEBER of Texas, Mr. GRAVES of Louisiana, and Mr. PENCE):

H.R. 8859. A bill to establish an innovative mobility and technology deployment grants program, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. PAPPAS:

H.R. 8860. A bill to amend title 38, United States Code, to make certain improvements in the laws relating to whistleblower protection at the Department of Veterans Affairs, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. RICE of South Carolina (for himself, Ms. DEGETTE, Mr. REED, and Mr. BUTTERFIELD):

H.R. 8861. A bill to permit Centers for Disease Control and Prevention-recognized virtual diabetes prevention program suppliers to be included in the Medicare Diabetes Prevention Program Expanded Model conducted by the Center for Medicare and Medicaid Innovation under section 1115A of the Social Security Act (42 U.S.C. 1315a); to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SPANBERGER (for herself and Mr. COLE):

H.R. 8862. A bill to reauthorize the Pregnancy Assistance Fund; to the Committee on Education and Labor.

By Mr. STEWART:

H.R. 8863. A bill to prohibit the further extension or establishment of national monuments in Utah except by express authorization of Congress; to the Committee on Natural Resources.

By Mr. STEWART:

H.R. 8864. A bill to direct the Secretary of the Interior to enter into agreements with States to allow continued operation of facilities and programs that have been determined to have a direct economic impact on tourism, mining, timber, or general transportation in the State and which would otherwise cease operating, in whole or in part, during a Federal Government shutdown that is the result of a lapse in appropriations, and for other purposes; to the Committee on Natural Resources.

By Mr. STEWART (for himself, Mr. COOK, Mr. SIMPSON, Mr. AMODEI, and Mr. LAMBORN):

H.R. 8865. A bill to improve the process for awarding grants under certain programs of the Department of Transportation to certain counties in which the majority of land is owned or managed by the Federal Government and to other units of local government and Tribal governments in those counties, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. STEWART:

H.R. 8866. A bill to improve the process for awarding grants under certain programs of the Department of Agriculture to certain counties in which the majority of land is owned or managed by the Federal Government and to other units of local government and Tribal governments in those counties, and for other purposes; to the Committee on Agriculture, and in addition to the Committees on Energy and Commerce, and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. TITUS (for herself, Mr. MAST, Mr. GAETZ, Mr. FITZPATRICK, Mr. SUOZZI, Mr. TED LIEU of California, Mr. COHEN, Ms. SHALALA, Mrs. DINGELL, Mr. RODNEY DAVIS of Illinois, Mr. HARDER of California, Ms. LEE of California, Ms. NORTON, Mr. LYNCH, Mr. NADLER, Mr. CICILLINE, Mr. LEVIN of Michigan, Mr. LOWENTHAL, Ms. JAYAPAL, Ms. ESHOO, and Mr. HURD of Texas):

H.R. 8867. A bill to amend title 38, United States Code, to prohibit the Secretary of

Veterans Affairs from conducting medical research causing significant pain or distress to cats; to the Committee on Veterans' Affairs.

By Mr. TRONE (for himself, Ms. JUDY CHU of California, and Mr. LEVIN of California):

H.R. 8868. A bill to amend title V of the Public Health Service Act to provide for increased oversight of recovery housing, and for other purposes; to the Committee on Energy and Commerce.

By Ms. WILD (for herself and Mr. FITZPATRICK):

H.R. 8869. A bill to create a Council on Emergency Response Protocols to ensure the establishment of accessible, developmentally appropriate, culturally aware, and trauma-informed emergency response protocols in public schools, early childcare and education settings, and institutions of higher education, and for other purposes; to the Committee on Education and Labor.

By Mr. FOSTER (for himself, Mr. TAKANO, Ms. STEVENS, Mr. RYAN, and Mr. BROOKS of Alabama):

H. Res. 1248. A resolution expressing support for the designation of December 3, 2020, as the ''National Day of 3D Printing''; to the Committee on Energy and Commerce.

By Mr. WALBERG (for himself and Ms. STEVENS):

H. Res. 1249. A resolution expressing support for frontline workers, residents of long-term care facilities, individuals with pre-existing conditions, and K-12 educators to receive priority access to a COVID-19 vaccine; to the Committee on Energy and Commerce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. PETERSON:

H.R. 8843.

Congress has the power to enact this legislation pursuant to the following:

The ability to regulate interstate commerce and with foreign Nations pursuant to Article 1, Section 8, Clause 3.

By Mr. WILSON of South Carolina:

H.R. 8844.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Ms. SEWELL of Alabama:

H.R. 8845.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. CHABOT:

H.R. 8846.

Congress has the power to enact this legislation pursuant to the following:

Article 1. Section 8

By Ms. CHENEY:

H.R. 8847.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 7,

''The Congress shall have Power to . . . establish Post Offices and Post Roads . . .''

By Mr. COOK:

H.R. 8848.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. COOK:

H.R. 8849.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. COOK:

H.R. 8850.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. CROW:

H.R. 8851.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3: The Congress shall have Power To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Ms. GABBARD:

H.R. 8852.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution including Article 1, Section 8, Clause 1 (General Welfare Clause) and Article 1, Section 8, Clause 18 (Necessary and Proper Clause), Article 4, Section 3, Clause 2 (Property).

By Mr. GRAVES of Louisiana:

H.R. 8853.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 1 and Article I, Section 8, Clauses 3 and 18 of the United States Constitution

By Mr. GRAVES of Louisiana:

H.R. 8854.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clauses 3 and 18 of the United States Constitution

By Mr. KEVIN HERN of Oklahoma:

H.R. 8855.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Constitution of the United States of America

By Mr. JOHNSON of Georgia:

H.R. 8856.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article 1, Section 8

By Mr. LYNCH:

H.R. 8857.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. MCKINLEY:

H.R. 8858.

Congress has the power to enact this legislation pursuant to the following:

Section 8—Powers of Congress. To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mrs. MILLER:

H.R. 8859.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. PAPPAS:

H.R. 8860.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the United States Constitution states that ''Congress shall have the authority to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. RICE of South Carolina:

H.R. 8861.

Congress has the power to enact this legislation pursuant to the following:

Section 8 of Article I of the Constitution

By Ms. SPANBERGER:

H.R. 8862.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. constitution

By Mr. STEWART:

H.R. 8863.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 18

By Mr. STEWART:

H.R. 8864.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 8; Article IV, Section 3; and Article X

By Mr. STEWART:

H.R. 8865.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. STEWART:

H.R. 8866.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Ms. TITUS:

H.R. 8867.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

By Mr. TRONE:

H.R. 8868.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States.

By Ms. WILD:

H.R. 8869.

Congress has the power to enact this legislation pursuant to the following:

Article I Section VIII

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 302: Miss RICE of New York.

H.R. 754: Miss RICE of New York.

H.R. 947: Miss RICE of New York.

H.R. 1348: Ms. CASTOR of Florida.

H.R. 1407: Ms. ESHOO, Ms. UNDERWOOD, and Mr. SCALISE.

H.R. 1694: Ms. BARRAGÁN.

H.R. 2767: Mr. CRIST, Mrs. NAPOLITANO, Mr. NEGUSE, Mr. DANNY K. DAVIS of Illinois, Mr. ALLRED, and Mrs. FLETCHER.

H.R. 2846: Ms. WEXTON.

H.R. 3165: Ms. PINGREE.

H.R. 3571: Mr. CASE.

H.R. 3711: Mrs. FLETCHER and Mr. MCNERNEY.

H.R. 3874: Mr. PHILLIPS.

H.R. 4022: Ms. JUDY CHU of California.

H.R. 4386: Mr. POCAN.

H.R. 4997: Ms. WEXTON.

H.R. 5002: Mr. GIBBS, Mr. STEUBE, Mr. NEGUSE, and Mrs. BEATTY.

H.R. 5141: Mr. NEAL.

H.R. 5164: Mr. POCAN.

H.R. 5267: Mr. VELA.

H.R. 5534: Ms. DELBENE.

H.R. 5535: Mr. RESCHENTHALER.

H.R. 5907: Ms. GARCIA of Texas.

H.R. 6143: Mrs. FLETCHER.

H.R. 6197: Ms. ADAMS.

H.R. 6364: Mr. DEFAZIO and Mr. KHANNA.

H.R. 6698: Mr. CARTWRIGHT.

H.R. 6754: Mr. PAPPAS and Mrs. DAVIS of California.

H.R. 6821: Mr. SMUCKER, Mrs. WAGNER, Mr. KUSTOFF of Tennessee, Mr. UPTON, and Mr. VAN DREW.

H.R. 6958: Mr. COLE, Mrs. LURIA, Mr. WELCH, Mr. SIRES, Mr. HASTINGS, Mr. COSTA, Ms. DEAN, Mr. VARGAS, Mr. COHEN, and Mr. CLEAVER.

H.R. 7222: Mr. SUOZZI.
H.R. 7227: Mr. GRIJALVA.
H.R. 7255: Ms. BLUNT ROCHESTER.
H.R. 7361: Mr. BURGESS.
H.R. 7406: Mr. ALLEN.
H.R. 7419: Ms. LEE of California.
H.R. 7755: Ms. DEAN.
H.R. 7806: Mrs. BROOKS of Indiana and Mr. GALLAGHER.
H.R. 7816: Mr. CARTWRIGHT.
H.R. 7826: Mr. LOWENTHAL, Mr. SMUCKER, Mr. POCAN, Mr. EVANS, Ms. MUCARSEL-POWELL, Ms. LEE of California, Ms. BONAMICI, Mr. SUOZZI, Mr. VARGAS, Mrs. DAVIS of California, Ms. KUSTER of New Hampshire, and Ms. LOFGREN.
H.R. 7838: Mr. GOHMERT.
H.R. 7843: Mr. CARBAJAL.
H.R. 7887: Mr. SIRES.
H.R. 7940: Mr. LYNCH.
H.R. 8027: Mrs. CAROLYN B. MALONEY of New York.
H.R. 8072: Mr. GUEST and Mr. LUETKEMEYER.
H.R. 8143: Mr. SWALWELL of California.
H.R. 8282: Mr. RICE of South Carolina.
H.R. 8368: Mr. WENSTRUP.
H.R. 8420: Mr. KILMER.
H.R. 8484: Mr. NEGUSE.
H.R. 8485: Ms. NORTON.
H.R. 8544: Mr. VEASEY.
H.R. 8550: Mr. GRIJALVA.
H.R. 8598: Ms. HOULAHAN.
H.R. 8632: Ms. LOFGREN.
H.R. 8639: Ms. PINGREE.
H.R. 8662: Ms. MATSUI, Mr. MEUSER, Mr. KELLER, and Mr. AGUILAR.
H.R. 8667: Mr. GRIJALVA and Mr. KHANNA.
H.R. 8701: Mr. RUTHERFORD.
H.R. 8702: Mr. HAGEDORN, Mr. THOMPSON of California, Mr. KUSTOFF of Tennessee, Mr. STIVERS, Mr. BACON, Ms. BARRAGÁN, and Mr. GUEST.
H.R. 8727: Mr. GRIFFITH, Mr. PENCE, Mrs. LESKO, Mr. COSTA, and Mr. KILMER.
H.R. 8731: Mr. HUFFMAN.
H.R. 8772: Ms. ESCOBAR.
H.R. 8788: Mr. TIFFANY.
H.R. 8793: Ms. JAYAPAL.
H.R. 8817: Mr. FITZPATRICK.
H.R. 8818: Ms. NORTON.
H.J. Res. 104: Ms. BASS.
H. Con. Res. 27: Mr. SEAN PATRICK MALONEY of New York.
H. Con. Res. 71: Mr. CARSON of Indiana.
H. Res. 114: Mr. KING of Iowa.
H. Res. 174: Mr. MAST.
H. Res. 1165: Mr. LAMB and Mr. HIGGINS of New York.
H. Res. 1178: Mr. GOMEZ.
H. Res. 1191: Mr. VARGAS.
H. Res. 1234: Mr. LOWENTHAL, Mr. CICILLINE, Ms. MCCOLLUM, Mr. ESPAILLAT, Mr. HIGGINS of New York, Mr. BLUMENAUER, Mr. CARBAJAL, and Mr. CRIST.
H. Res. 1246: Mr. SCHWEIKERT.

NOTICE

For conference report and statement, see proceedings of the House of December 3, 2020, published in Book II.

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PROCEEDINGS AND DEBATES OF THE 116th CONGRESS, SECOND SESSION

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Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Holy God, who desires us to prosper and experience health, give our Nation such a harvest of righteousness that our land will be filled with peace, quietness, and unity. Use our lawmakers to enable our citizens to live in safety, confidence, and peace.

As our Senators seek to serve You and country, give them the wisdom and courage to bring harmony from discord. Lord, be merciful to them as they wait with eager expectancy for Your guidance.

May they honor the promises they make, living lives that reflect the integrity of Your Kingdom.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mr. DAINES). The Senator from Iowa.

Mr. GRASSLEY. Mr. President, I ask unanimous consent to speak for 1 minute in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

GIVING TUESDAY

Mr. GRASSLEY. Mr. President, the Tuesday after Thanksgiving has been known as Giving Tuesday. I suppose this Giving Tuesday is receiving more attention than usual because of the virus pandemic that we have been in for the last 12 months. Like many sectors, the nonprofit industry is hurting because of COVID–19.

As part of the CARES Act passed last March, Congress enacted key provisions encouraging charitable giving to help support organizations that are being called upon more than ever to help Americans because of the virus pandemic. These charitable giving provisions that are in the CARES Act apply both to individuals who itemize their taxes and those who do not itemize.

Iowa is blessed to have an extensive network of charitable organizations that are supported by incredible volunteers who open up their pocketbooks to support their neighbors in need. This fall, Senator ERNST and I heard from at least 20 nonprofits in the Cedar Rapids area about the challenges that they face because of the pandemic and natural disasters, and also we heard of the successes they have had this year.

The work that Iowa nonprofits do is inspiring and has tremendous impact. In this season of Thanksgiving, I speak on behalf of my own State to thank these organizations, their employees, and volunteers for the hard work and services that they deliver every day of the year to Iowans in need.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

CORONAVIRUS

Mr. MCCONNELL. Mr. President, anyone who has heard me speak about coronavirus relief going back months has heard one central principle: Let's deliver right away on all the subjects where everybody agrees and argue over the rest later. The solution to this impasse has been in plain sight for a long time now for anybody willing to see it: Agree where we agree, bank that progress, make law, take a whole lot of pressure off struggling people, and then keep debating the areas where we don't agree.

There is no actual reason why the fates of commonsense policies like a second round of the job-saving Paycheck Protection Program had to be linked to the fates of fringe proposals like stimulus checks for illegal immigrants. There is no reason why the fate of funding for vaccine distribution or extending unemployment aid or legal certainties for universities should have been tied to radical ideas like paying people more not to work than essential workers earn on the job.

These linkages have been totally arbitrary, just a political decision that Democratic leaders made many months back. Democratic leaders have tried to create a narrative where it is taken for granted that the most bipartisan, commonsensical relief policies would live or die with their side's most outlandish ideas. Well, that just isn't so.

They have tried to create a dynamic where they move from one made-up number to a second slightly smaller arbitrary number and call it a meaningful concession. The truth is simple. This has always been about policy differences. We have two sides with two different visions for the best way to support our Nation through what we hope will be the last chapter of the pandemic.

That isn't new. We have disagreements all the time. Our system can handle disagreements, but both sides have to be willing to compile their

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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commonalities and make law here, and, up to now, our Democratic colleagues have declined to do that.

Remember, their side said in March this pandemic was ''a tremendous opportunity to restructure things to fit our vision.'' So when Republicans tried to pass commonsense relief measures in July, in September, and in October, as well, our Democratic colleagues actually blocked policies they do not even oppose.

It has been heartening to see a few hopeful signs in the past few days. After months of arbitrary attachment to sky-high dollar amounts that the Speaker of the House claimed were essential—that it would be an insult to settle for a nickel less—those baseless claims have suddenly evaporated.

That is at least movement in the right direction, but the underlying reality is still with us. There are many important policies that have strong bipartisan support. There are many others that do not, and the way to help the country is for our Democratic colleagues to finally let the former group be signed into law while we keep arguing over the rest.

The targeted second round of paycheck protection that we have been trying to establish since July would help a huge number of small businesses survive to the finish line and help huge numbers of workers to keep their jobs. And it can pass the Senate today, probably with 95 votes.

With the apparent success of Operation Warp Speed, it makes no sense to skimp on the systems to distribute and deliver vaccines around the country. Those funds could pass the Senate today, possibly unanimously.

University presidents have made it clear they need certainty for their reopenings. Let me say that again. University presidents have made it clear they need legal certainty for their reopenings. That shouldn't be partisan. Liability protections should be able to pass the Senate today.

A number of our Democratic colleagues have focused especially on several of the unemployment relief programs that are set to expire in a matter of days. I specifically made sure to include those programs in my framework a few days ago. That extension could pass the Senate today.

The House of Representatives is spending this week on pressing issues like marijuana—marijuana—you know, serious and important legislation befitting this national crisis. But here in the Senate, I put forward a serious and highly targeted relief proposal including the elements which we know the President is ready and willing to sign into law. Why should these impactful and noncontroversial life preservers be delayed one second longer?

At long last, let's do what Congress does when we want an outcome. Let's make law on all the subjects where we agree and on all the areas where President Trump is ready to sign bipartisan relief into law.

I promise, our deep differences will still be here to debate. Our disagreements will be right where we left them. But do you know what can't wait? What can't wait are American workers, American small businesses, K–12 schools, the vulnerable Americans and frontline healthcare workers for whom speedy vaccine distribution will literally be a life-or-death matter.

Yesterday, my home State of Kentucky experienced yet another dreadful—dreadful—record-setting day. But Kentuckians also know that hope is in sight. Our State's workers are standing by at the UPS Worldport in Louisville and the DHL Express American Hub in northern Kentucky, key logistics centers that will play crucial roles in sending vaccines all around the country.

Our people are hurting, but they are ready to finish this fight. Congress should not keep them waiting for reinforcements that should have arrived literally months ago.

So compromise is within reach. We know where we agree. We can do this. Let me say it again. We can do this, and we need to do this. So let's be about actually making a law.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER (Mr. BARRASSO). Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Christopher Waller, of Minnesota, to be a Member of the Board of Governors of the Federal Reserve System for a term of fourteen years from February 1, 2016.

Mr. MCCONNELL. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NATIONAL DEFENSE AUTHORIZATION ACT

Mr. THUNE. Mr. President, I was pleased that the Senate unanimously agreed yesterday to proceed to conference on the 2021 National Defense Authorization Act.

The NDAA is one of the most important pieces of legislation that we pass here every year. It is the bill that authorizes funding for our troops and lays out our defense priorities.

Like the last two NDAAs, this year's bill focuses on restoring military readiness and ensuring that our Nation is prepared to meet threats posed by major powers like Russia and China.

In November of 2018, the bipartisan National Defense Strategy Commission released a report warning that our readiness had eroded to the point that we might struggle to win a war against a major power like Russia or China, and the Commission noted that we would be especially vulnerable if we were ever called on to fight a war on two fronts.

Over the past 2 years, we have made real progress on restoring military readiness, but we still have more work to do.

This year's National Defense Authorization Act continues our investment in ensuring that our military is prepared to meet current and future threats in any domain.

Of course, no matter what weapons or tanks or planes we have, our greatest military resource will always be our men and women in uniform, and this year's NDAA invests in improving the quality of life for our military members and their families. The bill supports a 3-percent pay raise for our troops, and it builds on previous measures to improve military healthcare and housing. It will also provide support for our military families in areas like childcare and professional development for military spouses.

As I said, this bill is one of the most important measures that we pass every year, and we need to make sure that we pass the final version of this legislation before Christmas. Failing to pass this legislation would send the wrong message to our troops and our allies and to our adversaries.

While this may not be a perfect bill, it contains a lot of important provisions to rebuild our military and to give our men and women in uniform the tools they need to defend our Nation. We need to pass it as soon as possible.

TRIBUTE TO MICHAEL ENZI

Mr. President, yesterday afternoon, MIKE ENZI delivered his farewell address. While MIKE has more than earned his retirement over a long and dedicated career in Washington and in Wyoming, we are going to miss him here in the U.S. Senate.

MIKE is an accountant and spent years as a small business man, and he brought that background and common sense to Washington, DC, with him.

In many ways, he has been the conscience of the Senate on spending issues, reminding us that we don't have an unlimited amount of money to spend and that every dollar we add to the debt is a burden that will have to be met by our children and grandchildren.

As chairman of the Budget Committee, he has passed budgets with an eye to restraining spending and lessening the burden we place on future generations. His 2018 budget also paved the way for the landmark Tax Cuts and Jobs Act, which reformed America's outdated Tax Code, helped create jobs and opportunities for workers, and put more money in the pockets of American families.

MIKE is an outstanding legislator, and he is also one of the finest human beings you will ever meet. I think all of us have benefited from his thoughtfulness at one time or another. I remember when I was experiencing heel pain a few years ago with an ailment called plantar fasciitis, and I mentioned it to MIKE because he was a shoe salesman and a shoe store owner. It wasn't more than a few days later when MIKE came to me with some heel inserts to put into my shoes, which, I might add, helped a lot. Obviously, he had a lot of experience through the years dealing with people with foot issues. But it was typical of MIKE ENZI—thoughtful and practical, down-to-earth.

In business, as everyone knows, the customer comes first, and MIKE has brought that attitude to his 24 years here in the U.S. Senate. As a shoe salesman, he put his customers first, and as a Senator, he always put his constituents and the American people first. He has never forgotten how to help people. He has never forgotten where he comes from. He has worked hard every day that he has been here in the Senate to make life better for the people of Wyoming and for American citizens.

He is an outstanding colleague and a friend, and I will miss his wisdom and expertise—and his great fishing stories.

MIKE, I wish you the very best of everything in your retirement. I am glad you will have more time to spend with Diana and the kids and grandkids and more time to enjoy your beloved home State of Wyoming. While no State will ever compare to South Dakota in my book, I have to say that Wyoming is spectacularly beautiful, and I am glad you will be able to be there now on more of a full-time basis. But you will be missed here. I want to thank you for your service and your friendship. May God bless you and your family in your retirement.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the floor.

The senior assistant legislative clerk proceeded to call the roll.

Ms. CORTEZ MASTO. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

CORONAVIRUS

Ms. CORTEZ MASTO. Mr. President, I rise today to talk a little bit about what is happening in Nevada. Last week, I had the opportunity to be home, and I went to one of our mobile food banks in East Las Vegas just before Thanksgiving. The mobile food bank is one of our food pantries throughout the State of Nevada, and this particular one is run by Three Square. I arrived around 8 a.m. in the morning to a line of cars waiting at the site. That line sometimes gets so long, police have to direct traffic around it. Literally, they lined up at 3 a.m. The food pantry doesn't even open until 7 or 8 in the morning, but they were there at 3 a.m., around the block, in their cars to stay safe from the COVID–19 pandemic. There were over 350 of them throughout that morning. That is not unusual with what is happening in Nevada right now. That is not unusual, and it should be, but because this pandemic has hit Nevada and so many States so hard, we are seeing the consequences of inaction by this body in the Senate.

As I got there that morning, I imagined those people in the middle of the night with their lights and power off in their cars to save fuel in the cold desert night. And they waited patiently. They were quiet because they knew assistance would be there when morning came. And sometimes that food runs out for those many people who are waiting, and then they have to come the next day. But because of the inaction in this Chamber, most Nevadans who are hurting don't have that reassurance that there will be immediate, swift relief for them because they don't know when Federal help will come. Lifeline organizations like Three Square, which are working tirelessly to help families fill the gaps, are running out of resources.

It has been 223 days since the Senate last approved funds to help all Americans endure this once-in-a-lifetime catastrophe. Meanwhile, too many people in Nevada are languishing in the dark, hoping for economic assistance that still hasn't arrived.

In Nevada, we continue to have the second highest unemployment rate in the country at 12 percent. That is almost twice the national rate. Unemployment is so high in Nevada because of the coronavirus pandemic. It has stopped conventions, entertainment, hospitality, and travel operations in the Silver State and across the country. In August, in Nevada, employment in travel and tourism was down 25 percent over last year. Nationwide, spending on travel has declined by 42 percent compared to 2019. As a result, there are 60 percent fewer travelers to McCarran International Airport in Las Vegas and 50 percent fewer travelers to Las Vegas itself. The American Hotel and Lodging Association estimates that without more funding, nearly 70 percent of hotels may close by the end of this year.

Because of the devastation to what had been a thriving hospitality industry in Nevada, many of the jobs aren't there right now, and too many workers in Nevada can't pay their bills. More than 175,000 people in the Silver State continue to claim unemployment insurance. People without jobs are struggling right now to pay rent or mortgages or healthcare.

Let me tell you, housing assistance from the CARES Act helped tens of thousands of Nevadans and millions of Americans keep a roof over their heads. That was legislation we passed immediately in a bipartisan way—one of four. But those funds have run out. They are gone, and they need to be replaced. When the limited CDC eviction moratorium expires on January 1, Nevada is bracing for 250,000 to 400,000 possible evictions. That is more than 20 times the national number of evictions in 2019.

Families and seniors can't get enough to eat. In August and September, 234,000 Nevadans said their households were experiencing food insecurity. That is 11 percent of Nevada households going hungry—the second largest share in the country. One hundred and twenty-nine thousand said that the children in their homes didn't have enough food.

The longer we delay passing additional economic relief, the more jeopardy we create for our entire economy, nationwide. Don't take my word for it; just listen to Chairman Powell of the Federal Reserve, who has been saying this over and over again—most recently in a hearing in the Banking Committee, which I am a member of.

The Senate must do more to help people not just in my home State but across the country, especially now, as case counts are climbing. We are only months away from being able to give the population at large immunity to this deadly virus. We have to do everything we can to help people get to that time, to ensure that for the coming months, Nevadans can stay in their homes, they can take care of their kids, they can keep their businesses running, knowing that they will have an opportunity to open them in the future, and they can protect themselves from this virus. The only way to do that is to get them the relief they need now.

That relief simply has to include more money for State, local, and Tribal governments, which have had to cut back on critical services in the middle of a pandemic.

It should include extended unemployment benefits and pandemic unemployment assistance, as well as more loans for our small businesses and for PPP.

It must have housing assistance to prevent a wave of homelessness and illness.

It should do more to protect workers, fund education, and stave off hunger for families.

It also needs to include billions that States have asked for to help with vaccine distribution. We are going to be rolling out millions of doses of vaccines, all of which will need to be stored, handled, and tracked across 50 States. Healthcare workers not just in Nevada but across the country will

need training to administer the vaccine, and the public needs education about vaccine safety and access.

We have witnessed an amazing feat of human ingenuity in developing a vaccine faster than we have ever done it before, but the Federal Government and this Chamber still haven't set money aside to make sure that vaccines get to those who need it.

It also has to include money for testing and tracing so that we can contain spread of this virus and get more people back to work.

Nobody should be standing in the way of a comprehensive, bipartisan relief package to help Americans hold out until they can get the vaccines we know are coming. They need relief now. That is why I support the bipartisan proposal that our colleagues in the Senate put together just recently.

That proposal, which they look at in a comprehensive way for all of our States, includes money for State, local, and Tribal governments. It includes additional unemployment insurance. It supports funding for small businesses, including the Paycheck Protection Program, EIDL disaster loans, restaurants, stages, and deductibility. What I mean by stages are the live events in the hospitality industry that have been so devastated and have not received any relief during the time we have appropriated funds to address the pandemic. It includes CDFI, community lender support. It includes transportation—our airlines, our airports, our buses, our transit, Amtrak—and our workers there. It includes vaccine development and distribution and testing and tracing. It includes money for healthcare provider relief. It includes money for education, for student loans, and, yes, housing assistance and rental assistance that is needed now. It also includes money for nutrition, for the food insecurity that I just talked about that I witnessed that morning in Las Vegas and that we hear about constantly, not just in Nevada but across this country. It includes money for childcare, for broadband, for the U.S. Postal Service—so many things.

It was well reasoned and compromised and thought out, and it was our colleagues coming together—Republicans and Democrats coming together—for the best interests of this country.

I will tell you, we do not need unanimous support for this proposal. What we need is a vote on the floor of the Senate. That is why I am asking MITCH MCCONNELL to allow this proposal to come to the floor of the Senate for a vote. If some of my colleagues don't want to support any more relief, then they don't have to vote for it. But I would guarantee and I would suspect that there are more than enough of my colleagues on both sides of aisle who want to pass relief for the many Americans across this country in our States who are suffering right now, but they have to be given the opportunity.

I get that right now, there is only one person who gets to decide what goes on the floor of the Senate. I don't agree with that, but that is the way the rules are set. MITCH MCCONNELL decides every single day what legislation comes to the floor of the Senate, what can be debated, what amendments can come. I have watched this for years as MITCH MCCONNELL, instead of including the Democrats in bipartisan negotiation on some of these important bills, puts them together behind closed doors, with only Republicans and maybe the current administration, and then puts them on the floor of the Senate for the first time; bypasses our committee hearings, where there is bipartisan support, usually, for bills; bypasses that and puts it on the floor of the Senate without any compromise, without any of the Democrats' involvement, and expects us to vote for it, and then holds the Democrats accountable—accountable—because we didn't have the opportunity to fight for our States and put important funding in there for State and local government, for broadband, for our healthcare workers, for our hospitality industry—you name it. That is not the way the Senate should be operating. You know that, and I know that.

We have to get back to a time when we compromise, when we all come representing our States. We all have equal votes. There are two of us from each State. We are fighting for our constituents and our States, and we should be able to have that debate, that conversation, on the floor of the Senate in a fair manner. That is why I ask MITCH MCCONNELL to allow a vote on this proposal.

I had the opportunity to watch one of my colleagues talk about this. I absolutely agree with him, Senator ANGUS KING. He said: I sit in these committees, in these bipartisan committees, and I vote for relief for disasters, hurricane disasters, fire disasters—fires in the Western States where I come from and where you know so well that the fires are devastating our Western States. But for the hurricanes that happen in Texas, Florida—you name it—I vote for relief because I know those constituents in those States are suffering. I don't look at them as blue States or red States. I look at them as Americans who are in need right now, and I am going to support that relief.

Why are we doing that with this coronavirus relief package? I do not understand. It is not what the American people expect of us. It is not what they want, and it is not what they deserve. I cannot stress this enough: It is time for the Senate to get back to work on behalf of the American public. That means that we are willing to compromise. That means we are willing to do what is right and what is needed in our communities because I can guarantee you, any one of us who goes home to our State—we are all suffering; we all see it. That is what the American people expect of us.

I hope MITCH MCCONNELL allows a vote on the floor for this bipartisan compromise that the Senators have worked on.

I yield the floor.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER (Mr. BRAUN). The Democratic leader is recognized.

CORONAVIRUS

Mr. SCHUMER. Mr. President, first, let me thank my colleague and friend, the senior Senator from the great State of Nevada, for her words. They are on point. I hope the Republican leader was listening. I hope our Republican colleagues were listening because her genuine concern for her State, which is suffering just like mine is—both States depend on entertainment and tourism. It is real. We all want to get something done, and we are all willing to give to get something done, but the Republican leader holds the key, and we hope he is open to compromise. I will have more to say on that in a minute, but I thank her for her comments.

We all know how desperate things are. Yesterday, we were leveled by some of the grimmest statistics of the pandemic. More than 100,000 Americans were hospitalized; more than 2,700 Americans died, the highest recorded number in a single day since the pandemic began; more than 274,000 Americans have died in total. That is the equivalent of a 9/11 attack every day for 92 days in a row.

Unlike the spring, when the rates of infections and fatalities peaked before steadily declining, the winter months and the hangover from Thanksgiving travel will likely cause these rates to get worse before they get better.

The steady yet staggering loss of American life is horrific. And because so many of us are isolated, because so many have contracted the disease and have experienced relatively mild symptoms and recovered quickly—thank God—there is a sense that things are not as bad as they seem. But the raw accounting is unavoidable, and it is harrowing. The loss of our friends, our parents, our neighbors, our siblings, our colleagues must be acknowledged and mourned and must inspire us to redouble our efforts to defeat this evil disease.

As COVID–19 races through much of the country, the economic fallout of the pandemic also broadens. Many family budgets and small businesses are at their breaking point.

Economists are now warning that the U.S. economy could fall into double-dip recession without additional relief from Congress. Let me say that again. We could have a double-dip recession unless there is relief—good, strong relief from Congress. That is why Democrats have been so desperately trying to convince our Republican colleagues and the Republican leader, in particular, to work with us in a bipartisan fashion on another round of emergency Federal relief.

Speaker PELOSI and I made a new offer to Leader MCCONNELL and Leader

MCCARTHY on Monday in hopes of jump-starting serious negotiations. Leader MCCONNELL responded by circulating another version of a partisan, Republican-only draft.

In the spirit of compromise, Speaker PELOSI and I believe the bipartisan framework introduced by a group of eight Senators on Tuesday should be used as the basis, the framework, for immediate bipartisan, bicameral negotiations. Of course, we and others will offer improvements, but the need to act is urgent, and we believe that with good-faith negotiations, we could very well come to an agreement.

We are already much closer to an agreement because of the bipartisan talks these eight Senators have created, and we can build off their momentum.

What is the alternative—another round of legislative failure, a failure to help the American people? The Republican leader came to the floor this morning to say ''compromise is within reach''—his words—before reiterating a long list of Republican demands and blaming the Democrats for everything. Once again, the Republican leader argued that the Senate should pass only what Republicans approve of and leave the rest for later, and he now says that an emergency relief bill should be limited by only what President Trump will sign.

Of course, we could say, similarly, that the bill should be limited only by what a Democratic House will pass.

Neither is true compromise. The leader knows that. But for some reason, in the midst of this generational crisis, Republican Leader MCCONNELL does not seem inclined to compromise to actually get something done. But what he wants to do is posture, to put partisan bills on the floor and say: Take it or leave it.

The real answer here is to sit down and talk. Let's use the bipartisan framework developed by eight Senators from both sides as our starting point.

We have precious little time left before the end of the year. The country has some desperate needs. Unemployment remains too high. Laid-off workers need our assistance until the economy fully recovers. Small businesses need another round of support.

With the imminent availability of a vaccine, it is crucial that there be additional funding for manufacturing and distribution. The distribution efforts will be led by the States, which further increases the need to deliver assistance to State and local governments.

As we all take great hope and solace in the idea that a vaccine is just around the corner, we must make necessary preparations to ensure that we have enough doses; that it is distributed effectively, efficiently and fairly; and that Americans can access it affordably.

We can make a significant downpayment, right now, toward preparing the country for a vaccine with an emergency relief bill before the Christmas holiday.

I yield the floor.

The PRESIDING OFFICER. The Senator from Ohio.

TRIBUTE TO SENATORS LAMAR ALEXANDER, MIKE ENZI, PAT ROBERTS, AND CORY GARDNER

Mr. PORTMAN. Mr. President, I am on the floor today to pay tribute to friends and colleagues who will be leaving the Senate at the start of the new Congress.

I consider LAMAR ALEXANDER, who spoke yesterday, to be a friend and a mentor. He is an institution around here. He is what I would consider an old-school Senator in the best way. He not only takes the time to learn the issues, but he also understands how to explain the importance of the policies that we work on up here to the people back home. By embodying the principles of collegiality and bipartisanship, he has accomplished a lot for the people of Tennessee and all Americans.

In the Senate, you need 59 other Senators to say ''That is a good idea'' to get anything accomplished. It is critical, then, to get to know your colleagues, learn about how to work with them constructively to get things done. LAMAR ALEXANDER is masterful at that.

We have accomplished a lot under his leadership on a lot of important issues. In the interest of time, I will mention two recent examples where I worked with LAMAR and watched him make a difference in the lives of all Americans.

First, his 21st Century Cures Act, which passed back in 2016, provided needed authorization for investments in the National Institutes of Health and other research institutions to help create new breakthroughs in treatments and cures for cancer, Alzheimer's, and other diseases, as well as advancements in developing medical treatments tailored to each person's individual genome. It was groundbreaking work.

It probably got less notice, but it also authorized an unprecedented amount of funding in the State opioid response grants to combat opioid epidemics that have hit almost all of our States. Certainly, it has hit Ohio and Tennessee hard. This has served as an absolutely exceptional complement to what is called the Comprehensive Addiction and Recovery Act, which we passed earlier that year. Without the 21st Century Cures Act, we would not have made the progress we have achieved in the past few years in turning the tide of this deadly disease, and I have seen it firsthand in my State and around the country.

We also could not have accomplished the landmark Restore Our Parks Act without his help. This bill, now law, will help to rebuild our national park infrastructure by helping to address that backlog of $12 billion now in maintenance projects. Over 100,000 jobs will be created in the next 5 years due to this legislation.

LAMAR didn't care about getting the credit for this historic bill, by the way—probably the most important bill for conserving lands in 50 years. He just wanted to get it done. I saw that as he worked tirelessly in public and behind the scenes to ensure we got it across the finish line.

Jane and I have cherished our time together with you and Honey, LAMAR, and we hope that will continue.

Here in the Senate, we will miss your experience, your wisdom, your spirit of bipartisanship, and your perseverance and determination to advance our country's priorities and get things done.

Another colleague who has focused on results is Senator MIKE ENZI, a true son of Wyoming, who has represented his home State with class in this Chamber for nearly a quarter of a century. MIKE is someone I have gotten to know and respect over the past decade as we have served together here in the Senate.

In his time here on the Hill, MIKE has accomplished a lot for Wyoming. As chair of the HELP Committee, he helped lead the way on crucial pension reforms—complicated stuff but really important. He promoted greater access to education and affordable healthcare and pushed for improvements to workplace safety. He was always willing to reach across the aisle.

Over the past three Congresses, he has embraced his past life as an accountant and used his position as chair of the Senate Budget Committee to push for smarter spending here in Washington. That is a perspective we will really miss in this time of exploding deficits.

I have to say, I am a bit envious of MIKE's post-Senate career plans. As he tells me, he is going back to Wyoming to spend time with Diana and his wonderful family and to spend more time on the rivers of Wyoming with his fly rod.

MIKE, I hope sometime soon I will be able to come out to Gillette to join you and Diana so you can show me your favorite fishing spots. Congratulations on a well-deserved retirement.

We are saying goodbye to another giant of the Senate this year when Senator PAT ROBERTS leaves us. I saw Senator ROBERTS on the floor here a moment ago. I see him now.

I view PAT ROBERTS as the Matt Dillon of the United States Senate. Matt Dillon, for those of you who know who he was, was a resident of Dodge City, just like PAT, and like Marshal Dillon and the marine he is proud to be, PAT knows how to lay down the law. But he does it with humor and smiles and a wink, and he does it in a way with that dry Kansas sense of humor that is very effective. By the way, he is always looking for Miss Kitty.

He has used that combination of toughness and hard work and humor to accomplish a lot here in Congress. PAT's focus has always been on the people of Kansas. He has done a lot for the people of Kansas, but his work went far beyond Kansas.

It turns out he is the only person in America to have chaired the Agriculture Committee both in the House

and in the Senate. His tireless work to pass farm bills over those years to help growers and ranchers has made him a friend to farmers everywhere, even in Ohio.

Just as important was his work as chair of the Senate Intelligence Committee. Some may not recall this, but he is the one who spearheaded the reforms to our intelligence services after 9/11 to avoid another such tragedy.

PAT, I hope you and Franki get a well-deserved retirement, and I look forward to continuing to stay in touch.

We are also going to be losing a relatively young and energetic Member of our caucus here, who is also an accomplished bipartisan legislator, when CORY GARDNER leaves next year. With only a few short years in the Senate here, CORY has proven he knows how to get things done, using his background in the House and his friendships to be effective for Colorado and the country. He is a smart guy, and we have worked together on a lot of critical issues to address some of the biggest issues facing our country.

Like almost all Coloradans, he loves the outdoors. His work for conservation in the outdoors is something that I have had an opportunity to work with him on, including the historic Great American Outdoors Act, which was signed into law recently by the President. It includes the Restore Our Parks Act, but also a passion of his was the permanent funding for the Land and Water Conservation Fund, which has been a long-sought goal of the conservation and environmental community. Frankly, it could not have been done without CORY's involvement—period.

CORY, we are going to miss your sunny disposition.

He may be the most optimistic Member of the U.S. Senate. He always has a smile on his face. Even when things seem bad, he manages a way for them to look good.

I will miss working with you on some of these important projects. I wish you the very best as you start the next stage of your career.

We are also sad to see MARTHA MCSALLY go. I have appreciated getting to know her over the past couple of years. In a short period of time, she was a passionate advocate for Arizona as a member of the Armed Services Committee. She used her own trailblazing path as the first female fighter pilot to have flown in combat to advocate for our men and women in uniform. We worked together on bipartisan legislation, as an example, to end cosmetics animal testing. She was involved in a lot of different issues.

We want to thank you for all you have done in the Chamber, and I look forward to staying in touch.

Senator TOM UDALL has joined us here in the Chamber. I call Senator UDALL ''Cousin'' because of his cousin Mark Udall and our friendship. TOM UDALL has now served for 12 years in the U.S. Senate for the people of New Mexico. I have gotten to know him over that time through our work together on a number of different legislative projects. Most have been around conservation and the environment. We have had a lot of success in that regard.

We have been cochairs together of what is called the International Conservation Caucus. There is legislation called the Tropical Forest Conservation Act, which we have been able to work together on to get reauthorized. This has been incredibly important legislation. Probably the No. 3 or 4 source of CO_2 emissions in the world is the burning forest, and this has managed to save many millions of acres from the burning by simply saying to these countries: We will do a debt-for-nature swap with you. If you owe a debt to the United States—which, by the way, many are unlikely to ever pay anyway—we will let you use that in exchange for protecting your forest.

It has been remarkably successful. At a time when we seem to have a lot of partisanship and fights around here about global warming and climate change, this is one area in which we have been able to find common ground, and that is because TOM has been willing to step up and be a great partner in that.

He has also helped me pass legislation that requires that the U.S. Postal Service use its inventory of the Save Vanishing Species stamps to help protect the rich wildlife and natural resources that we have and protect endangered species. This has resulted in $5 million to $6 million a year going toward that effort. Unfortunately, we have had to convince the Postal Service to continue allowing that great source of funding to be there for our vanishing species. Again, TOM has been very helpful in that.

Even in these past months, we haven't stopped our work on environmental issues. Earlier this year, we introduced the bipartisan REPLANT Act to help the U.S. Forest Service address the growing reforestation backlog across our country. This is supported by the Trump administration. It is also supported by TOM UDALL. Therefore, we are hoping it can get done.

He leaves the Senate with a legacy of tirelessly working to protect the natural beauty of his State and our country for future generations, and we wish him well in the future as he and Jill continue to work on those issues together.

Finally, our colleague DOUG JONES is going to be departing after serving the people of Alabama for the past couple of years. I have gotten to know DOUG through our bipartisan efforts that have focused on standing up to unfair trade practices. Our Trade Security Act to reform section 232, I think, is the right approach to be sure we hold those accountable who violate our trade laws but to also do it in a way that protects American jobs and strengthens our U.S. economy. I will miss DOUG as a bipartisan partner in that effort, and I appreciate his working with us on those trade issues and other things.

The Senate is a body that is really driven by personal relationships between 100 Members. Senators ALEXANDER, ENZI, ROBERTS, GARDNER, MCSALLY, UDALL, and JONES have been key and valuable Members of that 100-person group, and we are going to miss them. They have all served this body well as legislators and as people. They are of high character. They are the kind of folks with whom you want to work, and they have been effective because of that. They will be missed, and I wish them all well.

I yield the floor.

The PRESIDING OFFICER. The Senator from Colorado.

Mr. GARDNER. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. GARDNER. Mr. President I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

VOTE ON WALLER NOMINATION

Under the previous order, all postcloture time has expired.

The question is, Will the Senate advise and consent to the Waller nomination?

Mr. GARDNER. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM), the Senator from Georgia (Mrs. LOEFFLER), and the Senator from Georgia (Mr. PERDUE).

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS) and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER (Mrs. FISCHER). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 48, nays 47, as follows:

[Rollcall Vote No. 251 Ex.]

YEAS—48

Alexander	Enzi	Portman
Barrasso	Ernst	Risch
Blackburn	Fischer	Roberts
Blunt	Gardner	Romney
Boozman	Grassley	Rounds
Braun	Hawley	Rubio
Burr	Hoeven	Sasse
Capito	Hyde-Smith	Scott (FL)
Cassidy	Inhofe	Scott (SC)
Collins	Johnson	Shelby
Cornyn	Kennedy	Sullivan
Cotton	Lankford	Thune
Cramer	Lee	Tillis
Crapo	McConnell	Toomey
Cruz	Moran	Wicker
Daines	Murkowski	Young

NAYS—47

Baldwin	Heinrich	Reed
Bennet	Hirono	Rosen
Blumenthal	Jones	Schatz
Booker	Kaine	Schumer
Brown	Kelly	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Leahy	Stabenow
Casey	Manchin	Tester
Coons	Markey	Udall
Cortez Masto	Menendez	Van Hollen
Duckworth	Merkley	Warner
Durbin	Murphy	Warren
Feinstein	Murray	Whitehouse
Gillibrand	Paul	Wyden
Hassan	Peters	

NOT VOTING—5

Graham	Loeffler	Sanders
Harris	Perdue	

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

Mr. THUNE. Madam President, I ask unanimous consent that the mandatory quorum call be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Liam P. Hardy, of Virginia, to be a Judge of the United States Court of Appeals for the Armed Forces for the term of fifteen years to expire on the date prescribed by law.

Mitch McConnell, Shelley Moore Capito, John Hoeven, Roger F. Wicker, Cindy Hyde-Smith, Joni Ernst, Roy Blunt, Todd Young, Mike Rounds, Thom Tillis, John Cornyn, Michael B. Enzi, Lindsey Graham, Tim Scott, Mike Crapo, James E. Risch, James Lankford.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Liam P. Hardy, of Virginia, to be a Judge of the United States Court of Appeals for the Armed Forces for the term of fifteen years to expire on the date prescribed by law, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM), the Senator from Georgia (Mrs. LEOFFLER), and the Senator from Georgia (Mr. PERDUE).

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS) and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 61, nays 34, as follows:

[Rollcall Vote No. 252 Ex.]

YEAS—61

Alexander	Gardner	Reed
Barrasso	Grassley	Risch
Blackburn	Hassan	Roberts
Blunt	Hawley	Romney
Boozman	Hoeven	Rounds
Braun	Hyde-Smith	Rubio
Burr	Inhofe	Sasse
Capito	Johnson	Scott (FL)
Cardin	Jones	Scott (SC)
Carper	Kelly	Shaheen
Cassidy	Kennedy	Shelby
Collins	King	Sinema
Cornyn	Lankford	Sullivan
Cotton	Lee	Tester
Cramer	Manchin	Thune
Crapo	McConnell	Tillis
Cruz	Moran	Toomey
Daines	Murkowski	Wicker
Enzi	Murphy	Young
Ernst	Paul	
Fischer	Portman	

NAYS—34

Baldwin	Gillibrand	Schatz
Bennet	Heinrich	Schumer
Blumenthal	Hirono	Smith
Booker	Kaine	Stabenow
Brown	Klobuchar	Udall
Cantwell	Leahy	Van Hollen
Casey	Markey	Warner
Coons	Menendez	Warren
Cortez Masto	Merkley	Whitehouse
Duckworth	Murray	Wyden
Durbin	Peters	
Feinstein	Rosen	

NOT VOTING—5

Graham	Loeffler	Sanders
Harris	Perdue	

The PRESIDING OFFICER. On this vote, the yeas are 61, the nays are 34.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Liam P. Hardy, of Virginia, to be a Judge of the United States Court of Appeals for the Armed Forces for the term of fifteen years to expire on the date prescribed by law.

The PRESIDING OFFICER (Mr. YOUNG). The Senator from Maryland.

UNANIMOUS CONSENT REQUEST—S. 4810

Mr. VAN HOLLEN. Mr. President, I am on the floor today to discuss a question of fundamental fairness to members of our Armed Forces and to Federal employees.

I think we all may recall a few months ago when President Trump ordered the Department of the Treasury to establish a system to push businesses, companies, and employers around the country to defer the collection of employees' payroll taxes. Those are the taxes that go to Social Security and Medicare. The key word here is ''defer'' because this is really a shell game.

Any moneys that businesses do not pay into Social Security and Medicare now are going to have to be paid by those Federal employees right after the holidays, starting in January.

And many employees around the country were at first confused. They thought they were getting a payroll tax holiday, but that is not the case.

The reality is, whatever they didn't pay in the form of payroll taxes now and in the past couple months they would be required to pay back right after those holidays.

And when businesses looked at this and when workers and employees around the country looked at this, they overwhelmingly rejected it. They said they didn't want to participate.

Here is what UPS said about this proposal: ''We recognize that for some, it may have been helpful to have more money in their paychecks in 2020, yet not all employees have professional tax planning needed to prepare effectively for the added obligation they would face in 2021.''

So even though this payroll tax deferral proposal got a burst of attention, it turned out to be meaningless for most workers around the country. Most private sector employers didn't participate, and their employees and workers didn't want them to participate.

Unfortunately, the one big exception to this has been members of our Armed Forces, the folks who every day stand guard to protect our country, and Federal employees who do the Nation's business with respect to important services they provide.

And as the private sector has rejected this, we have heard from thousands of Federal employees who say: We don't want to participate either. We have heard from members of the Armed Forces that say: We don't want to be used as guinea pigs and be required to participate.

So I want to be really clear that if we don't correct this, the damage will continue to be done, and these members of our Armed Forces and Federal employees will be forced to pay even more back after the holidays.

Now, I wrote to Treasury Secretary Mnuchin and to OMB Director Vought about this back in September, September 8, just as the deferral was starting, and we were joined in that letter by 22 Senators—Senators from both sides of the aisle. We had a simple bipartisan request. It was: Make this payroll tax deferral optional, make it voluntary. If Federal employees and members of our Armed Forces want to participate in this proposal, fine. Let them do it, but don't force, don't require, don't coerce members of our military and Federal employees to participate.

And we didn't get a response to that letter to Secretary Mnuchin and CBO Director Vought. So I asked Secretary Mnuchin about this issue at a Senate Banking Committee hearing on September 24. I said: Mr. Secretary, why shouldn't we make this voluntary? Why should you require members of our Armed Forces and Federal employees to participate in the program if they don't want to? And his response was: Yeah, it would be ''reasonable'' for

the payroll tax to be voluntary ''if people don't want to participate. Sounds like common sense.''

Well, we expected some followup from the Secretary of Treasury. Nothing. So we sent a followup letter—again, a bipartisan letter. Nothing.

So now it is December, and the Trump administration is still forcing members of our Armed Forces and Federal employees who don't want to participate in this now-forced deferral program—they want to continue to force them to do it. So we introduced a bipartisan piece of legislation called the Protecting Employees from Surprise Taxes Act. It is pretty straightforward. It says: If a Federal employee or member of the armed services wants to participate, let them participate. If they want to opt out, let them opt out of it.

I want to stress that the Federal workers we have heard from and the organizations and unions that represent Federal workers strongly support this measure. And why not? It is hard to argue that we shouldn't let the folks who are standing guard to protect us make a choice about whether they want to participate in this program.

Also, just to remind our colleagues—maybe they haven't kept track of this—the Senate chose not to participate. The Senate chose not to participate in this program, whether on a mandatory or a voluntary basis. The House of Representatives chose not to participate in this program.

So it is going to be interesting to hear the Senators say that they want to require members of our Armed Forces and Federal employees to enroll in a program that this Senate decided was not good for members of the Senate staff and the House of Representatives decided was not good for House staff.

Yet, if we don't support this proposal, this is simply passing the bipartisan legislation I mentioned to give our members of the Armed Forces and Federal employees that choice. If we don't pass this, we are going to require them to continue to participate in a program they don't like.

So, Mr. President, as if in legislative session, I ask unanimous consent that the Finance Committee be discharged from further consideration of S. 4810 and the Senate proceed to its immediate consideration. I further ask that the bill be read a third time and passed and the motion to reconsider be made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from Montana.

Mr. DAINES. Mr. President, reserving the right to object, I am here to express support for this payroll tax holiday, and I think Congress should do much better than that, and that is to come together and forgive these taxes, period.

In fact, back in March, I pushed for Congress to include a payroll tax cut in the CARES Act, and I still support that today because the payroll tax cut is about supporting workers who might have had their hours reduced.

These are workers who are living paycheck to paycheck, workers across our country who are struggling to make ends meet because of the impact of COVID–19 on our economy.

Allowing folks to keep more of their hard-earned money could make a big difference. It would provide immediate support—immediate support—for Montana's families who are struggling to get by. And, importantly, we ensure that this will have no impact—zero impact—on Social Security because we transfer money from the general fund to the Treasury.

This is not a new concept. It has been done by Congress. In fact, it was done under the Obama administration. As an example, a Montanan who earns an annual salary of about $40,000 typically pays about $2,500 in payroll taxes every year. Forgiving the taxes deferred during this 4-month payroll tax deferral would save that Montanan about $827.

What we should be doing is working together to pass a COVID relief package that delivers much needed aid for families who have had a tough go the last several months. And it is going to get tougher going forward, not only for these families but workers and small businesses.

Instead, my colleagues across the aisle have continued to block very targeted relief, several times, right here on the floor of the U.S. Senate, which is holding Montanans and the American people hostage. We should come together and agree on this targeted relief. We can continue to disagree on these other items, but let's get this targeted relief package passed.

So instead of coming to the floor today to try to pass a bill that undermines a payroll tax holiday to save folks more of their hard-earned money, I urge my colleague here before us to work with Members of his caucus and get the COVID–19 relief passed.

Once again, we should be forgiving these taxes as a payroll tax holiday, not unlike what happened during the Obama administration, and for these reasons, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator for Maryland.

Mr. VAN HOLLEN. Mr. President, just to respond to the Senator from Montana, I think he well knows that it has been over 6 months since the House of Representatives passed the first Heroes Act with comprehensive COVID–19 relief. They have also passed an updated ''Heroes 2 Act,'' but we never even had a vote here in the U.S. Senate on that provision. We have been blocked from having that vote by the Republican leader.

I don't know where my colleague stands on the bipartisan framework that was just released. That is something that I can support and pursue, but listening to the Senate majority leader, he has been pouring cold water on it. And, by the way, the measure that the Senator from Montana mentioned that we should pass right now for coronavirus relief, that doesn't have a payroll tax holiday. It doesn't do what the Senator just said he wants to do. It doesn't say anything about that.

So if the Senator or others want to introduce legislation to have a payroll tax holiday for those who have been enrolled in this program for the last 4 months, go ahead. But why would you allow another day to pass requiring members of our Armed Forces who don't want to participate to participate to participate or requiring Federal employees who are out there providing public services to participate? That is all this does. This doesn't preclude anything the Senator talked about doing. All it does is to say: Right now, for those people who are calling who don't want to be enrolled in this program, let them out. Let them out.

And what the Senator from Montana is saying is: No, I want to continue to hold them hostage to pass a proposal that isn't even in the majority leader's own bill.

And that is what people get sick and tired about around this country.

So let's just pass this. This is a simple, straightforward bill. I welcome debate on the bipartisan proposal that has been put forward by a number of Republican Senators and a number of Democratic Senators, but don't try and mix this up into that larger debate. This is very simple. It just says to a member of the Army, the Navy or any of the services who doesn't want to be forced to participate in this right now that they don't have to. That is what this says, and by opposing this, you are saying that you want to prolong the requirement that they participate in a program that they don't want to be a part of.

The PRESIDING OFFICER. The Senator from Montana.

Mr. DAINES. Mr. President, I appreciate the Senator from Maryland raising these points. In regard to the proposal of the bill that was passed by NANCY PELOSI, the Speaker of House, the reason we didn't take a vote on that bill in the U.S. Senate is because it was full, basically, of her wish list of many items that didn't really relate to COVID–19 relief. We did put a targeted bill on the floor of the U.S. Senate in the amount of $600 billion that, frankly, addressed many of the issues that the House had in their bill, and we had many issues that we agreed on here in the Senate that would be at least targeted. This is about the Paycheck Protection Program. This is relief for schools. This is resources for the vaccine, for additional PPE, for additional testing. It is a long list, including relief for the U.S. Postal Service. Of course, I would hope that you would support it, but we were blocked from even bringing that bill to the floor of the U.S. Senate. We couldn't get to debate on that bill in September when it came before the U.S. Senate.

I appreciate these points. Obviously, we have a disagreement. President Trump pushed for Congress to pass a payroll tax cut. I would rather see a cut, not a deferral. That is the way to really help workers across this country. When Congress failed to act in July, the President enacted that deferral as a way to provide immediate relief to the American people. I would ask that we come together and let's forgive those taxes. Forgive them, and they won't be getting a surprise tax increase if we do that.

Mr. VAN HOLLEN. Mr. President, just very briefly in response, I think everyone knows what is going on here. This is a very simple proposal. If you want to participate in President Trump's deferral, you can continue to participate in the deferral program. But if you are in the Armed Forces or are a Federal employee and you are being required to do that right now and you don't want to, we should let them opt out. That is all this is about, and I am really surprised that our Republican colleagues would block members of our Armed Forces and Federal employees from making a simple choice which they believe is in their best interest.

So I am disappointed with the objection and will continue to pursue this.

Thank you.

The PRESIDING OFFICER. The Senator from Montana.

Mr. DAINES. Mr. President, I ask unanimous consent to yield back the time in order for the vote to occur now.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

VOTE ON HARDY NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the Hardy nomination?

Mr. DAINES. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from North Carolina (Mr. BURR), the Senator from Oklahoma (Mr. INHOFE), the Senator from Georgia (Mrs. LOEFFLER), the Senator from Georgia (Mr. PERDUE), and the Senator from Ohio (Mr. PORTMAN).

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS) and the Senator from Vermont (Mr. SANDERS) are necessarily absent.

The PRESIDING OFFICER (Mrs. CAPITO). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 59, nays 34, as follows:

[Rollcall Vote No. 253 Ex.]

YEAS—59

Alexander	Blunt	Capito
Barrasso	Boozman	Cardin
Blackburn	Braun	Carper
Cassidy	Hyde-Smith	Romney
Collins	Johnson	Rounds
Cornyn	Jones	Rubio
Cotton	Kelly	Sasse
Cramer	Kennedy	Scott (FL)
Crapo	King	Scott (SC)
Cruz	Lankford	Shaheen
Daines	Lee	Shelby
Enzi	Manchin	Sinema
Ernst	McConnell	Sullivan
Fischer	Moran	Tester
Gardner	Murkowski	Thune
Graham	Murphy	Tillis
Grassley	Paul	Toomey
Hassan	Reed	Wicker
Hawley	Risch	Young
Hoeven	Roberts	

NAYS—34

Baldwin	Gillibrand	Schatz
Bennet	Heinrich	Schumer
Blumenthal	Hirono	Smith
Booker	Kaine	Stabenow
Brown	Klobuchar	Udall
Cantwell	Leahy	Van Hollen
Casey	Markey	Warner
Coons	Menendez	Warren
Cortez Masto	Merkley	Whitehouse
Duckworth	Murray	Wyden
Durbin	Peters	
Feinstein	Rosen	

NOT VOTING—7

Burr	Loeffler	Sanders
Harris	Perdue	
Inhofe	Portman	

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motion to reconsider is considered made and laid upon table, and the President will be immediately notified of the Senate's action.

The Senator from Tennessee.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. ALEXANDER. Madam President, I ask unanimous consent that the Senate proceed to legislative session and be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. ALEXANDER. Madam President, I ask unanimous consent that I be recognized to speak for as long as I may require.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNIZING THE STAFF OF SENATOR ALEXANDER

Mr. ALEXANDER. Madam President, here is my view of serving in the U.S. Senate: It is hard to get here, it is hard to stay here, and while you are here, you might as well try to accomplish something good for the country. Accomplishing something good in the U.S. Senate means working with a superior staff.

Today, I want to pay tribute to the 270 men and women who have served on my staff since I came to the Senate in 2003, in my personal office, both here in Washington, DC, and in the six Tennessee offices; in the Senate Health, Education, Labor, and Pensions Committee; the Senate Rules Committee; the Senate Appropriations Committee; and at the Senate Republican conference.

Some who started with me in 2003 are still working for me after 18 years, and some have moved on to other opportunities, but each has played a major role in the Senate, whether they were helping to pass laws, serve our constituents, or answering the front-office phone.

We have some important traditions here in the Senate, including the maiden speech, which I delivered 17 years ago, in my case, and the farewell speech, which I delivered yesterday, but for me, something is missing. Usually staff is acknowledged in the farewell address, which either makes the address way too long or at least too little time to properly acknowledge their contributions. I am here today to make a ''Salute to the Staff'' speech. I know my colleagues agree that their own accomplishments are the result of working with superior staff, so perhaps, if I may not be presumptuous, a ''Salute to the Staff'' speech might become an additional Senate tradition.

When I say ''superior staff,'' here is what I mean: superior in being what Senator Howard Baker used to call an eloquent listener—that the constituent on the phone might be right or even the staffer in the other office might be right; superior in courtesy to the Tennesseans for whom we work; superior in insight; superior in resolving complex issues and wrapping up the result in a nice package with a ribbon tied around it, ready to be passed and signed into law whenever the moment came that it could be passed, which would usually be a surprise and at an inconvenient time; and superior in writing and speaking plain English in order to persuade at least half the people we are right; and superior in working well together—something you are supposed to learn in kindergarten—so we have a good time while we are working.

Unlike almost every other Senate office, at the suggestion of my chief of staff, David Cleary, we created a single team composed of personal office staff here and in Washington, DC, and the committee staff, with David in charge of all of that. I originally thought that was a big mistake. I didn't see how anyone could be in charge of all of that, but I was wrong about it because what it did was break down barriers and eliminate jealousy, improve communication, and create a much happier and effective working condition.

The results have been exceptional. For 18 years, I have gotten up every morning thinking I might be able to do something good to help our country, and I have gone to bed most nights thinking that I have. That couldn't have happened without the privilege of working with an exceptional staff.

The truth is—we all know this—that there is just no physical way for any U.S. Senator to see every single one of our constituents every time we want to

see them or talk to them on the phone, although we all make our best efforts to do that. And you learn pretty quickly that constituents expect and deserve to be treated not just with courtesy but promptly. For example, Senator Estes Kefauver held this seat that I now hold when I was a high school student.

One day, Maude from Madisonville, his hometown, called Senator Kefauver's office and said: ''I want to speak to Estes.''

The staffer said: ''I'm sorry but Senator Kefauver is tied up on the floor.''

There was a long silence. Maude said: ''Well, you go down and untie the son of a gun and get him up off the floor and tell him Maude's on the phone and wants to speak to him.''

So our constituents expect to talk with us when they want to.

My first visit to the Senate was when I was a junior in high school. It was part of the American Legion Boys Nation Program. I was invited to visit Senator Kefauver. I was 17 years old. I was reluctant to do that because I was sure he had many more important people to see than a 17-year-old boy from Maryville, TN. I was even more sure of that when I arrived at his office because his office was just filled with people who looked important and looked like they had come from all over the world to see him. But his assistant came out and swished me in through all the important people, doing her best to make me feel comfortable. Kefauver had a reputation for being accessible, and it was because his staff made it appear that he always was.

I remind my staff that there are many people who want to see us who suspect that we feel we are too important to see them, and we should do everything we can to help them understand that we know that they are the important ones.

The staff and I have done our best to try to do that. With all of the Senators with whom I have served from Tennessee, we have what we call Tennessee Tuesday, which are breakfasts where any Tennessean can come and visit with both Senators, have a little breakfast, and have their photograph taken.

In 18 years, 270 people have worked on my Senate staff—as I mentioned, in Jackson, Nashville, Tri-Cities, Knoxville, Memphis, Chattanooga, or in Washington, DC, on my personal staff or the Health, Education, Labor, and Pensions staff or the Rules Committee or Appropriations Committee or at the Senate Republican conference. There are a lot of places to have a lot of staff—153 women, 117 men.

Our staff has also benefited from the work of 433 interns. These interns usually stay with us 1 to 3 months, and they have some real work experiences while they are here, and they are pretty good. In fact, 30 staff members—that is 11 percent of our staff—began their work in our office as interns.

Our staff has experienced some great personal joys. We celebrated the birth or adoption of 30 babies over those 18 years. Just as I met my wife Honey while we were both working in the Senate, some of our staffers met their spouses while working on my staff, including: Mackensie Burt and Paul McKernana, Will Patterson and Katherine Knight, Virginia Heppner and Bobby McMillin, Laura Lefler and John Herzog, Will Campbell and Victoria Souza, and Patrick Jaynes and Jill Salyers. They are all married now.

We also have experienced some profound sorrows. Some have lost parents, nursed seriously injured children, or been through their own health emergencies.

In November 2007, Trey Lefler, a very special staffer and friend, was involved in a serious car accident and died as a result of his injuries.

Many staff members have stayed. We have worked together for a long time. Some have been a part of our team—meaning we worked together—since I became a Senator: Patrick Jaynes, State director; Lindsey Seidman, deputy staff director on the HELP Committee; Jane Chedester, field representative in Knoxville; Kay Durham, constituent services representative in Nashville; Charlotte Jackson, who knows more about how to help people with a visa problem than anybody in the world; Matt Varino, field representative in Jackson; Gina Parkerson in Tri-Cities; Stephanie Chivers, a senior adviser in Nashville.

It is pretty remarkable. It is not so easy to be on the staff of a U.S. Senator in the State they represent. Everybody knows who you are. Everywhere you go, you are likely to be sought out by people who need help, people who are hurting. It is easy to get burned out. It is hard to stay in a job like that for that long.

Patrick Jaynes says that while these might be jobs in politics, the politics end when you start the job. You have to work with everyone and help everyone.

Our Tennessee field representatives have traveled thousands of miles, meeting with mayors, businesses, schools, hospitals, and other organizations across our 95 counties.

Caseworkers have handled about 20,000 cases over the years, like getting disability benefits, helping a World War II veteran get a medal, helping a family stranded overseas get home.

For example, Laura Ray Goodrich is a staffer in Jackson. She heard of a single mother having desperate issues getting her tax refund. The mother needed the money to help pay rent and the rest of her bills. Laura got to work and reached out to the IRS. She discovered the mother's returns had been wrong for several years and helped the thrilled single mother recover far more money than she was expecting.

Keith Abraham, who works in the Knoxville office, heard from a Tennessee company about an employee with a grim cancer diagnosis. The employee's parents lived in China. They were unable to see the employee because of COVID–19 restrictions. Long and short, Keith worked it out so they could receive the appropriate paperwork and fly here to be with their daughter.

One story that I got to see in person was about Wilbur ''Bill'' Hoffman from World War II. Mary Wooldridge, in our Memphis office, was asked if there was some way he could be recognized for his World War II service. She worked with the service and discovered that he was not only eligible for a Purple Heart after he had been wounded at Pointe du Hoc on D-Day in 1944, he had also earned the Bronze Star and the Ranger Tab awards. In 2012, he was presented with these awards by our State's highest ranking military officer, General Haston at a ceremony I attended. He died a year later.

Each fall, Kay Durham in our office works through about 150 Tennesseans' applications to attend our Nation's service academies. She has worked with over 2,500 candidates applying for those academies.

There is no better State director than Patrick Jaynes. He also served as deputy chief of staff. He worked to create a smooth relationship between what happens in Tennessee and what happens here. I have traveled thousands of miles with Patrick. He has not run into anybody, but we have been through a lot of flat tires and some speeding tickets. Patrick and I have seen it all. He is full of insights. He always has energy for the next event and can always solve a problem.

During my time in the Senate, the conference elected me three times as chairman of the Senate Republican conference. That is a little bit of a political job. What you are supposed to do is come up with something that Republicans can say to counter what Democrats are saying. It is especially a challenge to do that for Republicans to get them to talk on a single message.

All of the Senators—every one of us—are experts in politics or we wouldn't have gotten here. And Republican Senators are especially independent-minded. Republicans and Democrats will often all do things together as a caucus, but we do it differently than they do. Democrats will all hold hands and jump off the cliff together. Republicans will also all jump off the cliff at the same time, but one will do a somersault, one will do a back flip, one will do a dive, and so forth.

The goal was to come up in the caucus with a catchy phrase. For example, on energy, ''Find more, use less,'' or about ObamaCare, ''step by step,'' instead of ''comprehensive.''

To persuade Senators to say the same thing, staff would record clips of them saying what I thought they should say, and then we would show that back to them at lunch. I found that Senators paid a lot more attention to watching themselves say things

than they did to watching me suggest to them what to say.

It wasn't me doing all that; it was staff doing it. They came up with catchy phrases, many of them. They made sure we communicated them at the conference.

While I was on the Rules Committee, I had a chance—I worked with Senator SCHUMER on that. We were ranking—really, like this year, we didn't know who would be the new President. I had an opportunity to speak at President Obama's inauguration. We talked about the peaceful transfer or the reaffirmation of power as a conspicuous symbol of our democracy. There is no possible way to organize a Presidential inauguration without a superior staff. Mary Jones and Lindsey Seidman were the ones who were in charge of all that for us.

Then, in 2012, on the Senate HELP Committee—as the senior Republican for 2 years, then 6 years as chairman—the staff grew a lot. Senator Ted Kennedy used to say that the HELP Committee had about one-third of the jurisdiction of the Senate. It certainly does a lot of work, and it needs a lot of talented staff members. During my 8 years as the senior Republican, the staff helped organize 209 hearings, 752 witnesses, mostly bipartisan—meaning that I agreed with Senator Harkin first, then Senator MURRAY for the last 6 years, on whom the witnesses would be. We produced 90 bills that have become law.

That is a lot of work—weeks of work by the staff. Securing each witness often takes a host of conversations with Democratic committee staff, numerous phone calls with experts.

Every bill that becomes law takes efforts that are hard to comprehend outside the walls of Congress, from the consultations with constituents and experts to the drafting of the legislation, to the work with other members and outside groups, to consulting, to trying to soothe bruised feelings, to working with other committee members, bring it to the attention of the majority leader, try to find an opportunity for it to be on the Senate calendar, then bill support, then remove holes. There is a lot of work to do in passing a bill and making a law, and staff does most of the work. Senators do a lot, but they can't do it all.

Here are some of the achievements worth highlighting. I mentioned many of them yesterday in my farewell address, so I won't go into great detail about them today; for example, the Every Student Succeeds Act. This was the bill to fix No Child Left Behind. It affects 50 million children in 100,000 schools. President Obama called it ''a Christmas miracle.'' The Wall Street Journal said it was the largest devolution of power from Washington to the States in 25 years. I will never forget what, to me, was a truly emotional moment, when every Senator on our committee—this is from RAND PAUL to ELIZABETH WARREN—voted to recommend the bill to the Senate. This law was the result of complicated and nimble work by Peter Oppenheim, Lindsay Fryer, Matt Stern, and David Cleary.

FAFSA Simplification. Twenty million Americans fill out this ridiculously complex form for Federal aid for Pell grants and student loans. You have seen me hold it up on the Senate floor. Everyone agrees it can be 33 instead of 108 questions. Almost everyone agrees it is the major obstacle to low-income students getting Federal aid to go to college because they are intimidated by it. Bob Moran, Lauren Davies, and Andrew LaCasse have worked hard with Senator MURRAY's staff. We have it about half done. We would like to get it across the finish line before the end of the year.

Head Start. In 2007, we came up with the idea. Sarah Rittling was the staffer. It was to establish 200 centers of excellence for the Head Start Program.

Then, in 2005, Katrina came and Rita came, two big hurricanes. Kristin Bannerman was critical to legislation, where we worked with Senator Kennedy, Senator Dodd, and Senator Landrieu for voucher funding to assist with the cost of educating 150,000 public and nonpublic school students in grades K–12 displaced by the hurricane.

Then, reauthorizing the Perkins Career and Technical Education Act. Education Week said it was ''a watershed moment.'' Staffer Jake Baker worked on that. Senator ENZI did a lot of the heavy work.

I have been fortunate to have two extraordinary women whom I work with on the team of staff on the HELP Committee who handle family health policy: Mary-Sumpter Lapinski and Grace Graham.

Before they started, Melissa Pfaff, Page Kranbuhl, and Marguerite Salee Kondracke were instrumental in passing the PREEMIE Act in 2003, getting the bill well written and signed into law, working with the March of Dimes to help give more babies a chance to live long and healthy lives.

Once I became senior on the HELP Committee, we began to work on the 21st Century Cures Act. Senator MCCONNELL said it was the most important law of that Congress. It helps speed medical innovations to patients in doctors' offices. Margaret Coulter, Andy Vogt, Melissa Pfaff, Brett Meeks, and others spent countless hours getting ready for that.

FDA user fees. This showed Grace Graham's ability to be a traffic cop working with Senator MURRAY's staff and with House committees. We had a really fairly seamless effort to take these complicated pieces of law to collect user fees from drug and device makers and include significant new provisions to speed those drugs and devices into doctors' offices.

The most popular bill that never became a law was called Alexander-Murray. I even bought a case of Scotch called Alexander-Murray to give out to everybody when it passed, but it never was passed. The result of the immense efforts—the whole goal—was to reduce the cost of healthcare premiums in the individual insurance market. President Trump worked well with us on that. Virginia McMillin and Liz Wroe did countless hours of work, but we couldn't quite get it across the finish line.

Then, this year, there was the shark tank. With the support of Senators BLUNT and SHELBY, we worked together with Francis Collins, of the National Institutes of Health, to create an initiative of $2.5 billion to produce 50 million more COVID diagnostic tests a month than current technologies would do. Grace Graham, Melissa Pfaff, and Laura Friedel on Senator BLUNT's staff worked on that.

During all of this, Grace Graham was in her third trimester—not during all of it. During the latter part of this, she was in her third trimester. She was working on design policies and being a traffic cop between here and the House. To date, she and Stash, her husband, have had their first child, Penn. She is back at work, and the country is better off for everything that she has contributed.

Our committee leadership positions are often considered the plum positions, but you can do a whole lot with a talented personal staff. Ours has put in long hours and has met expectations. For example, on the Great American Outdoors Act, Anna Newton and Lindsay Garcia did yeoman's work. This is a bill that good people have literally been trying to pass since the Eisenhower years. It was the most important piece of outdoor legislation in that period of time.

With the Music Modernization Act, we worked with Senator Hatch and his staff. We eventually got 85 cosponsors, but this one nearly ran off the road several times. Lindsay Garcia and Paul McKernan made sure it became law.

The America COMPETES Act was back in my early years as a Senator, when I was very junior, so I got the Republican leader and the Democratic leader to cosponsor it. It passed with, I think, more than 60 cosponsors to improve our competitive position in the world.

Matt Sonnesyn and David Cleary were the key staffers on that. They were not just working with staff people around here. For example, with the America COMPETES Act, the bill wouldn't have passed if it had not been for 800 outdoor recreation environmental groups outside of Congress who supported the bill and encouraged Senators to get off planes and come back here to cast crucial votes. We are grateful for that. Matt Sonnesyn worked with the Iraq Study Group recommendations that we made during the George W. Bush years, and Erin Reif and Lucas DaPieve have been experts on foreign affairs and appropriations.

While I have been chairman of the Energy and Water Appropriations, we

have had 5 straight years in a row—hopefully, we will have 6—of funding the Office of Science, which supports our 17 National Laboratories. We have also stepped up funding for all of the inland waterways, like Chickamauga Lock, and for supercomputing in order to keep us first in the world. Tom Craig, Tyler Owens, Meyer Seligman, Jen Armstrong, and Adam DeMella all played key roles in that.

I met every week with what I called my Energy Working Group. I found the intersection of energy and environment to be, really, the most fascinating new subject for me during my time as a Senator, and we did a lot of work on that both on the Committee on Appropriations and with other Senators. Meeting with that energy policy staff helped to get the America COMPETES Act passed. It stopped the Road to Nowhere in the Smokies. It pushed back on the efforts to promote Big Wind on our mountain ridges, and it resulted in record funding for energy and water development. Sharon Segner, Jessica Holliday, Conrad Schatte, and Lindsay Garcia all led those teams.

We spend a lot of time working with staff to get the policy right and trying to get the message right. You have to be able to persuade at least half the people that you are right in this business. Words matter. We spend a lot of time on headlines so that we convey what we are trying to do. The individuals who have led our communications unit include Alexia Poe, Harvey Valentine, Lee Pitts, Jim Jeffries, Brian Reisinger, Margaret Atkinson, Liz Wolgemuth, Ashton Davies, and Taylor Haulsee.

You can't run an effective office without a good office manager. We have had the best—Trina Tyrer and Debbie Paul. Misty Marshall came to us from the White House, where she was the director of correspondence for Laura Bush.

One of the toughest, most important jobs in the Senate office that people outside the Senate don't really appreciate as much is the job of scheduling. It requires constant changes, great discretion, enormous promptness, and attention to detail. Every day is a mismatch of meetings and calls. There is no schedule, really, in the U.S. Senate. You just kind of keep up with what is going on, and you put it down on a piece of paper. Suddenly, everything can get wiped out by an emergency call. Bonnie Sansonetti, Sarah Fairchild, and Alicyn York have been the very best.

The legislative director conducts the office orchestra. I have been very fortunate that Allison Martin has been our conductor. She used to work for Bill Frist and Fred Thompson. She is a West Tennessean, but the whole State is what she cares about as well as the country. If you were to look for somebody with her skill and talent, you would be looking for a very long time. David Cleary, Richard Hertling, Matt Sonnesyn, and David Morgenstern were also legislative directors.

One thing I know is I wouldn't be very good as a chief of staff, so I needed a very good chief of staff to do some things that I don't do as well. My first one was Tommy Ingram, whom I have known since 1966 when he was a Tennessean reporter, and I was working for Howard Baker in his second campaign. We have been friends ever since. He was my campaign manager and chief of staff as Governor. He did the same thing. He is really responsible for much of my success in politics.

David Morgenstern joined my staff in 2005 as legislative director, and he became chief of staff in 2009.

Matt Sonnesyn came to me from the Harvard Kennedy School of Government. He was initially a senior policy adviser. He was one of the few Republican students in the Harvard Kennedy School of Government, so he was well trained in defending his views.

Ryan Loskarn served as chief of staff starting in 2007.

Then, in my personal office, David Cleary has been the chief for the past 7 years. You can see him somewhere in an outrageous red and black suit on the Senate floor. David and I have worked together for almost 15 years. First, he served as staff director for the HELP Subcommittee on Children and Families. He used to work for John Boehner in the House.

In 2014, after becoming the ranking member of the HELP Committee, David suggested, as I said earlier, that he be both chief of staff and staff director of the committee. I recounted how, at first, I thought that was a bad idea, but it was one of the best ideas suggested to me because it made our staff so much more effective and work so much better. It was the key to our success, really, and I do not know of a more effective chief of staff of the Senate than David Cleary. He led our efforts to fix No Child Left Behind, the 21st Century Cures, the reauthorizing of Perkins, and the FDA user fees legislation. I appreciate how much time Marci, his wife, and Maria, their daughter, have given to our team.

To close, I would like to thank all 270 staff members who have given time and energy to our office. One of those, Reynard Graham, has been my administrative right hand for many years. His bigger job is that he is a minister on the weekends. There isn't time to recognize the accomplishments of each one by name, but there are many, and I am grateful to every single individual.

It has been a tremendous gift to work with a skilled and dedicated staff. Each person who has served in this office should be proud of what we have accomplished. I have been so fortunate to have been on the same team with each of you for the last 18 years.

In a farewell address yesterday, I said that I wake up every day thinking I might be able to do something good for our country and that I go to bed most nights thinking that I have. It has been a great privilege to be a U.S. Senator. It has been a great privilege over these 18 years to work with such an exceptional staff.

I ask unanimous consent to have printed in the RECORD a list of the names of my staff.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

Keith Abraham, Halee Ackerman, Hayley Alexander, Abbey Allen, Stacy (Cline) Amin, Carrie Apostolou, Sarah Arbes, Katie Argo, Jen Armstrong, Abby Atkins, Margaret Atkinson, Jill Bader-Thompson, Jake Baker, Brandon Ball, Aaron Baluczynski, Andy Banducci, Kristin Bannerman-Herrmann, Kathryn Bell, Bailee Beshires, Anthony Birch.

Jeremy Boshwit, Lyndsay Botts, Jennifer Boyer, Charlie Brereton, Kelly Brexler, Palmer Brigham, Justine Brittain, Louie Brogdon, Austin Bryan, Adam Buckalew, Brenda Buescher, Ace Burch, Jonathan Burke, Andrew Burnett, David Campbell, Will Campbell, Victoria (Souza) Campbell, Meredith Carter, Laura Chambers-Crist, Robbie Champion.

Jane Chedester, Stephanie Chivers, Sarah Chu, David Cleary, Joseph Cody, Chris Connolly, Molly Conway, Mary Catherine Cook, Hannah Cornwell, Margaret Coulter, Tom Craig, Sydney Crawford, Starling Crossan, Joseph Cwiklinski, Lucas DaPieve, Ashton Davies, Elizabeth Davis, Adam DeMella, Evan Dixon, Christine Dodd.

Kay Durham, Emily Durnin, Jennifer Ellis, Grant English, Seth Ephrussi, Greg Facchiano, Sarah Fairchild, Anna Catherine Feaster, Qur'an Folsom, Kyle (Hicks) Fortson, Harrison Fox, Jr., Emily France, Evann Freeman, Lindsey Fryer, Alice Ganier, Kitty Ganier, Lindsay Garcia, Jaime Garden, Nick Geale, Elizabeth Gibson.

Randall Gibson, Jr., Houston Goddard, Meredith Good-Cohn, Laura Ray Goodrich, Carolyn Gorman, Elizabeth Gorman, Reynard Graham, Grace (Stuntz) Graham, John Grant, Jon Grayson, Sarah Greene, Sharon Hagget, Daniel Hale, Jeremy Harrell, Brandon Harrison, Heather Hatcher, Jenn Hatfield, Taylor Haulsee, Crystal Hayslett, Faye Head.

William Heartsill, Alicia Hennie, Richard Hertling, John Herzog, Laura (Lefler) Herzog, Kai Hirabayashi, Madison Hite, Jessica Holliday, Alexanderia Honeycutt, Derek Horne, Elizabeth Howell, Haley Hudler, Kara Huffstutter, Jones Hussey, Jordan Hynes, Joel Igelhart, Neena Imam, Tom Ingram, Charlotte Jackson, Patrick Jaynes.

Jill Jaynes, Jim Jeffries, Lora Jobe, Tonya Johnson, Madeline Jurch, Nora Khalil, Lina Kilani, Kimberly Kirkpatrick, Emily Kirlin, Katherine Knight, Bill Knudsen, Hillary Knudson, Page Kranbuhl, Andrew LaCasse, Lesley Landrum, Mary-Sumpter Lapinski, Trey Lefler, Jeff Lewis, Bridget Lipscomb, Rachel Littleton.

Anne Locke, Brett Logan, Linda Long, Ryan Loskarn, Molly Lukic, Nick Magallanes, Christina Mandreucci, Molly Marsh, Misty Marshall, Allison Martin, David McAdam, Meghan McCully, Paul McKernan, Mackensie (Burt) McKernan, Bobby McMillin, Virginia (Heppner) McMillin, Kayla McMurry, Brett Meeks, Michael Merrell, Will Meyer IV.

Latonya Miller, Meade Miller-Carlisle, Scot Montrey, Lana Moore, Bob Moran, David Morgenstern, Jennifer Moroney, Nicole Morse, Brandon Morton, Kim Morton, Jeff Muhs, Patrick Murray, Katie Neal, Beth Nelson, Anna Newton, Laura Marks O'Brien, Andrew Offenburger, Katie Oglesby, Peter Oppenheim, Tyler Owens.

Mary Parkerson, Will Patterson, Debbie Paul, Megan Paulsen, Austin Payne, Constance Payne, Laura Pence, Kelly Perry,

Morgan Petty, Melissa Pfaff, Charlie Phelps, Jr.; Lee Pitts, Alexia Poe, Greg Proseus, Erin Reif, Brian Reisinger, Sarah Rittling, John Rivard, Michelle Rodriguez, Adam Rondinone.

Kristin Rosa, Kristyn Royster, Marguerite (Sallee) Kondracke, Bonnie Sansonetti, Sandra SawanLara, Conrad Schatte, Lowell Schiller, Michael Schulz, Lauren (Davies) Schwensen, Kelly Scott, Sharon Segner, Lindsey (Ward) Seidman, Meyer Seligman, Erin Shea, Trina (Eager) Shiffman, Tyler Shrive, Aliza (Fishbein) Silver, Tiffany Smith, Kathleen Smith, LaShawnda Smith.

Rhonda Smithson, Charles Snodgrass, Matt Sonnesyn, Daniel Soto, Kristin (Nelson) Spiridon, Riley Stamper, Daniel Stanley, Matthew Stern, Deborah Sturdivant, Bill Sullivan, Carey Sullivan, Curtis Swager, Caroline Taylor, Rhonda Thames, Josh Thomas, Nathan Thomas, Kristi Thompson, Sean Thurman, Kara Townsend, Diane Tran.

Bill Tucker, Harvey Valentine, Tim Valentine, Curtis Vann, Matt Varino, Andy Vogt, Sandra Wade, Jack Wells, Marty West, Mitch Whalen, Rob Wharton, Louann White, Donovan Whiteside, Brent Wiles, Samantha Williams, Liz Wolgemuth, Mary Wooldridge, Liz Wroe, Sharon Yecies, Alicyn York.

Mr. ALEXANDER. I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Ms. STABENOW. Madam President, first, let me join with so many of my colleagues in wishing our distinguished friend and Senator from Tennessee best wishes.

Thank you, Senator ALEXANDER, for your incredible leadership and working across the aisle. So many good things that you have talked about are so meaningful to all of us. I appreciate the way you have conducted yourself with the committees and with Members, and I have enjoyed the opportunity to work with you. Electric vehicles didn't quite get across the line this year with what we wanted to do in terms of tax cuts, but I appreciate the chance to have been able to partner with you. Certainly, I wish you the best in your next steps in work as you end the year with your family. In whatever you do, I know you will be very successful.

CORONAVIRUS

Ms. STABENOW. Madam President, it might be hard to believe it is actually December. In normal times, a lot of families in Michigan would be focused on getting ready for the holidays, and while Michigan children might still be counting down the days until Santa arrives, their parents have a lot bigger issues weighing on their minds.

A Michigan dad has been out of work for months and is wondering how long his family will be able to keep scraping by in the new year after his unemployment runs out.

A Michigan single mom whose hours have been cut and who has been unable to pay the rent for months is wondering just how long it will be until her family will be out on the street.

The owner of a Michigan small business is wondering if he will see enough of a holiday boost to keep the doors open and his three employees on the payroll.

A Michigan retiree who struggles to buy enough groceries is wondering if it is safe to wait in a long line at her local food bank or if that is where she will get sick.

Michigan families who have seen almost 9,300 of their grandparents and neighbors and uncles and cousins and friends and community leaders get sick and die from this horrible virus are wondering who is going to be next.

The truth is that we are not just facing a health crisis right now—we are facing an economic crisis; we are facing a housing crisis; and we are facing a hunger crisis all at the same time. Coronavirus cases, hospitalizations, and deaths keep rising, and we haven't even seen the effects of Thanksgiving gatherings yet. We are seeing unemployment claims tick up, and those are expected to get worse after seasonal jobs will be cut in January.

Some studies have estimated that about 40 million renters in the United States are at risk of losing their homes. There are already 10,000 eviction actions that have been filed in a number of States. Those are 10,000 families who need to find new places to live right now, in the winter, in the middle of a health pandemic.

We have all seen the massive lines of cars at food banks across the country. In a normal year, the Food Bank of Eastern Michigan helps about 14 percent of the population in 22 counties get enough food to eat. This year, it is helping 40 percent to put food on the table. Before COVID–19, the South Michigan Food Bank provided food to about 80 families a week. Now it is helping more than 500 families a week. This is an emergency. These families, businesses, community organizations, and seniors can't just wait around, hoping for a Christmas miracle. They need help now, and it is our responsibility to do it now.

That is why I am so pleased that lawmakers on both sides of the aisle have been working to come together on additional help. There are still a lot of details to work out, but I am hopeful, in being part of the process on the workings of the details, that we are going to be able to come together on an agreement that will help families and businesses and communities get through these tough times.

Whatever agreement we reach won't be perfect. We know that. It won't be everything everybody wants. Yet we can't wait because time is quickly running out. On December 26—only 23 days from now—vital unemployment programs will expire, cutting off benefits that millions of workers will need to be able to provide for their families.

If you are self-employed, if you are a contract worker, if you are a gig worker, suddenly you will have zero help—zero.

Five days after that, on December 31, the Federal Reserve's emergency lending program ends. That will cut off crucial credit that is keeping businesses open and helping State and local governments provide necessary services.

Also on December 31, the Centers for Disease Control and Prevention's eviction moratorium expires, and the Federal foreclosure moratorium and some opportunities for forbearance expire.

Imagine what it would be like to begin a new year with no roof over your head or your family's, no place for your children to sleep, and no place to stay clean in the middle of a raging pandemic.

And on January 1, millions of student loan borrowers will have to resume their payments whether they can afford them or not.

These programs have been, literally, a lifeline for families, for communities, for businesses during the pandemic. And while vaccines are on the horizon and we are so happy to hear the progress, this pandemic is far from over. Cutting off this vital help now would be like an ambulance driver stopping 2 miles short of the hospital and making the accident victim get out and walk the rest of the way to the emergency room.

We need to face this health crisis, this economic crisis, this housing crisis, this hunger crisis with seriousness and boldness. People in Michigan and across the country are crying out for help. It is time for this body to listen. It is time for Congress to lead.

We should not go home until we have passed at least a short-term survival package to help Americans through the next few months. That is our job. That is our job, and we should not go home until that job is done.

We are the United States of America—United States of America. Nothing is holding us back from helping our citizens other than people's unwillingness to do it. Nothing.

We are the United States of America. There is no reason we are not coming together, and shame on the Congress and the White House if we don't act now to help our citizens.

There is nothing holding us back but the political will to do it, and it needs to get done. There are many of us now on both sides of the aisle working to do that, and we need to make sure that people lean in together and get this done.

I yield the floor.

The PRESIDING OFFICER (Mr. SCOTT of Florida). The Senator from West Virginia.

REMEMBERING OFFICER CASSIE JOHNSON

Mrs. CAPITO. Mr. President, I rise today to talk of one of West Virginia's very own—Police Officer Cassie Johnson.

Officer Johnson was a member of her hometown of Charleston's police department, where she joined less than 2 short years ago.

She was a devoted daughter, sister, a loyal friend, and a lover of animals.

She had three dogs. She was formerly a humane officer, as well, in our community. And, boy, did she have a bright future ahead of her.

On Tuesday, the Charleston Police Department received a call about a traffic complaint. Officer Johnson answered that call and responded accordingly, just as she would have any other call.

Shortly after arriving at that location, she was shot in the chest. The bullet hit her badge and deflected into her neck, where it eventually struck a main artery.

She was rushed to the hospital, and every effort was made to save her life. She was 28. She was 28 years old.

Sadly, we learned yesterday that the decision was made to remove her from life support, and she will not be able to pull through.

We also learned that Officer Johnson is an organ donor, which means she will be able to share the gift of life with others.

I had the opportunity to speak with Officer Johnson's mother Sheryl just this morning, and she expressed to me her daughter's commitment to organ donation. She said that her daughter felt very strongly about giving this gift to others in the event that something like this could happen. She was very clear about her wishes, and I think that is a testament to the kind of person Officer Johnson was.

As former Charleston Police Department Lieutenant Paul Perdue said, ''The end of her life will be the second beginning for others and that's just who she was.''

As you can imagine, our community is hurting, and all of our law enforcement across the country is hurting today for our community and Officer Johnson's family.

But the outpour of support has just been incredible to witness. Throughout this week, West Virginians have been honoring Officer Johnson's life in so many ways, such as in Charleston, where our beautiful coliseum and civic center has been lit in blue in honor of her and our law enforcement.

There has been a great money-raising effort to help Officer Johnson's family meet what is going to be a financial challenge. And what do we do with her pets? There has been an effort to have her pets adopted. I just read before I came in here that the GoFundMe page for Officer Johnson had already exceeded its goal, and, hopefully, it will continue to grow.

Last night a candle vigil was held outdoors to honor her life and legacy, where the community leaders spoke and Officer Johnson's mother Sheryl spoke. It is a tough duty, a tough assignment for any mom.

During the vigil, her mother spoke about Officer Johnson's love for her community, about her desire to protect everyone she was surrounded by.

You know, when I talked to her mother this morning, she echoed those same sentiments in the phone conversation that we had, and she said that hundreds of West Virginians had reached out to her personally. Many had stopped by the hospital, wanting to say goodbye to Officer Johnson. These gestures have just been so touching, and I could tell it really helped her family and, in particular, her mother Sheryl.

Charleston Police Chief Tyke Hunt told Officer Johnson's mother that she raised her right, and that Officer Johnson was ''a good-hearted soul who had to pay the ultimate sacrifice.''

Chief Hunt is right. It is a bitter pill.

In a local interview following her swearing-in, Officer Johnson said: ''I am really happy to finally getting to follow my dreams in working with Charleston PD.''

She continued by saying: ''I've grown up and lived in Charleston my whole life. I just wanted to help make my city a better place—and be there and to be able to help the citizens of this city.''

This job was a dream come true for Officer Johnson. She loved her community, and our community loved her back. Like all of our law enforcement, Officer Johnson cared for us and was fiercely dedicated to protecting her community—and that is my community. When I think of Officer Johnson, I think of her protecting my family and my neighbors, my community, the larger community of Charleston.

Police officers like Officer Johnson selflessly put their lives on the line every day for the safety of our communities. They never know what is around the corner. They never know. She thought she was going for a parking violation. It is a hard job and one that is rarely appreciated enough.

I ask—if you have heard this today or if you have read about this—that we all take a minute today and every day to thank our law enforcement and recognize the sacrifices that they make to ensure that our communities are safe and protected.

I would also ask you to keep the Johnson family in your hearts and prayers—our chief, Chief Hunt of the Charleston Police Department, and all of her brothers and sisters in the police department and the first responders.

Our mayor, Mayor Amy Goodwin, has done a wonderful job of bringing the community together and showing a wonderful show of support for Officer Cassie Johnson and her family, and I thank her.

The entire city of Charleston is hurting, so please keep them in your hearts and prayers as well.

With that very difficult time, I yield the floor.

The PRESIDING OFFICER. The Senator from Texas.

SENATE LEGISLATIVE AGENDA

Mr. CORNYN. Mr. President, the legislative year is quickly drawing to a close, but the lights on the 116th Congress haven't gone out yet. Before the House and the Senate gavel out for the final time this Congress, we still have a lot of work to do.

Headlines have focused on the large, ''must-pass'' legislation, which will require a good amount of debate and compromise in the coming days—things like government funding, the National Defense Authorization bill, and another COVID–19 relief package. But there are actually countless other bills that have already passed the Senate with broad bipartisan support and continue to linger in purgatory on the House's legislative calendar.

After weeks, months, and, in some cases, more than a year of waiting, the Speaker and the House leadership refuse to let these commonsense bipartisan bills have a vote on the House floor. Just to give you an idea of the type of legislation they are holding up, let's start with the Jenna Quinn Law. This legislation carries the name of an inspiring young Texan who is a survivor of child sexual abuse and who has made it her mission in life to end the cycle of abuse that harms our children in communities across the country.

Jenna was the driving force behind a 2009 Texas law requiring training for teachers, caregivers, and other adults who work with children on how to prevent, recognize, and report child sexual abuse. You can imagine the teachers, in particular, who spend—at least before COVID—day after day after day with children. They are actually in the best position, sometimes, to identify symptoms of sexual abuse, if properly trained.

Since 2009, a number of other States have passed similar laws, but the training often lacks adequate funding, and that is where our Federal legislation comes in. I introduced this bipartisan bill with Senator HASSAN from New Hampshire to finally back that training with Federal funding through grants from the Department of Health and Human Services. At a time when the experts believe that abuse is on the rise as families are isolated at home due to COVID–19 mitigation efforts, this legislation could not be more urgent.

Despite the fact that this bill will deliver real change for the most vulnerable in our communities and that it passed the Senate with unanimous support, the House refuses to even vote on it. House Democrats have chosen to hold this lifesaving legislation hostage in order to advance a partisan bill that they know has no chance of becoming law.

Unfortunately, those are the types of games that, sadly, we have had to become accustomed to when it comes to House Democrats. But, as I said, this is only one of a long list of bills that they are sitting on.

Over the summer, the Senate passed legislation that had taken aim at another crisis harming our children, which is e-cigarettes. Prior to COVID–19, headlines were dominated by stories

about mysterious vaping-related illnesses and healthy teenagers being admitted to emergency rooms with symptoms usually associated only with decades-long smokers.

Well, to state the obvious, the most effective way to prevent children from becoming addicted to these devices is to stop them from getting their hands on them in the first place. If the 16-year-old went to a gas station or convenience store and attempted to buy an e-cigarette, they would be turned away because that sale could not take place without a proper ID, but those same age-verification requirements don't apply to online purchases. Devices can be ordered and delivered without any proof of age or an ID.

Senator FEINSTEIN, the senior Senator from California, and I introduced legislation to change that and ensure that online purchases are subject to the same age verification requirements as those made in person. Once again, this legislation passed the Senate unanimously, but the House has refused to take any action.

And here is another one. Last month, we passed a bill to provide mental healthcare to those transitioning out of the criminal justice system. More than half of the individuals in the criminal justice system have experienced a mental health issue, and our justice system too often fails to provided adequate diagnosis and treatment.

But even when these individuals do receive treatment while incarcerated, they are rarely given the tools they need to succeed upon release. Approximately 80 percent of the people are uninsured after being released, making it nearly impossible for them to continue mental health treatment without additional safety net provisions.

Senator BLUMENTHAL, our colleague from Connecticut, and I introduced legislation to support those who have become part of our criminal justice system who have decided to turn their lives around and to provide them stable treatment if they suffer from a mental illness as they transition out of incarceration. That is not only in their best interest, but it is in the best interest of the larger community, because these people, rather than being a danger to the community, can contribute to the community.

This legislation passed the Senate with unanimous support, but, once again, no movement in the House, and the list goes on and on and on.

We unanimously approved legislation to provide justice to families of human smuggling victims and assistance to local communities battling the problem, to help State and local governments strengthen their cyber security and safeguard their elections, and to increase cross-border economic and educational partnerships with Mexico.

Those half dozen bills I just named are only a handful of the ones I introduced that have passed the Senate but are collecting dust on the House calendar. Add in the long list of bills led by our Republican and Democratic colleagues, and we have a major legislative logjam in the House.

As I understand it, next week is set to be the House's last workweek of the 116th Congress. That means that, unless Speaker PELOSI and House Democratic leadership allow movement on these compromise, commonsense bipartisan bills, we are going to have to start from square one. We are going to have to start all over again in the next Congress.

Now, I know it is not unusual for a Member of Congress to take legislative hostages to advance their own agenda, but this is not a time to play those kinds of politics, particularly on these kinds of subjects. These aren't controversial bills. We are talking about grants to prevent child sexual abuse, reform to stop kids from buying e-cigarettes online, a lifeline of hope for folks who suffer from mental illness and are transitioning from our criminal justice system, and so much more.

As I said, these bills are just one step away from heading to the President's desk for his signature, so it is time for Speaker PELOSI and the leadership of the House to quit playing games and allow the House to vote on these life-changing bills.

TRIBUTE TO MICHAEL ENZI

Mr. CORNYN. Mr. President, on another matter, we know we have a lot of lawyers in Congress, and we have some former businessmen. We even have people who are lawyers and businessmen who serve in our midst. They are doctors, educators. We have a few farmers. But we have only two accountants, to my knowledge, one of whom is our friend MIKE ENZI.

For those of us who have long fought to rein in spending and to get our national debt in check, MIKE's contribution to those efforts has been invaluable. But that is only part of the reason we are sad to say farewell to such an incredible colleague.

Long before Senator ENZI's career in politics or even accounting, he joined the family shoe business, cleverly named ''NZ Shoes''—that is capital ''N,'' capital ''Z,'' Shoes. It wasn't long before our friend MIKE, at the young age of 30, was lured into a life of public service and elected mayor of Gillette, WY. His career would lead him to the Department of the Interior, the Wyoming State House and Senate, and eventually here to the U.S. Senate. But Senator ENZI still holds on to the lessons he learned in those early days selling shoes.

A few years ago, he said:

> Legislating is like selling shoes. You have to know your market, what they want, and who's willing to buy what you're [selling].

Well, I don't know how effective MIKE was as a shoe salesman, but I can tell you that he has been a master broker here in the Senate. I still remember when I came to the Senate, the liberal lion of the Senate, Ted Kennedy, was serving with MIKE ENZI on the Health, Education, Labor, and Pensions Committee. They were enormously productive—one of the most conservative Members and one of the most liberal Members of the U.S. Senate. So I asked MIKE, our friend Senator ENZI: How do you do it?

He said: It is simple. It is the 80–20 rule. You take the 80 percent that you can agree on, the common ground, and you get it done, and you leave the 20 percent that you can't agree on to another day and another fight.

That is the kind of common sense we need more of here in the U.S. Senate when it comes to solving our Nation's problems.

When there are big debates on policy or high-stakes negotiations, Senator ENZI is not one to share his opinions with reporters in the hallways or, thankfully, to air his grievances on national television, but he does work behind the scenes, settling disagreements with private phone calls and meetings rather than fiery speeches and press releases.

There is no question he has had to settle a lot of disagreements during his 24 years in the Senate, especially, as I said, during his time on the HELP Committee and as chairman of the Budget Committee. We have 100 individuals in the Senate from all across this big and diverse Nation of ours who have very different ideas about what should be done and opinions on how to get it done, but part of what makes him so successful is settling those differences—look past the areas where we disagree, and look at common ground.

Besides the 80–20 rule that has forever stuck in my mind as a great formula for solving problems and getting things done, MIKE has a great attitude about life—one that I find very positive and inspiring, even. He says: ''You have to have an attitude of gratitude.''

That is another thing I will remember about MIKE ENZI—always grateful for his ability to serve his fellow Wyoming citizens, for his family, his wonderful family, and for this great country that we live in. I know he is eager to spend more time enjoying the great outdoors. MIKE has said he wants to actually go fishing in all 50 States. I don't know how many States he has not yet fished in, but after he leaves the U.S. Senate, hopefully he will accomplish his goal of going fishing in all 50 States of the Union.

We will miss him here in the Senate.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 649.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Stephen Sidney Schwartz, of Virginia, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Stephen Sidney Schwartz, of Virginia, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

Mitch McConnell, Joni Ernst, John Boozman, James E. Risch, Mike Rounds, Roger F. Wicker, Mike Crapo, Mitt Romney, John Barrasso, Shelley Moore Capito, Pat Roberts, Thom Tillis, Cindy Hyde-Smith, David Perdue, Lindsey Graham, Kevin Cramer, Tim Scott.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. MCCONNELL. Mr. President, I move to proceed to executive session to consider Calendar No. 911.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Nathan A. Simington, of Virginia, to be a Member of the Federal Communications Commission for a term of five years from July 1, 2019.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Nathan A. Simington, of Virginia, to be a Member of the Federal Communications Commission for a term of five years from July 1, 2019.

Mitch McConnell, Cindy Hyde-Smith, Joni Ernst, John Barrasso, Tim Scott, Lamar Alexander, Pat Roberts, Kevin Cramer, Shelley Moore Capito, Lindsey Graham, John Thune, Marco Rubio, Mike Crapo, Todd Young, Thom Tillis, Marsha Blackburn, Steve Daines.

LEGISLATIVE SESSION

Mr. MCCONNELL. Mr. President, I move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. BLUNT. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

CORONAVIRUS VACCINE

Mr. BLUNT. Mr. President, the Presiding Officer and I are here, and we have been meeting today in Washington at, really, a groundbreaking moment as we continue this battle for our health, for our economy, and against the virus. What makes this such a critical moment are the developments we have seen in the last 10 days regarding a vaccine.

Public health experts around the world have agreed, almost from day one, that the way to really find the end of this pandemic—the ultimate weapon—would be to develop a vaccine that worked. Less than a year ago, which was in January and February of this year, we were hearing that 2 years would set a record for developing a vaccine and that sometimes a vaccine that has been developed on a new disease like this has taken 3 and 5 and even 10 years or more. Yet here we are, less a year from the discovery of COVID–19, with not just one vaccine but two vaccines that have already applied for their use permits. Both vaccines have shown an effectiveness of more than 90 percent, and a third vaccine with a similar response is about to get to the place at which it, too, can apply for use.

These are incredible numbers. It wasn't that many months ago that healthcare experts were saying, if we get a vaccine that is effective 50 percent of the time or more, that the government should consider accepting that vaccine and making it available to people, and here we are with a 90 percent effective vaccine. I had the measles, and my kids had the measles shot, which seemed to pretty much eliminate the measles. It was 90 percent effective. This is the kind of vaccine that has been the most effective among the most effective vaccines we have ever had.

Pfizer and Moderna have both come forward and asked for their emergency use authorizations. The emergency use doesn't really mean they have cut any corners. The only thing we have failed to do is to watch the 30,000 or so people for another 2 or 3 years who were in both of these trials. That is why we can't say with certainty if this vaccine will last for a lifetime or if this vaccine will be a 3-year vaccine or even a 1-year vaccine. What we can say with certainty is that, about 95 percent of the time, it will prevent you from getting the disease. Of course, if people are prevented from getting the disease, they can't spread the disease, and that is why a 90 percent effective vaccine, like the measles vaccine, was basically 100 percent effective as long as people took it.

So we need to step back, really, I think, and look at the unconventional way we got here. How did we get from 3 to 5 to, maybe, 10 years to less than a year of discovering a virus for the very first time to our having a vaccine?

The way that researchers have been able to move forward with this and the way that Congress and the Trump administration have responded to this pandemic has been extraordinary. In our country, Operation Warp Speed has accelerated the development of this new vaccine through a fast-track process that could be described, really, in one word—unprecedented. Normally, vaccines take years. Researchers have to go out and secure funding, get approvals, and study results step by step to get to where we are today. Only then would a vaccine be determined to be safe and effective, and only then would manufacturing begin.

Normally, with a vaccine, the day the vaccine is approved is the day you start manufacturing. We know that this is not what is happening here. In fact, in just a few minutes, I am going to mention that the head of distribution is saying, on the day the vaccine is approved, we will start shipping millions of copies of that vaccine all over the country.

This all really started with Congress's deciding, as we put these COVID relief packages together from the very first couple of packages, that when it came to a cure, we were not going to let funding stand in the way nor were we going to let it stand in the way of investing some money somewhere that just simply didn't work because, by investing money where it didn't work, it allowed us to invest money where it did work. Congress appropriated $18 billion for vaccines and testing. About $12.5 billion has gone into the vaccine side. Most of the rest has gone into testing, with some going into therapy. This is a decision Congress made. With this vaccine, we are going to become partners in developing how we fight back.

There was a risk that some of the vaccine candidates we supported wouldn't make it, but there was never a risk that the vaccine candidates that did make it wouldn't be as safe as any vaccine has ever been. In fact, many of these vaccines have had more people involved in the studies than ever before. Because of the virulence of the virus, the people in the studies, frankly, were more likely than not to be exposed to COVID, and a bunch of them were more likely than not to catch it. Of course, that is the moment when you decide if the group that caught the virus was the group that had the virus—the group that had the vaccine in these studies—or if it were the group that didn't have the vaccine. What we found out was, 95 percent of the time, it was the group that didn't have the vaccine, which is where you get that 95 percent number.

Congress provided that we would take some risk. We so often hear that failure is not an option. In this case, if you didn't fail, you were not trying hard enough. If all you wind up with are things that have gotten approved, then you probably have left some things on the table that you should have tried.

The Presiding Officer is a great businessman, and he knows, if you are in a business that is growing, you are going to have some failures. If you have never had failures in your business, you have not tried anything new, which means you probably haven't grown. So we would have failures not in a vaccine that we would give to people but by thinking: This would appear like it would have a good chance of being approved, so let's put it in the group of vaccines that we are working on.

President Trump and Operation Warp Speed stepped up and decided they were going to move at a faster pace than ever before but with more safety than we have had in most vaccine developments in the history of the country. So we decided to support several vaccines that, again, we thought had a better chance of being approved than not. Now, you take some risk in that because all of the vaccines won't be approved, but you take no risk if you are going to support a vaccine that is approved but that is not safe. Yet that is not what happened at all. You just put a lot of racehorses in the race.

The dean of the National School of Tropical Medicine at Baylor University says, if you are racing to get a vaccine quickly, one way to do it is to put as many horses in the race as you can, and that is exactly what we have done. We have invested in several potential vaccines and, I think, three different paths to a vaccine, which means that all of the vaccines that are approved will not be exactly the same in how you have to store them, in how you have to transport them, and whether you have to have one shot or two to have the full vaccine.

And we have signed contracts with six leading candidates already. We have invested $2.5 billion to help develop and purchase 100 million doses of the vaccine being developed by Moderna. That was jointly developed by the National Institute of Allergy and Infectious Diseases and the company.

We have dedicated $2 billion in a different pattern to purchase 100 million doses of the Pfizer vaccine, and we have done that with that investment in a way that allows us to shorten the processing time, combining various study phases and clinical trials going on at the same time and moving forward in a way that also allowed us to be manufacturing vaccines while we were still studying and moving toward final approval by the FDA.

So we have two vaccines standing and ready now for final approval, another one to join them soon, and another one to join them quickly after that. But all of them are already in the stage of manufacturing.

So what is the worst thing that could have happened to taxpayers? We invest in a vaccine that turns out not to work, and, at that point we step in, meet our commitment—in essence, buy the vaccine that didn't work—be sure that it is effectively destroyed, and realize that that was a chance that we took that didn't produce a result. But the other vaccines that did work had a result and had vaccine available as soon as they were approved.

In fact, General Perna, Operation Warp Speed's chief operating officer, said the government would begin vaccinations within 24 hours after a vaccine secures FDA approval. In the past, I would say you would be closer to saying it will be 12 or 24 months after approval before the first vaccine is ready to go to the first person, but now we are saying 24 hours, and we are on the edge of that 24 hours.

I talked today with the Governor of my State, the Governor of Missouri, Mike Parson, and the head of the Missouri Department of Health and Senior Services, Dr. Randall Williams, about what they were doing. They submitted a plan early. I was with the Governor—I think it was in mid-August—when the Centers for Disease Control told all the Governors: We want to have a plan by the end of October of how you are going to distribute this vaccine when you get it.

I said at about that same time that if we failed in our effort to get the vaccine effectively distributed after the effort we made to get it, it would be one of the great government failures of all time.

But Governor Parson, Dr. Williams, and others who have worked hard on this in our State put a plan in and put it in pretty early and now are ready to execute that plan as soon as they have the vaccine available to them.

About 2 percent of the population of the country lives in Missouri, and so about 2 percent of every distribution will go to Missouri as vaccines are ready.

Pfizer will have about 25 million vaccines to distribute almost immediately. Moderna will have about 20 million to distribute almost immediately. And we know that others are standing right behind them.

Another thing that Congress asked the Centers for Disease Control to do was to come up with a recommendation on who the vaccine should be given to. And just this week the CDC advisory committee made their recommendation to the Centers for Disease Control. Either today or sometime soon after today, the CDC, in all likelihood, will adopt those recommendations as they have in this past.

The recommendations go something like this: First, you want to prioritize healthcare workers and people most likely to have the worst result if they catch the virus. So if you take all the healthcare workers in America and all the people in a senior living kind of condition in America, you are talking about around 15 percent of the population.

Somewhere in there, either in that group or the next group, you include all the first responders and police officers in the country, who come into situations so often that they have no control over, and then you go to the other essential employees in America—the childcare center worker, the schoolteacher, the busdriver, the grocery store clerk, the food processing person who is out there making this happen.

I think there has been some decision made on the healthcare workers that we should include clergy in the healthcare workers because they are so often present in hospitals and with people in circumstances where they would like to see someone from their faith present, but that person also is a healthcare provider in the healthcare network and, just like others working in the hospital, will be able to get that early vaccination.

But let's go back to the essential workforce. The essential workforce of the groups we have talked about and others who come into lots of contact with people are often least able to make arrangements in their own time to even get a vaccine if it is for free. They are going to be a big priority.

When I go to the grocery store and I ask someone for help, which I often need to do to find the one thing on my list I don't know how to find, or when I go by to check out with the grocery store clerk, if the grocery store clerk, no matter how big the shield is between them and me, if they couldn't possibly get it from the person who checked out 2 days earlier or early that day, they can't possibly give it to me.

So every step of the way, the whole country becomes safer until, hopefully, by the end of April or so, we are at a place where everybody has access to the vaccine.

By the way, by the time you do the 15 percent of the population that is most likely to have a bad result if they get the virus and healthcare workers and

add that to the 35 percent of the population that is the essential workforce, that is 50 percent of the population that could have the vaccine if they chose to have it.

I think most people think that we are there, in our State and other places, by sometime in April. In fact, Dr. Fauci said that Americans determined to be at the highest risk—healthcare workers, frontline workers, seniors, those with underlying conditions—could be vaccinated by the end of the year.

Certainly, if there is a second shot, it might be by the end of January, and you have 15 percent of the whole population vaccinated by the end of January or sometime in January, and another 35 percent would have the vaccine available to them by sometime in April.

Then we look at the rest of the population. But in each step of the way—let me say again—every time you take somebody off the playing field of where contact with the virus could successfully occur, everybody else gets safer too.

If a person who has been vaccinated is where the germs happen to land instead of the person standing beside them who wasn't vaccinated, the life of that particular germ is gone, and eventually that is how you emerge from a pandemic. There just aren't enough people left for this to land on that either haven't had it or haven't had the vaccine to prevent it.

It is a critical time. It is an important time. I think we have written two new chapters in pandemic response, both in testing and in vaccines.

Operation Warp Speed has done in months what typically can take 10 to 15 years and, even in an expedited way, can take 2 to 3 to 5 years.

Given the urgent need to beat this virus, I think Operation Warp Speed, with the great scientific community—a lot of this is built on research that was funded by NIH. One of the priorities of the Congress for the last 5 years has been to increase NIH funding, at a time when we know more about genetics.

Two of these vaccines are basically based on the molecular code that is sort of the software for genetics. It is a different way than vaccines have been developed before and would not have been developed without government-encouraged research.

Having a diverse selection of vaccines means there are different people producing vaccines at the same time in different places, and we will have, more likely, a quick and fair distribution of any FDA-authorized vaccines.

Certainly, I have been frustrated, as many of us have, to think that we have not been able to reach an agreement on what money we might need to finish this vaccine effort, the distribution effort.

Hopefully, we can come to the next round of COVID relief sooner rather than later.

As I said earlier this week, a targeted funding package now will have a lot more impact than a much bigger package would have 4 or 5 months from now. There is no reason we shouldn't be able to find common ground. This is a time when we can make that effort to finish the job. The pandemic is affecting Americans every day. I have talked to a lot of people who have seen greater numbers of drug dependency and huge declines in mental health because that support network is gone and isolation has taken over, and worry about family, finances, and health has become a big part of that.

Let's show the people we work for that we are going to be able to continue this job, and let's praise the great researchers in our country and others who stepped forward in incredible ways to do things that just 9 months ago nobody thought could possibly be established in the timeframe we are working on right now.

The PRESIDING OFFICER. The Senator from Missouri.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to executive session for the consideration of the following nomination: Executive Calendar No. 568.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the nomination.

The senior assistant legislative clerk read the nomination of Lanny Erdos, of Ohio, to be Director of the Office of Surface Mining Reclamation and Enforcement.

There being no objection, the Senate proceeded to consider the nomination.

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate vote on the nomination with no intervening action or debate; that, if confirmed, the motion to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

The question is, Will the Senate advise and consent to the Erdos nomination?

The nomination was confirmed.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to legislative session and be in a period of morning business with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEBERING CHARLES CARROLL SMITH

Mr. DURBIN. Mr. President, I would like to take a few moments to say farewell to a friend and a public servant who served my State of Illinois and our Nation well. His name was Charles Carroll Smith, but his friends called him Charlie. He died on the day after Thanksgiving. Our paths crossed often over the years.

Charlie served as Illinois' deputy secretary of state under then-Secretary of State Alan Dixon. When Alan Dixon was elected to the U.S. Senate in 1980, Charlie came to Washington with him. He was a key member of the Dixon staff, serving as both legislative director and senior national security adviser. When Alan Dixon left the Senate, Charlie joined the staff of Kentucky Senator Wendell Ford, then the Senate's Democratic whip. Charlie was Senator Ford's legislative staff director and a trusted adviser to Senator Ford on matters involving national security and foreign relations.

He helped craft and pass many important pieces of legislation, including the 1990 law establishing the Defense Base Closure and Realignment Commission in 1990. He went on to serve as executive director of the 1995 Defense Base Closure and Realignment Commission-a massive task to try to realign America's military bases with the realities of the post-Cold War world.

The work of the Base Closure Commission was necessary, complex, and historic, and Charlie's intricate understanding of both the Defense Department and the security needs of America and our allies was critical to the commission's success. Despite the gargantuan task, Charlie was never too busy to listen. I and all of the Members of the Illinois congressional delegation appreciated his willingness to always consider fairly our explanations about the national security importance of the military bases in our State. He never put his thumb on the scale for Illinois, but he made sure that we received a fair hearing. The day the commission announced its recommendations in 2005, Charlie called me to explain in layman's language just what the recommendations meant for Illinois and for America. I have never met anyone with a greater understanding of the workings of the Defense Department and the ability to translate that knowledge into plain English. He was a rare one.

Charlie came by his political and legislative skills the old-fashioned way. He inherited them. He grew up in an Irish Catholic Democratic family on the North Side of Chicago. His father was in politics; his mother was a professor. Charlie was the first-born and only son in the family of three children.

The Smith family took politics and democracy seriously. Charlie and his father were both named Charles Carroll Smith, senior and junior. Family legend has it that they were descended from Charles Carroll, one of the signers of America's Declaration of Independence and a member of the Continental Congress. Whether it was true or not—

this was before at-home DNA testing—the Smith family strove to live up to Charles Carroll's patriotic example.

When Charlie was about 11, his father decided that the Smith family home should be a laboratory of democracy. They would discuss important events at the dinner table, and once a week, they would have a meeting to vote on matters involving the family. After just one or two of these family meetings, Charlie had an epiphany. He told his sister Sheila: ''You know, if we three kids stick together, we can outvote Mom and Dad.'' He said: ''I want a bike. What do you want?'' Charlie figured out what both of his sisters wanted and how to deliver it. At the next family meeting, the girls supported Charlie's proposal to buy him a bike. The kids won, and Charlie got his bike. The Smith family never held another family vote, but Charlie would go on to use his coalition-building skills in the interest of public service for the rest of his life.

In 1968, Charlie joined the U.S. Army and served as an intelligence officer in Vietnam during the Tet offensive.

He left public service in 1999 and began his second career as a lobbyist. He was respected by members of Congress on both sides of the aisle as a straight shooter and a good man.

Besides his family, politics, and public service, Charlie loved the Chicago Bears and the Cubs and playing golf. Every Christmas season, Charlie hosted a party for his friends at the Army Navy Country Club in Arlington, VA. It was always a great, bipartisan celebration. This Friday, Charlie's friends will gather by Zoom to remember him on what would have been his 26th annual Christmas party. He will be missed there, and he will be missed in the halls of Congress, in his old neighborhood in Chicago, and many other places.

Loretta and I send our condolences to Charlie's wife Patti Turner; his sisters, Sheila Smith and Catherine Wilson; and his many, many friends.

ADDITIONAL STATEMENTS

TRIBUTE TO LAURA NOWLIN

● Mr. DAINES. Mr. President, this week I have the honor of recognizing Laura Nowlin of Teton County for her compassion and dedication to her community.

Since 1986, Laura has devoted her time to working at the Teton County Food Pantry as both a volunteer and a member of the executive board. Over the course of her 33 years at the food pantry, she ensured families in the community had healthy and hearty groceries with no exceptions. Rain or shine, Laura was always there to help the people of Teton County get the nutrition they needed.

Recently named a board member emeritus of the pantry, Laura will be dearly missed by her colleagues. Her unwavering selflessness was an incredibly valuable asset to both the pantry and her community.

It is my distinct honor to recognize Laura for her tireless service to the people of Teton County. Her kindness and charitable approach to work serves as an inspiration to all Montanans who serve our communities.●

TRIBUTE TO ROY LEE LINDSEY

● Mr. INHOFE. Mr. President, I am pleased to recognize Mr. Roy Lee Lindsey for his 22 years of service at the Oklahoma Pork Council. Since 1998, he has served as a steadfast advocate for pork producers and the agriculture industry in Oklahoma and we are grateful for his years of service.

Over the years, I have had the experience of working directly with Roy Lee on a number of issues, and I have greatly valued his insight, partnership, and dedication to ensuring the hard-working pork producers in the State of Oklahoma have access to the Federal resources they need. Anyone who has had the pleasure to meet and work with Roy Lee can attest for his love of the state of Oklahoma and the pork industry. His unwavering passion and dedication have enabled him to be an extraordinary ambassador for Oklahoma, both regionally and nationally.

From sharing producers' perspectives on multiple farm bill reauthorizations to engaging in workforce development initiatives to educate our future generation of farmers, Roy Lee has always provided a judicious, thoughtful, and considerate perspective on Federal policy. His understanding of the challenges of agriculture production and appreciation for the producers he represents has consistently been apparent in his advocacy efforts and instrumental in the pork industry's growth and prosperity in Oklahoma.

I know I join his family and all that know him in thanking him for his years of service and contributions to Oklahoma and our entire agriculture community.●

TRIBUTE TO BRENT HILL

● Mr. RISCH. Mr. President, along with my colleague Senator MIKE CRAPO, I rise today to recognize Idaho State Senate President Pro Tempore Brent Hill's 19 years of service to the State of Idaho.

In 2001, Brent Hill was appointed to lead Idaho's 34th District as a State senator. He quickly developed a reputation as a legislator who led with integrity, civility and kindness—characteristics that earned him reelection to serve nine consecutive terms in the Idaho State Senate.

In the Idaho Senate and throughout the 34th District, Brent was known as a stalwart supporter of small businesses, family values, natural resources, and public education. Brent's expansive knowledge of the Federal and State tax codes from his experience as a CEO, CPA, and a financial planner allowed him to shape Idaho's tax policy and communicate complex tax legislation to fellow legislators and constituents. He considered tax dollars sacred and took great care in spending them responsibly.

As he climbed the ranks of leadership to become president pro tempore, Brent never forgot the people he served in Madison and Bonneville Counties and always demonstrated true concern for their challenges and concerns. Despite the demands on his time, he continued to serve his community on the board of the Citizens Community Bank and as president of the Rexburg Chamber of Commerce and Rexburg Kiwanis Club. He never stopped advocating on behalf of his constituents, regularly contacting our offices to secure assistance for those needing help with Federal agencies.

Senator Brent Hill leaves behind a legacy of service and integrity, and we wish him and his wife Julie, their children and grandchildren the best as he transitions back to private life. His steadfast leadership will be missed in the Idaho Senate, but we know his community and our State will continue to be blessed by his influence for years to come.●

TRIBUTE TO MAYOR JOHN PAUL CHRISTENSEN

● Mr. ROMNEY. Mr. President, we rise to congratulate John Paul Christensen on his lifetime of service to the State of Utah and Sanpete County and most recently his service as mayor of Mayfield, UT. John's service also includes a career in law enforcement, as an emergency medical responder and as a city councilman.

As a sixth-generation native of Sanpete County, John has dedicated his life to the betterment of his community. By virtue of his stewardship as mayor, the people of Mayfield have John to thank for dramatic improvements to the city's infrastructure, including its culinary water and drainage systems, streets, roadways, cemetery, and Mayfield Park. Mayor Christensen's accomplishments are made possible in large part by the industrious community of volunteers and spirit of friendship that Mayfield boasts.

The residents of Mayfield know John as a man of great character and compassion. In law enforcement and as an emergency medical responder, the community trusted John with protecting their lives and livelihoods, an often thankless duty that requires mental fortitude and dedication to serving the greater good. His long tenure in public service is evidence of his success.

Although he is leaving public office, we know that John will continue to serve his community and family with heart. As a devoted husband to Julie, a father of 9, and a grandfather of 19, John's legacy and example will endure. The great people of Mayfield, Sanpete

County, and our fellow Americans ought to look to John's commitment to public safety, duty, and service with gratitude.

Thank you, John.●

TRIBUTE TO RALPH OKERLUND

● Mr. ROMNEY. Mr. President, we wish to congratulate State Senator Ralph Okerlund on a remarkable career dedicated to the relentless advancement of prosperity for the great State of Utah. For the many Utahns lucky enough to know him personally—from the hills of Monroe to the halls of the State legislature—it is no surprise that Ralph has chosen to spend more time with his loving family following a consequential tenure in public life. Even for the many Utahns to whom Ralph is still unknown, his influence on civic life through his statewide legislative achievements is significant and enduring.

Senator Okerlund's success can be measured in tangible improvements in his district and across the State. His legislative efforts to facilitate investment in Utah's infrastructure projects, with tax credit incentives and coordination with the State energy and economic development offices, have brought billions of dollars to Utah—a massive boon to the State's economy and its rural counties. In addition, his efforts through the legislative appropriations process delivered Snow College a new building and higher pay for its employees. As a member of the legislative leadership on Capitol Hill, Senator Okerlund kept his commitment to allocate tax dollars wisely and effectively.

Senator Okerlund's success can also be measured by his family and by his fortitude. His professional journey began as a teacher, with degrees from Dixie College and the University of Utah. Ralph then returned to Monroe to help run his family farm and to be closer to his father, whose injury compelled his return. Okerlund would acquire and later sell the dairy but ran the farm for years until his election to the Monroe City Council. Apace with his subsequent ascensions to the mayor's office, Sevier County commission, State senate, and ultimately senate majority leader, is his family of children and grandchildren beside him, including his beloved wife Cindy, who call Monroe home. Ralph has persisted through hardship with the support of his family.

A tireless champion for rural Utah, Senator Okerlund has represented the unique challenges and opportunities facing farmers, ranchers, and rural folks at the State and national level as president of the Council of State Governments Western Association. In this role, he represented Utah's interests among neighboring States with competing ideas on how to manage critical issues like regional energy and land management. His successes in these efforts is undoubtedly owed to his deep understanding of the issues as a man raised in Monroe.

Few can boast the wealth of personal and professional experiences amassed by Ralph Okerlund in his long and distinguished career—from dairyman to senate majority leader—but every Utahn can admire and follow his commitment to service. His record in government is not marked by expedience but, rather, by a willingness to rise to the occasion and answer the call of his neighbors and friends who seek his reliable judgement and sound leadership. Ralph Okerlund has led for 36 years as an elected official and will continue to serve his family, his friends, and his community with grace and humility.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Ms. Ridgway, one of his secretaries.

EXECUTIVE MESSAGE REFERRED

In executive session the Presiding Officer laid before the Senate a message from the President of the United States submitting a nomination which was referred to the Committee on Armed Services.

(The message received today is printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 10:57 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, without amendment:

S. 945. An act to amend the Sarbanes-Oxley Act of 2002 to require certain issuers to disclose to the Securities and Exchange Commission information regarding foreign jurisdictions that prevent the Public Company Accounting Oversight Board from performing inspections under that Act, and for other purposes.

S. 4054. An act to reauthorize the United States Grain Standards Act, and for other purposes.

The message also announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 7995. An act to amend title 31, United States Code, to save Federal funds by authorizing changes to the composition of circulating coins, and for other purposes.

The message further announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 125. Concurrent resolution directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1830.

The message also announced that the House has agreed to the amendment of the Senate to the bill (H.R. 1830) to require the Secretary of the Treasury to mint coins in commemoration of the National Purple Heart Hall of Honor.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 7995. An act to amend title 31, United States Code, to save Federal funds by authorizing changes to the composition of circulating coins, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5997. A communication from the Deputy Administrator for Policy Support, Food and Nutrition Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Child Nutrition Programs: Rescission of Milk, Whole Grains, and Sodium Flexibilities: Notice of Vacatur'' (RIN0584–AE84) received in the Office of the President of the Senate on December 02, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5998. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Sethoxydim; Pesticide Tolerances'' (FRL No. 10016–23–OCSPP) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5999. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Adipic acid; Exemption from the Requirement of a Tolerance'' (FRL No. 10015–57–OCSPP) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6000. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Repeal of DFARS Clauses Related to Taxes Applied to Foreign Contracts in Afghanistan'' (RIN0750–AL11) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6001. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Repeal of DFARS Provision and Clause on Reserve Officer Training Corps and Military Recruiting on Campus'' (RIN0750–AK89) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6002. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Restriction on the Acquisition of Tantalum'' (RIN0750–AK94) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6003. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of

a rule entitled ''Inflation Adjustment of Acquisition-Related Threshold'' (RIN0750–AK76) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6004. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Repeal of DFARS Provision 'Alternate Preservation, Packaging, and Packing''' (RIN0750–AK59) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6005. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Repeal of DFARS Clause 'Substitutions for Military or Federal Specifications and Standards''' (RIN0750–AK60) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6006. A communication from the Federal Register Liaison Officer, Office of the Under Secretary of Defense for Acquisition and Sustainment, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Treatment of Certain Items as Commercial Items'' (RIN0750–AK66) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Armed Services.

EC–6007. A communication from the President of the United States, transmitting, pursuant to law, a report relative to the continuation of the national emergency that was originally declared in Executive Order 13851 of November 27, 2018, with respect to Nicaragua; to the Committee on Banking, Housing, and Urban Affairs.

EC–6008. A communication from the Secretary of the Securities and Exchange Commission, transmitting, pursuant to law, the report of a rule entitled ''Management's Discussion and Analysis, Selected Financial Data, and Supplementary Financial Information'' (RIN3235–AM28) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Banking, Housing, and Urban Affairs.

EC–6009. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Rhode Island; Final Approval of State Underground Storage Tank Program Revisions, Codification, and Incorporation by Reference'' (FRL No. 10015–22–Region 1) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Environment and Public Works.

EC–6010. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Chemical Data Reporting; Extension of the 2020 Submission Period'' (FRL No. 10016–96–OCSPP) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Environment and Public Works.

EC–6011. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''South Carolina: Final Authorization of State Hazardous Waste Management Program Revisions'' (FRL No. 10016–11–Region 4) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Environment and Public Works.

EC–6012. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Financial Responsibility Requirements Under CERCLA Section 108(b) for Facilities in the Electric Power Generation, Transmission, and Distribution Industry; the Petroleum and Coal Products Manufacturing Industry; and the Chemical Manufacturing Industry'' (FRL No. 10017–87–OLEM) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Environment and Public Works.

EC–6013. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Significant New Use Rules on Certain Chemical Substances (20–2.B)'' (FRL No. 10015–16–OCSPP) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Environment and Public Works.

EC–6014. A communication from the Acting Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Additional Policy and Regulatory Revisions in Response to the COVID–19 Public Health Emergency'' (RIN1210–AB98) received in the Office of the President of the Senate on November 10, 2020; to the Committee on Finance.

EC–6015. A communication from the Director of the Legal Processing Division, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Additional Policy and Regulatory Revisions in Response to the COVID–19 Public Health Emergency'' ((RIN1545–BP97) (TD 9931)) received in the Office of the President of the Senate on November 16, 2020; to the Committee on Finance.

EC–6016. A communication from the Regulations Coordinator, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; Modernizing and Clarifying the Physician Self-Referral Regulations (CMS–1720-F)'' (RIN0938–AT64) received in the Office of the President of the Senate on December 2, 2020; to the Committee on Finance.

EC–6017. A communication from the Chief Counsel, Foreign Claims Settlement Commission of the United States, Department of Justice, transmitting, pursuant to law, the Commission's annual report for calendar year 2019; to the Committee on Foreign Relations.

EC–6018. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2020–0101 - 2020–0103); to the Committee on Foreign Relations.

EC–6019. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2020–0091 - 2020–0100); to the Committee on Foreign Relations.

EC–6020. A communication from the Acting Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Transparency in Coverage'' (RIN1210–AB93) received in the Office of the President of the Senate on November 17, 2020; to the Committee on Health, Education, Labor, and Pensions.

EC–6021. A communication from the Director, National Science Foundation, transmitting, pursuant to law, the Department's Agency Financial Report for fiscal year 2020 and the Uniform Resource Locator (URL) for the Report; to the Committee on Homeland Security and Governmental Affairs.

EC–6022. A communication from the Commissioner, Social Security Administration, transmitting, pursuant to law, the Agency Financial Report for fiscal year 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6023. A communication from the Chief Financial Officer, Department of Homeland Security, transmitting, pursuant to law, the Department's Agency Financial Report for fiscal year 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6024. A communication from the Chair of the Board of Governors, Federal Reserve System, transmitting, pursuant to law, the Inspector General's Semiannual Report for the six-month period from April 1, 2020 through September 30, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6025. A communication from the Administrator, Environmental Protection Agency, transmitting, pursuant to law, the Agency's Semiannual Report of the Office of Inspector General for the period from April 1, 2020 through September 30, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6026. A communication from the Chairman, Federal Maritime Commission, transmitting, pursuant to law, the Commission's Semiannual Report of the Inspector General for the period from April 1, 2020 through September 30, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6027. A communication from the Inspector General of the Pension Benefit Guaranty Corporation, transmitting, pursuant to law, the Inspector General's Semiannual Report to Congress for the period from April 1, 2020, through September 30, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6028. A communication from the Chairman, Federal Maritime Commission, transmitting, pursuant to law, the Commission's Performance and Accountability Report for fiscal year 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6029. A communication from the Secretary of Veterans Affairs, transmitting, pursuant to law, the Department of Veterans Affairs' Semiannual Report of the Inspector General for the period from April 1, 2020 through September 30, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6030. A communication from the Chairman of the Surface Transportation Board, Department of Transportation, transmitting, pursuant to law, the Board's Performance and Accountability Report for fiscal year 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6031. A communication from the Secretary of Veterans Affairs, transmitting, pursuant to law, the Department of Veterans Affairs' Semiannual Report of the Inspector General for the period from October 1, 2019 through March 31, 2020; to the Committee on Homeland Security and Governmental Affairs.

EC–6032. A communication from the Section Chief of the Diversion Control Division, Drug Enforcement Administration, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Implementation of the Ryan Haight Online Pharmacy Consumer Protection Act of 2008'' (RIN1117–AB20) received in the Office of the President of the Senate on November 9, 2020; to the Committee on the Judiciary.

EC–6033. A communication from the Section Chief of the Diversion Control Division,

Drug Enforcement Administration, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Implementation of the Combat Metamphetamine Epedemic Act of 2005; Retail Sales; Notice of Transfers Following Importation or Exportation'' (RIN1117–AB05) received in the Office of the President of the Senate on December 2, 2020; to the Committee on the Judiciary.

EC–6034. A communication from the Executive Director, National Mining Hall of Fame and Museum, transmitting, pursuant to law, the Museum's 2019 annual report and financial audit; to the Committee on the Judiciary.

EC–6035. A communication from the President and Chief Executive Officer, National Railroad Passenger Corporation, Amtrak, transmitting, pursuant to law, a report relative to a request for additional funding as a part of a COVID–19 relief bill; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petitions and memorials were laid before the Senate and were referred or ordered to lie on the table as indicated:

POM–261. A concurrent resolution adopted by the Legislature of the State of Louisiana urging the United States Congress and the Louisiana Congressional delegation to take such actions as are necessary to defeat passage of the ''Ocean-Based Climate Solutions Act of 2020'' and to protect future opportunities for oil and gas exploration on the Outer Continental Shelf; to the Committee on Commerce, Science, and Transportation.

HOUSE CONCURRENT RESOLUTION NO. 38

Whereas, Raúl M. Grijalva (D–Ariz.), Chairman of the United States House Committee on Natural Resources has unveiled legislation entitled the ''Ocean-Based Climate Solutions Act of 2020'' with the intent to include ocean impacts of climate change in the discussions of methods to address climate change mitigation; and

Whereas, in an effort to restore coastal ecosystems, strengthen marine mammal conservation, reduce carbon emissions from shipping vessels, improve international ocean governance, and pursue other ocean-related solutions to the climate change crisis, the legislation seeks to end the federal offshore oil-leasing program; and

Whereas, although these pursuits sound laudable, it is important to remember that the Louisiana oil and gas industry supports nearly two hundred and fifty thousand jobs inside the state of Louisiana and more in adjoining states, it accounts for fourteen percent of the state's tax revenue, and supplies $73 billion of the state's gross domestic product; and

Whereas, an analysis has found that such a proposal, if enacted, would cause the loss of nearly one million jobs nationwide in the first twelve to twenty-four months, forty-eight thousand of which are located here in Louisiana; and

Whereas, this proposal would significantly reduce our domestic energy production, making our nation more dependent on less reliable, less safe foreign sources for energy produced under weaker environmental standards and a higher carbon footprint; and

Whereas, with energy demand expected to continue to rise until at least 2040, Louisiana currently produces nearly twenty percent of our nation's energy, refines approximately forty-five percent of the total United States petroleum, and processes fifty-one percent of the nation's natural gas; and

Whereas, while meeting this demand year after year, Louisiana energy producers are at the forefront of carbon emissions reduction technology development like carbon capture and storage that can capture ninety percent of carbon emissions from fossil fuels; and

Whereas, in addition, the offshore oil and gas industry in the United States operates under some of the most stringent environmental rules in the world and its infrastructure also supports some of the most abundant fish habitat providing fishing opportunities that have made Louisiana the ''Sportsman's Paradise''; and

Whereas, protecting leasing and production in the Outer Continental Shelf will help combat climate change by helping our state combat coastal land loss and sustain oil and gas operations in the Gulf of Mexico critical to energy innovations needed to reduce carbon emissions; and

Whereas, Louisiana and its local economies, especially communities reliant on energy development and production, have felt an outsized impact from the COVID–19 pandemic and are expected to face a slower recovery than many other states because of our large service sector employment; and

Whereas, Louisiana already faces major budget shortfalls that will impact schools, emergency services, and other essential services; and

Whereas, under the provisions of the Gulf of Mexico Security Act, in 2019 alone energy production on the Outer Continental Shelf generated over $155 million to the state of Louisiana used for coastal restoration and hurricane preparedness; and

Whereas, ensuring access to available leasing acreage on the Outer Continental Shelf will protect offshore energy production as an essential part of our state's budget when our state and local governments need it the most; therefore be it

Resolved, That the Legislature of Louisiana does hereby memorialize the Louisiana Congressional Delegation and the United States Congress to take such actions as are necessary to defeat passage of the ''Ocean-Based Climate Solutions Act of 2020'' and to protect future opportunities for oil and gas exploration on the Outer Continental Shelf; and be it further

Resolved, That a copy of this Resolution be transmitted to the presiding officers of the Senate and the House of Representatives of the Congress of the United States of America and to each member of the Louisiana Congressional Delegation.

POM–262. A concurrent resolution adopted by the Legislature of the State of Louisiana urging the United States Congress and the Louisiana Congressional delegation to take such actions as are necessary to defeat passage of the ''Ocean-Based Climate Solutions Act of 2020'' and to protect future opportunities for oil and gas exploration on the Outer Continental Shelf; to the Committee on Commerce, Science, and Transportation.

HOUSE CONCURRENT RESOLUTION NO. 38

Whereas, Raúl M. Grijalva (D–Ariz.), Chairman of the United States House Committee on Natural Resources has unveiled legislation entitled the ''Ocean-Based Climate Solutions Act of 2020'' with the intent to include ocean impacts of climate change in the discussions of methods to address climate change mitigation; and

Whereas, in an effort to restore coastal ecosystems, strengthen marine mammal conservation, reduce carbon emissions from shipping vessels, improve international ocean governance, and pursue other ocean-related solutions to the climate change crisis, the legislation seeks to end the federal offshore oil-leasing program; and

Whereas, although these pursuits sound laudable, it is important to remember that the Louisiana oil and gas industry supports nearly two hundred and fifty thousand jobs inside the state of Louisiana and more in adjoining states, it accounts for fourteen percent of the state's tax revenue, and supplies $73 billion of the state's gross domestic product; and

Whereas, an analysis has found that such a proposal, if enacted, would cause the loss of nearly one million jobs nationwide in the first twelve to twenty-four months, forty-eight thousand of which are located here in Louisiana; and

Whereas, this proposal would significantly reduce our domestic energy production, making our nation more dependent on less reliable, less safe foreign sources for energy produced under weaker environmental standards and a higher carbon footprint; and

Whereas, with energy demand expected to continue to rise until at least 2040, Louisiana currently produces nearly twenty percent of our nation's energy, refines approximately forty-five percent of the total United States petroleum, and processes fifty-one percent of the nation's natural gas; and

Whereas, while meeting this demand year after year, Louisiana energy producers are at the forefront of carbon emissions reduction technology development like carbon capture and storage that can capture ninety percent of carbon emissions from fossil fuels; and

Whereas, in addition, the offshore oil and gas industry in the United States operates under some of the most stringent environmental rules in the world and its infrastructure also supports some of the most abundant fish habitat providing fishing opportunities that have made Louisiana the ''Sportsman's Paradise''; and

Whereas, protecting leasing and production in the Outer Continental Shelf will help combat climate change by helping our state combat coastal land loss and sustain oil and gas operations in the Gulf of Mexico critical to energy innovations needed to reduce carbon emissions; and

Whereas, Louisiana and its local economies, especially communities reliant on energy development and production, have felt an outsized impact from the COVID–19 pandemic and are expected to face a slower recovery than many other states because of our large service sector employment; and

Whereas, Louisiana already faces major budget shortfalls that will impact schools, emergency services, and other essential services; and

Whereas, under the provisions of the Gulf of Mexico Security Act, in 2019 alone energy production on the Outer Continental Shelf generated over $155 million to the state of Louisiana used for coastal restoration and hurricane preparedness; and

Whereas, ensuring access to available leasing acreage on the Outer Continental Shelf will protect offshore energy production as an essential part of our state's budget when our state and local governments need it the most; therefore be it

Resolved, That the Legislature of Louisiana does hereby memorialize the Louisiana Congressional Delegation and the United States Congress to take such actions as are necessary to defeat passage of the ''Ocean-Based Climate Solutions Act of 2020'' and to protect future opportunities for oil and gas exploration on the Outer Continental Shelf; and be it further

Resolved, That a copy of this Resolution be transmitted to the presiding officers of the Senate and the House of Representatives of the Congress of the United States of America and to each member of the Louisiana Congressional Delegation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. BLUNT, from the Committee on Rules and Administration, with an amendment in the nature of a substitute:

S. 959. A bill to establish in the Smithsonian Institution a comprehensive women's history museum, and for other purposes.

By Mr. BLUNT, from the Committee on Rules and Administration, without amendment:

H.R. 2420. An act to establish within the Smithsonian Institution the National Museum of the American Latino, and for other purposes.

EXECUTIVE REPORTS OF COMMITTEES

The following executive reports of nominations were submitted:

By Mr. INHOFE for the Committee on Armed Services.

Marine Corps nomination of Brig. Gen. Austin E. Renforth, to be Major General.

Army nomination of Col. Guy M. Jones, to be Brigadier General.

Air Force nomination of Lt. Gen. Michael T. Plehn, to be Lieutenant General.

Navy nomination of Rear Adm. Jeffrey W. Hughes, to be Vice Admiral.

Air Force nominations beginning with Brig. Gen. Patrick J. Cobb and ending with Brig. Gen. Darrin E. Slaten, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nominations beginning with Brig. Gen. Matthew D. Dinmore and ending with Brig. Gen. Mark A. Weber, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nominations beginning with Brig. Gen. Sandra L. Best and ending with Brig. Gen. Brett A. Wyrick, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nominations beginning with Brig. Gen. James R. Camp and ending with Brig. Gen. Torrence W. Saxe, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nomination of Brig. Gen. Barry A. Blanchard, to be Major General.

Air Force nomination of Col. Tara D. McKennie, to be Brigadier General.

Air Force nominations beginning with Col. Matthew A. Barker and ending with Col. Bryony A. Terrell, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nominations beginning with Col. Jeffrey R. Alexander and ending with Col. Rick L. Mutchler, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nominations beginning with Col. John H. Bondhus and ending with Col. Peter L. Zalewski, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Air Force nomination of Col. Denise M. Donnell, to be Brigadier General.

Air Force nomination of Col. Anthony D. Stratton, to be Brigadier General.

Mr. INHOFE. Mr. President, for the Committee on Armed Services I report favorably the following nomination lists which were printed in the RECORDS on the dates indicated, and ask unanimous consent, to save the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators.

The PRESIDING OFFICER. Without objection, it is so ordered.

Air Force nomination of Michael G. King, to be Colonel.

Air Force nominations beginning with Jeffrey Donald Adling and ending with Christopher D. Zaremski, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Air Force nominations beginning with Chikaodi H. Akalaonu and ending with Tabatha R. Zellhart, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Air Force nominations beginning with Brian C. Adkins and ending with Scott C. Zetterstrom, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Air Force nominations beginning with Jason W. Abshire and ending with Brian P. Yoder, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Air Force nominations beginning with Priscilla M. Adams and ending with Isaac C. Williams, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Air Force nomination of Miriam A. Krieger, to be Colonel.

Air Force nominations beginning with Jean P. Peltier and ending with Tara L. Villena, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Army nomination of John M. Tokish, to be Colonel.

Army nomination of Mark Y. Lee, to be Colonel.

Army nomination of Andrew C. Sinelli, to be Colonel.

Army nomination of Phillip J. Armstrong, to be Colonel.

Army nomination of Tony D. Nguyen, to be Colonel.

Army nomination of Matthew B. Harrison, to be Colonel.

Army nomination of Michael S. Scioletti, to be Colonel.

Army nomination of Brandon M. Crisp, to be Second Lieutenant.

Marine Corps nomination of William J. Warkentin, to be Lieutenant Colonel.

Marine Corps nomination of Jared L. Reddinger, to be Lieutenant Colonel.

Navy nominations beginning with Raul T. Acevedo and ending with Sheu O. Yusuf, which nominations were received by the Senate and appeared in the Congressional Record on October 20, 2020.

Navy nominations beginning with Branden J. Albrecht and ending with Brandy L. Zehr, which nominations were received by the Senate and appeared in the Congressional Record on October 20, 2020.

Navy nominations beginning with Mark E. Beaudet and ending with Zachary B. Zumwalt, which nominations were received by the Senate and appeared in the Congressional Record on October 20, 2020.

Navy nominations beginning with Christopher L. Adcock and ending with Michael J. Yoshihara, which nominations were received by the Senate and appeared in the Congressional Record on October 20, 2020.

Navy nominations beginning with Jason E. Hayes and ending with Christopher S. Walton, which nominations were received by the Senate and appeared in the Congressional Record on October 20, 2020.

Navy nominations beginning with Jeffrey B. Aday and ending with Jessica L. Zimmerman, which nominations were received by the Senate and appeared in the Congressional Record on October 26, 2020.

Navy nominations beginning with John A. O. Abordo and ending with True Xiong, which nominations were received by the Senate and appeared in the Congressional Record on October 26, 2020.

Navy nominations beginning with Joshua M. Adams and ending with Kent J. D. Wong, which nominations were received by the Senate and appeared in the Congressional Record on October 26, 2020.

Navy nominations beginning with Cassandra E. Abbott and ending with James J. Yoon, which nominations were received by the Senate and appeared in the Congressional Record on October 26, 2020.

Navy nominations beginning with Ezindu U. Ananti and ending with Eric C. Wright, which nominations were received by the Senate and appeared in the Congressional Record on October 26, 2020.

Navy nominations beginning with Michael A. Ajao and ending with Bryan E. Wooldridge, Jr., which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with Natalie R. Bakan and ending with Christopher E. Verzosa, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with James P. Adwell and ending with Jessica N. Woody, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with Bryan C. Barletto and ending with David W. Warning, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with Colleen L. Abuzeid and ending with Robyn V. White, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nomination of Brian B. Toupin, to be Lieutenant Commander.

Navy nomination of Jennifer L. Rhinehart, to be Lieutenant Commander.

Navy nomination of Brandon E. Clark, to be Lieutenant Commander.

Navy nominations beginning with Christopher L. Allen and ending with Edward P. Windas, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with Raynard Allen and ending with Marlin Williams, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with James G. Angerman and ending with Joseph M. Zukowsky, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

Navy nominations beginning with Matthew B. Alexander and ending with Angelina R. Woodburn, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Derek S. Bernsen and ending with William J. Reimer, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Deena R. Abt and ending with Todd W . Wish, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Patrick R. Adams and ending with David M. Yost, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Joshua D. Allen and ending with Shawn F. Zentner, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Oluwaseun O. O. Abegunde and ending with Peter J. Zollweg, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Bekim F. Austin and ending with Henry A. Villatoro, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Robert T. Augustine and ending with Alexander J. Wunderlich, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Gavin L. Kurey and ending with Anthony J. Wich, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Christopher S. Fife II and ending with Wayne M. Zanni, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with James F. Adams and ending with Mary C. Walsh, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with David F. Boring and ending with Jacqueline Zimny, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Neha U. Athavale and ending with Eric T. Wilmer, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Malikul A. Aziz and ending with Scott H. Zinn II, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with Luis E. Banchs and ending with Matthew K. Wittkopp, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Navy nominations beginning with George W. Acfalle and ending with Emma S. Yearby, which nominations were received by the Senate and appeared in the Congressional Record on November 18, 2020.

Space Force nominations beginning with Israel Abensur and ending with Devin Lee Zufelt, which nominations were received by the Senate and appeared in the Congressional Record on November 12, 2020.

By Mr. BLUNT for the Committee on Rules and Administration.

*Allen Dickerson, of the District of Columbia, to be a Member of the Federal Election Commission for a term expiring April 30, 2025.

*Shana M. Broussard, of Louisiana, to be a Member of the Federal Election Commission for a term expiring April 30, 2023.

*Sean J. Cooksey, of Missouri, to be a Member of the Federal Election Commission for a term expiring April 30, 2021.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. KENNEDY:

S. 4954. A bill to amend the CARES Act to simplify the procedure for applying for forgiveness for certain loans made under the Paycheck Protection Program, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Mrs. FEINSTEIN (for herself and Mrs. BLACKBURN):

S. 4955. A bill to amend the Internal Revenue Code of 1986 to provide for an election to expense certain qualified sound recording costs otherwise chargeable to capital account; to the Committee on Finance.

By Mr. CASEY (for himself, Ms. DUCKWORTH, and Mr. VAN HOLLEN):

S. 4956. A bill to create a Council on Emergency Response Protocols to ensure the establishment of accessible, developmentally appropriate, culturally aware, and trauma-informed emergency response protocols in public schools, early childcare and education settings, and institutions of higher education, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. CASEY (for himself, Mr. BOOKER, Mr. VAN HOLLEN, Mr. BLUMENTHAL, Mr. MENENDEZ, Ms. SMITH, Ms. DUCKWORTH, Ms. WARREN, Ms. STABENOW, Mr. BROWN, Mrs. SHAHEEN, Mr. MERKLEY, Mr. PETERS, Mrs. GILLIBRAND, Mr. REED, Mr. MARKEY, Ms. BALDWIN, Ms. KLOBUCHAR, and Mr. SANDERS):

S. 4957. A bill to provide for an emergency increase in Federal funding to State Medicaid programs for expenditures on home and community-based services; to the Committee on Finance.

By Mr. PORTMAN (for himself, Mr. CARDIN, Mr. THUNE, and Mr. MENENDEZ):

S. 4958. A bill to provide for a vaccine safety public awareness campaign; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BRAUN:

S. 4959. A bill to increase transparency and access to group health plan and health insurance issuer reporting, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. REED:

S. 4960. A bill to extend of period for adjustment of status for certain Liberian nationals; to the Committee on the Judiciary.

By Ms. BALDWIN:

S. 4961. A bill to improve the efficiency and reliability of rail transportation by reforming the Surface Transportation Board, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. SCHATZ:

S. 4962. A bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize a grant program to assist State and local law enforcement agencies in purchasing body-worn cameras and securely storing and maintaining recorded data for law enforcement officers; to the Committee on the Judiciary.

By Mr. SCHATZ:

S. 4963. A bill to establish a bipartisan Presidential Commission to study the establishment of a National Museum of the American People to tell the story about the making of the American People, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. COONS (for himself and Mr. SCOTT of South Carolina):

S. 4964. A bill to establish a Next Generation Entrepreneurship Corps program within the Small Business Administration, and for other purposes; to the Committee on Small Business and Entrepreneurship.

By Mr. COTTON (for himself, Mr. MCCONNELL, Mrs. BLACKBURN, Mr. BOOZMAN, Mrs. LOEFFLER, Mr. PERDUE, and Mr. SCOTT of Florida):

S. 4965. A bill to regulate the posting of personal information of government officials on the internet, and for other purposes; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. SCHUMER (for himself and Mrs. GILLIBRAND):

S. Res. 788. A resolution recognizing the 20th Anniversary for the Jed Foundation; to the Committee on the Judiciary.

By Mr. MENENDEZ (for himself, Mr. DURBIN, Mr. CARDIN, Mrs. FEINSTEIN, Mr. COONS, Mr. MARKEY, Mrs. SHAHEEN, Ms. DUCKWORTH, and Mr. MURPHY):

S. Res. 789. A resolution urging the Government of Thailand to protect and uphold democracy, human rights, the rule of law, and rights to freedom of peaceful assembly and freedom of expression, and for other purposes; to the Committee on Foreign Relations.

By Mr. MENENDEZ (for himself, Mr. RUBIO, and Mr. DURBIN):

S. Res. 790. A resolution supporting efforts to strengthen protection, assistance, and solutions for Venezuelan women and children; to the Committee on Foreign Relations.

By Mr. COONS (for himself, Mr. SCOTT of South Carolina, Mr. CARPER, and Ms. ERNST):

S. Res. 791. A resolution designating November 2020 as ''National College Application Month''; considered and agreed to.

By Mr. MCCONNELL (for himself and Mr. SCHUMER):

S. Res. 792. A resolution to authorize representation by the Senate Legal Counsel in the case of Chad Michael Frein v. Dianne Feinstein; considered and agreed to.

By Mr. RUBIO (for himself, Mr. SCOTT of Florida, Mr. PERDUE, Mr. JONES, Mr. SHELBY, and Mrs. LOEFFLER):

S. Res. 793. A resolution remembering the December 6, 2019, terrorist attack at Naval Air Station Pensacola and commemorating those who lost their lives, and those who were injured, in the line of duty; considered and agreed to.

By Mr. BOOKER (for himself, Mr. MARKEY, Mr. SANDERS, Mr. BLUMENTHAL, Mr. MENENDEZ, Mr. COONS, Ms. KLOBUCHAR, Ms. WARREN, Ms. DUCKWORTH, Mr. WHITEHOUSE, Mr. BROWN, and Mr. DURBIN):

S. Con. Res. 50. A concurrent resolution urging the establishment of a United States Commission on Truth, Racial Healing, and Transformation; to the Committee on the Judiciary.

ADDITIONAL COSPONSORS

S. 914

At the request of Ms. KLOBUCHAR, her name was added as a cosponsor of S. 914, a bill to reauthorize the Integrated Coastal and Ocean Observation System

Act of 2009, to clarify the authority of the Administrator of the National Oceanic and Atmospheric Administration with respect to post-storm assessments, and to require the establishment of a National Water Center, and for other purposes.

S. 980

At the request of Mr. WYDEN, his name was added as a cosponsor of S. 980, a bill to amend title 38, United States Code, to improve the provision of services for homeless veterans, and for other purposes.

S. 1267

At the request of Mr. MENENDEZ, the name of the Senator from Texas (Mr. CRUZ) was added as a cosponsor of S. 1267, a bill to establish within the Smithsonian Institution the National Museum of the American Latino, and for other purposes.

S. 1273

At the request of Mr. KENNEDY, the name of the Senator from Illinois (Ms. DUCKWORTH) was added as a cosponsor of S. 1273, a bill to amend title 17, United States Code, to establish an alternative dispute resolution program for copyright small claims, and for other purposes.

S. 1363

At the request of Ms. KLOBUCHAR, her name was added as a cosponsor of S. 1363, a bill to authorize an AI Center of Excellence within the General Services Administration, and for other purposes.

S. 1443

At the request of Ms. ERNST, the name of the Senator from New Hampshire (Ms. HASSAN) was added as a cosponsor of S. 1443, a bill to amend the Internal Revenue Code of 1986 to provide a nonrefundable credit for working family caregivers.

S. 1652

At the request of Mr. CASEY, the names of the Senator from Illinois (Ms. DUCKWORTH) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of S. 1652, a bill to amend the Internal Revenue Code of 1986 to provide for a refundable adoption tax credit.

S. 2257

At the request of Mr. DURBIN, the name of the Senator from Vermont (Mr. LEAHY) was added as a cosponsor of S. 2257, a bill to reform the financing of Senate elections, and for other purposes.

S. 2907

At the request of Ms. HASSAN, the names of the Senator from New York (Mrs. GILLIBRAND), the Senator from Maryland (Mr. VAN HOLLEN), the Senator from Connecticut (Mr. MURPHY) and the Senator from Minnesota (Ms. SMITH) were added as cosponsors of S. 2907, a bill to amend title XVIII of the Social Security Act to provide coverage of medical nutrition therapy services for individuals with eating disorders under the Medicare program.

S. 3067

At the request of Mrs. CAPITO, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 3067, a bill to amend title XVIII of the Social Security Act to combat the opioid crisis by promoting access to non-opioid treatments in the hospital outpatient setting.

S. 3072

At the request of Mrs. HYDE-SMITH, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 3072, a bill to amend the Federal Food, Drug, and Cosmetic Act to prohibit the approval of new abortion drugs, to prohibit investigational use exemptions for abortion drugs, and to impose additional regulatory requirements with respect to previously approved abortion drugs, and for other purposes.

S. 3291

At the request of Mr. ROBERTS, the name of the Senator from Nevada (Ms. ROSEN) was added as a cosponsor of S. 3291, a bill to amend the Small Business Act to expand tax credit education and training for small businesses that engage in research and development, and for other purposes.

S. 3451

At the request of Mr. SCOTT of South Carolina, the names of the Senator from Connecticut (Mr. BLUMENTHAL), the Senator from New York (Mrs. GILLIBRAND) and the Senator from Wisconsin (Ms. BALDWIN) were added as cosponsors of S. 3451, a bill to improve the health and safety of Americans living with food allergies and related disorders, including potentially life-threatening anaphylaxis, food protein-induced enterocolitis syndrome, and eosinophilic gastrointestinal diseases, and for other purposes.

S. 3723

At the request of Mr. SCHATZ, the name of the Senator from Nevada (Ms. CORTEZ MASTO) was added as a cosponsor of S. 3723, a bill to provide services to victims of sexual abuse who are incarcerated, and for other purposes.

S. 3753

At the request of Mr. BRAUN, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 3753, a bill to direct the Secretary of Veterans Affairs to ensure that certain medical facilities of the Department of Veterans Affairs have physical locations for the disposal of controlled substances medications.

S. 3814

At the request of Mr. YOUNG, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 3814, a bill to establish a loan program for businesses affected by COVID–19 and to extend the loan forgiveness period for paycheck protection program loans made to the hardest hit businesses, and for other purposes.

S. 4086

At the request of Mr. BOOZMAN, the names of the Senator from Alaska (Mr. SULLIVAN) and the Senator from Nevada (Ms. ROSEN) were added as cosponsors of S. 4086, a bill amend title 38, United States Code, to revise the definition of Vietnam era for purposes of the laws administered by the Secretary of Veterans Affairs, and for other purposes.

S. 4150

At the request of Ms. COLLINS, the name of the Senator from Louisiana (Mr. KENNEDY) was added as a cosponsor of S. 4150, a bill to require the Secretary of the Treasury to provide assistance to certain providers of transportation services affected by the novel coronavirus.

S. 4162

At the request of Mrs. FISCHER, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. 4162, a bill to provide certainty for airport funding.

S. 4326

At the request of Mr. ENZI, the name of the Senator from Idaho (Mr. CRAPO) was added as a cosponsor of S. 4326, a bill to require the Secretary of the Treasury to honor the 100th anniversary of completion of coinage of the ''Morgan Dollar'' and the 100th anniversary of commencement of coinage of the ''Peace Dollar'' , and for other purposes.

S. 4433

At the request of Mr. CORNYN, the name of the Senator from Mississippi (Mrs. HYDE-SMITH) was added as a cosponsor of S. 4433, a bill to authorize the National Medal of Honor Museum Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

S. 4461

At the request of Mr. LANKFORD, the names of the Senator from Pennsylvania (Mr. TOOMEY), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Indiana (Mr. BRAUN), the Senator from Utah (Mr. LEE), the Senator from Florida (Mr. SCOTT), the Senator from Wyoming (Mr. ENZI), the Senator from Montana (Mr. DAINES) and the Senator from Louisiana (Mr. CASSIDY) were added as cosponsors of S. 4461, a bill to provide for a period of continuing appropriations in the event of a lapse in appropriations under the normal appropriations process, and establish procedures and consequences in the event of a failure to enact appropriations.

S. 4494

At the request of Ms. HASSAN, the names of the Senator from Ohio (Mr. BROWN), the Senator from Virginia (Mr. KAINE), the Senator from Kansas (Mr. MORAN), the Senator from Massachusetts (Ms. WARREN), the Senator from Delaware (Mr. CARPER), the Senator from Oregon (Mr. WYDEN) and the Senator from Pennsylvania (Mr. CASEY) were added as cosponsors of S. 4494, a bill to amend title VI of the Social Security Act to extend the period with respect to which amounts under the Coronavirus Relief Fund may be expended.

S. 4497

At the request of Mr. TOOMEY, the name of the Senator from Oklahoma (Mr. LANKFORD) was added as a cosponsor of S. 4497, a bill to temporarily suspend duties on imports of articles needed to combat the COVID–19 pandemic.

S. 4594

At the request of Mr. TESTER, the name of the Senator from Oregon (Mr. WYDEN) was added as a cosponsor of S. 4594, a bill to amend title 38, United States Code, to improve and to expand eligibility for dependency and indemnity compensation paid to certain survivors of certain veterans.

S. 4613

At the request of Mr. BOOZMAN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 4613, a bill to amend the Fairness to Contact Lens Consumers Act to prevent certain automated calls and to require notice of the availability of contact lens prescriptions to patients, and for other purposes.

S. 4657

At the request of Ms. ERNST, the names of the Senator from Nevada (Ms. ROSEN) and the Senator from Indiana (Mr. YOUNG) were added as cosponsors of S. 4657, a bill to direct the Secretary of Veterans Affairs to designate one week each year as ''Buddy Check Week'' for the purpose of outreach and education concerning peer wellness checks for veterans, and for other purposes.

S. 4663

At the request of Ms. HASSAN, the names of the Senator from North Dakota (Mr. CRAMER), the Senator from Wyoming (Mr. BARRASSO), the Senator from Iowa (Ms. ERNST) and the Senator from Delaware (Mr. CARPER) were added as cosponsors of S. 4663, a bill to amend title 31, United States Code, to save Federal funds by authorizing changes to the composition of circulating coins, and for other purposes.

S. 4757

At the request of Mr. DURBIN, the names of the Senator from Washington (Mrs. MURRAY), the Senator from Nevada (Ms. ROSEN) and the Senator from New Mexico (Mr. HEINRICH) were added as cosponsors of S. 4757, a bill to amend the Animal Welfare Act to establish additional requirements for dealers, and for other purposes.

S. 4840

At the request of Mr. ROBERTS, the name of the Senator from Mississippi (Mrs. HYDE-SMITH) was added as a cosponsor of S. 4840, a bill to amend title XVIII of the Social Security Act to require the inclusion of certain audio-only diagnoses in the determination of risk adjustment for Medicare Advantage plans, and for other purposes.

S. 4858

At the request of Mr. ROUNDS, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of S. 4858, a bill to amend title 38, United States Code, and the Honoring America's Veterans and Caring for Camp Lejeune Families Act of 2012, to make certain enhancements to grants awarded by the Secretary of Veterans Affairs and contracts between the Secretary and entities that provide services to homeless veterans, and for other purposes.

S. 4867

At the request of Mr. COONS, the names of the Senator from Maine (Mr. KING) and the Senator from West Virginia (Mrs. CAPITO) were added as cosponsors of S. 4867, a bill to direct the Secretary of Health and Human Services to support research on, and expanded access to, investigational drugs for amyotrophic lateral sclerosis, and for other purposes.

S. 4907

At the request of Mr. PETERS, the names of the Senator from New York (Mr. SCHUMER) and the Senator from Nevada (Ms. CORTEZ MASTO) were added as cosponsors of S. 4907, a bill to nullify Executive Order 13957, entitled ''Creating Schedule F In The Excepted Service''.

S. 4918

At the request of Mr. LEE, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 4918, a bill to transfer antitrust enforcement functions from the Federal Trade Commission to the Department of Justice, and for other purposes.

S. 4935

At the request of Mr. WYDEN, the names of the Senator from New York (Mrs. GILLIBRAND), the Senator from Connecticut (Mr. BLUMENTHAL), the Senator from Massachusetts (Mr. MARKEY), the Senator from Wisconsin (Ms. BALDWIN), the Senator from New Jersey (Mr. BOOKER) and the Senator from Minnesota (Ms. SMITH) were added as cosponsors of S. 4935, a bill to provide continued assistance to unemployed workers.

S. CON. RES. 9

At the request of Mr. ROBERTS, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. Con. Res. 9, a concurrent resolution expressing the sense of Congress that tax-exempt fraternal benefit societies have historically provided and continue to provide critical benefits to the people and communities of the United States.

S. RES. 778

At the request of Mr. BRAUN, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of S. Res. 778, a resolution recognizing Interscholastic Athletic Administrators' Day on December 15, 2020.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 788—RECOGNIZING THE 20TH ANNIVERSARY FOR THE JED FOUNDATION

Mr. SCHUMER (for himself and Mrs. GILLIBRAND) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 788

Whereas, 20 years ago, Donna and Phillip Satow set out to launch a blueprint for suicide prevention with the founding of the Jed Foundation;

Whereas Donna and Phillip tragically lost their son, Jed, 2 years earlier to suicide;

Whereas they recognized the need for a uniform model for suicide prevention on college and university campuses and the need to address the stigma and secrecy associated with mental health in these communities;

Whereas campus prevention programs at the time were limited in scope and priority, and the Satows are to be commended for their dedication to mental health and creating the Jed Foundation, a national nonprofit organization, to surmount those hurdles;

Whereas, through their passion, vision, and dedication to the Jed Foundation, the Satows have worked tirelessly to transform the way teen and young adult mental health is understood and supported;

Whereas, due to the commitment and vision of the Satows, the Jed Foundation is a recognized leader in transforming policies, programs, and systems to protect the mental and emotional health of, and prevent suicide for, teens and young adults;

Whereas, through the efforts of the Satows, the Jed Foundation created JED Campus, a program which has helped implement a comprehensive approach to mental health for over 300 colleges and universities representing nearly 3,700,000 students, strengthening their mental health, substance use, and suicide prevention programs;

Whereas, in the past 20 years, the Jed Foundation has provided programs and resources that have helped more than 3,000 high schools, colleges, and universities strengthen their mental health safety nets for teens and young adults throughout the Nation;

Whereas the Jed Foundation has educated over 10,000 high school, college, university, and other mental health professionals in suicide prevention through various educational initiatives;

Whereas the Jed Foundation has partnered with over 1,600 college and universities to utilize the Foundation's ULifeline.org online resource center to provide students with information about mental health and how to seek help if they are struggling;

Whereas the Jed Foundation and the Satow's vision have continued to address the mental health needs of diverse communities by ensuring that mental health resources are culturally responsive and providing key resources in Spanish for Latinx teens, young adults, and their families;

Whereas the Jed Foundation and the Satow's dedication to mental health has led to in-depth research to help schools and communities more effectively understand and support the mental health of LGBTQ+ teens and young adults;

Whereas the Jed Foundation has created a national campaign, Seize the Awkward, to encourage teens and young adults to start a conversation with a friend who may be struggling with mental health issues;

Whereas the Jed Foundation's anonymous mental health self-evaluator has been used by students over 400,000 times to assess their symptoms and receive customized information about how to seek help for their mental health needs;

Whereas the Jed Foundation works toward a future where every high school, college, and university has a comprehensive mental health system that supports mental and

emotional health and reduces the risk of substance misuse and suicide for teens and young adults;

Whereas the Jed Foundation, through the Satow's vision and commitment, works to equip all teens and young adults with the ability to navigate mental health challenges, to seek and give help, and to emotionally prepare them to enter adulthood and fulfill their potential; and

Whereas the Jed Foundation works to have mental health recognized as part of general health and wellness, and to reduce the shame, secrecy, or prejudice often associated with mental health: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the 20th anniversary of the Jed Foundation;

(2) commends Donna and Phillip Satow for their vision, continued commitment, and leadership; and

(3) applauds the Jed Foundation for being a leading organization promoting the well-being of students, families, and schools and paving the way for more young people to find the resources and the support they need.

SENATE RESOLUTION 789—URGING THE GOVERNMENT OF THAILAND TO PROTECT AND UPHOLD DEMOCRACY, HUMAN RIGHTS, THE RULE OF LAW, AND RIGHTS TO FREEDOM OF PEACEFUL ASSEMBLY AND FREEDOM OF EXPRESSION, AND FOR OTHER PURPOSES

Mr. MENENDEZ (for himself, Mr. DURBIN, Mr. CARDIN, Mrs. FEINSTEIN, Mr. COONS, Mr. MARKEY, Mrs. SHAHEEN, Ms. DUCKWORTH, and Mr. MURPHY) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 789

Whereas the Kingdom of Thailand and the United States of America first established relations in 1818 and entered into the Treaty of Amity and Commerce in 1833, formalizing diplomatic relations;

Whereas Thailand was the first treaty ally of the United States in the Asia-Pacific region and remains a steadfast friend of the United States with shared values of democracy, rule of law, universal human rights, and a free market;

Whereas the United States and Thailand in 1954 signed the Southeast Asia Collective Defense Treaty (Manila Pact), pledging to ''strengthen the fabric of peace and freedom and to uphold the principles of democracy, individual liberty and the rule of law'';

Whereas, through the Treaty of Amity and Economic Relations of 1966, along with a diverse and growing trading relationship, the United States and Thailand have developed strong economic ties;

Whereas the United States recognizes Thailand as a founding member of the Association of Southeast Asian Nations (ASEAN) and host of the 35th ASEAN Summit in 2019, which reaffirmed that body's commitment to ''a region of lasting peace, security and stability, sustained economic growth, shared prosperity and social progress'';

Whereas Thailand was designated a major non-NATO ally in 2003, and is one of the strongest security partners of the United States, a relationship that was recognized and expanded upon in the United States-Thailand Joint Vision Statement for the Thai-United States Defense Alliance in 2012;

Whereas the Governments of Thailand and the United States hold numerous joint military exercises, including Cobra Gold, the largest annual multinational military exercise in the Indo-Pacific region, which is hosted by Thailand;

Whereas the Government of Thailand continues to be a partner on humanitarian and refugee assistance, including support from U-Tapao Royal Thai Navy Air Field for multinational relief efforts following the 2004 Indian Ocean tsunami and 2015 Nepal earthquake;

Whereas Thailand ended absolute monarchy and transitioned to a constitutional monarchy in 1932, and since then has revised its constitution seventeen times, including a 1997 constitution that enshrined democratically elected representatives in a bicameral national assembly and the prime minister as head of government, and a 2007 constitution that largely retained that structure;

Whereas cycles of coups and military rule have been a recurring feature of governance in Thailand for almost a century;

Whereas the Royal Thai military conducted a coup in 2014, abolished the 2007 constitution, declared martial law, and replaced the civilian government with a junta under the leadership of Army Commander Prayuth Chan-ocha;

Whereas the junta's National Council for Peace and Order drafted a new constitution which was promulgated in 2017, and served to erode Thailand's democracy and constitutional protection of rights;

Whereas, in March 2019, Thailand held elections that several independent monitoring groups declared as deeply flawed and heavily tilted to favor the military junta, whose party, headed by Prayuth, formed a new government with the support of the military-appointed and unelected Senate;

Whereas, in January 2020, the opposition political party Future Forward was dissolved and banned on order of the Constitutional Court following a flawed legal process premised on spurious charges;

Whereas the Government of Thailand has failed to properly investigate issues with respect to violent assaults against democracy activists and government critics within Thailand, as well as enforced disappearances and killings of exiled Thai political dissidents across Asia;

Whereas, since February 2020, tens of thousands of protesters across Thailand, largely students and youth, have peacefully called for democratically elected government, constitutional reform, and respect for human rights;

Whereas the Government of Thailand has responded to these peaceful protests with repressive measures, including intimidation tactics, surveillance, harassment, arrests, violence and imprisonment;

Whereas Prayuth declared a state of emergency on October 15, 2020, and characterized the growing pro-democracy protests as threats to national security and public safety;

Whereas more than 170 peaceful protesters have been arrested since February 2020, many of them charged with serious crimes, including sedition, that carry potentially long prison sentences; and

Whereas UNICEF has expressed concern about the potential harm that children face amidst the ongoing protests in Thailand and called on all parties to uphold children and young people's right to freedom of expression and peaceful assembly, and to protect them from all forms of violence and intimidation: Now, therefore, be it

Resolved, That the Senate—

(1) reaffirms the strong relationship between the United States and Thailand based on shared democratic values and strategic interests;

(2) stands in solidarity with the people of Thailand in their quest for a democratically elected government, political reforms, long-term peace, and respect for established international human rights standards;

(3) urges the Government of Thailand to protect and uphold democracy, human rights, the rule of law, and rights to freedom of peaceful assembly and freedom of expression, as well as immediately and unconditionally release political activists and refrain from harassing, intimidating, or persecuting those engaged in peaceful protests, with particular care for the rights and well-being of children and students;

(4) calls on the United States Government to support the right of the people of Thailand to peacefully and democratically determine their future; and

(5) unequivocally states that a military coup to resolve the current political crisis would be counterproductive and risk further undermining bilateral relations between the United States and Thailand.

SENATE RESOLUTION 790—SUPPORTING EFFORTS TO STRENGTHEN PROTECTION, ASSISTANCE, AND SOLUTIONS FOR VENEZUELAN WOMEN AND CHILDREN

Mr. MENENDEZ (for himself, Mr. RUBIO, and Mr. DURBIN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 790

Whereas over 5,400,000 Venezuelans have been displaced across Latin America and the Caribbean—the world's second largest displacement crisis—and at least 7,000,000 people inside Venezuela are in need of humanitarian assistance as a result of the country's ongoing political and economic crisis;

Whereas the COVID–19 pandemic is exacerbating the humanitarian crisis in Venezuela, given the country's weak health infrastructure, and posing particular risks for Venezuelan refugees and migrants such as eviction, loss of livelihoods, border closures and other travel restrictions, lack of access to health care for those without documentation, and gender-based violence;

Whereas it is well-recognized that displacement crises—

(1) exacerbate pre-existing violence against women and girls;

(2) interrupt children's education and increase their exposure to violence and exploitation;

(3) cause major stress and trauma on individuals and families that can have profound effects on mental health and result in significant needs for psychological and social support; and

(4) disrupt family and community connections that mitigate against such violence and trauma;

Whereas, between 2015 and 2016, maternal mortality rates in Venezuela increased by 65 percent and infant mortality within the first week of life increased by 53 percent, and the dire state of Venezuela's public health system has compelled women to flee the country in order to give birth;

Whereas one-third of Venezuelan households are food insecure, with the greatest risk of adverse nutritional impacts on children, pregnant and lactating women, and the elderly, according to the World Food Program;

Whereas the growing prevalence of criminal violence, especially intimate partner violence, and human trafficking, endemic corruption, and impunity in Venezuela has contributed to a significant increase in femicides;

Whereas Venezuelan women and girls report an increase in pregnancies of adolescent girls over the past 2 years, including many resulting from sexual violence and coercion;

Whereas indigenous women and girls in Venezuela's border communities face heightened risks of violence as a result of extreme poverty, discrimination, and the encroachment of extractive mining industries on their land;

Whereas women and girls fleeing Venezuela face grave threats of sexual violence, exploitation, and trafficking by armed groups operating in border regions, such as the Ejército de Liberación Nacional (ELN), and these threats have grown since COVID-related border closures have forced asylum seekers into unofficial border crossing routes (''trochas'');

Whereas the trafficking of Venezuelan women and children is linked to organized crime and armed groups, which often kidnap girls into trafficking networks in other countries and, in addition, forcibly recruit boys and young men;

Whereas, despite the generous policies of host countries, less than half of Venezuelan refugee and migrant children were attending school prior to COVID-related closures, because of lack of documentation to enroll, limited space in public schools, and lack of resources to pay fees;

Whereas governments throughout Latin America and the Caribbean have participated in a series of technical meetings to coordinate a regional strategy for the protection and regularization of Venezuelan refugees and migrants—known as the ''Quito Process''—and issued a joint declaration in November 2019 that agreed to strengthen measures against human trafficking, gender-based violence, discrimination, and xenophobia, and to establish a regional protection protocol for refugee and migrant children and adolescents;

Whereas the United States has committed to strengthen international protection of women and children through the U.S. Strategy on Women, Peace, and Security, which aims to ''promote the protection of women and girls' human rights; access to humanitarian assistance; and safety from violence, abuse, and exploitation around the world'', as well as through the U.S. Government Strategy on Advancing Protection and Care for Children in Adversity; and

Whereas the international community has prioritized addressing the issue of gender-based violence in humanitarian contexts by establishing a Safe from the Start initiative, implemented by the Department of State and the United States Agency for International Development: Now, therefore, be it

Resolved, That the Senate—

(1) expresses grave concern for the massive and growing humanitarian needs of Venezuelans, including over 5,400,000 Venezuelan refugees and migrants, with particular concern for the impact of the displacement crisis and the COVID–19 pandemic on women and children;

(2) recognizes the many communities across Latin America and the Caribbean that continue to generously receive and host Venezuelan refugees and migrants while also fighting to recover from the COVID–19 pandemic;

(3) appreciates participation in the Quito Process by the Governments of Argentina, Brazil, Chile, Colombia, Costa Rica, the Dominican Republic, Ecuador, Guyana, Mexico, Panama, Paraguay, Peru, and Uruguay, and encourages implementation of their commitments to strengthen national processes of documentation and registration and to bolster protections for Venezuelan refugees and migrants subject to gender-based violence, human trafficking, and xenophobia;

(4) encourages governments hosting Venezuelan refugees and migrants, as well as international and nongovernmental organizations providing assistance, to ensure that shelter, health care, food assistance, mental health and psychosocial support, and other basic services are accessible to women and children;

(5) calls on the international community, including both humanitarian and development actors, to focus greater attention and resources to address the violence, abuse, and exploitation suffered by Venezuelan women and children, including by disaggregating data by sex and age in needs assessments and program reporting; and

(6) supports increasing United States diplomatic initiatives and humanitarian assistance to strengthen protections for Venezuelan refugees and migrants and their host communities, with an emphasis on the protection of women and children.

SENATE RESOLUTION 791—DESIGNATING NOVEMBER 2020 AS ''NATIONAL COLLEGE APPLICATION MONTH''

Mr. COONS (for himself, Mr. SCOTT of South Carolina, Mr. CARPER, and Ms. ERNST) submitted the following resolution; which was considered and agreed to:

S. RES. 791

Whereas equality of opportunity for all people is one of the noblest aspirations of the United States;

Whereas data on the benefits of higher education demonstrate that, in spite of ongoing barriers to access and student success, colleges and universities can still provide pathways to economic opportunity;

Whereas the United States built a thriving middle class by funding colleges and universities to provide avenues to individual economic opportunity and shared economic growth;

Whereas higher education enhances the economic mobility of individuals, which is evidenced by—

(1) a finding by the Brookings Institute that the median lifetime earnings of holders of an associate degree are uniformly greater than the median lifetime earnings of holders of solely a high school diploma; and

(2) a finding by the Pew Economic Mobility Project that, for an individual born in the lowest income quintile, obtaining a 4-year degree or a higher degree is associated with—

(A) an approximately 70 percent difference in the probability of that individual earning an income outside the lowest income quintile; and

(B) a threefold difference in the probability of that individual going on to earn an income in the highest income quintile;

Whereas the Bureau of Labor Statistics reports that—

(1) the unemployment rate of high school graduates in 2019 who did not immediately matriculate to an institution of higher education the following fall semester was 18.2 percent, which is significantly higher than the overall unemployment rate of the United States;

(2) approximately 34 percent of high school graduates in 2019 did not immediately matriculate to an institution of higher education the following fall semester, which represents a decline from the prior year in the rate of immediate matriculation of new high school graduates to an institution of higher education;

(3) the decline described in paragraph (2) was most notable among African American high school graduates, who faced a 20 percent decline from the prior year in immediate matriculation to an institution of higher education; and

(4) the unemployment rate of adults with a bachelor's degree and the unemployment rate of adults whose highest credential is a high school diploma differ by 20 percentage points, a gap that has grown larger as a result of COVID–19;

Whereas the National Student Clearinghouse reports that undergraduate enrollment in colleges and universities is declining precipitously in the midst of the COVID–19 pandemic, particularly for nontraditional students;

Whereas the complexity of financial aid systems and rising college costs can serve as additional deterrents or barriers for students and families as they assess the viability of higher education programs as a postsecondary option;

Whereas many students struggle to identify and compare postsecondary options due to—

(1) difficulties accessing school counseling services, which is evidenced by an estimation of the American School Counselor Association that the student-to-counselor ratio in the United States is 430 to 1;

(2) an absence of reliable programmatic and institutional outcome data; and

(3) a lack of comparable and understandable college financial aid offers;

Whereas, in addition to expanding outreach and support to recent high school graduates, colleges and universities must also expand outreach and support to all undergraduate students;

Whereas the Digest of Education Statistics for 2019 of the National Center for Education Statistics and the 2015–16 National Postsecondary Student Aid Survey found that, of undergraduate students in the United States—

(1) approximately 27 percent are older than 25 years of age;

(2) 38 percent are enrolled part-time;

(3) 24 percent are parents; and

(4) 86 percent live off-campus;

Whereas the National Center for Education Statistics highlights that completion of the Free Application for Federal Student Aid is one of the best predictors of immediate college enrollment, as high school seniors who complete the form are 84 percent more likely to begin postsecondary education in the fall following high school graduation;

Whereas applications for State-based financial aid are available in many States for students who do not qualify for Federal student aid; and

Whereas the ongoing impact of the COVID–19 pandemic on communities, families, and educational systems across the United States underscores and reinforces the value of ensuring that all individuals, including students enrolled in high school and working adults—

(1) understand their postsecondary options;

(2) understand college financing opportunities; and

(3) have support to navigate the college application and financial aid processes: Now, therefore, be it

Resolved, That the Senate—

(1) designates November 2020 as ''National College Application Month'';

(2) encourages the people of the United States to—

(A) evaluate options for pursuing higher education;

(B) submit a Free Application for Federal Student Aid or an appropriate application for State-based financial aid in order to receive college financing opportunities; and

(C) support every student, regardless of the background, age, or resources of the student,

in obtaining the skills and knowledge needed to thrive;

(3) supports efforts to better assist low-income and first-generation college students throughout the financial aid and college application process;

(4) urges public officials, educators, parents, students, and communities in the United States to observe National College Application Month with appropriate activities and programs designed to encourage students to consider, research, and apply to college and for financial aid; and

(5) commends teachers, counselors, mentors, and parents who support students throughout the college application process, as well as the organizations and institutions partnering to eliminate barriers to higher education.

SENATE RESOLUTION 792—TO AUTHORIZE REPRESENTATION BY THE SENATE LEGAL COUNSEL IN THE CASE OF CHAD MICHAEL FREIN V. DIANNE FEINSTEIN

Mr. MCCONNELL (for himself and Mr. SCHUMER) submitted the following resolution; which was considered and agreed to:

S. RES. 792

Whereas, Senator Dianne Feinstein has been named as a defendant in the case of *Chad Michael Frein v. Dianne Feinstein*, Civil Action No. 20–CV–0252–LJV, currently pending in the United States District Court for the Western District of New York;

Whereas, pursuant to sections 703(a) and 704(a)(1) of the Ethics in Government Act of 1978, 2 U.S.C. §§ 288b(a) and 288c(a)(1), the Senate may direct its counsel to defend Members of the Senate in civil actions relating to their official responsibilities: Now therefore, be it

Resolved, That the Senate Legal Counsel is authorized to represent Senator Feinstein in the case of *Chad Michael Frein v. Dianne Feinstein*.

Mr. MCCONNELL. Mr. President, on behalf of myself and the distinguished Democratic leader, Mr. SCHUMER, I send to the desk a resolution authorizing representation by the Senate Legal Counsel and ask for its immediate consideration.

Mr. MCCONNELL. Mr. President, this resolution concerns a civil action pending in New York federal court against Senator FEINSTEIN. In this lawsuit, the pro se plaintiff asserts a jumble of confusing allegations claiming that local government officials in California have assaulted him and taken his property. He appears to sue Senator FEINSTEIN because he wrote to her for assistance, and she did not take sufficient action to satisfy plaintiff. Plaintiff's suit is subject to dismissal on jurisdictional grounds and failure to state a claim. This resolution would authorize the Senate Legal Counsel to represent Senator FEINSTEIN in order to seek dismissal of this suit.

SENATE RESOLUTION 793—REMEMBERING THE DECEMBER 6, 2019, TERRORIST ATTACK AT NAVAL AIR STATION PENSACOLA AND COMMEMORATING THOSE WHO LOST THEIR LIVES, AND THOSE WHO WERE INJURED, IN THE LINE OF DUTY

Mr. RUBIO (for himself, Mr. SCOTT of Florida, Mr. PERDUE, Mr. JONES, Mr. SHELBY, and Mrs. LOEFFLER) submitted the following resolution; which was considered and agreed to:

S. RES. 793

Whereas December 6, 2020, the 1-year anniversary of the terrorist attack at Naval Air Station Pensacola (referred to in this preamble as the ''terrorist attack''), is a day of commemoration for those who lost their lives, and those who were injured, during the terrorist attack, including—

(1) Ensign Joshua Kaleb Watson of Enterprise, Alabama;

(2) Aircrewman Third Class Mohammed Sameh Haitham of St. Petersburg, Florida; and

(3) Aircrewman Third Class Cameron Scott Walters of Richmond Hill, Georgia;

Whereas the 3 servicemembers who died in the terrorist attack were posthumously awarded the Purple Heart;

Whereas the terrorist who committed the terrorist attack was a Saudi Arabian foreign military student who had been radicalized and established contacts with Al Qaeda operatives prior to attending flight training at Naval Air Station Pensacola;

Whereas Naval Air Station Pensacola security forces and Escambia County, Florida, law enforcement officers took decisive action to end the terrorist attack and have rightly earned the praises and awards bestowed upon them;

Whereas 2 civilians were awarded the Department of the Navy Superior Civilian Medal for Valor for their heroic actions during the terrorist attack;

Whereas 7 individuals were awarded the Purple Heart, or the law enforcement equivalent, for injuries sustained during the terrorist attack;

Whereas 9 military personnel were awarded the Navy and Marine Corps Medal for their heroic actions during the terrorist attack;

Whereas 8 military personnel were awarded the Navy and Marine Corps Commendation Medal for their heroic actions during the terrorist attack;

Whereas 8 law enforcement officers were awarded the Medal of Valor for their actions taken during the terrorist attack; and

Whereas December 6, 2020, marks 1 year since the lives of 3 military personnel were tragically cut short by the egregious act of terrorism at Naval Air Station Pensacola: Now, therefore, be it

Resolved, That the Senate—

(1) condemns the December 6, 2019, terrorist attack at Naval Air Station Pensacola (referred to in this resolution as the ''terrorist attack'');

(2) commemorates in sorrow the servicemembers and civilians who lost their lives, or who were injured, and the harm caused to the surrounding community, as a result of the terrorist attack;

(3) remembers Ensign Joshua Kaleb Watson, Aircrewman Third Class Mohammed Sameh Haitham, and Aircrewman Third Class Cameron Scott Walters, who were killed in the terrorist attack;

(4) expresses gratitude for the heroic actions that the civilians, uniformed personnel, and law enforcement performed in the aftermath of the terrorist attack;

(5) lauds the decision to give medals and awards to the law enforcement officers, uniformed servicemembers, and civilians who responded heroically on the morning of December 6, 2019; and

(6) commends the efforts undertaken by the Department of Defense to enhance security at military installations to ensure that the tragedy represented by the terrorist attack is never repeated.

SENATE CONCURRENT RESOLUTION 50—URGING THE ESTABLISHMENT OF A UNITED STATES COMMISSION ON TRUTH, RACIAL HEALING, AND TRANSFORMATION

Mr. BOOKER (for himself, Mr. MARKEY, Mr. SANDERS, Mr. BLUMENTHAL, Mr. MENENDEZ, Mr. COONS, Ms. KLOBUCHAR, Ms. WARREN, Ms. DUCKWORTH, Mr. WHITEHOUSE, Mr. BROWN, and Mr. DURBIN) submitted the following concurrent resolution; which was referred to the Committee on the Judiciary:

S. CON. RES. 50

Whereas the first ship carrying enslaved Africans to what is now known as the United States of America arrived in 1619;

Whereas that event 400 years ago was significant not only because it ushered in the institution of chattel slavery of African Americans, but also because it facilitated the systematic oppression of all people of color that has been a devastating and insufficiently understood and acknowledged aspect of our Nation's history over those past 400 years, and that has left a legacy of that oppression that haunts our Nation to this day;

Whereas the institution of chattel slavery in the United States subjugated African Americans for nearly 250 years, fractured our Nation, and made a mockery of its founding principle that ''all men are created equal'';

Whereas the signing of the Constitution of the United States failed to end slavery and oppressions against African Americans and other people of color, thus embedding in society the belief in the myth of a hierarchy of human value based on superficial physical characteristics such as skin color and facial features, and resulting in purposeful and persistent racial inequities in education, health care, employment, Social Security and veteran benefits, land ownership, financial assistance, food security, wages, voting rights, and the justice system;

Whereas that oppression denied opportunity and mobility to African Americans and other people of color within the United States, resulting in stolen labor worth billions of dollars while ultimately forestalling landmark contributions that African Americans and other people of color would make in science, arts, commerce, and public service;

Whereas Reconstruction represented a significant but constrained moment of advances for Black rights as epitomized by the Freedman's Bureau, which negotiated labor contracts for ex-enslaved people but failed to secure their own land for them;

Whereas the brutal overthrow of Reconstruction failed all individuals in the United States by failing to ensure the safety and security of African Americans and by emboldening States and municipalities in both the North and South to enact numerous laws and policies to stymie the socioeconomic mobility and political voice of freed Blacks, thus maintaining their subservience to Whites;

Whereas Reconstruction, the civil rights movement, and other efforts to redress the

grievances of marginalized people were sabotaged, both intentionally and unintentionally, by those in power, thus rendering the accomplishments of those efforts transitory and unsustainable, and further embedding the racial hierarchy in society;

Whereas examples of government actions directed against populations of color (referred to in this resolution as ''discriminatory government actions'') include—

(1) the creation of the Federal Housing Administration, which adopted specific policies designed to incentivize residential segregation;

(2) the enactment of legislation creating the Social Security program, for which most African Americans were purposely rendered ineligible during its first 2 decades;

(3) the Servicemen's Readjustment Act of 1944 (commonly known as the ''G.I. Bill of Rights''; 58 Stat. 284, chapter 268), which left administration of its programs to the States, thus enabling blatant discrimination against African American veterans;

(4) the Fair Labor Standards Act of 1938, which allowed labor unions to discriminate based on race;

(5) subprime lending aimed purposefully at families of color;

(6) disenfranchisement of Native Americans, who, until 1924, were denied citizenship on land Native Americans had occupied for millennia;

(7) Federal Indian Boarding School policy during the 19th and 20th centuries, the purpose of which was to ''civilize'' Native children through methods intended to eradicate Native cultures, traditions, and languages;

(8) land policies toward Indian Tribes, such as the allotment policy, which caused the loss of over 90,000,000 acres of Tribal lands, even though two-thirds of that acreage was guaranteed to Indian Tribes by treaties and other Federal laws, and similar unjustified land grabs from Indian Tribes that occurred regionally throughout the late 1800s and into the termination era in the 1950s and 1960s;

(9) the involuntary removal of Mexicans and United States citizens of Mexican descent through large-scale discriminatory deportation programs in the 1930s and 1950s;

(10) the United States annexation of Puerto Rico, which made Puerto Ricans citizens of the United States without affording them voting rights;

(11) racial discrimination against Latino Americans, which has forced Latino Americans to fight continuously for equal access to employment, housing, health care, financial services, and education;

(12) the Act entitled ''An Act to execute certain treaty stipulations relating to Chinese'', approved May 6, 1892 (commonly known as the ''Chinese Exclusion Act''; 22 Stat. 58, chapter 126), which effectively halted immigration from China and barred Chinese immigrants from becoming citizens of the United States, and which was the first instance of xenophobic legislation signed into law specifically targeting a specific group of people based on ethnicity;

(13) the treatment of Japanese Americans, despite no evidence of disloyalty, as suspect and traitorous in the very country they helped to build, leading most notably to the mass incarceration of Japanese Americans beginning in 1942;

(14) the conspiracy to overthrow the Kingdom of Hawaii and annex the land of the Kingdom of Hawaii, without the consent of or compensation to the Native Hawaiian people of Hawaii; and

(15) the United States history of colonialism in the Pacific, which has resulted in economic, health, and educational disparities among other inequities, for people in United States territories, as well as independent nations with which the United States has treaty obligations;

Whereas those discriminatory government actions, among other government policies that have had racially disparate impacts, have disproportionately barred African Americans and other people of color from building wealth, thus limiting potential capital and exacerbating the racial wealth gap;

Whereas research has shown that the persistent racial wealth gap has had a significant negative impact on other racial disparities, such as the achievement gap, disparities in school dropout rates, income gaps, disparities in home ownership rates, health outcome disparities, and disparities in incarceration rates;

Whereas United States civic leaders and foundations have spearheaded critical efforts to advance racial healing, understanding, and transformation within the United States, recognizing that it is in our collective national interest to urgently address the unhealed, entrenched divisions that will severely undermine our democracy if they are allowed to continue to exist;

Whereas many of the most far-reaching victories for racial healing in the United States have been greatly enhanced by the involvement, support, and dedication of individuals from any and all racial groups;

Whereas at the same time, much of the progress toward racial healing and racial equity in the United States has been limited or reversed by our failure to address the root cause of racism, the belief in the myth of a hierarchy of human value based on superficial physical characteristics such as skin color and facial features;

Whereas the United States institution of slavery, as well as other examples enumerated in this resolution, represent intentional and blatant violations of the most basic right of every individual in the United States to a free and decent life;

Whereas the consequences of oppression against people of color have cascaded for centuries, across generations, beyond the era of active enslavement, imperiling for descendants of slaves and other targets of oppression what should have otherwise been the right of every individual in the United States to life, liberty, and the pursuit of happiness;

Whereas more than 40 countries have reckoned with historical injustice and its aftermath through forming Truth and Reconciliation Commissions to move toward restorative justice and to return dignity to their citizens;

Whereas for 3 decades there has been a growing movement inside and outside Congress to have the Federal Government develop material remedies for the institution of slavery, including through a Commission to Study and Develop Reparation Proposals for African-Americans described in H.R. 40, 116th Congress, as introduced on January 3, 2019;

Whereas the formation of a United States Commission on Truth, Racial Healing, and Transformation does not supplant the formation of a Commission to Study and Develop Reparation Proposals for African-Americans, but rather complements that effort; and

Whereas contemporary social science, medical science, and the rapidly expanding use of artificial intelligence and social media reveal the costs and potential threats to our democracy if we continue to allow unhealed, entrenched divisions to be ignored and exploited: Now, therefore, be it

Resolved by the Senate (the House of Representatives concurring), That Congress—

(1) affirms, on the 400th anniversary of the arrival of the first slave ship to the United States, that the Nation owes a long-overdue debt of remembrance to not only those who lived through the egregious injustices enumerated in this resolution, but also to their descendants; and

(2) urges the establishment of a United States Commission on Truth, Racial Healing, and Transformation to properly acknowledge, memorialize, and be a catalyst for progress toward—

(A) jettisoning the belief in a hierarchy of human value;

(B) embracing our common humanity; and

(C) permanently eliminating persistent racial inequities.

AUTHORITY FOR COMMITTEES TO MEET

Mr. BLUNT. Mr. President, I have 3 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON ARMED SERVICES

The Committee on Armed Services is authorized to meet during the session of the Senate on Thursday, December 3, 2020, at a time to be determined, to conduct a hearing on nomination.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

The Committee on Homeland Security and Governmental Affairs is authorized to meet during the session of the Senate on Thursday, December 3, 2020, at 10 a.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Thursday, December 3, 2020, at 10 a.m., to conduct a hearing on nomination.

COMMITTEE ON RULES AND ADMINISTRATION

The Committee on Rules and Administration is authorized to meet during the session of the Senate on Thursday, December 3, 2020, at 10 a.m., to conduct a closed briefing.

THE CALENDAR

Mr. BLUNT. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Government Affairs be discharged and the Senate proceed to the immediate consideration of the following bills, en bloc: H.R. 2246, H.R. 4279, S. 4409, H.R. 2969, H.R. 3275, H.R. 3847, H.R. 3870, H.R. 4034, H.R. 4200, H.R. 4672, H.R. 4785, H.R. 4975, H.R. 5062, H.R. 5317, S. 4684, H.R. 2454, H.R. 3005, H.R. 3680, H.R. 4725, H.R. 4875, H.R. 4971, H.R. 5307, and H.R. 5954.

The PRESIDING OFFICER. Is there objection to proceeding to the bills, en bloc?

There being no objection, the committee was discharged and the Senate proceeded to consider the bills, en bloc.

Mr. BLUNT. I ask unanimous consent that the bills, en bloc, be read a third time and passed and that the motions to reconsider be considered made and laid upon the table, all en bloc.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

DEPUTY DONALD WILLIAM DURR, CORPORAL ZACH MOAK, AND PATROLMAN JAMES WHITE MEMORIAL POST OFFICE BUILDING

The bill (H.R. 2246) to designate the facility of the United States Postal Service located at 201 West Cherokee Street in Brookhaven, Mississippi, as the ''Deputy Donald William Durr, Corporal Zach Moak, and Patrolman James White Memorial Post Office Building'' was ordered to a third reading, was read the third time, and passed.

MELINDA GENE PICCOTTI POST OFFICE

The bill (H.R. 4279) to designate the facility of the United States Postal Service located at 445 Main Street in Laceyville, Pennsylvania, as the ''Melinda Gene Piccotti Post Office'' was ordered to a third reading, was read the third time, and passed.

LAWRENCE M. 'LARRY' WALSH SR. POST OFFICE

The bill (S. 4409) to designate the facility of the United States Postal Service located at 303 East Mississippi Avenue in Elwood, Illinois, as the ''Lawrence M. 'Larry' Walsh Sr. Post Office'' was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 4409

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. LAWRENCE M. "LARRY" WALSH SR. POST OFFICE.

(a) DESIGNATION.—The facility of the United States Postal Service located at 303 East Mississippi Avenue in Elwood, Illinois, shall be known and designated as the ''Lawrence M. 'Larry' Walsh Sr. Post Office''.

(b) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the facility referred to in subsection (a) shall be deemed to be a reference to the ''Lawrence M. 'Larry' Walsh Sr. Post Office''.

ALTHEA MARGARET DAILY MILLS POST OFFICE BUILDING

The bill (H.R. 2969) to designate the facility of the United States Postal Service located at 1401 1st Street North in Winter Haven, Florida, as the ''Althea Margaret Daily Mills Post Office Building'' was ordered to a third reading, was read the third time, and passed.

LANCE CORPORAL ANDY 'ACE' NOWACKI POST OFFICE

A bill (H.R. 3275) to designate the facility of the United States Postal Service located at 340 Wetmore Avenue in Grand River, Ohio, as the ''Lance Corporal Andy 'Ace' Nowacki Post Office'' was ordered to a third reading, was read the third time, and passed.

REVEREND CURTIS WEST HARRIS POST OFFICE BUILDING

A bill (H.R. 3847) to designate the facility of the United States Postal Service located at 117 West Poythress Street in Hopewell, Virginia, as the ''Reverend Curtis West Harris Post Office Building'' was ordered to a third reading, was read the third time, and passed.

NORMANDIA MALDONADO POST OFFICE BUILDING

A bill (H.R. 3870) to designate the facility of the United States Postal Service located at 511 West 165th Street in New York, New York, as the ''Normandia Maldonado Post Office Building'' was ordered to a third reading, was read the third time, and passed.

JOHN HENRY TURPIN POST OFFICE BUILDING

A bill (H.R. 4034) to designate the facility of the United States Postal Service located at 602 Pacific Avenue in Bremerton, Washington, as the ''John Henry Turpin Post Office Building'' was ordered to a third reading, was read the third time, and passed.

SERGEANT DAVID KINTERKNECHT POST OFFICE

A bill (H.R. 4200) to designate the facility of the United States Postal Service located at 321 South 1st Street in Montrose, Colorado, as the ''Sergeant David Kinterknecht Post Office'' was ordered to a third reading, was read the third time, and passed.

PETTY OFFICER 2ND CLASS (SEAL) MATTHEW G. AXELSON POST OFFICE BUILDING

The bill (H.R. 4672) to designate the facility of the United States Postal Service located at 21701 Stevens Creek Boulevard in Cupertino, California, as the ''Petty Officer 2nd Class (SEAL) Matthew G. Axelson Post Office Building'' was ordered to a third reading, was read the third time, and passed.

LANCE CORPORAL RHONALD DAIN RAIRDAN POST OFFICE

The bill (H.R. 4785) to designate the facility of the United States Postal Service located at 1305 U.S. Highway 90 West in Castroville, Texas, as the ''Lance Corporal Rhonald Dain Rairdan Post Office'' was ordered to a third reading, was read the third time, and passed.

DOROTHY BRADEN BRUCE POST OFFICE BUILDING

The bill (H.R. 4975) to designate the facility of the United States Postal Service located at 1201 Sycamore Square Drive in Midlothian, Virginia, as the ''Dorothy Braden Bruce Post Office Building'' was ordered to a third reading, was read the third time, and passed.

OFFICER ROBERT GERMAN POST OFFICE BUILDING

The bill (H.R. 5062) to designate the facility of the United States Postal Service located at 9930 Conroy Windermere Road in Windermere, Florida, as the ''Officer Robert German Post Office Building'' was ordered to a third reading, was read the third time, and passed.

DEPUTY SANDEEP SINGH DHALIWAL POST OFFICE BUILDING

The bill (H.R. 5317) to designate the facility of the United States Postal Service located at 315 Addicks Howell Road in Houston, Texas, as the ''Deputy Sandeep Singh Dhaliwal Post Office Building'' was ordered to a third reading, was read the third time, and passed.

ROBERT L. BROWN POST OFFICE

A bill (S. 4684) to designate the facility of the United States Postal Service located at 440 Arapahoe Street in Thermopolis, Wyoming, as the ''Robert L. Brown Post Office'' was ordered to be engrossed for a third reading, was read the third time, and passed as follows:

S. 4684

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. ROBERT L. BROWN POST OFFICE.

(a) DESIGNATION.—The facility of the United States Postal Service located at 440 Arapahoe Street in Thermopolis, Wyoming, shall be known and designated as the ''Robert L. Brown Post Office''.

(b) REFERENCES.—Any reference in a law, map, regulation, document, paper, or other record of the United States to the facility referred to in subsection (a) shall be deemed to be a reference to the ''Robert L. Brown Post Office''.

BEN REIFEL POST OFFICE BUILDING

A bill (H.R. 2454) to designate the facility of the United States Postal Service located at 123 East Sharpfish Street in Rosebud, South Dakota, as the ''Ben Reifel Post Office Building'' was ordered to a third reading, was read the third time, and passed.

RAY CHAVEZ POST OFFICE BUILDING

A bill (H.R. 3005) to designate the facility of the United States Postal Service located at 13308 Midland Road in Poway, California, as the ''Ray Chavez Post Office Building'' was ordered to a third reading, was read the third time, and passed.

PAULA CROOM ROBINSON AND JUDY SPRAY MEMORIAL POST OFFICE BUILDING

A bill (H.R. 3680) to designate the facility of the United States Postal Service located at 415 North Main Street in Henning, Tennessee, as the ''Paula Croom Robinson and Judy Spray Memorial Post Office Building'' was ordered to a third reading, was read the third time, and passed.

CHAPLAIN (CAPT.) DALE GOETZ MEMORIAL POST OFFICE BUILDING

A bill (H.R. 4725) to designate the facility of the United States Postal Service located at 8585 Criterion Drive in Colorado Springs, Colorado, as the ''Chaplain (Capt.) Dale Goetz Memorial Post Office Building'' was ordered to a third reading, was read the third time, and passed.

LANCE CPL. STACY 'ANNIE' DRYDEN POST OFFICE

The bill (H.R. 4875) to designate the facility of the United States Postal Service located at 2201 E. Maple Street in North Canton, Ohio, as the ''Lance Cpl. Stacy 'Annie' Dryden Post Office'' was ordered to a third reading, was read the third time, and passed.

NORMAN DUNCAN POST OFFICE BUILDING

The bill (H.R. 4971) to designate the facility of the United States Postal Service located at 15 East Market Street in Leesburg, Virginia, as the ''Norman Duncan Post Office Building'' was ordered to a third reading, was read the third time, and passed.

POSTMASTER ROBERT INGRAM POST OFFICE

The bill (H.R. 5307) to designate the facility of the United States Postal Service located at 115 Nicol Avenue in Thomasville, Alabama, as the ''Postmaster Robert Ingram Post Office'' was ordered to a third reading, was read the third time, and passed.

HOLLY VETERANS MEMORIAL POST OFFICE

The bill (H.R. 5954) to designate the facility of the United States Postal Service located at 108 West Maple Street in Holly, Michigan, as the ''Holly Veterans Memorial Post Office'' was ordered to a third reading, was read the third time, and passed.

AUTHORIZING THE EVERY WORD WE UTTER MONUMENT

Mr. BLUNT. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be discharged from further consideration of H.R. 473 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (H.R. 473) to authorize the Every Word We Utter Monument to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

There being no objection, the committee was discharged, and the Senate proceeded to consider the bill.

Mr. BLUNT. Mr. President, I ask unanimous consent that the bill be considered read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The bill (H.R. 473) was ordered to a third reading, was read the third time, and passed.

DIRECTING THE CLERK OF THE HOUSE OF REPRESENTATIVES TO MAKE A CORRECTION IN THE ENROLLMENT OF H.R. 1830

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H. Con. Res. 125, which was received from the House and is at the desk.

The PRESIDING OFFICER. The clerk will report the concurrent resolution by title.

The senior assistant legislative clerk read as follows:

A concurrent resolution (H. Con. Res. 125) directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1830.

There being no objection, the Senate proceeded to consider the concurrent resolution.

Mr. BLUNT. I ask unanimous consent that the resolution be agreed to and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The concurrent resolution (H. Con. Res. 125) was agreed to.

NATIONAL COLLEGE APPLICATION MONTH

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 791 submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 791) designating November 2020 as ''National College Application Month''.

There being no objection, the Senate proceeded to consider the resolution.

Mr. BLUNT. I know of no further debate on this measure.

The PRESIDING OFFICER. Is there further debate?

Hearing none, the question is on adoption of the resolution.

The resolution (S. Res. 791) was agreed to.

Mr. BLUNT. I ask unanimous consent that the preamble be agreed to and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

AUTHORIZING REPRESENTATION BY THE SENATE LEGAL COUNSEL IN THE CASE OF CHAD MICHAEL FREIN V DIANNE FEINSTEIN

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 792, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 792) to authorize representation by the Senate Legal Counsel in the case of Chad Michael Frein v Dianne Feinstein.

There being no objection, the Senate proceeded to consider the resolution.

Mr. BLUNT. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 792) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

REMEMBERING THE DECEMBER 6, 2019, TERRORIST ATTACK AT NAVAL AIR STATION PENSACOLA AND COMMEMORATING THOSE WHO LOST THEIR LIVES, AND THOSE WHO WERE INJURED, IN THE LINE OF DUTY

Mr. BLUNT. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 793, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 793) remembering the December 6, 2019, terrorist attack at Naval Air Station Pensacola and commemorating

those who lost their lives, and those who were injured, in the line of duty.

There being no objection, the Senate proceeded to consider the resolution.

Mr. BLUNT. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The resolution (S. Res. 793) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

ORDERS FOR MONDAY, DECEMBER 7, 2020

Mr. BLUNT. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 3 p.m., Monday, December 7; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and morning business be closed; further, that following leader remarks, the Senate proceed to executive session and resume consideration of the Schwartz nomination. Finally, notwithstanding rule XXII, I ask that the cloture motions filed during today's session of the Senate ripen at 5:30 p.m. on Monday.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL MONDAY, DECEMBER 7, 2020, AT 3 P.M.

Mr. BLUNT. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 5:09 p.m., adjourned until Monday, December 7, 2020, at 3 p.m.

NOMINATIONS

Executive nomination received by the Senate:

IN THE ARMY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

LT. GEN. BRYAN P. FENTON

CONFIRMATIONS

Executive nominations confirmed by the Senate December 3, 2020:

OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT

LANNY ERDOS, OF OHIO, TO BE DIRECTOR OF THE OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT.

FEDERAL RESERVE SYSTEM

CHRISTOPHER WALLER, OF MINNESOTA, TO BE A MEMBER OF THE BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM FOR A TERM OF FOURTEEN YEARS FROM FEBRUARY 1, 2016.

THE JUDICIARY

LIAM P. HARDY, OF VIRGINIA, TO BE A JUDGE OF THE UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES FOR THE TERM OF FIFTEEN YEARS TO EXPIRE ON THE DATE PRESCRIBED BY LAW.

EXTENSIONS OF REMARKS

PERSONAL EXPLANATION

HON. TED BUDD

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. BUDD. Madam Speaker, I missed votes because I tested positive for Covid-19.

Had I been present, I would have voted YEA on Roll Call No. 228.

PERSONAL EXPLANATION

HON. GUY RESCHENTHALER

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. RESCHENTHALER. Madam Speaker, had I been present, I would have voted YEA on Roll Call No. 228.

IN HONOR OF DR. ANN ALBRIGHT

HON. DIANA DeGETTE

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Ms. DEGETTE. Madam Speaker, I rise today to honor Dr. Ann Albright, and to celebrate her extraordinary contributions to the diabetes community in light of her retirement.

While I am saddened to see Dr. Albright leave the Centers for Disease Control and Prevention, I know we are all eternally grateful for the time she has spent—both at the CDC, and throughout her career—as a national leader in the fight against diabetes.

While at the CDC, she led the development and implementation of the National Diabetes Prevention Program—the nation's top program working to prevent and delay the onset of type 2 diabetes.

Dr. Albright's innovative approach to diabetes prevention translated a well-established preventative care study into a successful, nationwide program. Her work to expand access to diabetes care was unparalleled—she also spent time working with the Centers for Medicare & Medicaid Services to establish and implement Medicare coverage for the National DPP lifestyle intervention program.

Prior to her time at the CDC, Dr. Albright served as Chief of the California Diabetes Program for the California Department of Health Services. She also served as President of Health Care and Education for the American Diabetes Association, Senior Health Policy Advisor in the Office of the United States Surgeon General and led the Secretary of Health's Diabetes Detection Initiative.

I'm among the countless people who have been lucky enough to work alongside Dr. Albright as we search for innovative ways to treat and prevent diabetes. We appreciate her compassion and dedication in all her professional and community roles. Her spirit and energy have helped thousands of people across our country, and I know she will be sorely missed.

I join with Dr. Albright's colleagues, peers, and all those she has served throughout her career to thank her for her outstanding efforts to better the lives of others, and I wish her many happy years of retirement.

CONGRATULATING FATIMA HIGH SCHOOL'S CROSS COUNTRY TEAM FOR WINNING THE 2020 CLASS III STATE CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. LUETKEMEYER. Madam Speaker, I rise today to ask my colleagues to join me in congratulating the Fatima Comets cross country team for winning the 2020 Missouri Class III State title.

This team and Coach Marc Bridges should be commended for their hard work throughout this past year and for bringing home the state title to their school and community.

Madam Speaker, please join me in recognizing the Fatima Comets cross country team for a job well done.

RECOGNIZING ALBERT GEORGE SIPKA

HON. TIM RYAN

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. RYAN. Madam Speaker, I rise today to recognize Mr. Albert George Sipka, of Warren, Ohio, who will soon celebrate his 100th birthday on December 12th.

Albert was born to George and Susan Sipka in Duquesne, Pennslyvania in 1920. Albert was raised in Newton Falls, Ohio, which is located in my Congressional District. He graduated from Newtown Falls High School in 1938.

Mr. Sipka enlisted in the Navy on October 16, 1942 and served until November of 1945. During his service, he served as a cook on a ship in the Pacific. Four of the six Sipka brothers bravely served during World War II. Taking advantage of the GI Bill, Albert graduated from Kent State University in 1951 with a degree in Business Administration.

Shortly before enlisting, Albert married the love of his life, Theresa Novak. They married on February 8, 1942 and had two children, Albert and Elaine. He also has four grandchildren—Jessica, Donna, Albert, and Allison. Albert also took care of his dear Theresa during her 15-year battle with Alzheimer's. This show's how serious Albert was to the vows of his marriage, his character, and his dedication to family.

The majority of Albert's working life was with General Motors, Packard Electric Division. During one period, when he was laid off from General Motors, he purchased a Dairy Queen in Windham, Ohio, and operated it for several years.

Mr. Sipka is a great supporter of the Boy Scouts of America, having been active in scouting and taking numerous canoe trips to Canada over the years. Albert's Christian faith is a deep aspect of his life. He has also enjoyed traveling, snorkeling, canoeing, and gardening.

Albert contributes his long life to his family, having good and hard-working parents and five brothers that always got along. There is no doubt that Albert is a hard-worker and has enlisted this trait to his children and grandchildren. Mr. Sipka's daughter-in-law, Diane, is my neighbor, and I am honored to wish him the happiest of birthdays. Please join me in congratulating Albert and his family for this milestone and thanking him for his service to our country.

IN RECOGNITION OF RYAN BATES

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mrs. DINGELL. Madam Speaker, I rise today to recognize Ryan Bates and his years of distinguished service with Michigan United. His leadership and community impact are worthy of commendation.

Ryan Bates is the founding director of Michigan United, a statewide coalition of 100 organizations that work together to achieve economic, social, and racial justice in Michigan. In this capacity, Ryan has led the coalition to extend its mission statewide, encouraging all to use their voices to advocate for a just, equitable, and sustainable future. As a Michigan-native and graduate of the University of Michigan, Ryan deeply understands the needs of the state community and has dedicated his career to effecting positive change throughout the state. Previously, Ryan has been an organizer for the Michigan Raise the Wage Coalition, Environment Michigan, and the Gamaliel Foundation. In addition, Ryan has overseen four successful Michigan State House races and worked with Reform Immigration for America across the Midwest.

Throughout Michigan, Ryan Bates is recognized as a humble, compassionate, and effective leader who strives to make a difference. He seeks to build bridges that unite communities and draw people together, and he has committed himself to fighting for a brighter future for all. Ryan has been a strong voice for communities across Michigan and has brought critical awareness to significant issues affecting the state. His leadership has made a lasting difference, and we are grateful for his years of dedicated service.

Madam Speaker, I ask my colleagues to join me in honoring Ryan Bates. We are proud to

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

celebrate his work, accomplishments, and significant community impact. We thank him for his outstanding leadership and wish him the best of luck in his future endeavors.

PERSONAL EXPLANATION

HON. SUSAN W. BROOKS

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mrs. BROOKS of Indiana. Madam Speaker, I was not present for the following roll call vote. Had I been present, I would have voted as follows: Roll Call 228: H.R. 7995 Coin Metal Modification Authorization and Cost Savings Act—On the Motion To Suspend the Rules and Pass the Bill—YEA.

CELEBRATING THE LIFE AND LEGACY OF SCIOTO COUNTY COMMISSIONER MICHAEL CRABTREE

HON. BRAD R. WENSTRUP

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. WENSTRUP. Madam Speaker, I rise today to mourn the death and celebrate the life of Scioto County, Ohio Commissioner Michael Crabtree, who passed from this Earth earlier this week.

Mike was a staple of the community, a dedicated public servant, and an unwavering advocate for Scioto County. His love of country and commitment to bettering our community were indisputable.

Michael Crabtree was a true patriot who served in the US Army with the 82nd Airborne Division, then stayed engaged in many civic organizations, ultimately serving 18 years as County Commissioner.

While Mike's earthly mission is complete, his impact on Scioto County and all that knew him will be felt for generations as his legacy lives on.

We are all forever grateful for his service and I will miss working with him.

I ask for everyone to join me in praying for Mike's wife, Dianna, his friends and family, for the community he served, and the lives Mike touched.

PERSONAL EXPLANATION

HON. JACKIE WALORSKI

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mrs. WALORSKI. Madam Speaker, on 12/2/2020, I was unavoidably detained.

Had I been present, I would have voted YEA on Roll Call No. 228.

PERSONAL EXPLANATION

HON. VIRGINIA FOXX

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Ms. FOXX of North Carolina. Madam Speaker, due to a test indicating a positive result for a COVID–19 infection during the most recent district work period, I was unable to travel to the Capitol to vote on December 2, 2020.

Had I been present, I would have voted YEA on Roll Call No. 228.

RECOGNIZING THE HARD WORK OF WILLINGBORO OFFICER SALLY LANDRUM

HON. ANDY KIM

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. KIM. Madam Speaker, I rise today to honor Officer Sally Landrum. She is one of just twenty-three officers in our nation to receive the U.S. Attorney General's Award for Distinguished Service in Community Policing. I, and the town of Willingboro, cannot be prouder of her.

The Attorney General Award for Distinguished Service in Community Policing is given to exceptional officers who have gone above and beyond their call of duty to protect their communities, implementing "innovative community policing strategies, criminal investigations, and field operations that have proven effective in enforcing our laws." The Attorney General could not have picked a better officer than Officer Landrum, who exemplifies good community policing.

Officer Landrum has been a stalwart of the community. Throughout her time at the Willingboro Police Department, Officer Landrum has organized story times, toiletry drives for the homeless, a resiliency program for officers in distress, and elderly training programs. I commend Officer Landrum for her work, and I know I speak on behalf of my constituents across Burlington and Ocean County when I say this award is well-deserved.

PERSONAL EXPLANATION

HON. KEN CALVERT

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. CALVERT. Madam Speaker, I was unfortunately prevented from traveling and unable to make votes on December 2, 2020. Had I been present I would have voted in favor of H.R. 7995.

PERSONAL EXPLANATION

HON. GARRET GRAVES

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. GRAVES of Louisiana. Madam Speaker, I was notified that I was exposed to COVID–19 and am following quarantine guidelines set by the CDC.

Had I been present, I would have voted YEA on Roll Call No. 228.

CONGRATULATING CALVARY LUTHERAN HIGH SCHOOL'S CROSS COUNTRY TEAM FOR WINNING THE 2020 CLASS I STATE CHAMPIONSHIP

HON. BLAINE LUETKEMEYER

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. LUETKEMEYER. Madam Speaker, I rise today to ask my colleagues to join me in congratulating the Calvary Lutheran Lions cross country team for winning the 2020 Missouri Class I State title.

This is the Calvary Lutheran high school's first state championship in school history. This team should be commended for their hard work throughout this past year and for bringing home the state title to their school and community.

Madam Speaker, please join me in recognizing the Calvary Lutheran Lions cross country team for a job well done.

COMMEMORATING COMMISSIONER ED HUMPHREY'S SERVICE TO CLERMONT COUNTY

HON. BRAD R. WENSTRUP

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. WENSTRUP. Madam Speaker, I am honored to recognize Commissioner Ed Humphrey for his years of tireless service and dedication to the Clermont County community as he is set to retire at the end of the year. Commissioner Humphrey has been a fixture of Clermont County for his entire life, and his service to our community has been felt for generations.

Mr. Humphrey's early volunteer work as a firefighter with the Miamiville Fire Department led to the development of the Life Squad on which he served as EMS Chief for 12 years. He went on to serve as Fire Chief from 1987 to 1989 before transitioning to elected official to serve on the Miami Township Board of Trustees.

During his time as trustee, Mr. Humphrey helped facilitate profound change in Miami Township. He improved Fire and EMS services, police services, established a first-class park system, and more.

Beyond his government roles, Mr. Humphrey devoted countless hours to a variety of community programs: coaching youth sports, serving as President of the Clermont County Township Association and Chairperson of the Clermont County Health District Advisory Council, and joining his local masonic lodge, Milford Lodge 54 F. & A.M.

It is a privilege to know Mr. Humphrey, not only because of his incredible service to our community, but also as a friend. He has led a life of service devoted to his commitment to leave his community better than he found it.

I wish Mr. Humphrey the best on his well-deserved retirement. I know I can speak on behalf of myself and the Clermont County community when I say we are grateful for his many years of service.

PERSONAL EXPLANATION

HON. DAVID N. CICILLINE

OF RHODE ISLAND

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. CICILLINE. Madam Speaker, had I been present, I would have voted YEA on Roll Call No. 228.

IN RECOGNITION OF DR. RUPERT LEWIS

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mrs. DINGELL. Madam Speaker, I rise today to recognize Dr. Rupert Lewis as he delivers the keynote speech at The PuLSE Institute Literary Circle Forum. Dr. Lewis's significant academic achievements are worthy of commendation.

Dr. Rupert Lewis is Professor Emeritus of Political Thought in the Department of Government at the University of the West Indies, Jamaica. He is a scholar of the Garvey movement and Caribbean radicalism in the twentieth and twenty-first centuries, and he holds years of experience lecturing political science, political thought in the Caribbean, and African and global politics. Currently, Dr. Lewis is a research fellow in the PJ Patterson Centre for Africa-Caribbean Advocacy at the UWI, working alongside Jamaican Prime Minister PJ Paterson to strengthen the relationship between the Caribbean and Africa.

Dr. Lewis is recognized globally as a leading academic in political thought. He has published a host of essays and biographies that have propelled the academic discipline forward and have been formative in scholars' understanding of politics in the Caribbean. Beyond academics, Dr. Lewis is an activist for reparative justice and has earned the Order of Distinction, Commander class honor from the Government of Jamaica for his efforts. Dr. Lewis's selection to deliver the keynote speech underscores his wide expertise and exemplifies his commitment to enhancing awareness of the Caribbean's impacts on the global community. As the United States celebrates the election of Vice President-elect Kamala Harris, the first Black woman of Jamaican descent to assume the vice presidency, Dr. Lewis will provide valuable insight of the Caribbean's many contributions to United States politics and how it continues to shape American political life today.

Madam Speaker, I ask my colleagues to join me in honoring Dr. Rupert Lewis as he delivers the keynote speech at The PuLSE Institute Literary Circle Forum. Dr. Lewis's academic expertise continues to make a difference, and his testimony will enhance our community's understanding of the role the Caribbean has played within our own nation.

HONORING THE LIFE OF MR. ZACHARY JACOB ''ZAC'' PLANTZ

HON. DANIEL LIPINSKI

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. LIPINSKI. Madam Speaker, I rise today to honor the life of my dedicated staff member and friend, Zachary Jacob "Zac" Plantz. His life was tragically taken in a car accident on November 26th at the age of 27. Zac was an incredibly gifted young man who had immeasurable potential and the ability to bring joy to others. He loved his family, served his community, and was passionate about helping people.

A Frankfort native and lifelong Chicago loyalist, Zac was a proud graduate of Providence Catholic High School and the University of Notre Dame where he played for the Fighting Irish rugby team. After college, Zac began his career as a successful consultant, but found a new sense of purpose in pursuing his true passion for public service. In 2018, Zac began his political career by coordinating a Chicago mayoral campaign for Jerry Joyce, Jr. Last year, I brought Zac into my campaign and quickly learned what a gifted young man he was. Before long, he became my Campaign Manager. After the campaign, Zac joined my congressional staff as a Senior Policy Advisor. During his time in my office, he demonstrated a great ability to bring people together and make a difference in the lives of constituents in Illinois's 3rd Congressional District. Zac's contagious energy and ability to lift people up was nothing short of remarkable.

Though Zac had many career accomplishments in his short life, he also demonstrated his exceptional character through charitable endeavors. For the past six years, Zac ran sixty miles in November to raise money for Movember, a charitable organization dedicated to improving men's mental health. His efforts through this organization will have a lasting impact on countless lives.

Zac was a friend to so many of us and I extend my heartfelt condolences to Zac' s loving parents Ron and Laura, his siblings Logan, Tyler, and Abby, his longtime girlfriend Kathleen, and all of Zac's family and friends. While his journey on Earth might be over, his legacy will live on in the advice he gave, the stories he told, and the people he brought together.

Madam Speaker, I ask my colleagues to join me in honoring the life of Zachary "Zac" Plantz. He was a man who lived his life for others and brought joy into the world. I know that Zac's passion and commitment to his family, friends, and community will have a lasting impact on all of us.

TRIBUTE TO FORMER REPRESENTATIVE ROBERT FREEMAN ''BOB'' SMITH

HON. PETER A. DeFAZIO

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Thursday, December 3, 2020

Mr. DEFAZIO. Madam Speaker, I rise today to pay tribute to the life of former Representative Robert Freeman "Bob" Smith.

I am deeply saddened by the passing of my friend and former colleague and offer my deepest condolences to his friends and family.

I served with Bob in Congress for a decade. He spent his life serving Oregonians in various roles, including president of the Public Lands Council, and in the Oregon legislature as House Speaker and subsequently Senate Minority Leader. He dedicated his life to his community, his constituents, and all Oregonians.

Growing up in Burns, he worked as a rancher. His experiences provided a deep knowledge of the needs and concerns of rural Oregonians, and he was one of their fiercest advocates. Bob was also a man of principle. He retired from Congress in 1995, yet ran again in 1997 because his successor, a member of his own party, had lied about his military service, among many other problems. He won, and when he returned to Congress for what would be his last term, he was elected Chairman of the House Agriculture Committee, placing him in a powerful role championing policies important to rural communities.

Make no mistake, Bob and I had policy disagreements, but we were always friends and worked together often. One of my fondest memories is when Bob and I worked alongside former Senator Mark Hatfield to designate the Newberry Crater as a Monument in order to protect the area from energy development. Though we came from different sides of the aisle, this designation effort was just one example of how we were able to come together as Oregonians to protect the people, resources, and great outdoors that make Oregon home. Bob is missed, but his life of service and inspiring legacy lives on.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S7191–S7223

Measures Introduced: Twelve bills and seven resolutions were introduced, as follows: S. 4954–4965, S. Res. 788–793, and S. Con. Res. 50. **Page S7214**

Measures Reported:

H.R. 2420, to establish within the Smithsonian Institution the National Museum of the American Latino.

S. 959, to establish in the Smithsonian Institution a comprehensive women's history museum, with an amendment in the nature of a substitute. **Page S7213**

Measures Passed:

Deputy Donald William Durr, Corporal Zach Moak, and Patrolman James White Memorial Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 2246, to designate the facility of the United States Postal Service located at 201 West Cherokee Street in Brookhaven, Mississippi, as the ''Deputy Donald William Durr, Corporal Zach Moak, and Patrolman James White Memorial Post Office Building'', and the bill was then passed. **Page S7221**

Melinda Gene Piccotti Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4279, to designate the facility of the United States Postal Service located at 445 Main Street in Laceyville, Pennsylvania, as the ''Melinda Gene Piccotti Post Office'', and the bill was then passed. **Page S7221**

Lawrence M. 'Larry' Walsh Sr. Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of S. 4409, to designate the facility of the United States Postal Service located at 303 East Mississippi Avenue in Elwood, Illinois, as the ''Lawrence M. 'Larry' Walsh Sr. Post Office''. **Page S7221**

Althea Margaret Daily Mills Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 2969, to designate the facility of the United States Postal Service located at 1401 1st Street North in Winter Haven, Florida, as the ''Althea Margaret Daily Mills Post Office Building'', and the bill was then passed. **Page S7221**

Lance Corporal Andy 'Ace' Nowacki Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 3275, to designate the facility of the United States Postal Service located at 340 Wetmore Avenue in Grand River, Ohio, as the ''Lance Corporal Andy 'Ace' Nowacki Post Office'', and the bill was then passed. **Page S7221**

Reverend Curtis West Harris Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 3847, to designate the facility of the United States Postal Service located at 117 West Poythress Street in Hopewell, Virginia, as the ''Reverend Curtis West Harris Post Office Building'', and the bill was then passed. **Page S7221**

Normandia Maldonado Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 3870, to designate the facility of the United States Postal Service located at 511 West 165th Street in New York, New York, as the ''Normandia Maldonado Post Office Building'', and the bill was then passed. **Page S7221**

John Henry Turpin Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4034, to designate the facility of the United States Postal Service located at 602 Pacific Avenue in Bremerton, Washington, as the ''John Henry Turpin Post Office Building'', and the bill was then passed. **Page S7221**

Sergeant David Kinterknecht Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4200, to designate the facility of the United States Postal Service located at 321 South 1st Street in Montrose, Colorado, as the ''Sergeant David Kinterknecht Post Office'', and the bill was then passed. **Page S7221**

Petty Officer 2nd Class (SEAL) Matthew G. Axelson Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4672, to designate the facility of the United States Postal Service located at 21701 Stevens Creek Boulevard in Cupertino, California, as the ''Petty Officer 2nd Class (SEAL) Matthew G. Axelson Post Office Building'', and the bill was then passed. **Page S7221**

Lance Corporal Rhonald Dain Rairdan Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4785, to designate the facility of the United States Postal Service located at 1305 U.S. Highway 90 West in Castroville, Texas, as the ''Lance Corporal Rhonald Dain Rairdan Post Office'', and the bill was then passed. **Page S7221**

Dorothy Braden Bruce Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4975, to designate the facility of the United States Postal Service located at 1201 Sycamore Square Drive in Midlothian, Virginia, as the ''Dorothy Braden Bruce Post Office Building'', and the bill was then passed. **Page S7221**

Officer Robert German Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 5062, to designate the facility of the United States Postal Service located at 9930 Conroy Windermere Road in Windermere, Florida, as the ''Officer Robert German Post Office Building'', and the bill was then passed. **Page S7221**

Deputy Sandeep Singh Dhaliwal Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 5317, to designate the facility of the United States Postal Service located at 315 Addicks Howell Road in Houston, Texas, as the ''Deputy Sandeep Singh Dhaliwal Post Office Building'', and the bill was then passed. **Page S7221**

Robert L. Brown Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of S. 4684, to designate the facility of the United States Postal Service located at 440 Arapahoe Street in Thermopolis, Wyoming, as the ''Robert L. Brown Post Office'', and the bill was then passed. **Page S7221**

Ben Reifel Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 2454, to designate the facility of the United States Postal Service located at 123 East Sharpfish Street in Rosebud, South Dakota, as the ''Ben Reifel Post Office Building'', and the bill was then passed. **Page S7221**

Ray Chavez Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 3005, to designate the facility of the United States Postal Service located at 13308 Midland Road in Poway, California, as the ''Ray Chavez Post Office Building'', and the bill was then passed. **Page S7221**

Paula Croom Robinson and Judy Spray Memorial Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 3680, to designate the facility of the United States Postal Service located at 415 North Main Street in Henning, Tennessee, as the ''Paula Croom Robinson and Judy Spray Memorial Post Office Building'', and the bill was then passed. **Page S7222**

Chaplain (Capt.) Dale Goetz Memorial Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4725, to designate the facility of the United States Postal Service located at 8585 Criterion Drive in Colorado Springs, Colorado, as the ''Chaplain (Capt.) Dale Goetz Memorial Post Office Building'', and the bill was then passed. **Page S7222**

Lance Cpl. Stacy 'Annie' Dryden Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4875, to designate the facility of the United States Postal Service located at 2201 E. Maple Street in North Canton, Ohio, as the ''Lance Cpl. Stacy 'Annie' Dryden Post Office'', and the bill was then passed. **Page S7222**

Norman Duncan Post Office Building: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 4971, to designate the facility of the United States Postal Service located at 15 East Market Street in Leesburg, Virginia, as the ''Norman Duncan Post Office Building'', and the bill was then passed. **Page S7222**

Postmaster Robert Ingram Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 5307, to designate the facility of the United States Postal Service located at 115 Nicol Avenue in Thomasville, Alabama, as the ''Postmaster Robert Ingram Post Office'', and the bill was then passed. **Page S7222**

Holly Veterans Memorial Post Office: Committee on Homeland Security and Governmental Affairs was discharged from further consideration of H.R. 5954,

to designate the facility of the United States Postal Service located at 108 West Maple Street in Holly, Michigan, as the "Holly Veterans Memorial Post Office", and the bill was then passed. **Page S7222**

Every Word We Utter Monument: Committee on Energy and Natural Resources was discharged from further consideration of H.R. 473, to authorize the Every Word We Utter Monument to establish a commemorative work in the District of Columbia and its environs, and the bill was then passed. **Page S7222**

Enrollment Correction: Senate agreed to H. Con. Res. 125, directing the Clerk of the House of Representatives to make a correction in the enrollment of H.R. 1830. **Page S7222**

National College Application Month: Senate agreed to S. Res. 791, designating November 2020 as "National College Application Month". **Page S7222**

Senate Legal Counsel: Senate agreed to S. Res. 792, to authorize representation by the Senate Legal Counsel in the case of *Chad Michael Frein v. Dianne Feinstein*. **Page S7222**

Naval Air Station Pensacola Terrorist Attack: Senate agreed to S. Res. 793, remembering the December 6, 2019, terrorist attack at Naval Air Station Pensacola and commemorating those who lost their lives, and those who were injured, in the line of duty. **Pages S7222–23**

Schwartz Nomination—Cloture: Senate began consideration of the nomination of Stephen Sidney Schwartz, of Virginia, to be a Judge of the United States Court of Federal Claims. **Page S7206**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, December 3, 2020, a vote on cloture will occur at 5:30 p.m., on Monday, December 7, 2020. **Page S7206**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S7206**

A unanimous-consent agreement was reached providing that Senate resume consideration of the nomination at approximately 3 p.m., on Monday, December 7, 2020; and that notwithstanding Rule XXII, the motions to invoke cloture filed during the session of Thursday, December 3, 2020, ripen at 5:30 p.m., on Monday, December 7, 2020. **Page S7223**

Simington Nomination—Cloture: Senate began consideration of the nomination of Nathan A. Simington, of Virginia, to be a Member of the Federal Communications Commission. **Page S7206**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Stephen Sidney Schwartz, of Virginia, to be a Judge of the United States Court of Federal Claims. **Page S7206**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S7206**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S7206**

Nominations Confirmed: Senate confirmed the following nominations:

By 48 yeas to 47 nays (Vote No. EX. 251), Christopher Waller, of Minnesota, to be a Member of the Board of Governors of the Federal Reserve System for a term of fourteen years from February 1, 2016. **Pages S7192–97**

By 59 yeas to 34 nays (Vote No. EX. 253), Liam P. Hardy, of Virginia, to be a Judge of the United States Court of Appeals for the Armed Forces for the term of fifteen years to expire on the date prescribed by law. **Pages S7197–99**

During consideration of this nomination today, Senate also took the following action:

By 61 yeas to 34 nays (Vote No. EX. 252), Senate agreed to the motion to close further debate on the nomination. **Page S7197**

Lanny Erdos, of Ohio, to be Director of the Office of Surface Mining Reclamation and Enforcement. **Page S7208**

Nomination Received: Senate received the following nomination:

1 Army nomination in the rank of general. **Page S7223**

Messages from the House: **Page S7210**

Measures Referred: **Page S7210**

Executive Communications: **Pages S7210–12**

Petitions and Memorials: **Pages S7212–13**

Executive Reports of Committees: **Pages S7213–14**

Additional Cosponsors: **Pages S7214–16**

Statements on Introduced Bills/Resolutions: **Pages S7216–20**

Additional Statements: **Pages S7209–10**

Authorities for Committees to Meet: **Page S7220**

Record Votes: Three record votes were taken today. (Total—253) **Pages S7196–97, S7199**

Adjournment: Senate convened at 10 a.m. and adjourned at 5:09 p.m., until 3 p.m. on Monday, December 7, 2020. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S7223.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported 4,090 nominations in the Army, Navy, Air Force, Marine Corps, and Space Force.

CROSSFIRE HURRICANE

Committee on Homeland Security and Governmental Affairs: Committee concluded a hearing to examine Congressional oversight, focusing on a case study of Crossfire Hurricane, after receiving testimony from Kevin R. Brock, former Assistant Director for Intelligence, Federal Bureau of Investigation, Department of Justice; Sharyl Attkisson, Sinclair's Full Measure, Arlington, Virginia; and Lee Smith, Washington, D.C.

BUSINESS MEETING

Committee on Rules and Administration: Committee ordered favorably reported the following business items:

S. 959, to establish in the Smithsonian Institution a comprehensive women's history museum, with an amendment in the nature of a substitute;

H.R. 2420, to establish within the Smithsonian Institution the National Museum of the American Latino; and

The nominations of Shana M. Broussard, of Louisiana, Sean J. Cooksey, of Missouri, and Allen Dickerson, of the District of Columbia, each to be a Member of the Federal Election Commission.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 27 public bills, H.R. 8843–8869; and 2 resolutions, H. Res. 1248–1249, were introduced. **Pages H6140–42**

Additional Cosponsors: **Pages H6142–43**

Report Filed: A report was filed today as follows: Conference report on H.R. 6395, to authorize appropriations for fiscal year 2021 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for such fiscal year, and for other purposes (H. Rept. 116–617). **Page H6140**

Speaker: Read a letter from the Speaker wherein she appointed Representative Cuellar to act as Speaker pro tempore for today. **Page H6049**

Recess: The House recessed at 11:02 a.m. and reconvened at 12 noon. **Page H6056**

Oath of Office-Fifth Congressional District of Georgia: Representative-elect Kwanza Hall presented himself in the well of the House and was administered the Oath of Office by the Speaker. Earlier, the Clerk of the House transmitted a scanned copy of a letter received from Mr. Chris Harvey, Director of Election, Georgia Office of Secretary of State, indicating that, according to the preliminary results of the Special Election held December 1, 2020, the Honorable Kwanza Hall was elected Representative to Congress for the Fifth Congressional District, State of Georgia. **Page H6056**

Whole Number of the House: The Speaker announced to the House that, in light of the administration of the oath to the gentleman from Georgia, the whole number of the House is 431. **Page H6057**

Motion to Adjourn: Rejected the Biggs motion to adjourn by a yea-and-nay vote of 5 yeas to 220 nays, Roll No. 229. **Pages H6060–61**

Marijuana Opportunity Reinvestment and Expungement Act-Rule for Consideration: The House agreed to H. Res. 1244, providing for consideration of the bill (H.R. 3884) to decriminalize and deschedule cannabis, to provide for reinvestment in certain persons adversely impacted by the War on Drugs, to provide for expungement of certain cannabis offenses, by a yea-and-nay vote of 225 yeas to 160 nays, Roll No. 231, after the previous question was ordered by a yea-and-nay vote of 225 yeas to 160 nays, Roll No. 230. **Pages H6061–68**

Order of Business—Consideration of the Conference Report to Accompany H.R. 6395: Agreed by unanimous consent that it be in order at any time to consider a conference report to accompany H.R. 6395; that all points of order against the conference report and against its consideration be waived; that the conference report be considered as read; and that the previous question be considered as

ordered on the conference report to its adoption without intervening motion except: (1) one hour of debate; and (2) one motion to recommit if applicable. **Page H6072**

Suspensions: The House agreed to suspend the rules and pass the following measures: Amending the Small Business Act to establish the Community Advantage Loan Program: H.R. 7903, amended, to amend the Small Business Act to establish the Community Advantage Loan Program. **Pages H6068–72**

504 Modernization and Small Manufacturer Enhancement Act of 2020: H.R. 8211, amended, to amend the Small Business Investment Act of 1958 to improve the loan guaranty program, enhance the ability of small manufacturers to access affordable capital. **Pages H6072–76**

504 Credit Risk Management Improvement Act of 2020: H.R. 8199, amended, to amend the Small Business Act to enhance the Office of Credit Risk Management, to require the Administrator of the Small Business Administration to issue rules relating to environmental obligations of certified development companies. **Pages H6076–78**

Parity for HUBZone Appeals Act of 2020: H.R. 8229, to require the Administrator of the Small Business Administration to issue a rule authorizing the Office of Hearings and Appeals to decide appeals relating to the status of HUBZone business concerns. **Pages H6078–79**

Gandhi-King Scholarly Exchange Initiative Act: H.R. 5517, amended, to affirm the friendship of the governments of the United States of America and the Republic of India, and to establish a bilateral partnership for collaboration to advance development and shared values. **Pages H6079–82**

War Crimes Rewards Expansion Act: H.R. 1819, to amend the State Department Basic Authorities Act of 1956 to provide for rewards for the arrest or conviction of certain foreign nationals who have committed genocide or war crimes. **Pages H6082–83**

Expressing the sense of Congress that the activities of Russian national Yevgeniy Prigozhin and his affiliated entities pose a threat to the national interests and security of the United States and of its allies and partners: H. Res. 996, amended, expressing the sense of Congress that the activities of Russian national Yevgeniy Prigozhin and his affiliated entities pose a threat to the national interests and security of the United States and of its allies and partners. **Pages H6083–84**

Condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse: H. Res. 958, amended, condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse. **Pages H6084–86**

Expressing concern over the detention of Austin Tice: H. Res. 17, amended, expressing concern over the detention of Austin Tice; **Pages H6086–90**

Agreed to amend the title so as to read: "Expressing concern over the detention of Austin Tice and Majd Kamalmaz, and for other purposes.". **Page H6090**

Calling for the immediate release of Trevor Reed, a United States citizen who was unjustly sentenced to 9 years in a Russian prison: H. Res. 1115, amended, calling for the immediate release of Trevor Reed, a United States citizen who was unjustly sentenced to 9 years in a Russian prison. **Pages H6090–92**

National Heritage Area Act: H.R. 1049, amended, to authorize a National Heritage Area Program. **Pages H6092–96**

Leech Lake Band of Ojibwe Reservation Restoration Act: S. 199, to provide for the transfer of certain Federal land in the State of Minnesota for the benefit of the Leech Lake Band of Ojibwe. **Pages H6096–99**

Indian Community Economic Enhancement Act: S. 212, amended, to amend the Native American Business Development, Trade Promotion, and Tourism Act of 2000, the Buy Indian Act, and the Native American Programs Act of 1974 to provide industry and economic development opportunities to Indian communities. **Pages H6099–H6102**

Coordinated Ocean Observations and Research Act: S. 914, amended, to reauthorize the Integrated Coastal and Ocean Observation System Act of 2009, to clarify the authority of the Administrator of the National Oceanic and Atmospheric Administration with respect to post-storm assessments, and to require the establishment of a National Water Center. **Pages H6102–08**

Great Lakes Environmental Sensitivity Index Act: S. 1342, amended, to require the Under Secretary for Oceans and Atmosphere to update periodically the environmental sensitivity index products of the National Oceanic and Atmospheric Administration for each coastal area of the Great Lakes. **Pages H6108–10**

Kettle Creek Battlefield Survey Act: H.R. 306, amended, to direct the Secretary of the Interior to conduct a special resource study of the site of the Kettle Creek Battlefield in Wilkes County, Georgia, and adjacent property; **Pages H6110–11**

Agreed to amend the title so as to read: "To direct the Secretary of the Interior to conduct a reconnaissance survey of the site of the Kettle Creek Battlefield in Wilkes County, Georgia, and adjacent property, and for other purposes.". **Page H6111**

Land Grant-Mercedes Traditional Use Recognition and Consultation Act: H.R. 3682, amended, to provide for greater consultation between the Federal Government and the governing bodies of land grant-mercedes and acequias in New Mexico and to provide for a process for recognition of the historic-traditional boundaries of land grant-mercedes; **Pages H6124–26**

Agreed to amend the title so as to read: "To provide for greater consultation between the Federal Government and the governing bodies and community users of land grant-mercedes in New Mexico, to provide for a process for recognition of the historic-traditional uses of land grant-mercedes, and for other purposes.". **Page H6126**

Health Care Access for Urban Native Veterans Act: H.R. 4153, to amend the Indian Health Care Improvement Act to authorize urban Indian organizations to enter into arrangements for the sharing of medical services and facilities. **Pages H6126–27**

Requiring the Secretary of Agriculture to conduct a study on lands that could be included in a National Forest in Hawai'i: H.R. 7045, to require the Secretary of Agriculture to conduct a study on lands that could be included in a National Forest in Hawai'i. **Pages H6127–28**

National Landslide Preparedness Act: H.R. 8810, amended, to establish a national program to identify and reduce losses from landslide hazards, to establish a national 3D Elevation Program. **Pages H6128–31**

Big Cat Public Safety Act: H.R. 1380, amended, to amend the Lacey Act Amendments of 1981 to clarify provisions enacted by the Captive Wildlife Safety Act, to further the conservation of certain wildlife species, by a ⅔ yea-and-nay vote of 272 yeas to 114 nays, Roll No. 232. **Pages H6131–34, H6136 –37**

Suspension—Proceedings Postponed: The House debated the following measure under suspension of the rules. Further proceedings were postponed.

National Oceanic and Atmospheric Administration Commissioned Officer Corps Amendments Act: S. 2981, to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002. **Pages H6111–27**

Senate Referrals: S. 434 was held at the desk. S. 496 was held at the desk. S. 578 was held at the desk. **Page H6068**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H6068.

Quorum Calls—Votes: Three yea-and-nay votes developed during the proceedings of today and appear on pages H6134–35, H6135–36, and H6136–37.

Adjournment: The House met at 10 a.m. and adjourned at 10:09 p.m.

Committee Meetings

THE WESTERN HEMISPHERE DRUG POLICY COMMISSION: CHARTING A NEW PATH FORWARD

Committee on Foreign Affairs: Full Committee held a hearing entitled "The Western Hemisphere Drug Policy Commission: Charting a New Path Forward". Testimony was heard from the following Western Hemisphere Drug Policy Commission officials: Shannon O'Neil, Chair; Cliff Sobel, Vice Chair; and Mary Speck, Executive Director.

THE UNFOLDING CONFLICT IN ETHIOPIA

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a hearing entitled "The Unfolding Conflict in Ethiopia". Testimony was heard from Lauren Ploch Blanchard, Specialist in African Affairs, Congressional Research Service, Library of Congress; and public witnesses.

ENSURING THE 2020 CENSUS COUNT IS COMPLETE AND ACCURATE

Committee on Oversight and Reform: Full Committee held a hearing entitled "Ensuring the 2020 Census Count is Complete and Accurate". Testimony was heard from J. Christopher Mihm, Managing Director, Strategic Issues Team, Government Accountability Office; Joseph Salvo, Chief Demographer, Population Division, Department of City Planning, New York City, New York; Jeff Landry, Attorney General, Louisiana; and a public witness.

Joint Meetings

NATIONAL DEFENSE AUTHORIZATION ACT

Conferees agreed to file a conference report on the differences between the Senate and House passed versions of H.R. 6395, to authorize appropriations

for fiscal year 2021 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year.

COMMITTEE MEETINGS FOR FRIDAY, DECEMBER 4, 2020

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

No hearings are scheduled.

Next Meeting of the **SENATE**

3 p.m., Monday, December 7

Senate Chamber

Program for Monday: Senate will resume consideration of the nomination of Stephen Sidney Schwartz, of Virginia, to be a Judge of the United States Court of Federal Claims, and vote on the motion to invoke cloture thereon at 5:30 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Friday, December 4

House Chamber

Program for Friday: Consideration of H.R. 3884—Marijuana Opportunity Reinvestment and Expungement Act.

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